

**TANZANIA
HIGH COURT DIGEST
Volume V
1971**

CITATION

These digests will be cited thus:

[1971] H. C. D.

Followed by the case number.

**TANZANIA
HIGH COURT DIGEST**

VOLUME V

1971

WITH

INDEX

FACULTY OF LAW

**UNIVERSITY OF DAR ES SALAAM
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DAR ES SALAAM
TANZANIA**

i.

**TANZANIA
HIGH COURT DIGEST**

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Index

The index has two divisions: a) Civil, which includes all non-criminal and non-penal topics; and b) Criminal, which includes all criminal and penal topics. Cases are referred to by the special numbers assigned to them rather than by the page numbers.

Method of Digesting

We reproduce, whenever possible, edited versions of the cases selected rather than mere summaries. This is done especially in reporting the holdings of cases, where quotation marks indicate that the actual words of the court are being used.

Citation of Digests

Digests should be cited as follows: [1969] H. C. D. n.27. The final number indicates the case number not the page number.

Identification of Cases

The system of identifying cases which are digested is as shown by the following example:

“Ali s/o Hamisi v. R., (PC) Crim. App. 828-D-66: 19/1/67; Saidi J.”

(1) (2) (3) (4) (5) (6) (7) (8)

- (1) Parties – the full name of each party is given, first name first. Where there are several plaintiffs, defendants, or accuseds only the name of the first party is given. “R” is the abbreviation used for “Republic”.
- (2) Court of Origin – This indicates the type of court in which the case was originally heard. “(PC)” stands for “Primary Court”, and “(LC)” stands for “Local Court”. Following the practice of the High Court in marking and numbering its judgments, no abbreviation is used when the case originated in a District Court.
- (3) Type of Case – the following abbreviations will be used:

Criminal Appeals	...	Crim. App.
Criminal Revisions	...	Crim. Rev.
Miscellaneous Criminal Causes	...	Misc. Crim. Cause.
Criminal Sessions	...	Crim. Sess.
Criminal Cases	...	Crim. Case
Civil Appeals	...	Civ. App.

Miscellaneous Civil Causes	...	Misc. Civ. Cause.
Civil Cases	...	Civ. Case.
Matrimonial Confirmations	...	Matr. Conf.

ii.

Other abbreviations may be added as the need arises. All new abbreviations, and changes in the old ones, will be explained in the prefatory comments in this issue.

- (4) Case Number – this is the number assigned to the case by the High Court in the series indicated by parts (2) and (3) of the citation.
- (5) City – this indicates the city in which the case was heard, or to whose registry the case was assigned, by the High Court. “D” is Dar es Salaam; “A” is Arusha; “M” is Mwanza. Where these may not be appropriate, the name of the city is given in full.
- (6) Year of Filing – this indicates the year in which the case was filed with the High Court, and assigned a case number.
- (7) Date of Decision – this is the date appearing on the decision handed down by the High Court.
- (8) Name of Justice – this indicates the High Court Justice who decided the case and wrote the judgment.

Thus, in the example given, “Ali s/o Hamisi v. R.” is Primary Court Criminal Appeal Number 828 of 1966 in the Dar es Salaam registry, decided on 19th January, 1967, by Mr. Justice Saidi.

Inspection Notes. Inspection Notes contain information and counsel useful to magistrates and advocates alike, and are therefore included in this Digest. The cases involved are assigned no High Court number. The citation here, therefore, includes the number assigned by the court whose decision was considered by the High Court, the name of the court, and the city in which that

decision was rendered. The date given is that of the issuance of the Note by the High Court.

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- Desertion – Wife refusing to go back to matrimonial home – Husband not in desertion. 1971/262.
- Distinction between “Kula” and “fashki” disused – Islamic Law. 1971/105.

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- “Khula” divorce by consent is proper – Islamic Law. 1971/86.
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- “Kula” divorce - “Khului” only payable when wife moves her husband to divorce her – Islamic Law. 1971/103.
- Marriage irretrievably breaking down – Grounds for. 1971/2.
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- Cannot be ordered where marriage is invalid – Islamic Law. 1971/27.
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- Long cohabitation raises presumption of marriage. 1971/257.
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- Wife inheritance – Consent of family council must be obtained. 1971/116.
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- Affiliation proceedings – Procedure to be as near as practicable to that in ordinary civil cases. 1971/95.
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- Affiliation proceedings – Time of limitation – May be brought any time if father has maintained child within 12 months of birth – Affiliation Ord. Cap.278. 1971/95.

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- Burden of - Customary Law Declaration. 1971/174.
- Burden of proof – Customary Law Declaration distinguished from Affiliation Ordinance Cap.278. 1971/174.
- Child born during concubinage - Presumption. 1971/321.
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- Child born during subsistence of marriage – Presumption of paternity accords with common sense – Gogo Law. 1971/92.
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- Children born before marriage belong to husband – Masai Law. 1971/260.
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Proof of paternity – Burden of proof does not shift to woman who names man as father of her child until father has given evidence showing that he had no sexual intercourse with her – Customary Law Declaration. 1971/264.

Putative father publicly making customary payments in respect of pregnant fiancée – Mother may not deny paternity. 1971/1.

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- Court can fix amount of payment (khului) in a khula divorce. 1971/86.
- Distinction between “khula” and “fashki” discussed. 1971/105.
- “Khula” divorce by consent is proper under Islamic Law. 1971/86.
- “Khula” divorce – “Khului” only payable when wife moves her husband to divorce her. 1971/105.
- “Khula” divorce becomes complete on payment of “Khului”. 1971/86.
- Principles of “falak khula” not applicable where wife petitions court to dissolve marriage on ground of matrimonial offence. 1971/105.

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- Maintenance – Cannot be ordered where marriage is invalid. 1971/27.
- Maintenance – Disobedient wife (nashiza) – Husband not obliged to maintain “nashiza”. 1981/30.
- Maintenance – Disobedient wife (nashiza) seeking maintenance – Burden is on her to establish when she ceased to be “nashiza”. 1971/30.
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- Primary court has jurisdiction in cases governed by Sunni Shaffi. School of Law. 1971/76.
- Primary court to apply Sunni Shaffi law unless parties prove case is governed by other Muslim Sect. 1971/86

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- Husband bound to maintain divorced wife during period of eda. 1971/105.
- Wife living in husband's father's house – Not sufficient reason for refusal to maintain. 1971/103.

Marriage is like contract of sale and is subject to normal considerations governing such contracts. 1971/76.

Marriage – Consent to ceremony of marriage caused by misrepresentation – Marriage void. 1971/76.

Marriage – Validity – Fifth marriage after four subsisting marriages is invalid. 1971/27.

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Taxation – Estate duty on proceeds of policy of assurance – Not payable if deceased had no power of disposition within three years of death – Estates Duty Ordinance. Cap.327. 1971/99.

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- Decisions of Court of Appeal on Kenya statute in pari materia binding on High Court. 1971/199.
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- English authorities no longer binding on High Court. 1971/81 and 1971/219.
- High Court cannot overrule case decided by Court of Appeal. 1971/81.
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- Agreement for compensation under Ordinance not read over and explained to workman – Agreement not void but voidable at workman's option. 1971/166.
- Agreement for compensation under Ordinance a bar to institution or continuation of proceedings in respect of the same injuries. 1971/166.
- Cancellation of agreement improperly obtained – Only district court has jurisdiction. 1971/166.
- Procedure – District court of district in which agreement for compensation was made has jurisdiction to cancel it. 1971/166.
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- Revision – High Court may quash order of District Court given illegally or material irregularity. 1971/87.
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- Long occupation does not confer title – Chagga Law. 1971/17.
- Period of seven years insufficient to bar claim by original occupant – Mbulu/Iraq Law. 1971/84.
- Twelve year period required to infer adverse possession. 1971/84.

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Allocation of land – Allocation by Assistant District Executive Officer cannot override a prior allocation of the same land even though unutilized. 1971/333.

Allocation

- Land declared Ujamaa Village cannot be claimed. 1971/89.
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- V. O.'s power. 1971/341.

Assignment of lease – Covenants pass. 1971/334.

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Government acquiring land for public purpose – Person to whom land re-allocated not liable to pay compensation. 1971/239.

Not awarded for unlawful occupation. 1971/271.

Unexhausted improvements – Improvements must have been made by claimant. 1971/115.

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Consent – By Commissioner to disposition of Government Lease and Right of Occupancy – May be assumed from fact that conveyances have been properly effected. 1971/178.

Construction of building on land belonging to concubine – parties intended house for joint use or benefit – On termination of relationship house enuvs to owner of land – Obligation of owner to compensate builder for materials and labour expended in erecting the house.

Construction of building on plot held by wife under right of occupancy – On divorce house enuvs to wife – Obligation of owner to compensate builder for improvements. 1971/413.

Cultivation of land by wife – Does not give her children vested rights at death of husband. 1971/325.

Damages to crops – Method of assessment. 1971/348.

Easement – Public path – Owner of land may not close public path passing over it unless he provides alternative route – Haya Law.1971/28.

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- Attachment and sale of land not belonging to judgment debtor not valid – Haya Law 1971/163.
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- Attachment and sale – Legal owner must be given notice – Haya Law. 1971/163.
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Mortgage – Redemption of Land – Pledged land auctioned to pay debts may not be redeemed from buyer. 1971/163.

Pledge – Redemption of shamba notwithstanding date stipulated for repayment has elapsed. 1971/1971/424.

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Dispute over improvement - Jurisdiction of primary court. 1971/413.

Permission to build with promise to transfer – Owner failing to transfer – Amount spent on building to be treated as money had on behalf or benefit of another. 1971/20.

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- Compensation for redemption – Proper procedure for assessment of compensation. 1971/85.
- Consent of clan members must be obtained. 1971/182.
- Female member may not sell if male members exist. 1971/185.
- Land may not be bequeathed to persons outside clan. 1971/185.

- Limitation period for redemption – Twelve years from time the right to redeem accrues. 1971/85.

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- Redemption – Person redeeming need not refund purchase price if vendor had no title to cell land. 1971/185.
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Condition – Failure to produce certificate of title - Purchaser entitled to refuse to pay. 1971/117.

Sale of land without witness is void – Haya Law. 1971/273.

Various persons paying for the same piece of land – Sale approved by the District Council has priority. 1971/414.

- Succession – Rights of daughter to usufruct and share in proceeds on sale of property. 1971/328.
- Title to land
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- Land declared a Ujamaa Village – Occupants loose private claims to the land. 1971/89.
- Trespasser – Circumstances in which he receives compensation for improvements. 1971/332.
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- Lease for fixed period – Notice to quit prematurely is at highest expression of desire – Does not amount to breach. 1971/334.
- Rent Restriction Act – Standard rent of business premises. 1971/414.
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Assignment by tenant without consent – Assignee is trespasser. 1971/243.

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- Illegality – Covenant as to user not per se conclusive evidence of intention of unlawful performance. 1971/104.
- Misrepresentation – Possible through conduct. 1971/104.

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- Admissibility – Unstamped tenancy agreement chargeable with duty – Inadmissible. 1971/254.
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- High Court has jurisdiction 1971/7.
- Tribunal may not exceed powers granted by statute. 1971/108.
- Tribunal sitting with members appointed for particular rent restrictions are has jurisdiction in only that area. 1971/269.
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- Approval of letting cannot termed a consent order – Rent Restriction Act (Cap.479) S.11A – 1971/164.
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- Party must be given opportunity to cross examine witness. 1971/101.
- Right to be heard. 1971/77 and 1971/101.
- Tribunal may act informally. 1971/101
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Whether excessive – Burden of proof – Applicant must prove the rent excessive. 1971/96.

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- Monthly tenancy – Tenant continuing to live in house after expiry of notice to quit does so as tenant at sufferance. 1971/11.

- No notice to quit is required for tenancy at will. 1971/84.
- Periodic tenancy may be terminated by unilateral act of either party. 1971/11
- Reasonableness – Lapse of five months without payment of rent – Reasonable to make order for vacant possession. 1971/106.
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Action for wrongful occupation of house – Time of limitation is six years – Indian Limitation Act 1908 art.120. 1971/189.

Appeal – Limitation period is 90 days. 1971/100.

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- Day when right of action accrued – The date of repudiation of agreement. 1971/344.
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- Claim for recovery of sewing machine lent – Time being to run when demand first ineffectually made. 1971/167.
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- Land – Law of limitation operates since 1964 –Person not time barred till 12 years from 1964. 1971/115.
- Power of a court to reject a case – Proceedings outside schedule should be more readily admitted. 1971/167.

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- Court ordering petitioner to pay fees to different registry on presenting amended petition – Deemed to extend time for paying filing fees to coincide with time fixed for presenting amended petition. 1971/244.
- District Council elections – Time does not start to run until publication of results in Gazette. 1971/165.
- District Council elections – Time of limitation for filing petition against is one month from publication of results in Gazette – Election Act 25 of 1970, S.120(1). 1971/165.
- Registrar may extend time beyond 30 days to enable petitioner to amend his petition. 1971/244.

Ex Parte Judgment – Application to set aside – Inherent powers of court cannot ever ride provisions of Limitation Act. 1971/255.

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Local Authority – Actions against Local Authority - For limitation to apply to an Act, the act must be one done in the direct execution of statute or in discharge of a public duty or the exercise of a public authority – Local Government Ordinance Cap.333. 1971/25.

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- Additional evidence – Failure to record why taken by District Court – Not fatal – Magistrates Courts Act. 1971/97.
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- Decree appealed from – Decision of district court on objection to assessment of house tax not decree – Appeal does not lie therefrom – Municipal House Tax (Consolidation) Act 67 of 1963. 1971/188.
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- For leave to defend – Defendant having state able and arguable defence to be given opportunity to defend. 1971/176.

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- High Court may, with consent of parties, refer taking of accounts to Registrar. 1971/101.
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- Primary Court – No jurisdiction to try action for animal trespass. 1971/420.
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- Primary Courts to apply Sunni Shaffi law unless parties prove case is governed by other Muslim sect. 1971/86.
- Primary Court – Land matters. 1971/413.
- Registrar has no jurisdiction to take accounts. 1971/102.
- Rent Restriction Act – Rent Tribunal's jurisdiction. 1971/265.
- Transfer of proceedings to court of jurisdiction in place of residence of applicant – Possible for person to have temporary and permanent residence. 1971/14.
- Limitation – Claim to recover cow pledged 4 years prior to action – Time-barred. 1971/423.
- Matrimonial Causes – In suit between Africans the procedure applicable is that of civil proceedings in subordinate courts. 1971/79.
- Minor – Sues through next friend – Father cannot bring action for maintenance in his own. 1971/403.
- Notice of motion to rectify register of membership of company – Preliminary objection without answering or traversing the allegations contained in the notice of motion – Not an hearing of the notice of motion on merits. 1971/401.

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PROCEDURE (CIVIL) (CONTD.)

Parties

- Joinder – Application to be joined as co-defendant –Persons claiming that they hold property in trust pending finalization of sales have some interest. 1971/15.
- Misjoinder of.1971/100.
- Complaint – Discloses no cause of action - A nullity – Cannot be amended. 1971/338.
- Pleadings
- Application to amend complaint disclosing no cause of action – Claim based on dishonoured bill of exchange – May be amended by adding claim in the alternative based on the original contract. 1971/81.
- Application to amend complaint – Whether allowed where complaint discloses no cause of action – Relevant considerations. 1971/81.
- Amendment of – Complaint claiming on dishonoured bill of exchange disclosing no cause of action – May be amended by adding claim in alternative based on original contract. 1971/81.
- Amendment of – Relevant considerations. 1971/81.
- Contract – Failure to state that misrepresentation included entering contract – Inducement may be inferred. 1971/177.
- Divorce – Petition must be signed by petitioner. 1971/250.
- Divorce – Petition must allege where respondent is domiciled. 1971/250.
- Elections – Petition filed without filing fees – Has legal validity if petitioner ordered to pay fees to a different Registry. 1971/244.
- Election – Petition – Letter addressed to Registrar expressing intention to challenge is petition. 1971/244.
- Elections – Petition must be in manner prescribed by rules. 1971/244.
- Failure to state goods actually delivered and money actually passed to defendant – Not detrimental if can be implied. 1971/416.

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PROCEDURE (CIVIL) (CONTD.)

Pleadings (Contd.)

- Complaint containing incorrect statements of facts – Not ground for dismissal of suit unless complaint does not disclose cause of action. 1971/80.
- Complaint defective – Not ground for dismissal of suit unless complaint does not disclose cause of action. 1971/80.
- Complaint drafted by non-lawyer – Magistrate must check pleadings before being filed. 1971/112.
- Complaint not disclosing causes of action – Court cannot imply in the complaint what is not there. 1971/81.
- Complaint not disclosing cause of action – Complaint must set out with sufficient particularity plaintiff's cause of action. 1971/81.
- Technical niceties of pleadings no longer of importance. 1971/177.

Res Judicata

- Court cannot re-open issue of custody of children after it has been decided. 1971/257.
- Decision in Criminal proceeding is not conclusive in civil court. 1971/349.
- Does not operate where issue has not been finally decided upon. 1971/101.
- Party adjudged to be in unlawful occupation of land in former suit- Cannot bring suit for compensation from purported allocator. 1971/271.

Review – High Court may review ruling of Registrar. 1971/101.

Statement of defence – Twenty-one days for filing defence – Run from date of receipt of summons, not date of issue of summons. 1971/408.

Suit against a trade union – NUTA not an unincorporated body and no permission required to sue it. 1971/12.

Suit against a trade union – NUTA is a trade union under the Trade Union Act and can sue and be sued in its own name. 1971/12.

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Third Party Notice – Not granted if reference to arbitration is condition precedent to right of action. 1971/10.

Transfer of suit – If judgment given, no question of transfer can arise – Appellate court cannot transfer from primary to district court. 1971/330.

Witnesses – Request for the taking of evidence of witnesses outside jurisdictions – Relevant considerations. 1971/268.

SALE OF GOODS

Caveat Emptor – Defects in goods – Seller not liable where buyer has examined goods. 1971/168.

Terms of contract – Implied condition that goods fit for particular purpose – No term implied unless buyer makes known to seller purpose of goods so as to rely on seller's skill. 1971/168.

Statement made after fixing price – Does not constitute term of the contract. 1971/183.

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Interpretation

- Clear words required to oust jurisdiction of court. 1971/267.
- Permanent Labour Tribunal Act 1967 S.27 (1) – “Advice” not ‘award’ or “decision”. 1971/242.
- Words should be given their natural meaning. 1971/247.

SUCCESSION

Administration of estates – Estates duty – Proceeds of policy of assurance – Not payable if deceased had no power of disposition within three years of death – Estates Duty Ordinance Cap.527. 1971/99.

Customary Law Declaration. 1971/328.

Customary Law Declaration – Not applicable to will made before its adoption. 1971/347.

Haya Law - Disinheriting heirs – Wills must be witnessed by relatives – No distinction between clan shamba and self acquired shamba. 1971/353.

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SUCCESSION (CONTD.)

Intestacy

- Chagga Law – Widows do not inherit where there are male issues surviving. 1971/5.
- Concubine has no right of inheritance – Islamic Law. 1971/5.
- Deceased succeeding to land without issue – Brother inherits the land – Kisamba Law. 1971/8.
- Haya Law – First son in senior house entitled to be principal heir of father's property. 1971/32.
- Haya Law – First son (Omusika) entitled to be principal heir of father's property. 1971/156.
- Rule of primogeniture applicable notwithstanding brother's mother cultivated land during father's life time. 1971/353.
- Intestacy – Wife inheritance – Proper procedure – Customary Law Declaration. 1971/116.

Nyamwezi Law – Application to will of deceased made before the passage of the customary law declaration. 1971/347.

Personal Law – Applicable to disposition of land on death of deceased. 1971/347.

Wills

- Disinheritance of natural heir – Will must mention it specifically. 1971/32.
- Formalities – Nyamwezi Law recognizes no specific formalities but will must not contravene customary law. 1971/347.
- Revocation – Witnesses or majority of them must be present for valid revocation – Haya Law. 1971/272.
- Under customary law – Invalid where not witnessed by kinsmen of deceased. 1971/32.
- Witnesses to – Persons to inherit from cannot be witnesses to execution of will but can be witnesses to matters arising out of the will – Customary Law Declaration. 1971/271.

TAXATION

Suit for.....a good defence. 1971/246.

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TORT (CONTD.)

Damages (Contd.)

- Reversal of order – Best court to assess is trial court – Appellate court should only disturb assessment when quantum fixed is patently unreasonable. 1971/415.
- Trespass. 1971/179.
- Trespass – Co-owner can recover damages against co-owner to the extent of his interest. 1971/171.

Defamation

- Damages – One goat for a commoner and one fattened goat (ndafu) for a chief – Chagga Law. 1971/93.
- Damages – Institution of chief now an anachronism – Damages need not be fattened goat (Ndafu). 1971/93.
- Defined. 1971/111.
- Truth – Accusation of theft – Fact that plaintiff acquitted in criminal trial does not render accusation false. 1971/111.
- Truth – Accusation of theft not proved false – Defamation not proved. 1971/111.

Law Reform

- Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Cap.360 – Calculation of damages.
- Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Cap.360 – Damages – Assessment of – Relatives assisting dependants an irrelevant consideration. 1971/190.

Malicious Prosecution

- Common law tort and not known to customary law. 1971/323.
- Elements of the offence. 1971/417.
- Plaintiff to prove that he sustained losses. 1971/112.

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TORT (CONTD.)

Negligence

- Assessment of damages in personal injuries cases. 1971/337.

- Damages awarded for pain and inconvenience. 1971/88.
- Duty of a medical practitioner – Medical practitioner must observe universally accepted procedures. 1971/88.
- Standard of care required of a medical practitioner. 1971/88.
- Vicarious liability – Course of employment. 1971/190.
- Vicarious liability – Master liable for servant's negligence where servant makes small deviation from course of employment. 1971/190.

Setting fire to house – Evidence – Burden of proof – Conviction in criminal case does not dispense with proof in civil case. 1971/181.

Evidence – Admissibility – Of criminal case file to prove conviction for setting fire to house – Inadmissible unless proved that it was criminal case in which defendant was convicted. 1971/181.

Trespass

- Assignment by tenant without consent – Assignee is trespasser. 1971/243.
- Committed by co-owner of motor cycle trying to seize from co-owner and damaging it. 1971/171.
- Damages – Loss of earnings due to damaged camera – Not awarded where the plaintiff does not aver. 1971/179.
- Quantum – Those naturally arising from injury. 1971/179.
- Defence – Superior orders not a defence. 1971/186.

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“Custody” – Purpose of Income Tax Act – Meaning of 1971/429.

“Disclose a cause of action” Meaning of. 1971/338.

Shall – “Plaint shall be rejected” – Mandatory.

“Surprising the wife” meaning of. 1971/320.

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ABDUCTION

Elements – Facts must show taking without consent of guardian. 1971/128.

Elements of Offence

- A guilty intent must be proved. 1971/223.
- Knowledge that girl is under lawful care of father, mother or other person necessary. 1971/223.

Purpose of offence. 1971/128.

Sentence

- Compensation – Only awarded where material loss or personal injury has been suffered. 1971/290.
- Imprisonment – Six months imprisonment illegal. 1971/290.

ABUSIVE LANGUAGE

Annoyance or displeasure by recipient not enough to constitute a crime -
Words must be likely to cause breach of peace. 1971/435.

Sentence – Fine – Must bear reasonable relation to the accused's power to pay. 1971/224.

ACCESSORIES AFTER THE FACT

Accessory commits a separate and distinct offence while aider and abettor is principal in commission of the offence. 1971/75.

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Persons who neither knowingly assist nor encourage the commission of crime are not accomplices. 1971/368.

AIDING AND ABETTING

Aider and abettor is principal in commission of the same offence. 1971/75.

ANIMALS

Animals mild in their general temper causing harm – Owner not guilty unless he knew animal to be ferocious. 1971/200.

Dogs – Dogs are animals mild in their general temper. 1971/200.

APPEAL

Appeal out of time

Good cause must be shown. 1971/132.

Good cause – Shown where first appellate court reverses judgment of subordinate court. 1971/132.

Bail pending appeal

- Appeal must have overwhelming chance of success. 1971/149 and 1971/62.
- Granted in special or exceptional circumstances – Enabling applicant to sit for examination not special or exceptional circumstance. 1971/149.
- Granted where appeal has overwhelming chance of success – Not granted when it is a matter of argument whether sentence is excessive or not. 1971/388.
- Likelihood of applicant of tender age coming in contact with hardened criminal not special circumstance. 1971/62.
- Previous good character of applicant not in itself ground for granting bail. 1971/62.

Burden of proof – Misdirection – Not material unless made in respect of evidence dependent on credibility of witness. 1971/311.

East African Court of Appeal – Application to appeal to – Granted only if sufficient reason is shown. 1971/132.

Application to appeal to – Whether granted is a matter of discretion. 1971/132.

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- Appeal court may take own view of evidence on first appeal. 1971/71.
- Appeal court may interfere when trial court acted on wrong principle or misdirected itself. 1971/464.
- Appeal court not to interfere with court's finding of fact unless manifestly unreasonable. 1971/132.
- Evaluation of evidence – Appeal court may have its own views of evidence and decision thereon on first appeal – Appeal from decision of a judge sitting alone is by way of rehearing. 1971/42.

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Judgment – Effect of trial court's non compliance with Section 171 (1) of C .P. C. 1971/390.

Jurisdiction – East African Court of Appeal has some powers in dealing with appeal as High Court – Appellate Jurisdiction Ordinance (Cap.541). 1971/145.

Petition of Appeal – Must particularize ground of appeal. 1971/70.

Power of appellate court when trial magistrate misdirected himself. 1971/380.

Procedure – Complainant cannot appeal against conviction. 1971/124.

First appeal – Appellate Court bound to rehear and adjudicate before ordering retrial. 1971/145.

Revision

- District Court has no power to make revision order on mere basis of letter from complainant. 1971/124.
- Jurisdiction – District Court has powers of revision. 1971/124.
- Procedure – Revision proceedings not proper unless prosecution takes part. 1971/124.

Sentence

- Court of Appeal – May consider whether sentence is lawful. 1971/297.
- Court of Appeal – May not consider whether sentence is severe or lenient. 1971/297.
- Leave to appeal against – Power to grant conferred to the Court of Appeal. 1971/300.
- Leave to appeal against – Procedure – Application must be formal and should be made at time of filing notice of appeal. 1971/300.
- Leave to appeal against - Procedure – Application is by motion to single judge of Court of Appeal or of High Court. 1971/300.

ARMS AND AMMUNITION

Meaning of “transfer”. 1971/400.

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Preventing arms falling into the hands of unauthorized persons – Facts must be proved beyond reasonable doubt that accused's acts or omission amounted to failure to take precaution. 1971/439.

ASSAULT CAUSING ACTUAL BODILY HARM

Provocation – No defence to charge. 1971/274.

Sentence – Provocation – Grounds for mitigation in sentencing. 1971/274.

ASSAULT PUNISHABLE WITH FIVE YEARS

Obstructing court broker executing attachment order – Accused entitled and has duty to resist if attachment illegal. 1971/66.

ATTEMPT

Attempted murder

- Intention to kill essential – Intention to cause grievous bodily harm not enough. 1971/471.
- Securing door of house before setting it alight is evidence of. 1971/471.

Attempted Rape – Mere preparation not enough. 1971/471.

Attempted Theft – Stealing spot light from motor vehicle – Attempt established by proof of effort to unscrew bolts securing the spotlight. 1971/72.

Preparation for a crime does not constitute an attempt. 1971/362.

Proximate acts – Definition of. 1971/364.

BAIL

Principles on which bail will be granted pending trial. 1971/391.

BHANG

Possession of bhang – Identification – Unsafe to convict on bald assertion of policeman that he knows bhang. 1971/203.

BREACH OF PEACE

Discharging a firearm or committing any other breach of the peace – “Any other breach of the peace must be interpreted ejusdem generic with “discharging firearm” – S. 89 (2) (b) Penal Code. 1971/310.

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BREACH OF PEACE (CONTD.)

Discharging a firearm or committing any other breach of the peace – Holding sticks and pangas does not fall within offence. 1971/310.

BREAKING

Constructive breaking – Need to extend the law. 1971/146.

Does not include climbing through aperture. 1971/449.

Includes entering by some permanent opening left open for necessary purpose. 1971/146.

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Breaking – Cutting reeds from window is act amounting to breaking – Intention to cause grievous harm satisfied other element of offence. 1971/434.

CHEATING

Element of offence. 1971/393.

CLAIM OF RIGHT

Claim must be investigated. 1971/205.

Sufficient defence through unfounded in law if honestly held and not manifestly unreasonable. 1971/481.

Taking of elephant tusks by person licenced to hunt and kill elephant – Claim of right no defence. 1971/296.

Use of money under honest claim of right does not constitute stealing. 1971/213.

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Circumstances when an order for compensation will not be made. 1971/392.

CONSTRUCTION OF STATUE

Penal offences – Regulation must be strictly construed. 1971/397.

CONTEMPT OF COURT

Magistrate has no power under Penal Code to impose peremptory imprisonment. 1971/372.

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CONTEMPT OF COURT (CONTD.)

Maximum sentence which can be imposed under the penal code is set out therein. 1971/372.

Summary procedure – Court to frame charge and give accused opportunity to defend him. 1971/199.

Wrongful retaking possession of land – Possession must be after judgment of court – Penal Code S.114 (1) (h). 1971/217.

CRIMINAL TRESPASS

Alternative verdicts – Criminal trespass cannot be substituted for personating police officer. 1971/210.

Essence of offence

- Entry must be unlawful. 1971/310.
- Intention to commit an offence or to intimidate, insult or annoy necessary. 1971/305, and 1971/310
- Unlawful entry must be on private property. 1971/310.

Intention – Lacking where accused exercises what he considers to be his right although mistakenly. 1971/305.

CUSTOMS AND EXCISE

(See East African Management Act).

DEFILEMENT

Evidence

- Child of tender years – Corroboration – No corroboration required where evidence is given on oath. 1971/303.
- Of complainant under the age of 12 – Requirement of corroboration. 1971/357.

EAST AFRICAN CUSTOMS MANAGEMENT ACT: 1952

Forfeiture of vehicle need to transport uncustomed goods. 1971/476.

Motor vehicle used to transport uncustomed goods – Order restoring it to the owner can only be made by community not magistrate. 1971/476.

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EVIDENCE (CRIMINAL)

Accomplices

- Procedure for admitting evidence of. 1971/298.
- See evidence – Corroboration.

Admissibility

- Child of tender years. 1971/301.
- Evidence obtained in the course of illegal search is admissible. 1971/283.
- Illegally obtained evidence if relevant is admissible. 1971/381.
- Statement by accused deposed to as having led to discovery of stolen goods in admissible. 1971/314.

Age – Cannot be assessed accurately and benefit of doubt must be given to accused. 1971/385.

Alibi – Need only raise reasonable doubt – Need not be proved by the accused. 1971/318.

Appeal

- Appeal court not to interfere with trial court's finding of fact unless manifestly unreasonable. 1971/154.
- Evaluation of evidence – Appeal court may have its own views of evidence and decision thereon on first appeal – Appeal from decision of a judge sitting alone is by way of rehearing. 1971/42.

Burden of proof

- Burden is on prosecution and not accused. 1971/275.
- Defence – Need not be proved by accused. 1971/54 and 1971/307.
- Guilt not to be interred from appellant's silence after prime facie case. 1971/440.
- Malice Afore Thought – Intoxication – Accused need prove insanity as a result of intoxication. 1971/44.
- Malice Afore Thought – Intoxication – Prosecution need prove capability to form intent to kill. 1971/44.

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EVIDENCE (CRIMINAL) (CONTD.)

Burden of Proof (Contd.)

- Mere prima facie case not sufficient to support conviction. 1971/215.
- Misdirection – Not material unless made in respect of evidence dependent on credibility of witness. 1971/311.
- An accused charged under s.49 and 53 Fauna Conservation Ord. – Standard balance of probabilities. 1971/431.
- Unlawful “possession of Moshi” – Prosecution need not prove that liquid possessed is Moshi where accused pleads guilty. 1971/35.

Child of tender years

- Court to ascertain whether understands nature of oath. 1971/131.
- Court must scrutinize evidence carefully before acting on it. 1971/131.

- Requirements. 1971/289.

Child of tender years as witness – Requirements and procedure – Magistrate to record fact that child understand duty of speaking truth before receiving its evidence. 1971/58.

Circumstantial Evidence

- Inference of guilt must be irresistible and incompatible with innocence. 1971/278.
- Inculpatory facts must be incompatible with innocence of accused in order to sustain conviction. 1971/215 and 1971/54.
- Mere aggregation of separate facts not sufficient. 1971/60.
- Must be incompatible with any other reasonable explanation than guilt. 1971/443.

Compellability of spouse – Court's duty to inform the wife she is not obliged to give evidence against husband. 1971/384.

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EVIDENCE (CRIMINAL) (CONTD.)

Confession

- Admissible where lead to discovery of material fact. 1971/314.

Court must direct itself as to the weight to be placed on confessions.
1971/298.

- If retracted it cannot support a conviction unless corroborated. 1971/398.
- Inadmissible where made to police officer – Immaterial that police officer not acting in his capacity as such. 1971/74.
- Inadmissible where made to police officer. 1971/74 and 1971/141 and 1971/314.
- Includes confession of any offence other than specific offence charged. 1971/52.
- Statement constituting must be indicative of guilty. 1971/74.

Corroboration

- Accomplices – No rule of law that evidence requires corroboration – S.142. Evidence Act 1967 considered. 1971/42.
- Accomplices – Requirements. 1971/440.
- Child of tender years – Evidential requirements. 1971/47.
- Child of tender years. 1971/389.
- Child of tender years – No corroboration required where evidence is given on oath. 1971/303.
- Children of tender years – Evidential requirements. 1971/58 and 1971/73.
- Children's testimony – Corroboration not required when evidence is given on affirmation. 1971/131.
- Necessary when confession is withdrawn at the trial. 1971/398.

- Dangerous to convict accused on co-accused's words – Substantial corroboration necessary. 1971/448.
- Dying declaration – Requirement of. 1971/453.

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EVIDENCE (CRIMINAL) (CONTD.)

Corroboration (Cntd.)

- Dying declaration must normally be corroborated – Dying declaration, may, however, be accepted without corroboration when the maker could not have been mistaken as to the identity of his attacker. 1971/473.
- Necessity for when evidence given by accomplices. 1971/437.
- Rule applies to the prosecution not to the defence. 1971/56.
- Sexual offences – Evidential requirement. 1971/47.
- Sexual offence – Requirements. 1971/287.
- Where complicity of witness in the matter is mild and passive his testimony will not require the same amount of corroboration as that of a person with greater involvement. 1971/455.

Credibility

- Witness – Hostile witness defined. 1971/310
- Witness – Hostile witness – Procedure for impeachment of. 1971/310.
- Witness – Identification of accused by single witness not reliable – Other evidence pointing to guilt necessary. 1971/67.

- Witnesses – Minor inconsistency in witness's testimony does not necessarily make testimony discredited. 1971/288.

Credibility of Witness – Previous statements of witness should be produced at trial to enable court to determine credibility of witness. 1971/479.

Degree of proof – Higher in murder case than in lesser offences. 1971/45.

Documentary evidence – Secondary evidence of document – Oral evidence of contents of Kenya registers not admissible. 1971/307.

Dying declaration

- Deceased with head wound – Weight of declaration. 1971/473.

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EVIDENCE (CRIMINAL) (CONTD.)

Dying Declaration (Contd.)

- Need not be corroborated in order to support prime facie case. 1971/306.
- Repetition by deceased not evidence of the trusty of declaration, but only of consistency of victim's belief. 1971/473.
- Unsafe to convict if uncorroborated. 1971/306.

Expert – Letter containing opinion of Document Examiner inadmissible. 1971/307.

Experts – Grievous harm – It is not for medical officer but the court to say whether harm done amounts to grievous harm. 1971/292.

Hearsay

- Obtaining by false pretences – Testimony by persons other than complainant inadmissible. 1971/41.
- Testimony by Investigation officers as to statement by no witnesses on nonexistence of a subject matter inadmissible. 1971/307.

Hostile witness - When witness should be declared hostile. 1971/479.

Identification

- Caution required when attack takes place in darkness. 1971/453.
- Evidence of description important – Evidence must be “Watertight”. 1971/304.
- Must provide “Watertight” evidence if sole support of conviction. 1971/141.
- By and evidence of victim may be sufficient to sustain conviction. 1971/375.
- Of accused – Fact of description and terms of description must be testified to by person purporting to identify accused. 1971/306.
- Of accused by single witness not reliable. 1971/67, 1971/235, and 1971/318.
- Of accused by single witness – Must be tested with the greatest care. 1971/235.

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EVIDENCE (CRIMINAL) (CONTD.)

Identification (Contd.)

- Of bhang – Assertion of policeman that he knows bhang must be supported. 1971/203.

- Of liquor – Qualifications of identifying witness must be established. 1971/294.
- Of stolen goods – Stolen beer identified by special owner's marks on bottles. 1971/283.
- When accused identified by one witness there must be corroboration by evidence circumstantial or direct. 1971/367.

Inconsistent statements – Dangerous to act on previous inconsistent statements of witness – When inconsistencies are substantial and unexplained. 1971/479.

Infants – Before admitting evidence of children of tender age, primary court must be satisfied about their capabilities. 1971/377.

Opinion – Accused not to be convicted on opinion evidence alone. 1971/61.

Previous convictions – Accused to be given opportunity to deny alleged previous convictions. 1971/128.

Prima facie case

- Not sufficient to support conviction even where submission of no case to answer overruled. 1971/215
- Submission of no case to answer – Accused still entitled to examination of evidence, even where no defence is put forward. 1971/215.

Proof

- Doctrine of recent possession – Illustration. 1971/329.
- No case to answer – Must be upheld where no prima facie case proved. 1971/316.
- “Prima facie” case defined. 1971/316.

Repudiated confession – Evidence amounting to corroboration thereof. 1971/360.

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EVIDENCE (CRIMINAL) (CONTD.)

Secondary evidence – When admissible – Factors which are relevant. 1971/431.

Sexual offences – Corroboration of complainant's testimony – constituted where accused found with arms and legs covered with dust similar to that found on complainant's body. 1971/47.

Witnesses

- Hostile witness defined. 1971/310.
- Hostile witness – Procedure for impeachment of. 1971/310.
- Cross-examination – Accused has right to examine co-accused and his witnesses. 1971/385.
- Duty of court to adjourn and give accused all help necessary to secure attendance of his witnesses. 1971/378.
- Who give inconsistent stories – May be cross examined by person who calls him. 1971/70.

FALSE ACCOUNTING

“Clerk or Servant” – Commission agent not within the ambit of section 317 of Penal Code. 1971/365.

FALSE INFORMATION

Mens rea – knowledge that information is false is an essential ingredient of offence. 1971/439.

Person employed in the Public Service – Person appointed by General Manager of N. D. C. is not employed in the public service. 1971/57.

FAUNA CONSERVATION ORDINANCE CAP. 302.

Government trophy

- Includes tusks of elephant found dead in bush. 1971/296.
- Includes bracelet made from elephant tusk. 1971/226.

Hunting game animal with unsuitable weapon – Sentence – Forfeiture is discretionary. 1971/191.

Hunting game with unsuitable weapon – Sentence – Forfeiture – Mitigating factor. 1971/191.

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FAUNA CONSERVATION ORDINANCE (CONTD.)

Hunting game animal without licence – Unlawful possession of government trophy does not amount to. 1971/216.

Sentence

- Forfeiture – Hunting game animal with unsuitable weapon – Forfeiture is discretionary. 1971/191.
- Forfeiture – Hunting game animal with unsuitable weapon – Use of shot gun to protect crops from wild animals is mitigating factor to prevent forfeiture. 1971/191.
- Unlawful possession of government trophy – Maximum imprisonment is six months for first offender and nine months for repeater. 1971/216.

Standard of proof – Accused to prove innocence on balance of probabilities. 1971/431.

Stealing government trophy

- Claim of right – Rejected where not bona fide. 1971/296.
- Elements of offence – Immaterial where accused obtains trophy. 1971/296.

Unlawful possession of government trophies – Burden of proof on accused – Standard of proof – Balance of probabilities. 1971/431.

Unlawful possession of government trophy – Government trophy defined.
1971/226.

Unlawful possession of government trophy–Sentence Maximum
imprisonment is six months for first offender and nine months for repeater.
1971/216.

FORGIBLE ENTRY

Elements of offence – Honest belief of right to enter are a defence. 1971/317.

FORGERY

Alternative verdicts – Forging or uttering currency note cannot be substituted
for uttering counterfeit coin. 1971/286.

Defined. 1971/155.

Elements of offence – Document must purport to, to be what it is not.
1971/155.

Elements of offence – Issuing certificate of competence without driving test
not forgery. 1971/155.

Insertion of false receipt number on receipt number for local rate – Not
forgery. 1971/39

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GRIEVOUS HARM

Sentence

- Compensation - Appropriate where harm arises out of trivial quarrel with
co-wife. 1971/194.
- Fine – Appropriate where harm arises out of trivial quarrel with co-wife.
1971/194.

What constitutes grievous harm – Court and not medical officer must determine.
1971/292.

HANDLING STOLEN PROPERTY

Conviction – Not possible where accused is the thief. 1971/455.

HOMICIDE

Dying declaration must normally be corroborated. 1971/473.

Malice aforethought – Where there is conflict of evidence accused to be given benefit of doubt. 1971/451..

Manslaughter

- Accidental death – Accused not liable for death resulting from accidental firing of gun. 1971/43.
- Common intention – There need not be concerted agreement before attack. 1971/197.
- Mens rea – Common intention defined. 1971/197.

Murder

- Accused believing he had a right to spear cattle thief – Mistake of law. No defence. 1971/451.
- Malice aforethought – Deceased dying in sexual embrace – Malice not constituted merely because act of intercourse unlawful. 1971/293.
- Malice aforethought – Inference of less readily drawn where death caused by use of non lethal weapon. 1971/279.
- Malice aforethought – Intoxication incapability of forming intent. 1971/44.
- Malice aforethought – Intoxication plus no evidence of amount of force used negatives intent. 1971/443.

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HOMICIDE (CONTD.)

Murder (Contd.)

- Malice aforethought – Not found where accused had been drinking heavily and no motive for killing. 1971/458.
- Malice aforethought – Not found where deceased died in sexual embrace without excessive force being used. 1971/293.
- Malice aforethought – Not found where gun use was fired accidentally. 1971/43.
- Provocation – Act causing death must be done in heat of passion to reduce charge to manslaughter. 1971/279.
- Provocation – Act constituting witchcraft must be performed in presence of accused. 1971/49.
- Provocation – Mere belief in witchcraft does not amount to provocation. 1971/49.
- Provocation – Prior knowledge of adultery does not exclude defence of provocation if accused finds his wife in act of adultery. 1971/280.
- Provocation – Prior knowledge of adultery excludes defence of provocation if accused finds his wife in act of adultery. 1971/279.
- Provocation – Wife found in circumstances suggesting adultery – Defence not open if accused had intention to kill or inflict grievous bodily harm. 1971/299.

Proof – Degree higher in murder case than in lesser offences. 1971/451.

HOTEL ACCOMMODATION (IMPOSITION OF LEVY) REGS.

Meaning of 'owner' and 'manager'. 1971/397.

HOUSE BREAKING

Alternative verdicts – Malicious damage cannot be substituted for attempted breaking. 1971/304.

Burglary

- Breaking and entry necessary. 1971/135.
- Constituted by breaking window and pole-fishing through it. 1971/135.

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HOUSE BREAKING (CONTD.)

Burglary (Contd.)

- Entry – Least degree of entry sufficient. 1971/135.
- Entry – Pole-fishing clothes out of broken window constitutes entry. 1971/135.
- Intent to commit a felony essential – Must be established beyond reasonable doubt. 1971/147.

Constructive breaking – Need to extend the law. 1971/146.

Elements of offence – Intent to commit felony – Must be established. 1971/304.

Includes entering by some permanent opening left open for necessary purpose. 1971/146.

Pushing door constitutes breaking. 1971/383.

INDECENT ASSAULT

Alternative verdicts – Indecent assault can be substituted for attempted defilement. 1971/301.

Alternative verdicts – Indecent assault can be substituted for rape.

Alternative verdict – Indecent assault substituted for rape. 1971/362.

Element of offence – Assault not decent in itself becomes indecent if accompanied by indecent utterances suggestive of sexual intercourse. 1971/233.

Elements of offence – Forcing complainant to remove underpants – Amounts to removal of underpants by accused and therefore indecent assault. 1971/233.

Element of offence – Indecent act must be proved. 1971/233.

Elements of offence – Indecent suggestion may be by conduct even if there is no verbal suggestion. 1971/478.

Elements of offence – Proved if assault on female done in indecent circumstances. 1971/301.

Removal of clothing sufficient to constitute assault. 1971/478.

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IMMIGRATION

Failing to report entry to Immigration Officer – Charge – Defective – Charge – Defective – Name of offence wrongly stated – Error curable if section of the law accurately stated and accused knows nature of the offence. 1971/291.

Failing to report entry to Immigration officer – Sentence - Maximum imprisonment is four months. 1971/291.

Failing to report entry to immigration officer – Sentence – Material factors – Village of accused and that of Tanzania being divided by historical accident. 1971/291.

Failing to report entry to immigration Officer – Sentence – Material factors – Visiting a sick relative. 1971/291.

INSANITY

Arising “during the trial” - Interpretation of. 1971/386.

Burden

- Defence must establish insanity. 1971/369.
- Standard of proof. 1971/389.

Discharge of burden – Defence discharges burden by raising a reasonable doubt of his sanity. 1971/369.

Procedure when accused appears to be of unsound mind. 1971/358.

INTOXICATION

Family of owner of off-license not covered by Section 14(2) of Intoxicating Liquors Act. 1971/466.

Sale of liquor – Consuming or intention to consume is prime facie evidence of sale. 1971/466.

JURISDICTION

District Court's jurisdiction – Threat to use witchcraft with intent to cause death. 1971/356.

JUVENILES

Age

- Finding of age may be based on accused's statement only. 1971/193.
- No clear evidence as to age – Magistrate to determine age so as to favour child. 1971/143.

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JUVENILES (CONTD.)

Child of tender years – Procedure and requirements. 1971/389.

Children and young persons – Trial Court must sit in a place different from ordinary court room. 1971/63.

Sentence – Committal to approved school – Cannot be made before inquiry whether vacancy available at the school. 1971/143.

Sentence – Order for compensation against juveniles – Circumstances when it may be awarded. 1971/228.

Witnesses – Child of tender years – Requirements and procedure. 1971/301 and 1971/289.

LABOUR LAW (CRIMINAL)

Breach of employment contract – Employee may refer matter to labour office which can refer to police where offence has been committed. 1971/230.

Charge – Duplicity – Charge alleging failure to prepare or maintain or issue copy of an oral contract is bad for duplicity. 1971/230.

Failing to comply with a decision of a duly constituted conciliation board – Employer can be prosecuted. 1971/230.

Security of Employment Act - Breach of employment contract – Procedure which may be followed by employee. 1971/230.

LANDLORD AND TENANT

Offence under Rent Restriction Act – Intent to compel tenant to vacate premises or pay higher rent must be proved. 1971/459.

Section 32 of Rent Restriction Act – Particulars of offence must allege annoyance not inconvenience.

Magistrate must make finding whether act annoying in law. 1971/489.

LIMITATION OF ACTIONS (CRIMINAL)

When not raised by either side court will not deal with it ex succ notu. 1971/309.

LIQUOR

Identification of moshi – Evidence of policemen. 1971/203.

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LIQUOR (CONTD.)

Identification of Liquor

- Qualifications of identifying witness must be established. 1971/133 and 1971/294.
- Scientific or expert testimony not necessary to identify native liquor. 1971/123.
- Unjust practice for police to employ experienced drinkers to go about testing "moshi". 1971/123.
- Witness to state nature of smell and reasons for conclusion. 1971/133.
- Material factors – Possession of "moshi" – Old age – Prevalence of offence – Unblemished record. 1971/35.

Sentence

- Possession of "moshi" – Fine is principal mode of punishment. 1971/144.
- Possession of "moshi" – Prison sentence inappropriate for occasional or amateur offender. 1971/139.
- Possession of "moshi" – Prison sentence not appropriate where accused not distributor. 1971/144.

Unlawful possession of "moshi" – Accused pleading guilty – Prosecution need not prove that liquid possessed is "moshi". 1971/35.

MALICIOUS DAMAGE TO PROPERTY

Essence of offence – Claim of right – Vitiates intention. 1971/285.

Essence of offence – Ownership of land – Ownership of land by complainant must be established. 1971/285.

MENS REA

Adduction of girls under sixteen years – A guilty intent must be proved. 1971/223.

Abduction of girls under sixteen – Knowledge that girl is under lawful care of father, mother or other person necessary. 1971/223.

Claim of right. 1971/213.

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MENS REA (CONTD.)

Criminal Trespass

Essence of offence – Intention to commit an offence or to intimidate or annoy necessary. 1971/305.

Intent to intimidate insult or annoy must be proved. 1971/305.

Intention – Lacking where accused exercises what he considers to be his right although mistakenly. 1971/305.

Doing grievous harm – Whether inferred from the facts. 1971/46.

Drunkenness – May affect capacity to form necessary intent. 1971/366.

Forcible entry – Honest belief of right to enter is defence. 1971/317.

Killing animal with intent to steal – Intent to steal an essential ingredient of offence. 1971/195.

Manslaughter

Common intention defined. 1971/197.

Common intention – There need not be concerted agreement before attack. 1971/197.

Murder

Malice aforethought – Deceased dying in sexual intercourse – Malice not constituted merely because act of intercourse unlawful. 1971/293.

Malice aforethought – Intoxication – Accused need prove insanity as a result of intoxication. 1971/44.

Malice aforethought – Intoxication – Prosecution need prove capability to form intent to kill. 1971/44.

Malice aforethought – Not found where deceased died in sexual embrace without excessive force being used. 1971/293.

Negligence – Dog biting complainant – Owner not guilty unless he knew animal to be ferocious. 1971/200.

Theft – Honest and reasonable belief that taking lawful under customary law a defence. 1971/236.

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MENS REA (CONTD.)

“Uncustomed goods” – Knowledge that goods uncustomed and dutiable necessary. 1971/460.

Unlawful entry into National Park – Mens rea required. 1971/69.

MINIMUM SENTENCES ACT CAP. 526

Alternative verdicts

- Killing animal with intent to steal cannot be substituted for castle-theft. 1971/195.
- Scheduled offence cannot be substituted for non-scheduled offence. 1971/41 and 1971/218.

Cooperatives – Registration must be proved. 1971/45

Enactment of a substantive and not an amending statute. 1971/371.

Rationale. 1971/371.

Retrospective effect. 1971/394.

Probation order cannot be made on conviction for burglary. 1971/461.

Public Property

- Judicial notice may be taken of. 1921/225.
- Property of Mtwara Textile Industries Company – Not public property. 1971/225.

- Property of private company not included. 1971/225.

Public Service

- East African Community included. 1971/75.
- Employee of Posts and Telecommunications Department of Community – Included. 1971/472.
- Evidence that body falls within must be given. 1971/225.
- National Agricultural Corporation not included. 1971/463.

Scheduled Offences

Killing animal with intent to steal does not fall within ambit of Act. 1971/195.

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MINIMUM SENTENCES ACT CAP.526 (CONTD.)

Scheduled offences (Contd.)

- Reference in schedule of Minimum Sentences enactment to repeal Prevention of corruption enactment – Interpreted as reference to correspondence sections of new Prevention of corruption enactment. 1971/371.
- Simple theft included in offender knew or ought to have known that thing stolen is public property. 1971/218.

Sentence

- Imposed under S. 5(2) – Where value of property does not exceed Shs.100/=. 1971/75.
- “Special circumstances” – Accused should be explained opportunity to plead “special circumstances”. 1971/292.
- Special circumstances – First offender – Meaning of. 1971/275.
- Special circumstances – Found where accused has long and honorable service to community. 1971/297.

- "Special circumstances" – Found where accused has previous good character. 1971/297.
- "Special circumstances" – Found where value of property involved did not exceed Shs.100/=. 1971/126.
- "Special circumstances" – Found where value of property stolen is Shs.15/= and accused a Youngman with parents to support.1971/211.
- "Special circumstances" – Found where value of bride given is Shs.40/=. 1971/297.
- Special circumstances – Having dependants – Not necessarily special circumstances. 1971/142.
- Sentence – "Special circumstances" – May be found where receiver did not know or reasonably believe that goods taken in commission of a scheduled offence. 1971/126.
- Special circumstances - Must be shown. 1971/281.
- Special circumstances – Sitting examination not special circumstances. 1971/142.

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MINIMUM SENTENCES ACT CAP.526 (CONTD.)

Sentence (Contd.)

- Special circumstance – Does not exist only because accused has sick children and no relatives in Dar es Salaam. 1971/465.
- "Special circumstances" - May be found where accused has a good record. 1971/75.
- "Special circumstances" – May be found where accused has dependants. 1971/75.

- Special circumstances – May be found where accused is a first offender and the sum involved is less than Shs.100/=. 1971/33.
- Special circumstances – May be found where Commissioner for Social Welfare states that accused is of very good character. 1971/33.
- Special circumstance – Pursuit of fulltime course of instruction by schoolboy is a special circumstance. 1971/462.
- Special circumstance – There could hardly be special circumstances when offence is robbery with violence. 1971/450.
- Special circumstance – When no evidence exists that receiver of stolen property knew that property taken was in relation of a scheduled offence. 1971/456.

Stealing and the offence of entering with intent to steal – Not scheduled offences. 1971/457.

Strict proof of age of accused and value of property required. 1971/394.

MINING ORDINANCE CAP.123

Mining sand from restricted area without permit – Permission of Area Commissioner is a defence. 1971/125.

MURDER

Presumption – No presumption that a person who causes the death of another did it willfully – If there is a plea of “not guilty” it is for prosecution to prove affirmatively that accused committed the crime. 1971/360.

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NEGLIGENCE

Animals mild in their general temper – Dogs are animals mild in their general temper. 1971/200.

Dog biting complainant – Owner not guilty unless he knew animal to be ferocious. 1971/200.

OBSTRUCTING POLICE OFFICER

Elements of offence – Not constituted where owner refuses to order driver to drive vehicle to police station. 1971/125.

OBTAINING BY FALSE PRETENCES

Charge – False pretence should be set out. 1971/127.

Elements of offence

Accused must perpetrate trick or dence for purposes of obtaining. 1971/127.

Knowingly hiding truth amounts to false pretence. 1971/284.

Pretending as to some future act not false pretence. 1971/127.

False pretence

Accused solicits money saying that he will use it to bribe policeman to release detainee – No false pretence. 1971/437.

Representation as to future – Cannot be false pretences. 1971/393.

OCCASIONING LOSS TO GOVERNMENT

D. P. P's consent necessary for prosecution. 1971/446. Not per se a crime. 1971/446.

PERSONATING A PUBLIC SERVANT

Alternative verdicts – Criminal trespass cannot be substituted for personating police officer. 1971/210.

POSSESSION OF PROPERTY SUSPECTED OF HAVING BEEN STOLEN

Alternative verdicts – Theft cannot be substituted for possession of property suspected of having been stolen although reverse can be done. 1971/229.

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POSSESSION OF PROPERTY SUSPECTED OF HAVING BEEN STOLEN (CONTD.)

Conveying suspect property – Charge particulars must make reference to section 24 of the Criminal Procedure Code. 1971/308.

Conveying of suspect property – Elements of offence – Accused must have been stopped searched and detained under S.24 Criminal Procedure Code. 1971/308.

Conviction

Not possible unless accused detained while conveying property in question – Criminal Procedure Code S.24. 1971/120.

Not possible where accused is the thief. 1971/229.

Elements of Offence

Conveying suspect property. 1971/120

Conveying suspect property – Tape recorder installed in vehicle as accessory is not being conveyed. 1971/222.

Possession must be “eiusdem generis” with conveying. 1971/313.

PREVENTION OF CORRUPTION ORDINANCE CAP.400

Charge – Charge defective – Relationship of principal and agent not set out. 1971/34.

Corrupt transaction c/s S.3 (1)

- No conviction where accused not empowered to do solicited act. 1971/34.
- Immaterial that offer of bribe is not consequent upon commission of an offence. 1971/33.
- Immaterial that officer bribed was not empowered to do solicited act. 1971/62.
- Ten-house cell leader not government official. 1971/34.
- Transaction must be related to principal's affairs. 1971/34.

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PROCEDURE (CRIMINAL)

Alternative verdicts (Contd.)

- Accused cannot be convicted of both receiving stolen property and suspected having or conveying stolen property. 1971/59.
- Assault causing actual bodily harm can be substituted for robbery with violence. 1971/294.
- Assault causing actual bodily harm is minor offence to robbery. 1971/274.
- Assault may be substituted for robbery. 1971/138 and 1971/148.
- Criminal trespass cannot be substituted for personating police officer. 1971/210.
- Forging or altering currency note cannot be substituted for uttering counterfeit coin. 1971/286.
- Indecent assault can be substituted for rape. 1971/233.
- Indecent assault substituted for attempted rape. 1971/478.
- Killing animal with intent to steal cannot be substituted for cattle theft. 1971/195.
- Malicious damage cannot be substituted for attempted breaking. 1971/304.
- Minimum Sentence Act – Receiving property stolen in the course of house breaking may be substituted for burglary if there is proof that accused

knew property was taken in commission of scheduled offence.
1971/126.

- Minor offences need not be cognate to major offences. 1971/138.
- Obtaining money by false pretences cannot be substituted for cheating.
1971/127
- Offence carrying heavy maximum penalty should not be substituted for offence carrying light maximum penalty. 1971/286.
- Offence scheduled under Minimum Sentences Act cannot be substituted for non-scheduled offence. 1971/41.

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PROCEDURE (CRIMINAL) (CONTD.)

Alternative verdicts (Contd.)

- Rationale for substituting minor cognate offences - So that accused may not be prejudiced by being convicted for completely new offence.
1971/210.
- Receiving stolen property substituted for burglary and stealing. 1971/469.
- Scheduled offence cannot be substituted for non-scheduled offence.
1971/195.
- Simple theft substituted for store-breaking. 1971/449.
- Stealing under s.181 of Crim. P.C. may be substituted for stealing by public servant. 1971/475.
- Theft cannot be substituted for possession of property suspected of having been stolen although reverse can be done. 1971/475.
- Theft cannot be substituted for possession of property suspected of having been stolen although reverse can be done. 1971/229.

Appeal – Appellate court which summarily rejected appeal cannot enhance sentence. 1971/438.

Appearance of insanity – Procedure which court must follow before entertaining plea of guilt. 1971/358.

Assessors

- Specific questions to – Purpose of. 1971/227.
- Summing up – Requirements. 1971/227.

Bail pending appeal – See Appeal.

Bail pending appeal

- Granted in special or exceptional circumstances – Enabling applicant to sit for examination not special or exceptional circumstance. 1971/149.
- Appeal must have overwhelming chance of success. 1971/149.
- Should not be granted except where there is overwhelming chance of success. 1971/396.

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PROCEDURE (CRIMINAL) (CONTD.)

Bail – Relevant consideration

- Applicant being non-citizen. 1971/192.
- Lack of travel documents not material factor – Accused may still flee country. 1971/315.
- Likelihood of police investigations being hampered. 1971/315.

- Likelihood of accused appearing for his trial. 1971/122.
- Seriousness of 4th charge. 1971/122 and 1971/192.
- Seriousness of offence – Theft of large sum from parastatal organization. 1971/315.
- Bail - Objections to bail must be supported by evidence. 1971/122.
- Being in possession of property suspected of being stolen- Accused must be detained by police officer while conveying property in question. 1971/120.
- Burden of proof – On prosecution accused must not be convicted on weakness of defence. 1971/370.
- Burden of proof of offence – On prosecutor – No conviction should be based on weakness of defence. 1971/370.

Charge

- Amendment of defective charge – Charge must be defective. 1971/316.
- Compulsory marketing – Offence does not exist. 1971/206.

Charge – Conveying suspected stolen property – Particulars must make reference to section 24 of the Criminal Procedure Code. 1971/308.

- Charge – Corruption transaction – Particulars must set out the relationship of principal and agent. 1971/34.

Charge – Defective – Accused not prejudiced where particulars set out ingredients of offence. 1971/206.

Charge – Defective charge curable where particulars leave accused in no doubt as to offence. 1971/442.

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PROCEDURE (CRIMINAL) (CONTD.)

Charge

- Defective – Name of offence wrongly stated – error curable if section of the law accurately stated and accused knows nature of offence. 1971/291.
 - Defective – Unlawful possession of Government trophy – No failure of justice where ingredients of offence fully disclosed. 1971/134.
 - Duplicity – Charge not invalid if no prejudice or embarrassment to accused. 1971/278.
 - Duplicity – Charge not duplex when acts of receiving stolen property formed part of the same transaction. 1971/440.
 - Duplicity - Failure to prepare or maintain or issue copy of an oral contract. 1971/230.
- Obtaining money by false pretence – False pretence should be set out. 1971/127.

Conviction

- Magistrate not entitled to waive a conviction which is registered. 1971/137.
- Not automatic where defence put forward after submission of no case to answer overruled. 1971/215.

Cross-Examination – Right of accused to cross-examine co-accused and his witnesses. 1971/385.

Defective Charge

- Curable where particulars expressed in such explicit terms that accused in no doubt as to what offence he had to answer. 1971/466.
- .Magistrate's powers of amendment. 1971/374.

Decisions of fact are for the judge not assessors – Opinions of assessors generally must be sought. 1971/386.

Discharge – Magistrate must indicate under what provision of law discharge is granted. 1971/137.

Failure of justice – Does not exist where there is failure to explain every constituent of charge but statement of fact is accepted by accused. 1971/297.

Failure of Justice – Magistrate failing to record conviction. 1971/208.

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PROCEDURE (CRIMINAL (CONTD.))

Failure of Justice – Magistrate failing to write judgment – Incurable irregularity. 1971/208.

Functus officio – Order made relating to vehicle seized under East African Customs Management Act Provisional only, Magistrate not prevented from making further order. 1971/476.

Judgment

- District court to give reasons for decisions on appeals from primary court. 1971/65.
- Failure to write is an incurable irregularity. 1971/208.

- Magistrate must record conviction. 1971/208.
- Magistrate ordering accused acquitted of stealing cattle to pay five heads of cattle to complainant – Magistrate may not convert criminal case into civil case. 1971/201.
- Must contain points for determination and reasons for decision. 1971/390.
- Must contain facts and reasons for findings. 1971/208.
- Procedure to be followed on acquittal where evidence supports civil action – Magistrate to advise complainant to file civil suit – Magistrates Act 1963, Third Sch. 1971/201.

Jurisdiction

- Appeal – East African Court has same powers in dealing with appeal as High Court – Appellate Jurisdiction Ord. (Cap.451). 1971/145.
- District Court has powers of version. 1971/124.
- Judge has no jurisdiction to hear appeal on matter which was determined by another judge on revision. 1971/363.

Leave to appeal out of time – Court will not lightly give leave on the application of D. P. P. 1971/436.

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PROCEDURE (CRIMINAL) (CONTD.)

Misdirection

- When appellate court may examine evidence by way of rehearing. 1971/380.

- When appellate court will quash conviction because of misdirection.1971/376.
- Negligence may found civil action but is not sufficient basis for criminal liability.1971/370.

Non-appearance

- Non appearance of complainant – “Complainant” is Republic. 1971/295.
- Non appearance of complainant – Magistrate must satisfy himself that victim served with summons. 1971/295.

Non prosecution of case – Case cannot be dismissed under S.198 of Crim. P.C. because prosecution delays in prosecuting.1971/445.

Notes in view of laws – Must be read out in court. 1971/50.

Notes in view of locus – Must be recorded by Magistrate. 1971/50.

Objection to trial magistrate – Sustained where magistrate likely to appear to be biased. 1971/220.

Objection to trial magistrate – Sustained where principal witness is complainant and is friend of Magistrate. 1971/220.

Plea

- It is the duty of presiding Magistrate to take plea from accused even if a plea had been taken previous to trial. 1971/433.
- Failure to take plea nullifies proceedings. 1971/152.
- Retrial – New plea must be taken. 1971/152.
- Trial held before different Magistrates – Each Magistrate to take a plea. 1971/136.

- Trial held before different Magistrates – Failure by subsequent Magistrates to take plea does not render trial nullity. 1971/136.

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PROCEDURE (CRIMINAL) (CONTS.)

Plea of guilty

- Accused changing plea after hearing all prosecution evidence – Not necessary to read to him facts constituting offences 1971/65.
- Accused may be convicted where plea of guilty includes the word 'unlawful' omitted from charge. 1971/134.
- Admission of facts which amount to guilt of offence charged. 1971.395.
- Causing death by dangerous driving – Plea ought to be examined with care – Admission of facts which constitute the offence must be obtained. 1971/55.
- Court should explain every constituent of charge to accused – He should be required to admit or deny it – What he says should be recorded. 1971/364.
- Court cannot convict on plea unless it amounts to admission of every constituent of charge and is unequivocal. 1971/446.
- Every constituent of charge should be explained to accused and accused should admit every such constituent. 1971/297.
- Failure to explain every constituent of charge to accused – Irregularity curable if statement of facts is accepted by accused. 1971/297.
- May be withdrawn before sentencing. 1971209.

- No appeal from guilty plea in writing to dispense with attendance in court. 1971/37.
- Proper procedure on admission of charge. 1971/65.
- The words "it is true" may not amount to a plea of guilty, for example, in a case where self defence or provocation is a defence. 1971/364.
- Unequivocal where appellant not misled by particulars of charges. 1971/281.
- Unlawful entry into a National Park – Admission to being in National Park – Equivocal. 1971/69
- Where conviction is likely to proceed on plea of guilty facts admitted must support offence charged. 1971/364.
- Withdrawal – Court must record reasons for permitting to withdraw 1971/209.

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PROCEDURE (CRIMINAL) (CONTD.)

Previous Conviction

- Accused to be given opportunity to deny alleged previous convictions. 1971/128.
- Procedure for proving. 1971/314.
- Proof of. 1971/319.

Production of inadmissible evidence – Irregularity curable if magistrate was not influenced by the evidence. 1971/52.

Prosecution – Consent to prosecution for being member of unlawful society must be given by D.P.P. in writing. 1971/150.

Reconciliation – Magistrate has no power to stay proceedings and try to reconcile the parties under S.134 of the C.P.C. when accused charged with committing a felony. 1971/470.

Record of proceedings – Court must record conviction before passing sentence. 1971/59.

Record of proceedings – Records of previous convictions from part of the proceedings. 1971/53.

Retrial – Appellate court bound to rehear and adjudicate before ordering retrial. 1971/145.

Retrial

Appropriate where first trial declared illegal or defective. 1971/129.

Criteria in ordering. 1971/129 and 1971/208.

Factors to be considered. 1971/46.

Failure to take plea nullifies proceedings. 1971/152.

Means new trial. 1971/152.

Not justified unless original trial defective or illegal. 1971/145.

Search and Seizure

Condition for validity of search – Police Officer conducting search must have warrant duly and properly issued. 1971/283.

Evidence obtained in the course of illegal search is admissible. 1971/283.

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PROCEDURE (CRIMINAL) (CONTD.)

Substitution of Offences – Causing bodily harm cannot be substituted for robbery. Common assault cannot be substituted for robbery. Indecent assault cannot be substituted for robbery. 1971/361.

Substitution of Offence

- Fraudulent false accounting – Cannot be substituted for forgery. 1971/399.
- Indecent assault substituted for rape. 1971/362.

Transfer of case to another court – Should be ordered where magistrate likely to appear to be biased. 1971/220.

Charges founded on same facts or part of a series of offences of same character should be tried together. 1971/314.

Trial

- Court must sit in a place different from ordinary court room. 1971/63.
- Held before successive magistrates – Proper procedure. 1971/136.
- Retrial – Means new trial. 1971/152.

Withdrawal

- Of charge – Bar to further proceedings if accused has given evidence in defence. 1971/198.
- Of charge – Bar to further proceedings if done under s.22 Primary Courts Criminal Procedure Code and accused has given evidence in defence. 1971/198.

- Of charge – Court need not be satisfied with reasons for withdrawal. 1971/277.
- Of charge – Prosecution need not give reasons. 1971/277.

Witnesses

- Ability of accused to pay costs of witnesses not condition precedent for calling them. 1971/129.
- Accused must be informed of right to call witness - Magistrate must record that accused was so informed when no witness have been called at trial. 1971/452.

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PROCEDURE (CRIMINAL) (CONTD.)

Witnesses (Contd.)

- Accused not permitted to call witness – Miscarriage of justice. 1971/129.
- Accused not informed of right to recall witnesses – Miscarriage of justice. 1971/153.
- Court's duty to inform wife she is not obliged to give evidence against husband. 1971/384.
- Hostile witness – Impeachment of. 1971/310.
- Refusal to call – Reasons for – Only where witness does not appear able to give material evidence. 1971/140.

RAPE

Alternative verdicts – Indecent assault can be substituted for rape. 1971/233.

Corroboration

- Constituted by accused being seen running away from scene of crime. 1971/287.
- Medical evidence as to injuries of complainant not strong corroborative evidence. 1971/231.
- Medical evidence not essential. 1971/287.

Sentence

- Compensation – Awarded to redress damage to complainant and not to punish accused for immorality. 1971/202.
- Imprisonment – Appropriate in order to discourage potential rapists. 1971/202.
- Material factors – Raping married woman without violence. 1971/202.

RECEIVING STOLEN PROPERTY

Alternative verdicts – Accused cannot be convicted of both receiving stolen property and suspected having or conveying stolen property. 1971/59.

Off loading stolen goods at three different points under instruction of accused does not form three separate and distinct offences. 1971/455.

Sentence – Application of Minimum Sentence Act – Mitigating circumstances. 1971/456.

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RECENT POSSESSION

Theft – Beer bottles frequently and easily change hands. 1971/283.

RECKLESS AND NEGLIGENT ACTS

Harm – Refers only to physical or mental harm to person and not property. 1971/276.

Sentence

- Compensation – Payable where acts were likely to endanger life although harm caused to property only. 1971/282.
- Compensation – Reasons advanced for not awarding must relate to commission of the offence. 1971/282.

ROAD TRAFFIC ACT

Carrying passengers for reward without a licence – Cancellation of vehicle registration and licence mandatory where conviction is for second or subsequent offence. 1971/212.

Causing death by dangerous driving

- High degree of negligence not necessary element – Offence constituted if due to carelessness or deliberate recklessness. 1971/48.
- Offence does not cover same ground as manslaughter by negligent driving. 1971/48.
- Plea of guilty ought to be examined with care. 1971/55.
- Prosecution to state specific acts of negligence on which it depends - Doctrine of res ipsa loquitur not to be imported in criminal law. 1971/55.
- Test is objective. 1971/61.
- Failure to identify deceased not fatal. 1971/387.

Dangerous Driving

- "Motor vehicle" defined – does not include a bicycle – Traffic Ord. (Cap.168) S.47 (1)(a). 1971/140.
- Motor vehicle – Bicycle not "Motor vehicle" and cannot be driven – Traffic Ord. (Cap.168) S.47 (1)(a). 1971/140.

CRIMINAL

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SENTENCE (CONTD.)

Material Factors

- Accused's admission that other offences be taken into account. 1971/68.
- Accused being chairman of Local TANU branch. 1971/51.
- Accused being incorrigible offender. 1971/212.
- Accused being mother of 4 children. 1971/194.
- Accused having dependants. 1971/211.
- Accused not being involved in large scale conspiracy of corruption. 1971/52.
- Age of accused. 1971/211.
- Causing death by dangerous driving – Accused making sincere effort to attend patient. 1971/61.
- Frequency of offence in area. 1971/50.
- Immigration – Failing to report entry to Tanzania – Village of accused and Tanzania being divided by historical accident. 1971/291.
- Immigration – Failing to report entry to Immigration Officer – Visiting a sick relative. 1971/291.
- Offence affecting economic well being. 1971/319.

- Possession of “Moshi” – Old Age – Prevalence of offence – Unblemished record. 1971/35.
- Prevalence of offence. 1971/319.
- Previous convictions. 1971/51.
- Provocation – Act of adultery with accused’s nominal wife under Kuria custom a mitigating factor for assault. 1971/274.
- Raping married woman without violence. 1971/202.
- Road Traffic – Causing death by dangerous driving – Accused’s irresponsibility and unconcern for loss of human life – Prison term appropriate. 1971/39.
- Road Traffic – Accused having a clean driving record. 1971/40.
- Road Traffic – Accused first offender – Good record – Youth. 1971/39.

CRIMINAL

civ

SENTENCE (CONTD.)

Material Factors (Contd.)

- Use of sharp weapon on an old man. 1971/302
- Value of property stolen. 1971/211.

Material factor in imposing fine – Ability of offender to pay – Absence of previous convictions. 1971/400.

Minimum Sentences Act

- Irrelevant considerations – Having dependants. 1971/142.
- Irrelevant considerations – Sitting examination. 1971/142.

Previous convictions – Accused must be given chance to confirm or deny them. 1971/37.

Principles of punishment.

- Fine – Must bear reasonable relation to accused's power to pay. 1971/224.
- Road Traffic – Neglecting Traffic directions – Severe sentence unjustified unless there are aggravating circumstances. 1971/40.
- Statute levying fine as alternative to imprisonment – Court should not impose prison sentence unless circumstances warrant it. 1971/39.
- Unnatural offence – Psychiatric treatment more appropriate than imprisonment. 1971/234.

Principle which should guide court. 1971/394.

Police supervision – Conditions precedent to lawful police supervision. 1971/308.

Probation

- Appropriate where accused is a youth and likely to be influenced by association with criminals in prison. 1971/38.
- Cannot be for less than 12 months. 1971/461.

CRIMINAL

cv

SENTENCE (CONTD.)

Procedure

- Omnibus sentence improper when conviction of two or more offences. 1971/442.
- Taking into account other offences – Prosecution to make list showing nature, place and date of each offence admitted by accused. 1971/68.

STATUTES

Sales Tax Act – Buyer – Definition within Sale of Goods Act Cap.214 to be adopted.

Sale Tax Regulations – Meaning of “Consign” – To send or transmit goods to a merchant or factor for sale. 1971/119.

STEALING

Negligence – Not sufficient basis of criminal liability. 1971/370.

TAXATION

Order for compensation under section 176 of C.P.C. cannot be made where no assessment of tax made. 1971/462.

Proof of gross income not enough to base charge of evasion. 1971/467.

THEFT

Agent – Stealing by agent – Money entrusted for use in business retained by accused – Not theft. 1971/221.

Alternative verdicts

- Receiving stolen property can be substituted for stealing by public servant. 1971/75.
- Scheduled offence cannot be substituted for non-scheduled offence. 1971/41.

- Theft cannot be substituted for possession of property suspected of having been stolen although reverse can be done. 1971/229.

Cattle Theft – Killing animal with intent to steal distinguished. 1971/195.

Claim of right – Must be investigated. 1971/205.

CRIMINAL

cvi

THEFT (CONTD.)

Fraudulent intent

- Honest and reasonable belief that taking lawful under customary law a defence. 1971/236.
- Intent – Accused government officer – used government employee's labour on his garden – Whether accused fraudulently converted government money paid to employee as wages. 1971/42.
- Intention to deprive owners permanently. 1971/312.
- Taking must be without consent of owner. 1971/312.
- Use of money under mistake of fact not fraudulent. 1971/213.

Identification of stolen goods

- Complainant must be asked for description of special marks before goods are shown to him. 1971/130.
- Description by manufacturers brand not sufficient. 1971/130.
- Necessity for cogent evidence. 1971/56.
- Recent possession – Beer bottles frequently and early change hands. 1971/283.

- Stolen beer identified by special owners marks on bottles. 1971/283.

Killing animal with intent to steal – Intent to steal must be established.
1971/195.

Obtaining by false pretences – Element of offence – Knowingly hiding truth amounts to false pretence. 1971/284.

Parcel in post – Not property of postal administration. 1971/374.

Possession – Animus possidendi necessary element – Person in control of stolen property as servant of thief is not in possession. 1971/283.

“Possession” – Defined. 1971/283.

Property found in possession of accused – Recent possession – what amounts to recent. 1971/232.

CRIMINAL

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ROAD TRAFFIC ACT (CONTD.)

Defective braking system – only one offence quoted whether defect relates to handbrake or footbrake or both. 1971/482.

Disqualification

- May be for a period longer than 12 months where circumstances required. 1971/121.
- Special reasons – “Special reasons” exist where not duty of accused to insure vehicle. 1971/121.

- Special reason must be special to circumstance of the case and not to the offender. 1971/477.
- Driving while efficiency impaired by drinking – Mandatory in absence of special reasons. 1971/196.
- Special reasons – Special reasons do not exist because accused employee of Ministry of Health. 1971/196.
- Special reasons – Special reasons do not exist because of long accident free driving of accused. 1971/196.
- Special reasons – Special reason must be special to circumstances of offence and not to the offender. 1971/196.

Driving while efficiency impaired by drinks – Sentence – Disqualification from holding driving licence mandatory in absence of special reasons. 1971/196.

Driving without Insurance – Accused driving employer's vehicle should not be disqualified from holding driving licence. 1971/121.

Permitting use of vehicle – With defects – Prosecution must establish existence of defects – Whether defects dangerous is a matter for the court. 1971/70.

Road – Includes estate road. 1971/33.

Sentence – Fine – Statute levying a fine as alternative to imprisonment-Court should not impose prison sentence unless circumstances warrant it. 1971/39.

Sentence – Fine – Driving while efficiency impaired by drinks – Fine of 30 Shs. Inadequate. 1971/196.

Sentence

Imprisonment – Material factors – Accused's irresponsibility and unconcern for loss of human life – Prison term appropriate. 1971/39.

ROAD TRAFFIC ACT (CONTD.)

Sentence (Contd.)

- Irrelevant consideration – Long accident – Free driving of the accused. 1971/196.
- Material factor – Accused being incorrigible offender. 1971/212.
- Material factors – Accused having a clean driving record. 1971/40.
- Neglecting traffic directions – Severe sentence unjustified unless there are aggravating circumstances. 1971/40.

Speed – Opinion evidence cannot be relied upon. 1971/387.

ROBBERY

Alternative Verdicts – Causing bodily harm cannot be substituted for robbery. Common assault cannot be substituted for robbery. Indecent assault cannot be substituted for robbery. 1971/361.

Charge brought under wrong section – Not fatal because particulars clearly set out offence of robbery. 1971/450.

Claim of right – Taking victim's property because he was with accused's girlfriend does not amount to. 1971/441.

Cognate offences – Robbery and causing bodily harm not cognate offences. Robbery and common assault not cognate offences. Robbery and indecent assault not cognate offences. 1971/361.

Constituted where violence used is very slight. 1971/53.

Intent distinguished from motive. 1971/441.

Violence – Must be for the purpose of stealing. 1971/294.

With violence – Violence must be to facilitate stealing. 1971/481.

With violence – Violence – Must be for purpose of stealing. 1971/148.

SALES

Sales Tax Act – Consigning without delivery note – Meaning of “cosign”.
1971/119.

CRIMINAL

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SENTENCE

Appeal

- Circumstances in which appeal court will interfere with sentence imposed by trial court. 1971/309.
- Court of Appeal – May not consider whether sentence is severe or lenient. 1971/297.
- Court of Appeal – May consider whether sentence is lawful. 1971/297.
- Leave to appeal against – Power to grant conferred on the court of Appeal. 1971/300.
- Leave to appeal against – Procedure – Application is by motion to single judge of Court of Appeal or of High Court. 1971/300.
- Leave to appeal against – Procedure – Application must be formal and should be made at time of filing notice of appeal. 1971/300.

Arson – Suspended sentence imposed where strong mitigating circumstances are present. 1971/444.

Committal to approved school – Cannot be made before inquiry whether vacancy available at the school. 1971/143.

Compensation

- Abduction – Only awarded where material loss or personal injury has been suffered. 1971/290.
- Appropriate in case of causing grievous harm arising out of trivial quarrel with co-wife. 1971/194.
- Circumstances in which it may be awarded against juveniles. 1971/228.
- Rape – Awarded to redress damage to complainant and not to punish accused for immorality. 1971/202.
- Reasons advanced for not awarding must relate to the commission of the offence. 1971/282.
- Reckless and Negligent Acts – Payable where acts were likely to endanger life, although harm caused to property only. 1971/282.

CRIMINAL

CX

SENTENCE (CONTD.)

Concurrent sentences – Appropriate for crimes arising out of the same transaction. 1971/45.

Conditional discharge

- Not appropriate where court has already inflicted imprisonment. 1971/51.

- Not appropriate where stealing from Harbour Authority. 1971/465.

Confession

- Inadmissible against co-accused. 1971/463.
- Where witnesses' account not clear alleged oral confession should be disregarded. 1971/463.

Consecutive Sentence – Not appropriate where offences are of same or similar character and committed about the same time. 1971/468.

Corporal Punishment

- A anomalous that may not be awarded for unlawful wounding whereas awarded for lesser offence of common assault. 1971/204.
- Cannot be awarded under Cap.13 if accused is over 16 years of age. 1971/424.
- Cannot be awarded for offence of stealing by agent. 1971/474.
- Consecutive sentence illegal. 1971/142.
- May not be administered in public unless the court in clear terms gives reasons why the course is desirable. 1971/480.
- May not be awarded for unlawful wounding. 1971/204.
- Not to be awarded for causing grievous harm – Corporal Punishment Ordinance. Cap.17. 1971/36.
- Should not be awarded where long term of imprisonment imposed. 1971/302.
- Strokes alone not sufficient on conviction for rape and attempted rape. 1971/461.

CRIMINAL

SENTENCE (CONTD.)

Discharge

- Magistrate must indicate under what Provision of law discharge is granted.
1971/137.
- Unconditional discharge. 1971/132.

Discretion – Reviewing tribunal will not lightly interfere with sentence imposed by convicting court. 1971/373.

Disqualification – No order will be made on conviction of accused for driving uninsured vehicle when accused is a driver who believed vehicle was insured.
1971/382.

Enhancing – Appellate court which reject appeal summarily cannot enhance sentence. 1971/438.

Factors which might be taken into consideration. 1971/395.

Fine – Ability of accused to pay must be investigated. 1971/224.

Appropriate for causing grievous harm arising out of trial quarrel with co-wife.
1971/194.

Fine – Incumbent on Magistrate to inquiry into financial standing of accused.
1971/454.

- Must bear reasonable relation to accused's power to pay. 1971/224.
- Must be within means of accused. 1971/400.
- Road Traffic – Driving while efficiency impaired by drinks – Fine of Shs.30/- inadequate. 1971/196.
- Possession of moshi – Appropriate for occasional or amateur offender.
1971/139.

- Should have reference to subject matter. 1971/123.
- When inappropriate – Statute levying fine as an alternative to imprisonment. 1971/39.
- Where offence is wife and deterrent sentence called for – Fine is not appropriate. 1971/442.

Forfeiture

- Authority for – Magistrate must cite authority empowering to order forfeiture. 1971/214.

CRIMINAL

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SENTENCE (CONTD.)

Forfeiture (contd)

- Authority for –Section 300 of Penal Code .1971/214.
- Fauna Conservation Ordinance – Hunting game animal with unsuitable weapon –Forfeiture is discretionary 1971/191.
- Fauna Conservation Ordinance – Hunting game animal with unsuitable weapon - Use of short gun to protect crops from wild animals is a mitigating factor to prevent forfeiture. 1971/191.
- Improper where implements not connected with any offence.1971/126.
- Of improperly identified articles - Order of forfeiture improper.1971/214.
- Order of forfeiture must specify authority empowering forfeiture.1971/359.
- Order must contain sufficient reasons to show that Magistrate applied his mind judicially to the question.1971/359.

Imprisonment

- Appropriate for rape in order to discourage potential rapists. 1971/202.

- Attempted suicide – Inappropriate. 1971/64.
- Immigration – Failing to report entry to Immigration Officer – Maximum imprisonment is four months. 1971/291
- In appropriate for occasional or amateur offender. 1971/139.
- Inappropriate for unlawful possession of moshi where accused not distributor. 1971/144.
- Possession of moshi –Inappropriate for occasional or amateur offender. 1971/139.
- Should not be awarded where legislature envisages fine as principal mode of punishment. 1971/144.
- Unnatural offence – Inappropriate. 1971/234.
- When appropriate statute levying fine as an alternative to imprisonment. 1971/39.

CRIMINAL

cxiii

THEFT (CONTD.)

Recent possession – A period of 2 years is too long to apply the doctrine if the article is of a kind which can easily pass from hand to hand.1971/469.

Recent possession – Cannot be invoked in absence of sufficient identification. 1971/130.

Stealing government trophy – Immaterial where accused obtains trophy.1971/296.

Stealing by Agent

- Appropriation of money received by accused for personal use. Accused not acting as agent. 1971/213.
- Appropriation of money received by accused for personal use – Money not intended for any purpose or person. 1971/213.
- Money entrusted for use in business retained by accused – Not theft. 1971/221.

Stealing by public servant

- Accused government officer – Used government employee's labour on his garden – Whether accused "stole" government money paid to employee as wages. 1971/42.
- Covers appropriation of money received as a result of unlawful search. 1971/219.
- Employee of Ministry of Agriculture. 1971/432.
- May cover appropriation of money received as a result of an act done outside the scope of servants authority. 1971/219.
- Money belonging to post office obtained by postmaster forging withdrawal forms and withdrawing money against pass books of depositors – Obtained by virtue of his employment. 1971/472.
- When property in employee's possession by virtue of employment. 1971/432.

Suspected having or conveying stolen property – No conviction where property known to have been stolen. 1971/59.

Thief cannot be convicted as receiver. 1971/440.

CRIMINAL

TRESPASS

Burden of proof – Prosecution must prove as fact that the accused was on private land. 1971/447.

Standard of proof. 1971/447.

UNLAWFUL SOCIETIES.

Being member of unlawful society – Procedure – D.P.P. must give consent in writing to prosecution for offence. 1971/150.

UNLAWFUL WOUNDING

Sentence

- Corporal punishment – Anomalous that corporal punishment may not be awarded whereas may be awarded for offence of common assault. 1971/204.
- Corporal punishment may not be awarded. 1971/204.
- Imprisonment – Inappropriate. 1971/234.

UTTERING COUNTERFEIT COIN

“Coin” – Notes not included. 1971/286.

WITCHCRAFT

Jurisdiction of District Court to try case. 1971/356.

WITCHCRAFT ORDINANCE CAP.18.

Naming a person as a witch – Privileged communication to public officer – TANU Officer is public officer. 1971/151.

CIVIL CASE

(1971) H. C. D.

1. Halifa v. Hadija (PC) Civ. App. 75-A-69; 2/11/70 Kwikima Ag. J.

The appellant filed a claim for the paternity of a child and its custody from the respondent its mother. Evidence adduced in the Primary Court established that there were various customary payments and rites which the respondent permitted the appellant to perform and make. He gave for example the ceremonial dress customarily given to an expectant fiancée and Shs.150/= to the mother of the respondent for having deflowered her daughter. These payments were made with due publicity. Evidence further showed that the respondent allowed the appellant to care for her during her pregnancy by taking her to hospital for ante-natal care and she lived with him for sometime after the a baby was born before running away to a new lover. The Primary Court found for the appellant, but the District Court reversed.

Held: (1) "The respondent cannot now be heard to deny the child's paternity by the appellant. It is the law, according to the Customary Law Declaration that once a man is named as the father of a child, the burden is on him to prove that he is not, provided there is evidence that he had sexual intercourse with the mother before the child was born. In this case the appellant actually paid the respondent's mother damages for deflowering the respondent. He did this willingly and apparently quite happily as he was going to marry the respondent. He even took her to his home where she remained until she ceased having love for him." (2) "There was sufficient evidence for the trial court to find as it did that the appellant had established his claim over the disputed child. The purported reversal by the District Magistrate is at variance with the facts established, the customary law so clearly spelt out by the trial court, and the

unanimous opinion of all the assessors in both courts below. As such the purported reversal, unjustified by the facts and law as it is, cannot be allowed to stand.” (3) Appeal allowed.

2. Kalelsela v. Mwamalili (PC) Civ. App. 54-D-70; 5/11/70; Biron J.

The appellant filed a petition for divorce against the respondent her husband alleging desertion and refusal to maintain her and the children of the marriage. There were three children from the union of nine years but the respondent disputed the paternity of the last child. The Primary Court granted divorce and the respondent after successfully claiming a return of part of the bride price, appealed against the order granting divorce on the ground that he had not been summoned or informed of the divorce proceedings. He also asserted that he wanted his wife back. The District Court after considering the sanctity of marriage, held that the lower court had no jurisdiction to grant a divorce and that the respondent had not been served. The divorce order was reversed and the husband declared man and wife.

Held: (1) “I fully agree with the Mbeya District Court as to the sanctity of marriage and that such union should not likely to be broken. Even so, a court cannot and should not blind itself to the realities of the position. Whether or not, as alleged by the husband, Emmanuel, his father-in-law is responsible for the break-up of the marriage, it is abundantly clear from the proceedings as a whole that the marriage has broken down. In fact, as noted, the husband disputes the paternity of the last child born to them. Such attitude, apart from any other consideration, hardly bodes well for a happy resumption of married life.” (2) “Whatever the merits or demerits of the Ilomba Primary Court’s decision granting the divorce, the fact remains that the husband Emmanuel did not appeal from it, but instead he filed a suit in the Kyela Urban Primary Court claiming the refund of six head of cattle. He is therefore, to my mind, stopped from disputing the validity of the divorce granted by the Ilomba Primary Court, which, he himself has accepted, in that

he filed a suit for the refund of the bride-price. In the circumstances, the Mbeya District Court had no justification or right to set aside the divorce granted by the Ilomba Primary Court.” (3) Appeal Allowed.

3. Mwakigile v Mwamakula (PC) Civ. App. 123-D-69; 4/11/70; Makame J.

The appellant successfully sued the respondent for a cow which under the “Ukubamba” custom among the Wanyakyusa, the father or brother of a deceased married woman slaughters during the mourning. The respondent appealed to the district court and won. There was evidence that the appellant was not the original husband of the respondent’s daughter. The daughter was married by the appellant’s brother and when the latter died the wife stayed with the appellant for some time. The appellant did not establish that the lady became his wife – that he legally inherited her in accordance with paragraph 80 (and paragraph 62 to 64) of the Law of Persons, G. N. No.279 of 1963.

Held: (1) “The preponderance of probabilities points to the fact that for the most of time the deceased was sick the appellant too no trouble and did not pay the expenses incurred at various hospitals including Muhimbili.” (2) “If the appellant really felt he had been wronged he would first have sought an explanation from the respondent as to why the deceased was being buried at the respondent’s village and not at her husband’s place as the Nyakyusa custom requires.” (3) “The appellant’s attitude is perhaps illustrated by his arrival after the burial despite the fact that he was merely five miles away and his leaving soon afterwards with his deceased brother’s child. The respondent bore the hospital and funeral expenses and the appellant cannot be heard to assert that he has a claim on the traditional cow which the respondent said he in any case was duly slaughtered during the funeral.” (4) Appeal dismissed.

4. Kyauka v. Malasi (PC) Civ. App. 65-A-69; 7/11/70; Kwikima Ag. J.

The appellant leased a parcel of land from the respondent under Chagga customary law on the understanding that his tenancy would be good only as long as he paid "Masiro". "Masiro" presumably is the consideration for such tenancy. The appellant was found by the District Court to have been in occupation from 1959 to 1966, the time when this suit was filed. The appellant brought evidence that he spent Shs.600/- for clearing and preparing the land for cultivation. At the time when his tenancy was terminated, he had not made any inexhaustible improvements on that land, apart from the clearance and preparation for cultivation. What crops the appellant had planted were annual, and not perennial. The court of first instance awarded him Shs.300/= for this improvement. He appealed with the result that the District Court gave him no relief at all. On appeal to the High Court.

Held: (1) "It is not in dispute that the respondent was entitled to terminate the appellant's tenancy, especially after serving him twice with a written notice to vacate the land. The respondent cannot therefore be said to have sought repossession at his whim, as was the case in Mwahula Kibungo v. Mudabe Muhunguka 1969 H.C.D. 274." (2) "Compensation, however, is for improvements "of a permanent nature " (Makofia Merianananga v. Asha Ndisia 1969 111 H.C.D. 204). Annual crops cannot be and are in fact not improvements of a permanent nature. The appellant was reaping them annually and deriving full benefit from them. In so doing he must have been fairly and adequately rewarded for the trouble he took to clear and prepare the land for cultivation. This is the view taken by the District Court, and I endorse it. For this reason I hold that the Shs.600/= paid by the appellant to prepare the land for cultivation was adequately rewarded by the crops he reaped from 1959 to 1966. Further, I hold that the expense was reasonable consideration for the tenancy for the seven years or so which the appellant enjoyed." (3) "In the circumstances, there cannot be justice or reason to award the appellant any further compensation, as the District Court properly ordered." (4) Appeal dismissed.

5. Shabani v. Sofia (PC) Civ. App.27-A-70; -/11/70; Kwikima Ag. J.

The respondent who used to live in concubinage with the appellant's father sued the appellant for compensation of Shs.9120/= for evicting her from the deceased's house which she used to occupy in his lifetime. The Primary Court dismissed the claim because the respondent and the deceased were Muslims and according to Islamic law, a concubine has no right to inherit part of the estate which a legally wedded wife is entitled to. Even under Chagga law which could be applicable were the respondent married to the deceased, Chagga widows do not inherit when there are male issues surviving as in this case. The District Magistrate felt that the respondent was entitled to some of the estate after staying with the appellant's father for 19 years and awarded her a quarter of the amount claimed.

Held: (1) "With due respect this decision cannot be in accordance with the law. In suing the appellant, the respondent necessarily meant that appellant had wronged her by depriving her part of the inheritance. How could this be if she was not entitled to any? Both Chagga and Islamic law exclude her from inheriting. According to Chagga law she would not inherit in the presence of the appellant even if she was legally wedded to the deceased. She could not inherit under Islamic Law either, being only the concubine of the deceased." (2) As this suit is not an administration of deceased's estates' matter, the appellant cannot be sued by the respondent. "Compensation" is payable by husbands who divorce their wives or men who forsake their concubines with whom they have worked together and accumulated some wealth to be shared. In this case the appellant was the son of the man who kept the respondent as his concubine. The respondent could not therefore be heard to sue him. (3) Appeal allowed.

6. Sakaya v. Kasova (PC) Civ. App. 30-A-69; 13/4/70; Platt J.

The respondent Kasova Honaulu married the woman Seneu d/o Ngilisho. The marriage was not a success because Kasova infected Seneu with syphilis and only one of their many children lived. Seneu then formed an association with Sakaya the appellant. She was cured of her disease and had two children with Sakaya. At the beginning of this association Kasova claimed Seneu at the Primary Court. She was ordered to return to Kasova, but she later returned to Sakaya. No proper marriage ceremony was carried out between Sakaya and Seneu and this gave colour to Kasova's claim to Seneu and the two children born during Seneu's association with Sakaya. Seneu's father agreed that Kasova's marriage still existed to Seneu. Therefore the woman and two illegitimate children belonged to Kasova and not Sakaya. The Primary Court however decided that the marriage did not continue to exist because the Respondent had abandoned his wife; and he had not taken proper steps to reclaim her over so many years that it must be considered that he was waiting for the time that he would claim from Sakaya. The latter had properly cared for Seneu and their children. The assessors were equally clear that Kasova had lost his right to the children. The District Court reversed the decision.

Held: (1) "With respect I find myself in agreement with the unanimous views of the Primary Court. Seneu did use the right to leave Kasova because of the disease with which he had infected her. I accept the Primary Court's view of the evidence that Kasova did abandon his wife. Nor could he be entitled to any repayment of bride price because he had children with Seneu and one was still alive. It may be that Sakaya has not yet arrived at the stage of being the fully rightful claimant of the children because he has not been recognized as the lawful husband of Seneu, or alternatively the children have not been adopted. But if the marriage between Kasova and Seneu was properly deemed to have been abandoned that the result would be that the children are illegitimate and pass under the hand of Seneu's father until such time as Sakaya

legitimate his position.” (2) “I should not however make an order that Sekaya have the right to the children until his position is legitimized.” (3) Appeal allowed.

7 Suleman v. Tangwood Ltd. Civ. Case 51-D-70; 9/11/70; Saidi J.

It was alleged that the High Court had no jurisdiction in matters arising out of the Rent Restriction Act because section 11(A) (1) of the Rent Restriction (Amendment) Act No.2 of 1966 gives exclusive jurisdiction over the court of the Resident Magistrate in “all claims, proceedings or other matters of a civil nature arising out of the Act” even in cases in which the pecuniary jurisdiction was above that of the /resident Magistrate. According to section 11(A) (2) of the Act where a suit is filed in the High Court instead of the Resident Magistrate’s Court, the High Court may if it thinks fit to do so, entertain the claim and exercise the same powers, though the costs will be on the scale applicable to the lower court. (Kotak Ltd. v. Hussein M. Jaffer and another Civ. Case 64 of 1968). It was also submitted that as the suit involved two other claims, one against guarantors for the payment of rent and the other for trespass, it could not be properly instituted before the court of the Resident Magistrate.

Held: (1) “Having carefully reviewed the pleadings and submissions of the learned counsel I find no good reason for rejection of the suit or an order for its transfer to the court of the Resident Magistrate. I direct that the suit should be tried before this court and that the costs relating to the claim for arrears of rent will be on the scale applicable to the court of the Resident Magistrate.”

8. Shechonge v. Shekuba (PC) Civ. App. 23-D-69; 8/10/70; Makame J.

The appellant unsuccessfully sued his uncle for a piece of land alleging that the land belonged to his father who had inherited it from his grandfather. According to the respondent, the land belonged to Mbaruku

Bobo his cousin from whom the appellant's father had inherited it. It was then used by the respondent's sister before the respondent took over. The respondent's story was corroborated by Salimu Mbaruku, Bobo's son who also testified that the land passed to the appellant's father before the appellant was born and according to Kisamba Customary Law, the land must now pass to the respondent. This view of the customary law was accepted by the primary and district courts.

Held: (1) "With respect, I agree with the finding, but would qualify it by saying that the evidence shows clearly that the land belongs to the parties' clan. The respondent has a better claim according to the Customary Law of Succession, but his right was of using the land and not of disposing of it without the consent of the other members of the clan, who would be entitled after him. The appellant may therefore redeem the land as of right. The respondent himself must have realized this because he indicated to the trial court that he sold the land out of desperation, he being old and of humble means, and because his nephews, including the appellant, would not assist him financially. The appellant may therefore redeem the piece of land by paying to the buyer the purchase price, which is apparently shs.580/=". (2) "If the appellant wishes to redeem, he will have to pay compensation for such improvements, if any, the value of which, I direct should be assessed by the primary court magistrate and his assessors." (3) Appeal dismissed.

9. Saada v. Hussein (PC) Civ. App.110-M-70; 6/11/70; Mnzavas Ag. J.

The parties were married in 1963 under Islamic Law. In 1966 the appellant/wife left the matrimonial home and went to live with her parents. The respondent/husband made unsuccessful efforts to return her to him. Whereupon in 1969 the respondent started divorce proceedings alleging

desertion. The marriage was dissolved by the Primary Court and respondent brought an action claiming custody of two children born while the appellant was away from the matrimonial home. The appellant objected on the ground that the respondent was not the natural father of the children. The respondent was not sure whether the appellant was pregnant when she left him. The Primary Court found that it was likely that the appellant was pregnant when she left the respondent and awarded custody of the elder child to the respondent. It was also found that the younger child was of a different father and custody was awarded to the appellant. The District Court, applying Islamic Law, reversed and awarded custody of both children to the respondent.

Held: (1) "Under Mohammadan law, legitimacy is determined by the date of conception, not by the date of birth. If a child is born within two or four years (depending upon the particular school of law adhered to by the parties) after dissolution of a Muslim marriage, Mohammedan law presumes the child to be the child of the union. This is a mere presumption and as was held in *ABDALLAH vs. OMARI MIHONDO*, 1953, Digest of Appeals from Local Courts, Case No.28, a rebuttable presumption." (2) "In the present case, the two children were conceived and born during a subsisting marriage notwithstanding the fact that the appellant was living with her parents at the time. The children are therefore, according to Mohammadan law; of the union." (3) The two children should be awarded to the respondent. (4) Appeal dismissed.

10. Mandani v. Suchale Civ. Case 12-M-67; 6/11/70; El-Kindy Ag. J.

This was an application for issue of Third Party notice on New India Assurance Co. The defendant was sued for negligence, as a result of a contract, he drove a car with the plaintiff as passenger therein, and that due to his negligent driving, the car collided with a tree offside the road, overturned and plaintiff suffered severe injuries. The defendant alleged

that plaintiff was given a free lift and denied negligence. He also argued that since his car was comprehensively insured by the Third Party, (New India Assurance Ltd.) in the event of the court holding that he was liable to pay the plaintiff a specified amount as damages, he would be entitled to indemnity by this Insurance Company. The New India Assurance Co. contended that the application was incompetent because of an arbitration clause in the policy which made it a condition precedent that no suit will be instituted by either party, unless the party seeking a remedy in court of law had obtained an award.

Held: (1) As I have already stated, the affidavit of the defendant did not say anything about the arbitration clause. In my view, it was necessary to mention not only that there was an arbitration clause, but to explain in what way the arbitration clause was being avoided. Unless this is done, this Court will not be in a position to state whether the respondent should be joined in as a third part or not. The affidavit should have disclosed sufficient facts to show that the joining of the respondent would not be premature if allowed. In the absence of these facts, this application cannot be granted. It is accordingly refused with costs.

11. Bilali v. Kheri Civ. App. 128-M-70; 18/11/70; Mnzavas Ag. J

Respondent used to rent appellant's house commencing sometime in December 1967 at the agreed rent of Shs.210/- per month. It was alleged that the respondent defaulted in payment of rent from August to October 1968 when he vacated the house, locked it and went away with the keys. When sued for arrears of rent, the respondent denied having left the house on his own motion and alleged that he left because the appellant had ordered him to pay Shs.300/= per month rent and not Shs.210/= per

month as therefore he left.. It was stated that appellant refused to accept the in the court below.

Held: (1) The kind of in issue tenancy was what could be called a periodic and monthly tenancy. (2) "The law regarding periodic tenancies is that a periodic tenancy may apart from any special terms to the contrary, be brought to an end by the unilateral act of either party. Periodic tenancies as in the case here are determined by notice of a length corresponding to the period. In this case one month's notice to quit would have been enough – In fact the appellant issued two months notice to quit to the respondent. From the argument of the appellant before this Court he appeared to waive the notice to quit, but, unfortunately, this is not possible at this stage, once a valid notice to quit has been served, the tenancy will automatically come to an end of the expiration of such notice – even though the party giving it later decides to the contrary." (3) "For the above reasons, the tenancy between the appellant and the respondent came to an end at the end of October 1968 when the contents of the appellant's letter of 30.8.68 became operative. The respondent had therefore the right, indeed it was his duty, to hand over the keys of the house to the owner, the appellant. If he continued living in the house after the expiry of the notice to quit he would have been doing so as a tenant on sufferance making him liable to the usual consequences accompanying such a tenancy". (4) "The respondent cannot be blamed for appellant's refusal to accept the keys to the house. There was no covenant for repairs, general or otherwise and as such the respondent was not bound to give up the premises in as good a state of repair as when he took possession." (5) Appeal dismissed.

This is an application by the plaintiff for leave under Order I rule 8 of the Civil Procedure Code to file an action against the defendant (NUTA). It was argued that since the Act setting up the defendant (NUTA) made no specific provision for filing suits against it, it was necessary to obtain leave under Order I rule 8. The issue was whether the rule was applicable.

Held: (1) "I do not think that this rule is applicable in this case. NUTA was created by Act 18 of 1964 now Cap.555. The particularly operative section is section 3 which reads:- "There is hereby established the National Union of Tanganyika Workers which shall be deemed to be a trade union and shall, upon the appointed date, be registered as such by the Registrar under the registered Trade Unions Ordinance". (2) "Since NUTA is under section 3 a registered Trade Union, the provisions of the Trade Union Ordinance Cap. 381 apply. Section 23 of this Ordinance provides in part: - "(1) A registered trade union may sue, be sued and be prosecuted under its registered name". Subsections (2) and (3) make provision for suing unregistered trade unions in the name by which they have been operating and unions whose registration has been cancelled in the name in which they had been operating." (3) "NUTA is clearly a body registered under the Trade Union Act which makes provision enabling it to sue and to be sued in its unincorporated association."

13. Manyasa v. Mwanakombo (PC) Civ. App. 34-D-68; 20/10/70; Georges C. J.

A divorced wife sued the husband for maintenance of three children. The husband died before the case was finalized. The District Magistrate substituted a surviving widow for the deceased husband and made an order of maintenance against her at the rate of Shs.50/= per month. On appeal, the learned judge set aside the order because the liability for maintaining the children of the broken marriage rested on the deceased husband and not on his surviving widow. The judge however awarded the

children a house allegedly owned by the deceased. When the divorced wife sought to execute the order, a claimant appeared who asserted that the house was his as it had been transferred to him years ago by the deceased. The Chief Justice in this inspection note outlined the proper

Held: (1) “The divorced wife should have been advised to apply for execution under the Magistrates’ Courts (Civil Procedure in Primary Courts) Rules, 1964, section 58. The claimant could then appear and show cause why he should not be evicted. If the Court rejects the claim, then the matter would be at an end, the order executed. If the Court holds that the property in fact belongs to the claimant, then the divorced wife can appeal if she wishes”.

14. Meena v. Makundi Misc. Civ. Case 24-D-70; 27/11/70; Onyinke J.

This was an application under section 21(1)(b) of the Civil Procedure Code to withdraw affiliation proceedings pending in the district court of Dar es Salaam and to transfer them to the Resident Magistrate’s Court of Moshi. The affidavit of the applicant showed that she and her witnesses resided permanently at Moshi and that since she had practically no private means, it would be impossible for her to pay the expenses of bringing her witnesses to Dar es Salaam. According to the Affiliation Ordinance (Cap.279) S.3, an application for the maintenance of a child must be made to a magistrate with jurisdiction in the place in which the applicant resides. The respondent opposed the application on the ground that section 21(1)(b) contemplated a transfer of proceedings from one competent Court to another. Here, because the applicant made the complaint to district magistrate of the Dar es Salaam district where she did not reside, the Dar es Salaam district court had no jurisdiction to deal with the matter and there was, therefore, nothing to transfer.

Held: (1) “I am of the view that it is possible in law for a person to have a permanent residence at one place and a temporary residence at another. Such a situation is contemplated in section 18 of the civil Procedure Code. Explanation (1) in section 18 of the Civil Procedure Code states, “Where a person has a permanent dwelling at one place and also a temporary residence at another place he shall be deemed to reside at both places in respect of any cause of action arising at any place where he has such temporary residence.” (2) “The respondent has not raised any issue of hardship in the event of the transfer of the matter. He merely contended that the proceedings should not be transferred because they should have been instituted in the district court of Moshi in the first instance. The question of law apart, the ends of justice would be better served if the matter were transferred to Moshi. (3) “Order that the case be transferred to the district court of Moshi instead of the resident magistrate’s court Moshi.

15. Kassam v. The Regional Land Officer Civ. Rev. 2-M-70; 6/11/70; El-Kindy Ag. J.

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This was an application brought under s.79(1) of the Civil Procedure Code for revision of an interlocutory ruling made by a resident magistrate. The respondent had filed a suit against one Dharamshi claiming a declaration that Dharamshi was in unlawful possession of a plot of land and that he should be ordered to vacate. In his defence, Dharamshi stated that, he had been granted a Right of Occupancy in respect of the plot and that before the expiration of the right, the plot was sold to one Fazal whereupon Dharamshi held the property in trust for Fazal. He also stated that he did not know whether the property had been registered and transferred to Fazal or to the applicant. Whereupon the applicant applied to be joined as one of the defendants to the suit alleging that she was the equitable owner in respect of the plot and had an interest in the suit filed. The applicant also alleged that Dharamshi defending the suit on her behalf

and at her expense. The magistrate rejected the application on the ground that the applicant and the defendant did not have the same interest at the time of the suit.

Held: (1) That section 79 of the Civil Procedure Code would not apply to revise a decision of the subordinate court over an interlocutory matter. Citing *Gandesha v. Killingi Coffee Estate Ltd and Another* [1969] E.A.299, *Muhinga Mukono v. Rushwa Native Farmers Cooperative Society* [1959] E.A.595, *Hasham Karim and Co. v. Africa Import and Export* [1960] E.A.396, *Vithaldas Jetha v. Valibai I. T.L.R. (R)*. (2) “I think, with due respect to the learned magistrate, the affidavit of the applicant disclosed that he had the same interest as Dharamshi in the sense that both of them were claiming that they held property in trust pending the finalization of the alleged sales. This is interest and is sufficient for the purposes of Or.1, r. 8 C.P.C. In fact the affidavit, which was not challenged by the respondent, alleged that the applicant was in physical possession of the property, and I should have thought that this should have been a factor to be taken into consideration since, in the event of the respondent succeeding against Dharamshi, the decree and order of the court would not have been capable of execution as against the applicant since she was not a party to the suit.” (3) “Whether or not the applicant would have succeeded in establishing her rights and against whom would have been a matter of proof. The learned magistrate seemed to have accepted that the applicant had beneficial interest, and if that was so, that would have been sufficient to allow the applicant to be joined as a co-defendant in the suit.” (4) Application dismissed.

Editor's Note

It is pertinent to note that the Court of Appeal in *Kitundu Sisal Estate & Others v. Shingo Mshuti & others* Civ. App. 54-D-69 (1970) raveled the technicalities of s.79 of C.P.C. see [1970] H. C. D. 242.

16. Kalumuna v. Mukandala (PC) Civ. App. 91-M-70; 5/11/70; Mnzavas Ag. J.

The respondent sued the appellant for a piece of land. The land had been inherited by the respondent together with her brother and other sisters. The appellant alleged that the brother had sold the land to him for Shs.3, 900/= which had already been paid. The respondent's contention was that her brother had sold only his portion of the land and that this sale did not include her portion. The Primary court found that the brother had sold the whole shamba. The District Court reversed.

Held: (1) "From the evidence I think there was sufficient material entitling the primary court magistrate to come to the decision he did. That Leonard sold the whole shamba to appellant is evident from the receipts— Exhibits A to D produced to court by the appellant. In these receipts Leonard acknowledges receipt of a total of Shs.3, 900/= as price of the shamba to appellant." (2) The absence of the respondent during the sale of the shamba does not in this case invalidate the sale. However, the respondent is under section 570 – Customary Law of the Haya Tribe by CORY & HARTNOLL, allowed to prove that she was not a party to the sale. If she takes this course and proves to the court that she was not a party to the sale, she will be allowed to claim the whole land if she can pay the sum his brother rose from Francis. (3) Appeal allowed.

17. Michael v. Msario (PC) Civ. App. 92-A-70; 14/11/70; Kwikima Ag. J.

This is an appeal against the order of the District Court raising the attachment on a parcel of land alleged to belong to the respondent's son. The primary Court Magistrate who heard this case ruled in favour of the appellant, pointing out that the respondent's son had been occupying his father's land long enough for him to lay claim on it.

Held: (1) “There are numerous authorities to the effect that prolong tenancy do not confer title to land under Chagga Customary Law. Indeed in the case of Makofia Meriananga v. Asha Ndesia 1969 H.C.D. 204 P.184, Plat, J. as he then was, refused free title to the appellant who had been a tenant for no less than thirty years!” (2) “Such happens to be exactly the relationship between the respondent and his son. The Primary Court Magistrate was clearly wrong in holding to the contrary; i.e. that Elimu Kunda’s long occupation at the will of Kunda Msario his father conferred free title to Elimu.” (3) Appeal dismissed.

18. Mahfudh v. Salehe (PC) Civ. App. 54-D-69; 20/11/70; Makame J.

At the time when the appellant/husband and respondent/wife divorced in 1968 they had five children of the marriage aged 12, 9, 6½, 4 and 2½ years respectively. The children stayed with the appellant after divorce without the respondent objecting. Appellant then wanted to take the children to Arabia. Whereupon the respondent objected and went to court. It was not disputed that the appellant’s mother in Arabia was very old and blind and that the appellant was a busy businessman. The trial court and District Court refused to allow the appellant to take out the children. The District Court awarded custody of the last three children to the respondent in spite of appellant’s argument that since respondent had re-married, she had lost all her rights to custody. On appeal it was argued that the District Court had erred in awarding custody, a relief that the respondent had not asked for

Held: (1) “I agree that according to Mohammedan Law a divorced woman loses the right of custody of her children if she marries a person who is not related to the minor within the prohibited degrees. The respondent has re-married, I have no doubt, however, that at least in this country even when children are the fruit of an Islamic association the welfare of the children is of paramount importance. I respectfully agree with the view

expressed by Mustafa J. (as he then was) in SHELL MOHANA vs. ASHURA GULAMRASUL, Dar es Salaam (PC) Civil Appeal 122 of 1969. Also both the learned authors Mulla and Fyzee would generally seem to endorse this view.” (2) “I suppose that the District Magistrate’s order was so as to ensure that the children were not taken away to Arabia.” (3) “I think that the more reasonable course would be to order, and I so order, that in the interests of the five children they should not be taken out of Tanzania before they are sixteen. The evidence on record suggests that they have never been out of Tanzania before and if they went to Arabia they would feel lost in what may be strange surroundings to them. In the meantime the appellant, that is the father, should have the custody of all the children and the mother should have reasonable access to them. If the appellant should go out of Tanzania before the children are sixteen the respondent, that is the mother, should have the custody of the children until the appellant returns to Tanzania.” (4) “For the avoidance of doubt, after the children have attained the age of sixteen they may not be taken out of the country against their personal wishes. (5) Appeal allowed in part.

19. Dar es Salaam Motor Transport Co. Ltd. v. Mehta and Other Civ. App. 27-D-69; 25/11/70; Georges C. J.

Appellants unsuccessfully appealed against a judgment of the District awarding damages against them for failure to deliver goods which they had undertaken to carry for respondents. The judgment on appeal made no reference to costs. The respondents then applied for costs. It was contended for the appellants that as no application for costs had been made at the date of the delivery of judgment, the learned Chief Justice had not considered the matter, so that the slip rule in Section 96 Civil Procedure Code whereby the court can correct any accidental slip or omission in judgments, decrees, or orders was not applicable since here

there was a total omission. Reliance was placed on *Quick Service Stores v. Thakrar* [1958] E.A. 358.

Held: (1) "It appears to me that a distinction can logically be drawn between the two cases – willfully omitting to make an order because no application was made or forgetting through oversight." (2) "I am satisfied that in this case I did not make the order for costs through an oversight. The trial magistrate had awarded costs to the successful plaintiffs. The defendants had then appealed unsuccessfully. There could be nothing in the conduct of the successful respondents to justify depriving them of their costs. One would not normally expect an application for costs to be made in these circumstances so automatic does it appear to me. I would not wish to depart from the general principles laid down by *Craw Shaw J.* but I am satisfied that one must look into the facts of each case to determine what is or not a slip and to determine whether the manifest intention of the Court was clear." (3) "I am satisfied in this case that there was a slip. Neither the trial magistrate nor this Court on appeal made any adverse comment on the conduct of the successful respondents. They succeeded on every point in the appeal." (4) "Accordingly I would hold that I am empowered under section 96 to correct the accidental slip and order that the respondents do have the costs of the appeal."

20. Hussein v. Ali (PC) Civ. App. 57-D-69; 21/1/70; Saidi J.

The appellant allowed the respondent to build a house on his empty plot on the understanding that his right of occupancy over the plot would be transferred to the respondent's name. The respondent built the house and lived in it with her tenants for over ten years. Ownership was not transferred to the respondent and the transaction was improper as it did not get the requisite consent of the Commissioner for Lands or his agent. The primary court found for the respondent and ordered the appellant to

transfer the plot in the name of respondent. The appellant appealed to the District and the High Courts.

Held: (1) "In such cases the amount spent on the plot should be treated as money had on behalf or for the benefit of another." (2) "In the present case, it is established that [Respondent] has spent more than Shs.4, 000/= on the plot belonging to [Appellant] to raise the house, and has been occupying this house for more than ten years, but [Appellant] is now no longer prepared to transfer ownership of the plot to her, and in fact wants to evict her from the house. I would have been very happy if I could have got the approval of the Commissioner for Lands to transfer the house to Respondent but it is not as easy as it appears." (3) "What I propose to do is to enter judgment against [Appellant] and in favour of [Respondent] for the sum of Shs.4, 000/= with interest and costs. If [Appellant] cannot pay the money straight away, because I am not going to give him much time since he has been fooling about with the plot on which he has spent nothing practically, then execution proceedings should immediately issue, by attaching the house and selling it by public auction. I would direct that [Respondent] should continue to remain in the house as before and that she should be permitted by the District Court to bid at the auction. If her bid is the highest, then a certificate of sale should issue to her and the house should be transferred to her by order of court. If any other person interested out-bids [Respondent] and offers more than Shs.4, 000/= so that she can obtain all her money with interest and costs, then she has nothing to worry about and she should let the house go to such bidder, because she will get all her money and try to obtain her own plot on which she can build another house.

21. Tanzania Vehicle Finance Ltd. v. Tanzania Motor Transport Company.
Civ. Ref. 1-M-70; 26/10/70; El-Kindy Ag. J.

The applicants filed a suit against the respondent for a declaration that the applicants were the owners of a vehicle in dispute. They prayed for the return of the vehicle or its value or damages in conversion. They also claimed arrears of hire rentals of Shs.25,572/=plus interest of Shs.3,060/=, court fees, advocates fees, plus such other relief as the court may deem fit. Consent judgment was granted and costs ordered to be taxed. The amount claimed as instruction fees in the bill of costs was Shs.5,460/= being roughly 10% of the value of the suit, but the taxing master taxed off Shs.3,460/=. It was argued on appeal that as a matter of practice the taxing master accepted 10% of the value of the suit as reasonable instruction fees, that the suit was complicated as it involved purchase law and involve a lot of money, and therefore the taxing master did not exercise his discretion judicially in reducing the fees on insufficient reasons.

Held: (1) "As it is well known the desertion of the taxing master will only very rarely be interfered with unless there is an error in principle (see ATHUR v. NYERI ELECTRICITY (1961) E.A. p.422)." (2) The Taxing Master "considered carefully what was argued before him. He said that he was aware that the value of the subject matter of a suit is a fact to be considered but he also knew that sometimes it was not one of the more important factors in the assessment of instruction fees. And after perusing the plaint and the annexure, he disagreed that the suit was complicated. He also took into consideration the fact that the suit had not been defended. I think he gave his reasons clearly as to why he decided to reduce the figure, as he did. It may well be he departed from the practice, as shown in the two cases quoted, of granting the 10%, but it seems to me that he had sufficient reasons for doing so." (3) "As far the point of complexity of the suit was concerned, the taxing master was not satisfied that it was complicated and I cannot say that he erred in this. (4) "I am satisfied that the learned taxing master had exercised his discretion

judicially and reduction is not so pitifully low so as to amount to an error in principle.” (5) Application dismissed.

22. Kunverji v. Sizya Misc. Civ. App. 1-M-70; 2711/70; El-Kindy Ag. J.

The appellant/tenant applied to the Rent Tribunal for determination of the standard rent of the premises; enter an order authorizing the appellant to carry out repairs and to permit him to deduct the costs thereof from the rent payable to the respondent/landlord. He claimed to have been in the premises since 1950 at a rent of Shs.100/=per month which was increased to Shs.150/= per month at the time of the application. The tribunal heard the application in the absence of the appellant who did not appear although he had been served. They visited the premises and noted that some places needed repair and valued the house of six rooms built with cemented blocks at Shs.25, 000/=. They fixed the rent at Shs.200/= per month. It was argued on appeal that the Tribunal could not assess or re-assess the rent until it had decided what the main user of the house was.

Held: (1) “I think there is some merit in this argument because different consideration would apply when it is decided that the main user was commercial or residential. Where the main user was commercial the standard rent would be as it was on the 1st January, 1965, which is the prescribed date, and where the main user was residential the standard rent would be as it was on the prescribed date i.e. 1st July 1959. (See section 2 of Rent Restriction Act 1962, Cap.479). In this case the Tribunal did not decide the issue of main user. In my view it was necessary firstly to decide the issue of main user, secondly the prescribed date, thirdly make a finding of rent as it was on the prescribed date, and then fourthly fix the rent of the premises as prayed for. These findings were not made, and therefore it is difficult to support the Tribunal’s finding.” (2) Case remitted to the Tribunal for rehearing.

23. [Lemnge v. Lemnge](#) (PC) Civ. App. 50-A-66;? Bramble J.

This was a dispute over land. The parties were half-brothers by the same father. The father had bought the disputed land which was adjacent to the established kihamba of the respondent's mother. The father later took other wives among who was the appellant's mother whom he put in possession of the acquired land. The appellant was born on the land. The father later removed the appellant's mother to another shamba and brought in another wife who also gave birth here. The appellant argued that the land was his because he was born on it, while the respondent's case was that the area in dispute was part of his mother's land in that his father found the original area too small and increased it by buying an adjacent portion. A clan council decided that the land belonged to the appellant and the other child born there. The trial magistrate held that under Chagga Customary Law a person cannot be removed from the place where he was born and agreed with the clan council's decision.

Held: (1) "There was no statement by way of evidence of what was the Customary law applicable to the case and it could not possibly be as wide as stated by the trial magistrate. What he said, in fact, was that if a person happened to be born on a stranger's land he had a right to that land and could not be removed from the place. For these reasons this statement must be rejected." (2) "The fact that the Clan Council favoured that the appellant cannot by itself be a basis for the judgment in that it was the very question the court was called upon to decide and it could not surrender its functions." (3) "In such a setting the learned district magistrate was entitled to examine the evidence and draw his own conclusions. He found as a fact that the area in dispute had been joined with the respondent's mother's property. The fact that appellant's mother temporarily resided there and gave birth to the appellant did not give him a claim. The finding is consistent with the evidence and there are no

grounds for this court to interfere. The appellant had not made out a title better than the respondent who was in possession and judgment was correctly awarded against him.” (4) Appeal dismissed.

24. Shinyanga Emporium Ltd. v. Lugeleka Civ. App. 11-M-70; 17/12/70; Mnzavas Ag. J.

The appellant claimed the balance of an agreed and or reasonable price for a motor vehicle sold to the respondent. The trial magistrate accepted the respondent's defence that the money had been paid. One of the conditions in the written agreement of the parties was that ownership of the vehicle was to be transferred to the respondent only after the respondent had paid the whole of the agreed price. The appellant had in fact signed a form transferring ownership to the respondent before this suit. The appellant argued on appeal that this transfer of ownership a mere indulgence on his part and did not necessarily show that the agreed price had been paid by the respondent; that by an oral agreement, he agreed to ignore the provisions of the written agreement and to transfer ownership before payment of the whole of the agreed price for the car; and that the trial magistrate had erred in holding that s.101 Evidence Act 1967 was applicable

Held: (1) “It is firmly established as a rule of law that parol evidence cannot be admitted to add to, vary or contradict a deed or other written document. In support of this rule of law it was held in JACOB Vs. BATAVIA & GENERAL PLANTATIONS TRUST – (1924) ICH page 287 that “parole” evidence will not be admitted to prove that some particular term which had been verbally agreed upon had been omitted (by design or otherwise) from a written instrument constituting a valid and operative contract between the parties. Although this decision did not specifically deal with the facts similar to the present case, it nevertheless demonstrates the fact that any dispute arising from a written

agreement must be looked at in the light of the contents of the agreement.” (2) The appellant seems to say, indeed this counsel argued, that by a different verbal understanding between the parties ownership of the car was transferred to the respondent although he had not paid the whole of the agreed price of the car. It is possible that this is what happened but there was no evidence to show, and the appellant failed to advance any reason, why the provisions of paragraph 5 of the written agreement were suddenly altered by mere oral agreement.” [Citing M.S. MNONYA Vs. ALI ABDULLA (1967) H.C.D. Case No. 379]. (3) “I agree with the learned counsel that there was misdirection by the learned resident magistrate in holding that the provisions of Section 101 of the Evidence Act 1967 applied in this case. But with respect to the learned counsel I do not agree that this misdirection does in any way invalidate the finding of the learned magistrate. He based his decision on the fact that the written agreement specifically stated that transfer of ownership of the car to the respondent was to be affected after the respondent had paid the agreed price of the car. The respondent having shown that ownership of the car had already been transferred in his name and the appellant having failed to show to the court any convincing reason why he decided to transfer ownership of the vehicle to the respondent, if, as alleged by the appellant, there was still Shs.2, 100/= unpaid, the court was entitled to infer that transfer of ownership of the car to the respondent meant that the respondent had already paid the whole price of the car to the appellant.” [Citing PASCAL JOSEPH MLAY v. ANTONY PHONES (1968) H.C.D. Case No. 1]. (4) Appeal dismissed.

25. Njombe District Council v. Kanti Printing Works Court of Appeal Civ. App. 26-D-1970; Lutta J. A. and Spry V.P.

The respondent sued the appellant for the price of goods sold and supplied. In the High Court the appellant argued that by virtue of s.153 (1)

of the Local Government Ordinance a suit commenced against a local authority for an act done in pursuance or execution of an Ordinance or of any public duties or authority had to be commenced within twelve months of the act and since the respondent's action was brought twelve months after the cause of action had arisen the suit was time barred. The high Court rejected the argument [see 1970] H.C.D.120 and the appellant further appealed to the Court of Appeal.

Held: per Lutta J. A. (1) It has been argued "that in purchasing the articles in question the appellant was discharging its duties under paragraphs 40, 41 and 43 of section 52 (1) of Cap.333, which are in the following terms:- [The judge then set out the provisions of the above sections and continued]. The above provisions do not impose an obligation or a duty on the appellant to enter into a contract with the respondent for the latter to supply the goods in question. However, in performing these duties, the appellant may or can do anything, including entering into a contract, which it considers will facilitate the performance of those duties – but that would be entirely voluntary on its part. In my view the purchase of the educational exercise books or articles was incidental to the duties imposed on the appellant under section 52(1) paragraphs 40, 41 and 43, and the contract with the respondent to supply the books was a voluntary one between the parties. The rights of the parties were governed, not by section 52 of Cap.333 but by the contract. Thus the appellant's failure to pay the price of the goods supplied was not an "act done in pursuance or execution or intended execution of an Ordinance or of any public duties or authority, or in respect of any alleged neglect or default in the execution of any such Ordinance, duty or authority." In my view there was no statutory duty to enter into such a contract or to pay the price or otherwise and the appellant's act cannot be said to have done in pursuance of section 52(1) of Cap.333 "(2) [per Spry J. A.] Section 153 of the Local Government

Ordinance Cap.333 is clearly derived, directly or indirectly, from the English Public Authorities Protection Act, 1893, and there is therefore a considerable body of British cases of a highly persuasive authority. [Citing, Bradford Corporation v. Myers (1916) A. C. 242; Hawkes v. Torquay Corporation (1938) 4 All E. R. 16; Griffiths v. Smith (1941) A. C. 170; Turburville v. West Ham Corporation (1950) 2 All E. R. 54; and Firestone Tire and Rubber Co. (S.S.) Ltd. v. Singapore Harbour Board (1952) 2 All E. R. 219]. At the risk of over-simplification, I think that the test which emerges from those cases is simply this: was the act or omission complained of done by the authority in performance of a public duty or authority or in exercise of a statutory power incidental to such duty or authority? In the abstract, the distinction is clear, but in practice it is not always easy to draw the dividing line.” (2) It is in that connection that the Council entered into contracts with the respondents for the purchase of text books, stationery, etc.” The learned trial judge held that these contracts were “incidental to the discharge of its public duty to provide education for the inhabitants of its district.” Strictly, it was not a duty but an authority, having regard to the wording of section 52 of the Ordinance, but that is of no significance. I have no doubt that the decision of the learned judge was correct. The Council was under no duty to enter into this contract, or to enter into any contract with the respondents. This was a private contract, intra vires the powers of the Council by section 46 of the Ordinance, and incidental to the running of schools. It was not the exercise of a public authority, but the exercise of a power incidental to an authority.” (3) Appeal dismissed (Law J. A. concurring).

26. Bhulji v. Kassam Civ. Case 3-D-70; 31/12/12/70; Biron J.

The plaintiff/wife claimed execution of the judgment of the Aga Khan Shia Ismailia Provincial Council awarding her Shs 5,125/= as moh...and Shs.19, 200/= as compensation on her being divorced by the defendant/husband. The Council had further ordered the month until the

children were old enough to be placed in his custody. A preliminary point was raised by the defendant that the High Court had no jurisdiction to entertain the suit under the provisions of the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance Cap.112 on account of the form in which the suit was brought that is as an ordinary civil suit between plaintiff and defendants. The Matrimonial Causes Rules 1956 applied to all suits brought under the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance. These rules provide specific forms and this suit should have been brought in such form as provided by the suit. In answer it was argued for the plaintiff that the suit did not lie under Cap.112 but was in effect a claim to enforce the judgment of the Ismailia Provincial Council.

Held: (1) "In my view, the jurisdiction of this Court to entertain such a cause as this instant one, is in fact derived from Cap.112, and, but for this Ordinance conferring jurisdiction on the the claim brought by the plaintiff. I therefore – and, I may add, not without reluctance p find myself constrained to uphold Mr. Harjit Singh's submission that this instant claim by the plaintiff, as it really lied under the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance, is governed by the rules made under that Ordinance." (2) "On as comprehensive and objective a view as possible of the position, I consider that in conformity with the rules made under Cap.112, before filing this suit the plaintiff should have applied for directions as to what form her claim should take, as provided for in Rule 3 (3) of the Matrimonial Causes Rules which reads: - 'Unless these rules otherwise provide, every application shall be made to and leave or direction shall be obtained from a judge by summons in chambers.' I can only plead in mitigation the absence of any precedent, grant leave for the plaintiff to apply for directions as provided for in rule 3(3) above set out, and in the meantime adjourn giving a ruling on the preliminary point raised, pending the direction given on the application for

directions, as it is by no means inconceivable that a court may direct that proceedings of this nature should be brought in the form of a civil suit.”

27. Nyamukanga v. Rusamwa (PC) Civ. App. 124-M-70; 4/1/71 Mnzavas Ag. J.

The appellant was already married to four wives when she married the respondent as a fifth wife. The marriage was challenged by the other four wives as being irregular and invalid under Islamic law. Whereupon the appellant returned the respondent to her parents until solution of the matter with the other wives. While with her parents, the respondent had a baby which the appellant did not father. Both parties being Moslems, the issue was whether the respondent was under Islamic law entitled to maintenance while she was living with her parents. The primary court found that since the parties were not validly married, maintenance could not be ordered. The District Court reversed.

Held: (1) “Paragraph 24 – KITABU CHA NIKAH BY SHEIKH ALI HEMEDI EL BUHRIY is to the effect that if a Moslem marries five wives all in one day, the marriages are invalid in respect of all five wives. But that if he marries five wives one after another, the first four marriages will be valid but the fifth marriage would be invalid in every respect.” (2) “Here the respondent was married to the appellant when the appellant was already married to four wives under Islamic Law. Her marriage to the appellant was the fifth marriage while the four marriages were still subsisting and as such the marriage between them was under Islamic Law invalid in every respect.” Appellant cannot therefore be asked to pay maintenance as claimed. (3) Appeal allowed.

28. Kamugisha v. Kibuka (PC) Civ. App. 133-M-70; 1/1/71; Mnzavas Ag. J.

The appellant blocked a foot-path which runs over his shamba and which had been in use for over forty years. The respondent being one of the

villagers who was inconvenienced obtained an order from the cell-leaders compelling the appellant to reopen the path. The order was confirmed by the primary and district courts.

Held: (1) "Such a path is called 'OMUHANDA' in Kihaya. According to Haya Customary Law it would appear that if such a path passes through private land, as it is in this case, the owner of the land may not close the path unless he provides an alternative route at his own expenses – see CORY & HARTNOLL, CUSTOMARY LAW OF THE HAYA TRIBE Paragraph 712. From the evidence the appellant closed the foot-path to the river before providing an alternative route and as such his act was clearly inconsistent with the established Haya Customary Law." (2) Appeal dismissed.

29. Teofrida v. Kanisius (PC) Civ. App. 146-D-69; 13/1/71 Makame J.

The respondent filed a suit in the primary court claiming paternity of a child. The court found that he was the father of the child but then stated that he could legitimize the child when it attained seven years, depending on the child's decision.

Held: (1) "I think this order stems from confusing the paternity of the child with its custody. Section 181B of Law of Persons (G.N.279 of 1963) provides for the legitimization of a child born in such circumstances before the child is weaned. The respondent filed a suit a mere three months after the birth so he was clearly within time. Custody and maintenance are different from the issue of paternity. It is inconceivable that the child should be asked to decide who her father is. "Similarly, the District Magistrate said the respondent should legitimize the child if the appellant agrees. The appellant might have agreed to the legitimization of the child by the respondent if she had agreed that the respondent was the father. The whole point is that she did not agree, and that is why they came

to court. The paternity of the child respondent may legitimize the child as of right and not subject to the wishes of the appellant. (3) "I therefore order that if the respondent wishes he may legitimize his child by offering to the appellant's father the customary Shs.100/= not later than 15th of April 1971, G.N.279 having been made applicable to the subjects of the Songea District Council by G.N.476 of 1963, and "Songea District Council" being defined by G.N.280 of 1963 as being the Songea District and Mbinga District." (4) Appeal dismissed.

30. Dinya v. Dawa (PC) Civ. App. 166-D-69; 14/1/71; Makama J

This is an appeal against an order for the maintenance of a wife. There was evidence that the appellant did not drive away the respondent/wife from the matrimonial home. The respondent ran away on her own after a quarrel. When she was away the respondent provided some foodstuffs and money. The primary court had ordered the appellant to pay Shs.500/= for maintenance of the respondent.

Held: (1) "I agree with the assessors in the Primary Court that the respondent was nashiza. Under Islamic law a husband is not obliged to cohabit with such a wife or provide for her. This does not mean that he must not do so. A wife ceases to be nashiza only after she stops being disobedient. There was evidence, which the trial magistrate believed that during the discussion with relatives and religious leaders the respondent agreed to go back to the appellant. In my opinion she ceased to be nashiza then. The appellant was indecisive during that discussion. He said the wife should continue to live where she was, and then he changed his mind and said he would give her talak later on the same day, which he did not. From that point it was thus his duty to maintain her, and the evidence indicates that he gave the maize etc. to the respondent before this discussion, and nothing after that." (2) "With respect to the trial magistrate, however, it was for the respondent, not the appellant, to

establish when during the three years she ceased to be nashiza and up to what date she was maintained, for it was she who was claiming maintenance. Neither the parties nor the witnesses gave any such dates, and the only useful guidance given by the appellant and not challenged by the respondent was that on the 1st of March 1969, only a month before the respondent went to court, they were eating the staying together. I am not therefore satisfied about the basis on which the figure of Shs.500/= was reached, and because of the foregoing reasons this appeal succeeds.”

31. Fadhili v. Lengipengi (PC) Civ. App. 31-A-69; 16/11/70; Kwikima Ag. J..

The appellant successfully sued for domestic animals and the offspring entrusted to the respondent by the deceased appellant’s mother. The District Court allowed the appeal of the respondent on the grounds that: (1) the appellant sued only after his mother’s death and not during her lifetime. The suit must have been based on “retold history from the neighbours.” And anyway the respondent had reported the death of all the animals to the deceased when she was still alive. (2) The claim could not be sustained “without documentary evidence and without eye witnesses to say that the goats and sheep did not die and that the appellant did not report.”

Held: (1) “With due respect to the learned District Magistrate, his reasoning is bad at law. The court which heard the witnesses found that the respondent had received the stock from the appellant’s deceased mother and had kept it till her death. If the animals had died while in the appellant’s custody, the trial court found it improbable that the deceased had been informed. After all it is easy to allege things in respect of deceased persons since these persons cannot be called to refute them.” (2) “In African custom business is transacted without documents. Writing as such is an innovation which is only familiar to the sophisticated young

who have had opportunity to receive coaching in the ways of the Whiteman. The appellant cannot be blamed for not acting during his mother's life, either. The reason is simply that the animals then belonged to her and any claim by the appellant would not have been entertained in a court of law. The appellant had capacity to sue for the animals after inheriting them from his mother. (3) Appeal allowed.

32. Clemence v. Esteria (PC) Civ. App. 71-M-70; 7/1/71; Mnzavas Ag. J.

Two wives of a deceased had a dispute over ownership of a shamba. The respondent argued that by virtue of Haya Customary law, her son Albert being the first son in the senior house was entitled to be the principal heir and inherit the shamba in which his father was buried. The appellant on the other hand argued that the shamba was given to her son by virtue of the deceased's will. Although the primary court magistrate held the will to be invalid, the court by a majority found in favour of the appellant. The District Court reversed.

Held: (1) "Questions of inheritance where Customary Law is involved are governed by Laws of Inheritance G. N. No.436/63. Section 19 of this Government Notice is to the effect that - "The principal heir of the deceased is his first son from the senior house. If the deceased left no son of the senior house, his eldest born son of any house will be his principal heir." As there is no argument in this case that Albert is the first son of the deceased from his senior house, Albert is, unless reason to the contrary is shown, the principal heir of his father's property." (2) The will produced tends to show that the deceased excluded Albert as the principal heir. "I have myself examined the document and I am satisfied that it is suffering from a lot of irregularities. The alleged will is not witnessed by any kinsmen of the deceased as required by section 19 of the Law of Wills G. N. No.436/63. None of the deceased's wives

witnessed the will. From the document it is not at all clear that the testator intended to disinherit Albert, his principal heir at law, because he does not expressly say so as required by section 34 of the Law of Wills. In KWEKAZA vs. KYEKUZA, Bukoba D. C's Appeal No.69 of 1935 in which a similar dispute was in issue it was held – “That a testator cannot disinherit a person entitled to inherit without giving sufficient reasons for the change of the rules.” The document produced by appellant, was clearly invalid and as such the position of Albert as the principal heir remains unchanged. (3) Appeal dismissed.

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CRIMINAL CASES

33. Rashidi v. R., Crim. App. 3-D-70, 16/10/70, Biron J.

The appellant was convicted of corrupt transaction with agents c/s 3(2) of the Prevention of Corruption Ordinance Cap.400 and sentenced to two years imprisonment. The evidence for the prosecution, accepted by the magistrate, was that three members of a police patrol saw a vehicle being driven somewhat erratically on a road in the Amboni Sisal Estate. The members of the patrol were in a police landrover. The vehicle, on getting near the landrover suddenly reversed and went off emitting smoke. The patrol gave chase and caught up with the vehicle after it had collided with a gatepost. The appellant offered the police three 20/= notes to let him off". Counsel for the appellant argued: (a) that before a person can be charged with corruption consequent on an alleged offence, it must be established that he had in fact committed such an offence. (b) That the vehicle was not on a public road since the Amboni Sisal Estate is a private establishment.

Held: (1) "There is a wide gulf between the old section 91 of the Penal Code which is repealed and replaced by the Prevention of corruption Ordinance and section 214 of the Indian Penal Code on the one

hand and section 3(2) of the Prevention of Corruption Ordinance Cap.400, "To my mind the very wording of the three sections are sufficient to demonstrate the difference between them without any further elaboration". Therefore proof of offence as a reason for offering a bribe is not necessary. (2) [Quoting the definitions of "road" and "public" in section 2 of the Traffic Ordinance Cap.168], "the road in the Amboni Sisal Estate would constitute a public road for the purpose of the Traffic Ordinance." (3) "I feel, as I think the learned magistrate himself would have done had this recommendation by the Commissioner [for Social Welfare] been put to him, that there are in this case special circumstances which, as noted, the appellant being a first offender, the bribe being less than 100/=, can empower a court to exercise its discretion and propose a sentence less than the minimum one. The sentence of imprisonment imposed is reduced to such term as will result in the immediate discharge of the appellant." (4) "Order of forfeiture of 60/= is ultra vires, as section 3(iii) of the Prevention of Corruption Ordinance which provides for an order of forfeiture applies only to the bribe received by the offender." (4) Appeal dismissed.

34. Mwita v. R. Crim. App. 275-M-70; 21/10/70; Kisanga, Ag. J.

Appellant was convicted of the offence of corrupt transactions with agent's c/s 3(2) of the Prevention of Corruption Ordinance. The particulars as set out in the charge sheet alleged: - "That Mwita s/o Jiheja is charged on the 6th day of March, 1970 at about 11.00 hrs. at Iborogero Village, Ziba Division, Nzega District, Tabora Region, did corruptly give cash Shs.20= to Elias Kishiwa a member of the TANU Youth League as an inducement a reward to the said Elias Kishiwa not to prosecute him for the offence of buying cattle outside the public auction." It was contended on behalf of the appellant first, that the charge was bad since the relationship of agency was not pleaded, and second, that Elias could not be regarded as

an agent for the Government to prosecute the appellant [citing Isanga v. Republic (1968) E.A. 140].

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Held: (1) "Section 3(2) under which the charge was based provides:- [The learned judge then set out the provisions of the section and continued]. Upon reading this sub-section, it is clear that the relationship of principal and agent is an essential ingredient to the offence created thereunder. It therefore follows that a charge laid under that sub-section ought to set out that relationship by alleging that the offender corruptly gave the money so that another person should forbear doing some act in relation to that other's principal's affairs or business. In the present charge it is not alleged that Elias Kishiwa should forbear to do any act in relation to his principal's affairs or business and on account of that omission the charge must be considered to be defective." (2) "It is clear that the facts of Isange v. Republic [1968] E.A.140 were not identical with those of the present case but I think the principles laid down are applicable. It is common knowledge that TANU Youth League is a section of TANU because it is provided under article 5 of the Interim Constitution of Tanzania. It follows that Elias Kishiwa, being a member of that section, was necessarily a member of TANU and therefore, as the Chief Justice said, he was an agent of TANU and his duties would be in relation to TANU. He was entitled to report the offence to the police or to bring a private prosecution against the appellant. But in so doing he cannot be said to be acting in relation to TANU's affairs or business any more that would be any other citizen so acting because reporting an offence to the police or instituting a private prosecution are duties and rights which are

accorded to everyone in the society be he a member of TANU or not. Thus the money which was offered to Elias Kishiwa so that he should not prosecute the appellant could not be regarded as an inducement to him to forbear doing an act in relation to his principal's (i.e. TANU's) affairs or business because as stated earlier the right to prosecute or the duty to report an offence are rights and obligations which everyone in the community has in relation to the society as a whole." (3) Appeal allowed.

35. Msabaha v. R., Crim. App. 468-M-70; 30/9/70; Mnzavas Ag. J.

The appellant was convicted, on his own plea unlawful possession of Moshi c/s 30 of Moshi (Manufacture and Distillation) Act No.62 of 1966. He was sentenced to 7 months imprisonment and appealed against both conviction and sentence on the grounds that (a) the prosecution had not discharged the burden of proving that the substance found in his possession was in fact moshi and (b) a sentence of 7 months imprisonment imposed on an elderly man who was a first offender is excessive.

Held: (1) (Distinguishing JUMANNE s/o JUMA v. R. (1968)

H.C.D. Case No.304; and MAHENDE ISANCHE v. R. (1968) H.C.D. Case No. 422). "The appellant in this case did not only unequivocally plead guilty to being in possession of moshi but he also admitted the facts constituting the offence. This being the position the question of the prosecution to prove (sic) that the liquid was moshi does not at all arise. In these circumstances the accused clearly has no right of appeal against conviction." (2) (Distinguishing HADIJA d/o OMARI v. R. (1970) H.C.D. Case No.158). "In the present case there is no evidence whatsoever to suggest that the appellant was more of a distributor of moshi than a mere consumer. There is no evidence to suggest that the offence is prevalent in the area.....the appellant is an elderly man of 52 years....he readily

pleaded guilty of the offence....he has an unblemished record. I feel that this is one of those cases where leniency should have been exercised..... The sentence of 7 months imprisonment is varied to 3 months imprisonment. (3) Appeal dismissed.

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36. R. v. Mohamed Crim. Rev. ?-D-70; 28/9/70; Biron J.

The accused was convicted on his own plea of causing grievous harm c/s 225 of the Penal Code and sentenced to 3 years imprisonment and 10 strokes corporal punishment which sentence requires confirmation by the High Court.

Held: "Although I fully agree with the magistrate that the offence merits the sentence imposed, I am, however unable to confirm it, as the award of corporal punishment is ultra vires. In the Schedule to the Corporal Punishment Ordinance (Cap.17 – Supp.58),.....corporal punishment can be awarded, and I quote Item 2: for "any assault included in Chapter XXIV of the Penal Code of an aggravated nature by reason of the youth, condition or sex of the person upon whom or by reason of the nature of the weapon or the violence with which such assault shall have been committed". The offence of causing grievous harm with which the accused was charged and convicted is under Section 225 of the Code, and therefore does not attract corporal punishment." Award of corporal punishment set aside; sentence of imprisonment confirmed.

37. Muwa v. R. Crim. App.144-M-70; 2/10/70; Mnzavas, Ag. J.

The appellant was convicted on his own plea of guilty of failure to draw his vehicle to his left or near side of the road where stopping in a township c/r 35 (2) (h) and Rule 69 of the Traffic Ordinance, Cap.168 and was sentenced to a fine of Shs.201/= or distress in default. It was argued on behalf of the appellant that (i) he (the appellant) could not be convicted on the basis of a written document which was not in evidence at the trial.(ii) Even if the conviction was sound in law, the sentence was excessive since the appellant was not given an opportunity to admit or deny previous convictions.

Held: (1) "Appellant's attendance in court was dispensed with under s.99 of the Criminal Procedure Code; and on being served with the summons on 21/1/70 he, in compliance with section 99 of the Code pleaded guilty in writing to the offence charged, and signed his name at the back of Criminal Form No.3A below the words – "Nimekubali Kosa hili sina zaidi". "This being the position, the matter is governed by section 313 of the Criminal Procedure Code, and as such the appeal against conviction is clearly incompetent." (2) "As for sentence the learned magistrate should not have admitted the alleged previous conviction without giving the appellant an opportunity to be heard regarding the allegation notwithstanding the fact that the charge was disposed of under section 99 of the Criminal Procedure Code. The magistrate should have complied with section 99 (4) of the Criminal Procedure Code before he accepted the alleged previous conviction. The improper acceptance of an alleged previous conviction. The improper acceptance of an alleged previous conviction must have greatly influenced the learned magistrate when imposing the sentence he did. In the absence of sufficient evidence to show that the appellant has a previous conviction, the appellant has to be treated as a first offender." Appeal against conviction dismissed; sentence reduced to a fine of Shs.30/= or distress in default.

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38. HASHAM v. R. Crim. Rev. 46-D-70; 26/8/70; Biron J.

The accused was convicted on his own plea of breaking into a building with intent to commit a felony c/s 297 of the Penal Code. He had been charged together with another man who in separate proceedings was convicted on this and another charge of stealing and sentenced to 30 months imprisonment and 24 strokes of corporal punishment. The building concerned was the National Bank of Commerce. The manager's office was entered and an attempt made to open the safe but nothing was stolen. The accused was a first offender, aged 18 years at the time of the commission of the offence and was a student. The Probation Officer strongly recommended probation. The Magistrate in accepting this recommendation said "The accused is a first offender...it would be unwise to send him to jail where he is going to meet his friend and learn new tricks. It would be reasonable to keep the accused on probation for 12 months. He should report to the Probation Officer once a week." The Director of Public Prosecutions sought the enhancement of sentence describing the probation order as "woefully inadequate".

Held: "Here we have a youth of eighteen years of age, committing, it must be stated without qualification, a serious offence, but under the influence of an older man and a criminal, given a good character by the Probation Officer and incidentally nothing was in fact stolen and the Magistrate acceding to the request of the Probation Officer, placed the accused on probation giving very good reasons for so doing. One of the main objects of punishment is the reformation of the individual convicted in order to make him a good citizen. The magistrate directed himself that the accused, if he went into jail and associated with this man freemantle would, to quote him "learn more tricks". Apart from that, association with hardened criminals by a youth on the circumstances of this case is hardly

calculated to ensure that the accused comes out of prison a good and honest citizen. The Magistrate exercised his discretion properly and it was based on a very firm foundation and ground advanced by the Probation Officer.” Probation order confirmed.

39. LUKATRARIA v. R. Crim. App. 711-D-70, 4/11/70, Onyinke J.

The appellant appealed against a sentence of 2 years imprisonment imposed when he pleaded guilty to a charge of causing death by dangerous driving c/s 44A(1) of the Traffic Ordinance. In reply to the Allocutus the appellant was recorded as saying “I was born in 1952. I was working in London as Engineer. I just came to visit my uncle. I am intending to do further studies. I do not mind anything of the fine. I would like to notify my uncle as to the fine and that is my only concern.” In sentencing the appellant the Magistrate remarked, inter alia “It will be wrong in principle to allow criminals to buy their way out of offences as easily and I cannot help feeling that the accused disregarded traffic law as he knew his uncle or family would pay his way out.”

Held: (1) (Distinguishing CHANDA KANTA SETHI v. R. (1962) E.A. 523 (K). “There is some difference between section 44 (a) of the Traffic Ordinance of Kenya and the of Tanzania. I am of the view that where the section which creates an offence specifically empowers the court to levy a fine as an alternative to prison sentence the court should not normally impose a prison sentence unless the circumstances of the case warrant it. On the other

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hand where the section does not specifically provide a fine as an alternative to prison sentence the court should not normally levy a fine

unless there are sufficient mitigating factors to warrant such a course. (2) [The appellant's reply to the allocutus] does not demonstrate any sign of contrition. On the contrary it showed the extreme levity with which the appellant was treating an offence which involved the loss of human life and for which the legislature did not think suitable to specifically provide a fine as an alternative to prison sentence. The learned Magistrate was entitled to take this piece of irresponsibility into account in determining sentence. It cannot be said that he exercised his discretion wrongly in imposing a prison sentence on the appellant but the length of imprisonment is another matter. The appellant was a first offender, a young person and of previous good character." Sentence reduced to 8 months imprisonment. (3) Appeal dismissed.

40. MABILA v. R. Crim. App. 146-M-70; 1/10/70, Mnzavas Ag. J.

The appellant was convicted on his own plea of neglecting traffic directions c/ss 58 (b) and 70 of the Traffic Ordinance Cap.16B. He was fined 350/= or two months imprisonment in default. He failed to comply with a "No parking" sign on a side street.

Held: "This is to my mind one of the most offences which hardly attracts severe penalty unless the offence is accompanied with other aggravating circumstances. In the present case there is nothing to suggest that the offence was complicated by such circumstances as to attract so heavy a sentence as the one imposed. On the contrary it can be assumed from the record that the appellant has an unblemished driving record." Fine of 350/= reduced to 20/=.

41. Amin v. R. Crim. App. 428-M-70; 29/9/70; Mnzavas, Ag. J.

Appellant was charged with and convicted of one count of stealing c/s 265 of the Penal Code and eleven counts of obtaining money by false pretences c/s 302 of the Penal Code, and was sentenced to 2 years and

twenty four strokes corporal punishment in respect of the first count and 12 months imprisonment in respect of each of the other counts. It was established that one Mansuri Rashid (P.W.1) who was then the Regional Executive Officer of TANU in the West Lake Region, took appellant to his office and while the two were in the office, P. W. I. left appellant twice in the office in which there was an open cupboard containing TANU receipt books and other documents. Several witnesses testified that appellant issued them with TANU receipts which were missing, claiming that he was a TANU Secretary. In addition, on being searched, appellant was found with one receipt which was also missing. He did not give any explanation how he came to be in possession of this receipt. On count eleven, it was alleged that appellant obtained 6/= by false pretences from one Raphael Kaboge who was in Uganda at the time of trial and did not give evidence. Conviction on this count was based on hearsay evidence.

Held: (1) "Taking the evidence of P. W. I into account and the fact that the accused was found in possession of one of the receipts from the missing book and the facts which show that many other receipts from the missing book were issued to people by the accused who was identified by P.W.2, P.W.3, P.W.5, P.W.6 and P.W.10 at different police identification parades I can only say that the accused is the person who stole the TANU receipt book. The appeal against conviction insofar as count one is concerned is without

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any merit." (2) "As for counts 2 to 10 and 12, we have the testimony of P.W.2, P.W.3, P.W.5, P.W.6, P.W.9 and P.W.10 to whom the accused issued Tanu receipts and collected money, and saying to them as he was

issuing the receipts that he was a Tanu Secretary. No doubt these people accepted the word of the appellant, which of course turned to be nothing but bogus. From the totality of the evidence I see no reason to differ from the finding of the learned magistrate. The appellant was also rightly convicted insofar as these counts are concerned.” (3) On count eleven, “the appellant is alleged to have obtained Shs.6/= by false pretences from one Raphael Kabuye. I fail to see how the learned resident magistrate came to find that the appellant was guilty on this count. Raphael, the complainant, was on the day of hearing the case, registering a conviction on this count clearly took and accepted hearsay evidence. This was improper. There is, I agree, strong suspicion that the appellant also collected money from Raphael, but suspicion no matter how strong cannot be the basis of a conviction in a criminal charge.” (4) “As for the sentences imposed, I first deal with count one. All through the proceedings the appellant has been facing a charge of simple stealing c/s 265. At no stage of the proceedings was the charge in count one amended to read that the appellant was charged with stealing c/s 265 and 271 of the Penal Code instead of simple stealing c/s 265 of the Penal Code.” (5) Conviction on count eleven set aside. 6 months imprisonment in respect of counts one.

42. Rozer v. R. Crim. App. 495 – D- 70: 30/9/70; Biron J.

The appellant was convicted of stealing by public servant c/s and 265 of the Penal. The appellant, an employee of the Ministry of Communications Labour and Works engaged one Gontram at 4/60 per day as a casual labourer on Road Works being carried out by the Ministry during the material period Gontram was paid 115/= for 25 days work when in fact he had worked only one day on the Road Works and the other 24 in the appellant's garden. All the relevant witnesses for the prosecution testified that they were aware that Gontram had been paid by Government for days when he worked in the appellant's garden. At the hearing of the appeal,

the appellant's advocate argued (1) that the prosecution witnesses particularly Gontram were accomplices and the magistrate had not directed himself on the danger of relying on accomplice evidence and the requirement of corroboration and (2) even if all the evidence is accepted the appellant's action did not constitute stealing as no money in the Government's salary for Gontram, ever came into the appellant's possession.

Held: (1) "In *DINKERRAL RAMKRISHAN v. R.* (1957)

E. A. 336 the Court of Appeal for Eastern Africa upheld the submission of counsel for the appellant and I quote from the judgment at page 337" that on the, first appeal the appellant was entitled to have the appellate courts own consideration and views of the evidence as a whole and its own decision thereon". Likewise the respondent is equally so entitled ... particular so, as the law now stands the Republic has the same right of appeal from an acquittal as has a conviction person from a conviction, and the appellant may well be the Republic in a more recent case *SCOTT v. MUSIAL* (1959)2 Q B D. . 429 the Court said at page 437. "Where there is an appeal from the decision of a judge sitting alone, the appeal is by way of re-hearing". There is obviously no distinction between an appeal from a decision of a judge sitting alone, and that of a magistrate sitting alone. (2) there

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Is no rule of law that the evidence of an accomplice requires corroboration, but rather the contrary as expressly laid down in section 142 of the Evidence Act 1967 It is however a salutary of practice to require corroboration of the evidence of an accomplice". (3) "None of the witnesses in this case, with the possible exception of Gontram, really

stood to gain from the offence and even Gontram would just as well have worked for Government in order to receive his pay, as for the appellantunlike the Magistrate directing myself on the dangers of convicting on accomplice evidence, I consider that the evidence as a whole, that Gontram worked in the appellant's garden which was the main factual issue, should be accepted as in fact it was by the Magistrate. Once this evidence is accepted it established the guilt of the appellant without reasonable doubt." (4) "Section 258 of the Penal Code expressly states at sub-para(1) A person who fraudulently and without claim of right takes anything capable of being stolen or fraudulently converts to the use of any person other than the owner thereof anything capable of being stolen, is aid to steal that thing." The appellant by completing the various documents where under Gontram was paid, fraudulently converted Government money to the use of Gontram in return for Gontram's labour on his garden and therefore stole such money". (5) Appeal dismissed

43. R. v. Hilarivis Crim Sass. 85-M-70; 21/9/70; Mnzavas, Ag. J.

The accused was charged with murder c/s 196 of the Penal Code. There was conflicting testimony as to what events actually led to the death of the deceased. The prosecution alleged that the accused, the deceased and other people were driving cattle to Mugumu Primary Court and on the way the accused asked the deceased for Shs. 100/- as a reward for helping him to recover the stolen cattle.. The deceased replied that he had no money to give him and thereupon the accused lowered his gun from his shoulder and aimed the muzzle at the deceased and shot him. Several prosecution witnesses gave evidence to the same effect. According to the defence case, the accused was awaked one night by an alarm from the deceased's house in order to help him to find his missing cattle. After finding the cattle, on the way to Mugumu Primary Court the accused remembered that his gun was loaded and he lowered his gun from his

shoulder and unloaded two bullets. He then pulled the unloading gadget three times but nothing came out and so he was satisfied that there were no more bullets in the gun. He then held his gun the muzzle directed to the ground and pulled its case up with his right hand. As he was doing so a shot fired from the gun and injured the deceased on his left leg. This version of accidental shooting was supported by some witnesses.

Held (1) "Before a person is convicted of a criminal offence the prosecution must establish not only the act or the omission which caused the offence but must over and above also show that the act or omission was done with guilty intention i.e. there was mens rea. No man may be found guilty of a crime unless it is clearly proved that the forbidden act was done with a legally reprehensible state of mind. In the present case there is no dispute that the bullet that killed the deceased was fired by the accused from a gun he was carrying. The prosecution to secure a conviction of murder has to prove that the accused in shooting the deceased did so with the intention of killing the deceased or at least with the intention of causing him grievous harm. The prosecution has tried to prove that this

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Was so but all the prosecution witnesses have been so hopelessly discredited by the able cross – examination by the defence that I can only come to the inevitable conclusion that either the prosecution witnesses were not at the scene when the deceased was shot or if they were there they did not want to tell the court the whole truth. (2) "The testimony of the

accused, supported as it is by Nyanduli (D. W. 3) and Matiko Marwa (P. W. 4) makes me believe that the shooting was without malice aforethought. If the accused positively intended to kill the deceased one would have expected him to have directed the muzzle of his gun at a much more vulnerable part of the body than the deceased's leg. What is even more surprising, if the accused wanted to kill the deceased why should he have waited up to the time they were only few paces to the primary court?" (3) "If a person who intends a result from his acts, or is guilty of indifference as to what would happen, that is, he is reckless in running the risk of what may happen, then he will in my view advert to the result in question. If the result of what he expected is legally reprehensible then he is criminally liable. But as was held in R. v. NICHOLAS (1874) 13 Cox at page 76 – "Where negligence will not do you must be of opinion that the prisoner had a wicked mind, in the sense that she was reckless and careless whether the creature died or not." In the present case the evidence shows that the accused did take care to see that there was no remaining bullet in his gun before he directed the muzzle to the ground as he was pulling the case up but unfortunately as it appears there was still a bullet jammed in the gun and which shot out as the case touched the trigger. I see no recklessness on the part of the accused to warrant this court to proceed against him criminally." (4) Accused acquitted.

44. R. v. Magoma Crim. Sass 169 – Musome – 70, 14/9/70; Mnzavas, Ag. J.

The accused was charged with murder c/s 196 of the Penal Code. One the material date Saba-Saba 1969, a number of persons visited the accused's house where he had they partook of a great deal of "moshi" which the accused was selling. Prosecution witnesses testified that by early afternoon the accused was talkative, incoherent and staggering. The accused started quarreling with his wife and assaulted her. The deceased intervened to prevent the quarrel from taking a more serious turn. The deceased later asked the accused to give him some "moshi" on credit.

The accused did not reply but went behind his house and re appeared carrying hoe with which he hit the deceased on the head inflicting a wound which caused the death of the deceased.

Held: (1) "Although the burden of proving insanity as result of intoxication is on the accused, the burden is not on him to prove that due to intoxication he was incapable of forming the specific intent requiring e. g. to kill or cause grievous harm necessary to prove malice after thought in a case of murder. The burden of proof in this case is always on the prosecution Nowhere in the prosecution case has it been shown or even suggested that the circumstances were such that accused would not have been so drunk as to be unable to form intention to kill or cause grievous harm....." (2) There I consider that the accused did unlawful cause the death of the deceased but that at the time he inflicted the blow his mental faculties were, by reason of drunk, so twisted and prisoner that he could not form the intention to kill or cause grievous harm to the deceased. The accused is acquitted of the charge of murder but is found guilty of the manslaughter of the deceased

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45. Kamuanda v. R., Crim. App. 471-m-70,6/11/70,El-kindy Ag. J.

The appellant, the secretary of the Ngoma Growers co-operative society, was convicted on two counts of staling by a person employed in the public service c/s 270 and 265 of the penal code and forgery c/s 333 and 337 of the penal code. Both counts were based on one transaction. He was sentenced to two years on the first count and twelve months on the

second, the sentence to run consecutively. In addition he was ordered to suffer twenty-four strokes of corporal punishment.

Held: (1) "I agree that there was no evidence to show that this society was a registered one and therefore the provisions of the Minimum Sentences Act do not apply." (2) Following *MANGISTO v. R.* (1967) H. C. D. No. 154 "I cannot see any justification for making the sentences run consecutively. I therefore quash and set aside the sentence on count one and substitute therefore a sentence of eighteen months without strokes. The sentence on count two is adequate but is made concurrent with the sentence of eighteen months."

46. KATWALE & Another v. R. Crim. App. 320 – M – 70, 6/11/70; Kisanga, Ag. J

The appellants, who are husband and wife, were jointly charged with doing grievous harm c/s 225 of the Penal Code. They both pleaded guilty and were convicted and sentenced to 3 years imprisonment. On the material night the appellants were sleeping in different house. The complainant entered the female appellant's house and raped her. She attacked him with a panga and wounded him. She raised an alarm and the first appellant, her husband, came. He too attacked the complainant with a panga and wounded him.

Held: (1) "The particulars of the charge and indeed the medical examination report state that of the 6 out wounds inflicted on the complainant only one amounted to grievous harm. It is not apparent from the facts which appellant inflicted this particular cut wound. This point is significant because if the particular wound was inflicted by the second appellant (the wife) before the arrival of the husband (the first appellant) then the husband could not possibly be held responsible for it. Similarly, if it was inflicted by the husband the wife could not be held responsible for it

unless there was common intention between the two at the time it was inflicted. Such common intention could not be inferred from the given set of facts.” (2) “The fact that an appellant has already been in custody for some time is a consideration to be taken into account in deciding whether or not to order a re – trial (but) this is not the only consideration. That decision would have to depend on consideration of all the facts and circumstances of each particular case. In the present case the wife was entitled to defend herself against the invader who raped her at night. The very fact of rape also must have gravely provoked her and her husband into attacking the complainant for trespassing on their matrimonial rights.” (3) Appeals allowed: convictions and sentences set aside. No order for retrial

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47. MICHAEL & Another v. R. Crim. App. 254 & 255-M-70:

6/11/70; EL-KINDY Ag. J.

The appellants were jointly charged and convicted of rape c/s 130 and 131 of the Penal Code

Held: (1) “The issue is whether the sworn evidence of this girl [a child six years of age] could, in law, corroborate the evidence of the complainant The Court of Appeal, in the case of OLOO s/o GAI v. R. (1960) E. A. p. 86 at p. 90-91`, after quoting the case of KIBANCENY ARAP KOLIL v. R. (1959) E. A. P. 92 held that ‘even where the evidence of the child of tender years is sworn (or, affirmed) then, although there is no necessity for its corroboration as a matter of law, a court ought not to convict upon it, if uncorroborated, without warning itself and the assessor (if any of the danger of so doing’. It does appear therefore that there is a need, in practice, of corroboration of evidence of a

child of tender age before it can be acted upon. In this case the evidence [of the child] needed corroboration, and therefore it could not corroborate the evidence of the complainant.” (2) “I think in this case there was more than the distressed condition of the complainant to corroborate here evidence. She went running towards [three prosecution witnesses] and she pointed out the area near the ant hill as the place where her ravishers were. These people went there and they saw the two appellants there although they started to run away. They the two appellants there although arms, legs and clothes were covered with dust similar to the dust found on the body of the complainant. This evidence sufficiently corroborates the story given by the complainant.” (3) Appeals dismissed.

48. Dhirani v. R., Crim. App. 426-M.70, 12/11/70; Onyiuke, J.

The appellant was charged with causing death by dangerous driving contrary to section 44A of the Traffic Ordinance, Cap. 168. the magistrate found as a fact that the appellant’s vehicle had knocked down the deceased and the deceased died as a result of the injuries sustained thereby and that the appellant drove his vehicle in a dangerous manner. At the hearing of the appeal counsel for the appellant contended that the word ‘dangerous did not mean merely being negligent but involved such a degree did not mean merely being negligent but involved such a degree of negligence that it could be regarded as dangerous.

Held: (1) “The cases cited by the counsel for he appellant were cases dealing with manslaughter. There would have been no need for the subsequent enactment in 1964 of Act No. 41 of 1964 which amended the Traffic Ordinance by adding there to Section 44A which created the offence of causing death by dangerous driving if the burden of proof in that section was the same as manslaughter. It is my view that section 44A of the Traffic Ordinance and the offence of manslaughter by negligent driving do not cover the same ground and what is required to be proved is not the

same in both cases. The areas covered by the offence of manslaughter by negligent driving and the offence created by section 44A may sometimes overlap but they do not cover the same ground.” 92) “It is not open to a person charged with causing death by dangerous driving under section 44A to argue that the prosecution must, in addition to proving that the driving was dangerous, go further and prove that the dangerous driving was due to a high degree of negligence. Dangerous driving due to mere carelessness is such an offence under section 44A as dangerous driving due to deliberate recklessness.” The appeal against conviction was dismissed.

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49. R. v. Marco Crim. Case 126-M-70, 24/6/70; Kimicha J.

The accused was charged with murder contrary to section 196 of the Penal Code. A witness for the prosecution testified that the accused’s mother and the deceased had quarrel on the material date. The mother of the accused told the deceased that if she had bewitched her child she would get her with a panga. In reply the deceased asked whether she too (the mother) would die if she killed her. The accused then emerged from behind the house and slashed the deceased with a panga causing her death.

Held: (1) “I disagree with the three accessors that this reply could have amounted to provocation to anybody. I find this reply to be a simple and inoffensive answer to the statement that was made to the deceased. A mere belief in witchcraft does not amount to provocation in law. It was held witchcraft does not amount to provocation in law. It was held in R. v.

Petro Wabwire s/o Malomo (1949) 16 E. A. C. A. 131 that “A belief in witchcraft per se will not constitute a circumstance of excuse or mitigation when there is no provocative act. In order to succeed on a plea of legal provocation the facts proved must establish the victim was performing in the actual presence of the accused some act which the accused did genuinely believe and which an ordinary person of the community to which the accused belongs would genuinely believe to be an act of witchcraft.” There is no evidence in this case that the deceased performed such an act in the presence of the accused or of the accused’s mother.” (2) The accused was found guilty of murder and convicted.

49. Robert v. R. Crim. App. 367-M-70; 6/11/70; El Kindy, Ag. J.

Appellant was charged with and convicted of burglary c/s 294 (1) of the Penal Code, and two counts of stealing c/s 265 of the Penal Code. he was sentenced to two years imprisonment and twenty four strokes of corporal punishment on the first count and twelve months imprisonment of each of the two counts of stealing. Sentences were to run consecutively. Evidence established that the victims of his burglary and they left their shop-cum[dwelling house at about 9 p. m. for a walk. Before they left, they secured the front and back doors of their house which was one block. In one of the bedrooms was a suitcase and in the store were drums and tyres. When the occupants returned at about 11 p. m. they found that the front door was open and noise creating from the house. They closed this door and made an alarm. On searching the house appellant was found lying in the store and the suit – case was found in the kitchen. On further inspection several clothes were stolen from the wardrobe in the bedroom. Appellant admitted having been found in the house but testified that he was waiting for one of the occupants of the house. From the proceedings, it appeared that the magistrate decided to visit the locus but did not record any notes of his visit.

Held: (1) “If the appellant was waiting for Sarudin, as he claimed, he would not have hidden himself in the store. He would have waited for him, at least in the bed room. An innocent person cannot wait for another while lying flat on his stomach in a state of nervousness and sweating between the tyres and the drums in the store. His presence in the circumstances could not be innocent at all.” (2) “It appears that after the evidence of two witnesses has been taken the magistrate decided to visit the locus, but the magistrate did not record any notes of his visit. It has been held by the Court of Appeal in the case of *MWANJA S/O NKII v. REX* 16 E. A. C. A. p. 142 that: “Where

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a view of the locus is made in a criminal trial and the judge makes notes of what he observed it should appear clearly from the record that these notes were read out in court and that the opportunity was given to call evidence on any point in the notes.” In other words, when a visit is made to the locus, the trial magistrate should make notes of his observation, and that these notes should be read out in Court, and the opportunity be given to call any witnesses to testify on what has been made in the notes. Although this decision was concerned with what a “Judge” did, the remarks are equally applicable to the magistrates (see *SUMAILI S/O BWALA v. R.* 1967/68 H. C. D. No. 12). In this case the learned magistrate did not make any notes on what he observed at the scene. Instead there was an address by the prosecutor as to what the scene looked like. Without deciding whether the prosecutor was entitled to comment as he did, these did not constitute substituted notes made by the trial magistrate. However, I do not consider that this irregularity has caused any injustice to

the appellant in my view, without the visit part of the evidence, there was sufficient evidence to convict the appellant.” (3) “The court ordered that the sentences should be served consecutively thus giving the appellant a total of four years in prison, as the learned magistrate is well aware, all of these offences were committed during one act., and normally sentences, in such cases, are ordered to be served concurrently. He departed from this practice, on the ground that offences of this nature were “rife in Ukerewe District” and constituted “a complete terror to the public owing to loss of property”. He also had on previous conviction of similar nature. As he had given his reasons clearly for making the sentences consecutive, I would not interfere with his discretion” (4) Appeal dismissed.

51. Mtanga v. R. App. 554 – D- 10; 4/11/70; Biron J.

The appellant was convicted on four counts of creating a disturbance in a public place, assault causing actual bodily harm, going armed in a public place and malicious damage to property. The was sentenced respectively to imprisonment for two months, six months, six months all to run concurrently. On the fourth conviction, he was discharged under section 38 (1) of the Penal Code, conditionally that he does not commit any offence for a period of 12 months, Evidence showed that he entered a dance – hall without paying the entrance fee and violently resisted attempts to eject him. In the High Court, the judge considered that there was no merit in the appeal but dismissed the order for conditional discharge.

Held: (1) [His Lordship set out the provisions of S. 38 (1) of the Penal Code and stated] “As immediately before making this order conditionally discharging the appellant, the magistrate had sentenced him to three terms of imprisonment, two to them of six months each, this order following such sentences is not only unrealistic, but I would say ultra vires, as a pre-requisite to making the order the court must be of the opinion,

and I quote: “that it is inexpedient to inflict punishment”, and the court in this case had already inflicted punishment in the form of three terms of imprisonment. The order, therefore, is not only unrealistic, ultra vires, but could even be termed ridiculous.” (2) “With regard to the terms of imprisonment imposed, they are severe, but in view of the fact that the appellant admitted to previous convictions for creating a disturbance, malicious damage, and uttering abusive language, and the magistrate’s direction that

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the appellant was the chairman of the local TANU branch no court, to my mind, would in the circumstances, be justified in interfering with the sentences imposed.” (3) “To the extent indicated that the conditional discharge under section 38(1), is set aside, and there is substituted therefore a term of imprisonment for two months.” (4) [Obiter] “If the magistrate wanted some assurance, as it would appear he did, as to the appellant’s future good conduct, he could have called in aid section 33 of the Penal Code.” (5) Appeal dismissed.

52. Magori v. R. Crim. App. 480-D-70: 4/11/70; Biron J.

The appellant who was employed as a clerical officer in the Immigration Office in Dar es Salaam was convicted of corruption and sentenced to three and half years plus the mandatory 24 strokes.. It was alleged that he received Shs. 150/- from a person who wanted to get a passport. Evidence showed that after the appellant had demanded Shs. 150/- from one Laxman, the later informed the authorities and a trap was arranged by the police who handed over to Laxman some money notes whose numbers had been recorded. The appellant was arrested immediately after Laxman had handed the money to him. Appellant’s story was that Shs. 150/- had

been given to him by Laxman who wanted some change in order to pay Shs. 5/- to taxi driver. This was disbelieved by the trial magistrate. On appeal it was argued (a) that the appellant could not be convicted of corruption in accepting a bribe in connection with the issue of a passport, as it was neither his duty to issue passports, nor had he any power to issue passports. (b) That a statement which had been made by the appellant and recorded by the police was improperly admitted because it was not read over by him before signing it, but only read over to him.

Held: (1) "The section where under the appellant was charged and convicted, was deliberately drafted and enacted in such wide terms in order to spread the net of corruption so wide as to catch and hold even such small fry as the appellant with such limited powers." (2) [The learned judge then set out the provisions of Ss. 3(1) and 6 of the Prevention of Corruption Ordinance Cap. 400 and continued] "Although the appellant's statement made to the police constitutes a defence to the charge laid against him, in that the money was not received corruptly by him, which factor is an essential ingredient of the offence as laid, his statement does constitute a confession to an offence under section of the Ordinance above set out. The question that, therefore, poses itself, was such statement admissible. I think that there is some judicial conflict as to whether, and if so, when, a confession made to a police officer who constitutes a defence to the charge an accused is facing if it also constitutes a confession to some other offence, is admissible in evidence. There is, I think, a dearth of authority on the matter, and the only case I can recall is that of *BAMPAMIYKI s/o BUHILE v. R.*, (1957), E. A. 473. in that case the accused was charged with murder and he made a statement to the police which constituted a confession to arson, and as it did not constitute a confession to murder with which the accused was charged, the judge admitted it. However, on appeal the Court of Appeal for East Africa held," that (i) "the word "confession" in s. 25 of Indian Evidence Act

means a confession of any offence and should not be confined to a confession of the specific offence with which an accused may ultimately be charged.” And that (ii) “The statements made by the appellant to the police officer were wrongly admitted in evidence. I consider myself bound by the ruling in this case and therefore hold that the statement made to, and produced as exhibit ‘C’ was inadmissible.” (3) “It is abundantly clear from the judgment as a

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whole that the magistrate was not apparently influenced by this statement. There is only a single reference to it when setting out the evidence in chronological sequence, and in his examination and directing himself on the evidence, and arriving at the conclusion he did, it is abundantly clear that the magistrate based such conclusion on the weakness of the defence.” Therefore although the production of the statement was improper, it is curable by section 346 of the Criminal Procedure Code.” (4) “In sentencing the appellant the magistrate directed himself, *inter alia*. “However, corruption cases are particularly bad at this juncture and they are even more so when they involve passports. I take a more serious view of this kind of corruption; I sentence the accused to 3½ years imprisonment and 24 strokes.” It was notorious, and could hardly escape judicial notice, that there was, at about the time this particular offence was committed, what was known as the passport scandal’ apparently involving many people in high places and it is obvious that this is what influenced the magistrate in imposing the sentence he did. But as very rightly submitted by learned Counsel for the appellant, it is abundantly clear that the appellant was not involved in this passport scandal. His act was a

purely individual one, and he was not mixed up in any large scale conspiracy concerned with passports.” (5) Sentence reduced to two years imprisonment. Award of corporal punishment stands.

53. Isau & Another v. R. Crim. App. 376/377-D-70; 23/10/70; Makame J.

The appellants were convicted of robbery with violence c/s 286 of the Penal Code. The first appellant, aged 17, was sentenced to two years imprisonment with twenty four strokes whereas the second accused, aged 47, was given three years imprisonment without corporal punishment but ordered to be under police supervision for three years after his release from jail in view of his 13 previous convictions. It was amply established that on 2/3/70, when the complainant was walking along the road, he was invited by the second appellant to follow him and inspect the contents in a pouch which the second appellant had found. The complainant refused and they parted but suddenly the second appellant appeared from the bush and held the complainant on his loins and was then joined by the first appellant. The appellants took the complainant's pouch containing Shs. 56/25 and when they returned it had only Shs. 36/25. The appellants were seen restraining the complainant by other passers by who clearly identified them as the culprits. It was contended that the appellants should have been convicted of simple theft. [Citing Bemeye v. R., (1968) H. C. D. 74]

Held: (1) “With respect, I am unable to agree. The facts of this case are different from those of the case the learned state attorney quoted – BEMEYE v. R. Mwanza Criminal Appeal No. 799 of 1967 (1968 H. C. D. 74) in which the assault was part of a generally belligerent behaviour which had nothing to do with the eventual theft. The evidence in the present case shows clearly that the appellants got the money through a combination of violence and trick. I agree there was not much violence but then violence is a matter of degree. The violence employed in particular

case would, in my view, be relevant only in assessing the sentence. The appellants were obviously acting in concert when one of them pounced on the complainant. They then kept him

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under their effective restraint before they took the pouch away. The complainant's resistance which they overcame was what stood between them and the money. If threatening to use violence before stealing can be held to be enough to constitute robbery I am not persuaded why the use of a little violence should amount to only simple theft." (2) [Obiter] "The records of previous convictions were not sent up with the file. For the guidance of the courts below such records form part of the proceedings and they should be sent up. They show the span of the convicts' criminal career, the frequency with which he has resorted to crime, and punishment he got. These factors help the appellate court in deciding whether or not the sentence given in the court below is appropriate." (3) Appeal dismissed.

54. MWITA and 2 Others v. R. Crim. Apps. 131, 130 & 132-M-70, 13/11/70; El – Kindy Ag. J.

The appellants were jointly charged with and convicted of stealing from the person of another contrary to sections 269(a) and 265 of the Penal Code. In his judgment the Magistrate rejected the accused's defence as "untrue". The evidence was entirely circumstantial.

Held: (1) (following SIMON MUSOKE v. R. (1959) E. A. 715) "Where the evidence is exclusively circumstantial, the court must, before

deciding upon a conviction, find that the inculpatory facts are incompatible with the innocence of the accused and incapable of explanation upon any other reasonable hypothesis than that of the guilt of the person charged.”

(2) “The learned Magistrate misdirected himself on the burden of proof in so far as the defence was concerned. The appellant’s duty was not to prove that their defences were “true”. They are simply required to raise a reasonable doubt in the mind of the Magistrate, and no more. Their defences need not be true at all. (3) Convictions quashed and sentences set aside.

55. R. v. Nyarangi Crim. Case 9- D-70; 25/11/70; Georges, C. J.

The accused was charged with causing death by dangerous driving c/s 44A of the Traffic Ordinance Cap. 168. In reply to the charge the accused was recorded as saying “I plead quality”. He had earlier state “It was an accident”. The prosecutor stated the facts of the case but there was nothing on the record to show that the accused accepted them as true. He was convicted and the case was forwarded to the High Court for sentencing.

Held: (1) “One ought to examine with much care a plea of “guilty” to a charge of causing death by dangerous driving. The accused may intend to do no more than to admit that he was responsible for the accident which caused the death. It is most important to obtain the admission of facts which constitute the offence.” (2) “In her remarks the Magistrate stated as follows: ‘Further, in this case the accused collided with a stationary vehicle TDM 976. Such act cannot be explained but for sheer negligence on the part of the accused’. This seems to import into the Criminal Law the doctrine of *res ipsa loquitur*. This would clearly be a mistake. The Republic should state the specific acts of negligence on which it depends to establish the dangerous character of the driving.” (3) Case remitted to the District Court for accused to plead afresh.

56. Masimba and Another v. R. Crim. App. 171-D-70; 25/11/70; Onyiuke J.

The appellants were convicted of Cattle Theft c/s 265 and 268 of the Penal Code. There were sharp contradictions between the evidence of the complainant and two of the prosecution witnesses with respect to the identification of the cattle in question. The Magistrate's judgment even suggested that the complainant may well have fabricated some of his evidence. The Magistrate's judgment also contained the statements: "They (the accused) say they were helping Pius and Laurent who were in legal possession of (the cattle). There is no independent witness to confirm that the accused were merely helping. The only available evidence is that of (two other accused persons) that accomplices were. Such evidence cannot be accepted unless it is corroborated by independent evidence."

Held: (1) "It was the duty of the prosecution to establish the identity of the cattle by cogent evidence before the accused could be put on their defence to explain their possession of them" (2) "The rule as to corroboration applies to the prosecution and not to the defence. It is wrong to reject a defence merely because it is not corroborated by independent witness." (3) Appeal allowed.

57. Mbogo v. R. Crime. App. 462 – M – 70, 18/11/70, Kisanga Ag. J.

The appellant was convicted giving false information to a person employed in the public service c/s 122(a) of the Penal Code. The person to whom the information was alleged to be given testified that he was employed by the manager of the National Development Corporation.

Held: (1) “A person appointed by the Manager or General Manager of the National Development Corporation who is himself appointed by the Corporation in accordance with provisions of paragraph 20(1) of the schedule to the National development corporation Act No. 20 of 1962 is not a “person employed in the public service” as that term is defined in section 5 of the Penal Code.” (2) Appeal allowed.

58. Joseph v. R., Crim. App. 465-D-70, 25/11/70, Onyiuke, J.

The appellant was convicted of causing grievous harm contrary to section 225 of the Penal Code and sentenced to one year's imprisonment. The facts are accepted by the learned trial magistrate were that the appellant, on returning home found that his son, Petro, aged between nine and ten years, had cooked and eaten an egg he found in the house. The appellant became angry, tied the child's hands together, put them in a heap of dried grass, poured paraffin over the grass and set it on fire. The fingers of the child's right hand except the index finger were completely charred and the three fingers on his left hand were equally badly burnt. The evidence of the child was unsworn and unaffirmed and the magistrate recorded that he did not understand the meaning of an oath.

Held: (1) “It is a condition of the reception for such evidence that the trial magistrate must not only be satisfied that the child understands the duty of speaking the truth but that he must manifestly appear to be so satisfied because section 127 (2) requires him to record such fact in the proceedings. The

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position in this case was retrieved by the learned magistrate's recording the fact in his judgment that 'on being examined by the court the child proved not to understand the meaning of oath but he understood the duty to speak the truth'. It is my view that such examination and record of the court's satisfaction of the child's understanding of the duty to speak the truth should precede the reception of his evidence and should appear as part of the proceedings relating to the child's evidence." (2) "In this case, Petro Florian must be regarded as a child of tender years and his evidence being unsworn or unaffirmed requires corroboration as a matter of law. I am of the view that the learned magistrate was right to regard the appellant's conduct in this case as amply corroborating the child's testimony." (3) "The facts of this case show that the sentence imposed by the learned magistrate was manifestly inadequate. That the child was not burnt to death was due to the fortuitous circumstance of a stranger happening to be passing nearby during the child's ordeal." (4) Appeal against conviction dismissed. Sentence increased to four years.

59. Mfungwa v. R., Crim. App. 659-D-70; 18/11/70; Makame, J.

The appellant was charged on two separate counts of stealing books belonging to the British Council and the Tanganyika Library Service. In her judgment the learned magistrate wrote, "I discharge you absolutely insofar as the offence of stealing the said books is concerned," but went on to record, "this court is empowered to convict the accused with another offence, that of being found in possession of stolen property or being in possession of property suspected to have been stolen or unlawfully obtained under section 312", and later still, 'I find the accused guilty of being in possession of stolen property or property suspected to have been stolen or unlawfully obtained contrary to section 312.'

Held: (1) "The learned Resident Magistrate seemed oblivious of the fact that two counts had been preferred against the appellant". (2) "Section 312 does not cover being in possession of stolen property is the offence of receiving or retaining any chattel etc. knowing or having reason to believe the same to have been feloniously stolen etc. contrary to section 311 of offence, she should have made up her mind that she was finding the appellant guilty under section 311 of the Penal Code. It cannot do to find him guilty under section 311 and/or section 312". (3)"If she was finding him guilty under section 312, the chief objections against this course would be:- i. 312, the chief objections against this course would be:- i. the various conditions to be complied with before one can make a finding of guilty under section 312 were not satisfied. 11. There is a long chain of authorities forbidding a finding of guilty under section 312 of the Penal Code where the property is known, as the learned Resident Magistrate in the present case found, to have been stolen". (4) "In fact there was no conviction. The learned Resident Magistrate sentenced the appellant without convicting him. Section 210 of the Criminal Procedure Code clearly requires that the court shall convict the accused before passing sentence upon him or making an order against him." (5)"Proceedings before the magistrate declared nullity. Sentence set aside. Retrial before another magistrate ordered.

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60. Mpanduji v. R., Crim. App. 531-M-70; 26/11/70; Mnzavas, Ag. J.

The appellant was charged with and convicted of stealing by servant contrary to sections 265 and 271 of the Penal Code and sentenced to two years imprisonment and 24 strokes corporal punishment. The learned

magistrate in his judgment that there was no direct evidence implicating the accused with the offence but he was satisfied that the amount of circumstantial evidence tendered in court was sufficient to find the accused guilty of the offence. He set out the circumstantial evidence as – i. the fact that the accused failed to report the theft to a near-by TANU office; ii. That the accused did not raise an alarm when he realized that money had been stolen; iii. That he did not detain the customer who had entered the establishment with the alleged thief who had disappeared; iv. That he failed to report what had happened to the police station one quarter mile from his shop; v. that he never reported the theft to anybody until two days later when he went to Mwanza and informed his head office.

Held: (1) “I agree that there was evidence to the effect that there was a TANU office near the shop and that a police post was one quarter mile away. One would have expected the appellant to have reported to the police and/or TANU but when cross-questioned the appellant said he was a stranger in Sengerema. He in fact said that he had been there for hardly one month and that he did not know where the TANU office was. Although with diligence, he could have located the office of TANU as well as the police station, this omission on his part does not by itself prove that he stole the money. The allegation that the appellant did not report the loss of money to anyone until two days when he reported to his head office in Mwanza is not supported by the evidence”. (2) “The evidence tending to implicate the appellant was entirely circumstantial. I agree with the State Attorney as well as the magistrate that there were quite a number of separate facts, each of which tended to connect the appellant with the offence. But, in my view, each of these facts was capable of an innocent explanation. As none of the facts was conclusive, the totality of them cannot be said to be sufficient evidence implicating the appellant with the offence. In Herniman vs. Smith (1936) 2 A. E. L. R., page 1389, Greene L. J. when dealing with circumstantial evidence had this to say: - ‘Nothing

added to nothing makes nothing and it is not possible by adding a lot of things together to produce something which you are then entitled to say in the aggregate forms evidence fit to be considered by the jury'. In Chhabldas D. Somaiya vs. R. (1953) E. A. C. A. 144, the Court of Appeal said:- 'A mere aggregation of separate facts, all of which are inconclusive in that they are as consistent with innocence as with guilt, has no probative fore'. (3) (Obiter) "Even if the conviction was upheld I would not have approved the sentence as there was no evidence to show that the society is a registered society. No registration certificate was produced to court". Appeal allowed. Conviction quashed. Sentence and order of compensation set aside.

61. Mwinyijuma v. R. Crim. App. 279-M-70; 20/11/70; El Kindy Ag. J.

The appellant was charged with and convicted of causing death by dangerous driving c/s 214 (1) (a) of the Traffic Ordinance, Cap. 168 as amended by the 1964 act. He was sentenced to three years in prison. On the material date, the appellant, who was a Medical Officer, was driving a motor vehicle rushing to attend an

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expectant mother. As he passed through a trading centre, he overtook another vehicle and in the process knocked down the deceased, who was staggering and appeared in front of him. There was conflicting testimony as regards the speed at which the appellant was driving. Two witnesses who were in the motor vehicle which was overtaken claimed that appellant was driving at 30 m. p. h. and 10-15 m. p. h. respectively whereas appellant claimed that he was driving at 10 m. p. h. The lower court found that appellant was driving at a speed more than 30 m. p. h. since if it was at 10 m. p. h. as appellant claimed, he would have stopped. It was argued

on behalf of the appellant that the evidence of the two witnesses in connection with speed should not have been accepted because it was not established in evidence and also that it was not established in evidence and also that it was opinion evidence [Citing W. Milburn v. Regina 2 T. L. R. (R) 27; and G. M. Paya v. R. (1964) E. A. 529].

Held: (1) "Both these witnesses were in the same vehicle and each person, in his opinion, gave a different assessment of appellant's speed at the time when he overtook them immediately before the accident. Even if the learned magistrate did not misdirect himself on the evidence, opinion evidence cannot be relied on to establish that the appellant in this case was driving at a speed of over 30 m. p. h." (2) There was sufficient evidence to show that the appellant was driving dangerously, taking into account the fact that: he did not make an effort to brake; he did not take proper care when he saw the deceased staggering as if drunk; knowing that he was driving within the vicinity of a liquor market, he did not exercise the care of a reasonable person, the test being an objective one (see R. v. SAWE [1968] H. C. D. 180) (3) Since the deceased appeared to have contributed to his own death and since the appellant resorted to dangerous driving in his sincere effort to attend a patient, the proper sentence ought to have been a fine. Sentence of 3 years was manifestly excessive. Sentence reduced so as to result in immediate release. (4) Appeal against conviction dismissed

62. Mipawa v. R., Crim. App. 774-M-70; 25/11/70; Kisanga, Ag. J.

The appellant was convicted of stealing a book and was sentenced to nine months imprisonment. He applied for bail pending the hearing of his appeal.

Held: (1) "The principle as laid down in the case of Ragbir Sing Lamba v. R. (1958) E. A. 337 is that bail pending appeal should be

granted only if there are exceptional circumstances or if there is an overwhelming probability of the appeal succeeding.” (2) ‘I had an opportunity of perusing the whole record of the proceedings and the memorandum of appeal, and I was of the opinion that it could not be said that there was an overwhelming probability of the appeal succeeding.” (3) “In an attempt to establish exceptional circumstances it was contended that the applicant is only 21 years old so that a person of such tender age should not be brought in contact with hardened criminals in jail because these can have bad influence on him. I think this could not constitute a special circumstance. The applicant is not a juvenile. He qualified to prison and the trial a magistrate sent him to prison even though he had discretion to impose some other punishment such a fine. It was contended that the applicant is a first offender and that there was no likelihood of his absconding, but in the case of

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Lamba cited above, it was held that the previous good character of the applicant would not alone constitute a ground for granting bail pending appeal, and in the case of R. v. A. B. 1 T. L. R. 118 it was held that it would not be sufficient to show that the applicant would have no chance of running away. Lustily it was contended that the applicant who was employed as a clerk has a lot of cash and accounts to hand over to his employer or successor in office, and this would need a good deal of time. To my mind this cannot constitute a special circumstance.” (4) Application refused.

63. Mukambogo v. R., Crim. App. 375-M-70: 25/11/70; Kisanga Ag. J.

The appellant was charged with and convicted of acts intended to cause grievous harm c/s 222(2) of the Penal Code and was sentenced to 12 months imprisonment. Apparently, the lower court assumed jurisdiction under section 6 of the children and Young Persons Ordinance which empowers a District court to try and determinate any offence other than homicide in which the accused is a young person. There was nothing in the record to show that the proceedings were held in a place different from an ordinary court room, nor was there any indication that it was not practicable for the court to sit in a place different from an ordinary court room.

Held: (1) "In doing however it would appear that the court did not proceed as a juvenile court in accordance with the provisions for section 3(1) of that Ordinance. The section provides that, "A district court when hearing charges against children or young persons shall, if practicable, unless the child or young person is charged jointly with any other person not being a child or young person, sit in a different building or room from that in which the ordinary sittings of the court are held." The appellant was a young person and was not on a joint charge with any adult. In order to comply with the above provision therefore the trial magistrate in hearing the case should, if practicable, have sat in a place different from an ordinary court room. It would appear also that this requirement was mandatory by reason of the word "shall used in the subsection quoted above." (2) Conviction quashed and sentence set aside, case remitted back for retrial before properly constituted juvenile court.

64. R. v. Kashinje Crim. Case 545-S-190; 27/11/70; El –Kindy Ag. J.

The accused attempted to hang himself by a rope after he had quarreled with his wife who wanted a divorce. He was convicted on his own plea of guilty for attempted suicides c/s 217 Penal code and sentenced to two months

imprisonment. The trial magistrate observed that the sentence was for the protection of the accused's own life.

Held: (1) "Imprisonment is not considered to be a suitable form of punishment in such cases. There are many authorities, reported and unreported to this effect, such as the case of R. v. MUSA S/O THOMAS 1968 H. C. D. No. 479. The view taken is that a person who attempts to take away his life needs our sympathy as he could very well be mentally sick or weak. As such he should not be punished in this way. The accused in this case appears to have taken seriously the fact that the wife he loved was seeking to end their married life by divorce and rather than face up the situation he decided to take away his life. In a way it was a cowardly act and not a way at all of facing the domestic

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dispute. Essentially, in my view, attempted suicide does not carry the same moral turpitude as, say, theft. I doubt very much, in modern thought, that suicide can seriously be argued as a criminal act." (2) "As the accused has already served his sentence, no useful will be served by revising it."

65. Mahilane and Kulwa v. R. (P. C) Criminal. App. 305 & 306-M-70; 5/13/70
Mnzavas Ag. J.

The appellants were convicted of cattle theft contrary to sections 265 and 268 of the Penal Code by a Primary Court. They appealed against the conviction and sentence to the District Court and their appeals were dismissed. They then appealed to the High Court.

Held: (1) “Although section 19(b) of Cap. 537 does not specifically required a district magistrate to give reasons why he is confirming, reversing, amending or varying a decision of a primary court, it would be good practice for district magistrates to give reasons, if only in a short form, in support of their judgments.” (2) “Under Part VI, Section 28 (1) (2) and (3) of the primary courts criminal Procedure Code, if an accused person admits the truth of a charge the only duty of a primary court magistrate is to record the admission as nearly as possible in the accused’s own words, and then read his admission to him. Then the magistrate (or interpreter) and the accused sign the admission. After this the magistrate proceeds and convicts the accused of the offence and sentences him. In this case, the appellant pleaded not guilty to the offence. The prosecution brought four witnesses in support of the charge, and after their evidence each of the accused was asked to give his defence whereupon the appellant said – ‘Nakubali kabisa niliiba Ng’ombe kwa mlalamkaji had Itale, hadi chakulongo kumwekesha huko’. This can be translated into English as ‘I admit I stole cattle from complainant’s home and kept it at Chakulongo’. The above statement by the appellant is clearly an unequivocal plea of guilty to the offence and the primary court magistrate was entitled to accept it as proper plea of guilty to the offence charged.” (3) “Even if I accept the Republic’s argument that primary courts should read the facts constituting an offence charged to an accused in order to check if the accused admits them before entering a conviction based on a plea of guilty, such a step is clearly unnecessary where an accused changes his plea to one of guilty after he had heard all the necessary prosecution evidence implicating him with the offence.” (4) Appeals dismissed.

66. Lugega and 2 others v. R., Crim. Rev. 78-M-70; 5/12/70; Mnzavas, Ag. J.

The first appellant was the respondent in an affiliation case in the Geita District Court. Judgment was entered against him and after a few days the

applicant applied for execution of the decree by attachment and sale of respondent's movable property. The court broker, armed with an attachment order proceeded to the first appellant's house and attached his movable property. The decree holder complained that the property attached did not meet the amount decreed and the court broker attempted to attach the first appellant's shamba. All three appellants resisted this attempt and were charged with obstruction contrary to section 243 (d) of the Penal Code. They were convicted.

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Held: (1) "The learned district magistrate should not have accepted the application (which appears to have been made under section 3 of the Affiliation Ordinance, cap. 278 of the laws) for the simple reason that the application was made by the father of the girl and not the girl herself. Indeed the girl is not a party to the application. She is happily living with Mohamed together with their child. The only appropriate course in the circumstances would be for the girl's father the applicant in the affiliation case, to file a suit in primary court and claim dowry from Mohamed. The affiliation case having been wrongly admitted any order arising wherefrom was ineffective." (2) (Obiter) "Even if the affiliation case was properly admitted the attachment of Mohamed's shamba was illegal because the attachment order authorized the court broker to attach movable property only. In the circumstances Mohamed had not only a duty, but right to resist the illegal attachment of his shamba." (3) Conviction quashed and sentence set aside.

67. Sakarani v. R. Crim. App. 644-M-70; 27 /11/70; Mnzavas Ag. J.

The appellant and another accused were jointly charged with and convicted of attempted robbery c/s 287 of the Penal code. The appellant testified that on the night of 14/4/70 his house – cum-shop was burgled. The burglars ran away on being threatened by a toy-pistol by the appellant leaving behind a Yellow Sandal. The appellant's wife claimed that she heard the voice of the second accused during the attempted burglary. Yet another witness testified that he met appellant when the former was on his way to the latter's house in response to an alarm. This witness added that he recognized the appellant because there was moonlight and that appellant called him by his name.

Held: (1) "The Question now confronting this court is whether the magistrate was right in basing his conviction on the testimony of a single witness regarding identification of the appellant. In Thairu s/o Muhoro and two others vs. Reginam 21 E. A. C. A. page 187 the Court of Appeal said – "To convict an accused, relying on an identification by a single witness is dangerous, but a conviction so based cannot in law, be regarded as invalid." The court in upholding the conviction went on and said – "In the present case the learned trial Judge very carefully directed himself as to all the circumstances and came to the conclusion that neither P. W. 7 nor P. W. 8 could have been mistaken in their identification.

In an earlier case ABDULLAH d/o WENDO and another Vs. Reginam 20 E. A. C. A. Page 166 the Court of Appeal had this to say – "Although subject to certain exceptions a fact may be proved by the testimony of a single witness, this does not lessen the need for testing with the greatest care the evidence of such witness respecting the identification, especially when it is known that the conditions favouring a correct identification are difficult. In such circumstances other evidence circumstantial or direct, pointing guilt is needed". In yet another case CHANDE SAID Vs. R. Dar es Salaam Cr. Appeal No. 216/63, Biron J. said – "Where the prosecution relies on the identification of the accused by a

single witness, the court should consider not only the credibility of the identifying witness but also the possibility of the witness having made a mistake.” (2) “In the present case the district magistrate believed the bald statement of Antony that he recognized the appellant in a moon-light. He does not say how he recognized the appellant in a moon-light. He does not say how he recognized him apart from saying that he (appellant) called him by his name. I fail to see how a person who had just committed a serious offence could have behaved in a manner which could have led to his immediate identification and arrest.” (3) Appeal allowed, conviction quashed

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68. Johannes v. R. Crim. App. 76 –A-70; -/11/70; Bramble J.

The appellant was convicted on two counts of forgery c/ss. 333 and 337 Penal Code of stealing by a person employed in the Public Service c/ss 270 and 265 of the Penal Code. He was sentenced to 12 months imprisonment on each of the first two charges and two years on each of the other two and awarded 24 strokes of corporal punishment. The prosecution drew the attention of the court to the fact that there were other similar charges pending against the accused who admitted them and agreed that they should be taken in consideration in passing sentence.

Held: (1) “While the taking into consideration of other offences is not a bar to future prosecution on them it will be a factor of which account may be taken in mitigation of sentence which may follow such prosecutions. There is need therefore for some certainty as to what an accused is admitting and the proper practice is for the prosecution to make a list showing the nature of each offence, the place and the date (vide R. v. Hicks (1924), 88 J. P. 68). If the accused further signs this list

there can be no doubt as to what his admissions are and what offences have been taken into consideration. It seems to me that the proper practice was not followed in this case. In this case the admission is too uncertain and will justify interference by the court.” (2) “As to the conviction for stealing contrary to sections 270 and 265 of the Penal Code this comes within the provisions of the Minimum Sentence Act and as the court found no special circumstances the sentence of 2 years and 24 strokes will stand.” I am however, persuaded that he taking into consideration of other offences had influenced the mind of the learned magistrate in sentencing the appellant to 12 months imprisonment on each of the forgery counts.” Sentence on forgery reduced to 6 months imprisonment.

69. Nuru and another v. R. Crim. App. 528/9-M-70; 28/12/70; Mnzavas Ag. J.

The appellants were charged with an convicted of unlawful entry in a National Park without permit and illegal possession of a weapons within the National Park without permit c/ss 14(1), 21(1) and 16(3) (4) of the National Park Ordinance, Cap. 412, and were sentenced to 9 and 12 months concurrent sentence. When facts were stated by the prosecution, the first appellant said: “I agree with the facts but I did not see the ridge made by the tractor,” and the second appellant said: “I agree with the fact but we were not one mile inside the National Park. Moreover there is no ridge there. There is only the road boundary. We were shown only the road as the boundary.” The Republic argued that although the pleas of the appellants to the charges were equivocal, the defect was cured by the facts which constituted the offences to which both appellants admitted as five, and also that even if the appellants did not know that they were in a National Park, they could not be excused from liability because the law under which they were charged created strict liability.

Held: (1) “From the above replies it is clear that although both appellants admitted that they entered the National Park they are both also

saying that they were inside the park because they did not know it was a National Park as there was no boundary separating

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the National Park from normal land. This being the position the equivocal pleas insofar as entering National Park (count one) is concerned cannot be said to have been remedied by the facts." As for the second count, that of illegal possession of weapons. – (The accused were in possession of "pangas") it would appear that the appellants do not qualify their admission to the facts in any way and as such I can only say that they were rightly convicted on their own plea of guilty on this count." (2) "It has been contended that Cap. 412 is aimed at the preservation of wild life from illegal hunting and other illegal activities in national parks and that if it were necessary to prove mens rea it would be difficult or impossible to give effect to the provisions of the Ordinance. I have no quarrel with the above line of argument but it must be remembered that cap. 412 is a penal enactment and as such we are bound to construe its provisions strictly. [Citing HERRAS vs. DE RUTZE (1995) 1 Q. B. 918 NICHOLAS v. HALL [187] L. R. 8 C. P. 322) and LION CHIN AIK v. THE QUEEN [1963] 2 W. L. R. 42.] (3) "In the present case it does not appear to me that the wording of National Parks Ordinance displaced the presumption that mens re is a necessary ingredient before an accused is convicted of an offence under the Ordinance." (4) Conviction on count one quashed.

70. Shah v. R., Crim. App. 626-M-70; 27/11/70; El-Kindy, Ag. J.

The appellant was convicted of permitting a motor vehicle to be driven on the public road with various defects contrary to Sections 43 (a) and 70 of the Traffic Ordinance Cap. 168 and rules 30 (1) (i) and (k) and 69 of the Traffic Rules. The appellant's petition of appeal contained the following grounds, inter alia: "a. the conviction are unreasonable and cannot be supported by evidence in the case. b. The learned District Magistrate misdirected himself in law and on the facts. c. The convictions are against the weight of evidence in the case."

Held: (1) The provisions of Section 315 of the Criminal Procedure code are binding in law and "make it mandatory for the grounds of appeal, relevant to this issue were not only vague but they failed to particularize the alleged unreasonableness of the convictions, the misdirection in law and on fact, and the alleged weight of evidence. If the appellant had been a layman, this Court would have taken the petition differently." (Riano s/o Lenalaima & another v. R. (1960) E. A. p. 960 followed). (2) 'Section 163 of the Evidence act 1967 is not restricted to a witness who is 'hostile or 'adverse'. It is sufficiently wide to include any person who gives inconsistent stories." (3) In a prosecution for an offence under rule 30(1)(i) of the Traffic rules, "what is needed to be shown, by evidence, was that the vehicle was not free of the defects which could lead to the consequences specified. In other words, what are required are the disclosure of facts and not the opinion of whether such facts showed that the tyre was dangerous. Whether the tyre is found to be dangerous or not is something for the Court to decide"

71. Mchota v. R. Crim. App. 561-D-70; 13/1/71; Biron J.

The appellant was convicted on ten counts of stealing postal matter. It was alleged that the appellant, being the postal officer in charge of incoming mail, received certain registered letters and it was his duty to enter receipt

on some forms and dispatch those letters. The letters which the appellant is alleged to have stolen

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Could not be traced and the appellant could not account for their disappearance. The trial magistrate was satisfied that the letters had been received by the appellant and convicted him as charged. On appeal, the High Court observed that the case against the appellant was strong and reviewed its appellate rule.

Held: (1) "The attitude to be adopted by this Court on first appeal was laid down by the Court of Appeal for East Africa in the case of *Dinkerrai Ramkrishan Pandya v. R.* (1957) E. A. 336, where from it is sufficient to quote from the judgment at page 337, wherein the Court upheld the submission of counsel for the appellant:- "that on the first appeal the appellant was entitled to have the appellate court's own decision thereon;" [And see also *In the Glannibanta* (1876) 1 P. D. 283; *Coghlan v. Cunberland* (1998)1 Ch. 704 and *Scott v. Musial* [1959]2 Q. B. 429 to the effect that on appeal from a judge sitting alone is by way of rehearing', (2) on an evaluation of evidence before me "I cannot find it established that although the appellant did receive the genera mail bag which, according to the evidence contained the registered letters, and the same applies to the registered letters received from Lituhi: Although some of these registered letters contained cheques and money orders none of them has apparently been cashed, and beyond the fact that the appellant actually received the ordinary mail bags there is no more incriminating evidence against him to connect him with the disappearance of these letters." (3) Appeal allowed.

72. Chohan and another v. R. Crim. App. 765-D-70; 8/1/71; Biron J.

The appellants were convicted of attempted stealing and sentenced to ten strokes of corporal punishment. It was alleged that they were found by the police unscrewing the bolts of a spotlight on a parked vehicle but did not remove it. Whereupon the police accosted and arrested them. It was submitted for the appellants that: (a) their action in tampering with the spotlight did not constitute an attempt to steal as it did not go beyond the preparatory stage and had not reached the stage of starting to execute the intent to steal by the removal of the spotlight, [Citing *Adam Mulira v. R.* 20 E. A. C. A. 223 and *Hope v. Brown* [1954] 1 all E. . 330] (b) the appellants desisted of their own accord before executing the intent and could not therefore be convicted of attempting to steal.

Held: (1) The cases cited are distinguishable “in that there had been no act beyond the stage of preparation, whereas in this instant cases the appellant in attempting to unscrew the bolts which secured the spotlight had, in the terms of the section [380 of the Penal code] ‘begun to put his intention into execution by means adapted to its fulfillment and had manifested his intention by some overt act.” (2) “The sentence on the first appellant is illegal as his age as given in the charge sheet is sixteen years. He was therefore an adult within the meaning of the Corporal Punishment Ordinance (Cap. 17 Supp. 58) to which the attention of the magistrate is directed, wherefrom he will note that attempted stealing is not punishable with corporal punishment in the case of an adult.” The other appellant is also an adult by now. The age of the other appellant is given in the charge sheet as fourteen years; incidentally, he is also an adult by now, though he was not at the time of the conviction which was on the 3rd of April 1970.” (3) “The sentences are accordingly set aside and there

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is substituted therefore in the case of each appellant a conditional discharge under section 38 of the Penal Code, the condition being that he commits no offence for a period of twelve months.” (4) Appeals dismissed.

73. Tadeio & Another v. R., Crim. App. 630/31-D-70; 1/1/71, Biron J.

Appellants were convicted of housebreaking and stealing c/s 294 (1) and 265 of the Penal Code. The only evidence connecting the appellants with the offence was that given by two young girls aged 12 and 7 years respectively, both of whom gave their evidence unsworn since the Magistrate found and recorded that they did not understand the nature of an oath. In his judgment the Magistrate purported to follow *Petro v. R.* (1968) H. C. D. 260 and *William Murray v. Fatehali Murji* (1968) H. C. D. 390

Held: 1. The Magistrate should have perused the Evidence Act 1967, Section 127(2). “There was no corroboration of the evidence of the two little girls. And it is settled law that evidence which requires corroboration cannot be corroborated by other evidence which itself requires corroborationThe uncorroborated evidence of the two little girls which is the only factual evidence should not have been accepted.” (2) The appeals were allowed.

74. Mkareh v. R. Crim. Appeal (E. A. C. A.) 151-T-70; 27/10/70; Spry, Ag. P., Lutta J. A. & Law Ag. P.

The appellant was convicted in the High Court of Tanzania of the murder of his wife. The most important evidence against him was that of a neighbour, a corporal of police; who testified that the appellant had called him, said “ I have killed; go in and see “and showed him the dead body of his wife. At the trial the advocate for the appellant objected that this evidence was inadmissible in view of the provision of Section 27 of the Tanzania Evidence Act 1967 which states: “27. No. confession made to a

police officer shall be proved as against a person accused of an offence” The trial judge (Georges C. J.) admitted the statement holding that it did not amount to a confession and that it was not made to the witness in his capacity as a police officer.

Held: (1) [Per Spry Ag. P. & Lutta J. A.] “The learned Chief Justice said “It is my view that a statement should be regarded as a confession only when it contains an admission of all the ingredients of the crime with which the accused is charged so that an accused person could be properly convicted on his own plea had he in answer to the charge made the statement which is alleged to be a confession.” We think that is too restrictive a definition. When taking a plea of guilty a court requires to be satisfied that the accused person appreciates and admits all the ingredients of the alleged offence, because only in that way can the court be satisfied at least where the accused person is unrepresented, that he is truly admitting the offence; we think that to apply the same standard to confessions for the purpose of section 27 and other sections of the Evidence Act would be to render those provisions of very little effect. We think the true test is whether the statement is such that in the absence of my explanation or qualification and in the particular circumstances, it points clearly to the guilt of the maker. Thus such statements as “I killed him” and “ I took the money”, unaccompanied by any exculpatory words, and uttered in relation to a person who has died of unnatural causes or to missing funds, as the case may be, are, in our view,

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indicative of guilt and therefore confession.” (2) “As regards the second proposition, we think the wording of section 27 is so clear that it affords no

scope for interpretation or interpolation. What the learned Chief Justice did, in effect, was to interpolate the words “acting in his capacity as such” after the words “police officer”, with respect we do not think he was entitled to do sowhere the admissibility of a statement is challenged on the ground that it is excluded by section 27, and it is held to amount to a confession, the simple test is – “was or was not the person to whom the statement was made a police officer?” if the answer is “yes”, the statement must be excluded. (3) Appeal allowed

75 Masudi v. R. Crim. App. 456-D-70; 5/9/70; Biron J.

Appellant was convicted of stealing by servant c/s 270 and 265 of the Penal Code. it was established in evidence that three aeroplane stand tyres were stolen from the store of the East African Airways at Dar es Salaam air port. These tyres were fitted on the motor scooter belonging to one Juma who stated that he had bought them for Shs. 90/- from the appellant, a mechanic with the East African Airways. A witness, who was also a mechanic with the East African Airways, stated that he saw the appellant with the tyres and asked him where he had obtained them to which appellant replied that he had obtained them from one Kassam, employed by East African Airways as Store-keeper in charge of the very store where the tyres were kept and subsequently discovered missing therefrom. Kassam denied having given the tyres to the appellant and he could not account for the disappearance of the tyres from the store, of which he was in charge. In his judgment, the learned magistrate stated that the appellant could not escape criminal liability because he was only an accessory after the fact or an aider and abettor. On appeal the learned state Attorney submitted that the court should substitute a conviction for receiving the tyres knowing them to have been stolen. The appellant however contended that he did not know that the tyres were stolen but thought that they came from Kassam's car. There was no evidence adduced as to the value of the tyres in the lower court.

Held: (1) "The learned magistrate appears to be confusing an accessory after fact, which is a separate and distinct offence as provided for in section 387 of the Penal Code, with an aider and abettor in the commission of an offence, who is a principal in the commission of such offence, as provided for in section 22 of the Penal Code." There is no evidence to support a finding that appellant aided and abetted the theft of the tyres. (2) The appellant "had been working at the airport as a mechanic or apprentice mechanic, since 1964, it is inconceivable that he did know that the tyres were the property of the East African Airways, and that Kassam could not have come by them honestly I therefore agree with the submission of learned State Attorney that the appellant could have been, and should have been convicted of receiving the tyres, knowing them to have been stolen from the East African Airways Corporation." (3) A person employed in the public service includes "Any person employed by or in the service of the Community, any Corporation within the Community or any Institution of the Community: "and "the theft of the tyres was therefore a scheduled offence under the Minimum Sentences Act 1963. Likewise, receiving such tyres, knowing them to have been stolen, is also a scheduled offence, being item of Part 1 of the Schedule to

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the Act." The appellant appeared in Court as a first offender, Apart from the evidence that the three tyres were sold by him for Shs. 90/- there is not the slightest indication from the evidence as to the value of the tyres. Therefore, there is no evidence that the value of the tyres exceeded such price, let alone the prescribed figure of Shs. 100/-, so as to oust the discretion of the Court, vested in it by section 5(2) of the Minimum Sentences act, that in the case of a first offender, where the value of the

property involved does not exceed Shs. 100/-, and there are special circumstances, a Court can impose a sentence of either ten strokes corporal punishment, or to quote the section :..... "such term of imprisonment as may appear to the court to meet the requirement of the case." (4) Conviction for theft quashed and substituted therefore a conviction for receiving stolen property. Sentenced to nine months imprisonment.

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CIVIL CASES

76. Bashford v. Tuli Matrimonial Cause 4-D-69; 22/1/71; Hamyln J.

The petitioner claimed a declaration that the marriage ceremony which was performed between her and the respondent in 1968 is null and void. The parties met in Ontario, Canada and married under Islamic law before a local Imam. The petitioner thought that at the time of the ceremony the respondent was unmarried and she stressed in her evidence that it was part of the bargain of her marrying the respondent that he was to remain a single man. When the parties went to the respondent's house in this country, he introduced the petitioner to two women as his other wives, whom he had married before his marriage to her. The petitioner then left the respondent immediately.

Held (1) [Citing *Saburannessa v. Sabdu Sheikh and Others*, AIR, 1934, Calcutta 693,] "The marriage under the Mohamedan law is a civil contract and is like a contract of sale. Sale is the transfer of property for a price. In the contract of marriage, the wife is the property, and the dower is the price. I have no doubt that this is the true view of marriage in Mohamedan law and that, while not flattering to the woman, such contract

is subject to the normal considerations which govern such agreements.”

(2) “There is ample evidence on the record (which is not in issue) that the petitioner would never have entered into the marriage contract with the respondent had she been aware of his marital status; such evidence I have accepted, and as a result the Court finds that the woman, in consenting to the marriage ceremony, gave such consent on a completely erroneous conception of a condition precedent. Nor was such error a mere misconception which the petitioner could have, or should have, avoided, for it arose from a deliberate misrepresentation on the part of the respondent. I consequently allow the prayer in the petition as to the marriage and declare it to be null and void ab initio.” [Applying *Abdul Latif Khan and another v. Niyaz Ahmed Khan*, 31 I. L. R. Allahabad (1909) 343 and *Bibi Ahmedun-Niza Begau v. Aki Akbar shah* AIR 1942 Peshawar 19]

77. General Hardware and Tool Mart Ltd. v. Office Machine Company Ltd.
Misc. Civ. App. 2-A-70; 19/1/71; Kwikima, Ag. J.

This is an objection to the ruling of the Rent Tribunal (hereinafter referred to as the Tribunal) fixing standard rent in respect of the appellant’s premises. In a very brief ruling consisting of seven and half lines of type the Tribunal purported to revise the standard rent of the premises without receiving any evidence as laid down under section 4 (1) (b) Rent Restriction Act. No reasons were given as to how the Tribunal arrived at the figure it fixed.

Held: (1) “I entirely agree with Mr. Patel that the Tribunal has to act judicially in exercising its discretion to fix standard rent. Evidence must be heard and recorded. The owner of the premises must be heard unless he does not wish. In this way an appellate tribunal will be able to go into the merits and demerits of the Tribunal’s decision. Indeed the Tribunal has

been urged to take a judicial approach in exercise of its discretion to fix standard rent

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by Georges, C. J. in the case *Mwantange bint Seleman v. Douglas Jay Meclock* 1968 H. C. D. 506 when he ruled: "The discretionary power to alter the standard rent must be exercised Judiciary (my emphasis). This discretion cannot be ascertained until the amount of the standard rent has been ascertained in accordance with the provisions of s. 4 (1), Rent Restriction Act." (2) "The Tribunal was in this case reducing rent previously fixed. It ought therefore, to have heeded the words of the learned Chief Justice. This appeal must therefore succeed." (3) Ruling of the Tribunal set aside.

78. Warsama and Mohamed v. Ibrahim Civ. App. 90-A-70; 19/1/71; Kwikima Ag. J.

The appellant obtained an order from the Court of the Resident Magistrate, Arusha, for the vacant possession of their premises. They duly commenced execution and got the Court Broker to extract Shs. 1. 972/- from the occupant who happened to be not the tenant but a third party, the respondent. He objected to the execution. The Resident Magistrate sustained the objection, declared the respondent a statutory tenant and ordered that the money be refunded to him. The appellants appealed against this order. The respondent argued as preliminary issues that (a) the objection was made under Order 20 r. 57 and any order pursuant thereto is not listed as appealable under Order 40 r. 1 (1); (b) the memorandum had been filed without a copy of the order following the

objection and therefore this appeal could not be heard. (Relying on Kotak Ltd. v. Kooverji [1967] E.A. 348).

Held: (1) The first point of the respondent's argument represented the correct position in law and no legal argument against it would serve any purpose. This is enough to dispose of the appeal. (2) [Distinguishing Kotak Ltd. v. Kooverji [1967] EA 348] In that case, Hamlyn J. based his decision on the earlier case of Munishiran and Co. v. Star soda Water Factory (1934) 16 K. L. R. 50 in which it was held: "that Or. 39 r. 1 is mandatory in requiring every memorandum of appeal to be accompanied by a copy of the decree or order appealed from, and that where an appellant has failed to comply with this provision, the appeal is not properly before the Court and must be dismissed." In this case, however, the learned Resident Magistrate incorporated the order in his ruling, the bottom paragraph of which reads: "In the whole therefore, I rule that the objector is a statutory tenant of the suit premises and the decree passed against the judgment- debtor is not enforceable against him and that the payment of Shs. 1,972/- paid to the Court Broker as a result of the attachment levied by him should be refunded to the objector." No separate order was drawn thereafter and in my view there was no need to draw any further order. The above quoted was sufficiently clear as to constitute such order as is required by law. Accordingly the second leg of Mr. Kapoor's objection cannot be material to these cases, although he succeeds on his first leg. The ruling was an order as well and did meet the requirements of Or. 40 r. 2 (3) Appeal dismissed.

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In a matrimonial cause initiated by the wife for maintenance of herself and two children the respondent/husband was recorded as saying: "I have already got married to another woman. I agree to this divorce application be made." The wife did not say anything, but the court proceeded to grant a decree nisi for divorce noting that this was with the consent of the respondent husband "who has requested for the grant of this application for divorce".

Held: (1) "As noted, the petitioning wife did not utter a single word at the purported hearing of her petition. And in her petition she does not even ask for a divorce, but prays only for maintenance for herself and the two children of the marriage. There, therefore, was not even any prayer for divorce, let alone consent by her for one." (2) "Although by Rule 5 of the Matrimonial Causes (Amendment) Rules 1958 Rule 70(1) was amended as follows: "These Rules shall not apply to proceedings relating to marriages between Africans. The procedure in such proceedings shall be that applicable in civil proceedings in Subordinate Courts, with such modification as may be necessary to comply with the provisions of the Ordinance or as the circumstances may require." The irregularities in this case are so serious and incurable that they are fatal to the order made by the court, which cannot be sustained. (3) Decree nisi set aside. Petition to be re-heard in accordance with proper procedure

80. The National Bank of Commerce v. Reid and Two Others Civ. Case 2-D-70; 9/2/71; Georges C. J.

The plaintiff the successor in title to National and Grindlays Bank Ltd. (the Bank) sued the defendants to recover on a guarantee signed by them undertaking to pay sums due and owing to the Bank by the Imara Plywood Co. Ltd. of which they were directors at the material time. The suit proceeded against Reid, the first defendant, the others having consented to judgment being entered against them. After signing the guarantee

difficulties arose between the defendant directors and the first defendant was brought out by the others. The first defendant then wrote to the bank requesting that the guarantee given by him be released. The Bank refused to release him until the company repaid its indebtedness or until adequate alternative security was furnished. By the terms of the guarantee, the guarantee was binding on the defendants as containing security unless they gave one month's notice in writing to the contrary. The first defendant argued(a)that his letter was a notice to the Bank terminating his future liability as he was entitled to do under the agreement; (b) that the plaintiff was not entitled to sue under the guarantee since it had been given to the Bank and the substitution of the plaintiff for the Bank relieved him of all liability; (c) that the pleading in the plaint contained factual inaccuracies relating to dates of liability; (d) that the guarantee was not adequately stamped contrary to s. 18 (1), (2) and (3) of the Stamps Ord. (Cap. 189) because though the stamp had been crossed, it could be carefully moved from the document and placed on another to fit there appropriately.

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Held: (1) "Basically the letter dealt with releasing the first defendant from his guarantee, an entirely different matter. The Bank's reply confirms that he letter was so understood. They were unwilling to release him unless adequate arrangements had been made. One feels a great deal of sympathy for the first defendant but he appears, though a lawyer himself, to have dealt with this matter in a way which showed little thought for the legal position. Had he terminated his future liability then, his obligations would have been quantified as the amount then due from the Company. If the Bank had not then taken action against him within the prescribed

period he would have been able to take advantage of the Limitation Act. As it was, the Bank made it clear that they were not releasing him from his continuing guarantee unless proper arrangements were made. There is nothing on the record to show that he ever replied to that letter.” “On these facts I find that the Bank had made it plain that they would not release the first defendant from his continuing liability until satisfactory arrangements had been made. Those were never made and the first defendant was not released either from accrued or future liability.” (2) The National Bank of Commerce (Establishment and Vesting of Assets Act) 1967, section 8(1) provides “that the National Bank shall be deemed to have taken over the business of certain banks in Tanzania, including the Bank in this case. Section 8(2) and (3) provide that the assets and liabilities of the banks shall be deemed to be vested in the National Bank upon the effective date. Section 9 deals with the operation of contracts and provides that any instruments to which any of the banks was a party and under which money might be payable to or from the Bank should continue to be of full force and effect and that the national Bank should be substituted for the bank as a party thereto and that the National Bank should be liable to make payments thereunder and should be entitled to receive or enforce payments thereunder. Among the instruments specifically mentioned were guarantees. By virtue of these provisions the plaintiff became substituted as a party to the guarantee given by the first defendant and his co-directors to the Bank. No notice was needed. The substitution was quite involuntary, by force of the enactment.” (3) “A deficiency in a pleading should not be a ground for dismissing a claim unless the situation is such that the plaintiff failed to disclose a cause of action. Paragraph 7 properly pleaded the guarantee and the evolution of rights under it to the plaintiff. Paragraph 8 properly alleged that the Bank and the plaintiff from time to time advanced further sums on mutual open and current accounts of the company with the Bank. Paragraph 9 then set out the total indebtedness. The misdescription is not significant and I would be prepared at this stage

to grant and amendment to correct it.” (4) “Even if initials and date were placed on a stamped. The question is one of degree of difficulty in effecting such a transposition. The question as to whether a stamp has been otherwise effectively cancelled is a question of fact. In this case I hold that the stamp appearing on the guarantee has been effectively cancelled.’ (5) Judgment for plaintiffs with costs.

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81. Motohov v. Auto Garage Ltd. and Others Civ. Case 46-D-66; 19/2/71;

The plaintiff corporation sued the defendants for Shs. 275, 127/10 with interest being the amount due on bills of exchange drawn by the plaintiff on the first defendant and accepted by it and dishonored when presented for payment. The other two defendants are being sued as guarantors on the bills. The plaintiff averred that when the bills were presented for payment on their due dates to Statni Banka Ceshoslovenska, Praha, the same were returned unpaid and still remain dishonoured. The written statement of defence averred that the plaintiff was vague and is closed to no cause of action. The defence further stated and it was argued as a preliminary point at the trial, that the plaintiff was not entitled to bring this action as it was not the holder in due course of all the bills of exchange since the bills were not endorsed in its favour by National and Grindlays Bank, Dar es Salaam, who were the holders of the said bills of exchange on the dates when they became due. The plaintiff then applied to amend the plaintiff by including in the alternative, a claim against the first defendant for Shs. 275, 127/10 being the balance due and owing to the plaintiff for goods sold and delivered by the plaintiff to the defendant between 1963 and 1965 and a further sum as interest. The application to amend the

plaint was opposed on the grounds that: (a) a plaint which discloses no cause of action cannot be amended (Citing *Husseinali Dharamsi Hasmani v. The National Bank of India* 4 EACA 55); (b) the amendment would work injustice to the defendants in depriving them of the defence of limitation; (c) the amendment would introduce a new cause of action.

Held: (1) "Although the plaintiff is now in possession of the bills, it is generally agreed that that in itself does not make t a holder in due course". The plaint showed the Statni Banka as the payee (and therefore holder) and the court could not imply in the plaint what was not there, that the Statni Banka was the collecting agent of the plaintiff. "It is trite to observe that a plaint must set out with sufficient particularity the plaintiff's cause of action." [Citing *Sullivan v. Alimohamed Osman*[1959] ea 239, 244]. "This fundamental rule of pleading would be nullified if it were to be held that a necessary fact not pleaded must be implied because otherwise another necessary fact that was pleaded could not be true." Therefore the plaint does not disclose a cause of action. (2) The Hasmani case was not followed by the Uganda High Court in *Gupta v. Bhamra*[1965] EA 439 because (a) the Hasmani decision "rested on the interpretation of the Indian Civil Procedure code and Rules, which Rules have the same effect as if they were enacted in the body of the Code; whereas in Uganda the Civil Procedure Rules are made by a committee under powers given by the Civil Procedure Ordinance, which specifically provides that such Rules must not be inconsistent with the Ordinance. Thus, the Uganda O. 7 r. 11 (a) could not be applied inconsistently with s. 103, of the Ordinance;" However I cannot over-rule a case decided by the Court of Appeal, though I have little doubt that Hasmani's case will no longer be held good law by the same court should the occasion arise, but this court cannot made such departure on the application of the doctrine of

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stare decisis.” But “a court where it is bound to follow a higher court is bound to follow the decision of such higher court and not what was said by the judges constituting the court in arriving at such decision, except what was necessary for the decision, whatever else was said by such judges being obiter dicta, which does not bind the courts;” “All that Hasmani’s case decided is that in claim on a dishonoured bill of exchange brought in a plaint filed as a summary suit under Order XXXVII of the Indian Civil Procedure Code, which disclosed no cause of action, the plaint could not be amended by adding further ingredient factors to the claim as laid, or by an amendment adding an additional claim for money had and received by the defendant for the use of the plaintiffs.” “What Hasmani’s case does not lay down is that a plaint filed in ordinary form claiming on dishonoured bills of exchange which disclosed no cause of action cannot be amended by adding a claim in the alternative, based on the original contract which in fact was the actual consideration for the bills of exchange drawn and accepted, as is sought in the instant case.” (3) First objection to the court’s power to amend the plaint is therefore rejected. (4) In support of the second ground of objection to amendment, the defendants cited a number of English cases which are no longer good law. The law in England is now laid down in *Mitchell v. Harris Engineering co. Ltd.* [1967] 2 All E. R. 682. “However, since independence and the abolition of appeals to the Privy Council, the English authorities are no longer binding on this court.” (Citing *Rashid Moledina v. Hoima Ginners Ltd.* [1967] EA 596. (5) “Very few cases are altogether alike, and each must be decided on its own merits.

The over-riding principle is laid down in the very Rule itself, that “The court may at any stage of the proceedings allow either party to alter or amend his pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties”. “The making of amendments is not really a matter of power of a court but its duty, so that substantial justice may be done.” In this instant case, “apart from the fact that even in the plaint as it stands there is a reference in paragraph 6 to the agreement between the parties, and the very bills of exchange each and every one of them gives the invoice number or numbers under which they are drawn, in view of the fact that the defendants themselves have set up the agreement between the parties and its implementation, not only as a defence to the claim but also as a set-off and as the basis for a counterclaim against the plaintiff, it appears to me most unrealistic even to allege that the amendment sought introduces a new cause of action and one that is time-barred.” (6) Leave to amend the plaint granted.

82. Mbegu v. Chauzi (PC) Civ. App. 79-D-70; 23/9/70; Pandu Ag. J.

In proceedings by the respondent/wife for maintenance of her children, a dispute arose as to the custody of the children. The appellant / husband alleged that the respondent decided to start planting crops on the strip. The appellant and the owner of the land objected to this move. Whereupon the appellant took the dispute to court. The Primary Court held that the respondent

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Held: (1) "In Muslim law it is a rule in cases of separation that children should remain in the custody of their mother till at the age of seven. But even at this age it is not flatly that the custody is to return to the father, but the law directs that after seven years a child should be asked, before the two parents, as with whom is he/she going to live and whoseever custody the child chooses it is to be accepted. In case of mother's death or say mental defect; this right is to be transferred to the maternal side, to mother's sister or mother etc. on the other hand, the principle of interest of child's welfare demands that children in general and particularly those under the age of seven should be in the custody of their mothers. It is the duty of thus Court to positively have in mind when deciding any matter in which children's well being is in question. The age of the children involved in this case are, the elder about 5¹/₂ years and younger just over a year." (2) Children to be in the custody of their mother.

83. Shechambo v. Mbuli (PC) Civ. App. 120-D-70; 17/2/71; Hamlyn J.

A sale of land was agreed to between the parties and the purchaser entered into possession; "he thereafter carried out some small improvements to the land but failed to pay the purchase-price or an part thereof. The seller therefore sued the purchaser for the land and not for the purchase-price and it would seem that this decision on the part of the purchaser was made in view of the great shortage of cultivated land in the area. The plot, it appears, adjoins the land of the seller and is separated there from by a small stream which shows the boundary. The District Court decided that, in view of the non-payment of the purchase-price of the land, the purchaser had failed to carry out his part of the bargain and that the whole agreement failed. The assessors were of similar opinion.

Held: (1) "It may be that this decision was based on the local law of the area where the land is situated and the District Court was careful to order that, when the seller re-took possession of the land under the Court

Order, he should pay compensation to the purchaser for such improvements as he had made to the plot. I consider that this Court should not interfere with the decision of the District court, as it is probably based on local usage and it would therefore be wrong for me to apply other and totally foreign rules to the decision of this dispute.” (2) The District Court should proceed to assess the value of the improvements made by the appellant to the property and hereafter order the payment of such amount to him by the respondent. (3) Appeal dismissed.

84 Bombo v. Gadiye (PC) Civ. App. 20-A-70; 12/2/71; Kwikima Ag. J.

The respondent was given permission by an owner of land to use a narrow strip of land as a cattle track so that the respondent’s cattle would not trespass on the appellant’s adjoining shamba. The respondent decided to start planting crops on the strip. The appellant and the owner of the land objected to this move. Whereupon the appellant took the dispute to court. The Primary Court held that the respondent

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should vacate the strip on recovery of Shs. 20/- from appellant for improvements made on the strip. The District Court reversed holding that permission given to respondent to occupy the strip could not be withdrawn because respondent had been in occupation since 1963

Held: (1) “This clearly is a very serious misdirection as the case of Kisema Ndutu v. Mahselo Mishinga 1968 H. C. D 8 shows. In that case the plaintiff was permitted to cultivate a piece of land by the defendant’s father. Eight years later the defendant withdrew the permission. The Court

found itself unable to infer adverse possession as there was no evidence that Sukuma law would permit such inference. Such is the case here. The learned District Magistrate had no evidence to infer adverse possession under Mbulu/Iraqi law for a period of about seven years only. So that when Kwatlema or Ami sought to dispossess the respondent, they were fully entitled as the Primary Court rightly concluded. The learned District Magistrate would have been entitled to reverse the Primary Court, however, had the respondent occupied of twelve years or more (Paskasis Bwahan v. Aloys Cyrilo 1967 H. C. D 117). The respondent was a tenant at will and no notice to quit was required. This, of course did cause the respondent some loss for which compensation was commendably ordered. The respondent's insistence on continued occupation in spite of the termination of this tenancy is unjustified despite the contrary view of the District Court." (2) Appeal allowed.

84. Mukungye v. Tegamaisho (PC) Civ. App. 88-M-70; 28/1/71; Kisanga Ag. J.

This is a suit to redeem a clan shamba which is alleged to have been sold by the respondent's brother to the appellant. The Primary Court allowed respondent to redeem the shamba on condition that he paid Shs. 300/- to the appellant being the purchase price which appellant had paid for it. The District Court affirmed but ordered that respondent to pay compensation of Shs. 900/-. No details were given as to how the District court arrived at the figure of Shs. 900/-. The appellant appealed on the grounds that (a) the respondent was not entitled to redeem the shamba because the Customary Law (Limitation of Proceedings) Rule (G. N. 311 of 1964) whereby the time of limitation for proceedings "to recover possession of land or money secured on mortgage of land" is 12 years does not speak of redemption where there is an outright sale as in this case so that the period applicable here was 3 months only; (b) the amount of compensation was

patently inadequate; (c) the money awarded to appellant was made payable over too long a period.

Held: (1) “It would seem to me that the expression “proceedings to recover possession of land” is very wide. It is not limited to proceedings to recover possession of land, arising out of any specified transactions respecting that land. I am, therefore, of the view that this expression includes proceedings to recover possession of land, where there was an outright sale of that land. It, therefore, follows that the respondent was entitled to redeem the clan shamba within 12 years from the time the right accrued to him,

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and from the evidence it is clear that that right was still subsisting at the time he instituted the proceedings in 1968.” (Citing Evarister Martin v. Apolinary Tibishumbwamu [1968] H. C. D. 412.) (2) In assessing compensation, the correct thing to do “would be to itemize the award by showing the number of coffee and banana trees and the value of each tree as is generally accepted in the area. I believe that by breaking down the award as suggested above, it would make it more apparent, especially tot eh parties, that justice has not only been done but appears to have been done. (3) Case remitted back to District Court with a direction to make a fresh order for compensation in respect of improvements based on the number of banana and coffee trees to be ascertained by him, multiplied by the value of each tree.” (4) Respondent’s salary had been attached (to the extent of 1/3) for a considerable time before the suit and it was therefore reasonable to allow him 12 months within which to redeem

the shamba. (5) Appeal allowed to the extent that District Court is to reassess the compensation.

86. Mwanamvua v. Shabani (PC) Civ. App. 14-A-71; 9/2/71; Kwikima Ag. J.

The appellant/wife sued the respondent/husband for a declaration that their marriage had been dissolved by the respondent's act of returning her to her parents and demanding the dowry back. There were allegations by the respondent that appellant was denying him sexual intercourse giving excuses such as illness or being in the menses whenever she was requested. The dispute reached the appellant's father who offered to keep his daughter and refund the dowry. The learned Sheikh who tried the case found that the respondent's act of accepting back the "mahari" (dowry) constituted "Talaka ya Kinaya" (implied or constructive divorce). The District Court confirmed but ordered the appellant to pay Shs. 400/- to the respondent as "khului". She appealed from that order.

Held: (1) "There is no question that the law governing this appeal is that of Islam, but owing to the presence of several Islamic Sects, it has been held by this Court that it is necessary to specify which school of Islamic Law should govern the case (See Adamu Mtondo v. Likuna Omari 1968 H. C. D. 289). The notorious fact that most Tanzanian indigenous Muslims are Sunnis of the Shafii sect is judicially noticeable. The other Muslim sects are those to which Asiatic, Arab or other non-indigenous Muslim Tanzanians belong. Over these people, our Primary Courts have no jurisdiction. It therefore follows, by analogy, that only cases governed by the Sunni Shafii School of law are triable by the Primary courts normally. Unless Muslim litigants prove to the contrary, the Primary Court shall apply the Sunni Shafii law, and according to that law, this appeal is determinable." (2) "It is safe to conclude from (the evidence) that the appellant did unreasonably refuse her husband sexual intercourse. According to Islamic Law, she became "Nashiza" on so doing, thereby

forfeiting all her rights for maintenance (El Buhriy “Nikahi” s. 50 p. 9)”. (3)
“With due respect to the learned Sheikh I am unable to see how he could have reached such conclusion in view of the fact that it was solely

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due to the appellant’s persistent frustration of the respondent that the latter agreed to part with her on condition that she should refund the “mahari” paid to her. If there was any divorce, it must have been “at the initiative of the wife” as Section J, put it in the case of El Haji Salum Mbogoromwa v. Asumini Ngobesi 1968 HCD 383. Had the refund been made, the divorce would have been a “khula” divorce and the refund, the “khului.” As things went, the Court declaration was illegal as the respondent had recalled his wife before the khului was paid to him. The Khula divorce would have been complete upon the respondent’s legal wife until the respondent agreed before the district Magistrate to divorce the appellant on payment of Shs. 400/- “khului.” The “khula” divorce was pronounced by the District Court, in other words.” (4) “The only question remaining in this appeal is whether the Court could fix the amount of “khului” payable by the wife seeking divorce. The amount itself is negotiable by the parties inter se. should the parties fail to agree, it is only fair that the Courts are able to intervene and fix a sum arrived at by the Courts are able to intervene and fix a sum arrived at by the Court itself.” (5) “In this case Shs. 400/- fixed by the Court cannot be o unreasonable as to warrant interference.” (6) Appeal dismissed.

87. Msowoya v. Msowoya Civ. Rev.4-D-70; 5/3/71; Biron J.

A worker employed by the National Housing Corporation, Dar es Salaam met with a fatal accident as a result of which an award of Shs. 29,000/- was made for his dependents under the Workmen's Compensation Ordinance (cap. 263). Three claimants appeared; the worker's father, his widow, and his step mother. In accordance with section 12(1) of the Ordinance, the award was allotted equally between the father and the widow. The father filed an appeal against the allotment arguing that the sum awarded to him was too low; that he was solely dependent on the deceased worker; that he had discharged all the worker's debts; that the widow had no issue and was likely to remarry. The widow on the other hand filed a petition for revision of the award under s. 79 Civil Procedure Code arguing that the magistrate who made the award acted with material irregularity which resulted in injustice; that she should have been awarded the whole or a substantial portion of the sum in issue. In his ruling the magistrate had stated that he took into account that the widow had no issue, that she was likely to get married; and that the ordinance ignored African customary law where by the stepmother would not have been ignored as a dependant.

Held: (1) No appeal lay from an award by the District Court. (Citing section 12 (6) of the WORKMEN'S COMPENSATION with an order of the district court in revision if it appears to the Court there was an error material to the merits of the case involving injustice, in the words of the Magistrate' Courts act, or in the words of the Civil Procedure Code, the court exercised its jurisdiction illegally or with material irregularity." (3) Dependant means a member of the family of the worker, who in relation to a native is any of the person referred to in the First Schedule to the Ordinance, and who was dependent wholly or in part on the earnings of the

deceased worker. The schedule does not mention a stepmother as being a member of the family of the worker. (4) the magistrate did not made any specific award to the deceased's stepmother but merely took into consideration that she was dependent on the deceased's father who in turn was dependent on the deceased. (5) On my view of the evidence and the proceeding as a whole, I am very far from persuaded that the magistrate acted with material irregularity, in the words of the Civil Procedure Code, or that in his apportionment of the award there was an error material to the merits of the case involving injustice, in the words of the Magistrates' Courts act. I therefore consider that this Court would not be justified in interfering with the magistrate's Solomonesque judgment and order apportioning the compensation awarded equally between the widow and the father of the deceased." (6) Petition for revision dismissed.

88. Whiteside v. Jasman Civ. Case 4-M-70; 13/1/71; Onyiuke J.

This claim was for Shs. 110, 000/- being special and general damages for negligence. The plaintiff approached the defendant in his professional capacity and complained that she had missed her menstrual period for two months. Defendant examined her externally and internally on three successive occasions between 15th January 1969 and 10th February 1969 and stated to plaintiff that she was not pregnant. He recommended a D and C. operation to bring her to her normal menstruation cycle. The operation was done but it resulted into a lot of pain and bleeding to plaintiff which persisted despite defendant's assurance that the pain would go away. When plaintiff consulted another doctor, it was found that she was about 12 weeks pregnant. The Regional Medical Officer Mwanza also confirmed this after a clinical and pathological test. Defendant then

suggested that the pregnancy be terminated as there was a risk of giving birth to a very deformed baby. A second D and C operation was performed to terminate the pregnancy and this again resulted in pain and bleeding. Plaintiff consulted various doctors in Mwanza and Dar es Salaam who testified as to her suffering and bleeding and how this might be due to an improper D and C operation or an incomplete termination of pregnancy. At no time did Defendant before carrying out the operations care to have a "urine for pregnancy test". In his defence, defendant denied the negligence and stated that he did the first D and C. operation because plaintiff told him that she had had one sometime in her life which had solved the subject of her complaints and insisted on having another one.

Held: (1) "I accept plaintiff's evidence and find as a fact that the plaintiff's complaint was amenorrhea and nausea." (2) "The evidence in this case shows that while the defendant was not able to detect pregnancy in the plaintiff on the 13th February 1969, Dr. Desouza had no difficulty in detecting one on the 26th February and a nurse on the 1st plaintiff as per him note exhibit D4 – three months

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amenorroea, cervix closed and firm should at least have deepened his suspicion of pregnancy instead of negating it. The second method is by biological test. The commonest method is urine for pregnancy test. It is virtually fool proof and can detect pregnancy as early as 7 to 14 days after a missed period. From the evidence it seems to be the most natural thing with doctors, that is to say, the most common practice to carry out this test in cases of suspected pregnancy. Dr. De souza did it. Dr. Placci did it in November/December, 1969 and Dr. Nayar did it on 1st March

1969. The defendant did not do it. Why?" he stated that he did not do so because any urine can be produced by a patient and I cannot be sure that the specimen produced to the laboratory actually belongs to the patient and because I will receive the results after about a month from dare s Salaam. I do not have time to take specimen from each and every patient. The first part of the defendant's answer is unconvincing and verges on the ridiculous. The second part is equally unsatisfactory. It will be disastrous to society if a doctor fails to take the normal precautions or to follow the normal medical practice or a universally accepted procedure on the ground that he is a busy man. What is worth doing at all is worth doing well. This was not an emergency case where a matter of life and death was involved and the doctor was racing against time. The plaintiff could afford to wait and the defendant had all the time he needed." (3) A person by holding himself out to give medical advice or treatment impliedly undertakes that he is possessed of skill and knowledge for the purpose. Secondly, when consulted by a patient he owes the patient:- (i) a duty to take care in deciding whether to under take the case; (ii) a duty to take care in deciding what treatment to give; (iii) a duty of care in his administration of that treatment. A breach of any of these duties can ground on action for negligence by the patient. (See Volume 26 Page 17 Halsbury's Laws of England 3rd Edition). (Citing Neville v. Copper [1958] EA 594 and Mahon v. Osborne [1939] 1 All E. R. 535). (4) "In determining whether the duty of are has been discharged b a doctor regard must be had to the fact whether he observed the universally accepted procedures. With the foregoing as the back-ground, I will then proceed to consider the circumstances of this particular case." (5) "It is common ground that if the D & C was properly done it would have terminated the pregnancy. The D & C operation by the defendant did not terminate the plaintiff's pregnancy. The defendant called this state of affairs as incomplete D & C. whatever the defendant may choose to call it the result was the frequent bleeding and pains which the plaintiff testified she experienced and the mental

anxiety to which she was subject. (6) "Whatever may be the reason for plaintiff's present posture in court I am satisfied that she consented to the termination of the pregnancy because she believed on reasonable grounds that the D & C although of 13th February, 1969 had adversely affected the foetus and she was not in a mental state to face the prospect of having a physically abnormal child." (7) The plaintiff's condition (Pelvic inflammation) 'Was consistent with a previous history of improper D & C although it could be due to other causes. Such other causes may be due to venereal diseases or the introduction of STAPPLOCUCUS STREPTOCUCUSSTREPTOCOCCUS into the uterus arising from bad

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hygiene. It is not the defendant's case that the plaintiff's condition was due to these other causes I find as a fact that the D & C operation 17th March, 1969 was performed negligently and that that accounts for bleeding and pains which the plaintiff subsequently experienced." (8) The effect of the negligence on plaintiff's capacity to conceive was negligible. (9) Plaintiff suffered intense pain as a result of defendant's negligence in carrying out the D and C operations plus the inconvenience of irregular vaginal bleeding which at times caused ANXIETY NEUROSIS. (10) Shs. 12,000/- awarded as general damages plus a total of Shs. 850/- special damages.

89. Ramadhani v. Mohamed (PC) Civ. App. 43-D-70; ?; Saidi J.

The appellant claimed a piece of grazing land. The court did not believe that he had a right to the land claimed but went on to observe that even if his claim succeeded it would not help him.

Held: (1) “Even if the claim were to succeed the appellant would not benefit at all, because the whole area has recently been declared an ujamaa village. What all parties have to do now is to join in this ujamaa village or quit the area and start a residence elsewhere. It may be that the land allocating authority would consider giving the appellant an alternative piece of land elsewhere so that he may go on with his grazing and cultivation as before.” (2) Appeal dismissed.

90. Nyema v. Lupogo (PC) Civ. App. 99-D-70; 1/3/71; Hamlyn J.

The appellant sued the respondent for damages for adultery with his wife. The Primary Court awarded him damages of Shs. 800/-. The District Court reduced the damages to Shs. 700/-. On appeal to the High Court,

Held: (1) “In so far as the quantum of damages is concerned, it is clear that the sum of Shs. 800/- is very excessive and ought to have been reduced by the District Court. The District Court magistrate, in considering the amount which ought to be allowed has made the following observations on the records:- “The respondent claimed Shs. 800/-. This amount appears to be well out of proportion. After all, the woman herself appeared to have had no interest with the respondent. She kept herself ready to move with anyone she approved. As such it would be quite improper to condemn another person for the looseness of the woman”. I think that the district Court magistrate has very fairly described the circumstances surrounding this matter and has given very sufficient reasons for his differing from the decision of the Primary Court. I can see no objection whatever to such decision. (2) Appeal dismissed.

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91. Mwanyemba v. National Insurance Corporation Misc. Civ. App. 24-D-70; 18/2/71; Onyiuke J.

The case arose out of a claim by the appellant against his employer, the National Insurance Corporation, under the Employment Ordinance cap. 366. The appellant's claim was reported to the Magistrate by the Labour Officer under s. 132 of the said Employment Ordinance, whereupon the Magistrate treated the case as a civil suit and ordered the respondent to file a written statement of defence which was done; after various adjournments the case was finally settled on the 2nd day of September 1970. The Magistrate minute that the case is marked settled. The decree based hereon was for respondent to pay Shs. 390/- to the appellant and for the case to be marked settled. The appellant at the hearing of this appeal concedes that the case has been settled and that he has been paid the agreed sum of 390/-. He has however appealed on the ground that he has been out of work for the period the case was pending and wanted Compensation for this.

Held: (1) I am of the view that in so far as this is an appeal from the decree passed in this case it is incompetent under s. 74 (3) of the Civil Procedure Code which provides that "no appeal shall lie from a decree passed by the Court with the consent of the parties". If however the appellant thinks he has any other claims against the respondent he should take proper steps for obtaining relief and should not come by way of appeal." (2) Appeal dismissed.

92. Masuka v. Sigonjwe (PC) Civ. App. 97-D-70; 16/3/71; Hamlyn J.

This case was filed by the adulterer against the husband as a claim for custody of a child born of the wife, of which the adulterer claimed he was the father. The wife admitted adultery with the claimant and said that he was the true father of the child. The claim failed both in the Primary and

the District Courts because according to Gogo customary Law, every child born during the subsistence of the marriage is a child of such marriage. On appeal to the High Court;

Held: (1) "It would of course be quite improper to allow the claim of the woman in circumstances such as these, or even to accept such evidence as having any bearing on the matter, Furthermore, there is no proof of non-access over a considerable period of time and, had there been such, the fact of paternity would have had to have been proved aliunde and not by the mere asseveration of the mother. It is clear that the local customary law contains not only basic robust common-sense but that it also accords with more sophisticated codes in this matter." (2) "The Ruling of the two Courts below is clearly correct and to hold otherwise would cut at the root of much of the marriage bond." (3) "The child is declared to be the son of the husband of the woman and is consequently placed permanently in his custody as the true father." (4) Appeal dismissed.

93. Herman v. Ndava (PC) Civ. App. 2-A-70; 1/3/71; Kwikima Ag. J.

The appellant was ordered to pay Shs. 250/- damages to the respondent by the District Court for defamation of character. The claim was brought under Chagga Customary Law and the facts

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Were admitted by the appellant in the Primary Court were the respondent had been awarded Shs. 500/- damages. The District Court reduced damages to Shs. 250/= and commented while doing so: "According to the

Chagga customary law, if somebody abused a name of another person, compensation is one goat and one cow or Shs. 250/-

Held: (1) “Unless Chagga custom varies from village to village, I cannot but disagree with this observation. This same court noted in two recent cases that the customary damages were one goat for a commoner and one fattened goat (Ndafu) for a chief. In the absence of evidence to show that the custom in fact varies from one part of Chaggaland to another, I cannot accept the comment as the correct statement of the law. Accordingly the respondent is to receive Shs. 50/- or one goat.” (20 “As the institution of the chief has long become an anachronism, I presume the respondent will have to be content with a mere goat and not necessarily a fattened one (Ndafu)”.

94. Mwakagata v. Verji Civ. App. 23-D-70; 18/3/72; Biron J.

The appellant filed a claim for Shs. 5,000/- for damage to his vehicle and Shs. 7,000/- for the loss of use of the vehicle. He alleged that the damage was due to the negligent driving of the respondent which resulted in a head-on-collision between his and respondent's vehicle. The defence of the respondent was that the collision was caused by the negligence of the appellant who was driving on the wrong side of the road (his right side) and he (respondent) swerved from his left to his right side in order to avoid an accident. When the appellant was swerving back to his left side the two cars met in a collision. At the trial the respondent called a witness, the police inspector who visited the scene of the accident and who testified that according to what he saw, the accident took place when the respondent's car was on its correct side of the road. Relying on this, the Magistrate found for respondent and dismissed appellant's claim. On appeal it was argued that the inspector was not a witness of truth and his evidence should not have been accepted.

Held: (1) That on the first appeal, the appellant was entitled to have the appellate court's own consideration and views of the evidence as a whole and its decision thereon. (Citing DINKERRAI RAMKISHAN PANDYA v. R. [1957] EA 336, 337). (2) Whilst as appellate court has jurisdiction to review the evidence to determine whether the conclusions of the trial judge should stand, this jurisdiction is exercised with caution; if there is no evidence to support a particular conclusion, or if it is shown that the trial judge has failed to appreciate the weight or bearing of circumstances admitted or proved, or has plainly gone wrong, the appellate court will not hesitate so decide. (Citing PETERS V. SUNDARY POST LTD. [1958] EA 424 and SELLE AND ANOTHER V. ASSOCIATED MOTOR BOAT COMPANY LTD. AND OTHERS [1968] EA 123). (3) According to the inspector, "the collision took place on the respondent's correct side of the road. This evidence (sic) is in direct contradiction to not only the evidence of the appellant but that of the respondent himself, as from the original averment in his written statement of defence". "As

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Remarked, the respondent's evidence is equivocal, but at very lowest he categorically stated that he had left his own proper side of the road before the collision occurred, therefore the inspector's evidence – which, as noted, is opinion evidence – that the collision occurred on the respondent's side of the road is contradicted by both parties, that is, by the drivers of both vehicles." In all the circumstances, the evidence of the inspector cannot be accepted." (4) It is clear that the respondent left his proper side of the road and has failed to discharge the onus of justifying

such a course. (5) Appeal allowed, case remitted to District Court to take evidence on the quantum of damages.

95. Zabron v. Amon Msc. Civ. App. 3-D-71; 15/3/71; Georges C. J.

This is an appeal from a judgment of the trial magistrate finding that the appellant was the putative father of a child born to the respondent and ordering Shs. 80/- per month maintenance. Evidence showed that appellant had written to the father of the respondent admitting paternity. He also admitted to the respondent's aunt that he was the father. Furthermore, the appellant had signed, before a Probation officer a document containing an admission of paternity and promising maintenance of Shs. 50/- a month. The appellant now denied paternity, argued that he had not read the document he signed and that the evidence of the aunt should not have been accepted as she was a relative of the respondent. It was further argued by the appellant that the affidavit sworn by the respondent to initiate the proceedings was not adequate because it did not disclose a cause of action and that the claim was time barred.

Held: (1) "On the evidence before him it appears to me that the magistrate could have come to no other conclusion but that the appellant was the father of the child. The appellant's admission to the respondent's aunt, the letter to her father and the agreement before the Probation Officer provide abundant corroboration of the respondent's testimony." (2) It is true that as a relative the aunt's evidence would have had to be looked at with a certain amount of care, but having regard to the documentary admission made later the magistrate was entitled to find, as he did, that she was speaking the truth and that the appellant had admitted paternity shortly after the birth of the child." (3) The appellant argues that under section 12 of the Affiliation Ordinance, Cap. 278 the forms and procedure to be followed in any proceedings under the Ordinance shall be as near as practicable as in ordinary civil cases before

subordinate courts The Ordinance does not provide that the Civil Procedure Code shall be applicable. It merely states that the court shall, as near as practicable, follow the procedure in ordinary civil cases before a subordinate court. Section 3 of the Ordinance makes specific provision as to the method by which proceedings under the Ordinance are to be commenced. They are to begin with an application by a complaint on oath to a magistrate for a summons to be served on the man alleged to be the father. The magistrate to whom this application is made Can refuse to issue the summons if he thinks that the application is being made for purposes

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of intimidation or extortion, and he is not to issue the summons unless he is satisfied that the man alleged to be the father has been asked to provide maintenance for the child and has refused to do so. Once the magistrate has considered these issues and has granted a summons then it would appear to me that the proceedings have been properly commenced and no objection could be taken that the affidavit did not disclose a cause of action.” (4) In fact the affidavit in this matter set out all the matters required by the Ordinance. (5) “The Ordinance provides four periods of limitation. The complaint may be made:- “(a) before the birth of the child, or (b) at any time within 12 months from the birth of the child, or (c) at any time thereafter upon proof that the man alleged to be the father of the child has within 12 months after the birth of the child. There was evidence from the respondent, however, that after the birth of the child in September, 1963 and before 1965 when the appellant left Mbeya he did give soap, clothes and other things for the child.” Once a father provides

maintenance for a child born out of wedlock within the first 12 months after birth a complaint can be made under section 3 (c) of the Ordinance at any time. (6) It can be argued that subsection (c) speaks of payment of money for the maintenance of the child whereas in this case the evidence was of the provision of maintenance in kind. I am satisfied, however, that a father who uses his money for the purpose of buying items necessary for the maintenance of his child born out of wedlock and later hands these items over for the use of the child can be said to be paying the money for the maintenance of the child. (7) Therefore the application was not time barred. (8) Appeal dismissed.

96. Mkindi v. Dushoker Misc. Civ. 5-A-70; 16/3/71; Kwikima Ag. J.

This is an appeal against the order of the Arusha Rent Tribunal reducing the rent payable to the appellant by the respondent from Shs. 75/- to Shs. 50/-. The ground of appeal was that the Tribunal had no evidence on which to base its order. The ruling of the tribunal stated: "In the absence of [evidence any [the Tribunal did not accept Shs. 75/- per month as standard rent.

Held: (1) "This ruling was made after the Tribunal had visited the suit premises and after hearing both sides and offering them opportunity to contradict each other. It cannot be said, with all respect to the appellant, that the Tribunal did not have evidence upon which to base its ruling. Contrary to the submission by counsel for the appellant, the Tribunal had every right to disbelieve the appellant on account of her failure to produce electricity bills. The chairman and members saw her and were in a position to gauge her demeanour. At any rate one cannot say from its ruling that the Tribunal did disbelieve her simply because it reduced the rent. The Tribunal is not supposed to give reasons for its ruling. (2) "With great respect to the Tribunal, the ruling is worded in the most unfortunate

manner. For it was not for the appellant who was then the respondent to prove that Shs. 75/-

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was justified. It was for the respondent as applicant to prove that Shs. 75/- was excessive rent for the suit premises. The ruling appears to be prejudiced in the tenant's favour. It is as if the Tribunal was saying. We will grant any tenant/ applicant his prayer unless the landlord/respondent proves that the prayer is unreasonable." "This cannot be a judicial approach to the matter, really. It is always for those who allege to prove their allegations, be they tenants or landlords." (3) Case referred back to tribunal for the applicant/respondent to prove that rent was excessive.

97. Mungi v. Chapila (PC) Civ. App. 41-D-69; 25/2/71; Hamlyn J.

This is an appeal from the judgment of a District Court sitting as an appellate court from Primary Court. The ground of appeal is that the District Court acted improperly in failing to record reasons why additional evidence was heard on appeal as required by s. 17(a) of the Magistrates Courts Act.

Held: (1) "It is true that the District Court, on deciding to record additional evidence itself, did not give the reasons for so doing, but I note that learned counsel for the appellant did not go so far as to say that, because of such omission, the additional evidence taken by the District

court should be disregarded by this Court. Nor do I consider that such disregard would be possible, for the requirements of the section concern matters of procedure alone, while the basic duty of the Court is to ascertain the true facts, so that it can come to a just decision. It seems clear that such evidence was desirable in the circumstances of the case and, while this Court must note that the magistrate in the District Court did not comply strictly with the section, the evidence recorded must form a part of the record and must be taken into account in reaching the conclusion.” (2) Appeal dismissed.

98. Ng’anzo v. Chobu (PC) Civ. Rev. 3-A-70; 11/3/71; Kwikima Ag. J.

This is an application seeking to move the High Court to exercise its revisionary power to cause a District Court to hear the matter on appeal after dismissing the same for non-attendance by the appellant. The applicant stated that his advocate wrote several times to the District Court requesting it to fix a hearing date but none was fixed and the appeal was dismissed without his knowledge.

Held: “There can be no doubt that the petitioner was not afforded reasonable opportunity to pursue his appeal. Accordingly I hereby set aside the order dismissing the appeal ex parte. The record is remitted to the District Magistrate, Babati, with directions to reopen the appeal and thereafter to proceed according to law

99. Executor of the Estate of Hasham v. The Commissioner of Estate Duty. Misc. Civ. App. 8-A-70; 13/3/71; Bramble J.

This is an appeal against a decision of the Commissioner of Estate Duty by which he ordered estate duty to be paid on a Policy of Insurance. The sum of Shs. 44, 460/- was paid to the employers of the deceased for the benefit of his dependants. The sum was due under a Group Term Assurance Policy operated

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by the employers for the benefit of their employees. One of the rules of the policy was that the benefits under it were strictly personal and could not be assigned or charged or alienated in any way. According to s. 12 (1) of the Estate Duty Ordinance (Cap. 527), no estate duty is payable in respect of the proceeds of any policy of assurance (b) "in or over which the deceased had at no time during the three years immediately preceding his death any interest or power of disposition.

Held: (1) "The instant case falls squarely within the provisions of Section 12 (1) in that the deceased never paid premiums and never had any interest or power of disposition. I will therefore, allow the appeal with costs and order that the sum of Shs. 44,460/- be exempt from estate duty." (2) Appeal allowed.

100. Nyanda v. Dudodi and Ndilewa Civ. App. 2-M-70; 28/1/71; El-Kindy Ag. J.

The appellant was one of eight defendants against whom an ex parte judgment had been passed. The defendants were partners in a firm styled "Umoja Store and Industries" which held an agency for tractors. Two tractors were ordered by the respondents (the original plaintiffs) and each paid a deposit of Shs. 7,830/- and 8,000/- respectively. The tractors were not delivered. The respondents then filed a suit to recover Shs. 15, 830/-

plus costs and interests naming the eight partners as defendants. None of the defendants filed a written statement of defence and the case was proved ex parte. The appellant appealed on the grounds that: (a) the suit was filed wrongly at law in that the claim if at all is against a firm 'umoja store and Industries'. Formed by 9 partners and not 8, and the suit is bad for misjoinder of defendants; (b) alternatively the respondents did not prove that the appellant had received the amount claimed; (c) that the judgment and decree of District Court were not definitive and conclusive. The respondent on the other hand argued that the appeal was time barred because article 164 of the Indian Limitation 1908 gave a time limit of 30 days which had passed.

Held: (1) "The record clearly showed that the learned counsel had asked for an adjournment of this case to enable him to produce the alleged certificate of registration which would have shown the exact number of partners, but he did not do so. It is not, therefore, open for him to argue this point of misjoinder before me In the absence of evidence to the contrary, the evidence on record, on balance of probability showed that the partners were eight people and that the appellant was one of them." (2) The respondents had proved that the appellant had received the money and was now accountable for it. (3) "Basically I agree that a judgment should be in the form stipulated in Section 3 of the Civil Procedure Code i. e. a reasoned decision on various issues which arose for consideration, and the decree should reflect what the judgment decided. In this case, the learned magistrates accepted the evidence led by the respondents as supported by the documents which were produced in court, and came to the conclusion that the evidence has established the respondents' claim against the partners. Nothing which was

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led by evidence was contested and therefore there are no issues to be resolved. Hence, there was no need for the learned magistrate to write a lengthy and reasoned judgment.” (4) However, the decree was not in the proper form. But Section 73 Civil Procedure Code shows that a decree should not be reversed purely on technical grounds unless it has resulted in failure of justice. There was no failure of justice here and therefore the decree is not to be reversed. (5) This was an appeal and not an application to set aside an *ex parte* judgment and therefore it is article 156 and not article 164 of the Indian Limitation act 1908. The time of limitation for an appeal as laid down by article 156 is 90 days and as this time had not expired, the appeal was not time barred.

101. Ishani v. Nkwama and Ishani Misc. Civ. App. 3-A-70; 16/3/71; Kwikima Ag. J.

This is an appeal from the order of the Arusha Township Rent Tribunal fixing standard rent in respect of the appellant's premises. The grounds of appeal were that: (a) the tribunal erred in disregarding evidence of the appellant and his architect; (b) the tribunal's ruling and order were arbitrary and contrary to evidence on record; (c) the appellant was not granted an opportunity to cross-examine the Government valuer. The record showed that the tribunal fixed a date on which the appellant was to cross-examine the Government valuer but the cross-examination never took place.

Held: (1) “With great respect to the appellant it is not clear how he could reach the conclusion that the ruling was in disregard of the evidence. The ruling itself reads: “after considering the evidence on record, the valuer's recommendations and paying a visit to the suit premises, the Tribunal fixed standard rent as follows.” It cannot be said

from the wording of the ruling that the Tribunal “disregarded the evidence” or that it acted arbitrarily and contrary to the recorded evidence unless the word of the Tribunal is to be doubted. It would be pointed out with promptness that it is not for this court to entertain appeals questioning the integrity of the Tribunal or that of any other juridical body from which appeal to this court lies. The Tribunal need not give reasons for its decision.” The tribunal may act normally provided the informality does not offend against natural. [Citing COLONIAL BOOT COMPANY v. DINSLAW BYRAMJEE AND SONS 19 EACA 125 and FANNCECA v. AMROLIA [1957] EA 263]. (2) “This court has repeatedly reminded the Tribunal that its functions are quasi-judicial and they must for that reason be exercised judicially. Section 9 (10) of the Act creating the Tribunal clearly lays down so. The Tribunal which is graced by the services of a legally oriented secretary should pay due deference to its parent act. Only recently, this court (Georges C. J. presiding) again reminded the Tribunal in the case of Kaderali v. Iceland Milk Bar 1970 H. C. D 234 that “(The act – Section 28) clearly contemplates that both sides to the dealing with facts before the (Tribunal) and controverting them”. In this case the Tribunal flagrantly disregarded its own order, its parent act and the rule audi alteram partem. It cannot be said to act and the rule audi alteram partem. It cannot be said to

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have reached its decision judicially in terms of Section 9(10) of its parent act, in denying the appellant opportunity to controvert the Government Valuer, it failed to comply with Section 28 of its parent act as well.”

Application remitted to Tribunal with instruction to allow the appellant opportunity to cross-examine.

102. Ottoman Bank v. Ghau Civ. case 63-D-60: 25/3/71; Georges C. J.

The plaintiff filed a plaint in 1960 against the defendant claiming a sum of Shs. 425, 174/17 due from the defendant as guarantor for credit facilities granted to H. Ghau and Company Ltd., (the debtor company). In the alternative, plaintiff claimed that an account is taken of the sum due; an order for the payment of that sum is made: and in default of payment, the property charged as security is sold. A high Court judge made a preliminary decree for the taking of accounts. In June 1962 the Registrar rejected accounts filed by the Bank on the ground that they were not sufficient; that they did not show what was due in sufficient detail to allow the advocate for the defendant to challenge any items therein. In November 1970, the matter came again before the Acting Registrar. He decided that the accounts filed were not in proper form because they began with the sum claimed as due plus interest over the appropriate period and costs. This assumed that the amount claimed in the plaint was in fact due and this could not be the case as the preliminary decree was for the taking of accounts and not for the sum claimed as due. The plaintiff now challenges this finding in this application. Three issues were discussed: (a) whether the registrar had power to pass accounts; (b) whether the High Court had power to entertain the present application; (c) whether the ruling of the Registrar in 1962 had made the subject of the application res judicata.

Held: (1) "The power to take accounts is not given to the Registrar under Order XLIII Rule I. The Acting Registrar thought that taking of accounts could be said to be part of the process of execution and so could fit in under Order XLIII Rule I (i). With respect I do not agree. In this case the accounts could lead only to the passing of a final decree after which

questions as to execution would arise. It would appear that in his official capacity the Registrar does not have power to take accounts.” “It is, however, always within the powers of the judge with the consent of the parties to refer to a third person the investigation and decision of any issue which can more appropriately thus be dealt with. It is true that the proceedings do not specifically show that the parties agreed to this reference of accounts to the Registrar. [But they did not object]. The attempt to resile now from theirs acquiescence is belated and I would hold that the Registrar as a person to whom the task of taking accounts was delegated by the judge without objection by the parties has by virtue of such delegation the right to carry out the delegated functions.” (2) “Where, as in this case, a Court delegated to an official the performance of any functions with respect to a suit it must clearly reserve to itself the right to ensure that these functions are properly and legally performed. The delegation of authority is not a divestment of authority. Control remains with the Court. The fact that

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the order delegating authority makes no specific mention of the reservation of control is, in my view unimportant. The Registrar would be taking accounts on behalf of the Court and reporting his findings to the Court. If such findings are clearly erroneous on the facts or on the law it would be an extraordinary situation if the Court was unable to correct what had been done. Therefore the court is entitled to review the ruling made by the Registrar to satisfy itself of its correctness. (3) [Citing s. 9 of the Civil Procedure Code as to res judicata] “A prerequisite for the operation of the doctrine is that there should have been a former suit in which the

issue allegedly res judicata has been decided. There has been no former suit in this case. There has been one suit in which a preliminary decree has been passed. The Court has ordered the taking of accounts. Difficulties have arisen in carrying out this order. It would seem to me that either party would be at liberty to return to the Court for rulings on the method of going about the performance of the task which the Court has delegated. So long as no final order has been passed the Court can give instructions as to the appropriate form of the account." The ruling of the Registrar cannot in my view be the basis of re judicata as far as the form of the account is concerned. (4) "An account setting out the transactions between the plaintiff Bank and the debtor company in the normal course of Banking Business is an adequate account for presentation as the basis of the taking of the accounts. If the defendant challenges the accuracy of any deposit or withdrawal then this will have to be proved in the normal manner." (5) Plaintiff Bank succeeds in its application.

103. Bahawari v. Bahawri (PC) Civ. App. 70D-70; 29/3/71; Pandu J.

The appellant was ordered by the Primary Court to pay Shs. 1,550/- to the respondent as maintenance of his wife for the period of 17 months and 18 days. The District Court affirmed the order and this appeal was then brought. The grounds of appeal were that: (a) the local courts had no jurisdiction in the matter as the parties were Arabs from Arabia; (b) the wife was living in her husband's father's house and therefore there was no obligation to maintain her.

Held: (1) "When the need for the claim to be instituted in Court arose the appellant (then defendant) was residing here where he carries on business and, as such, under section 18 (a) of the Civil Procedure code 1966, the Court is competent to deal with the suit as here is where he carries on business." (2) "On the other hand, the appellant did not raise this objection to the Court of first instance and this being an appellate

court he cannot-without being satisfied that “ there has been a consequent failure of justice”, and I am convinced that there is no such failure – entertain this objection as provided under section 19 of the Civil Procedure Code.” (3) “Here for the wife to be living in her father’s or husband’s father’s house (as the two are brothers) is a very weak reason for the appellant to base his argument against maintaining his wife. The reason is father weakened by the fact that the husband at the moment is not at home but in far away foreign country.” (4) Appeal dismissed.

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104. Harji v. Harji Misc. App. 17-d-68; 22/1/71; Hamlyn J.

The respondent/landlord filed proceedings for recovery of his premises having determined the tenancy by service of Notice to quit on the appellant/tenant. Appoint was raised that the premises were “mixed” and the matter was referred to the Rent Tribunal. The Tribunal held that the premises were “mixed” and that the tenant was protected. On appeal, the High Court held that although the premises were mixed, they were by operation of the Township Rules only commercial premises. The matter was remitted to the District Court which gave judgment for the landlord on the ground that the tenancy was illegal. The tenant appealed on the grounds that: (a) there was a misrepresentation by the landlord at the time of making the lease that the premises were “mixed” (b) the landlord was estopped from claiming that the tenancy agreement was illegal; (c) the landlord is entitled to no remedy at all and the status quo ante should be restored.

Held: (1) There was misrepresentation by the landlord. "There is some evidence (though it is not very clear) that the landlord himself had occupied the premises as a dwelling-house; certainly, the alterations made to the building by him are hardly consistent with them being ship premises only, and it is, of course, possible to mislead an intending tenant by the carrying out of such works without the making of any oral misrepresentations. But I can find no indication on the record that any representations made by the landlord (whether by act or by word) amounted to a willful misrepresentation as to the character of the building, and the very fact that the landlord appears himself to have used the premises in a manner which violated the provisions of the Township Rule would seem to indicate that he himself was unaware of the character of the user permitted by law." "In Edler v. Auerbach (1949) 2 A. E. R. 692, which was a case in which the facts were somewhat different from the present case, the Court observed that the covenant as to user was not per se evidence that the parties contemplated an unlawful performance, because they might have intended to obtain the consent of the local authority. In deed, in so far as it is possible to ascertain the terms of the tenancy agreement, it did not preclude the tenant from obtaining any necessary permission from the Council, nor even to enter into possession at all." (2) The doctrine of estoppel does not apply to the case. (3) "The landlord, in filing his plaint, does not appear to have relied on the tenancy agreement, but on the rights of an owner of property against an occupier. Had he confined himself to the terms of the agreement alone, without making any alternative plea, this Court might have had to support the arguments of learned counsel for the appellant and to refuse aid. This aspect of the matter was fully discussed in Mistry Amar Singh v. Kulubya (1963) 3 A. E. R. 499 and a similar position arises here. As the plaintiff neither was obliged to nor did found his claim on the agreement which (in one aspect) was unlawful, he was at liberty to put forward his case for consideration quite apart from the oral agreement." (4) Appeal dismissed.

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105. Kilango v. Kilango (PC) Civ. App. 36-A-71; 25/3/71; Kwikima Ag. J.

The appellant/wife sued for divorce on the grounds that the respondent/husband was not maintaining her. The Primary Court ordered the marriage to be dissolved. On appeal, the District Court ordered the appellant to pay two cows and Shs. 10/- in view of the fact what she was the one seeking divorce. On further appeal.

Held: (1) "The learned District Magistrate was clearly imposing "Khului" on the appellant who had merely come to as for "fashki", that is, dissolution of marriage by court. "Khului" is only payable when the wife seeks to move her husband to pronounce the Talak on her. But where the wife seeks to move the court (Kadhi) to dissolve the marriage on some matrimonial offence such as neglecting to maintain the wife, then the principles of "talak khula" do not apply. Instead the court should find out whether the matrimonial offence is proved and should there be proof, then the court should, on its own motion, pronounce the marriage dissolved. This is all in accordance with the Sunni Shafii School of law to which all indigenous Tanzanians of the Muslim faith subscribe." (2) Order of "Khului" set aside. (3) The appellant proved on a balance of probabilities that the respondent was not maintaining her. The Primary Court order dissolving the marriage is therefore confirmed. (4) The respondent shall be bound to maintain the appellant during her period of Eda provided she observes the rules of Eda. (5) Appeal allowed

106. Haji v. Gangji Civ. App. 32-D-70; 22/3/71; Georges C. J.

The appellant was ordered to pay Shs. 2, 800/- being arrears of rent and to deliver vacant possession of premises. He did not appear at any stage of the proceedings which were determined ex parte. There was evidence that he had gone to India. The ground of appeal was that the magistrate had not taken into account whether or not it was reasonable to make an order for vacant possession as is required by s. 19(2) Rent Restriction Act (Cap. 479). The Court also considered whether the appeal was lodged out of time.

Held: (1) "The brief judgment does not indicate positively that the magistrate considered this issue of reasonableness. The absence of the direct statement to that effect in judgment is not, however, in my view, fatal." (2) [Citing Lalji Gajar v. Karim, (1969) H. C. D. 294]:- An appellate court may presume that the court of first instance addressed itself to the question of reasonableness even if no express reference is made to such aspect. (3) Because the appellant had left for India and 5 months had elapsed without any rent being paid, it was patently reasonable to make an order for vacant possession. (4) "This application was heard and dismissed on 27th October, two days before expiry of the period within which the appeal should have been filed. On that very date the appellant applied for a copy of the judgment in order to seek remedy by way of appeal. He received the copy of the order on 9th November and notice of appeal was filed on

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10th November, some two weeks after the period had expired. In these circumstances I do not think that the appeal was out of time as the period of waiting for the copy of the order ought not to be counted.” (5) Appeal dismissed.

107. Benjamin v. Welu Civ App. 2-D-71; 30/3/71; Biron J.

The respondent/wife filed a petition in the district Court claiming from the appellant/husband maintenance. Although the wife was prepared to resume cohabitation, the husband [not stated at the trial that he did [wish to live with her any more. He also submitted that the wife was not entitled to maintenance because she had deserted him. The basis of the husband’s argument was a letter written by the wife to him, requesting for a divorce. The trial magistrate took into account the fact that the wife failed to bear her husband children since their marriage in 1951, and the fact that the husband was now living with another woman who had borne him a child and construed the letter as merely explaining ‘her misery, i. e. her inability to bear her husband children’.

Held: (1) “With respect, I fully agree with the magistrate as to the construction he put on the letter. I accept the wife’s explanation which she gave in front of me – both parties appeared in person at the hearing of this appeal – that she was sick at the time and her husband had brought the woman Martha to her house and therefore she had written that letter in desperation. This letter by a sick woman in the particular circumstances in which it was written could be said to be on a par with her attempt to commit suicide, which was certainly an attempt to leave her husband.” (2) The magistrate’s finding that the husband was in desertion is fully supported and justified by evidence. (3) Appeal dismissed.

108. Jaffer v. Umoja Wa Wanawake Wa Tanzania Misc. Civ. App. 10-D-70; 25/3/71; Biron J.

Application to ascertain standard rent was brought by the respondent/tenant who had rented the premises at Shs. 1, 150/- per month. The respondent alleged that there were defects due to disrepair in the premises. The Tribunal ascertained the standard rent at Shs. 1, 150/- because the premises were let on the prescribed date (1/1/65). The Tribunal went on to reduce the rent to Shs. 800/- per month stating that they consideration had visited the suit premises and taken into [its condition and the fact that the landlord had failed to carry out repairs and maintenance. Against this order an appeal was lodged on the grounds inter alia that: (a) the tribunal erred in reducing the standard rent without sufficient evidence on record that the suit premises needed repair; (b) the tribunal acted against the principles of natural justice in not inviting and/or not informing the appellant when visiting the suit premises and giving appellant an opportunity to challenge any evidence which may have come to the knowledge of the tribunal.

Held: (1) The tribunal may proceed informally provided the informality does not offend against natural justice. [Citing FATEHALI ALI PEERA AND OTHERS v. ONORATO DELLA SANTA

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[1968] H. C. D. 414 and COLONIAL BOOT COMPANY v. DINSHANWA BYRAMJEE AND SONS (1952) 19 E. A. C. A. 125]. (2) It is against natural justice to decide a case on a point noted by the Board as a result of its own efforts and not specifically communicated to the parties so as to

allow them an opportunity, if they wish, for contradicting it. In Sharif Marfudh v. Joseph Austine Marulo, Miscellaneous Civil Appeal No. 3 of 1967, I said:- 'Obviously' a Board can take into account its own knowledge of what rents are in a particular area for a certain type of accommodation. Often it may have fixed the rent itself and would be well aware of the pattern. The Board cannot, however, find out 'from the neighborhood as to the rent chargeable', and then act on that. It would be acting on evidence which the parties have not heard and have had no opportunity of challenging.' [Citing R. v. PADDINGTON AND ST. MARYLEBONE RENT TRIBUNAL, EX PARTE BELL LONDON AND PROVINCIAL PROPERTIES LTD. (1949) 1 All E. R. 720 and BOARD OF EDUCATION v. RICE [1915] AC 120]. (3) Although by section 9 of the Rent Restriction Act 1962, hereinafter referred to as the 'Act' – "In its determination of any matter, a Tribunal may take into consideration any evidence which it considers relevant to the subject of the inquiry before it, notwithstanding that such evidence would not be admissible under the law relating to evidence," however, by subsection (10) of the very same section – "The proceedings of a Tribunal shall be deemed to be judicial proceedings." A Tribunal could hardly be said to act judiciously or judicially if it offends against the cardinal principle of audi alterem partem. I would therefore, uphold Mr. Bhimji's submission that in this case there has been a denial of natural justice." (4) "A Rent Tribunal is the creation of statute. It has no inherent power but only those vested in it by statute. The Act, as noted in section 29 lays down a procedure whereby a tenant who wishes to have the standard rent of premises rented by him reduced on account of he stated of repair of such premises, could apply to the local authority for a certificate in that behalf. To my mind, it is a condition precedent before a Tribunal could reduce the standard rent on account of the state for repair of premises, that the tenant should obtain such certificate from the local authority, though naturally once a certificate has been obtained, that would not preclude the Tribunal itself from visiting and viewing the premises,

should it be considered necessary to do so I make no excuse for declaring as a general rule that before a tribunal can reduce the standard rent of premises on account of the state of repair, there must be before it, as a condition precedent, a certificate from the local authority, as provided for in section 29 of the act above set out.” (5) Appeal allowed.

109. Mwalifunga v. Mwankinga (PC) Civ. App. 118-D-70; 23/2/71; Biron J.

The respondent obtained a divorce from the appellant’s daughter on the grounds of her desertion. The primary court awarded him back four of the six head of cattle he had paid as dowry. The primary court took into account the fact that the daughter was at fault in deserting the respondent and that the parties had lived together for nine years and had one child which died. [Applying Para. 54 of the Law of

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Person (Government Notice 279/ 1963).] On appeal, the District Court ordered that all the six head of cattle be refunded. They so ordered because: (a) the appellant was aware of his daughter’s bad behaviour towards her husband at it was he who had represented her in divorce proceeding; (b) “the women of this country have a habit of enriching their fathers by leaving their former husbands to the marriage of another in order that when the question of a return of the bridewealth paid by the former husband who has been deserted comes into consideration, part of it is given to the father of the girl after he has received another bridewealth from the new husband,” which habit should be discouraged; (c) the appellant had received new bridewealth from another man in respect of the deserting daughter.

Held: (1) "The Primary Court made a generalisation as to the practice of women leaving their husbands in order to obtain additional bride-wealth or bride-price for their parents, which practice, the court said, should be discouraged. The District Court however, has narrowed down this generalisation to the particular, that the appellant's daughter has re-married and he had received another bride-price for her. As remarked, there is not a shred of evidence to support such findings." (2) "The Primary Court based its finding on the facts as adduced in evidence, and very properly directed itself on the law. The District Court therefore was neither right nor justified in interfering with the judgment and order of the Primary Court on the grounds of pure speculation unsupported by any evidence." (3) Appeal allowed.

110. Mantage and Chacha v. Mwita Civ. App. 16-M-70; El-Kindy Ag. J.

The appellants were ordered to pay Shs. 3,500/- general damages for assault resulting in fracture of the arm of the respondent. They had been prosecuted and convicted for causing grievous harm and assault causing actual bodily harm and ordered to pay to the respondent as compensation Shs. 300/- and 100/- respectively. Both appellants denied that they had assaulted the respondent and argued that it was unfair that they should be tried twice and suffer twice. They also attacked the award as excessive and unreasonable arguing that they should not pay more than what was already ordered in the criminal case trial.

Held: (1) "For the benefit of the appellants, I would, say this that when an unlawful attack is made upon a person, two legal wrongs are committed. Firstly, there would be a criminal offence and secondly a civil wrong. The person attacked could start criminal proceedings, by reporting the attack to the relevant authorities, as it was originally done in respect of the facts of this case or prosecute the case personally as private prosecution or he could start civil proceedings to recover damages for

personal injuries if any or for mere assault as there is such a thing as trespass to the person known in law. Therefore, where the respondent commenced civil proceedings relating to the same facts on which the appellants were convicted in a criminal trial, he was exercising his right to recover damages in respect of

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trespass to his person. Therefore, there was no question of the appellants being sought out and “punished twice” for the same Act. They were punished once only, during the criminal trial, and now they are asked to recompense the respondent for severe harm they did to him. Therefore, the claim instituted, by the respondent, was valid in law. This disposes of large part of the appellants grounds of appeal. These grounds arose out of ignorance of the process of law. (2) There was sufficient evidence to show that the appellants had assaulted the respondent. (3) “The fact that they (appellants) were ordered to pay compensation In a criminal trial, is not a bar against the respondent suing them in a civil court if he felt that the amount of compensation was inadequate The learned magistrate was entitled to weight the evidence afresh as it was produced before him and award a reasonable amount in damages.” (4) Distinguishing PAULO CAVINATO v. VIYTO ANTONIA DI FILIPPO [1957] EA 535. “In this case, the respondent suffered the fracture of the left arm but this fracture was fully healed although the alignment of the arm itself was affected. There was no evidence that the respondent could not make use of his arm or would for ever be unable to use it. The other blows do not seem to have left him with any permanent or trouble-some defects. On the whole, it appeared that the respondent had fully recovered from these injuries.” (5)

Damages reduced to Shs. 1,600/- first appellant to pay Shs. 1,000/- and second appellant to pay Shs. 600/-. (6) Appeal dismissed.

111. Hamiei v. Akilimali Civ. App. 41-M-70; 3/3/71; El –Kindy Ag. J.

The appellant found the respondent's servant cutting palm fruits from a tree which he thought was in his shamba. He called the respondent and in the presence of other persons alleged that the respondent was a thief. A complaint of theft by the appellant to the police was not taken up by the police because the boundary between appellant' shamba and that of the respondent which was adjacent was not clear. The appellant instituted a private criminal prosecution for theft against the respondent. This failed because, according to the trial court, the boundary was so obscure, that it could very well be that the tree from which the fruits were cut belonged to the respondent. Whereupon the respondent brought a result of the malicious prosecution by the appellant, his reputation and standing had been put into public ridicule and contempt. The District Court allowed the claim and ordered Shs. 1,000/- damages. On appeal:

Held: (1) "If a person directly communicates to the mind of another matters which are untrue and are likely in the natural course of things, substantially to disparage the reputation of a third person is , on the face of it, quality of a legal wrong, for which the remedy is a n action for defamation. However, if such a person did in fact have such bad reputation he cannot complain if others talk or communicate it to others as these people are entitled to do so as long as what they communicate reflects the true reputation." (2) The respondent filed to prove that the allegation of theft against him was false. The criminal tried court did not make any finding whether the tree from

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Which the fruits were cut was on the shamba of the appellant or the respondent. "The criminal action floundered on the rock of this obscure boundary and the civil action equally does so." (3) "The fact that the respondent was acquitted did not mean that the allegation was false. It simply meant that the evidence, as indeed it turned out, was inadequate to establish the offence of stealing. Evidence which is insufficient for criminal cases could be adequate for civil cases, but it need not be necessarily be adequate for civil cases. Such is the case in hand. For these reasons, therefore, I find that his suit against the appellant cannot be allowed to stand." (4) Costs are not to be awarded because (a) the appellant is largely to blame for these proceedings; (b) it might prejudice any attempt at reconciliation; (c) it might more strain the already strained relationships between the parties who are related. (5) Appeal allowed.

112. Waisirikare v. Biraki Civ. App. 55-M-70; 26/2/71; El-Kindy Ag. J.

The respondent filed a suit against the appellant alleging that he (appellant) reported false information to the police as a result of which he was remanded in custody for over 3 months. He claimed a total of Shs. 6,950/- made up of: (a) Shs. 1,100/- in respect of 11 head of cattle stolen due to lack of care while he was in custody; (b) Shs. 4,850/- loss of vegetable selling business from which he earned Shs. 50/- per day. The District allowed the claim. This appeal was brought on the grounds: (a) that appellant was not responsible for the arrest; (b) that there was no proof that respondent had suffered any loss as he claimed.

Held: (1) The basis of the claim is not clear. "To be fair, the plaint must have been drafted by a lay hand, and it was therefore the duty of the magistrate in such circumstances to check the pleadings before being filed." (2) "As far as could make out, the respondent was suing the appellant for malicious prosecution or wrongful confinement. In either case; the facts pleaded were most inadequate, as many more facts

needed to be pleaded besides that too short statement. In my view, even if this was done, the claims laid down needed proof. It would have been necessary for the respondent to prove, on balance of probabilities, that he sustained the losses he mentioned in his plaint as a result of the appellant's acts if he was to succeed in his claim. It was not open for the trial magistrate in the circumstances of this case, merely to enter judgment "as prayed". (3) Appeal allowed.

113. Lakhani and Others v. Berrill and Co. Ltd. E. A. C. A. Civ. App. 51-D-70; 22/3/7; Duffus P, Law and Mustafa JJ. A.

The respondent had, on 1st July 1967, obtained judgment by consent against the appellants for sums due on bills of exchange drawn and payable in London and expressed in pounds sterling. The decretal amount was to be paid off by monthly instalments commencing from 21st July 1967. In November 1967, the pound sterling was devalued. Subsequently, the Chief Justice Held (Berrill and Co. Ltd. v. Lakhani and Others [1970] H. C. D. 264 that courts in Tanzania could only enter

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Judgment in Tanzania shillings and judgment could only be satisfied by the payment of Tanzanian shillings. The appellants are appealing from that decision on the ground that: (a) the debt sued for was an English debt according to the intention of both parties and was in respect of sterling bills of exchange drawn and payable in London; in order to remit the money to London, permission was required under the Exchange Control Ordinance (Cap. 294 ss. 5, 6(1), 33 (1) and Fourth sch.) and since the respondents were under a duty to obtain Treasury permission to remit the

decretal amount outside Tanzania, the appropriate dates of conversion would be the dates Treasury permission was obtained for such remittances; (b) the provisions of s. 33(1) of the Exchange Control Ordinance applied in spite of the fact that judgment for a sum certain in Tanzania shillings had been obtained and therefore the appellant had to pay only the sterling equivalent of the decretal sum in Tanzania currency.

Held: (Mustafa J. a.) (1) The sections and the Fourth Schedule of the Tanzanian Exchange Control Ordinance referred to herein are for all practical purposes identical with the corresponding provisions of the English Exchange Control Act 1947. These provisions in the English act were duly considered in Cumming v. London Bullion Co. Ltd. (1952) 1 All E. R. 383, a Court of Appeal decision. In the Cummings case it was held that the plaintiff, an American, was entitled to be repaid the price of returned goods on the day when the money became payable, that is on the date on which liability to pay arose. Since under the Exchange Control Act 1947 the permission of the Treasury was required for the performance of the defendant's promise to pay the dollars to the plaintiff and under section 33(1) of the act an implied condition was to be read into the contract, the dollars did not become payable until Treasury permission was obtained and accordingly the plaintiff was entitled to be paid at the rate of exchange prevailing on the date permission from the Treasury was obtained. The Cummings decision was followed and approved in Barbey and others v. Contract and Trading Co. (Southern) Ltd. (1959) 2 Q. B. D. 157 and must be taken to be the English rule as to the appropriate date of conversion.As the learned Chief Justice has pointed out, the Cummings case can be easily distinguished from the present one. In the Cummings case judgment had not been entered before Treasury permission to remit had been obtained and devaluation in that case preceded the entry of judgment, whereas in the present case it came afterwards. Indeed in the Cummings case the three learned judges

considered the conversion date in relation to the position of a party who had sued and obtained judgment before obtaining Treasury permission. They were of the view that in the event of a writ being served or judgment obtained the date when the obligation could have been discharged by a payment into court would have been the proper date of conversion. This situation arises from the combined effect of the provisions of section 33 and the Fourth Schedule. Unless a suit is filed a person liable cannot legally pay without Treasury permission. Once a suit is filed, however, a person liable can legally discharge his obligation by payment of whatever is the appropriate sum into court. This is the somewhat anomalous situation created by statute on the filing of an

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action.” (2) “In my view once judgment has been obtained in Tanzanian shillings in Tanzania the decretal sum can only be satisfied by its payment in full in Tanzanian currency. After judgment was obtained in this case the bills of exchange became extinguished and merged in the judgment, and the matter as between the appellants and the respondents was finally fixed and concluded”. (3) “In terms of the Fourth Schedule a party may obtain a good discharge by paying the sum of money due into court. So if judgment has been obtained the amount due becomes crystallized and only payment of that sum constituted a good discharge.” (4) “The fact that the respondents here would have the further task of obtaining Treasury approval to remit such decretal sum to London has nothing to do with the appellants and any fluctuations in the rate of exchange, either up or down, would be the sole concern and responsibility of the respondents.” (5) Appeal dismissed (Duffus P. and Law J. A. concurred).

114. Lyimo v. Lyimo (PC) Civ. App. 4-A-70; 30/3/71; Kwikima Ag. J.

This is an application to appeal in causa pauperis. The parties are father and son fighting over a piece of land. The applicant, the son, gave as reasons for this application that he did not have any income. There was evidence that he had been able to pay the court fees in the lower courts:

Held: (1) And yet the applicant is in occupation of fully developed piece of land. Had he been as destitute as he would like this court to believe, he should have approached the lower courts right away. They would then have referred him to the administrations that are in a better position to assess the ability or inability of a litigant to meet the court fees. The applicant whose claim has failed in both courts below is acting inconsistently when he decided that he should have it free this time when he had already proved his ability to pay for litigation which is taken in futility and even spite. (2) it is becoming fashionable these days for kihamba occupiers to pretend that they are destitute. It must be brought home to all those who are similarly inclined that litigation costs money and that before embarking on it one should have not only the money but a fairly good claim. They should be dissuaded in pursuing hopeless claims which have no chance of winning and if they have to take such claims to court they should pay for them. In this case the applicant has consistently lost in his bid to evict his own father. I cannot see any conceivable explanation for his move to avoid paying fees in a case which he is very likely to lose. Accordingly his application is rejected. The applicant should pay the fees if he still wishes to pursue his doubtful claim. (3) Application dismissed.

115. Zablani v. Agrey (PC) Civ. App. 12-A-70; 8/4/71; Kwikima Ag. J.

The appellant was sued for Shs. 1,000/- compensation for unexhausted improvements on a piece of land which he won from the respondent in a

civil case. The suit was rejected by the Primary Court because the improvements were made by the respondent for the parties' father long before the land

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became the appellant's. The District court reversed on the ground that the respondent had cared for the improvements for 12 years since the land was given to the appellant and therefore the appellant should pay compensation for the care since it was his fault in taking so long before clearing his title. One appeal to the High Court.

Held: (1) "With all respect This reasoning does not accord with justice. The respondent may have sweated for 12 years but he certainly did reap a lot for his sweat. He must have enjoyed the fruits of the development which became the appellant when the latter got the Kihamba. There is every reason to believe that the respondent must have been more than adequately compensated in the 12 years of his tenancy and to award him further compensation would not be just. It would be like punishing the appellant for his laches." (2) "The law of limitation on customary land claims came into being in 1964. Before then there was nothing like limitation such claims. It would therefore have to be 12 years from 1964 before the appellants could be held time barred. The learned Magistrate himself conceded that the respondent effected no unexhausted developments on the disputed land. He awarded compensation only for caring for these developments although as pointed out earlier on the respondent was reaping the fruits of his sweat in the process. It has often been held that compensation is only for unexhausted developments of a permanent nature such as perennial crops, buildings etc. in this case the

respondent does not claim to have made any such improvements on the disputed land. There can therefore be no basis for awarding him compensation, his 12 years of illegal occupation and enjoyment of the usufruct notwithstanding.” (3) Appeal allowed

116. Stephano v. Mwanjala (PC) Civ. App. 135-D-70; 5/4/71; Pandu J.

The appellant’s son was married to the respondent daughter on the basis of a dowry which was 6 heads of cattle and Shs. 600/-. The son died. It was alleged by the appellant that the daughter was then inherited by the son’s younger brother but she deserted him and married another man who paid bridewealth to the respondent. As a result, the appellant claimed for the return of 4 head of cattle and Shs. 600/- paid in respect of his son’s marriage allowing 2heads of cattle for the daughter as a reward for her long and peaceful married life with his son. He won in the Primary Court but the District Court reversed.

Held: (1) “To effect inheritance of a deceased’s wife to a husband’s relative or a brother, as is in this case, two or three factors must be fulfilled – consent of the wife must be sought for; a new certificate be issued or at least the old one is to be changed by deleting deceased’s name and inset that of the inheriting husband. These should be fulfilled as per pare 63 and 88 of the laws of persons; but Para 64 of the same demands that consent to the inheritance be obtained from the family council so that “she becomes the legal wife of the relative.” Here, inheritance of the wife was not proved. (2) It is improper to allow the father of a

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girl to continue to get bride-price from the girl's subsequent marriages with other men without refunding proportionate parts of the earlier bride-prices no matter whether children have been born of the earlier marriage. (3) "In the circumstances there is sufficient reason for the District court's finding and order to be interfered with and accordingly allow the appeal and order that 4 heads of cattle plus Shs. 200/- be returned to the appellant. This amount is half the bride-wealth." (4) Appeal allowed.

117. Jafferli and Another v. Borrisow Civ. Case 29-A-69; 6/4/71; Bramble J.

The plaintiffs brought a suit for specific performance or rescission of a contract and damages. They had agreed to purchase from the defendant a parcel of land together with the farm stock on it at Shs. 180,000/- Shs. 5,000/- was paid on execution of the agreement of sale being the value of furniture and domestic effects. Shs. 17,500/- was to be deposited with an advocate pending consent to the transaction being given by the Commissioner. The remaining Shs. 157,000/- was to be paid on consent to the transfer being obtained together with delivery of title to the estate with a valid and duly executed deed of transfer. Plaintiffs refused to pay the balance without having seen the certificate of title. In this suit, they alleged that the defendants had failed to fulfill the agreement. The issues as framed by the judge were inter alia: (a) whether the defendants had failed, to deliver an unencumbered title; (b) what remedy if any were the plaintiffs entitled to.

Held: (1) "The purchaser is entitled to see (a) a copy of the land certificate or office copies of the entries on the register (b) copies or abstracts of documents expressly referred to therein and (c) a statutory declaration as to the existence or otherwise of matters which are declared by statute not to be encumbrances. There has been no dispute that consent to the transfer had been obtained. The plaintiffs claimed that no evidence of title was submitted to them for inspection although he had

been informed that a transfer had been executed by the vendor.” (2) “I cannot see how the purchaser could be expected to part with his money without having had an inspection of the titleDefendant admitted that she never produced title nor was in a position to do so. I find that by the terms of clause 3 of the Agreement the production of a good title was one of the conditions. The defendant’s insistence on the payment of the balance of the purchase price amounted to a refusal to produce title and was the cause of the plaintiffs’ not completing the transaction.” (3) “On the evidence before me I find that the plaintiffs had not taken possession of the farm. (4) “Since this the same remedy was available to both parties and as far as the plaintiff is concerned damages will not afford an adequate remedy because it is the land that they want I will grant specific performance. Jaques v. Miller 6 Ch. 153 is an authority for giving damages against a vendor in addition to specific performance where there is a refusal on his to carry out an agreement and this has been followed in a number of other cases. The terms “refusal “has been extended to cover a case in which a party

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has not done all that he reasonably should do to complete the contract. So far as matters involving title it has been laid down in Bin v. Fothergill L. R. 7 H. L. 158 that where a vendor acts in good faith he is not liable to the purchaser in damages for loss of bargain where he is unable to perform his contract because of a defect in title. There has been no delay because of defect of title in this case. The defendant says that she is anxious to complete the transaction.” (5) “Since I have held that the defendant was at fault in not doing what was reasonably necessary to complete the contract

and not through any defect in title the plaintiffs are entitled to damages. In Jaques v. Miller the learned judge held that the measure of damages in such a case is "such damages as may reasonably have said to have naturally arisen from the delay, or which may reasonably be supposed to have been in contemplation of the parties as likely to arise from the partial breach of contract." "While I agree that damages for depreciation may be allowed – Clarke v. Ramuz (1891) 2 Q. B. 456 – the evidence does not support the claim. The expert gave a highly speculative estimate as to the potential of the farm. In most of the cases where damages were given under this heading the plaintiffs were professional people or tradesmen and actual damage was proved, and I hesitate to think that such damages as were claimed were in the contemplation of the parties." (6) "I am not satisfied that the claim for loss of crop was proved and will not allow it." (7) "The plaintiff's money which was paid as a deposit has been lying idle because of the attitude of the defendant. While time was not the essence of the contract I think that the plaintiffs are entitled to interest as from the date when it became clear that the defendant was not producing evidence of title and I will allow damages to the extent of interest at 7 per centum per annum on the stake money of Shs. 17,000/- as from 1st November, 1969 to the date of judgment. I cannot consider the Shs. 5,000/- paid for furniture as this was a possession to which they were entitled was a matter of convenience." (8) Claim allowed.

118. Shah v. The Moshi Universal Stores Ltd. Civ. Case 1-A-66; 6/4/71; Brambe J.

This is a motion to set aside an award made by an Arbitrator. The applicant was the defendant in a suit for money owed on a cheque. His defence had been that the cheque was obtained by fraud; and/or that it was materially altered without his consent; and that there was no consideration as a result of which he avoided it. The application to set aside the award was made on the grounds of misconduct by the Arbitrator

namely that. (a) he erred in not allowing the parties to be represented by their respective advocates; (b) he erred in making an award on the basis that the High Court had “referred all the matters in difference between the parties to me as sole Arbitrator”, whereas the High Court had “referred all the matters in difference between the parties to me as sole Arbitrator”, whereas the High Court had referred to him only “the difference between the parties as set out in the plaint and Defence.”

Held: [Citing from the 17th Edition of Russel on Arbitration p. 168]
(1) “It goes on to cite the case of

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F. E. Hookway & Co. Ltd. v. Alfred Isaacs & Sons & Others (1954) Lloyd’s Ref. 491 in which an award was set aside because an Appeals Committee refused to allow legal representation among other reasons. As I understand the law it is possible for parties to agree not to follow the ordinary rules but when there is no such agreement an arbitrator is bound by the ordinary rules, which have been established to secure that justice is done between parties.” Legal representation ought to have been allowed.
(2) “The arbitrator took into consideration all the differences between the parties and made an award, not in the claim brought to court but on an alleged agreement. I cannot say from the tenure of the submission that this was the intention of the parties and so the arbitrator exceeded his jurisdiction, since the award must be within the terms of the submission.” [Citing ATKISON v. JONES (1943) ENGLISH & EMPIRE DIGEST VOL. 2 P. 166]. (3) Award set aside.

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CRIMINAL CASES

119. R. v. Mtibwa Saw Mills Ltd. Crim. App. 698-D-70; 9/2/71; Makame J.

The respondent were successful in their submission of no case to answer to charges of consigning a scheduled article without it being accompanied by a delivery not as required by Reg. 9 c/Reg. 16 (3) of the Sales Tax Regulations 1969. The respondents' drivers were intercepted at Ubungo near Dar es Salaam with two lorry loads of timber. The issue was whether, the respondent's drivers and so the respondents, were 'consigning' the timber within the regulations.

Held: (1) "It is common ground that the word "consign" is defined neither in the Act nor in the Regulations. One would have expected it to be. Mr. Patel, the learned advocate for the respondents, has urged that we should refer to Stroud's Judicial Dictionary. Stroud defines "consigning" as "to send or transmit goods to a merchant or factor for sale". The learned State Attorney prefers Webster's New International Dictionary, which gives several meanings of "consign", the relevant one for our purposes being "to send or address To an agent or correspondent in another place to be cared for or sold or for the use of such correspondent" (2) "Regulation 18 (C) is specific. The consigning must be to a buyer. A buyer is not defined in the Act or in the Regulations, so we must resort to the sale of Goods act, Cap. 214. in that Act "buyer" is defined as a person who "buys or agrees to buy goods". From the available evidence I have no doubt that both Messrs. Associated Construction Company Limited and Tanzania Timber Mart were buyers of the timber within this meaning." I am

of the clear view that according to both definitions of “consign” referred to the timber was being consigned”. (3) Appeal allowed – Respondent to be put on their defence.

120. Simba v. R., Crim. App. 748-D-70; 3/2/71; Makame J.

The appellant was convicted of being in possession of bicycle suspected to have been stolen contrary to Section 312 of the Penal Code. The appellant who said that he was riding from Dar es Salaam to Morogoro approached a cell leader in a village near Chalinze and asked for sleeping accommodation overnight. The cell leader was suspicious of the appellant's possession of a bicycle and asked him for proof that the bicycle was legitimately his. The appellant failed to furnish him with such proof, whereupon he was taken to Chalinze and handed over to a special constable who took him to the Police Station where he was held. He said he had bought the bicycle out of savings and had obtained a receipt which he had lost. He also gave a number of the bicycle frame during the trial which was not the same as the actual number on the bicycle.

Held: (1) “The learned State Attorney on behalf of the Republic did not wish to support the conviction merely on the technical ground that the appellant was not detained under Section 24 of the Criminal Procedure Code as required by

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section 312 of the Penal Code. With respect I very regrettably have to agree with him. I think it is invidious and preposterous that the appellant should escape the consequences of his crime because of this restrictive technicality which very glaringly has no parity with justice. I think the ridiculously technical section 312 is bad law incompatible with the broad

spirit in which the law should be employed.” “Many judges have expressed dissatisfaction with section 312. I wish particularly to associate myself with the sentiments expressed by my brother Saudi in Charles Mumba v. The Republic, Dar es Salaam Crim. App. 176 of 1967. Something in wanting when technical objections are allowed to defeat substantial justice.” (2) Appeal against conviction and sentence allowed.

121. Athumani v. R., Crim. App. 8-Tanga-70; 3/2/71; Kwikima Ag. J.

The appellant was convicted on three counts of using an unlicensed motor vehicle, using an uninsured motor vehicle and driving a motor vehicle with a defective tyre on the public road. He was convicted on his own plea of guilty and fined. In addition, he was disqualified from obtaining or holding a driving licence for two years with respect to the second count of using an uninsured motor vehicle on the public road.

Held: (1) [After quoting the provisions of Section 4(2) of the Motor Vehicle Insurance Ordinance], “This provision leaves room for the court to exceed the maximum disqualification period fixed under the same section, should the court, with regard to the circumstances of the occasion, consider it fit and proper to do so. It does not; as the learned State Attorney seemed to believe disentitle the court from disqualifying for a period longer than those twelve months.” (2) “The record shows that the appellant did advance reasons [why he should not be disqualified] to the effect that he was merely employed by the motor vehicle owners. It is a circumstance special to the offence if an employee drives his employer’s uninsured motor vehicle, as was held in R. v. John Mhanze (1969) H. C. D. 62. This case is on all fours with the present one. The disqualification order therefore cannot stand.” Order of disqualification rescinded.

122. Mwita s/o Mwita v. R. Misc. Cause 9-M-70; 29/1/71; El-Kindy Ag. J.

The accused was charged on four counts of acts intended to cause grievous harm contrary to Section 222(2) of the Penal Code. He applied to the magistrate for bail which was refused. He thereupon applied to the High Court for bail under Section 123(3) of the Criminal Procedure Code. In dismissing the application for bail, the learned magistrate said inter alia, "They (the offences) are very serious and involve four counts, all triable by the High Court. The prosecutions have testified that the accused would not be safe if released on bail as the complainant may seek to revenge himself against the accused. The accused has denied this but I find the prosecution's submission reasonable

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Held: (1) "The learned magistrate was entitled to accept the submission, but his submission was based on no evidence. It has been held that such allegations should be based on evidence (see Bhagwanji Kakubali v. Rex 1 T. L. R. (R) p. 143, Mohamed Alibhai v. Rex 1 T. L. R. (R) p. 138 and Abdullah Nassor v. Rex 1 T. L. R. (R) p. 289 etc.). if there was no evidence, the objection to bail could not be said to have been properly opposed. In my view, there was no adequate information on record on which the learned magistrate could withhold bail." (2) "The seriousness of the charge is one of the factors which ought to be considered in a bail application. The maximum sentence for acts intended to cause grievous harm contrary to Section 222(2) of the Penal Code, is life imprisonment, and this indicates how serious the charge of this nature the legislature considered, and yet the charge is bailable. The test is whether the accused, if released on bail, would appear to take his trial.

There is nothing on record to suggest that the accused would not appear to take his trial.” (3) Application allowed.

123. Lotisia v. R. Crim. App. 221-A-70; 12/2/71; Kwikima Ag. J.

The appellant was convicted of being in unlawful possession of Moshi and fined 1.000/- or 12 months. In order to prove that the liquid found in the possession of the accused was Moshi, the prosecution called a special constable who stated inter alia, “I know that it was ‘Moshi’ because I was myself a manufacturer and drinker of moshi before I was employed as special constable”

Held: (obiter) (1) “It hardly seems just that the Police should employ experienced drinkers to go about “tasting” moshi. This practice, although recognised by Seaton in his ruling above, goes contrary to the concept of justice and should be discouraged. Any Police Officer boasting as P. w. 1 did in this case would be confession to his crimes and the accused if not the public at large would be left wondering why such expert should be rewarded with a job instead of standing in the dock like the accused. Whatever the demerits of this mode of proof, however, this court seems to have accepted it and I cannot go back on it.” (2) “There is further authority to the effect that scientific or expert testimony is not necessary to identify native liquor (R. v. Amiri Rashidi 1968 H. C. D. 302). This is further support to the conviction of the appellant recorded without the liquor being scientifically analysed by the Government Chemist. I find myself bound to accept the unpleasant fact of identification by self-confessed moshi brewers and testors employed by the Police. Accordingly I will not disturb the conviction of the appellant.” (3) “I do consider, however his complaint against sentence to be justified. The two tins with which the appellant was found could not have fetched him half the fine imposed on him. In the absence of any aggravating circumstances, I reduce his fine to Shs. 600/-.

The appellant who is serving a jail sentence of twelve months in default is to serve six months only. (4) Appeal against conviction dismissed.

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124. Paul v. R., (PC) Crim. App. 12-D-71; 15/2/71; Hamlyn J.

The appellant was charged in the Temeke Primary Court of stealing contrary to section 265 of the Penal Code and was acquitted. The complainant was dissatisfied with the result and complained to the District Court Magistrate who issued a summons to the appellant for appearance to that court. The case filed at the District Court shows proceedings as between Rose Mwita (the complainant) and the Republic and is headed "Criminal Revision".

Held: (1) [After quoting the relevant extract from the District Court records] "These proceedings are 'in revision'. Had the complainant endeavored to lodge an appeal against the decision of the Primary Court, she would have been unable to do so, for she is not the prosecutor but only a complainant. Even though on the cover of the District Court proceedings the matter is shown as between the complainant and the 'Republic', no prosecutor appears to have taken any part in the case and the District Court seems to have acted merely on the letter of the complaint of the original complainant in the court of first instance. I think that it cannot be doubted but that the so-called 'Revision' was not properly before the court as it stood, though the district Court undoubtedly has powers of revision under the Magistrates' Courts Act. It was certainly not

an appeal, for there is no petition of appeal and no appellant.” (2) [After quoting sub-sections 1 and 2 of Section 18 of the Magistrates’ courts act]. “It seems clear therefore that, if the District Court purported to be sitting in its revisional jurisdiction (as apparently is the case here), it had no power to substitute a conviction for the acquittal had in the Primary court and the conviction with which it concludes its Order in Revision in beyond its powers. If on the other hand, one regards these District Court proceedings as being an appeal, there is no appellant. It is evident that the whole of these proceedings in the District Court are ultra vires and cannot stand.” (3) Order in Revision set aside.

125. Alfonse v. R., Crim. App. 738-D-70; 20/1/71; Saidi J.

The appellant was convicted of (1) Mining without authority contrary to Section 28 and 6 of the Mining Ordinance (Cap. 123), and (2) Willfully obstructing a police officer in the due execution of his duty contrary to Section 243(b) of the Penal Code. the driver of the appellant ‘s lorry was arrested when conveying a load of sand which had been dug from a restricted area on the appellant’s instruction, There was evidence that the Area Commissioner had permitted the residents of the area of whom the appellant was one, to dig sand from the area for building their houses. When the driver was arrested, he drove to the house where the appellant was. The police officer who made the arrest asked the appellant to allow the driver to drive the lorry to the police station and the appellant refused to give the driver such an order and he and the driver left.

Held: (1) “What is being claimed by the prosecution in this charge was that the appellant refused to

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allow the driver to drive the lorry to the police station. I do not think this could amount to obstruction. It would have been a different matter if the appellant had done anything to remove the lorry from where it was, or to remove the sand which was in it." (2) "Turning to the charge of mining without a permit, the prosecution did not have a list of the persons who had been permitted by the Area Commissioner to dig sand from that pit for purposes of building houses and no evidence was adduced as to whether or not the name of the appellant was included in that list. The appellant says he was one of the persons permitted to dig and take sand from that common put and it is difficult to say that he is not entitled to say so." (3) Appeal allowed and conviction quashed.

126. Amri v. R., Crim. App. 359-M-70; 19/2/71; Kisanga Ag. J.

The appellant was charged with two counts of burglary contrary to Section 294(1) and stealing contrary to Section 265 of the Penal Code. The was convicted of receiving property which was stolen in the course of housebreaking and was sentenced under the Minimum Sentences Act to the statutory minimum of 2 years imprisonment with 24 strokes of corporal punishment. An order of forfeiture was made in respect of an axe and a knife which were found in his possession at the time of his arrest. The evidence accepted by the magistrate was that the appellant was observed walking along a road at night flashing a lamp on and off. Two police officers approached him and questioned him and the accused ran away, was chased and was caught and arrested. He was asked to explain his possession of the lamp and he refused to reply. The lamp was proved to have been stolen from the complainant's house

Held: (1) "[the appellant's conduct] would tend to suggest that the appellant knew or reasonably believed that the property he was found with

had been stolen or unlawfully obtained, but it would not be sufficient from which to infer that he knew or reasonably believed that the property was taken in the commission of a schedule offence.” (2) “Following the decision in *Shah Ali v. R.*, 1968 H. C. D. 474 I would agree with the learned state Attorney that there was a special circumstance in favour of the appellant in this case the appellant was a first offender. The value of the lamp was not given and was not assessed, and therefore it is to be assumed in the appellant’s favour that its value did not exceed Shs. 100/-.” (3) “Regarding the order of forfeiture, it is not apparent under which provision of the law the learned magistrate made it. There was nothing to suggest that either the axe or the knife or both of these instruments were connected with the offence of which the appellant was convicted or with any offence.” (4) Appeal against conviction dismissed. Sentence reduced to such term of imprisonment as would result in the immediate discharge of the appellant. Order of forfeiture set aside and axe and knife ordered to be returned to the appellant under the provisions of section 179(a) of the Criminal Procedure Code.

127. Emanuel and Another v. R. Crim. App. 171-A-70; 12/3/71; Kwikima Ag. J.

The appellant and his co-accused were charged, inter alia, with obtaining money by false pretences c/s 302 of the Penal Code. The evidence before the magistrate was to the effect that the appellant was given 200/- by the prosecution witness, a Game Warden, “so that he could have some people to collect the property from the bush”. The appellants had previously indicated that they were in possession of game trophies. The Game Warden gave them the money in order to obtain evidence to charge them with the unlawful possession of government trophies. The evidence further disclosed that when the appellant turned up with the sacks they contained banana leaves and pieces of wood fashioned in the shape of rhino horns. After calling their last witness, the prosecution sought and obtained permission to withdraw the charge of obtaining money by false

pretences and substituted another charge of cheating c/s 304 of the Penal Code. The provisions of Section 209 of the Criminal Procedure Code were duly complied with. The appellants pleaded not guilty to the new charge and elected not to recall any witnesses whereupon the prosecution closed its case. The appellants were then convicted not of the new charge of cheating but of obtaining money by false pretences.

Held: (1) "The accuseds were improperly convicted of obtaining money by false pretences, a charge which they were not facing at the time of the judgment. There was no evidence to support that charge anyway." (2) "The appellant cannot be said to have 'perpetrated a trick or device' to obtain Shs. 200/- from the complainant. They simply pretended to some future act of carrying the alleged trophies from the bush to the roadside." (3) "The prosecution did not help matters by failing to specify the pretence in the first place; so that the accuseds were embarrassed in their defence." (4) Conviction quashed.

128. R. v. Baranzina Crim. Rev. 49-M-70; 17/2/71; EI – Kindy Ag. J.

The accused was charged with abduction of a girl under sixteen, and for stealing by agent c/ss 134 and 273(b) of the Penal Code, cap. 16 The facts, which the accused accepted were to the effect that the accused was traveling from Kondoia to Kigoma with the complainant and his daughter aged about 12 years. At Tabora, the complainant left for Igoweke leaving his daughter in the custody of the accused that was also entrusted with the sum of Shs. 60/- for safe custody. On the complainant's return he found neither the accused nor his daughter. Sometime later the accused was found at Tabora Railway Station with the complainant's daughter and was arrested. The accused was unable to produce the Shs. 600/-. The learned State Attorney argued that the conviction on abduction could not stand since the facts did not sufficiently disclose that the girl's father did not permit the accused to take the girl out of Tabora without his consent

as required by s. 134 of the Penal code. It transpired that on the third count the accused was given a heavier sentence because he had a similar conviction in the past but he was not given an opportunity to accept or deny the alleged previous conviction.

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Held: (1) "There is no doubt that this provision aims at the protection of unmarried girls who are under the age of sixteen years from being taken away from the custody of their guardian against the will of such guardian. It is, therefore necessary to allege in the facts, where there is a plea of guilty, that the taking of such a girl has been against the will of the guardian. In this case, the girl was entrusted to the care of the accused at the time when the father left for Igoweko and therefore it cannot be said that in the interim period the accused was not the guardian of the girl. Secondly, and here I agree with the learned state Attorney, there was no indication that to take the girl out of Tabora to Ndala, as it transpired, was against the will of the father, if the father could be said to have remained the person who was in charge of the girl Adija although the physical charge or care remained with the accused. For these reasons therefore, it cannot be said that the facts as given sufficiently disclosed the offence for which the accused was convicted." (2) "However, the facts in respect of theft of Shs. 600/- sufficiently disclosed the offence of theft by agent. I see no reason to interfere with the conviction on this count." (3) "However, as the learned state attorney rightly pointed out, the accused was not given the opportunity to accept or deny the alleged previous conviction. It is hereby pointed out for benefit of the learned magistrate that where it is alleged that the accused should be given the opportunity to

accept or deny the alleged previous conviction (see ASUMANI S/O MATAALA 1968 H. C. D. 427). And where the accused denied such conviction, the prosecution should be given the opportunity to prove the alleged previous conviction, if they so wish, by adducing evidence in support of the allegation. Where the previous conviction is denied and the prosecution does not seek to prove it the accused treated as a first offender. In this case, this issue is held in favour of the accused, and I find that he was a first offender.” (4) Conviction on first count quashed and set aside.

129. Jumanne s/o Mnugu and Another v. R. Crim. App. 231 and 232-A-70; 23/2/71; Brambe, J.

The appellants were convicted of robbery with violence contrary to sections 285 and 186 of the Penal Code. At their trial before the magistrate the appellants said that they had four witnesses to call. After one witness had been called the magistrate recorded as follows; “Witness cannot affirm; he is decidedly mentally unbalanced; he trembles. Accused persons to call their witnesses at their own expenses.” At the adjourned hearing the appellants stated that they had no witnesses and the court proceeded to judgment.

Held: (1) “I can find nothing [in Section 145 (1) of the Criminal Procedure code] to suggest that the court could refuse to summon a witness on any other ground than that he does not appear able to give material evidence in a case. It may be that in the case of a person who had sufficient means a court may order that he pay the costs of his witnesses but this cannot be a condition precedent to summoning them. There was enquiry into means or proof that the appellant

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could pay. The trial magistrate was influenced in his decision by the fact only that a witness seemed to be mentally unbalanced.” (2) “In *Ahmedi Sumar v. R.* (1964) E. A. 483 where the general principles regarding retrials were reviewed it was held that: ‘Each case must depend on the particular facts and circumstances of that case but an order for retrial should only be made where the interests of justice require it, and should not be ordered where it is likely to cause an injustice to an accused person.’ In general, retrials are ordered only where the trial has been illegal or defective. In this case it was defective I cannot say that a retrial is likely to cause an injustice to the appellant.”(3) Appeal allowed and the appellant ordered to be tried de novo by another magistrate.

130. Gitarey v. R. Crim. App. 239-A-70; 22/2/71; Kwikima Ag. J.

The appellant was convicted of two counts of shop breaking and stealing c/ss 296(1) and 265 of the Penal code. He was arrested on suspicion and found in possession of shirts and trousers. His conviction was based on the identification of the complaints of their clothing. One stated in evidence that he saw some “Flamingo” shirts at the police when the appellant had been detained and that: “I know these are my shirts because there is no shop which sells “Flamingo” and these were bought from Moshi.” The other stated: “If I am shown the clothes I can identify them.” The issues on appeal were (a) whether the clothes seized from the appellant had been identified sufficiently by the purported owners; (b) where the doctrine of recent possession applied.

Held: (1) “The proper procedure where the accused claims the goods to be his property is to ask the complainant in court to describe the goods before being shown them as per Nassoro Mohamed v. R. 1967 H. C. D. 446. It is also necessary to itemize in the charge the goods stolen. This was held in the same case. in the present charge the appellant was

merely alleged to have stolen “13 shirts” from faru and “various clothes valued at Shs. 1,359/- from Obed. Furthermore, it is not sufficient for a complainant to describe his stolen property by the manufacturer’s brand like “flamingo” or “Gossage” because, as PW 1 rightly stated, “these can be bought by anybody from any (shop). It will not do to identify them by the colour of the material either. Special marks or features must be given, as per Bawari s/o Abedi v. R. 1967 H. C. D. 11”. (2) “In the absence of sufficient identification the trial court could not invoke the doctrine of recent possession as it impliedly did in this case.” (3) Appeal allowed, conviction quashed.

131. Jisho and Another v. R. Crim App. 770 and 771 – M – 70; 19/2/71; Kisanga Ag. J.

The two appellants together with one Kabulabujo Jisho were jointly charged with doing grievous were based on the evidence of the complainant and that of a child aged about 13 years who gave evidence on affirmation. The complainant testified that on the material date he went to the house of one Luzaguza where he met the accused persons drinking pombe. The owner of the

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house however turned him out and as he was leaving Kabulabujo Jisho struck him with a fist and then the second appellant strock him with a stick which fell him to the ground causing a fracture on the arm and rendering him unconscious. After this fall the complainant could not remember whether the first appellant inflicted any blow on him, and the only evidence against him was that of the child who said he saw the first appellant hit the complainant as well. The question was whether the child’s evidence could form the basis for convicting the first appellant.

Held: the rule as laid down by the Court of Appeal in the case of KIBANGANY ARAP KOLIL v. R. (1959) E. A. p. 92 is that before a child is sworn in order to give evidence the court must investigate in order to ascertain whether that child understands the nature of oath." In the present case the young boy, as stated earlier, gave evidence on affirmation. Before he was sworn the learned trial magistrate noted "..... he (the boy) knows about the oath" and immediately after that the boy was affirmed. It would seem clear that the procedure as laid down in the case of KIBANGANY cited above was not followed, since there is no record of investigation as made by the trial magistrate, and on that account I am of the view that the evidence of this child was inadmissible." (2) "Even assuming that the evidence of this child was admissible the conviction would still be unsupportable on another ground. In the case of PETRO MANGONGO KATWA v. R. (1944) E. A. p. 100 it was held that although the evidence of a child given on affirmation does not strictly speaking require corroboration, yet the court should be very careful before acting upon such evidence. In the present case the learned trial magistrate found that the evidence of the child witness was corroborated by that of the complainant. It seems that this finding is not supported by the evidence." (3) "Having made that finding which as I have tried to show, is not supported by the evidence the learned magistrate did not scrutinise the evidence of the child witness before acting on it as required under the rule in Petro's case. His failure to do so was a misdirection which I think amounted to a ground on which the conviction of Erikado could also be said to be bad." (4) Conviction on first appellant set aside. Appeal of second appellant is dismissed.

132. DPP v. Mussa Manase, Crim. Application 9-M-70; 11/1/71; El-Kindy Ag. J. (Sitting as E. A. C. A.)

The respondent was convicted by the District Court of Geita of corrupt transaction with agent c/s 3 (2) of the Prevention of Corruption Ordinance cap. 400 and sentenced to two years imprisonment and 24 strokes of corporal punishment. His appeal to the High Court of Tanzania was allowed and conviction quashed. The present application was by the Director of Public Prosecutions for leave to appeal against the acquittal by the High Court and for leave to extend the time within which to file notice of appeal.

Held: (1) (after quoting from the judgments of the District court and the High Court on appeal) "It can be seen therefore there is an issue of what inference is to be drawn

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from the evidence on record. It is a matter of discretion of this court whether such an application is granted or not And that the application would be granted if good cause is shown or, as it was said in the case of Brown s/o Mpetwa v. Rex 15 E. A. C. A. p. 138, 'a sufficient reason' is shown for exercising the discretion vested in this court." (2) "When the first appellate court has reversed a judgment of a subordinate court, there is always a question of law involved as to whether there existed sufficient reasons for such reversal (See Fazeabbas Sulemanji and Another v. Reginam 22 E. A. c. A. p. 395). In this case, the learned Judge has reversed the decision of the District Court of Geita and, therefore, a question of law, in my view of public importance has arisen for consideration of this court. In my view, the delay in filing notice of appeal and in appealing is not unreasonable as sufficient reasons have been disclosed by the affidavit, for not giving notice in time and appealing in time. In the result, I grant both applications."

133. John s/o Ogutu v. R. Crim. App. 319-A-70; 12/3/71; Bramble J.

The appellant was convicted of being in unlawful possession of Moshi c/s 30 of the Moshi (Distillation and Manufacture) Act 1966 and sentenced to two years imprisonment. Two prosecution witnesses testified that they had experience of such cases for years and that the tin contained moshi because of the smell. The appellant admitted that “the tin contained pombe’.

Held: (1) “The question of experience is for the court to find on the evidence adduced. There is no evidence as to the nature and field of the experience from which the court could make a finding of fact. If a witness relies on smell for his identification he must state the nature of the smell and reasons why he came to the particular conclusion [Gatheru s/o Mjangwa v. R. (1954) E. A. C. A. p. 384 followed].” (2) Appeal allowed and conviction quashed.

134. Mkindi v. R. Crim App. 326-A-70; 2/3/71; Kwikima Ag. J.

The appellant was charged with “being in possession of Government trophy c/s 49(1) and 53(a) of Fauna Conservation Ordinance cap. 302 of the Laws”. His plea was recorded as follows: “I was in unlawful possession of the leopard skin.” Giving the facts the prosecutor stated, inter alia, that the appellant “had no licence to deal in leopard skins nor was he authorized to possess the same”. The appellant admitted that the facts were correct and was convicted on his own plea of guilty.

Held: (1) “The advocate for the appellant urges me to allow the appeal on the ground that the charge disclosed no offence for the simple reason that the word “unlawful” was not included in the charge it is quite clear that the Tanzanian Section [49(1) does not create several offences it creates only one to which the word was pleaded by the appellant for this reason I would distinguish the Uganda case [of

Yosefu and Another v. Uganda (1969) E. A. 236]. (2) “In view of the facts that the ingredients of the offence were fully disclosed.

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to the appellant before he was convicted on his own plea I do not think any failure of justice was occasioned to him especially as he did not object earlier on.” (3) Appeal against conviction dismissed.

135. Paul v. R. Crim. App. 26-D-71; 15/3/1; Biron J.

The appellant (who was the original accused No. 3) was charged with two other men on two pairs of related counts of burglary and stealing c/ss 294(1) and 265 of the Penal Code and was convicted on once pair of the charges. In respect of the charge against the first accused the magistrate held that fishing out clothes out of a broken window did not constitute “entering”.

Held: (1) “It is pointed out for the benefit of the magistrate that breaking the window during the night and pole-fishing the clothes through the broken window constitute the offences of burglary and stealing. It is sufficient to quote a passage from arch bold, 35th edition, paragraph 1805:- “1805. The entry. There must be an entry, as well as a breaking, to constitute burglary; although we have seen that the entry need not be on the same night as the breaking: ante, Para. 1799. The least degree of entry, however, with any part of the body, or with any instrument held in the hand, is sufficient; as, for instance, after breaching the door or window, etc., to step over the threshold, to put a hand or a finger (R. & R. 499) or a

hook or other instrument in at a window to draw out goods,” (2)
Appeal dismissed.

136. Republic v. Angelo Crim. Rev. 18-M-71; 18/3/71; El-Kindy Ag. J.

The accused was charged with unlawful wounding before a Senior Resident Magistrate and pleaded not guilty. No evidence was taken. Two months later he appeared before a second magistrate. No plea was taken and the trial commenced, evidence being taken from three witnesses. The matter was adjourned and later a third magistrate took over the case. He took a plea of not guilty and followed the procedure laid down in section 196(1) of the Criminal Procedure Code. Witnesses for the prosecution and defence were heard and judgment was reserved. The Magistrate then discovered that the accused had not been called upon to plead by the second magistrate and ordered that the witnesses who had give evidence before that magistrate should be recalled to give their evidence before him. Before this could be done the third Magistrate was posted and the matter came before yet another magistrate who referred to the High court for revision.

Held: (1) “The decision (in Regina v. Rajabu s/o Reamadhani 2 T. L. R. p. 49 at p. 51) seems to settle the matter that the trial magistrate must take the plea again before the trial proceeds, but, unfortunately, the decision is silent as to what the consequence would be if the mandatory provision is not complied with. “ (2) “Strictly speaking where a plea has already been taken no plea, it cannot convincingly be argued that no plea was taken so that the trial becomes a nullity as if no plea at all was taken from the start.” (3) “The

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observations of Davies C. J. in *Akberale Walimohamed Damji v. R.* 2 T. L. R. p. 137 at p. 139 would suggest that it was not a must for the trial magistrate to take the accused's plea otherwise the requirement of reminding the accused of the charge and his plea would be meaningless."

(4) "The position is not as clear as it ought to be And I set aside the proceedings in this case and order a retrial of the accused if the Republic wished to pursue this matter".

137. Henjewe v. R. Crim. Rev. 64-M-70; 17/2/71; El-Kindy Ag. J.

The accused was charged with assault causing actual bodily harm c/s 241 of the Penal Code. The magistrate found the accused guilty, but "waived" the conviction and discharged the accused.

Held: (1) "The accused was a first offender and his age was about 28 years. He appeared to have taken some drink. In the circumstances the learned trial magistrate purported to waive conviction. There is no provision in law for waiving such conviction (see *R. v. Basamaza* (1970) H. C. D. NO. 336). The order entered by the learned Magistrate is accordingly set aside and conviction is entered." (2) "The accused was "warned and discharged". The learned magistrate did not indicate, as he ought to have done, under what provisions of law he did so. Section 38 of the Penal Code provides for conditional and unconditional discharge. The fact that the learned magistrate warned the accused and ordered him to pay compensation for personal injury to the complainant (Shs. 250/-) would indicate that the accused was conditionally discharge.

138. Sabuni and Abdallah v. R. Crim. Apps. 313 and 334-A-70; 27/3/71; Kwikima Ag. J.

The appellants were jointly convicted of robbery. They were alleged to have attacked a part of four who were coming from a Saba Saba party.

According to evidence, in the struggle one of the members of the party was raped and she lost her watch and ring. No one testified that he saw the appellants taking these articles. On appeal the conviction for robbery was quashed because of lack of proof of asportation. But a conviction for assault was substituted the learned acting judge remarking:

Held: (1) “But I think the evidence on record disclosed the offence of assault. I am not unaware of the Ugandan case where it was held that the offence of assault was not minor to that of robbery as the offence of assault is not cognate to that of robbery. The law in Tanzania is different in that minor offences need not be necessarily cognate to major offences.” (He then set out the provisions of s. 181 (1) and (2) of the Criminal Procedure Code and continued) “Indeed in the case of *Musa and others v. R.* 1967 E. A. 537 Platt J. as the then was held that “the ingredients of the offence (of assault) were includes in the offence of robbery with violence”. In this case there was overwhelming evidence of assault and even rape. Accordingly I will quash the conviction for robbery and substitute one of assault under section 181 C. P. C.” (2) Appeal dismissed.

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139. *Hamza v. R.* Crim. App. 22-A-71; 23/3/71; Kwikima Ag. J.

The appellant, who was a first offender, was convicted of unlawful possession of moshi c/s 30 of the Moshi (Manufacture and Distillation) Act 62/66 and was sentenced to 18 months imprisonment. The evidence against the appellant was overwhelming and the only issue an appeal was whether the sentence imposed was excessive or not.

Held: (1) “There can be no question however, that the sentence awarded to the appellant was manifestly excessive. In the first place the appellant should have been given the option of paying a fine in order that

he may have avoided getting in touch with dangerous or hardened criminals in jail. In cases where the accused is an occasional or amateur offender it is normally appropriate to award a fine. [See Hadija Omari v. R. 1970 H. C. D. 158.] In this case there is no evidence that the appellant was more than an amateur or occasional offender. He must therefore be held to be so." Accordingly I will set aside the sentence of the appellant. In substitution thereof I order that the appellant who has been in jail since 18.11.70 be sentenced to such term as will result in his immediate release. (2) Sentence set aside and substituted therefore such a term as will result in his immediate release.

140. R. v. Richard Petro, Crim. Rev. 20-M-71; 19/3/71 El – Kindy Ag. J.

The accused was charged with and convicted of an offence under section 47 (1) (a) of the Traffic Ordinance, Cap. 168. The statement of offence was "Riding a bicycle to the common danger". The Magistrate did not proceed to sentence but referred the case to the High court for revision

Held: (1) "Whether it was intended that the charge should refer to careless driving or dangerous driving is not clear. However, whatever the accused might have done when riding his bicycle, he did not commit any criminal offence under section 47 (1) (a) of the Traffic Ordinance, Cap. 168 as this provision apply only to "motor vehicles", and a bicycle, by definition, is not a motor vehicle, and a person who rides a bicycle is not said to "drive" it. "(2) Conviction set aside.

141. Andrea v. R. Crim. App. 301-A-70; 25/3/71; Kwikima Ag. J.

The appellant was convicted of causing grievous harm to the complainant c/s 225 of the Penal Code. It was alleged that the appellant shot the complainant with an arrow at about 10 p. m. at night. After being shot, the

complainant cried that appellant had shot him and he was also able to identify the appellant with the help of light of the torch shone by the appellant's woman. The appellant did make a statement which amounted to a confession to a detective corporal.

Held: (1) "In this case the identification of the appellant was the sole basis for his conviction. It has often been held that where the evidence implicating the accused is entirely based on identification, such evidence

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must be "absolutely watertight to justify conviction." [See R. v. Sebwato 1960 E. A. 174; Emmanuel Tumbotele v. R. 1968 H. C. D. 144; Wilson Olo v. R. 1968 H. C. D. 183.] (2) "The conviction of the appellant could not have been recorded in the absence of his statement to the Police, which statement the trial court wrongly admitted, it being a confession made to a Police Officer. The evidence of identification by the complainant was far from water-tight." (3) Appeal allowed. (4) Conviction quashed and sentence set aside.

142. Daudi v. R. Crim. App. 753-M-70; 10/2/71; El-Kindy Ag. J.

The appellant was charged with and convicted on two counts of forgery c/s 337 of the Penal Code and sentenced to 6 months imprisonment on each count. He was also charged with and convicted on two counts of stealing by person employed in the public service c/s 265 and 270 of the Penal Code and sentenced to 2 years imprisonment and 24 strokes of corporal punishment. The appellant was a first offender and the amounts stolen were less than 100/-. The magistrate found there were no special circumstances.

Held: (1) "In mitigation the appellant said: "I have an old mother and I have four sisters and one young brother. He stays in a house which I rent

and pay for. I am expecting to do the Longon G. C. E.” It would appear (from Gordon Masita v. R. (1968) H. C. D. No. 107) that having dependants could be special circumstances. I do not however, consider that in every case, the fact that a person has dependants necessarily means that special circumstances exist. If that were the case, then every convicted person would be able to escape the rigours of the Minimum Sentences Act since, within African context, he would not be free of dependants.” (2) “As for sitting for examinations, this, too, does not amount to special in the sense of the act.” (3) “The learned magistrate passed consecutive sentences of corporal punishment. This is contrary to section 10 of Corporal Punishment Ordinance Cap. 17.” (4) Sentences upheld except for the setting aside of one order of corporal punishment.

143. R. v. Gervas and Selestine Crim. Rev. 56-M-70; 17/2/71; El-Kindy Ag. J.

The accuseds were jointly charged and convicted of stealing c/s 265 of the Penal Code. The trial magistrate accepted medical evidence as per s. 16 (1) of the Children and Young Persons Ordinance Cap. 13 for purposes of making findings on the ages of the accuseds. The age was given as being between 15 and 16 years old and this was accepted by the court. On the recommendations of the Probation Officer who was in court, Gervas was placed on probation for 12 months while Selestine committed to an approved school. The case was brought for revision.

Held: (1) “With due respect, this mode of reference to the age is least satisfactory, and the learned magistrate, in the circumstances of this case, should have found in favour of the accused i. e. that each one of them was about 15 years

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Old, if he could not have clear medical evidence.” (2) “It would appear that the learned magistrate did not direct his mind to the provisions of section 24 of the children and Young person Ord. Cap. 13 before he made the approved school order. Section 24 (1) provides that an approve school order can be made against any child or young person, but the proviso thereof states that such order cannot be made before inquiries have been made from the intended approved school to ascertain whether or not there would be available a vacancy for the intended juvenile offender.” (3) Order against Selestine set aside. Case sent back to trial court to deal with sentence in respect of Selestine.

144. Siara s/o Michael v. R. Crim. App. 17-a-71; 24/3/71; Kwikima Ag. J.

The appellant was convicted of the unlawful possession of moshi c/s 30 of Moshi (Manufacture and Distillation) Act, 62/66 and sentenced to 18 months imprisonment.

Held (1) “This clearly a statutory offence for which both fine and imprisonment are explicitly mentioned as methods of punishment. It was held in Bakari Hamisi v. R. (1969) H. C. D. No. 311 that when the legislature envisaged that a fine should be the principal mode of punishment, imprisonment should not normally be awarded. (2) “I will concede that prison sentences for unlawful possession of moshi are not unheard of. In Hadija Omari v. R. (1970) H. C. D. the appellant was sentenced to six months imprisonment as shock-treatment because she was obviously a distributor. Such is hardly the case here.” (3) Appellant awarded “such sentence as will result in his immediate release.”

145. Merali & Others v. Republic. Crim. Apps. 580, 599 & 613-D-70; 12/3/71; EACA Duffus P. Law and Mustafa JJ. A.

The appellants were convicted by a Magistrate's Court of stealing goods in transit. One appeal to the High Court of Tanzania a retrial was ordered, the learned judge (Saidi J.) stating, inter alia, "The complaints raised by the defence the goods as stolen property and the question of ownership of the goods. There is some justification in these complaints, though these errors are not too serious to affect the trial in the degree (Sic) by the learned counsel for the appellants". The appellants appealed to the Court of Appeal for East Africa against the order for retrial.

Held: (1) "It is clear that the original trial was neither illegal nor defective. It is well settled that an order for a retrial is not justified unless the original trial was defective or illegal. A retrial causing prejudice to the accused (see Ahmed Ali Dharamshi Sumar v. R. (1964) E. A. 481 and Fatehali Manji v. R. (1966) E. A. 343). We are of the opinion that an order for a re-trial in this case was not justified and we accordingly set it aside." (2) "In dealing with the first appeal the learned Judge did not re-hear and re-adjudicate as was his obligation in law: he briefly referred.

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to the somewhat complicated nature of the case and ordered a re-trial. Had he re-heard and re-considered the evidence we are satisfied he would no doubt have come to the conclusion that the first accused was guilty as charged." (3) "Having set aside the order for re-trial, there are several alternatives open. We can set the appellants free or order the appeal to be re-heard or deal with the appeal on its merits as the learned Judge ought to have done. This court has the same powers in dealing with this appeal as the High Court of Tanzania. [Mustafa J. then quoted section 3 (2) of the Appellate Jurisdiction Ordinance Cap. 451] We propose to take the unusual course of stepping into the shoes of the first appellate court and deal with the appeal on its merits". (4) Appeal of 1st

and 3rd appellants allowed. Appeal of 2nd appellant dismissed and conviction and sentence restored.

146. Antony v. R. (PC) Crim. App. 195-M-70; 30/12/70; Mnzavas Ag. J.

The appellant was convicted by the Primary Court of housebreaking and stealing contrary to sections 294(1) and 265 of the Penal Code. His appeal to the District court of Geita was dismissed and this is the second appeal to the High Court. His appeal to the High Court on the charge of housebreaking was allowed on the ground that the Primary Court magistrate had not taken a plea and his trial was therefore a nullity. Certainly comments were however made by the Judge on the law of “constructive breaking”.

Held: (obiter) “As the law stands constructive breaking will only be said to be committed if a person enters into a house by some aperture which by actual necessity, is permanently left open. It has thus been held to be sufficient breaking if a thief comes down into the house by a chimney, though there would be no breaking if he came in through a window which the builders had not yet filled with glass - Kenny – 18th Edition page 246.” “For my part I see no valid reason why there should be such a distinction. As commented in Kenny the cases of constructive breaking are not extensions of the law made to cover circumstances not originally envisaged, but are relics of the more strict rule of archaic law which treated as a capital offence any coming to a house with intent to commit a felony therein.” “In my view there is great need now to extend the law regarding constructive breaking to embrace circumstances not originally envisaged.” (Ramadhani s/o Bakari v. R. (1969) H. C. D. 309 disapproved.)

147. Kassian v. R. Crim. App. 243-A-70; 11/1/71; Kwikima Ag J.

The appellant was charged, inter alia on a count of burglary contrary to section 294(1) of the Penal Code. He was convicted. The magistrate found that the appellant broke into the complainant's house at 2.00 a.m. He further found that upon gaining entry, the appellant assaulted the complainant. Nothing was stolen

Held: (1) "While breaking into a dwelling house at 2.00 a. m. may be highly reprehensible and even culpable, in the absence of proven intent to commit a felony, it cannot

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automatically amount to a burglary. I am confirmed in this view by Bannerman J., as he then was, in the case of *Martin Senzota v. R.*, 1967 H. C. D. 80 when he ruled, 'Breaking must be unlawful and without legal right to do the act which constitutes the breaking. The intention to commit a felony must be present at the time of the entry.' In this case the prosecution neither alleged in the charge that the appellant broke into the dwelling in order to steal, nor did they bring forward any evidence tending to show that the appellant intended to commit the felony of theft when he broke into the dwelling. Unless there is evidence to show which crime the intruder intended, it was impossible to tell what mischief he was up to. In this case, where was no evidence to exclude the possibility that the appellant merely intended to assault the complainant as he did". (2) Conviction quashed.

148. Paul s/o Jumanne Mzee v. R. Crim. App. 205-A-70; 20/1/71; Kwikima Ag. J.

The appellant was convicted of robbery with violence contrary to sections 285 and 286 of the Penal Code. It was alleged that the appellant found

complainant sleeping with his concubine, beat him up and then took Shs. 60/- and pair of shoes from his.

Held: (1) "The learned State Attorney was not convinced that these facts go to establish the offence of robbery and I share his doubtThe evidence on record does not show that what violence as the complainant received from the hands of the appellant was designed to obtain from him any property for retention by the appellant. The offence of robbery could not have been proved at the appellant's trial." (2) "An assault is minor to a robbery, for the use of force or the threat of it more often than not involves assault. For example, brandishing a panga at the intended victim is an assault and so is the actual slashing. The same goes with the gun, club or first. I cannot therefore see how any robber could complete his intention without assaulting his victim. I am reinforced in my view by the case of Elmi bin Yusuf v. Rex 1 TLR (R) 269 when Cluer, J. cited Mitra's commentary on the Indian Criminal Procedure Code with approval: - 'When an offence consists of several particulars, a combination of some only of which constitutes a complete minor offence, the graver charge gives notice to the accused of all the circumstances going to constitute the minor offence of which he may be convicted. The latter is arrived at by mere subtraction from the former.'" Conviction for robbery quashed and a conviction for assault substituted.

149. Singh v. R. Crim. App. 829-Musoma-70; 15/1/71; Kisanga, Ag. J.

The appellant was convicted of stealing by a person employed in the Public service contrary to sections 270 and 265 of the Penal Code. He appealed and applied for bail pending the hearing of the appeal.

Held: [Following Attilio Mosca v. R. (D' Salaam Miscellaneous Criminal Case No. 12/68, and Hassanali Valji v. R., (1968) H. c. D. 174] "I have had the opportunity of

perusing the record of proceedings and the judgment in this matter and it would seem to me that the essential question to be determined on appeal depend largely, if not entirely, on the credibility of prosecution witnesses and that of the applicant. The advocate for the appellant added that he release of the applicant on bail pending appeal would be of some use and assistance in that it would enable him to prepare for the said examination during the coming December. I agree that the release of the applicant might be useful in enabling him to prepare for the said examination; I am not persuaded that this would constitute a special or exceptional circumstance which should warrant his release pending appeal. There is no overwhelming chance of the appeal succeeding, and there are no special or exceptional circumstances to justify granting the application especially as the applicant was convicted of a scheduled offence.' (2) Application was refused.

150. Kipengele v. R. Crim. App. 567-D-70; 4/12/70; Makame J.

The appellant was charged with being a member of an unlawful society c/ss 20 and 23(2) of the Societies Ordinance, cap. 337. Section 28 of the Ordinance provides, inter alia, that: "No person shall be charged with an offence under this ordinance or rule made thereunder unless the consent in writing of the Director of Public Prosecution has been obtained." It was argued on behalf of the appellant that the proceedings were a nullity because the Director of Public Prosecutions consent was not obtained.

Held: (1) "In view of this, I respectively agree that the trial magistrate had no jurisdiction. The proceedings were null and void and, therefore, I quash the conviction and set aside the sentence." (2) Appeal allowed.

151. Ngonyani v. R. Crim. App. 715-D-70; 29/1/71; Saidi J.

The appellant was charged with naming any person as being a witch c/ss4 (a) and 5(2) of the Witchcraft Ordinance, Cap. 18. It was alleged that appellant had named one Philipo Kazurai and one Victoria d/o Joseph as being a wizard and witch respectively – before a TANU Branch Secretary who summoned the alleged wizard and witch for questioning in the presence of the appellant – who repeated the allegations giving instances of children who had suddenly died and other persons who had some troubles, all of which were attributed to witchcraft practiced by these two persons. The appellant would not be liable to conviction if what he was said in the course of communicating information to or obtaining advice from a court, a member of the police force, a local council, a native authority or any public officer. The issue was whether the statements of the appellant were thus privileged.

Held: (1) “The persons to whom this “privileged communication may be made or from whom advice may be sought are listed in section 4 as the local court, a member of the police force, a local council, a native authority, or any public officer. In the present case the information was communicated to the branch secretary of TANU in the locality of the appellant. Considering the position TANU occupied in

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Tanzania, it is obvious that a TANU officer should be taken to be a public officer, although law has not been specifically amended to this effect. Invariably reports of any serious events or incidents affecting any member of the public in any part of mainland Tanzania are reported first of all to TANU officers, and from there they go to the police and later on to the Government. TANU officers therefore exercise power and influence

which require them to be included in the “privileged agents” in section 4 to whom reports of witchcraft may be made or from whom advice on matters arising from witchcraft may be sought. Although TANU officers have not yet been included in this list, the court should not fail to take judicial notice of this situation and take it for granted that they are public officers for this purpose.” (2) The TANU branch secretary was public officer and therefore the appellant’s statements were privileged. (3) Appeal allowed.

152. Daudi v. R. Crim. App. 726-M-70; 22/1/71; Kisanga Ag. J.

Appellant was convicted of stealing. In its revisionary jurisdiction, the High Court quashed the conviction and ordered a retrial. At the retrial no plea was taken, the magistrate simply noting that; “Accused reminded of the charge and plea”. In the course of the retrial, one witness who had given evidence in the original trial could not be traced. The magistrate decided to act under s. 35 of the Evidence act to peruse the evidence of that witness in the previous proceedings.

Held: (1) “The order of the re-trial meant that there should be a new trial in which the appellant should be charged and evidence to be led afresh. So that, in my view, the charge and plea in the previous trial could not be regarded as part of the proceedings of the new trial.” (2) “It therefore follows that the appellant’s arraignment was incomplete because his plea was not taken. In a number of cases this court has held that where no plea is taken from the prisoner, the trial is a nullity (see, for example, AKBER ALLI WALI MOHAMED DAMJI vs. REPUBLIC, 2 T. L. R., p. 137 and Misago Semumba vs. Republic, 1967, T. H. C. D., P. 35). Thus, in the present case, the trial was nullity because no plea was taken. (3) The course adopted by the learned magistrate would appear to be irregular for a number of reasons: first, the record of proceedings containing Mary’s evidence was not formally produced in court to form part of the evidence, and therefore the learned magistrate was not entitled to

peruse Mary's evidence because it was not properly before him. Furthermore, Mary's evidence in the previous proceedings could not be admitted in evidence at the re-trial because no foundation was laid to justify its reception. Before acting on that section, evidence must be led as to no availability of the witness; a mere statement not on oath or affirmation is not sufficient. Again it is clear that the said section can only be invoked if the witness cannot be produced without an amount of delay which in the opinion of the court would be unreasonable. The learned magistrate made no finding that Mary's attendance could not be procured without unreasonable amount of delay and indeed there was no evidence on which any such finding could be made." (4) Trial nullity. Order for another retrial.

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153. Stanslaus v. R. Crim. App. 886-D-70; 1/2/71; Onyiuke J.

The appellant was charged with obtaining money by false pretence c/ss 301 and 302 of the Penal Code and alternatively stealing by agent c/ss 273 (6) and 265 of the Penal Code. the prosecution called ten witnesses, four of whom gave evidence before one magistrate and the rest before another magistrate. The second magistrate convicted the appellant but he did not inform the appellant of his right to demand that the previous witnesses or any of them be recalled according to s. 196(1) of the Criminal Procedure Code.

Held: (1) "In this case the learned second magistrate failed to inform the appellant of his right to demand that the previous witnesses or any of them be recalled a similar situation arose in the case of DAUDI RAPHAEL and MASAJA vs. REPUBLIC, High Court Mwanza, Criminal Appeal No. 77 of 1969 where BRAMBLE J. held that failure to inform the accused of his right was not a mere procedural irregularity but was a matter that went to the jurisdiction of the second magistrate to try the

case. He held that compliance with the provisions of the proviso to section 196(1) was a prerequisite to the second magistrate's assumption of jurisdiction and that non-compliance rendered the trial nullity." (2) "Appeal allowed, conviction and sentence set aside; trial de novo before another magistrate."

154. Petro v. R. Crim. App. 318-A-70; 26/3/71; Kwikima Ag. J.

The appellant was convicted of assault causing actual bodily harm c/s 241 of the Penal Code. He attacked the complainant who was a Magistrate and who had just convicted him of theft, with stones and harmer. He appealed.

Held: (1) Since the case was decided on the credibility of the witnesses, it would be improper for the appeal court to interfere. While conceding that "an appellate tribunal trial court's conclusion should stand," I would hasten to point out that "such power should be exercised with caution" (Murray v. Murji 1968 H. C. D. 390). Indeed I am highly persuaded, if not bound by the decision in the case of Mwabusila v. Mwafwila 1967 H. C. D. 59 where it was held; "an appellate court should reassess the credibility of witnesses only if there are circumstances of an unusual nature which appear in the record", I must confess that I find no circumstances of an unusual nature in this case. The sentence awarded to the appellant, though stiff, cannot be excessive in view of the fact that a deterrent sentence had to be meted out to protect magistrates from similarly – inclined characters. (2) Appeal dismissed.

155. Deogratus v. R. Crim. App. 339-A-70; 22/3/71; Bramble J.

The appellant was charged with and convicted with forgery c/ss 335 and 337 of the Penal Code. The particulars alleged that he gave certificates of competence to two people to hold a class "C" and a class "D" driving

licence respectively when in fact he had not carried out any test as prescribed by the Traffic rules and therefore the certificates of competence

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were forgeries.

Held: (1) "By Section 3333 of the Criminal Procedure code Forgery is the making of a false document with intent to defraud or deceive. Section 335 specifies the various ways in which a person may be said to have made a false document and the only one which is relevant to this case is when a person makes a document purporting to be what in fact it is not. The appellant had the authority to issue the ones in question and subscribed his name to them. They were not false documents. The principle to be applied here is concisely stated in the 5th Edition of Kenny' Outlines of Criminal Law page 354:- "writing is not a forgery when it merely contains statements which are false, but only when it falsely purports to be itself that which it is not. The simplest and most effective phrase by which to express the rule is to state that for the purpose of the law of forgery when it merely contains statements which are false, but only when it falsely purports to be itself that which it is not. The simplest and most effective phrase by which to express the rule is to state that for the purpose of the law of forgery the writing must tell a lie about itself." (2) There was even no evidence that the certificates of competence were false." (2) There is no evidence to support the convictions. (3) Appeal allowed, convictions quashed.

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CIVIL CASES

156. Kahabuka v. Kahabuka (PC) Civ. App. 217-M-217; 19/3/71; Mnzavas Ag. J.

The appellant claimed from his half brother a piece of land as part of his inheritance. Their father was married to two wives, the respondent's mother being the first wife. When the father died, some land of his was distributed to the appellant and respondent as well as to two maternal brothers of the appellant. The appellant being dissatisfied with the distribution brought this suit alleging that the respondent took too great a share of the land. He further argued in the High court that the respondent was a "son of bisisi" (born out of wedlock) and therefore had no right to inherit the property of the deceased.

Held: (1) "There is no doubt that the respondent received a much bigger share of the inheritance. But according to Haya Customary Law this is not unusual is the eldest son in the family i.e. "The musida" Under section 75 – Customary Law of the Haya Tribe – By Hans Cory and Harton the eldest son is entitled to receive three parts of the whole of the inheritance shamba plus the big house the deceased used to occupy. From the evidence it would appear that the respondent did in fact receive less than what Haya Customary Law entitled him to receive. The two brothers of the appellant may not have shared the portion of shamba given to them with the appellant but this has nothing to do with the respondent." (2) "[Appellant] alleged, the respondent is a "son of bisisi" i.e. he was born out of wedlock. This argument by the appellant is clearly an afterthought. He did not raise it before the court of first instance nor did he raise the argument in the District Court. He in fact acknowledged the respondent as the eldest son of the deceased and the principle heir. He only argued that he was not given his share of the land." (3) Appeal dismissed.

157. Kagashe v. Didas (PC) Civ. App. 118-M-70; 6/3/71; El-Kindy Ag. J.

This is appeal against a decision of the District court reversing the decision of a Primary Court. The Appellant alleged in the Primary Court that the respondent crossed the boundary between the parties' shambas which were adjacent and cut down a mango tree belonging to appellant. After listening to evidence and visiting the site, the primary court held against the respondent finding that the tree was the property of the appellant. The District court reversed after allowing the respondent to put in additional evidence because he (respondent) had not been asked if he had any witnesses in the Primary Court. The Primary Court Record did not show whether the respondent had been given an opportunity to produce witnesses.

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Held: (1) "The Primary Court record is certainly silent on this issue. I cannot say, therefore, that the appellant was given the opportunity to call his witnesses, but with respect, this alone, in this case, was not adequate ground for calling more evidence. The respondent himself did not make this application. This would mean, therefore, that he did not think that he wanted any witness to support his claim. It has often been held (see *BUKENE FUFULA v. NSWANZI FUFULA* 1970 H. C. D. No. 107 and *MICHAEL KOMBERE v. KONE PAROSIO* 1970 H. C. D. No. 115) that additional evidence should be taken unless good reasons should be shown and recorded (see section 17(a) of Magistrates courts Act, cap. 537). In my view, there was no adequate reason for doing so. And it appears that the additional evidence was called for after the court had visited the scene and made the sketch plan. This emphasizes my point that it was made as an after thought if the respondent made it all. As this evidence was considered, I would refer to it in spite of the fact that it was incorrectly admitted." (2) "The evidence shows that the mango tree was

the property of the respondent but the boundary between the parties' shamba is not clear." (3) Appeal dismissed.

158. Marwa v. Wambura (PC) Civ. App. 115-M-70; 19/3/71; El-Kindy Ag. J.

The appellant was married to the daughter of the respondent paying 36 heads of cattle plus Shs. 100/- cash as bridewealth. The appellant applied for divorce alleging that he respondent's daughter consistently refused him sexual intercourse and was disobedient to lawful orders. Divorce was granted. The issue was now whether the full bridewealth should be refunded by the respondent being the father of the divorced wife. The Primary Court had ordered refund in full but the District Court reversed.

Held: (1) "It is provided for in section 58 of the Law of Persons G. N. No. 279/63 that if the wife repeatedly behaved in a manner which makes life unbearable for her husband, with the purpose of provoking him to divorce her, the court may decided that all or part of the bride wealth has to be repaid even though children have been born. The act of refusing sexual intercourse and disobedience to lawful orders were, in my view, provocative acts intended to cause the appellant to divorce the respondent's wife and on this ground alone the trial court would be fully justified in coming to the conclusion it did." (2) (Citing MATI KO CHACHA V. MATHIAS MWITA [1969] H. C. D. 196). "It should be made abundantly clear to unscrupulous fathers that daughters are not for sale nor are they the source of wealth. Bride-wealth is intended to secure the marriage between the parties, and is not a price for marrying he girl. If the respondent, in this suit, was making business of his daughter, as the gentlemen assessors thought, then they were justified in holding that there should be a full repayment of the bridewealth." (3) "Section 7 of the Law of Persons G. N. No. 279/63 states that the person entitled to receive the bride-wealth is the father of the bride or his lawful heir irrespective of

he latter's sex unless the heir is the daughter in respect of whom the bride wealth is paid.

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And section 37A & B of the same statute, provides that the father-in-law or his lawful heir is the one who may be required to return bridewealth in case of divorce or any person who received it. In this case the respondent was the person who received the bridewealth, and in law he is the one who is to repay it." (4) Appeal allowed – Bridewealth to be paid by respondent in full.

159. Riddoch Motors Ltd. v. Coast Region Co-operative Union Ltd. E. A. C. A. Civ. App. 38-D-70; 30/3/71; Duffus P, Law. J. A. and Onyiuke J.

The appellant company sued the respondent union for work done and materials supplied in repairing some 15 tractors belonging to the respondent. The trial judge found that the appellant company had done the repairs but that the respondent union had not given the order for the repairs to be carried out. In the alternative the appellant claimed compensation under section 70 of the Law of contract Ordinance (Cap. 433). This alternative claim was disallowed because the judge found that it had not been proved that the respondent: (a) had the benefit of the repairs or; (b) had had the opportunity of accepting or rejecting such benefit. The issues on appeal were whether: (a) a Mr. Morani an Assistant Manager of the respondent union who ordered the repairs had express or ostensible authority to do so; (b) section 70 of the Law of Control Ordinance was applicable.

Held: (1) (Duffus P.) "An appeal to this court from a trial in a High court is by way of a re-trial and "this Court must reconsider the evidence, evaluate it itself and draw its won conclusions though it should always

bear in mind that it has neither seen nor heard the witnesses and should make due allowance in this respect.” [Citing de Lestang V. P. in SELLE v. ASSOC. MOTOR CO. [1968] E. A. 123 at 126. (2) “The judge has found that Morani had in fact no express authority to issue such an order and there was clear evidence to justify his finding, so that the only issue left was whether or not Mr. Morani had ostensible authority. Unfortunately this issue was overlooked and not made an issue at the trial. The result is that the matter was not fully investigated or considered at the trial. Thus the duties and powers of Morani as Assistant Manager were not clearly ascertained.” (3) “The judge was justified in finding on the evidence that the respondent union, cannot now on the established facts of this case find that Morani had the ostensible or apparent authority to bind the union. I am of the view therefore that the appellant company cannot succeed on this issue.” (4) “There are three essentials to the recovery of compensation under section 70. First the appellant company must prove that it has done the repairs and supplied the materials to the respondent union and that it did not intend to do gratuitously. The learned judge has accepted these facts as established. Then the appellant must prove that the respondent union has enjoyed the benefits of the repairs and supplies. The judge has found that this has not been proved to his satisfaction with great respect to the trial judge he does not appear to have

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fully considered all the established facts on this issue. The simple facts as proved here are that these repairs were done on the order of the respondent union’s servant, the Assistant Manager Morani, the person admittedly in charge of the tractors and of the running of the union’s business in Rufiji District, and that the tractors repaired belonged to the union and were repaired and the new spare parts fitted on the union’s

premises in the presence of and helped by the mechanics employed by the union or working on its behalf and that after each repair the union or working on its behalf and that after each repair the union's mechanic signed acknowledging the repairs and spare parts in respect of each tractor and further that this mechanic then removed the old spares and kept these in a store. There is also evidence that these repairs took some 5 weeks to complete and there is no dispute but that the tractors were always in and remained in the care and custody of the union's servants. I am of the view that this was sufficient to discharge the onus of the appellant to show that the respondent union enjoyed the benefits of these repairs and of materials supplied." (5) The respondent union had the opportunity of accepting or rejecting the benefit of the work because "the respondent union at no time returned or attempted to return the various spare parts that were used on the tractors and even up to the time of the trial it does appear that the respondent union were still enjoying the benefit and use of the repairs and of the considerable amount of new parts supplied according to the various vouchers in evidence. In the circumstances I am of the view that the provisions of Section 70 applied to this case and that the appellant company is entitled to be compensated for the repairs and materials supplied." Appeal dismissed. Law J. A. and Onyiuke J. concurring.

160. Francis v. Arobogasti (PC) Civ. App. 17-A-70; 6/5/71; Kwikima Ag. J.

The appellant was the original defendant in a suit to dissolve a partnership between himself, the respondent and eight others. Both courts below found that there were a partnership agreement between the parties and gave judgment accordingly. The issue was whether the Primary Court had jurisdiction to try the case.

Held: (1) "The issue which was central in this case was whether the Primary Court had jurisdiction to hear a partnership case. this and other issues brought out above Joseph Kimalando v. Philemon Mshau [1968] H. C. D. 138, the facts of which were as follows: The plaintiff's deceased wife was a member of the All Christian Association of Moshi which was an association designed to help with the burial expenses of its women members. It was held that the suit was not concerned with customary law and it would not fall within the jurisdiction of the Primary Court. It was further held that if the Chairman was misusing the funds, then it was for the Association to sue him, and not any individual member of the association or less still her husband." (2) "This suit was determined without jurisdiction and it cannot be said to have been properly

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determined. Proceedings in both courts below were null and are hereby set aside: (3) Appeal allowed.

161. Ruku and Magori v. Magori (PC) Civ. App. 224-M-69: 15/3/71; Kisanga Ag. J.

The appellant and another person had agreed to transport the respondent's vegetables by canoe to Jinja. The respondent duly harvested the vegetables but they were not transported and as a result, went bad and perished. Respondent sued to recover Shs. 3,140/- as loss arising from breach of contract. The assessors allowed $\frac{3}{4}$ of the claim but the Primary Court Magistrate disagreed and allowed the respondent to recover only half the claim. His reasons were that: (a) while the vegetables were awaiting transportation they were not well looked after so that some were stolen due to fault of respondent; (b) there was no firm agreement since there was no writing document which would always be legally

enforceable. The District upheld the opinion of the assessors. Appellant appealed.

Held: (1) "There was no evidence to justify a finding that the vegetables were not well looked after. (2) "Even assuming that some of the vegetables were stolen, it would seem that this would not affect the respondent's claim. For if the appellant and Gideon agreed to transport them and the theft took place during the continuance of this failure, it seems to me that the appellant and Gideon were answerable for the resulting loss because it was occasioned by the failure to load the vegetables away and to transport them in accordance with their agreement." (3) "Once he (the Magistrate) found that there was an agreement, and indeed there was sufficient evidence to support that finding, then to my mind the fact that such agreement was not in writing would not affect the portion. For, what really matters was the intention of the parties, and since there was sufficient evidence to show that the parties intended to and did in fact create contractual relations, then the court would enforce an agreement at least on grounds of equity." (4) "The evidence shows that the parties merely agreed on the price for transporting the vegetables, but they did not stipulate the time of payment." Therefore the respondent was under an obligation to pay any part of the contract price as a condition precedent in order to affirm the contract. (5) Appeal dismissed; judgment of District Court restored.

162. Gaspar v. Bantega Civ. Rev. 1-M-71; 24/3/71; El-Kindy Ag. J.

This was a petition for divorce on the ground that the husband had deserted and refused to maintain the wife and the children of the marriage. The respondent/ husband were served with notice to appear but he did not. He wrote to the court stating that he could not attend as he was short of money and said that it would be of great help if the petitioner appeared and said she could not help. The trial magistrate granted a

decree nisi stating that it was unreasonable for the respondent to require the petitioner

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Whom he has deserted to provide him with the money and that this should be taken as refusal to attend.

Held: (1) "Apart from the fact that the respondent clearly indicated that he intended to appear, there is no justification for holding that the respondent was refusing to attend. Even assuming that the learned magistrate was correct in drawing this inference, the proper procedure set out in Matrimonial Causes Rules, 1956 was not followed. Section 25 of these Rules clearly shows that evidence has to be heard viva voce. In this case, there was no evidence led viva voce by the petitioner to prove the allegation of desertion. It would appear that the court is not entitled to act on the petition itself as if it were evidence. Hence a decree dissolving a marriage cannot be made where no evidence was examined in court." [Citing THOMAS v. THOMAS [1967] H. C. D. 47 and HARUNU S/O MTEGO v. YULIA D/O LUMAMBO Mat. Conf. cause 4/1969 unreported.] (2) Proceedings set aside.

163. Kamuhanda v. Kamuhanda and Two others (PC) Civ. App. 59-M-70; 24/3/71; Kisanga Ag. J.

The appellant was away in Uganda when his wife in Bukoba got involved in a criminal case in which she was ordered to pay compensation. She was unable to pay in full, where upon the shamba on which she stayed and which belonged to the appellant was, by court order, auctioned and sold by the first respondent as court broker to the second respondent. Subsequently the second respondent sold the shamba to the third respondent. The appellant then returned home and lodged this claim. The

primary court disallowed it relying on par. 575 of CORY AND HARTNOLL'S CUSTOMARY LAW OF THE HAYA TRIBE that: "..... Any shamba sold on public auction authorised by the court cannot be restored to any member of the originally owning family. " The District Court dismissed the appeal on the ground that appellant had been aware of the intended sale by the court, did not object, and after the sale went through in 1964, he sat on his rights and did not lodge the claim until some five to six years later.

Held: (1) The Primary Magistrate "misconstrued the provisions of Para. 575 of CORY AND HARTNOLL. That paragraph provides that, "if a pledged plantation is auctioned to repay debts, no relative is entitled to take action for redemption against the buyer." The shamba in question was not pledged but was attached and sold, and therefore it would appear that the provisions of the said paragraph in CORY AND HARTNOLL were inapplicable". (2) "There was no evidence for the District Magistrate's finding that the appellant knew of the intended sale. The appellant did not meet his wife and did not receive letters from her." (3) "There was abundant evidence that the land in question was appellant's clan land and that the appellant's wife had no title to it but was only looking after it on the instructions of the appellant. It therefore follows that the purported attachment and sale of the land by court order was ineffective, first because the judgment debtor (the

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Appellant's wife) had no title to the land being attached and sold, and secondly because, the legal owner (the appellant) was given no notice of the attachment and the sale of his land to enable him to object if he wanted to." (4) Title to the land still vests in the appellant. (5) Appeal allowed.

164. Giga v. Sharma Civ. App. 17-D-70; 29/4/71; Biron J.

The appellant filed a suit in the Court of the Resident Magistrate claiming possession of a flat and mesne profits. He alleged that the respondent's tenancy was a fixed term for one year from the 20/4/68 to 19/4/69 and that this was as a result of an order made by a District Court under s. 19(j) (i) of the Rent Restriction Act (Cap. 479). A preliminary point was raised that the order on which the appellant was relying was unenforceable and a nullity because the court which had made the order, being a District Court and not a Court of the Resident Magistrate, had no jurisdiction to make the order. The Resident Magistrate had no jurisdiction to make the order. The Resident Magistrate upheld the submission. Appellant appealed on arguing that the order of the District Court fixing the term of the tenancy had been a consent order and therefore the Resident Magistrate could not go behind it and that the respondent was estopped from challenging the jurisdiction of the court having agreed to the order made by the District Court.

Held: (1) "With respect... The parties and the courts appear to have misconceived the whole proceedings, particularly in referring to the order of the District Court as a consent order whereas in fact it was nothing of the sort "It will be noted that the so-called consent order was made on the application of the landlord, for some reason which is far from clear referred to as the decree holder, under section 19(j) (i) of the Act." [The learned judge then set out the provision of s. 19 (j) (i) and continued] "The original application made before the district court should not have been made under section 19 of the act for, as is obvious from the wording of the sub-paragraph it was purportedly made under what constituted a ground for possession. It does not empower a court to approve a letting for a definite period. This power is conferred on a court under section 11A of the act as amended by the Act of 1966." (2) "The original application in the district court was merely for the approval of a letting and as far as it was

termed a consent order, it was misconceived.” (3) “As noted, the appellant landlord was claiming possession of the premises on the sole ground of the ‘order’ made by the District Court which, as I think sufficiently demonstrated, had no jurisdiction to make such ‘order’. Actually, in my view it should not even be termed an order, but an approval. The ‘order’ was therefore a nullity and it consequently follows that the plaintiff disclosed no cause of action.” (4) Appeal dismissed.

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165. Rumanyika v. Bagoka and the Attorney – General Misc. Civ. Case 1-M-71; 20/4/71; El-Kindy Ag. J.

This is an application for extension of time for filing an amended petition, which seeks to challenge the election results of the district Council of Karagwe. The applicant alleged that at the final nomination of candidates by the Branch executive Meeting the Divisional secretary had made false statements that the applicant was against the establishment of Ujamaa Villages and thus his name was dropped from the list of candidates. The District Council elections were held on the 30/10/70. On 27/11/70 the applicant wrote to the registrar High Court of Mwanza a letter of complaint which was answered by the Registrar explaining the proper procedure to be followed and the time of limitation for filing a petition which was 30 days. The application was opposed by the Attorney General on the grounds: (a) that the Election act No. 25/70 had not provided for filing a petition or amended petition out of time and before the court could extend time under s. 93 of the Civil Procedure Code, the time must have been given first by the court, but in this case time was given by statute; (b) that the petition did not disclose sufficient grounds of complaint as the amended petition did not disclose irregularities which took place during election. The irregularities at a secondary nomination cannot be made the

subject of a petition as the nominations are made in camera. Moreover the proceedings at a secondary nomination cannot by s. 123(2) Elections act 1970 be challenged in any court of law.

Held: (1) [Quoting s. 120(1) of the Elections act 25/1970 which states that every election petition shall be presented within one month of the date of publication in the Gazette of the result of the election]. "Hence the time limit in general and local authority elections in which petitions can be brought is fixed as one month from the date of publication in the Gazette. It would appear therefore that time does not start to run against a petitioner until the results have been published. In this case I have searched through all the official Gazette copies from the time the local authority election was held at Nyabiyonza Ward VIII to this date, and I could not find anywhere that such results have been published as required by law. Therefore, the inevitable conclusion that until now time has not yet began to run against the applicant and therefore it was not necessary for him to apply to this court for leave to file an amended petition after the expiration of 30 days." (2) By section 123(2) of the Elections act 25/1970 the proceedings of inter alia a Brach Executive committee which is held for the purposes of the act "shall not be subject to review in any court, either by way of an election petition or otherwise." Therefore the proceedings at the secondary nominations were not open to challenge or alternatively the application does not sufficiently disclose grounds for complaint. (3) Application rejected.

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166. Abifalah v. Rudnap Zambia Limited EACA Civ. App. 3-D-71; 30/3/71; Duffus P., Law and Mustafa JJ. A.

The appellant claimed damages for personal injuries caused by the alleged negligence or breach of duty or breach of contract of employment

on the part of the respondents, his employers. He made an alternative claim for compensation under the Workmen's Compensation Ord. (Cap. 263). The plaint was filed on the 21/7/70 and on the 4/8/70 the appellant without the knowledge of his advocates entered into what appeared to be a valid agreement with the respondents for payment to him of the compensation to which he was entitled under the Ordinance. The respondents then filed their defence in which they pleaded that by reason of the agreement of 4/8/70 and the payment by them to the appellant of Shs. 61,773/30, the appellant's claim both under the Ordinance and under the suit were satisfied and discharged. The appellant then alleged that the agreement was induced by fraudulent and false representations by s. 15(3) such an agreement may be cancelled by the court within three months if it is proved that it was induced by such fraud, undue influence, misrepresentation or other improper means as would, in law, be sufficient ground for avoiding it. The trial judge adjourned the proceedings to enable the appellant to make an application to have the agreement set aside. This appeal was brought on the ground mainly the trial judge should not have adjourned the proceedings but [admitted should have [evidence tendered on the appellant's behalf that the purported agreement was not proper under the provisions of s. 15 of the Ordinance which required it to be in language understood by the appellant or to be endorsed by the Labour Commissioner.

Held: (1) [per Law J. A.] "jurisdiction in respect of workmen's compensation is, by the clear intendment of the Ordinance, exclusively reserved to district courts, except to the extent that provisions to the contrary is specifically made in the Ordinance" (See ss. 20, 21 and 24.) I accordingly consider that the power to cancel an agreement which is prima facie valid, on any of the grounds specified in section 15(3) of the Ordinance, is exclusively within the jurisdiction of district courts." (2) "An agreements under section 15 is a bar not only to the institution of proceedings brought in respect of the some injuries independently of the

Ordinance but – if the agreement is made after such institution – to the continuation for such proceedings. This appears to me to be clear from a perusal of the provisos to section 24 of the Ordinance, particularly proviso (d), which requires a court to deduct from damages awarded in proceedings brought independently of the Ordinance any compensation paid by the employer, other than compensation claimed in proceedings under the Ordinance or pursuant to an agreement.” (3) “Even if it is a fact that the agreement was not read over and explained to the appellant or understood by him, with the result that the Labour Officer’s endorsement on it was not true, the agreement would not for those reasons only be void. It might nevertheless be advantageous it and rely on it, in which case the employer would be bound by its terms. Such an agreement is, however,

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voidable at the option of the workman, who can apply under section 15(3) of the Ordinance to have it cancelled as having been obtained by improper means.” (4) “I accordingly find myself in full agreement with the action taken by the learned judge in this case. He was faced with an apparently valid agreement, which he in my opinion rightly considered to constitute a bar to further proceedings in the suit until and unless it was cancelled. He stayed the suit to enable the necessary application to be made.” (5) The district court of the district in which the agreement was made has jurisdiction to entertain an application to have the agreement cancelled and not necessarily the district court where the accident occurred. [Distinguishing ALL MAHDI v. ABDULLAH MOHAMED [1961] E. A. 456]. (6) Appeal dismissed.

167. Loule v. Ndelekio (PC) Civ. App. 121-A-68; 15/5/71; Jonathan Ag. J.

The appellant was successful in recovering a sewing machine he had lent the respondent some time in the early fifties. The Primary Court ordered the respondent to give appellant another machine or to pay him Shs. 1,200/- being the value of the machine. The District Court reversed the decision on the ground that the claim was time barred [vide Customary Law (Limitation of Proceedings) Ruled, 1963 G. N. 311/64]. Appellant appealed.

Held: (1) "Assuming that the nature of the remedy sought in this case is covered in the schedule to the Rules, it would seem that the first appellate court had little evidence to go by in holding that the original proceedings were time barred, because time started to run out when demand was first ineffectually made or when the respondent last admitted having the appellant's machine, whichever was the latter on which there was no evidence led the district court could not properly have allowed the appeal solely on the ground of limitation." (2) "If the proceeding did not fall under the preview of the schedule, then paragraph 5 of the Rules would allow the court to dismiss the claim if there has been unwarrantable delay in bringing it and where just determination of the claim would be prejudiced by the delay. Proceedings outside the schedule would be more readily admitted than those falling within it. Adopting this view, the trial court was not wrong in not rejecting the plaint as time-barred." (3) "It is not proper that the respondent should be ordered to give the appellant another machine; it should have been an order putting the appellant into possession of the same machine or giving him its value in cash." (4) There was no evidence that Shs. 1,200/- was the value. Value assessed at Shs. 600/-. Appellant may opt Shs. 600/-. (5) Appeal allowed.

The respondent agreed to buy a trailer from the appellant. The price was fixed at Shs. 300/- if the respondent undertook to carry out the necessary repairs and Shs.500/- if the

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appellant did. The respondent decided to do the repairs and paid Shs. 300/-. He afterwards claimed that the differential and spring were not fitted because they were heavy and so the trailer was not suitable for the work he had in mind. The trial magistrate ordered a refund of the money because of a breach of contract sale. The District court Magistrate reversed the decision on the ground that after payment was made the respondent found out that the trailer was not suitable for his work and since it had not been moved from the appellant's premises, he ought to refund the money. Appellant appealed.

Held: (1) The District Court Magistrate failed to direct himself on the law relating to the sale of goods. "There was no evidence to suggest any expressed or implied warranty or condition as to the fitness of the goods for the respondent's purpose." Section 16(a) of the sale of Goods Ordinance (Cap. 214) states that there is no implied condition as to fitness for any purpose except: "Where the buyer, expressly or by implication, makes known to the seller the particular purpose for which the goods are required, so as to show that the buyer relies on the seller's skill or judgment and the goods are of the description which it is in the course of the seller's business to supply (whether he be the manufacturer or not)." "From the evidence the respondent had full inspection of the trailer and bought it with his eyes open. There was an outright sale and he cannot be heard to say now that the goods do not suit his purpose." (3) Appeal allowed.

The respondent had bought shares from a Cooperative Society paying membership fees worth Shs. 1,090/- A manager of the business was appointed and he provided sureties who were under an obligation to refund the money lost to the Society. Appellant was the chairman and the person who had encouraged the respondent to join the Society. The manager then lost Shs. 4.600/- and the business stopped. Respondent then sued appellant for the refund of the money arguing that the appellant as chairman of the Society did not call any meeting to determine ways and means of recovering the loss. Respondent was successful in the lower courts. Appellant appealed.

Held: (1) "The Society was a corporate body with limited liability and individual servants cannot be saddled in their personal capacity with liabilities of the society. There are remedies at law against a member of committee if he acts fraudulently but this does not give the right to any person to recover damages from him in relation to the Society's affairs. The society itself must be sued. Although the appellant may have canvassed the respondent's membership the money paid was for shares in the society and there is no law which says that the shareholder can demand his money back for shares in a company or a society which is a corporate body. He may sell them, if he wishes, or give them away and the recipient will be under the same liability as he was. A shareholder can only get a refund from a society when it is

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wound up and the amount will depend on the existing assets. If there are no assets, he gets nothing and if there is a liability against the society he will have to meet it in the proportion his shares bear to the total number of shares. The chairman of a society is only a servant. Neither of the lower courts directed itself on the law." (2) Appeal allowed

170. Bakari v. Bakari Civ. App. 5-T-70; 15/5/71; Bramble J.

In proceedings for divorce, the appellant/mother was given custody of the last two children of the marriage while the respondent/ father got the first two. The appellant claimed that she was entitled to custody of all the children. She was employed as a nurse and lived at her mother's home which willing to look after the children while appellant and her mother were at work. The two children in the respondent's custody were living with respondent's father in a badly ventilated house in which the respondent's father's concubine also lived. The respondent was at the particular time undergoing a course in Dar es Salaam and was anxious to live with his children after the course. The trial magistrate had awarded custody on the basis that under customary law the welfare of the children was the paramount consideration.

Held: (1) "It was proved that the marriage was a Christian marriage and not a marriage under customary law and so customary law did not apply. The consideration of customary law which seemed to have greatly influenced the court was a clear misdirection. Of course the decisions on matters of the kind even under customary law must follow the principle that the welfare of the child is of paramount importance. The judgment challenged did not show how the principle was applied." (2) "It is preferable in divorce proceedings to adjourn the question of custody to chambers leaving one party or the other to take out a summons when all the pertinent evidence can be led on the point. There is less chance of the hotly contested divorce proceedings taking precedence over the issue of custody." (3) "While on a purely technical examination of the available evidence it is possible for an appellate court to come to a decision one way or the other I do not think that this will serve the best interest of the children in question. As I understand it the normal practice is to grant a formal order for the custody of the children to a petitioner, husband or

wife, until further order, in cases where here is a plea of custody. This appears to a be a fitting order in the circumstances of this case.” (4) “Custody of the two children granted to appellant until further order. Either party may made chamber application for custody when the question will be fully litigated.” (5) Appeal allowed.

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171. Humphries and Forst v. Nkya Civ. App. 7-T-70; 12/5/71; Bramble J.

The second appellant as group manager of a firm employing the respondent served a notice of dismissal on him in the presence of the first appellant. After serving the notice, the second appellant told the respondent to return motor cycle TAJ 520 which was registered in the joint names of the firm and the respondent since the respondent had not paid off the money he took from the firm for its purchase. The respondent tried to go off on the motor cycle: both appellants held on to it and after a short while the motor cycle fell. The respondent then sued the appellants for the damage to the vehicle. The District found for the respondent and awarded Shs. 500/-. Appellants appealed.

Held: (1) “The first question is whether or not the appellants committed any tort. Their action in trying to seize the motor cycle was found on the fact that the respondent and their principals were joint owners and respondent still owed money. There was no evidence of the agreement between the parties to show that the firm had any right to take possession when the services of the respondent were determinedThe leaned trial magistrate found that the appellants had no authority to act as they did and that a trespass was committed. This decision fully supported by the evidence.” (2) “A co-owner can recover the damages against the other co-owner to the extent of his interest only

....."the respondent's employer had money for him in excess of what he owed at the date of the termination of his services." Therefore for practical purposes, the motor cycle belonged to the respondent although it had not been transferred to him absolutely. Respondent was entitled to recover full damages. (3) There was no evidence how Shs. 500/-. Damage was arrived at. Damages assessed at Shs. 250/-. (4) Appeal as to quantum of damages allowed; Appeal dismissed.

172. Katebeleza v. Kazungu Civ. App. 25-m-70; 23/4/71; Mnzavas Ag. J.

The respondent entered into a written agreement with appellant whereby the respondent was to supply 30,000 burnt bricks to the appellant in return for a sum of Shs. 1,650/-. The respondent sued for Shs. 1250/- claiming that he had supplied the bricks but appellant had refused to pay the sum except the initial deposit of Shs. 400/-. The appellant admitted in the lower court the written terms of the contract but asserted that after the written contract, there was a later verbal agreement that the respondent would pay for any bricks damaged in transit. The trial magistrate found for the respondent. On appeal.

Held: (1) "As to the argument by the appellant that there was a later oral agreement (in addition to the written contract) that the respondent was to be responsible for all the bricks damaged in transit, I would say that any dispute arising from a valid and operative written agreement must be

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looked at in the light of the contents of the written agreement." (2) "Parol evidence is not usually admitted to add to, vary or contradict a written agreement. The appellant having in the first place chosen to reduce the contract into writing, anything purported to add to the original contract should have been reduced into writing. The alleged verbal understanding

is therefore of no consequence.” (3) The evidence weighed against the appellant. (4) Appeal dismissed.

173. Nyamu v. Mahere (PC) Civ. App. 191-M-70; 30/4/71; Mnzavas Ag. J.

The appellant's daughter petitioned a primary court for divorce against the respondent/husband. Divorce was refused but granted by the District Court on appeal. Respondent then filed a suit against the appellant's mother claiming a refund of 31 head of cattle he had paid as dowry. The marriage had lasted for 17 years and had resulted in nine (9) children one of whom, a daughter, had got married and the respondent had received 40 head of cattle as dowry. The primary court ordered the refund of only half the original dowry. The appellant appealed but the district Court affirmed the decision of the lower court. On further appeal to the High Court he argued that the respondent had not lost anything as he had received 40 head of cattle on marriage of his daughter and therefore he should receive no refund whatsoever of the original dowry he had paid.

Held: (1) “In this case, the daughter of the appellant repeatedly, and without any obvious reason, insisted on a divorce. This was granted her. She was therefore the guilty party under section 60 of Government Notice No. 279/1963 – THE LAW OF PERSONS. Section 58 of the Government Notice is to the effect that – “If the wife is the guilty party, she cannot obtain a divorce until her father has paid the bridewealth or, if he has not the means to pay what the court has ordered at once, the amount remaining becomes preferential debt.” “Under the Law of Person (Government Notice 297/63) (which is applicable to North Mara district), the court has always to take into consideration the number of years of married life and the number of children born by a defaulting wife to her husband when dealing with a suit for refund of dowry.” (2) “Because of the fact that the marriage subsisted for 17 years and there were nine children after it and the respondent received as dowry 40 head of cattle out of one,

the lower court was right in ordering a refund of only half the dowry.” (3) The argument that the respondent is not entitled to any refund of the dowry would be right only if the evidence showed that the respondent was the guilty party. (4) Appeal dismissed.

174. Pius v. Tehabyona (PC) Civ. App. 13-M-70; 15/5/71; Mnzavas Ag. J.

The appellant was ordered to pay Shs. 2,000/- as maintenance of respondent’s child of which he was alleged to be the father, by the District Court. The primary court had

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dismissed the claim on the ground that there was no evidence implicating the appellant with paternity. The decision of the District Court was appealed against on the grounds that: (a) the respondent did not prove that sexual intercourse had taken place between her and the appellant; (b) there was no reason for the District court to interfere with the primary court’s decision which was based on issues with the primary court’s decision which was based on issues of fact; (c) Shs. 2,000/- was excessive and unproportional to the circumstances of the case.

Held: (1) “The claim was brought under the Magistrates’ Courts Act 1963 and as such Government Notice No. 279 of 1963 which covers Bukoba district applied. Under that Government Notice the respondent did not have to prove that the appellant was the person who fathered the child. Where a woman, as was in this case, names a man as being the father of her child, he may not deny paternity unless he proves that he had no sexual intercourse with the woman.” (2) “The burden of proof as to paternity under Government Notice No. 279 of 1963 is totally different from the burden or proof under the Affiliation law is based on the well-known principles embodied in the English Bastrardy Amendment Act,

1872. These principles are to the effect that a man can only be adjudged to be the putative father of a child if the evidence of he mother is corroborated in some material particulars by other evidence to the satisfaction of the court. Under Government Notice No. 279of 1963 the mother is not loaded with such heavy burden of proof to win her claim. All she has to say is to mention a man as the father of her child.” (3) “The appellant failed to prove that he did not have sexual connection with the respondent, moreover there was ample evidence of opportunity for such connection as the appellant was the respondent’s teacher at a school and they were neighbours in their village.” (4) “The amount of Shs. 2,000/- is reasonable and fair taking into account that it is to be paid over a period of five years.” (5) Appeal dismissed.

175. Sitihege v. Jaseli (PC) Civ. App. 162-D-70; Mwakasendo Ag. J.

The appellant/wife filed a claim against the respondent/husband claiming: (a) custody of one child of the marriage; and (b) compensation of two head of cattle in respect of services she rendered as wife. When the parties eloped about five years ago, the appellant had got married to another man for a few months. After living together for sometime, appellant and respondent decided to get married. The respondent paid Shs. 580/- to the appellant’s father as bride price but it was not clear whether the sum was a down payment or the whole brideprice. In October 1969 when the appellant went home for her grandmother’s funeral, she never came back. Her father wrote to the respondent informing him that appellant would not go back to him unless he (the respondent) refunded the six head of cattle which the appellant’s father had to repay to the first husband of the appellant. The appellant’s father then paid back to the respondent the Shs. 580/- which the later had paid. The

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Appellant's claim failed in the courts below. She appealed.

Held: (1) There is no merit in the claim for compensation for services. "It is hard to conceive of a more blatant and despicable form of exploitation and appellant must be fully aware that no one can be expected to compensate her for having feely and of her own accord married the respondent. Least of all can she expect respondent to compensate her for performing he wifely duties." (2) "..... The only ground on which her claim could have been founded is on a claim for maintenance. However, even on this ground she was bound to fail Paragraph 74 of that order (Customary law (Restatement) Order 1963) preclude the courts from ordering payment of maintenance to a spouse who has been found guilty of any matrimonial offence as prescribed under that Order. Appellants actions in deliberately breaking up the marriage fall within the context of paragraph 74." (3) "I have no doubt that the respondent, who has a steady job, will be a better custodian to the child than her mother. As in all custody cases, the first consideration that courts must attend to is the welfare of the child in question." (4) Appeal dismissed.

176. Shivji v. Mohamed Dewshi and Sons Ltd. Civ. App. 4-D-71; Patel Ag. J.

This is an appeal against the decision of a Resident Magistrate dismissing the appellant's application for leave to defend and entering a summary judgment under O. 35 r. 2 of the Civil Procedure Code in favour of the respondent. The respondent had filed a suit on three promissory notes drawn by the appellant in favour of the respondent. In his affidavit before the trial court, the appellant stated that he executed three promissory notes which he gave to the respondent towards the purchase price of a flat which the respondent agreed to sell to the appellant or his nominee. He also stated that he respondent failed to sell and/or transfer the said flat

and hence consideration or the promissory notes failed. The respondent in his counter affidavit stated that they agreed to sell a flat to Mrs. Shivji who paid Shs. 29, 240/- out of the price of Shs. 36,850/- and failed to pay the balance. As a result the informed her of their intention to rescind the agreement, whereupon the respondent requested them not to rescind, undertook to pay the balance, and in consideration of the respondent's agreeing not to rescind, the appellant drew the promissory notes. It was argued that since according to the appellant, the consideration for the notes was the sale of the flat and according to the respondent it was the agreement not to rescind, the parties were talking about different consideration. There was therefore a triable issue and unconditional leave to defend should be granted.

Held: (1) "Now going through the affidavits of both the appellant and respondent it is quite clear that they think of different considerations all the time. And this was not considered by the learned resident magistrate at all. Going through his ruling it can be seen that just because the

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Appellant did not file a reply to the counter affidavit of the respondent he concluded there was consideration. Failure of the appellant to file a reply to the respondent's counter- affidavit unduly influenced him. His duty was to see if triable issue is raised or not by the affidavits." (2) "With due respect to him I find triable issues have been raised. It is not a question at that stage whether the statement of the applicant/appellant is true or false. The truth or falsity is a matter for trialthis is so clearly stated in Kara Georgiadis v. Mavroudis as per Sir Joseph Sheridan as reported in (1952) E. A. C. A. 479. The fundamental principle of justice is that a defendant who has a state able and arguable defence must be

given an opportunity to state it and argue it before the court.” (3)
Unconditional leave to defend granted; Appeal allowed.

177. Panjwani v. A. P. Hirji and Company Civ. Case 125-D-70; 31/5/71; Biron J.

The plaintiff claimed from the defendant damages for fraudulent misrepresentation in a contract. By a written agreement the plaintiff agreed to buy from the defendant a business known as Jaffer Soap factory together with the fixtures, fittings, chattels machinery, all equipment accessories and all other assets owned by the vendor on the premises of which the factory stood. The plaintiff alleged that he was induced to enter into the agreement by false and fraudulent representations of the defendant: (a) that he was transfer to able to the plaintiff's name the tenancy which the defendant alleged it then had over Plot No. 88 Pugu Road Dar es Salaam; (b) that the plaintiff was entitled to use boxes and other equipment bearing the Trade Mark SIMBA. It was submitted for the defendant that the pleadings were defective in that there was no averment that the plaintiff was induced to enter into the contract by misrepresentation.

Held: (1) “The issue to be decided in my view narrows down to whether the fact that the plaintiff was induced to enter into the contract by fraudulent misrepresentation arises by necessary implication from the pleadings, and that the failure to plead such factor expressly is not fatal to the claim. I know of no specific authority to the point as has often been observed, the day of the special pleader has gone and there is no longer any magic in words, though I must confess that there are authorities which still maintain that the technical niceties of pleadings must be observed and the failure to observe them could prove fatal to a cause.”
(2) “..... in this instant case the fraudulent representation alleged comprehend most of the substantive terms of the agreement. It cannot be gainsaid that the plaintiff was induced to enter into the agreement by the

terms of the agreement, therefore as it is alleged that most of these terms were fraudulently misrepresented, I consider that it necessarily follows that the plaintiff was induced to enter into this agreement by the alleged that most of these terms were fraudulently misrepresented, I consider that it necessarily follows that the plaintiff was induced to enter into this agreement by the alleged fraudulent misrepresentations set up, and that the omission to plead expressly that he was so induced is, to my mind, not fatal to the claim as pleaded.” (3) Submission overruled.

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178. Ngurumahamba Estates Ltd. v. Agare Ltd. and three other Civ. Case 81-D-69; 10/6/71; Biron J.

The plaintiff claimed Shs. 510,000/- being the balance of the purchase price and the interest thereon in respect of the sale of a sisal estate comprising seven Rights of Occupancy and a Government lease. In their defence, defendants averred that: (a) the agreements on which the action is filed are agreements to vary the terms of the original mortgages and as they are not registered as required by the Law of Registration, they were void; (b) the agreement of sale of the Government lease and seven Rights of Occupancy were agreements for disposition of land and as the Commissioner of Lands had not consented to it, the agreement was void, and therefore the agreement by which the second, third, and fourth defendants guaranteed payment of the price of the sale were also void.

Held: (1) [After referring to the pleadings and the agreements] “As remanded, the facts and the position as disclosed by the plaint and the annexures thereto must be assumed to be correct. Thus it must be assumed that the sisal estate comprising the seven Rights of Occupancy and one Government Lease were conveyed to the first defendant

company. As very rightly submitted by Mr. Kanji the assignments and conveyances could not have been effected without the consent of the Commissioner for Lands. Further more, Mr. Kanji produced and exhibited transfers and assignments in respect of the Rights of Occupancy and the Government Lease, all of which bear the consent of the Commissioner for lands. It must also be assumed that the mortgages of the Rights of Occupancy and the Government Lease were properly affected and subsequently discharged and remortgaged in accordance with the statement in the deeds. This arises if only be necessary implication, in that the balance of the purchase price is only Shs. 510,000/- Therefore acting as I said, on the assumption that the conveyances and mortgages have been properly effected which one must at this stage, and there is also the presumption that *omnia praesumantur legitime facta donec probetur in contrarium*, it must be assumed that all the dispositions which required consent have in fact been consented to by the Commissioner for Lands.” (2) “In this instant case all the dispositions which require the consent of the Commissioner for Lands in fact been conserved to by the Commission. Therefore the collateral undertaking, in this case then guaranteed by the third and fourth defendants, the consideration for which was the payment and variation of the payment by instalments, is a fortiori valid and enforceable, as all dispositions which required consent, have in fact been consented to by the Commissioner for Lands.” (30 Preliminary objections overruled.

179. Panayotopoulos v. Millinga Civ. App. 25-D-70; 12/6/71; Patel Ag. J.

The appellant is the managing director of an industrial concern next to the premises of the paper “Nationalist” which employed the respondent as a photographer. On 23/2/68

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There was an explosion at the appellant's workshop, many people gathered to see and the respondent came along to take photographs of anything of interest. There, he alleged, the appellant found him, grabbed his camera and hit it on the ground damaging it. The respondent denied this. The magistrate found for the respondent and awarded Shs.2,200/- damages being Shs. 1,000/- for the cost of repairs and Shs. 1,200/- being the loss of earnings at the rate of Shs. 200/- per month. There was evidence that only the view finder of the camera was damaged and that the cost of repairing that was 300/-, but one witness had stated that the cost of repairing the whole camera was about Shs.1,000/-

Held: (1) "The trial magistrate was entitled and was right in accepting the evidence of the respondent that appellant damaged the camera." (2) "Mr. Fazal's estimate of Shs. 1,000/- was for repairs to the camera as he saw it in court which included repairing the viewfinder, cleaning the lens, washing the camera and complete overhaul. Whereas the court is concerned only with the cost of repairing the viewfinder when awarding damages for the damage done to the camera by the appellant." (3) "The cost of repairing the viewfinder was estimated at Shs. 300/-." "The learned resident magistrate erred in awarding Shs. 1,000/-." (4) "The plaintiff did not aver the loss of earnings and the respondent did not say anything about it in his evidence. The trial magistrate therefore grossly misdirected himself in awarding Shs. 1,200/- as loss of earning." (5) Appeal on finding dismissed; appeal on quantum of damages allowed. Damages reduced to Shs. 300/- only.

180. Ijumba v. Mbile (PC) Civ. App. 225-M-70; 4/6/71; El-Kindy Ag. J.

Ijumba is appealing against the judgment and order of the district court of Bukoba in which her claim was dismissed on the grounds that the claim was time-barred. She was claiming a total of 13 heads of cattle from the

respondent. She alleged that 20 years ago the respondent and her late husband took a head of cattle from their common father called Ijumba, and these had subsequently reproduced to reach the figure of 12. As soon as the trial magistrate heard that it was 20 years ago, he struck out the appellant's claim under Rule 3 of the Customary Law (Limitation of Proceedings) Rules 1963, G. N. 311/1963. And the District Court went along with the primary court decision and confirmed the rejection order, but the appellate court held that the claim was brought 2 years too late, and quoted Rule 5 of the same Ruled.

Held: (1) "With due respect, both lower courts did not advert their minds as to when the right of action first occurred. It could not have been 20 years as the right of action first occurred when the first claim the appellant made against the cattle. For this reasons, I find the order of rejection of this suit cannot be upheld. It is accordingly set aside, and the case remitted back to the primary court for admission and hearing according to law."

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181. Makwaluzi v. Mulemela Civ. 14-M-70; 14/5/71; El-Kindy Ag. J.

The appellant was the successful party in the district court where he had claimed a total of Shs. 1,000/- as damage resulting from respondent's action in setting fire to his house. He was awarded Shs. 150/- as damages and now claimed that the trial court erred in awarding that small amount. At the trial, the respondent had denied setting fire to the house. The learned magistrate on his own motion examined a case file to a criminal case in which the respondent was alleged to have been convicted and stated; "The plaintiff (appellant) did not produce a copy of the judgment but I have thrown overboard this procedural irregularity and subscribed to the substance of the suit. I have therefore perused the file and I am satisfied that the defendant did set fire to the house and was accordingly

convicted by Brother Tegamaisho on the 14/2/69.” That judgment was taken as conclusive that the respondent had set fire to the house.

Held: (1) “With due respect to the learned magistrate, he misdirected himself in this age on an important matter of admissibility of evidence. As he is well aware, the fact that a person had been convicted in a criminal case does not mean that there was no needs of proper proof it the victim is sued in civil case. In this case, apart from his own statement, the appellant led no evidence even to prove that the appellant was convicted let alone proof of liability in tort. The criminal case was improperly admitted as it was not properly proved that it was the criminal case file in which the respondent was convicted. In this suit, it was not only necessary to prove that there was a criminal case file with a name like that of the respondent, but that the respondent was the one involved in that case.” (2) “He also misdirected himself as to the admissibility of previous proceedings set out in section 35 of the Evidence Act, 1967. that section reads as follows: -) the learned judge then set out the provisions of the Act and continued) clearly therefore, evidence recorded is only admissible under certain circumstances, and these have been enumerated above (a) to (d). In this case, there was no indication why the appellant could not call the witnesses who gave evidence in the previous proceeding. These conditions have to be satisfied by the party who seeks the admission of evidence under section 35(1) of Evidence Act 1967. If that is not done, evidence of previous proceedings is inadmissible. In my view the evidence was wrongly admitted, and therefore, in the circumstances the appellant did not prove his case before the trial court. For these reasons, he judgment and decree of the District Court is accordingly set aside with costs.” (3) Appeal allowed.

182. Mushaijaki v. Saburi (PC) Civ. App. 129-M-70; 11/5/71; El-Kindy Ag. J.

The appellant appealed against the decision of the district court. He had claimed a piece of land alleging that he had bought it from one Matoke

deceased and he had produced a written document purported to have been signed by the seller,

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the seller's wife, the seller's son and one other witness. There was no evidence that the clan member to the alleged sale was obtained. The primary court had found for the appellant but the District Court reversed. It was argued that this was not clan land and therefore no consent was needed and that the district court erred in holding that there was no sale there was a written document.

Held: (1) "With respect, I think the decision of the appellate court cannot be challenged. The widow of the deceased did not sign it. The deceased had no son. Therefore the purported signatures of either of these two people were forgeries.. if the deceased wanted to sell his part of the shamba, he would have followed the proper customary procedure by firstly seeking the consent of his clan members. On preponderance of probabilities, therefore, the purported document of sale was false and there was no sale to the appellant as the appellate court unanimously held." (2) Appeal dismissed.

183. Simbasana v. Timamunungu (PC) Civ. App. 114-M-70; 4/6/71; El-Kindy Ag. J.

The appellant alleged that he agreed to buy cassava from the respondent at Shs. 12/- per bag. He then paid a deposit of Shs. 100/- and left the respondent filling up the bags which he (the appellant) had brought with the cassava. On arrival at the respondent's house he found that the respondent had already sold the cassava to a third party. The respondent alleged that appellant was in breach of contract because he promised to collect the cassava in two weeks but turned up after two and half weeks. There was no evidence that time was of the essence of the contract or

that the parties had agreed on the period of two weeks. The primary court found for the appellant but the district court reversed on the ground that time was of the essence.

Held: (1) "As to time, the assessors and the trial court therefore were in no doubt that time was of no essence, as they said so clearly and their finding is therefore a finding of fact which cannot be easily set aside. Besides that the time of two weeks was not made a term of contract, as it was mentioned when the appellant was leaving to fetch a vehicle. The terms of contract were settled already. If this was a term, it would have been stated at the time of setting the price. The evidence clearly did not justify the decision of the appellate magistrate on this. On preponderance of evidence, the trial court came to the correct conclusion that the respondent was the one who was in breach of contract, and as such he could not avoid the consequence which followed i. e. financial loss. In the result, if I find the decision of the primary court was sound and fully backed by evidence before it." (2) Appeal allowed

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184. Boke v. Mwese (PC) Civ. App. 99-M-70; 10/5/71; El-Kindy Ag. J.

The appellant/wife was married to the respondent/husband being one of the many wives the respondent married. Respondent owned plenty of heads of cattle which accrued as a result of joint labour of his wives, including dowry from his daughters. After about 20 years the parties divorced and the appellant's brother successor to their late father refunded 24 of the 30 heads of cattle respondent had paid as dowry to marry the appellant. The appellant then claimed ten head of cattle for her maintenance as divorced woman and a share in her husband's property. The trial court found for the appellant but the district court reversed on the grounds that: (a) the appellant was not the appropriate person to sue for

the return of the bride price and (b) the appellant was not entitled to any maintenance as she was married a year after divorce.

Held: (1) “With due respect to the appellate magistrate, the setting aside of the entire award is not justified in law or in good conscience. I agree that if he appellant was seeking a return of partly paid bride-wealth, by her brother, she was mistaken, as she was not a party to that case, but this was not so, as the learned magistrate misconstrued her claim. She did not say that she was suing for the bride-wealth partly returned by her brother. She simply said that she was suing for maintenance of divorced woman. Indeed she went further to explain in detail how she and the other wives had materially contributed to the wealth of the respondent. None of this was disputed by the respondent. Indeed, he seemed to have agreed that she had contributed to his present wealth, but he was not prepared to pay anything although he conceded that she was entitled to a share. This seems to me to be unreasonable approach. He had lived with this woman since 1951 to 1968, and she had, every year, contributed to the wealth of the household. And he was to blame for the break-up of the marriage. In all the circumstances, therefore, she was entitled (a) to a maintenance for a divorced woman even for a year when she remained unmarried and (b) to a share of the joint wealth. In all the circumstances, it was not unreasonable to claim only 10 heads of cattle out of the varying total of 100 and 148 heads of cattle.” (2) Respondent to pay 10 heads of cattle both as maintenance for the period appellant remained unmarried and as a share in the joint property.

185. Kyokukaile v. Kikanja and four other (PC) Civ. App. 83-M-70; 17/5/71; Kisanga Ag. J.

The appellant Andrea Kyokukaile sued the respondents for the recovery of a clan shamba part of which the appellant's aunt had sold to the first two respondents and bequeathed the other part to the rest of the respondents. The respondents were the appellant's aunt's sons and therefore belonged

to a clan different from that of her father's. The disputed land was clan land which the aunt had inherited from the father. The lower courts found for the appellant but ordered him to refund the purchase price and to pay compensation for improvements basing themselves on paragraph 561 of CORY &

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HARTNOLL'S CUSTOMARY LAW OF THE HAYA TRIBE which states that if the relatives concerned have not been informed of the sale of clan land, they have a right to invalidate the sale by bringing an action against the vendor who must then return the purchase price he received or allow the relatives to do so if he cannot find the money. Appellant appealed against the order. Respondents also cross-appealed.

Held: (1) "It would seem that the provisions of the paragraph as set out above would be applicable only where the vendor had the power or capacity to sell the clan shamba. Because, under these circumstances, the vendor would then have title to the land which title he can pass to the purchaser. The resulting sale would be a valid sale which could only be invalidated by the vendor or a clan member upon refunding the purchase price to the buyer. In the instant case however, it would appear that Josephina, the vendor, did not have title to the land which she could pass by selling it to the respondents Chrisant and Antorny. Under section 20 of the Second Schedule to Government Notice No. 536 of 1963, Josephina, being a female, could only use the clan land but may not sell it if there are male members of the clan. Since the appellant Andrea was a male member of Josephina's clan, I am of the view that the provision of the said section 20 would operate to deprive Josephina the power to sell the land. It therefore follows that the purported sale by Josephina to the respondents Chrisant and Antony was ineffective because Josephina had no title to the land which she could pass to the purchasers." (2)

“Consequently, since there was no valid sale, the title to the land remained vested in Josephina’s clan and so the appellant Andrea, her nephew, would not be required to invalidate any sale in order to redeem the clan land. I am therefore of the view that the appellant Andrea is entitled to recover the clan land without repaying the purchase price, and it is open to the respondents Chrisant and Antony to file a suit against Josephina’s personal representatives for the recovery of the purchase price.” (3) “As regards cross-appellants Efrazia, Victoria and Francis, they contend that Josephina, their mother, bequeathed the portion of land to them in consideration for the care they took of her during her illness which resulted in her death. I am of the view that Josephina could not bequeath the land to the cross-appellant. It seems that section 20 of the Second Schedule cited above seeks to preserve clan land within the family and therefore it provides that a female may not sell the clan land if there is a male member of the family. By parity of reasoning, it would seem that the policy to keep clan land within the family would also operate to deprive Josephina of the power to bequeath the land to persons outside her father’s clan.” (4) “Appellant to pay compensation for improvements” (5) Appeal allowed in part.

186. Mkoja v. Kaniki and Kashoro Civ. App. 10-M-70; 28/5/71; Mnzavas Ag. J.

The appellant sued the respondents claiming a total of Shs. 1,850/- as value of his crops damaged by the respondents.

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While the appellant who owned a shamba in Geita was away, the Village Development Committee allocates his shamba to other persons. This person cleared the land for cultivation. At the same time, appellant

returned and ploughed the land using a tractor. This action was reported to the Divisional Executive Officer who ordered the persons who had been allocated the land to go on cultivating. They planted cotton and the appellant also planted beans and maize on the same land. After a week or so, the beans and maize as well as the cotton crops started growing. Again it was reported to the Area Commissioner that the appellant had planted beans and maize. The Area commissioner ordered the beans and maize to be uprooted. This was done and the respondents were among the people who did the uprooting. The trial magistrate held that the respondents were not liable as they were obeying superior orders. Appellant argued on appeal that a superior order was not a defence.

Held: (1) "From the evidence there can be no doubt that it was the Village Development Committee who allocated the shamba of the plaintiff to Tausi and Atanasi. There is evidence that when it allocated the shamba to Tausi and Atanasi the shamba still belonged to the plaintiff who, though he was in Mwana at the time, he left the shamba with one of his employees who was actually living in the shamba. The allocation of the shamba to Tausi and Atanasi while it still belonged to the plaintiff was by itself irregular leave alone the order by the honorable Area Commissioner to the Village Development Committee to uproot the beans and maize crops which was clearly wrongful and uncalled for. The two defendants, Stephen Kaniki and Boda Kashoro, having acted on the wrongful orders of the Area Commissioner they are equally responsible for the wrongful uprooting of the crops of the appellant." (2) "I agree with the learned resident magistrate that the appellant should have joined the Area Commissioner as a defendant as he was clearly the instigator of the tortuous act, but such procedural irregularity does not in the least exclude the two defendants from liability." (3) Appeal allowed. Judgment for the appellant in the sum of Shs. 1,850/- being value of the crops.

This is a dispute over the custody of two children who were born to the parties out of wedlock. The respondent claimed that the children were his because he had been recognised as the putative father because the appellant had permitted the handing over of the child to the father after the child had weaned according to Haya custom. The appellant's father had also accepted Shs. 500/- from the respondent as legitimization fees. The appellant herself had admitted in two letters written to the respondent that the respondent was the father of the children. She now denied it.

Held: (1) "The evidence led in the primary court left no probable doubt that she (appellant) went through the ceremonies of handing over the children to the respondent.

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If she had not acknowledged him, she would not have gone through such ceremonies. Such ceremonies are performed when a child after weaning, is sent to its father. Secondly in her two letters she acknowledged that the children were by the respondent. The acceptance by her father Of the sum of Shs. 500/- is an acknowledgment of his claim." (2) It was in the children's interest to stay with their father who provided them with a secure home instead of the mother who kept on moving from one place to another according to the dictations of her business whatever that business was.

188. Musoma Town Council v. Kassam Civ. Application 19-M-70; 19/5/71; Kisanga Ag. J.

The respondent, an occupier of certain premises in Musoma Township had been assessed to taxation. He lodged an objection before the

assessment committee which disallowed it. He appealed to the district court which upheld the objection. The applicant made this application for leave to appeal out of time against the decision of the district court. The respondent objected to the application on the ground that no appeal would lie to the High Court because: (a) by s. 13 of the Municipal House Tax (Consolidation) Act 67 of 1963 and appeal lay from the assessment committee to the district court but no further appeal was provided; and (b) s. 70 (1) of the Civil Procedure Code provision for an appeal to the High Court "from any decree passed by a court of a resident magistrate or district court exercising original jurisdiction" but the district court here was not exercising original jurisdiction and therefore its decision was final.

Held: (1) "It is clear that the Municipal House Tax (Consolidation) Act cited above makes no provision for further appeal to the High Court." (2) "The provisions of section 70(1) as set out above mean that an appeal would lie to the High Court from a decree passed by the district court, and the immediate question is whether the decision of the district court in upholding the respondent's objection was a decree. That decision is headed "Judgment." Under the interpretation section 3 of the Civil Procedure Code "judgment" means the statement given by the judge or the magistrate of the grounds of a decree or order under the same section "decree" is defined to mean:- "the formal expression of an adjudication which, so far as the court expression it, conclusively determines the rights of the parties with regard to all or any of the matters in controversy in the suit and may be either preliminary or final." In other words, a decree is one which is made in the suit. The word "suit" is not defined under section 3 and I have not succeeded to find its definition anywhere in the Code. However, section 22 of the Code provides that:- "Every suit shall be instituted by the presentation of a plaint or in such other manner as may be prescribed." The word "prescribed" is defined in section 3 of the Code to mean, "prescribed" by rules, and the word "rules"

is defined in the same section to mean “the rules contained in the first and second Schedules or made under sections 29,

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45 or 82.” It would appear from these provisions that a suit is one which is commenced either by presentation of a plaint of which is commenced in any manner prescribed by the rules of the Civil Procedure Code. In the present case, the proceedings cannot be said to have been commenced in the district court by presenting a plaint. The proceedings were in the nature of an appeal from the decision of the assessment committee, and the document by which they were brought before that court is headed “Grounds of appeal.” So that the proceedings were not a suit, since they were not brought by filing a plaint, and consequently the determination of the district court in the matter could not amount to a decree made in the suit.” (3) “The proceedings were in the nature of an appeal from the decision of the Assessment Committee. That Committee was clearly not a court because under section 3 of the Civil Procedure code, court is defined to mean “..... the High Court of the United Republic, a court of a resident magistrate or a district court presided over by a civil magistrate and references to a district court are references to as district court presided over by a civil magistrate.” Thus the decision of that committee was not a decree because decree, as defined under section 3 cited above, is one which is made by the court but the assessment committee was not a court. Again, the proceedings were commenced before that committee not by presentation of a prescribed by the rules of Civil Procedure Code, but they were brought by filing notice of objection as prescribed by section 13 of the Municipal House Tax (Consolidation) Act. Thus the proceedings were not a suit and consequently, even assuming that the assessment committee was a court within the meaning of section 3 referred to above, the decision of that committee in the matter could not amount to a decree

because it was not made in the suit.” (4) “The determinant of the district court amounted to an order under s. 13 (8) of the Municipal House Tax (Consolidation) Act and the judgment of the court was a statement of reasons for the order.” (5) No appeal lay to the High Court. (6) Application dismissed.

189. Hemedi v. Hemedi Civ. App. 24-M-70; 14/5/71; El-Kind Ag. J.

The appellant was ordered to pay Shs. 829/- as damages for an alleged wrongful occupation of a house belonging to the respondent. The occupation was proved to have started in February 1961. A preliminary objection that the suit was time barred was overruled by the trial magistrate. It was argued on appeal that the learned trial magistrate erred when he held that the applicable provision was Art 120 and not 110 of the Indian Limitation Act 1908.

Held: (1) “Article 110 of the said enactment provides that where it is a claim of arrears of rent, the limitation period is three years, and that time begins to run when the arrears became due. And article 120 of the same enactment; provides that where the suit filed has not been provided for anywhere in the Act, the limitation is six years, and time begins to run as from the time when the right to sue accrues. It would appeal that the Indian Limitation Act 1908 did not specifically provide for wrongful occupation.

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As the learned trial magistrate rightly directed himself, this was not a suit for arrears of rent but that of damages for wrongful occupation though the amount was calculated on the basis of rent collected per month. Therefore, he came of correct decision when he held that the applicable provision was Art 120. However I am satisfied that even in view Art 120 this claim was time barred. As the evidence indicated, the appellant went

into occupation in February, 1961, and not July 1965 as the learned magistrate thought, the right to sue accrued as from that time. if taken from February 1961, then this claim, which was filed on the 2nd of June 1st 1970, was obviously time barred as six years had already expired, and therefore the claim/suit ought not to have been admitted for hearing.” (2) Appeal allowed.

190. Anglina v. Nsubuga and Bukoba District Council Civ. Case 12-M-69; 29/5/71; Mnzavas Ag. J.

The plaintiff/widow sued the two defendants on behalf of herself, her four children and her deceased husband's mother as dependants of the deceased husband under s. 4(1) of the Law Reform (Fatal accidents and Miscellaneous Provisions) Ordinance, Cap. 360. the plaintiff alleged that the first defendant being employed by the second defendant as driver was negligent in driving a vehicle on which the deceased's was traveling and this cause the deceased to fall off and to be run over by the vehicle. The defence was a denial of negligence and a submission that the first defendant was on a frolic of his own when he caused the accident because he was taking the deceased (who also worked for the Council as a turnboy) to his home when the accident occurred citing CROOK v. DERBYSHIRE LTD. [1956] All E. R. 447.

Held: (1) “It was the negligent driving of the first defendant that caused the death of the deceased.” (2) “There can be no doubt from the map (D. Exb 2) produced by the defence that the first defendant deviated from the main road to Bukoba and drove to Maruku in order to send the deceased home. It was when he was sending the deceased home that the accident occurred. Before deciding this issue the court has to answer the question – What is the course of employment? According to Winfield on Tort – 7th Edition page 741, “a wrong falls within the scope of employment if it is expressly or impliedly authorized by the master or is unauthorized manner of doing something which is authorized, or is necessarily

incidental to something which the servant is employed to do". In the case of MITCHELL vs. CRASS WELLER (138 E. R. 11890 at page 1193, Jarvis c. J. had this to say "No doubt a master may be liable for injury done by his servant's negligence, where the servant, being about his master's business, makes a small deviation, or even where he so exceeds his duty as to justify his master in at once discharging him". I think at all events, if the master is liable where the servant has deviated, it must be where the deviation occurs in a journey on which the servant had originally started on his masters business; in other words he must be in the employ of his master at the time of

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committing the grievance." This exposition of the law was agreed by Maule, Cresswell and Williams JJ as the law to be applied when the question of vicarious liability is in issue. The next case I would like to refer to is that of RAYNER vs. MITCHELL (2 C P D. 357) at page 359 where Lord Coleridge C. J. states "It was laid down in Lord Holt's time, and repeatedly since, that whenever the master instructs a horse of a carriage or anything which may readily be made an implement of mischief, to his servant to be used by him in furtherance of his master's business, or for the execution of his orders, the master will be responsible for the negligent management of the thing entrusted to the servant, so long as the latter is using it or dealing with it in the ordinary course of his employment. That is undoubtedly a correct statement of the law." In MOHAMED AKBAR vs. NOCHOLAS AND ANOTHER 12 E. A. C. A. 39 in which the question of vicarious liability was in issue it was held "That when a plaintiff in a suit for negligence proves that damage has been caused by the defendant's

motor-car, the fact of ownership of the lorry by the defendant and of the driver being in his employment at the time and actually driving the vehicle was prima facie evidence that the driver was acting within the range of employment and that the defendant was liable." If the above decisions and the exposition of the law by Winfield tells us anything that thing is that it is not for every act of negligence by a servant that a master is liable; but that the master is liable if the act of negligence was done by the servant, either within the scope of his authority or as an incident to his employment. "Even if, for argument's sake the court was to find that there were regulations prohibiting employees from using Council's vehicles for their own ends, I would not be prepared to say that the sending of the deceased, who was the Council's employee; and who was on duty at that time amounted to using the vehicle by the first defendant for his own private purposes as pleaded in the amended written statement of defence, paragraph three. The deviation by the first defendant had originally started on his master's business. The sending of the deceased home in the council's vehicle by first defendant may not have been expressly authorized by the second defendant but his sending the deceased home in the Council's vehicle is clearly and necessarily incidental to what he is employed to do. The act certainly can not be treated in abstraction from the circumstances as a separate act." On assessment of damages it was argued that the members of the family are assisting the widow and the children. This was not relevant so as to reduce damages because any help is gratuitous and must depend on the financial ability of the rest of the family. I now come to the amount of damages to be awarded to the defendants; there is nor is proper proof of deceased age at the time he died. Postmortem report (Exh A). Gives his age as "adult". The plaint, under the heading particulars of negligence, says that the deceased was 27 years old when he died. This estimation of deceased's age has not been challenged by the defence. I therefore, in the absence of better

evidence hold that the deceased was 27 years old when he met the unfortunate accident. Taking the retirement age as 55 and

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The fact that the deceased was in receipt of Shs. 245/- per month at the time he died – see letter of appointment Exh C – there would be a dependency of 55 – 27 which is 28 years. This brings a total of Shs. 245/- x 12 x 28 which is Shs. 82,320/-. There is no evidence as to how much of the deceased's income from his salary went to the maintenance of the widow and the children. But in my view, all things being equal, he could not have spent more than half of his income for the maintenance and upkeep of the family. The defendants are therefore entitled a sum in the region of Shs. 40,670/- compensation. There is finally the question of apportionment. According to the decisions in KASSAM vs. KAMPALA WATER CO. LTD.(1965) E. A. 587 and HAYES vs. PATEL (19610 E. A. 129, the greatest part of the total sum must go to Angelina, the widow of the deceased on the ground that she has the responsibility of looking after the four children. I apportion Shs. 30,000/- to her. Each of the four children is to get Shs. 2,600/-

191. Mohamed v. Gele Civ. App. 192-M-69; 19/3/71; Kisanga Ag. J.

This is an appeal from the decision of the resident magistrate's court at Mwanza awarding compensation against the appellant in respect of personal injuries he inflicted on the respondent. The compensation was made up of: Shs. 1,000/- for pain and suffering; Shs. 1,500/- for loss of trade and earnings; Shs. 100/- for taxi fares to and from the hospital fees, transport expenses and loss of trade and earnings was challenged on the ground that these were special damages which ought to have been proved strictly but such proof had not been made. The respondent

contended that the damages had been admitted because when the respondent alleged them, he was not challenged in cross-examination and therefore no strict proof was required

Held: (1) "It is difficult to sustain this view. The appellant, in his written statement of defence, had disputed the expenses, loss and damages which were alleged to have been incurred by the respondent. Furthermore, the appellant's advocates in a "Notice to Produce," specifically required the respondent to produce documentary evidence in respect of medical treatment. Again, it is apparent from the record that the cross-examination of the respondent was geared to showing that the respondent was unemployed at the time of the incident. In these circumstances, I am unable to uphold the submission that the damages in dispute were in any way admitted by the appellant." (2) "It is quite clear from the evidence, and the respondent's counsel concedes, that the damages in dispute were not proved. On the item of medical expenses, for example, one would expect the respondent to produce the bill in support of his claim. On the item of transport expenses, one would expect him to produce a receipt or if this was not practicable, he should call any taxi driver who drove him to and from the hospital during the 11/2 weeks, or any other person who saw him being so driven. On the item of loss of trade and earnings, the respondent merely said that he was a cattle dealer and that

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The injury put him out of work for three weeks thus causing him to lose so much money. To my mind, this was not sufficient." (3) Appeal allowed: award on taxi fares hospital fees and loss of earning are excluded.

CRIMINAL CASES

192. Asoka v. R. Misc. Crim. Cause 4-M-71; 20/4/71; Mnzavas Ag. J.

The appellant appealed from the refusal of the Magistrate to grant bail pending the hearing of his case. He was charged with stealing Shs. 2,500,000/- the property of the Tanzania Government. The appellant was a Kenya a citizen and a director of a Uganda Company and owned substantial property in Uganda and Kenya. He had sureties of substantial means who were Tanzania citizens and owned property in Tanzania. Counsel for the Republic argued that the charge was a serious one and the appellant might be tempted to “jump bail”, and that he had to homes one of which was in Uganda.

Held: (1) “There can be no doubt that the offence with which the accused person is charged is a serious one. Equally, it is not at all in dispute that the accused is a stranger to this country. He is a native of Kenya with substantial business in Uganda. In these circumstances it is my view that it would be unsafe, indeed most unrealistic, to grant bail pending the hearing of the case. Granting of the application would be detrimental to the interests of justice.” [Citing ABDULLAH NASSOR. v. R. (1945) 1 T. L. R. page 289]. (2) Application refused.

193. R. v. Ismail & another Crim. Rev. 61-M-70; 19/3/71; Mnzavas Ag. J.

The accused was charged with and convicted on his own plea of guilty of affray c/s 87 of the Penal Code. He was sentenced to six strokes of corporal punishment. The learned judge who admitted the case for revision noted “There is no evidence or facts do not disclose the age of Ismail Kassani who was sentenced to 6 strokes. No legal basis for imposing six strokes.’

Held: “In this case the accused when asked his age by the Court is reported to have replied – “I am fifteen years old.” After this reply the Magistrate said and I quote “The first accused is a juvenile, his age undoubtedly shows he is under 16 years of age. “He then proceeded and sentenced him to six strokes corporal punishment. I agree that the learned Magistrate did not have any other source of information about the accused’s age but for the accused’s own word that he was fifteen years old. But this does not, in my view, invalidate the magistrate’s finding of fact as to the age of the first accused. Having believed the accused’s word that he was fifteen years old, it was not necessary for him to look for other evidence because, as far as he was concerned, he was amply satisfied that the first accused was below 16 years of age.” (R v. Recorder of Grimsby (1951) 1 All. E. R. page 889 approved).

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194. Julia v. R. Crim. App. 104-M-71; 23/3/71; El-Kindy Ag. J.

The appellant was convicted of causing grievous harm c/s 225 of the Penal Code and was sentenced to 18 months imprisonment. It was established that the appellant, a mother of 4 children, attacked her co-wife with a slasher because of what was characterized as a most trivial quarrel and thereby causing her co-wife to suffer a fracture of the arm. Appellant was a first offender and appealed for leniency since she had pleaded guilty tot eh charge.

Held: (1) [The] fact that the appellant was a co – wife with the complainant was something which ought to have been taken into consideration in assessing the sentence. These women are supposed to live together, and to send one of them in prison will not help to bring about an amicable settle-ment. This is bound to aggravate matters. I consider that this was a sort of case whose reconciliation and settlement would

have served a better purpose, as this would have healed the original assault, while imprisonment is bound to further strain their relationship. A fine and or compensation would have served the purpose.” (2) “In passing the sentence, the learned magistrate did not pay much attention to the fact that the appellant was a mother of 4 children. It may well be that offences of violence are on increase in the area, as the trial magistrate said, but this by itself is not sufficient to blind him from seeing the other factors which ought to have been considered. In my view the sentence imposed is so excessive that this court would be doing injustice if it does not interfere with it, in the circumstances of this case. I, therefore, invoke my powers of revision conferred upon me. The appellant has been in prison since 16th of January, 1971, and this is more than enough for her. The sentence is reduced so that it results in the immediate release of the appellant.”

195. Ntankwa v. R. Crim. App. 615-M-70; 10/2/71; El-Kindy Ag. J.

The appellant was charged with and convicted of killing an animal with intent to steal c/s 279 of the Penal Code. He was sentenced to 3 years imprisonment under the Minimum Sentences act. The facts as found by the Magistrate were that the complainant had tethered two goats near the appellant's shamba. In the evidencing when he went to collect them one was missing. Later the same day he saw the appellant carrying a sack and a panga. When challenged, the appellant put down the sack and ran away. On being opened the sack was found to contain the carcass of a goat which the complainant identified as his missing animal.

Held: (1) “Two issues arise in this appeal. Firstly whether the facts as established disclosed the offence of killing an animal capable of being stolen with intent to steal, and whether the offence fell within the provisions of the Minimum Sentences act.” (2) “The facts do not show whether the panga had any bloodstains on it or any sign that it had recently been washed so as to suggest that the panga had been used

recently. It is not clear how the death of the goat was affected, although the implied meaning was that it

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Was slaughtered, but the evidence falls short on this issue. It would appear that (Section 279) is intended to cover a situation where the offender who intended to steal the carcass, a skin or any part thereof, killed that animal with intent to steal. The facts as found did not support the charge.” (3) “It is well established that where a person has been convicted for a non scheduled offence a conviction for a scheduled offence cannot be substituted (see JOHN S/O SILANDA/1968 H. C. D. No. 322). In this case the alternative, on the facts, is a conviction for cattle theft which is a scheduled offence. The determination of this issue involves the question of whether the offence under section 279 is also a scheduled offence. In the case of KATALICHE S/O JOHN 1967 H. C. D. No. 367 his lordship Saudi J. said this: “It appears that this offence falls within the ambit of the Minimum Sentences Act as far as the sentence is concerned”. Section 279 of the Penal Code provided that the sentence would be “the same punishment as if he had stolen the animal”. It could therefore be argued that the sentenced for committing an offence under section 279 of the Penal Code partly falls within the ambit of the Minimum Sentences Act. However I am of a different opinion, bearing in mind that I am dealing with a severe provision of law which should be strictly construed. In my view when section 279 refers to the sentence as being the same as if he had stolen the animal” it means no more than that the sentence should be as stated in the provisions regarding theft, and his would be either section 265 of the Penal Code, which provides a maximum sentence of five years or section 268 which provides a maximum sentence of ten years. Section 268 of the Penal Code was specifically affected by the Minimum Sentences act. Section 279 is not

specified in that Act. Therefore, it must be presumed that the legislation did not see fit to fix a minimum sentence for an offence under Section 279 of the Penal Code. I have come to the conclusion that the offence of killing an animal capable of being stolen, with intent to steal c/s 279 of the Penal Code does not fall within the ambit of the Minimum Sentences Act. As it is non scheduled offence, this Court cannot substitute a conviction for cattle theft c/s 268 and 265 of the Penal Code.” (4) The conviction was quashed and the sentence set aside.

196. R. v. Tiruhumwa Crim. Rev. 3-M-71; 19/3/71; Mnzavas Ag. J.

The accused was convicted driving of driving a motor vehicle whilst his efficiency as a driver was impaired by drinks or drugs c/s 49A (1) Traffic Ordinance Cap. 168. He was sentenced to a fine of Shs. 30/- or 7 days imprisonment. When the case went to the High Court on revisions, the Republic argued that the sentence was extremely inadequate and that there were no special reasons entitling the trial magistrate not to disqualify the accused from driving.

Held: (1) “As rightly stated by the Republic, driving a motor vehicle while one’s efficiency is impaired by drink is a serious traffic offence. It carries with it a maximum penalty of a fine of Shs. 2, 000/- or to imprisonment of six months or both such fine and imprisonment. Over and above this prescribed punishment it is mandatory that an order to

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Disqualify a person convicted of this offence from holding or obtaining a driving license should be given by the court registering the conviction – unless of course there are special reasons entitling the court not to order disqualification.” (2) “As I have already said the evidence it that the accused has only been driving for 13 years at the most and not 30 years. But even if for argument’s sake 30 years period is to be accepted,

this does not necessarily entitled the learned magistrate to impose such a manifestly inadequate sentence in such a serious traffic offence. Nor does the fact that he is a driver at the Government Hospital ipso facto entitle him to such leniency.” (3) “Before a court decided not to order disqualification in a case of this nature the court must first be satisfied that there were special reasons in the circumstances of the case. special reasons which can empower a court not to order disqualification, which is otherwise mandatory must as has been established by a very long and unbroken line of authority, be special to the circumstances of the offence and not to the offender. The long accident – free driving of the accused is a reason special to the accused, so is, if it is a special reason at all the fact that he is an employee of the Ministry of health.” (4) Sentence enhanced to a fine of Shs. 200/- or 3 months imprisonment and accused disqualified from holding or obtaining a driving licence for twelve months from date of conviction.

197. R. v. Alex and seven others Crim. Case 101-A-70; 10/4/71; Kwikima Ag. J.

The eight accused persons were originally charged with murder and subsequently called upon to answer a charged of manslaughter. They were alleged to have participated in the beating of a suspected thief. The trial judge convicted seven of them for manslaughter. He examined the law governing common intent.

Held: (1) “The East Africa Court of Appeal described common intent in the case of Okute Kaliebi and Onor. v. Rex 1941 (8) EACA 78 as follows: “In our opinion the fact that two people have the same intention does not necessarily mean that they have a common intention, for, the circumstances may be such as to show that each has acted independently of the other. Where several persons together beat another, then though each may have a different reason, and though some may join in the beating later than others it is plain that all have what the law calls common intention, which does not necessarily cannot any previously

concerted agreement between them.” “We must not be taken to lay it down as a universal rule that there can be no common intention unless the first assailants had reason to anticipate that others would or might come and continue the assault, if the proper inference from the evidence was that the first party approved of and associated themselves with the action of the new-comer, that might will be taken to indicate the existence of common intention If it were established that the members of tribe A

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had a practice of beating any member of tribe B whom they found in their lands then indeed there would be such common intention as might make those who first beat member of tribe B responsible in law if that beating combined with a second beating by other members of tribe A caused his death.” That appears to me to be the best definition I have come across. I have searched for more definitions but they all refer to this and the other case the facts of which are on all fours with the present, and it is the case of R. v. Tabulayenka and other 1943 (10) EACA 51. In that case the deceased was beaten to death after being suspected of stealing. He was discovered sitting near the door of a hut at night. The alarm was sounded and several persons came rushing to the spot and at once proceeded to kick and punch the deceased till he died of multiple injuries. Here the court took time to define common intention again. “There being no suggestion that the violence used was necessary to should have been any concerted agreement between the accused prior to the attack on the so called thief. Their common intention may be inferred from their presence, their actions and the omission of any of them to dissociate himself from the assault.” Mr., Gossain relied on the judgment of Reide J, reported in [1962] E. A. 766. In that case one of the accused was acquitted of murder because she struck a blow and retreated, leaving the others beating the deceased.

Reide J, went as far as to suggest that common intent can only be inferred where the victim is attacked by all members of the crowd “simultaneously”. That case is different from this one here since in this case all the accused stayed long at the scene and their purpose could not have been other than to punish the thieves in the customary way of their tribe. For this reason I feel bound to acquit Aloys Paulo of the charge as his purpose and intention may have been to take the deceased to justice as he himself alleges. I convict Aloys of simple assault which he has been proved to have committed. As for the rest of the accused the only reason why they beat the deceased without even stopping others from doing so after his condition had become critical was because they commonly intended punish him. As such they were particeps criminals and I have no hesitation in finding them guilty of manslaughter as charged.

198. Athuman and two others v. R. Crim. Apps. 29, 30 and 269-D-70; 10/5/71; Biron J.

The appellants were charged with burglary and stealing. In his petition of appeal the first appellant stated that he had been previously tried for the same offence before a primary court. The proceedings of the primary court hearing were called off and they disclosed that he had been charged with the offence but that after he had given evidence in his defence, the charge had been withdrawn under s. 22(1) of the Primary Courts Criminal Procedure Code apparently because he was to be tried by the district court. The issue was whether the defence of *autrefois acquit* was open to him.

Held: (1) “Section 22 of the Primary Courts Civil Procedure Code reads: “22. – (1) A complainant may with the

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Consent of the court, withdraw his complaint at any time before the accused person gives evidence at the trial, and where the court gives its consent to the withdrawal of the complaint, it shall withdraw the charge and, unless the accused person is remanded in custody on some other charge, discharge him. (2) The discharge of an accused person under this paragraph shall be without prejudice to the institution of new proceedings for the same offence. (3) Nothing in this paragraph shall be construed as derogating from the power of the Director of Public Prosecutions to enter a *nolle prosequi* in any proceedings.' As will be noted, the section is silent as to the position when a charge is withdrawn after the accused has given evidence. On the principle of *expressio unius personae vel rei, est exclusio alterius*, the section could be and should be construed to the effect that if the charge is withdrawn after the accused has given evidence, he is entitled to an acquittal. If there is any doubt as to the construction of this section such doubt is, I consider, dispelled by the wording of section 86 of the ordinary Criminal Procedure code, from which the section 22 is derived, and which reads:- "86. In any trial before a subordinate court any public prosecutor may, with the consent of the court or on the instructions of the Director of Public Prosecutions, at any time before judgment is pronounced, withdraw from the prosecution of any person; and upon such withdrawal- (a) if it is made before the accused person is called upon to make his defence, he shall be discharge of an accused person shall not operate as a bar to subsequent proceedings against him on account of the same fact; (b) if it is made after the accused person in called upon to make his defence, he shall be acquitted."the withdrawal of the charges against the first and second accused after they had given evidence, they should have been acquitted. The case against them is therefore *res judicata*, and the defence of *autrefois acquit* is open to them." (2) "The evidence against the other appellants did not justify conviction." (3) Appeals allowed; Conviction quashed.

199. Jairos v. R. Crim. App. 740-D-70; 26/3/71; Biron J.

The appellant was convicted of contempt of court by a District Magistrate and sentenced to six months imprisonment. The alleged contempt occurred during the trial of the appellant for burglary and stealing when his brother was giving evidence for the defence, the conduct held to constitute contempt was recorded thus; "Accused does not want to get into (the) dock. I have warned him several times. Accused makes disturbances in court. This is contempt of court under section 114 Penal Code and I convict him and sentence accused to 6 months imprisonment."

Held (1) (Citing Joseph Odhengo s/o Ogongo v. R. XXI E. A. C. A. 1954, 302 and Morris v. Crown Office [1970] 2 W. L. R. 792, 801) "Although the decision of the Court (of Appeal for Eastern Africa) was on the Kenya Penal Code, as the corresponding provision of our Code is the same, the Court's ruling is binding on our courts. Therefore, despite, as remarked, the ex facie purport of the section, it is

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incumbent on a court even when acting under section (2) (of section 114 of the Penal Code) to frame a charge and call upon the accused to show cause why he should not be convicted upon the charge so framed and give him a fair opportunity to reply". (2) "Although the construction by the Court of Appeal of the subsection rather restricts the power of a court on committal for contempt, from a practical point view, it has the salutary effect of given magistrates who might otherwise be carried away and act hastily, cooling time, so as to avoid such embarrassing cases like committing for contempt a court clerk for failing to produce an exhibit or a file in time, or a prosecutor for appearing late in court." (3) Appeal allowed. Conviction quashed and sentence set aside.

200. Khimji v. R. Crim. App. 59-D-71; 10/3/71; Biron J.

The appellant was convicted of a rash and negligent and causing harm c/ss 233 (d) and 234 of the Penal Code, the charge stated that he did not take care of one of his dogs which attacked and bit the complainant occasioning him to suffer actual bodily harm. In his judgment the trial magistrate stated that the accused "ought to have known and he did know that his dog was vicious. Thus he could not just release it in order to cause harm on other persons." No evidence was led to show that the dog was vicious.

Held: (1) "As very rightly submitted by Mr. Tahir Ali, the first appearance of the word "vicious" is in the magistrate's judgment. There is not in the evidence the slightest suggestion of any vicious propensity in any of the dogs." (2) [Citing from LAW OF CRIMES by Ratanlal and Thakore 14th ed. at p. 654 and HALBURY 3RD ed Vol. I p. 663 paras. 1267 and 1268] "In the case of animals which are tame and mild in their general temper no mischievous disposition is presumed. It must be shown that the accused knew that the animal was accustomed to do mischief. Some evidence must be given of the existence of an abnormally vicious disposition. A single instance of ferocity, even a knowledge that it has evinced a savage disposition is sufficient notice. Before the owner or keeper of the animal can be convicted under this section, it must be made out that the animal was known to be ferocious, and that it was negligently kept." (3) "Learned State Attorney submitted that the fact that the appellant kept the dog on a chain was an indication that it was vicious. With respect, there are so many reasons why a dog is or should be kept on a chain that, to my mind, it is impossible to presume from such fact that the appellant knew that the dog was vicious. With respect, there are so many reasons why a dog is or should be kept on a chain that, to my mind, it is impossible to presume from such fact that the appellant knew that the dog was vicious." In this case there was an explanation that the dogs were kept on a chain in order to prevent them from going out and rummaging in

the refuse dump behind the appellant's house. (3) Appeal allowed; Conviction quashed.

201. Abubakar s/o Hamisi v. R. (PC) Crim. App. 35-D-71; 29/4/71; Mwakasendo Ag. J.

The appellant was charged before a Primary Court of stealing eight heads of cattle. He was acquitted but then the

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Magistrate ordered that he pays five heads of cattle and Shs. 82/- to complainant. The appellant appealed against this order but his appeal was dismissed by the District court.

Held: (1) "I can find no authority whatsoever which empowers a Magistrate to convert a Criminal Case into a civil one. The Procedure to be followed in the trial of criminal cases is clearly laid down in the Magistrates' Act 1963; the Third Schedule If at the end of the case the Magistrate was of the view, as indeed he was, that no offence of cattle theft had been disclosed by the evidence but that on the facts a civil suit might lie, he should have acquitted the appellant of the offence charged and advised the complainant to seek his legal remedies by civil suit." (2) Order of Primary Court set aside; Parties may pursue their rights by way of civil suit.

202. R. v. Hiiti Crim. Rev. 14-A-71; 28/4/71; Kwikima Ag. J.

The accused was seen by non-less than two persons having unlawful sexual intercourse with the complainant who had not consented to it. There was no doubt as to his guilt.

Held: (1) "The trial magistrate took a very serious view of the offence and sentenced the accused to 12 months imprisonment and 12 strokes corporal punishment under Cap. 17. The complainant was a

married woman to whom sexual intercourse was a frequent if not a weekly indulgence. The act itself took place in the presence of many other people who were sleeping at the time. No violence was inflicted on the complainant. As such the learned District Magistrate could not have justifiably chosen to treat the accused so harshly. In my opinion the 12 stroke would have adequately met the circumstances of this case. I am minded, however, to let the accused remain in jail a little longer in order to discourage potential rapists. Accordingly I reduce the jail term to six months. The order for corporal punishment shall stand.”(2) The compensation must have been awarded on account of the venereal disease infected on the complainant by the accused. Indeed the learned District Magistrate remarked; “In this case there exists some thoroughly foul breach of any elementary decency as committed by the accused, and some mean injustice against PW 1 who came to contract gonorrhoea as a result of the unlawful sexual intercourse committed..... One never knows of other more serious consequences might not be fall the poor lady e.g. sterility.” Taken in the light of these words, the order appears to have been made not in order to redress the damage to the complainant’s health; but rather to make the accused suffer for his act of gross immorality. This is surely a moral rather than legal consideration, and it explains why the obviously disproportionate figure of Shs. 300/- was fixed. Had the learned magistrate confined himself to the law and not to emotionalism and moral indignation, he could not have arrived at such a high quantum of compensation especially after inflicting what was to all intent and purposes a very stiff punishment. Accordingly the amount of compensation is hereby reduced by Shs. 250/-. The accused shall pay Shs. 50/- compensation or distress.

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203. Iddi v. R. Crim. App. 10-A-71; 30/4/71; Kwikima Ag. J.

The appellant was convicted of unlawful possession of bhang and Moshi and sentenced to 12 months imprisonment. He appealed against conviction and sentence. The issue was whether there was sufficient evidence to justify a finding that the accused was found in unlawful possession of bhang.

Held: (1) "The identity of the staff found with the appellant was made out by two Policemen who professed expertise at and considerable experience in handling such matters. As far as the identification of "Moshi is concerned the evidence of Policemen is sufficient following the cases of Jumanne Juma v. R. [1968] H. C. D. 304 and R. v. Amri Rashidi [1968] H. C. D. 302. As the identification of bhang is concerned, the position is quite different. In the case of Salim Haruna v. R. [1968] H. C. D. 37 Cross J. (as he then was) held that: "It would be unsafe to base a conviction on the bald evidence of a Police Constable that he knows bhang without any inquiry as to how he acquired his knowledge." In this case, we have merely the bald statements of the two Police Constables. There was no enquiry as to how they acquired their expertise in identifying bhang. Accordingly the conclusion that the appellant was found in unlawful possession of bhang was not supported by evidence and it should not stand. (2) Appeal allowed

204. R. v. Melkior Crim. Rev. 36-D-71; 30/4/71; Biron J.

The accused was convicted of unlawful wounding and he was sentenced to imprisonment for two and a half years, and awarded 12 strokes of corporal punishment. The proceedings were forwarded to the High Court for confirmation.

Held: (1) "Although the sentence was richly deserved as the assault was a very serious one and could even have proved fatal but for prompt medical attention, I am afraid that the sentence cannot be confirmed, as the award of corporal punishment is ultra vires. Apart from sexual assaults, the only assaults which attract corporal punishment are set out in

the Schedule to the Corporal Punishment Ordinance (Cap. 17 – Supp. 58) are assaults contrary to section 228 of the Penal code and as set out in Item 2 of Part 1 of the Schedule, which reads; [His Lordship then set out the provision and continued] Unlawful wounding does not attract corporal punishment.” (2) “It is anomalous that although the much lesser offence of common assault, if of an aggravated nature, can attract corporal punishment, the much more serious offence of unlawful wounding however aggravated does not. The court however can only apply the law as it finds it.” (3) Award of corporal punishment set aside; Sentence of imprisonment confirmed.

205. Ngau v. R. Crim. App. 39-A-71; 4/5/71; Kwikima Ag. J.

The appellant was convicted of burglary and theft. A house belonging to one Edna Leonard was broken into on night of 16/17 May 1970. A blanket and a radio were stolen among

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other things only to be found in the possession of the appellant a month later. The complainant Edna identified the radio because her name was scratched on it and the blanket from the spot where it was burnt but only after she had been shown the blanket at the police station and presumably had studied it and committed to memory any special marks it had. The appellant testified under oath that the blanket was his own but the trial magistrate did not consider this evidence. The case depended upon the doctrine of recent possession and the main issue was whether the appellant had received the property innocently.

Held: (1) “The accused persons are only held culpable if they fail to explain to the satisfaction of the court that their possession of the articles

proven to have been recently stolen in innocent and lawful. In this case the blanket was claimed by one of the appellants to be his property. The complainant purported to give her identification mark after being shown the disputed blanket at the police station when she had opportunity to study it and commit to memory any special marks it would have. It is therefore unsafe to hold that the disputed blanket was conclusively Edna's property stolen in the course of the burglary at her house." (2) "The trial court ought to have investigated that his [appellants] claim that the blanket was his property. The judgment reveals that the appellant's evidence given on oath was not even considered by the learned trial magistrate. This occasioned a failure of justice as a court should judge a case according to all evidence before it and not only according to the evidence of the prosecution." [See William v. R. 1970 H. C. D. 176] (3) Appeal allowed.

206. Anthony v. R. Crim. App. 25-A-71; 30/4/71; Kwikima Ag. J.

The appellant was charged with and convicted of compulsory marketing c/ss 67A and 13(1) of the National Agriculture Produce Board (Finger Millet (Ules) and (beans) Orders 1969 and 1970. The particulars of the offence read as follows: "The person charged on 14th day of July, 1960 at about 13.00 hours at Sanya Village within District of Moshi Kilimanjaro Region did jointly and altogether failed to comply with National Agriculture Produce Orders, in that they jointly and altogether transported in Toyota MSA 927 twenty bags of finger millet from Arusha Region to Kilimanjaro Region without order from the Chairman of National Agriculture Produce Board". The relevant G. N. and orders were not included in the charge and in fact there is no such offence as compulsory marketing. The charge was very badly worded and the problem arose as to whether or not the appellant had not been prejudiced.

Held: (1) "The offence described as compulsory marketing does not in law exist. What the appellant was being charged with was in fact"

carrying scheduled produce without the written permission of the chairman of NAPB or his agent.” This is the offence established by GN 247 of 26th September, 1969 and later amended by GN 287 of 1970 to include finger millet.” (2) “The charge was so badly worded that had the proceedings not been in Kiswahili as they most probably were,

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the appellant would have been prejudiced. However the facts admitted by the appellant fully disclosed the offence in all its ingredients. As such the appellant cannot be said to have been prejudice in any way. The defect in wording and the failure to cite the relevant orders is curable under section 346 CPC. Indeed Platt, J. (as he then was) has held in the case of Daudi Hamisi v. R. 1967 H. C. D. 21 that where the particulars set out all the ingredient of the charge the accused cannot be said to have been prejudiced.” (3) Appeal dismissed. Charge amended to include the G. N. and relevant orders.

207. Saidi and Kidagee v. R. (PC) Crim. Apps. 391 and 654-M-70; 9/4/71; Mnzavas Ag. J.

The appellants Yusufu Saudi and Mziwand Kidagaa were jointly convicted of store breaking and stealing c/s 296(1) and 265 of the Penal Code and sentenced to two years and 24 strokes each. The only evidence against Mziwanda Kidagaa was that of Yusufu Saudi, a co-accused who said that Kidagaa was the person who was with him when they were ambushed.

Held: (1) “That in accepting the testimony of Yusufu that Mziwanda was the person who ran away on the material night the primary court magistrate erred against RULE 13 OF THE MAGISTRATES COURTS (RULES OF EVIDENCE IN PRIMARY COURTS) REGULATIONS, 1964 Vide G. N. 22/1964. Rule 13(1) (2) is to the effect that “no evidence may be given in a case against a person accused of an offence (a) if a

confession is to a police officer". In this case when Yusufu said that Mziwanda was with him when they were aroused, he was in fact confessing to have stolen the tin of ghee. He confessed to Simo Nsase (P. W. 4) a primary court messenger. As the messenger was in this case exercising the duties of a police officer, the confession made to him by Yusufu was inadmissible evidenceMziwanda's conviction was based on inadmissible evidence" (2) Conviction of Mziwanda Kidagaa quashed. (3) There was ample evidence against Yusufu Saudi and therefore his appeal is dismissed.

208. R. v. Suna Crim. Rev. 50-M-70; 20/4/71; Mnzavas Ag. J.

The accused was charged with unlawful possession uncut diamonds c/s 3(1) of Cap. 129 of the Laws, convicted, and sentenced to a fine of Shs. 300/- or 3 months imprisonment. The learned district magistrate neither wrote a judgment nor did he register a conviction before he imposed sentence. The issue was whether these irregularities were fatal to the proceedings.

Held: (1) "Every judgment should state the facts of the case establishing each fact by reference to the particular evidence by which it is supported; and it should give sufficiently and plainly the reasons which justify the finding." (citing s. 171 Criminal Procedure code, AMIRALI ISMAIL V. R. 1 T. L. R. 370, REX v. LULAKOMBA 3 E. A. C. A. 43 and WILLIAM MSAKA v. R. [1968] H. C. D. 216) 'In all the

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Above quoted decisions, the trial court's findings were set aside on appeal not because the trial magistrates did not write judgments but because of the inadequacy of their judgments. In the present case it is more than inadequacy of judgment. The trial magistrate did not bother to write even a line of judgment. This being the position and the fact that

there was no conviction registered, it is impossible to tell how the trial magistrate came to the conclusion that the accused should be fined Shs. 300/- or 3 months imprisonment.” (2) “Failure to write a judgment is clearly an incurable irregularity.” (3) In ordering a retrial all the circumstances must be considered and each case must depend on its own facts, since there was a lapse of about one year since this case was decided and the diamonds in issue have been confiscated by Government and as it may be impossible to find the accused, it would be a waste of time to order a retrial. (4) Sentence set aside; Accused to be refunded his Shs. 300/-

209. Susana v. R. Crim. App. 59-A-71; 7/5/71; Kwikima Ag. J.

The appellant was convicted of unlawful possession of poisonous drugs c/s 25 (1) (b) (c) (e) and (f) of the Pharmacy and Poisons Ordinance Cap. 416. This appeal was admitted because the trial court permitted the appellant to withdraw her plea of guilty after conviction had been recorded.

Held: (1) “It now transpires that the learned magistrate was fully entitled to give the appellant such permission before he had passed sentence. This was laid down in Hussein Hassani v. Rex 1 T. L. R. (R) 355 when the High Court of Tanzania followed with approval the English decisions of Rex v. Plimer [1902] 2 K. B. 339 and Rex v. Blahe-more 22 Cr. A. R. 49. Indeed in a very recent case, Duff, J. (as he then was) held that; - “It is quite clear that a plea of guilty may be withdrawn with the leave of the court before sentence and this is entirely a matter for the discretion of the court.” (Hassan Mohamed v. R. [1968] H. C. D. 429) (2) “It must be emphasized that the court must use its discretionary power judicially. It must record the reasons why such leave is granted and it must record such reasons as the accused used to persuade it to use its discretion in the accused’s favour.” (3) On the whole there is no cause to interfere with the conviction. (4) Appeal dismissed.

210. Lalai v. R. Crim. App. 19-A-71; 14/5/71; Kwikima Ag. J.

The appellant was charged with personating a police officer. In his trial there was no evidence of the charge of personating a police officer but another offence of criminal trespass was revealed. The trial court acquitted the appellant of the charge and convicted him of criminal trespass. He appealed.

Held: (1) "Presumably the learned magistrate who convicted the appellant purported to act under section 181 of the Criminal Procedure Code. If that was the case it must respectfully be pointed out that the section was grossly

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misapplied. For the facts of the offence of personating a police officer do not in any way disclose the ingredients of the offence of criminal trespass. Section 181 of the Criminal Procedure Code reads: "(1) when a person is charged with an offence consisting of several particulars a combination of some only of which constitutes a complete minor offence, and such combination is proved but the remaining particulars are not proved but the remaining particulars are not proved, he may be convicted of the minor offence although he was not charged with it. The rationale of this rule is that the accused will be prejudiced if in the course of his trial an entirely new offence is revealed and he is convicted with it. He will not have had time to prepare his defence." (2) "Although both personating a police officer and criminal trespass are misdemeanors, the ingredients of the former do not incorporate the ingredients of the latter. In other words, the latter offence is neither cognate nor kindred to the former." (3) "Appellant was improperly convicted." (4) Appeal allowed.

The appellant was convicted for strokebreaking and stealing beer. He was sentenced to two years and 24 strokes under the Minimum Sentences Act. He appealed conviction and sentence.

Held: (1) "There was ample evidence for the conviction of the appellant who was found outside the broken shop consuming the stolen beer." (2) "The sentence imposed on him was excessive, however. The beer stolen was valued at Shs. 15/-only. The offence itself was silly that had it not fallen under the Minimum Sentences a cat, a conditional discharge would have been most appropriate. The appellant himself is a very Youngman of 22. He is recorded to have told the court that he has a mother and a father to support. All this would clearly constitute special circumstances in terms of s. 5(2) of the Minimum Sentences act It is quite clear that the trial court seriously misdirected itself by refusing to find that there were special circumstances relating to the appellant simply because the offence itself was prevalent." (3) The sentence imposed on the appellant is in the circumstances excessive. Sentence set aside. Appellant ordered to be discharged absolutely.

212. R. v. Abedi Crim. Rev. 70-M-70; 10/5/71; Mnzavas Ag. J.

The appellant was on his own plea of guilty convicted of two offences of: (a) carrying goods for hire or reward without public carrier's licence c/ss 10(11) and 26 of the Transport Licensing Ord. Cap. 373 and (b) carrying passengers for reward without public carrier's licence c/ss 27(5) and 70 of the Traffic Ordinance Cap. 168 of the Laws. The accused had two previous convictions for carrying passengers for hire or reward without public carrier licence. The magistrate did not order cancellation of a licence. On revision, notice was issued to the accused to show because why his licence should not be cancelled. He argued that the court's power to cancel

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a registration and licence under section 27A(2) of Cap. 168 was discretionary and that this discretion should be judicially exercised, and the although he admitted two previous convictions, the record did not show what type of offences they were.

Held: (1) [Citing section 27A (2) of Cap. 168] "My interpretation of the above construction is that the court's power to order cancellation of the registration and licence of a motor vehicle used for the purpose of standing or plying for hire or for the carriage of persons for hire or reward is discretionary only when the accused is a first offender. Where an accused is not a first offender, that is, he has a previous conviction or convictions under the same section i. e. section 27A(1) of the Traffic Ordinance; the court's discretionary powers in so far as the cancellation of the registration and licence of the motor vehicle involved in the commission of the offence are removed. The Legislature having said "and where such conviction is for a second or subsequent offence the court shall, in addition to my other penalty which it may impose Order cancellation of registration and licence of the vehicle." (2) "The record showed clearly that the accused had two previous convictions under section 27A (1) of Cap. 168 which he admitted. "Over and above the mandatory provisions of section 27A (2), the record shows that the accused is an incorrigible offender. Three times in 1970 he permitted his vehicle to be used for the purpose of carrying of persons for hire or rearward. Twice he was convicted, twice he was fined, but this did not deter him from committing the same offence. The accused deserves no mercy." (3) Registration and licence of accused Mortor vehicle MZE 608 cancelled for a period of 12 months

213. Blasio v. R. Crim. App. 16-A-71; 14/5/71; Kwikima Ag. J.

The appellant was convicted of theft by agent and sentenced to nine months imprisonment. He had stood as surety for his friend one Rehani

and executed a bond for Shs. 500/-. Rehani jumped bail. The appellant then went to look for Rehani. He found the brother of Rehani who immediately gave him Shs. 500/- "kwa ajili yak wend kulipa dhamana hiyo" i. e. in order to go and meet the forfeiture of the bond. Appellant spent Shs. 100/- of this amount. In convicting the appellant, the learned magistrate held that he was acting as agent when he took the money.

Held: (1) "The learned trial magistrate failed to consider whether the appellant, believing that the money was given to him personally, had any claim of right. It did not matter whether the appellant was mistaken in his belief since ignorance of fact is legally excusable." (2) "In the present case the appellant was given the money for the purpose of redeeming himself from a bond which he had personally entered on behalf of Mbaile's brother. He had not been directed to do anything specifically, as he had simply been told to take the money instead of Rehani. In this sense he could not be Mbaile's agent. He could not have been anybody's agent for that matter, simply because he had received the money for

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personal redemption. There was as yet no order for forfeiture of his bond. Therefore the appellant could not lawfully be called upon to surrender Shs. 500/- in exchange for Rehani's freedom." (3) "The section (s. 273 (d) Penal Code) under which the appellant was charged concerns "valuable security Received by the offender with a direction that the proceeds thereof should be applied to any purpose or paid to any person." The money given to the appellant was not in this category." (4) Appeal allowed; Conviction quashed.

214. Chande v. R. Crim. App. 15-A-71; 14/5/71; Kwikima Ag. J.

The appellant was convicted of stealing c/s 265 of the Penal Code. the trial magistrate stated that he was disgusted at the way the article in issue,

a record player, was identified and ordered its forfeiture to the government of the United Republic of Tanzania.

Held: (1) "The appellant was found in very suspicious circumstances with the record player, and its identification by the complainants was not disputed by any one." (2) "The trial court ordered the forfeiture of the record player and cloth to the government of the United Republic of Tanzania. This error was the result of the Court's finding that the complainants had not sufficiently identified these items. The learned trial magistrate did not cite any authority empowering him to order such forfeiture as he was duty bound to do, following the rule in *Ngulila Mwakanyemba v. R.* [1968] H. C. D. 314. For a forfeiture order to hold, it must be explicitly authorised by the law governing the offence in question. This is all trite law and the case of *Mohamed Ali v. R.* [1969] H. C. D. 54 is just one of the numerous authorities on this point. In the present case the learned Resident Magistrate acted ultra vires in ordering forfeiture. The only authority to make such order in such cases is given by section 300 of the Penal Code" (which authorizes the forfeiture of any dangerous or offensive weapon or instrument of housebreaking carried or used in connection with an offence under chapter 29 of the Penal Code.) The article forfeited in this case did not fall under the provision." (3) "Forfeiture order set aside and articles handed back to complainants." (4) However appeal dismissed.

215. R. v. Bimonyira Crim. Case 28-B-71; 5/5/71; El-Kindy Ag. J.

The accused was charged with murder contrary to section 196 of the Penal Code. He denied the charge. At the close of the prosecution's case, the judge overruled a submission of no case to answer. He directed himself as to the implication of the overruling of the submission to the final verdict where the accused offers no defence as in this case.

Held: (1) "It is of course a mistake to think that because I said that there was a case to answer that, if no defence is offered, this court must

convict. This is clear from what was stated by Wilson J. in REX v. JAGJIWAN PATEL AND FOUR OTHERS I T. L. R. (R) p. 85 at p. 87 I think

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The wording in RAMANLAL T. BHATT v. R. [1957] E. A. 332 at page 335 too supports this view. The reference to the words "could convict" would indicate that it does not necessarily mean that such court must convict at the end of the trial if no defence is put forward. The accused is entitled at this final stage, to a full consideration of the evidence irrespective of what I said when I ruled that there was a prima facie case against the accused for the accused to answer. A mere prima facie case is not sufficient to support conviction" (see WABIRO alias MUSA v. R. [1960] E. A. 155 and GABRIEL s/o MUHOLE v. R. [1960] E. A. 159)." (2) "The case against the accused is based on circumstantial evidence. For such evidence to found a conviction, the court must find that the inculpatory facts are inconsistent with the innocence of the accused and incapable of explanation upon any other hypothesis than that of guilt. (See SIMON MUSOKE v. R. [1958] E. A. 715, SHARMPAL SINGH v. R. [1966] E. A. 762 and ILAND s/o KASONG v. R. [1960] E. A. 780). It is therefore for this court to examine the evidence in this case to find out if it is of such nature that it leads to only one conclusion that of guilt of the accused." (3) "The evidence left a reasonable doubt that the accused was not guilty as charged." (4) Accused acquitted.

216. R. v. Salima Crim. Rev. 20-A-71; 19/5/71; Kwikima Ag. J.

On his own plea the accused was convicted of unlawful possession of a leopard skin of the value of Shs. 1,500/-. The trial magistrate observed that: "I can only express some grave concern here that the lovely beast is being illegally hunted away in the area in question with the grievous

danger that the leopard might go into extinction in this country which sorely needs foreign exchange that comes to Tanzania through tourist. As a rather stern lesson, not only to the accused but also to those irresponsible persons who carry out such whole – sale slaughter of an animal of such beauty” and sentenced the accused to two years imprisonment.

Held : (1) “So carried away with feeling was he (the trial magistrate) that he could not pose to consult the law with which,the sentence was grossly at variance the maximum, term of imprisonment possible thereunder (s. 53(1) (a) (ii) Fauna Conservation Ordinance Cap. 302) is six months imprisonment for a first offender and nine months for a repeater.” (2) “..... the accused was not caught killing leopard or even skinning the carcass of one. He could not therefore be punished for some slaughter of which he might not even be responsible. At any rate the slaughter of one leopard cannot be wholesaled unless the word whole-sale has juridical grounds, grossly disproportionate and illegal.” (4) Sentence set aside; accused to pay fine of Shs. 400/- or four months imprisonment.

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217. Khalid v. R. Crim. App. 716-M-70; 18/5/71; Mnzavas Ag. J.

The appellant was convicted of contempt of court. He was a party to a civil suit in which a disputed piece of land was awarded to his adversary. A few days after he was found cultivating the same piece of land and was charged with contempt. He explained that he had cultivated the land because his appeal to the District Court was still pending and that after judgment the land had been allocated to him by the local TANU committee. This was taken as a plea of guilty. It was argued on appeal that the facts did not disclosed the offence because it was not show

whether the appellant used to live on the land before judgment and continued to live there after judgment or whether he simply proved there after judgment. If it was the former, he could not be said to be guilty of contempt.

Held: (1) (Citing SAMWEL S/O BURINI v. R. [1967] H. C. D. 337) “I tend to agree That the facts as shown on the record are not compatible with a charge under section 114 (1) (h) (Penal Code). To support a conviction under this section it must be shown that the accused had retaken possession of the land from Mpule after he had obtained judgment from the primary court in his favour.” (2) “The conviction would have been proper if the charge was brought under section 114 (1) (i).” (3) Conviction set aside; Appeal allowed.

218. Mulengera v. R. Crim. App. 871-M-70; 12/5/71; Mnzavas Ag. J.

The appellant was convicted of stealing c/s 165 of the Penal Code and sentenced to 2 years and 24 strokes corporal punishment. He was originally charged with stealing by person employed in the public service but then after an adjournment the prosecution put in a substituted charge of simple stealing. The charge was read to the accused and he replied; “I know the money was TANU property, and it is true and I admit I stole the money belonged to TANU Kigongo Branch. I am sorry for this offence.” It was argued on appeal that the trial magistrate erred in sentencing the accused under the Minimum Sentences act because the accused was charged with simple theft. (Referring to JOHN s/o SILANDA [1968] H. C. D. 322.

Held: (1) (Distinguishing JOHN s/o SILANDA [1968] H. C. D. 322 “the facts in that case are totally different from the facts of the present case. in the case of John Siland, the accused was charged with stealing goods in transit contrary to section 265 and 269 (c) of the Penal Code; but the trial magistrate, consistent with the facts found that the accused was guilty of stealing by a public servant c/ss 265 and 270 of the Penal Code

ad convicted him of this offence. The High Court varied the conviction to stealing goods in transit and reduced the sentence. In doing so, the High Court said inter alia that “unless a person is expressly charged with a scheduled offence and he specific relevant section set out with precise particularity, he cannot be convicted of a scheduled offence.’ In the present case the accused was charged with and convicted of stealing Sh200/-

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TANU money contrary to section 265 of the penal code. section 3 of part I of the schedule to the Minimum sentences Act, cap, 526 of the laws shows that simple theft c/s 265 falls under the minimum sentences Act if it is shown that the offender knew or ought to have known that the thing stolen is the property of the Government, a city council, municipal council, town council, ... a political party, a missionary or a charity,” (2) “the money belonged to TANU a political party. Therefore the trial magistrate had no alternative but to impose a sentence of two years and 24 strokes corporal punishment.” (3) Appeal dismissed.

219. Rashidi v. R. Crim. App. 35-D-71; 14/5/71; Biron J.

The appellant, a police corporal was convicted of stealing by a person employed in the Public Service c/s 270 and 265 of the Penal ode and sentenced to 2years imprisonment and 24 strokes of corporal punishment. The appellant was detailed to investigate a case of bar – breaking and stealing. In the course of his investigations he searched the house of a suspect. At the time of the search the suspect and two other persons were present. The three of them were also searched and money totaling Shs. 181/25 taken from them by the appellant who kept it. The warrant, under the authority of which the appellant purported to conduct the search, was

unsigned. At the hearing of his appeal the appellant contended that the prosecution had not established that the money was the property of the Republic nor that it came into his possession by virtue of his employment and the offence was consequently not a scheduled offence under the Minimum Sentences Act 1963. Appellant had admitted in evidence that a police officer could search without a signed warrant if no magistrate is available and the search must be carried out without delay.

Held: (1) "I dealt with this question [when and when not property which comes into possession of a public servant does so by virtue of his employment within the meaning of section 270] at length in my judgment in Criminal Appeal No. 682 of 1969, *Yesaya Gweseko v. R.* and Criminal Appeal No. 824 of 1969, *R. v. Yesaya Gwesko* (appeal and cross-appeal by the Republic)." (2) "There is authority to the effect that where public servant obtains property as a result of an act done outside the scope of his authority the property cannot be said to have come into his possession by virtue of his employment. This very narrow construction is founded on an English case. However, as stated by Sir Charles Newbold, the then President of the Court of Appeal for East Africa in *Rashid Moledina & Co. (Mombasa) Ltd. & Others v. Hoima Ginneries Ltd.* (1967) E. A. 645, with the abolition of appeals to the Privy Council, this court is no longer bound by English decisions." (3) "Although I do not agree with the appellant that the search was lawful, I agree with the purport of his evidence that the money which he obtained as a result of the search came into his possession by virtue of his employment as a Police Officer." (4) Conviction upheld; Appeal dismissed.

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220. *Mbuji v. R.* Crim. App. 807-D-70; 4/6/71; Mwakasendo Ag. J.

The appellant was charged with five counts of false accounting and five counts of stealing and convicted on all counts. The offences were

committed within the jurisdiction of the Mpwapwa District court and came before that court on several occasions. It was however, by order of the Resident Magistrate Dodoma, transferred to the latter's court for hearing. At the start of the proceedings before the Resident Magistrate Dodoma, he appellant objected to the Resident Magistrate hearing the case, his recorded ground being "I have no faith in the trial magistrate. Because the trial magistrate stayed with the District Medical Officer when he was at Mpwapwa'. The objection was not entertained.

Held: (1) "In the circumstances of this case it cannot be too strongly stressed how important the District Medical Officer's evidence was likely to be for the success of the prosecution's case. What is more, in view of the apparent conflict between the D. M. O. 's and the appellant's evidence the question as to who should succeed rested wholly on the credibility of these two persons." (2) "The law applicable to the issue is as articulated by Lord Denning M. R. in (Metropolitan Properties (F. O. C.) Ltd. v. Lannon (1969) 1 Q. B. 577 at p. 599) and the very first question one might ask with regard to the present case is: Should the learned Resident Magistrate have insisted to preside over the proceedings after the reasoned objection by the appellant? My own view is that he should have notwhere the principal witness for the prosecution was not only the complainant on whose evidence the case for the prosecution stood or fell but was, as the magistrate himself seems to admit in his ruling, also an intimate friend of the trial magistrate, it would be lame indeed to assert that right minded people watching these judicial proceedings would think other than that the magistrate was biased. This, in my view, is the impression that people who knew the three principal actors in this case would get. It does not matter in the least, in my opinion, that they might be completely mistaken in holding this view. It matters little too that in a actual fact the trial magistrate on account of his known friendship with the D. M. O. would be partial in the matter; the trial court's decision cannot be maintained". (3)

Appeal allowed; Proceedings quashed, new trial ordered before another magistrate.

221. Ndiwayi v. R. Crim. App. 125-D-71; Biron J.

The appellant was convicted of stealing by agent c/s 273(b) and section 265 of the Penal Code and sentenced to 8 months imprisonment. The prosecution's case was that the complainant apparently wishing to purchase a rifle and not having the where withal to do so, borrowed 100/- from a cousin of his and handed the money to the appellant in order to use it in a business enterprise for the purchase and sale of fish. The appellant retained the money.

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Held: (1) (After quoting the provisions of section 261 and 273 of the Penal Code) "In view of the fact that in this case the money was entrusted to the appellant to engage in a business enterprise, in retaining such money he cannot be held to have stolen it as an agent, as I think is abundantly clear from the wording of the sections set out." (2) [Distinguishing Bwire v. Uganda [1965] E. A. 606] "There is no question of the appellant having to return the 100/- given him by the complainant. Supposing, for argument's sake, that in compliance with his agreement with the complainant the appellant has purchased fish for the Shs. 100/- and owing to a glut in the market he only succeeded in selling them at a considerable loss, or even not at all and the fish rotted, would he then be held liable as a thief for such loss? On my view of the transaction as a whole I am very far from persuaded that the retention by the appellant of the Shs. 100/- he was furnished with to engage in a fish venture constitutes a criminal offence at all, and in the absence of any authority in

that behalf, I find myself unable to uphold the conviction". (3) Appeal allowed.

222. Khan v. R. Crim. App. 132-D-71; 21/4/71; Biron J.

The appellant was convicted of conveying property reasonably suspected to have been stolen or unlawfully obtained c/s 312 of the Penal Code. the appellant was driving his motor vehicle when he was stopped by two Police Officers. A tape recorder of the type fitted in motor vehicles was found installed in the appellant's vehicle. It was this tape recorder which formed the subject matter of the charge.

Held: [Referring to Kateba v. R. [1967] E. A. 215, 216] "The question that immediately poses itself is, can it be said that the appellant was conveying the tape recorder or was in possession of it, such possession being ejusdem generis with conveying when the tape recorder was itself an accessory and therefore part of the vehicle, that is, the conveyance. Learned State Attorney conceded that was it a case of a wheel or some other mechanical part of the vehicle, then the appellant could certainly not be said to have been conveying such part, but, in the case of an accessory like a tape recorder, he was rather dubious as to the position." (2) "I must confess that I know of no authority to the point but in all the circumstances I am not persuaded that the appellant could be said to have been conveying the tape recorder or that his possession of it at the material time as ejusdem generis with conveying." (3) Conviction quashed and sentence set aside.

223. R. v. Abdu Crim. Rev. 24-D-71; 2/4/71; Georges C. J.

The accused was convicted of abduction of a girl under sixteen years contrary to section 134 of the Penal Code and sentenced to 12 months imprisonment. The relevant portion of the girl's evidence was as follows: "I met a man on the road and fell in love with me. He is in court as an

accused person. I fell in love with him little bit. I accompanied him to his house. He asked me to stay with him as his wife.

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I stayed for 24 days. I was staying inside his room. My relatives were not aware of my whereabouts. We fell in love with each other on that day at first sight. He did not know where my mother was keeping. Finally he was discovered and caught by my mother”.

Held: (1) “What the trial Magistrate does not appear to have considered was whether or not some specific intent was to be established as well and whether there was evidence in this case to do so. I Archbold, 37th Ed. pp. 2938 the following statement appears: “If the prisoner at the time when he took the girl away did not know and had no reason to know that she was under the lawful care or charge of a father, mother or some other person, he is not guilty of this offence”. (2) “A guilty intent has to be proved. It is not enough to show that the accused did in fact keep the girl away from her parents. The prosecution must also show that he intended to do this. The trial magistrate does not deal with this aspect of the matter in his judgment. If the trial magistrate had considered this aspect of the matter the trial magistrate had considered this aspect of the matter he might very well have concluded that it had not been satisfactorily proved that the accused person knew or had reason to know that (the girl) was under the lawful care of a father or mother.” (3) Conviction and sentence set aside.

224. R. v. Samson Crim. Rev. –D-71; 2/6/71; Mwakasendo Ag. J.

The accused, a housewife with no other source of income other than what her husband might choose to give her, was charged and convicted of using abusive language c/s 89(1) (a) of the Penal Code, Cap. 16 and was sentenced to a fine of Shs. 1000/- and Shs. 500/- compensation. The

learned Resident Magistrate in assessing sentence did not take into account the accused's ability to pay.

Held: (1) "While it must be conceded that the accused housewife used a most revolting and mean language towards her neighbour, it cannot be seriously asserted that he learned Resident Magistrate adopted the correct judicial approach in assessing sentence. This court has repeatedly stressed that the proper approach to be adopted by a court in assessing an appropriate and adequate sentence of payment of fine is first and foremost for the court to investigate the accused's means or ability to pay the fine. The reasons for doing this can perhaps be gleaned from the following passage quoted from a paper delivered at the judges and Magistrates conference 1965, by the learned Chief Justice, Saudi, C. J.: "I have already touched upon the desirability or imposing such fines as are within the offenders' financial ability to pay It would be injudicious and highly unfair for a court to impose such a fine that will prove impossible for the offender to pay, having regard to his income and financial commitments. Such a fine will take away the right already given to the offenders by the law, for good reason, to escape the stigma of having been in prison since he will automatically have to go to jail as an alternative for his inability to pay the fine." (2) Fine reduced to Shs. 100/- and compensation to Shs. 150/-.

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225. Issa v. R. Crim. App. 201-D-70; 27/4/71; Onyiuke J.

The appellant was charged with one Marko Assenge with stealing certain items belonging to their employer, Mtwara Textile Industries Co. He was convicted and sentenced under the Minimum Sentences Act to 2 years imprisonment and 24 strokes corporal punishment. There was ample evidence to warrant the conviction and the only issue was whether or not

the learned magistrate was right in assuming that the offence came under the Minimum Sentences Act. There was no evidence as to the status of this company or its connection with the Government but a further research it was established that it was a private company.

Held: (1) "Proof of this (i. e. whether the offence falls within the ambit of the Minimum Sentences Act) must be given unless the matter is to be judicially noticed under s. 59(1) of the Evidence Act." (2) "The learned magistrate was wrong to treat the offence as a scheduled offence under the Minimum Sentence Act." (3) Appeal against conviction dismissed. Sentence is altered to 12 months imprisonment."

226. R. v. Mugemo Insp. Note –D-71; 25/5/71; Mwakasendo Ag. J.

The charge in this case alleged that the accused was found in unlawful possession of Government trophy, to wit, a piece of an elephant tusk (a bracelet). The case was transmitted to the High Court to seek opinion on whether a bracelet and other like ornaments processed from ivory fall within the meaning of the term "Government Trophy" under the Fauna Conservation Ordinance Cap. 302.

Held: (1) Essentially the problem here is knowing the appropriate sections of the law to apply to the subject matter of the charge the first question that the Magistrate should have considered was whether or not the bracelet was a Government trophy as defined in section 47 of the Ordinance. And in order to reach any conclusion on this question, it was necessary for him to refer to the definition of the word "trophy" in section 2 of the same Ordinance. According to section 2 of Cap. 302 "trophy" means "any animal, alive or dead, and any horn, ivory, tooth, tusk, bone, claw, hoof, skin, hair, feather, egg or other durable portion whatsoever of any animal, whether processed or not provided that it is readily recognisable as a durable portion of an animal". It seems to me that in the light of the definition of "trophy" in section 2, the learned Resident Magistrate should

have had no difficulty in concluding that the bracelet before him was a Government trophy under either paragraph (e) (f) of sub-section (1) of section 47 of Cap. 302. Therefore, as the charge alleged unlawful possession of a Government trophy c/s 49(1), the Magistrate was wrong to reject the formal charge laid before him under section 89 of the Penal Code. Section 89 of the Penal Code is only appropriate where the formal charge or complaint made or presented to the court does not disclose any offence. The same cannot be said of the present case.” (2) It is not proposed to pursue the matter further by way of revision.

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227. Kalinga v. R. (E. A. C. A.) Crim. App. 17-D-71; 19/5/71; Duffus P, Spry V. P. Lutta J. A.

The appellant was convicted of murder. There was no indication in the assessor’s replies that the onus and necessary degree of proof had been brought to their attention. It was argued that the trial judge had directed neither the assessors nor himself regarding the onus of proof. The court of appeal considered the proper procedure in summing up to the assessors.

Held: (1) “We would at this point make two comments on the procedure adopted at this trial. First as we have already indicated, there is no need for such notes to be lengthy but they should at least list the main matters of law and fact to which the attention of the assessors was drawn. As was said by this court in Mukeno v. Uganda [1965]; E. A. 491: “..... Notes of the summing-up should appear on the record of proceedings. The importance of the notes of the summing-up, both to the Appeal Court and to the appellant, cannot be over-emphasised.” (2) “Secondly, the learned judge put our specific questions to the assessors, of which the fourth was – “Is the accused guilty of murder?” With respect, we do to regard this as a sufficient compliance with the requirements of section 283 of the Criminal Procedure Code, which permits the asking of specific

questions of fact but requires each of the assessors to state his opinion orally “as to the case generally”. We think this requirement was imposed to enable assessors, who are unlikely to have legal training and who may be uncertain what is strictly relevant, to give their opinions on the case broadly as they see it, and as such we think it serves a useful purpose. As regards the asking of specific questions which are limited to questions of fact, we would refer to the judgment of this court in Rajabu Salum v. Rep. [1965] E. A. 3654.” (3) “To return to the judgment, the learned judge said he asked the assessors – “to consider the issue of credibility of the witnesses, whether they accepted the story as told by the prosecution or by the defence.” It was to this phrase that Mr. Velji particularly took exception, arguing that, in the absence of any direction as to the onus of proof, it had the effect of putting the prosecution and the defence on an equal footing. So far as the learned judge is concerned, he is a judge of considerable experience and we have no doubt that on so fundamental a matter, he must have directed his own mind correctly. On the other hand, the record as a whole suggests that the assessors were, or at least, may not have been given the necessary directions. If this is so, it must detract from the value of their opinions and means, in effect, that the learned judge did not get the full benefit of their assistance.” (4) “The evidence showed a possibility of provocation and self –defence.” (3) Appeal allowed.

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228. R. v. Ndengela Crim. Rev. –D-71; 30/4/71; Biron J.

The accused was convicted of burglary and stealing. Finding that the accused was fifteen years of age, the magistrate sentenced him to 12 strokes of corporal punishment and ordered him to pay compensation of Shs. 2,514/50

Held: (1) The order that the accused was to pay compensation was ultra vires. Compensation in respect of convicted juveniles “is governed by the Children and Young Persons Ordinance (Cap. 13 – Sup. 64), where at section 21 it is laid down: “21.- (1) Where a child or young person is convicted of any offence for the commission of which a fine, compensation or costs may be imposed, and the court is of opinion that the case would be best met by the imposition of a fine, compensation or costs, whether with or without any other punishment, the court may in any case, and shall if the offender is a child, order that the fine, compensation or costs awarded be paid by the parent or guardian of the child or young person instead of by the child or young person, unless the court is satisfied that the parent or guardian cannot be found or that he has not conducted to the commission of the offence by neglecting to exercise due care of the child or young person. (2) An order under this section may be made against a parent or guardian who, having been required to attend, has failed to do so, but no such order shall be made without giving the parent or guardian an opportunity of being heard. (3) Any sum imposed or ordered to be paid by a parent or guardian under this section may be recovered from him by distress or imprisonment in like manner as if the order had been made on the conviction of the parent or guardian of the offence with which the child or young person was charged. (4) A parent or guardian may appeal against an order under this section.” (2) Order of compensation set aside.

229. R. v. Abdallah *Crim. Rev.* 30-D-71; 27/4/71; Biron J.

The accused was convicted on his own plea of being in possession of property suspected to have been stolen or unlawfully obtained c/s 312 of the Penal Code. The facts which were not disputed were to the effect that on the material date, the accused visited a bar in Kunduchi village. In the same bar was a man who had been drinking and had dozed off. This man had a portable radio and torch nearby which the accused took. The accused was later found in possession of this radio and torch, and he was

arrested and charged. The accused was then recorded as saying; "I admit all what has been said by the police. I stole the radio and torch from a person whom I was sharing drinking the beer. I do not know the name of the owner of these articles."

Held (1) "Although, as has often been remarked, section 312 of the Penal Code, where under the accused was convicted, creates a highly technical offence, it is obviously no mere technicality to declare, as it is so obvious, that a conviction under that section will not lie where the accused has himself stolen the property in

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Question, as was the case here." (2) "Although by section 187(1) of the Criminal Procedure Code: "187. – (1) When a person is charged with stealing anything and the court is of opinion that he is not guilty of that offence but that he is guilty of an offence in respect of that thing under one of the sections 302, 304 311 and 312 of the Penal Code, he may be convicted of that offence although he was not charged with it.". there is no converse provision to the effect that a person charged under section 312 can be convicted of stealing the property the subject matter of the charge." (3) Conviction quashed.

230. Mambo Shoor Bar v. R. Crim. App. 926-D-70; 6/3/71; Onyiuke J.

The appellant, Mambo Shoor Bar, was convicted of: (i) failing to prepare maintain and issue a copy of an oral contract of service c/s 35 of the Employment Ordinance Cap. 366 and (ii) failing to comply with the decision of a duly constituted Conciliation Board c/s 50(1) of the Security of Employment Act Cap. 574. The facts were that the appellant dismissed a bar maid who referred the matter to NUTA which in turn referred it to the Labour Office. The Senior Labour Officer convened the Reconciliation Board dare s salaam which decided that the dismissal was not justified

and that it should be treated as a termination of employment under s. 24(1) (b) of the Security of Employment Act. It did not quantify the amount due to the complainant which had to be worked out under s. 24(2) (a) and s. 25(1) (b) of the Act. The appellant did not comply with the decision of the Board and the matter was referred to the District Court where the magistrate fined the appellant Shs. 300/- and ordered him to pay Shs. 170/- being salary in lieu of notice; Shs. 67/50 being in lieu of leave; Shs. 170/- being salary for March 1970; and Shs. 1,530/- being the amount underpaid for a period of October 1968 to February 1970.

Held: (1) "It is not very clear from the record or the proceedings how the matter was brought before the District Court. There are various ways by which a complaint by an employee in regard to the employer's breach of a contract of service can be brought before the Court. Where a Reconciliation Board has determined the matter under s. 23 of the Security of Employment Act and has given a decision thereon the decision can be enforced in a Court of competent jurisdiction as if it were decree under s. 27(1) (c) of the said Act. The employer can be prosecuted for refusal or neglect to comply with the decision of the Board under s. 50(1) of the Act. If however the matter was not referred to the Board the employee can refer it to a Labour Office under s. 130 of the Employment Ordinance and the Labour Office can refer the matter to the Police under s. 131 of the Employment Act, if he thinks an offence has been committed by an employer or alternatively submit a written report to a magistrate setting out the facts of the case under s. 132 of the Employment Ordinance. On receipt of such report the magistrate shall where the facts appear to him to be such as may found a civil suit proceed to try the issues disclosed in the report as if the proceedings were a civil suit (s. 134)" (2) "Even if the matter were brought before the Court as a

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Criminal case the magistrate has power under s. 134A of the Employment Ordinance to convert the criminal case to civil suit and do substantial justice to the parties without regard to technicalities.” (3) “In this case he charge was for offences under s. 35 of the Employment Ordinance and under s. 50 of the Security of employment Act respectively. The magistrate convicted and sentenced the appellant and then proceeded to enforce the decree of the Board. I doubt, without deciding the issue as it is not necessary in this case so to decide, whether the magistrate can concurrently exercise his civil and criminal jurisdiction in one and same proceedings as he did in this case.” (4) On Count 1 of the charge there appears to be a case of duplicity. “3 separate offences were lumped together in one count. Failure to prepare or maintain or issue a copy of an oral contract is each a separate offence. The charge as it stood must have gravely embarrassed the appellant. Furthermore there was not sufficient evidence to support the charge.” (5) “As to count 2 it appears from the proceedings that what the complainant was seeking was an enforcement of the decision of the Board. I think the interests of justice can best be served by treating this case as civil proceedings for the implementation of the Board’s decision under s. 27(1) (c) of the Act. This will require evidence to be led of the complainant’s entitlements under s. 24(2) (a) and s. 25 (1) (b) of the Security and Employment Act as the decision of the Board did not quantify the amount due to the complainant.” (5) Appeal allowed on both counts and the conviction and sentence are hereby set aside. The case is to be treated as a civil case for the implementation of the decision of the Reconciliation Board in Exhibit H. Evidence is to be led to determine the complainant’s entitlement under s. 24 (2) (a) and s. 25 (1) (b) of the Security of Employment Act Cap. 574.

231. Hussein v. R. Crim. App. 161-D-71; 15/5/71; Biron J.

The appellant was convicted of rape and sentenced to 3 years imprisonment. Complainant alleged that the appellant knocked at her door

at night (they were distantly related⁰ and asked for some water. She brought out some whereupon the appellant seized her, pulled her into his room threw her on to his bed and had sexual intercourse with her entering from the rear. The complainant's sister, who had gone out, came back, looked for complainant and found her being pushed out of his room by the appellant. A report was made to the authorities who had the complainant examined. She had lacerations on the lower part of the vaginal wall and the hymen had been ruptured. This appeal was brought against conviction.

Held: (1) "Apart from the fact that the complainant, whose youth has been noted, could not cry out because she was apparently seized by the throat, from the evidence she would not appear to be very bright. Even so, there is no suggestion, even from the appellant, nor is there anything to indicate from the record, that she consented to intercourse, and, as noted, she was a virgin." (2) "The magistrate very properly directed himself on the need for corroboration in such cases of **sexual** assault, and he found

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It, is indeed is the case, in the evidence of the complainant's sister, and to some extent in the medical evidence as to the injuries on the complainant, though this latter cannot be regarded, at least standing by itself, as very strong corroborative evidence. But as I think sufficiently demonstrated, the complainant's evidence is fully corroborated. The conviction is thus fully supported and justified by the evidence." (3) Appeal dismissed.

232. John v. R. Crim. App. 896-M-70; 28/5/71; Mnzavas Ag. J.

The appellant was charged with and convicted of housebreaking and stealing c/ss 294(1) and 265 of the Penal Code and was sentenced to 2 years imprisonment and 24 strokes corporal punishment. It was

established that the appellant had been found in possession of a banco bed and a handbag which were properly identified by the complainant and two other witnesses about six months after their disappearance from the complainant's house. It was argued that the doctrine of recent possession should be invoked because beds are not one of those items which easily change hands.

Held: (1) "There are numerous authorities as to what period can be accepted as recent to bring an accused within the doctrine of recent possession. Four years have been held not recent enough when cattle theft was involved. One month has been held recent when stealing of a radio was in issue- MUSA ALLI vs. R. (1968) H. C. D. case No. 157. In this case a banco bed was stolen and was found in the possession of the appellant six months after the theft. A bed is, I agree with the Republic, not so easily transferable as for example a shirt. Though I would easily invoke the doctrine of recent possession if a bed is found with an accused two months after it was stolen. I would be hesitant to do so if the theft involved a shirt. But in my view, a period of over six months cannot, without causing injustice to the accused, be said to be recent where the thing stolen is a bed. I feel that the better inference from the facts of this case would be one of receiving stolen property knowing it to have been stolen." (2) "The convictions are varied to receiving stolen property knowing it to have been stolen c/s 311(1) of the Penal Code. As for sentence the justice of the case will, I think, be met if the accused is sentenced to 18 months imprisonment."

233. R. v. Shabani Crim. Ev. 10-M-71; 28/4/71; Mnzavas Ag. J.

The accuse was charged with attempted rape c/s 132 of the Penal Code. the evidence against the accused was to the effect that he dragged the complainant (a lady) to a place where there was tall grass, threw her to the ground, drew a knife and threatened to kill her if she refused to have

sexual intercourse with him. In trying to accomplish his passions, the accused forced the complainant to remove her underpants and when the accused was in the process of removing his own under pants, a police car stopped nearby and the complainant called for help. On these facts the learned Resident Magistrate found that a charge of attempted rape could not be supported but convicted the accused of indecent.

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assault. The main issue was whether or not the facts as adduced were sufficient to support the alternative verdict of indecent assault. The Republic argued that since the accused chased the complainant and knocked her down when he had already decided to have sexual intercourse with her this amounted to indecent assault. It was also contended that the forcing of the complainant to remove her underpants amounted to removing the underpants by the accused himself and this tantamount to indecent assault [citing R. v. HARUNA IBRAHIM (1967) H. C. D. Case No. 76]

Held: (1) "I have myself failed to find a local decision which supports the argument that an assault on any part of the body of a complainant which follows indecent assault. There are however, a number of authorities on this point from other jurisdictions. The question whether it was essential to prove an indecent act before a person is convicted of indecent assault or whether it was sufficient if proved that an assault, decent in itself, was indecent because it was committed with an indecent aim was discussed in R. v. CULGAN (1998) 19 N. S. W. page 160. In that case it was held that to constitute indecent assault an indecent act must be proved. The Supreme Court of New South Wales was of the view that it was not sufficient to support the charge merely by saying that the accused tried to drag the prosecutor to a place where he could have intercourse with her. This decision was followed in R. v. ABRAHAMS [1918] 32 C. P.

H. 590, a South African case. These two decisions were not followed by the Supreme Court of Ontario in R. v. CHONG (1915) 32 ONTARIO 66. In that case it was held that an indecent assault is an assault which has in it an element of indecency, even a merely mental one. In the case of Col. Valentine Baker – The Times of 30/7/1875, Lord Esher instructed the grand jury in the following terms: - “If a man kisses a young woman against her will and with feelings of carnal passion and with a view to gratify his passions or to excite hers, that would be an indecent assault.” He went on- “The kisses of young people in seasons of universal gaiety are not indecent, but kisses given by a man under the influence of carnal passion are indecent.” In a more recent case in England R. v. COOMBES (1961) CRIM. L. R. 54, a light touch with the hand on a woman’s back was held to be indecent assault because, though the touch was not by itself indecent, it was accompanied with the reasoning that an assault on a lady though not indecent in itself becomes indecent assault. I also agree with the learned state attorney that the forcing by the accused of the complainant to remove her underpants amounted to removing the underpants of the complainant by the accused and as such the accused was guilty of indecent assault.” (2) Alternative verdict confirmed.

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234. R. v. Gimbui Crim. Rev. 39-M-71; 18/5/71; Mnzavas Ag. J.

The accused, aged 18 and a first offender was on his own plea of guilty convicted of unnatural offence c/s 154 of the Penal Code. He was sentenced to 4 years imprisonment and ordered to serve the first two years in prison and suspended the remaining two years under s. 294(1) of the Cr. P. C. The main issue was whether or not it was appropriate to impose such a severe sentence on a person convicted of sexual deviation.

Held: (1) “With great respect to the learned resident magistrate he, in sentencing the accused to four years imprisonment, exceeded his

powers of sentencing. The sentence offends against the provisions of section 7 (1) (a) of the Criminal Procedure Code, Cap. 20 of the Laws.” (2) “Homosexuality is a pathological condition. It is a sex-deviation. Medical science tells us that homosexuals normally feel happy in their perverse sexual sensations and in the direction of their impulse, and only unhappy in so far as social and juridical barriers impede their satisfaction of their urge towards their own sex. Psychiatric treatment would normally, be more appropriate to cases of this nature than a term of imprisonment which could have the effect of encouraging the offender to commit such offences while in prison.” Sentence reduced to 12 months imprisonment.

235. Rioba v. R. Crim. App. 123-M-70; 11/5/71; El-Kindy Ag. J.

The appellant was charged and convicted of shop-breaking c/s 296(1) of the Penal Code, Cap. 16. His conviction depended on the identification of a single witness (Ahmad) who claimed that he had seen the appellant outside the house broken into when he (the witness) had gone to attend on alarm.

Held: (1) “The learned magistrate accepted the evidence of Ahmad without reservations, but he failed to consider whether the circumstances were such that Ahmad could see clearly that night, and did not advert his mind to the possibility of mistake on the part of this witness. As it has been held in the case of RAJABU s/o MHANZA. v. R. 1968 H. C. D. 102 while a fact could be proved by testimony of single witness, this did not lessen the need for testing with the greatest care the evidence of such a witness respecting identification, especially when it is known that the conditions under which the identification took place were far from ideal. The learned magistrate’s attention is directed to this decision and also to the case of ABDALLA s/o WENDO c. R., 20 E. A. C. A. p. 166. In this case, the learned magistrate did not consider whether the said witness could have seen. No evidence was led as to the conditions either. His evidence as I have already stated, was not properly and carefully tested. In the

circumstances, it could not have been said that the evidence of Ahmad was reliable.” (2) Appeal allowed, Conviction quashed.

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236. Wagunda v. R. Crim. App. 559-M-70; 11/5/71; El-Kindy Ag. J.

The appellant was charged and convicted of stealing by agent c/s 273 and 265 of the Penal Code. He was alleged to have slaughtered one of the offspring of the six heads of cattle entrusted to him for custody. He admitted this but stated that under customary law this was lawful so long as he paid for the offspring. The learned magistrate held that although the taking was lawful under customary law, it was unlawful under statutory law.

Held: (1) “The appellant in my view thought that he was entitled to take the calf as it was permissible in his custom. He was under an honest and reasonable but mistaken belief that he could do so, and this constituted in law a valid defence (section 11 of Penal Code, Cap. 16).” (2) Appeal allowed: Conviction quashed.

237. Kalembe v. R. Crim. App. 702-M-70; 9/4/71; Mnzavas Ag. J.

The appellant, a first offender and who had owned a shot-gun for 10 years, was convicted on his own plea of guilty, of Hunting Game animal with unsuitable weapons c/ss 22(3) and 53(1) (b) of the Fauna Conservation Ordinance, Cap. 302. He was sentenced to a fine of Shs. 300/- or 3 months imprisonment in default and had his shot-gun confiscated.

Held: (1) “As far as the confiscation order of the shot-gun is concerned; the Republic argued that he learned magistrate had no alternative but to order confiscation of the shot gun because it was mandatory that he confiscated the weapon. With due respect tot eh learned State Attorney I cannot see any such mandatory provision in the

Ordinance. Section 53(2A) under which the confiscation order was made says if a person is convicted of an offence under section 22 of the Ordinance, the- "court may order that any weapon with which the offence was committed or which was in the possession of the accuse at the time of the offence shall be forfeited to the Government." The fact that the legislature has used the phrase "the court may" and not "the court shall" show that the court orders forfeiture at its discretion. It is not mandatory on a court to order forfeiture of a weapon." (2)"In the present case it is shown that the appellant has owned the shot-gun for 10 years. This is his first offence under the Fauna Conservation Ordinance. He says that he uses the gun to protect his crops and those of his neighbours from wild animals. These are factors in favour of the appellant. It would appear from the record that the learned district magistrate did not take these mitigating factors into account when he decided to order forfeiture of the gun. Had he done so he would certainly have found that the order of forfeiture of the gun was unnecessary." (3) Order of forfeiture set aside.

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CIVIL CASES

238. Ngowi v. The Returning Officer. Moshi and Lucy Lameck Misc. Civ. cause 9-A-70; 22/6/71; Bramble J. and Kwikima Ag. J.

The petitioner, being the unsuccessful candidate for the Moshi Constituency in the parliamentary general elections of 1970 sought to have the election declared void because of certain irregularities and contraventions of the Elections Act 1970. He alleged: (a) that without proper and justifiable grounds there was held election for the second time in 12 polling stations contrary to rules and regulations and without giving the voters proper notification of the change of date; (b) that four ballot boxes had no seals and two others had their seals tempered with c/s 73(2); (c) that 58 boxes did not have proper accompanying envelopes and

eleven had no envelopes; and some other administrative irregularities. The petitioner relied on s. 123(3) (c) of the Election act which permits an election to be declared void on the ground of; "non-compliance with the provisions of this act relating to elections, if it appears that the elections was not conducted in accordance with the principles laid down in such provisions and that such non-compliance affected the result of election."

Held: (1) "In U. Ofera v. Returning Officer and Banya [1961] E. A. 455 Sir. A. McKisack, C. J. expressed doubts as to what is meant by "in accordance with the principles laid down", which phrase occurs in the corresponding section 46 of the Legislative Council (Election) Ordinance of Uganda which is identical with the section quoted above. The section seems to follow section 12(2) of the Representative of the Peoples act 1948 in England which says: - [their Lordships then set out the provisions of the section and continued]..... As pointed out in the Ofera case the law did not specify any principles laid down" should be interpreted as meaning "Substantially in accordance with the Law." As to non compliance affecting the result of election we are guided by the dictum of Kennedy, J. in the Islington West Case (1901) 17 T. L. R. 210 that:- "An election ought not to be held void by reason of transgressions of the law without any corrupt motive by the returning officer or his subordinates in the conduct of the election where the court is satisfied that the election was, notwithstanding those transgressions, an election was really and in substance conducted under the existing election law, and that the result of the election, that is, the success of the candidate over the other was not and could not have been affected by those transgression." (2) (Using those guidelines) "The first point is whether an election was really and in substance conducted under the existing laws in Moshi Constituency. There were 176 polling stations in the Constituency. At its highest the petitioner's case was that there were twelve stations where the fullest opportunity was not given to voters to cast their votes either through the non-provision of facilities or opening and closing outside the declared hours; that there was a breach

of the law in adjourning or fixing a date for the voting at some or other of these twelve stations to a date other than that

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declared as Election Day. The petitioner did not show what proportion of the electorate was affected, but from the evidence, as it is, it will be safe to conclude that the election was substantially conducted according to law we have to consider the election in the whole Constituency and whether any particular reach of the Laws substantially affected it in that it touched a large proportion or a majority of the electorate and as a consequence the result was affected The majority in this case was 2792; there was no proof of the number of registered voters in the stations questioned and we cannot say that the result was affected having regard to the large majority.” (3) Petition dismissed.

239. Mohamed v. Sefu (PC) Civ. App. 38-A-68; 3/6/71; Kisanga Ag. J.

The appellant occupied the disputed land in 1922 when it was allocated to him by the District Commissioner. In 1956 the boundaries of Moshi Township were extended to include the appellant's land. The respondent then applied for and was granted a right of occupancy (for 10 years from 1967) over the land by the regional Land Office, Moshi. The appellant argued on appeal that the respondent took possession without paying compensation in respect of his properties which were on the land.

Held: (1) “Under section 11 of the Land acquisition Act No. 17 of 1967 which repealed the Land Acquisition Ordinance (Cap. 118), where the Government acquires land for a public purpose, such as in this case, the Minister for Lands on behalf of the Government pays compensation in respect of such acquisition if certain conditions are satisfied. It therefore follows that if the appellant was entitled to any compensation at all, such compensation would be payable by the Minister and not by the respondent

to whom the land was re-allocated by the Government.” (2) Appeal dismissed.

240. Malonde v. Kofila (PC) Civ. App. 193-M-70; 4/6/71; El-Kindy Ag. J.

The appellant sued to redeem a clan shamba which had been sold to the respondent a non-clan purchaser for Shs. 2,000/-. The appellant alleged that he was not aware of the sale nor was he informed or consulted before it took place as he was working in Bukoba at the time. The trial court found for the appellant but the District court reversed.

Held: (1) “I am satisfied that the decision of the primary court was sound. It was not for the appellant to prove that he was consulted, but it was for the respondent to prove if he was to succeed in this case. he is the one who was alleging that the purchase was properly done according to customary law of Haya as embodied in paragraph 557 of Cory and Hartnoll’s Customary Law of the Haya Tribe On the balance of probability, the appellant’s case was plausible”. (2) Appeal allowed to redeem by repaying the amount which had been paid by the respondent. (3) Appeal allowed.

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241. Govind v. David Misc. Civ. App. 4-A-70; 26/6/71; Kwikima Ag. J.

This is an appeal from an order of the Arusha Rent Tribunal fixing standard rent of premises. The grounds of appeal were inter alia that; (a) there was no evidence upon which the standard rent of Shs. 150/- per month could be fixed; (b) the Tribunal’s judgment and orders were arbitrary and contrary to the evidence on record; (c) the Tribunal erred in law in not reading and/or delivering its judgment in the presence of the parties or their advocates.

Held: (1) “The Tribunal did not receive sufficient evidence on which to act. That was why it took it upon itself to visit the suit premises. The

respondent made a passing reference to the leaking roof of the suit premises. He furnished no evidence in support of his allegation. Being unable to base any decision on this allegation, the Tribunal embarked on a visit to the suit premises. this action was legally objectionable following the rule in Fatehali Ali Peera v. Onorata De la Sante, which Platt, J. (as he then was) adopted in the case of Sachak vs. Kabuye 1969 H. C. D. 292, holding that: - "It is against natural justice for a Tribunal to decided on a point noted by it, as a result of its own efforts and not specifically communicated to the parties so as to allow them an opportunity for contradiction." In the present case, the record does not show that he Tribunal visited the premises at the instance of any party, or that opportunity was afforded to the appellant to contradict the Tribunal on its observations at the site. This was clearly another point on which the Tribunal did not act judicially." (2) "Although I would not go as far as saying that the "Tribunal's judgment and order are arbitrary and contrary to evidence," I would not say that the complaint is entirely unjustified in view of the foregoing. It is evident from the number of cases reaching this Court that the Tribunal does not seriously address its mind to the great task before it. Instead and in spite of numerous directions from this court the Tribunal would do well to advise the Tribunal on how to perform its functions properly in the interests of justice. The Tribunal had no sufficient evidence before it in this case and it ought to have investigated the rent in the neighborhood of the suit premises following the case of Mwantanga bin Selemani v. Douglas Je Meeleck 1968 H. C. D. 506 The record does not show that the Tribunal actually did so and recorded its observations." (3) Appeal allowed.

242. Gigeus v. The Returning Officer, Babati and Hon. Marke Misc. Civ. Cause 10-A-70; 22/6/71; Bramble J. and Kwikima Ag. J.

This is a petition challenging the outcome of the 1970 General Elections in Hanang Constituency where the petitioner was defeated by a majority of

6, 956 votes. The grounds of objection were inter alia that the election and count of votes was not conducted in accordance with the Election act 1970 in that: (a) c/s 71 (b) and (c) of the Act no polling took place in 10 named polling stations; (b) the presiding

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officer failed to put official marks at the back of some 8 ballot papers which were counted; and (c) because of the disregard of prescribed procedure and lack of proper supervision more than 3,000 registered voters did not exercise their right to vote.

Held: (1) "There were no presiding officers and therefore no voting in six of the ten polling stations named by the petitioner." (2) "There was no proof of the petitioner's allegation that more than 3, 000 voters were unable to cast their voter for lack of adequate supervision, the voters registered at those stations where there was no or inadequate supervision does not approach that number. The figures given for six stations had less than 2,000 registered voters." (3) "That the unstamped votes in the boxes listed above were counted (which has been proved) was clearly in contravention of the express provisions of the Act, because section 89(2) (a) states as following: "Any ballot paper which does not bear an official mark, shall not be counted." (4) "The action of the respondent (in allowing the counting of the unmarked votes) was a purely administrative error and an irregularity done with no corrupt motive. As such It could not be an illegal practice under the Act." (Referring to ss. 117(2) and 118 which define "illegal practice" which could be fatal to an election). (5) "The petitioner did not specify any section to the Act under which the elections was to be avoided..... What the petitioner has proved could only come under section 123(3) (c) which states as follows: [the learned judges then set out the provisions of the act and continued] All that the petitioner has done in this case has been to show that the returning officer caused some

2,000 voters or so not to cast their votes and that he was in be reach of three of four sections relating to the procedure at the counting of votes. The majority which the successful candidate obtained against the petitioner was 6, 956. We are not convinced that with such a substantial majority against the petitioner, compliance with the rules of procedure at counting would have enabled the petitioner to defeat the successful candidate” (even assuming that 2,000 or so voters who did not vote had voted) (6) Petition dismissed.

243. Ndesario v. John Civ. App. 11-A-71; 11/6/71; Kwikima Ag. J.

This is an appeal from the order of the Moshi District court dismissing the appellant’s claim for mesne profits in respect of the appellant’s premises which the respondent was alleged to have unlawfully occupied as a trespasser. The grounds of appeal were that: (a) the learned magistrate erred in law in holding on the evidence that the premises were lawfully sublet to the respondent; (b) the learned Magistrate ought to have held that premises being situated within Moshi Township were governed by the provisions of the Rent Restriction Act; (c) the evidence disclosed that the respondent vis-à-vis the appellant was a trespasser and as such liable to pay mesne profits.

Held: (1) “The suit premises were alleged in the plaint to be within Moshi Township. This allegation was not controverted It is therefore hereby held that the

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Premises were subject to the Rent Restriction Act, Moshi town having been declared to be the subject of that act under section 1(3).” (2) “There was no evidence before the District Court that the respondent occupied the suit premises either with the consent of the appellant or with that of the Court. As such the respondent’s occupation was illegal ab initio The

respondent was clearly a trespasser who had no right to occupy the appellant's premises it was held by Georges C. J. (as he then was) in the case of Onerato Della Santa vs. Peera 1970 H. C. D. 22 that where the tenant sublets without the landlord's consent, the assignee is a trespasser" (3) There were no serious efforts to seek the appellant's consent. (4) Appellant to receive mesne profits in respect of the unlawful occupation of the suit premises. (5) Appeal allowed.

244. Tibajuka v. Kassano and Attorney General Misc. Civ. Case 11-M-70; 28/6/71: Kisanga Ag. J.

The petitioner who had lost the election for a Parliamentary seat for the Kiziba Constituency in West Lake Region wrote to the Registrar of the High Court at Dar es Salaam a document in Swahili which he labeled a petition complaining about the conduct of the elections. The letter was dated 11/11/70. The Registrar respondent by letter instructing the petitioner to prepare grounds of complaint in English, lodge an appeal in the High Court at Mwanza and pay fees there. The letter also stated that the time of limitation was 30 days from the date of the publication of the results in the Official Gazette and that in case of the applicant; time would begin to run from 18/11/70 the date his letter was received at Dar es Salaam. The petitioner then lodged his petition at Mwanza on 17/12/70. The results of the elections having been published in the official Gazette on the 6/11/70 the issue was whether the petition was time barred. It was argued for the applicant that the petition was presented in the first instance in the High Court of Dar es salaam within time on 18/11/70, but that the petitioner had been directed to file an English version of it at Mwanza which he did in the time specified by the direction.

Held: (1) "..... it would seem that to all intents and purposes that document (the letter of petitioner) is an election petition. It is headed 'Madai ya uchaguzi mkuu – Petition 1970.' It is a long document running to five pages In those pages the petitioner has on six occasions

referred to the document as a petition” (2) it is apparent that that document (the letter of petitioner to Registrar, High Court of Dar es salaam) was not drawn in the manner prescribed by the Rules. Therefore, the returning of it to the petitioner for amendment was in accordance with the provisions of Rule 7(1) and was therefore sanctioned.” (3) [referring to sub-rule (2) of Rule7] “It would appear on construction of this sub-rule that it is the Court which has power to reject a petition But it would appear that Exhibit ‘A’ (the letter or petitioner to the Registrar, High court of Dar es Salaam) was not in fact returned by the Deputy Registrar It would therefore seem that the decision to return Exhibit ‘A’ to the petitioner for amendment

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was taken not by the Deputy Registrar but by the Chief Justice.” (referring to evidence that the Chief Justice had personally directed the Registrar to return the letter to the petitioner.) (4) [referring to the argument that he Registrar could not act under Rule 7 (1) to extend the time to file the petition in Mwanza High Court because to do this would amount to amending the mother Act which would be ultra vires] “I think that Rule 7(1) of the Elections Rules does not conflict with section 130(1) of the Elections Act which sets the limitation period at 30 days after publication of the election result. What that Rule means is that where the petition was, in the first instance filed within 30 days as prescribed by section 130(1) of the mother Act, then the Deputy Registrar may extend the time beyond the 30days limit to enable the petitioner to amend his petition. In this case Exhibit ‘A’ was presented within 30 days as prescribed under the act and the Deputy Registrar was therefore entitled under Ruler 7(1) of the Rules to extend the time during which he petitions should be amended.” (5) “It was contended for both respondents that there were no proceedings at all

before the Dar es Salaam Registry which we, or could have been transferred to the Mwanza Registry. It was further argued that even assuming that Exhibit 'A' was a petition such a petition was not properly filed because it was not accompanied by any filing fees and therefore that document had no legal validity whatever (citing Unta Exports Ltd. v. Customs [1970] E. A. 648) It would seem that the facts and circumstances of the case cited are distinguishable from those of the instant case the petitioner having in the first instance presented Exhibit 'A' in the Dar es salaam Registry. The Court which gave that order must be deemed to have extended the time for paying the filing fees such as to coincide with the time fixed for presenting the amended petition." (6) "To my mind the only reasonable inference to be drawn is that the direction given to the petitioner merely asked him to present in the Mwanza Registry an English version of the contents of Exhibit 'A' because there is nothing to suggest that the petitioner had fresh or further grounds of complaint other than those contained in Exhibit 'A' ." (7) "..... Where the court transfers proceedings from one Registry to another then any document filed after such transfer shall be filed in the Registry to which the proceedings have been transferred... I am, therefore of the view that the amended petition in this case was properly filed in the Mwanza Registry." (8) "It is true that when the mended petition was subsequently filed in the Mwanza Registry, the Attorney-General was not made a party then. These Rules (Election Rules) which came into being after that date, however, required that the Attorney-General be made a party to the petition, and acting on the proviso (to Rule280 quoted above the court by its order dated 17.4.71 accordingly. It would seem that provided that the petition was presented before the court within time, the failure to make the Attorney-General a party as required by the Rules was a omission which could be and was effectively

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Rectified under the proviso Rule 28 by bringing the Attorney-General on the record even after the limitation period had expired.” (9) Objection that petition time barred overruled.

245. Benedicto v. Lambert Civ. App. 19-M-70; 4/6/71; El-Kindy Ag. J.

Special and general damages were awarded against the appellant for negligently knocking down with his car the respondent who was riding his bicycle. The accident occurred on 3/2 67 and the suit was filed by the respondent on the 6/4/68. the suit was therefore time barred (vide article 22 of Indian Limitation Act 1908 whereby claims for compensation for personal injury is one year from the time the injury is committed) but the trial magistrate admitted and heard the case purporting to act under inherent powers of the court giving the reason that the respondent did not deliberately sleep on his rights but was compelled by the injuries he sustained as a result of the accident not to file in time. it was submitted for the appellant that: (a) the trial magistrate erred when he acted under inherent powers of court in allowing extension of time as inherent powers could not be applied in the circumstances; (b) the reasons he gave were not sufficient in law to support an extension of time, assuming that in law he could do so; (c) S. 5 of the Indian Limitation Act 1908 dealt with only review and appeal but did not provide for extension of time in a trial.

Held: (1) “The suit was clearly time-barred because the time for filing such a suit is one year from the date of accident as per s. 22 Indian Limitation Act 1908.” (2) “With due respect to the then learned Senior Resident Magistrate, he could not act under inherent powers as it has been held that where period has been provided for by statute cannot be extended by means of inherent power (see OSMAN v. THE UNITED INDIA FIRE AND GENERAL INSURANCE COMPANY LTD. [1968] E. A. 103) by the Court of Appeal In that case the respondents were allowed by the High court to substitute a name, but their application was 4

months and 1 week late. Although the learned judge (Saidi J. as he then was) was aware that a statutory provision did not allow this, nevertheless he allowed it because he considered it in the interest of justice to allow it. The unanimous opinion of the Court of Appeal was that he could not do so.” (3) “It wascorrectly submitted that section 5 of the Indian Limitation Act, 1908 was not applicable as this case then was no tan appeal or a review of judgment or on application for leave to appeal.” (4) “This Indian Act was repealed and replaced by our law of Limitation act, 1971 Act No. 10/1971 which came into force on the 1st of March, 1971, but this act did not act retrospectively in such matters (see section 48(2) (a). The new Act seems to provide for alleviation of hardship in such cases as the one in hand, by provision of section 44.” (5) Appeal allowed.

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246. Shekilango v. The Internal Revenue Officer Lushoto Misc. Civ. App. 7-A-70; 30/6/71; Kwikima Ag. J.

The appellant was sued for arrears of personal tax and penalty. Ex-parte judgment was entered against him. He unsuccessfully moved the court to set aside the ex-parte judgment. He appealed against the judgment order of the District, alleging that he had paid his tax for 1969 and that he was late to appear for hearing due to transportation difficulties.

Held: (1) “Had the appellant acquainted the court with the fact that he had a tax receipt for 1969, the year for which he was alleged to be in arrears, the court could not have reached the same decision as it did. For in the light of this fact the trial court ought to have found it reasonable to set aside the judgment. This was the principle laid down in the case of Kimani v. McConnell [1965] E. A. 547 and followed in the case of Mbogo v. Shah [1966] E. A. 93. in allowing the application the trial court would not be assisting” a person who has deliberately sought (whether by evasion or otherwise) to obstruct or delay the cause of justice” but rather it would be

avoiding injustice of hardship resulting from excusable mistake or error.” (2) “Justice demands that the appellant be given opportunity to present his quite strong case.” (3) Appeal allowed.

247. Mtenga v. University of Dar es Salaam Civ. Case 39-D-71; Biron J.

The plaintiff claimed damages for wrongful dismissal. He was engaged as an administrative assistant by the University of Dar es Salaam on probation for one year. Under regulations covering the terms and conditions of service the plaintiff's appointment could be confirmed by the Principal after one year or he could be confirmed by the Principal after one year or he could at (regs. 14 and 15) his discretion extend the period of probation. A probationary appointment could be terminated by the Principal giving three months' notice to an employee (reg. 16). The plaintiff who was appointed in June 1968, was given an increment of Shs. 60/= in January 1969. On the 15th August 1969, the Principal wrote to him extending his probation up to December 31, 1969. Plaintiff received another increment of Shs. 60/= in January 1970. On 2nd May 1970, the Principal by letter terminated the plaintiff's appointment with immediate effect and offered one month's salary in lieu of notice. Plaintiff commenced proceedings which were heard by the Permanent Labour Tribunal arguing that he had been confirmed in his appointment and was entitled to three months' notice before dismissal. The Permanent Labour Tribunal found that he plaintiff had been confirmed and that he was entitled to three months' salary in lieu of notice, but that it was not in the interests of industrial harmony to order reinstatement. Plaintiff then filed this suit. The defences of the University were that; (a) the court had no jurisdiction to hear the suit; and alternatively (b) the plaintiff's employment was lawfully terminated.

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Held: (1) "The ground or basis for the submission that the Court has no jurisdiction is section 27(1) of the Permanent Labour Tribunal Act, 1967 which reads: "27.-(1) Every award and decision of the Tribunal shall be final and shall not be liable to be challenged, reviewed, questioned or called in question in any court save on the grounds of lack of jurisdiction." The plaintiff's case was referred to the Permanent Labour Tribunal by the Labour Commissioner under s. 10 of the Permanent Labour Tribunal Act and under s. 27 of the same Act the Tribunal could make an award, report or decision or give advice. "Although 'award' is defined in section 3 of the Act as;- "'award' means an award made by the Tribunal and includes a negotiated agreement or a voluntary agreement which is registered by the Tribunal as an award;" neither 'decision' nor 'advice' is defined, and the court has to decide on and define these terms." (Learned State attorney for the University had argued that before the Tribunal gave its advice it came to a decision on the facts and therefore according to section 27, the court had no jurisdiction) "The cardinal principle of interpretation and the most elementary canon of construction is that in construing a statute or a written agreement words should be given their natural and ordinary meaning. I find it incomprehensible how anybody could equate ... an advice with either an award or a decision. It is trite to observe that a court is, and has to be for the protection of the public, jealous of its jurisdiction, and will not lightly find its jurisdiction ousted. The legislature may, and often does I am afraid, far too often oust the jurisdiction of the court in certain matters, but for the court to find that the Legislature has ousted its jurisdiction, the legislature must so state in no uncertain and in the most unequivocal terms..... The jurisdiction of the court is not ousted by an advice given by a Labour Tribunal in a dispute referred to it under section 10." (2) "I have perused the Regulations ... but nowhere could I find any provision as to how confirmation is effected and how, or, rather, in what manner, confirmation is notified to an employee... when the plaintiff was asked why he took no steps when he received the letter from

the Principal dated the 15th of august 1969 extending his probationary period, he said he simply ignored it because, having already received an increment, he considered himself as having been confirmed ... Reading and re-reading these Regulations, (14,15 and 16) I cannot spell out from them that the fact that the plaintiff was kept on after the expiry of the probationary period as laid down, and that an increments or increments has or have been paid, ipso facto establishes that the officer, who was originally appointed on probation, has in fact been confirmed by the Principal, for, as is crystal clear from the Regulations, it is only the Principal who has the power to confirm an officer in his appointment.” (3) The plaintiff’s appointment was lawfully terminated. (4) Claim dismissed.

248. Mhamadi v. Bakari (PC) Civ. app. 47-a-71; 13/4/71 Kwikima Ag. J.

The respondent originally sued the appellant for a piece of land The Primary Court dismissed his claim but the District

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Court after hearing additional evidence reversed the Primary Court’s decision and allowed the respondent’s appeal. From that judgment this appeal was brought.

Held: (1) “..... Although “an appellate tribunal may review question of fact in order to see whether the trial court’s conclusion should stand” such powers should be exercised with caution. (Murray v. Murji 1968 H. C. D. 390). The learned District Magistrate approached the issue without any caution when he, on his own initiative, went out of his way to seek additional evidence by visiting the disputed shamba. The trial court had ruled, on the location of the boundary and as an appeal court the learned Magistrate could not seek additional evidence in order to reverse the original decision and he case of Bukande Fufula v. Nswanzi Fufula 1970 H. C. D. 107 is very much in point In the present case the learned

appeal Magistrate did not record any reason for deciding to visit the disputed shamba to see where the land should be demarcated Such procedure is futile and must be discouraged.” (2) Appeal allowed – decision of the Primary Court restored.

249. Ibrahim v. Ngaiza Civ. App. 2-M-71; 5/7/71; El-Kindy Ag. J.

The appellant filed a suit against the respondent for return of vehicle alleging that he was special owner of the motor vehicle which was in the custody of the respondent to whom he had entrusted it. Before the suit was heard, appellant claimed a temporary injunction alleging that the vehicle was in danger of being wasted, damaged or alienated” to his loss. The respondent opposed this application on the ground that he appellant was his partner in business. The trial magistrate made an order preventing the respondent from selling the vehicle or moving it from Kigoma District, but did not order the respondent to stop using the vehicle. This order was challenged on the ground that; (a) the magistrate did not and ought to have taken into account the possibility of considerable damage being done to the vehicle and that this damage could not be made good by an award of monetary compensation; (b) the magistrate failed to direct his mind to the fact that the purpose of a temporary injunction is to maintain a status quo pending court decision on the merits of the case.

Held: (1) “The granting of a temporary injunction under Order XXXVII rule 1 of Civil Procedure Code, 1966 is a matter of discretion of the court and this discretion can only be said to have been judicially exercised if the court appreciated the facts and applied those facts to the principles governing the issuance of temporary injunction. One of the principles is that the court should be satisfied that there is a substantial issue (triable one) between the parties and that there is likelihood that the applicant might be entitled to relief and whether the status quo should not be preserved until the dispute is investigated. From the brief record, it cannot be said that the trial magistrate properly directed his mind on the

issue before him. He seemed to have ignored what the appellant stated in his affidavit, and taken into account what the respondent has said the issue was

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whether the appellant had advanced sufficient facts which would entitle him to a temporary injunction to be issued. He said that the vehicle was likely to be damaged, and the respondent confirmed that he is using this vehicle. If so then the possibility of loss is real the appellant was entitled to a temporary injunction.” (2) Appeal allowed.

250. Elizabeth v. Titus Civ. Rev. 3-M-71; 15/6/71; El-Kindy Ag. J.

The petitioner brought proceedings for annulment of marriage alleging desertion. She claimed: (a) that she contracted a church marriage in 1962 but did not produce any certificates of marriage; (b) that the respondent/husband disappeared in 1967 and has never been seen again; (c) that the respondent refused to resume matrimonial life and although his parents implored him to take back his wife, he has not done so and has not provided for her and the 3 children. The trial magistrate granted a decree nisi. The case was referred to the High Court for confirmation of decree.

Held: (1) “For a number of reasons, these proceedings cannot be confirmed. In the first place, there was no adequate evidence that the marriage contracted between the petitioner and the respondent was a Christian marriage. A bare word of the petitioner was not enough.” (Marriage certificate or certified copy thereof should have been produced). “The petition did not allege where the respondent was domiciled or his occupation, if any, as required by Rule (4) (1) (d) of the Matrimonial Causes Rules, 1956 G. N. 56/1956..... [Petitioner] did not; in her evidence specify the date or, at least, the month when the respondent is

alleged to have disappeared in 1967. And more serious the petition itself was not signed by the petitioner as required by Rule 4(4) of the Matrimonial Causes Rules 1956, G. N. 56/1956.” (2) “The petition alleged that the respondent’s whereabouts was not known, and as a result of this allegation no effort whatsoever was made to serve him with Notice as required by Rules 7, 8 and 9 of the Matrimonial Causes Rules 1956 G. N. 56/1956. If the whereabouts of the respondent was not known, this does not mean that a petition can be heard without proof of service as required by Rule 10(1)” (3) As hearing cannot proceed without complying with these preliminaries, the hearing of this case was premature. (4) Decree nisi set aside – Petition to be remitted back to trial court for hearing according to law.

251. Ng’wshemi v. Attorney – General Misc. Civ. Cause 5-M-70; ;
Onyiuke J.

This is an election petition presented by Ng’wshemi the unsuccessful candidates at the Parliamentary election in the Karumo Constituency. The petitioner received 7700 votes and the successful candidate polled 7707, and thus a majority of 7 votes. The grounds of challenge were generally that (a) there were more votes counted than the number of registered voters; (b) there was failure to keep the pool open at some of the polling stations; (c) there was failure to provide screened compartments wherein electors could cast their votes secretly:

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(d) a substantial number of voters were denied the opportunity to vote.

Held: (1) [After going through the evidence and finding the irregularities proved] “The final point is to consider the effect of these irregularities on the result of the election. Section 123 provides as follows:-
“The election of a candidate as a member shall be declared void on any of

the following grounds which are proved to the satisfaction of the Court, namely:- (C) non –compliance with the provisions of this Act relating to election, if it appears that the election was not conducted in accordance with the principles laid down in such provisions and that such non-compliance affected the results of the election”. A corresponding section (s. 99) of the National Assembly (Elections) act, No. 11 of 1964 has been discussed in a series of decisions of this Court. (MBOWE v. ELIUFOO [1967] E. A. 240; BURA v. SARWATT [1967] E. A. 234; See also the decision of SAIDI J. (as he then was) in RE K. A. THABITI [1967] E. A. 777 in District Council election). In the light of these authorities I would hold that the question whether noncompliance with the provisions of the act relating to elections affected the result of the election would depend on the nature of the particular complaint or irregularity and on the margin of victory. Where a specific irregularity has been proved and the number of votes affected established with some provision, then allowance should be made for that and if after such adjustments have been made the successful candidate still retains some margin of victory then the irregularity has not really affected the result of the election in BURA v. SARWATT, cited above, it was proved that 480 votes which would have been cast for the petitioner were spoilt because the presiding officer, contrary to the provisions of the Act, recorded more than one vote on behalf of some of the illiterate electors by putting a (V) mark against the name of the candidate of his choice and an (X) mark against the name of the candidate for whom he did wish to vote; these votes were conceded to the petitioner and yet the successful candidate still had a majority of about 46 votes. It was held that the irregularity did not affect the result of the election. Where, however, the complaint goes to the root of free election such as a case of organized campaign or undue influence, and it appears that a substantial number of votes were obtained thereby, then since the full extent of such wrong practice may never be known the Court may be inclined to hold that it affected the result of the election without proof of

actual reversal of the result (MBOWE v. ELUFOO, RE K. A. THABITI cited above). lastly, the non –compliance may not be substantial and may have no effect on the result of the election as it merely creates conditions which are the same for the candidates. Such was the case where some electors were, contrary to the revisions of the Act, switched from one polling station to another solely to relieve pressure on the former (BURA v. SARWTT at page 238). I now proceed to apply the above principles to the issues raised in this case.” (2) “On issue (5) it was clearly established that there was a surplus of 56 votes. One cannot say for whom those votes had been cast and considering that the successful candidate had a tiny

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Majority of 7 votes any adjustment in favour of the petitioner would clearly affect the result of the election. I hold that the petitioner succeeds on this ground.” (3) “The petitioner also succeeds on Issue (3). The failure to keep the poll open at the Rugarama Mission polling station contrary to the provisions of the act affected a number of voters in that it deprived them of the opportunity to cast their vote. On the evidence 30 to 40 voters, at least, were affected and had they voted it cannot be said that their votes could not have affected the result of the election having regard once again to the margin of victory.” (4) “As to Issue (2), the failure to provide screened compartments wherein the electors could cast their vote secretly, screened from observation, contravened the principle of the secrecy of the ballot but considering that it affected 4 out of 106 polling stations and there was no question of any sinister motive, it cannot be said that it affected the result of the election. The conditions were the same for both candidates. Had it affected a majority of the polling stations then one may possibly say that this was not really an election as envisaged by the

Act. I dismiss this ground.” (5) “The petitioner must also succeed on Issue (1). A substantial number of voters were denied the opportunity to vote and had they voted the result of the election could have been affected having regard to the narrowness of the margin of victory.” (6) Petition allowed. Elections declared void.

252. Munga v. Zuberi (PC) Civ. App. 46-A-71; 28/6/71; Kwikima Ag. J.

The appellant sued the respondent for a piece of land contending that he was occupying with the blessing of the Evangelical Lutheran Church of Tanganyika. There was evidence that the land which a one time had been allocated to the mission had been abandoned by the mission and re-allocated to the respondent by the Village Development Committee.

Held: (1) “This court has repeatedly upheld allocations by chiefs as opposed to subsequent allocation by local authorities (Simeon Osita v. Adrianus Serere 1968 H. C. D. 21, Lucas Masirori Kateti v. Oloo Sekege 1968 H. C. D. 11). But in this case the appellant failed to show a better claim to the land. He was not representing the parish as he claimed. Otherwise he would have brought forward evidence to that effect. Moreover parts of the land originally occupied by the parish were reallocated to the villagers, one of whom was the respondent. It was only after this reallocation that the appellant sought to occupy on behalf of the parish whose occupation had been terminated when they abandoned the land for 10 years with the result that the VDC reallocated it. The reasoning of the primary court could not have been in accordance with the law as both parties were personally seeking to occupy. There was no shred of evidence that the appellant represented any group of people. If he did, this group and the respondent an individual. The respondent was the descendant of the original occupiers and in recognition of this fact the VDC reallocated him the

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disputed land.” (2) “The decision of the District Court was more in accord with justice than that of the primary court in that it recognised the need for the appellant to establish a better title to the land. In view of the fact that he did not provide any evidence to show title let alone better title, he could not be held to be in lawful occupation,. Accordingly this appeal fails with costs. The respondent is to occupy the disputed land provided that he shall compensate the appellant for any perennial crops which the appellant may have planted on the land.”

253. Mwijoi v. Simulaki (PC) Civ. App. 49-A-71; 1/7/71; Kwikima Ag. J.

It was not disputed that the respondent in this suit was the natural father of three children the subject of the dispute, the question at issue was whether the children were born in adulterous union between the respondent and the wife, and if so, whether under Masai law and custom the children should belong to the respondent who is still legally their mother’s husband. The Primary Court dismissed the respondent’s claim but the District Court reversed. But the record in the Primary Court did not clearly indicate what the opinion of the assessors was.

Held: (1) [Referring to s. 8(1) Magistrates Court act Cap. 537 as amended by Act 18 of 1969 requiring Primary Courts to sit with assessors and Ralang Mumanyi v. Wambura Mwita 1969 H. C. D. 9]. The opinion of assessors must be recorded. (2) “The only question is what an assessor’s opinion is. The Shorter Oxford Dictionary gives several meanings of “opinion” but the nearest definition as to what is an assessor’s opinion seems to be “the formal statement of an expert or professional man of what he thinks, judges or advises upon a matter submitted to him; considered advice.” Such opinion as an assessor gives is only according to his judgment, and this judgment is open to question. The other assessor may differ. The magistrate may also differ. But an assessor’s opinion must be decisive on the issues since the determination of such

issues depends on his opinion. The issues cannot be said to have been determined where one or more assessors fail to say in whose favour the issue is resolved.” (3) “I am unable to say that the issues were framed and decided upon by each of the two assessors. The learned Primary Court Magistrate himself wrote a most confused judgment on account of his failure to frame issues from the beginning of the case.” (4) File to be transmitted back to Primary Court with instructions that trial magistrate sit with same assessors and put to them the issues; (a) whether from facts, the children’s mother is still legally the wife of respondent; and (b) whether according to Masai law and custom, the children still belong to him.

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254. Mtefu v. Senguo Civ. App. 23-A-71; 23/6/71; Kwikima Ag. J.

The appellant appealed from judgment of a District Court ordering him to pay Shs. 1.820/- damages for breach of a condition of a lease in failing to give one year’s notice of termination. The grounds of appeal were that the magistrate erred: (a) in admitting the tenancy agreement without requiring the document being impounded and/or properly stamped; and (b) in holding that the respondent was entitled to damages without proof of such damages.

Held: (1) [Citing City Council of Dar es Salaam v. Jaj Mohamed [1968] H. C. D. 287] “[It] is trite law that specific damages must be proved strictly. In this case the respondent never so much as led evidence in proof of the alleged loss of business The point is best set out in Halsbury’s laws of England 3rd Edition Vol XI page 218 Para. 386, “Special damages are compensation for special damage which is not presumed by law to be natural and probable or direct consequence of the act or omission complained of but which does in fact result in circumstances of the particular case and of the injured party’s claim to be compensated Special damages must be claimed specifically and proved strictly,

and are recoverable only where they can be included in the appropriate measure of damage.” (2) [Citing s. 45 of Stamp Ordinance prohibiting the admission in evidence of an unstamped instrument which is chargeable with duty] “The agreement attached to the plaint bears no evidence of having been stamped The agreement relied upon by the respondent was bad at law, inadmissible and totally unsuitable as a basis for a claim for damages in breach of contract. It is quite clear that without this inadmissible document the learned Resident Magistrate could not have given judgment to the respondent. The inadmissible document ought to have been impounded in terms of s. 45 Cap. 189 to be used only after stamp duty had been levied.” (3) Appeal allowed.

255. Ntare v. Shinganya EACA Civ. App. 10-D-71; 15/7/71; Spry V. P., Law and Mustafa JJ. A.

An ex parte decree was passed. An application to set it aside was out of time, but the judge who heard the application allowed it “exercising inherent powers in the interests of justice”. Against his decision this appeal was brought.

Held: (1) “We think it must succeed. Section 3 of the Indian Limitation act, which applied at the relevant time, is mandatory and it is not suggested that section 5 has been extended to applications under O. IX r. 13. We held in Osman v. United India Fire and General Insurance Co. Ltd. [1968] E. A. 102 , that the inherent powers of the court cannot be involved to override the express provisions of the Limitation Act and we can see no reason to depart from that decision The law is clear and we have no discretion.” (2) Appeal allowed.

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256. Murisho v. Halima (PC) Civ. App. 114-D-68; ?/7/71; Mwakasendo Ag. J.

The appellant/husband appealed against the order of a district court awarding the respondent/wife arrears of maintenance of Shs. 10,800/-. The respondent had claimed that she had lived with the appellant's five children at her parents' home for six years. The figure of Shs. 10,800/- was arrived at by taking the sum of Shs. 30/- as the monthly bill for maintaining one child and multiplying this by twelve to have the figure for one year and by further multiplying this by 30 that is the number of five children multiplied by six, the number of years the children stayed with their mother. Against this decision, this appeal was brought.

Held: (1) "Without being dogmatic on the matter, while I concede that there may be circumstances in which it is possible for this Court to order one of the parties to a suit to reimburse the other for expenses incurred for the advancement and maintenance of the children of the marriage, this Court cannot agree that it would be entitled or justified to do so capriciously. Evidence must be led to establish the specific claims lodged and it would in my judgment, be absolutely wrong in principle to make an order for maintenance merely on the unsubstantiated word of the claimant." (2) "However here exists in East African tribal communities in Tanzania an accepted customary practice, which for want of a better term, I will hereafter call "maintenance", where by a man who has allowed his wife and children to stay at his father-in-law's home for a long period, is required to pay a token sum of money or a head of cattle as a means of thanking his father-in-law for the expense and trouble that he had to undergo in keeping his children. The nature that this token takes and amount that may be paid varies from tribe to tribe but I think it cannot be disputed that such a traditional payment will not be anywhere near the exorbitant figure arrived at by the District Court in this case. One of the assessors who sat with the District Magistrate gave the opinion that according to the Masai custom the appellant would only be required to pay to the respondent's parents one calf for undertaking to care for her and the children. The respondent has admitted before this Court that

traditionally the appellant would only be required to make a token payment to thank her parents for keeping the children for the period of six years. She has suggested the figure of two or three heads of cattle as the amount that would be paid in the instant case. On a fair view of this case I accept the opinion of the assessor as a correct statement of the Masai customary law on the issue of maintenance and direct that the appellant should pay one head of cattle to the respondent's parents as a mark of gratitude and thanks for the trouble they took to care for his children. To this extent this appeal is allowed." (3) Appeal allowed.

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257. Sakala v. Elia (PC) Civ. App. 133-D-70; 7/7/71; Mwakasondo Ag. J.

In a suit for custody of children in the Primary Court the appellant/wife alleged that though she had lived with the respondent/husband the latter was not in law her husband because he had not paid bride-price as was the custom of her parents. There was evidence admitted by the appellant that throughout the time she lived with respondent, she held herself out as the respondent's legal wife and the world at large considered her as such. She had also represented herself to the Administration and got a passport as respondent's wife to join him in Zambia. The Primary Court held that as there was no evidence of payment of bride-price, no valid marriage subsisted and therefore the respondent had no right to the children. The district court reversed on the ground that there was enough evidence to support a finding that a valid marriage existed; and that even assuming that no bride-price was paid, the marriage would be valid on the application of the common law principle that long cohabitation in the absence of evidence to the contrary raises a presumption that a marriage is valid

relying on Fatuma d/o Amani v. Rashidi s/o Athumani [1967] H. C. D. 173. The appellant appealed.

Held: (1) “There are, of course, good and weighty reasons why the Courts have in particular cases applied the common law principle of presumption of marriage. The basic reason I believe is the reluctance of the Courts to invalidate any marriage unless there are good and compelling grounds for doing so. The case of Nyamakaburo Makabw v. Mabera Watiku (The Governor’s Appeal Board’s Appeal No. 7 of 1944) lays down generally acceptable principles which should guide a Court in determining the issue of validity of marriage. The principles to be applied were couched by the Board in the following terms: “Where persons are living together as man and wife over a long period, and especially where there are children of the union, the Board would require the strongest possible evidence to rebut the presumption that the marriage was valid. It would require stronger evidence than that of the interested parties to confirm the assertion that no bride-price was paid and (in a case where the parties were reputed to be man and wife in the neighborhood where they lived) even if satisfactory proof was forthcoming that the bride-price had never been paid further evidence would be necessary from an independent source to establish the assertion that non –payment of bride-price necessarily involves the invalidation of the marriage and the illegitimacy of the children.” Applying the principles in the Watiku’s case to the facts of this case there can be no doubt that there was no evidence before the Court of first instance to rebut the presumption that the marriage was valid nor in my view was there any satisfactory evidence to establish that bride-price had never been paid by the respondent. In these circumstances the Primary Court was clearly misguided in holding that the marriage was invalid. I am therefore satisfied that the District Court properly directed itself on the facts and the law in holding that the marriage between appellant and respondent was a valid one. I would accordingly

Affirm the decision of the District Court and dismiss this appeal in respect of the first issue.” (2) “The second issue which is due for consideration is the question of the three children. It is clear from the record that this matter came before the Ilomba Primary Court and disposed of in the divorce proceedings instituted by the appellant in 1969. According to the divorce certificate produced for the examination of the lower Courts the custody of the three children was given to the respondent. There is no doubt that the Ilomba Court was in law precluded from reopening the custody issue and reversing its decision.” (3) Appeal dismissed.

258. Nonga v. Attorney-General and Bunuma Misc. Civ. Cause 9-M-70; 28/7/71; El-Kindy Ag. J.

This was a petition challenging the results of the elections in Msalala/Busanda constituency on the ground that there was non-compliance with section 88 of the Election act 1970, that is the Returning Officer and Assistant Returning Officers failed to open the Ballot boxes and to count the ballot papers personally, but abdicated their functions to enumerators, and this affected the result. The Attorney-General admitted that there was the non-compliance alleged. The petitioner was beaten by a majority of 1,606 votes; he polled 10,978 and the successful candidate polled 12, 684 votes.

Held: (1) “Section 88 of the Elections act, 1970 provides that the Returning Officer and Assistant Returning Officers “shall” open the ballot boxes, count the ballot papers therein and record the totals of each ballot box before mixing them. The facts in this case showed that enumerators opened the ballot boxes, counted the ballot papers and announced the result. This was contrary to law and therefore it cannot be said that here was compliance of this provision it appears that the opening of each

ballot box by the Returning Officer and Assistant Returning Officers is the guarantee against tampering with the ballot papers by enumerators or anybody else before the counting of votes commenced. If this provision is not followed to the letter, the Returning Officers and their assistants cannot be certain about the totals of ballot papers.” (2) “This case illustrated this clearly. At the first count the total was 32,956 but the final total was 26,541, and the Returning Officer or his assistant cannot possibly be certain as to which total was in fact the correct one. By allowing enumerators to take the first count, the Returning officer or his assistant deprived himself of the means of making sure as to the correctness of the grand total. In such circumstances, such election officers cannot hope to explain satisfactorily the discrepancy of figures. As a result of this, this Court cannot know how many people voted in Msalala/Busanda constituency out of the registered total of voters of 44,516. This Court has no reason to accept one figure as against the other. If it accepted that in fact there were 26,541 ballot papers, the question arises as to where the rest of 6,415 ballot papers went to. This figure could easily tip the results of this election as to which candidate would have been successful. This Court they would not be reasonably sure that the

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Petitioner would not have won had the 6,415 ballot papers not disappeared. The other possible explanation was that the total of 32,956 was mathematically wrong. Assuming for the moment that the figure of 32,956 was wrong, and that the figure of 26,541 was correct, this court would still not be certain whether the results would to have been affected when (a) one of the ballot boxes was produced in open state and (b) the fate of three other ballot boxes was not known. This Court is not certain about the total number of ballot papers which were in all these four ballot

boxes. It is possible that their grand total could have been less than 1006 but it could also be that they were more than 1606. The production of the opened ballot box by unknown person, from unknown place, with unknown number of ballot papers, does not make it easy for this Court to hold that this state of affairs did not affect the final results of elections. And bearing in mind that there were lights out twice during the vote counting, the possibility of tampering with votes, either by taking away or adding to the heap of ballot paper on the counting table, cannot entirely be ruled out. In all the circumstances, this Court is satisfied that the petitioner has proved noncompliance of section 88 of the Elections Act 1970 and that, as a result of this noncompliance the results were affected within the meaning of section 123(3) (c) of the Elections Act 1970.” (3) Petition allowed.

259. Yongolo v. Erasto and Attorney-General Misc. Civ. Cause 6-M-70; 16/7/71; El-Kindy Ag. J.

This was a petition challenging the results of the parliamentary elections in Sikonge constituency on the grounds mainly that; (a) the presiding officers engaged in illegal practice during voting by (i) voting for some illiterate voters without showing the voters that they marked the ballot papers according to their choices, (ii) voting for some voters who were literate and able to vote for themselves; (b) the presiding officers engaged in undue influence in following voters into the voting enclosure where the voters were supposed to exercise their rights to vote freely and secretly and by advising and/or urging and/or exerting influence on voters to vote for the candidate of their choice. The allegations were not proved but evidence emerged that; (a) there was no screened compartment at one polling station (Kawale) and that anyone could observe how a voter cast his vote which arrangement contravened section 71(d) Elections Act 1970; (b) the presiding officer was present in the screened from at Chaubwa Barazani polling station on a number of occasion without any cause. The issue was whether these non-compliances with the law affected the results of the

elections. The petitioner polled 7,389 votes while the successful candidate polled 8,057 votes winning by a majority of 668 votes.

Held: (1) The illegal practice and undue influence alleged against the presiding officers were not proved. (2) "The party which seeks to avoid election results, has to prove, to the satisfaction of the court, that there was non compliance with the provisions of the Elections act 1970 and that such non-compliance affected the results I would

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Respectfully agree and endorse the views of the learned judges (Georges C. J. and Banmerman J. as they were then) in the case of *Mbowe v. Eliufoo* [1967] E. A. 240 that "proved to the satisfaction of the court" means proof beyond reasonable doubt, and that is the standard of proof which the petitioner has to discharge in this petition if he is to succeed." (3) "The next issue therefore is whether this noncompliance with the provisions of the law affected the results of the election. On this legal point I was ably addressed by both learned counsel, and I am grateful to both counsel as I have already said. The case of *MBOWE v. ELIUFOO* (1967) E. A. p. 240, passages from the commentary at page 116 paragraph 942 of *ENGLISH & EMPIRE DIGEST* Vol. 20, *HALSBURY'S LAWS OF ENGLAND* 3rd Edn, Vol. 14 at page 150, 159 and paragraph 289, and the case of *WOODWARD v. SARSONS* (1948) 2 All E. R. page 503 were quoted in the course of this submission. Although I avoid quoting these leaned opinions in this petition, I take them into account on the issue. But, it seems to me that it is a futile exercise to attempt to define what the statutory provision means by the phrase "affected the result of the election" and probably in the course of such attempt the borderline might be unduly affected. In the case of *MBOWE V. SARWATT* (1967) E. A. p. 240 THE LEARNED Chief Justice (as he then was) attempted to define a similar phrase as it then appeared in s. 99 of the National Assembly

(Elections) Act, No. 11 of 1964, s it can be seen from this passage, at page 242:- "In my view in the phrase 'affected the result', the word 'result' means not only the result in the sense that a certain candidate won and another candidate lost. The result may be said to be affected if after making adjustments for the effect of proved irregularities the contest seems much closer than it appeared to be when first determined. But when the winning majority is so large that even a substantial reduction still leaves the successful candidate a wide margin, then it cannot be said that the result of the election would be affected by any particular non-compliance of the rules." And at page 245 (para2 from bottom) the same learned judge said:- "In these circumstances, it is not necessary for me to define exactly what the term 'affected the results of the election' would mean in this particular case, and I would certainly refrain from doing so as this is a matter of some difficulty. We would prefer to leave the matter open in the event that in another petition the facts proved raise this issue more precisely for determination." In this passage, the attempt was abandoned as the matter was of "some difficulty and it was found unnecessary to define exactly what phrase meant. In other words, this court did not In fact define what this phrase meant. This position was subsequently confirmed in the case of BURA V. SARWATT (1967) E. A. p. 234. In that case, the previous case of Mbowe was quoted to the same learned Chief Justice (as he was then). While he did not wish to resile from the stand he took in the case of Mbowe, he clearly said that the decision in Mbowe's case should be seen in its context here the allegations were of unlawful campaigning and undue influence. This passage seems to me to confirm that this Court did not find it expedient to define a similar phrase. Nor do I think that it is necessary in the case in hand to attempt such a definition since whether or not the results of the election were

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affected, would depend on the facts of the case and the allegations made. Effects on the results could be several and varied in form so that what could be said to have amounted to any effect on a case in one case may not be so in respect of another with different set of facts. A similar position appears to have been taken in the recent petition in the case of NG'WESHEMI v. KISENHA, Misc. Civ. cause No. 5 of 1970 (unreported as yet) (see [1971]H.C.D. 251). In my view, the non availability of screened compartment at Kawale polling station and the presence of the presiding officer in the screened chamber at Chabutwa Barazani polling station in the circumstances of this petition did not affect the results of the election in this petition. I would say the same thing even in connection of Chabutwa Barazani where the actual number of people who voted were not known. Even if one assumed that the 300 people, who were expected to vote at Chabutwa Barazani, were conceded for the petitioner, the first respondent would still be the successful candidate. "(4) "Two other matters need be stressed The right to vote is the sacred right of the people, and it is only exercised once in every five years in normal circumstances. If the people are to express their choice in the true spirit of free elections, they ought to be served with the necessary care and requisite knowledge. Station should not have occurred if the presiding officer had been sufficiently careful, diligent and had acted with the necessary knowledge which one presumes to have been given to him. The majority of our people are illiterate and it is important that their expressions of free choice should not be destroyed or hampered by such carelessness or lack or deficient knowledge of election officials. And more important the work has to be done consciously and with the necessary knowledge." ... "And, finally, people who are related to either candidate, as it happened in the case of Ernest Nkulu, wherever it was practicable should not be chosen to hold key positions, such as that of a presiding officer, in election. This would avoid unnecessary suspicion of partisanship on the part of such

persons. I hope these criticisms will be taken into account in future organisation of elections.” (5) Petition dismissed.

260. Lengunyinya v. Lormasi (PC) Civ. App. 63-A-70; 23/7/71; Kwikima Ag. J.

In the primary court the parties disputed title to some three children. The appellant was their mother’s husband and the respondent was their maternal grandfather. The issues which were resolved in the appellant’s favour by the primary court sitting with Masai assessors were (a) whether the children were born while the marriage of their mother and the appellant was subsisting; (b) whether under Masai law and custom children born when the marriage still subsists belong to the husband who ever their natural father may be; (c) whether the children born before the marriage again belong to the husband. All these questions were answered in the affirmative and the children found to be the appellant’s. But the district court reversed.

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Held: (1) “Without apprising himself of Masai law and custom, the learned Magistrate who heard the first appeal allowed it because he found that the appellant was not the natural father of the first two children. He then chose, for no recorded reason, to believe the respondent’s allegation that the brideprice had already been refunded to the appellant. This was clearly misdirection. He could not simply reverse the trial court on a factual issue without explaining why he did so. A trial court is the best judge of facts and although an appeal court may interfere where inferences drawn are so unreasonable as to warrant interference, it can only do so with caution. In this case no caution appears to have been exercised by the appeal magistrate. For this reason the conclusion reached cannot be shown to have improperly arrived at the reversed inference.” (2) Appeal allowed.

261. Kaderbhai v. The Rent Tribunal Tanga and Northern Province Press Misc. Civ. App. 1-A-70; 17/7/71; Bramble J.

This is an appeal against the decision of the Tanga Rent Tribunal reducing the rent of certain premises on an application fix standard rent. The evidence available from the parties was insufficient, but the tribunal visited the premises and from its own observations found that although the building was in a good state it was an old building. Rent was then reduced from Shs. 1,100/- per month to Shs. 900/- per month.

Held: (1) "Before the Tribunal could go into the question of standard rent it must determine whether the premises are commercial premises or a dwelling house. It did not direct its mind to this question and so the fixing of the rent in this case was not legal. The tribunal brushed aside all the requirements to ascertain standard rent and proceeded to reduce the existing rent and, this too, on facts from its own observation rather than facts adduced in evidence. It is true that Section 6(b) of the Amending Act gave the Tribunal the power to reduce rent. It provides that: - in the case of any premises in existence prior to the commencement of the act and in regard to which the Tribunal is satisfied that having regard to the age or other circumstances relating to the premises it is reasonable to reduce the amount of the standard rent as ascertained in accordance with subsection (1) of the Tribunal may reduce the standard rent of such premises to such amount as it shall in all the circumstances, consider reasonable. It is clear that before there can be any reduction the standard rent must first be ascertained. I must add, as have been repeatedly stated, that Tribunal must not act on facts within its own knowledge but may draw out such facts from the evidence of witnesses which will be submitted to the usual legal process. If neither party can test by cross examination a certain fact or have an opportunity to put opposing facts how can it be held against him?" (2) Appeal allowed.

262. Bilingimbana v. Mwijage (PC) Civ. App. 209-M-70; 6/7/71; El-Kindy Ag. J.

The appellant/wife had sued for divorce under customary law alleging that the respondent/husband had caused her great hardship by not providing her with matrimonial facilities and by sending her away from the matrimonial home. She also made a number of other vague allegations. The two assessors in the primary court found that the evidence of the appellant had failed to establish a ground for divorce. But the trial magistrate disagreed and found that it was the respondent who had caused the disagreement and granted divorce under Rule 61 of the Law of Persons, G. N. 279/63. The district court reversed.

Held: (1) "As it was rightly pointed out by the learned appellate magistrate, the trial magistrate's opinion was in minority, and as such he could not override the opinion of assessors in view of the amendment to the Magistrates Courts act, 1963, Cap. 537 imposed by section 2 of the Magistrates Courts (Amendment) act, 1969, Act No. 18 of 1969. In view of this vote system of making decision, the trial court was bound to give judgment as advised by the two assessors. The appellate court agreed with the views of the assessors in the trial court, and the assessor on appeal also was of the same opinion, and held that the appellant failed to establish a sufficient ground for divorce, and allowed the respondent's appeal in full." (2) "In her memorandum of appeal, she argued that the fact that for the last 3 years the respondent has not cared for her was a sufficient ground for divorce. This allegation, in my view, is not accurate as there was a conflict of evidence as to whether the respondent refused to take her back or whether the appellant refused to go back with him. Indeed from a clear declaration made by her that she had no intention whatsoever of going back to her matrimonial house, it cannot be said that the appellant could not possibly be the one who chose to stay away from

her matrimonial home. If so, she cannot legitimately complain that the respondent was guilty of desertion.” (3) Appeal dismissed.

263. Merchior v. Nyamaishwa (PC) Civ. App. 181-M-70; 5/7/71; El-Kindy Ag. J. The parties were disputing over a ½ acre shamba worth Shs. 150/-. The appellant claimed that he had inherited the shamba from his father who died in 1966. it was an accepted fact that the respondent had been in occupation of the shamba since 1948, that is, in continuous occupation and use for a period of no less than 24 years. The issue was whether the disputed land had been sold to the respondent as he himself claimed or simply pledged to him as the appellant claimed. The trial court found for the appellant after rejecting the respondent’s evidence. The District Court reversed and also held that the suit was time-barred relying on G. N. 311/64 section 97/63 Wilfred and Mashauri C & H 224, that the time of limitation was 12 years, but here the action had been commenced 24 years after the respondent came into possession.

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Held: (1) “With due respect to the learned appellate magistrate the computation of the period was not accurately calculated. Time begins to run against a party from the time when the right to bring action first accrued or on the day when the limitation Rules (G. N. 311/64) came into operation, whichever is the latter. In either case, these proceedings were not time barred. As against the appellant, the right of action first accrued in 1966 when she inherited the property of her deceased father, and therefore time can only be counted as against her as from that date. Before that she was not interested in the property, as her father was still alive and time, if at all, was running as against her father, and not against her. In the alternative case, these Rules came into operation on the 29th of May, 1964. therefore, counting from either starting points, the appellant’s

counting from either starting points, the appellant's suit was still within the period of 12 years provided for (see also BONIFACE MUHIGI v. PHILEMON MUHIGI, 1967, H. C. D. No. 231)." (2) [After examining the evidence] "With due respect, I see no valid reason shown why the trial court erred in rejecting the respondent's case in toto as it did. In my view, for the reasons the trial court gave, it was entitled to reject the respondent's claim. Having rejected the respondent's claim as it did, the trial courts was left with the will of Merchiro which sufficiently showed that the shamba in dispute was pledged to the respondent. In my view, therefore, the decision of the trial court was sound." (3) Appeal allowed.

264. Julius v. Denis (PC) Civ. App. 199-M-70; 9/7/71; El-Kindy Ag. J.

This is an appeal against judgment of the district court ordering the appellant to pay Shs. 500/- to respondent as compensation for making the appellant's daughter pregnant. The appellant was the girl's teacher. The girl alleged that he seduced her and had sexual intercourse with her on various occasions at his home. She also described the various parts of the appellant's body such as the fact that he was uncircumcised and had "hairs on his penis", and has "a small but protruding naval." There was also some evidence of admission or responsibility for the pregnancy by the appellant. The trial court on the evidence found for the respondent and the district court affirmed holding that the appellant had not discharged the burden of proof as laid down in Rule 183 of the Law of Persons G. N. 279/63. On appeal it was argued for the appellant, that as he had denied responsibility, it was up to the respondent to satisfy the trial court in terms of Rule 186 of the Law of Persons G. N. 279/63 and that this burden had not been discharged by the mere description of characteristics common to any male adult.

Held: (1) "In order to resolve the issues rose, I would firstly quote the two relevant sections in full. Rule 183 of the said rules read: "183. The man whom the woman names as the father of her child may not deny

paternity unless he can prove that he had no sexual intercourse with the woman.” And 186 reads: - ‘186: If a man named insists that he has never had sexual intercourse with the woman and

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Produces evidence, the woman shall be required to prove the assertion by giving details regarding place, time physical characteristics of the man and by calling witnesses to her relationship with the man in question.” As it can be seen the effect of these two sections is to shift the burden of proof on to the man in such cases. These two sections are applicable in this case as the two parties (appellant and Modesta) were not married, and the child who was born and brought in court on appeal, was an illegitimate one. In my view the proper interpretation of these sections would be this. Where a man denied paternity, it would not be enough merely to deny it. He has to lead evidence, as it can be seen from the wording of both sections (“prove” in Rule 183 and “produces evidence” in Rule 186). The burden of proof does not shift back to the woman, as provided for by the latter part of Rule 186, until the appellant has discharged his duty as provided for in the first part of Rules 186 and 183. A similar point was considered in the case of NYAMGUNDA v. KIHWILI [1967] E. A. p. 212. As it can be seen, in this case, apart from the appellant’s simple denial, he did not lead any evidence to exonerate himself, as it were, of Modesta’s allegation. In my view, therefore, the burden of proof had not yet shifted back to Modesta or the respondent so as to justify the learned counsel’s criticisms that she or the respondent had not complied with the provisions of Rule 186. As the appellant did not lead any evidence in rebuttal of the allegation, the respondent’s case was bound to succeed.” (2) “However there was evidence which, if accepted, would sufficiently support the respondent’s case. Modesta gave time and place of the incidents, as to the relationship and physical characteristics of the appellant. As the burden of

proof had not yet been shifted on to her, her evidence, given on oath as it did, was adequate. It did not need corroboration in the circumstances of this case. In the case of NYAMGUNDA v. KIHWILI [1967] E. A. p. 212, in a similar case to this one, this Court held that corroboration was not required. Besides this, there was clear evidence of Alex Mahenya which showed that the appellant was the one who fathered the child by Modesta.” (3) Award of 500/- was rather low, people of the appellant’s nature should not get away lightly. (4) Appeal dismissed.

265. Sianga v. Kamlabeni Misc. Civ. App. 3-A-71; 19/7/71;

This is an appeal against the decision of the Rent Tribunal at Moshi on the ground that the Tribunal had no jurisdiction to determine standard rent because the suit premises were four miles outside Moshi Township.

Held: (1) [After referring to ss. 5 and 6 the Rent Restriction Act and s. 17 of the Rent Tax Act]. “I interpret these sections to mean that when the Tribunal sits with all members, who are appointed generally, it has jurisdiction to determine any matter arising out of the Rent Restriction act in any rent restriction area. When it consists partly or wholly of members appointed for any rent restriction area or areas it can only determine matters within that area or areas. The effect of the Rent Tax act is that the general

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Jurisdiction of the Tribunal is extended to areas outside the rent restriction areas. The extension does not apply to members who are given limited jurisdiction. When the composition of meeting of the Tribunal includes members with jurisdiction in specific areas it will have no power under the Rent Tax Act to determine matters outside these areas.” (2) “It appears to me, therefore, that since the principles of fixing the standard rent of premises outside rent restriction areas for the purposes of the Rent Tax

Act are identical with these under the Rent Restriction act the Tribunal in the present case will have jurisdiction to determine the standard rent if the premises were proved to be outside Moshi township and the members of the Tribunal were appointed generally by the Minister. There was nothing on the record from which the Tribunal could made a finding on any of these questions and I will allow the appeal with costs and remit the matter to the Tribunal with directions that it determine the matter according to law.”

266. Birigi v. Wajamu (PC) Civ. App. 210-M-70; 23/6/71; El-Kindy Ag. J.

The appellant lived in concubinage with the respondent and some five children were born out of the wedlock. He claimed the children. The respondent denied that the appellant was the father of her children except one. At the trial the appellant could not adduce clear evidence as to how long he had cohabited with the respondent. The trial court found that the appellant had not established his claim over the children and therefore they belonged to the maternal side. The district court held that it had been established that at least one child belonged to appellant but that the appellant could not have custody of that child unless he legitimized it and it reached the age of six years. On appeal, the appellant argued that he had established his paternity of the children and that he saw no reason why he should legitimise his own child by paying a fee.

Held: (1) “I am satisfied that the primary court erred when it held that he appellant was not entitled to the children on the ground that children born out of wedlock “Belonged” to the maternal side. This seems to be a misapplication of Rule 178 of the Local Customary law (Declaration) Order G. N. 279 of 1963 which, in my view, only applies in cases where the father was unknown, but where the father was known then Rules 181 and 182 of G. N. 279/63 in certain circumstances. The two rules read as follows: - “B. IF THE IDENTITY OF THE FATHER IS KNOWN. LEGITIMATION 181. A. A. father has the right to legitimate his

illegitimate children at any time by marrying their mother. B. If a man wishes to legitimate his child is weaned by paying Shs. 100/- to the girl's father. C. The place where the child is brought up shall be agreed by its father and mother, or if they cannot agree it will be fixed by order of the court. In any case, the father shall be responsible for the maintenance of the child. 182. Only the man who has been named as father by the mother at the time of the child's

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birth has the right to legitimate it." These provisions were considered in the cases of MTAKI v. MIRAMBO 1970 H. C. D. No. 188, SAIDI v. MSAMILA 1970 H. C. D. No. 228, KINYAZI v. BANDAWE 1970 H. C. D. No. 311 and TEOFRIDAN v. KANISIUS 1971 H. C. D. No. 21. (2) "It seems to me to be clear that provisions of sections 181 and 182 have no doubt at all. In the first place it is only the person who is named as a father, is entitled to legitimise his child born out of wedlock, and he can do so by using either of the two methods set down. He can do so by marrying the mother of the child, or he can legitimise the child by paying affixed amount of Shs. 100/-, and this he can do before the child is weaned. In other words, there is no provision in the Declaration whereby a named father can legitimate his child after the child is weaned. This omission in my view is serious as it unnecessarily denies the child born out of wedlock the right of being legitimate. I am unable to understand why the provisions chose to restrict the right to legitimation of the child by making it only available to the child who is still unweaned and denied it to the child who is already weaned." (3) "In this case... the evidence showed that the appellant did not attempt to legitimize Mwajuma before Mwajuma weaned, and therefore it was not open to the appellate court to permit the

appellant to legitimise Mwajuma before Mwajuma weaned, and therefore it was not open to the appellate court to permit the appellant to legitimise Mwajuma.” (4) “However, the basis of the appellant’s claim was that as the natural father of the alleged three children he was entitled to take these children, but the evidence he led did not establish that Limbu and Mwamba were his children. The trial court and the appellate court were entitled to hold against the appellant on this issue.” (5) “The issue then was whether the appellant was entitled at all to the custody of Mwajuma, whether before or after weaning. As I have stated, Rule 178 of G. N. 279/63 was only applicable in cases where the child’s father is unknown. My reading of provisions of rules 175 to 199 of G. N. 279/63 did not help in resolving of this issue although the impression left is that custody of such a child remains with the material side. However, in this case Mwajuma is still a young girl, and it is not necessary for me to resolve the above issue. In my view, it is in the interest of Mwajuma that she should remain in the custody of the respondent as it was ordered by the appellate court, and that the appellant, if he is not doing so, should pay for the maintenance of “Mwajuma.” (6) Appeal dismissed.

267. M. B. v. Commissioner General of Income Tax Misc. Civ. App. 27-D-70; 16/7/71;

On failing to file a return of income for the year 1967, the taxpayer was issued with an estimated assessment by the Commissioner. Over five months after the issuing of the estimated assessment, the taxpayer filed an objection to the assessment. The Commissioner refused to accept the taxpayer’s notice of objection because it was submitted after the statutory period provided by s. 109(1) of the East African Income Tax (Management) Act. The taxpayer’s notice of objection because it was submitted after the statutory period provided by s. 109 (1) the East African Income Tax (Management) Act. The taxpayer appealed against the

Commissioner's refusal of his late notice of objection to the Local Committee and asked the Committee to revise his assessment.

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The Local Committee dismissed his appeal. Against that decision this appeal was brought. It was submitted for the Commissioner that the appeal was incompetent because the decision of the Local Committee on an appeal against refusal to accept notice of objection is according to s. 109(2) final; that although an appeal to the court lay from the decision of the Local Committee refusing to revise an assessment, here the taxpayer was not appealing against the assessment as an appeal against an assessment would only lie where a taxpayer has given a valid notice of objection to the assessment within 30 days of the assessment and here there was no valid notice of objection as it was time barred.

Held: (1) [After setting out the provision of s. 109 East African Income Tax (Management) Act]. "With regard to the first leg of his submission, that is he appeal against the Commissioner's rejection of the late objection, Mr. Lakha submitted that a Court should not find its jurisdiction ousted and no appeal lies to it except in most exceptional cases. I fully agree with Mr. Lakha's submission and as I remarked in a case recently, a Court is always jealous of its jurisdiction and will not lightly deem it to have been ousted. The Legislature can and often does must the jurisdiction of a Court, unfortunately it must be added, sometimes too often. But for the Court to find that its jurisdiction has been ousted, the Legislature must so state in the most unequivocal and uncertain terms." (2) "I have already set out section 109 of the Act and it is I think even Mr. Lakha would agree abundantly clear beyond peradventure that the Local Committee's rejection of an appeal against the refusal of the Commissioner to accept a late objection is final and conclusive and no appeal lies therefrom." (3) "With regard to the second leg of Mr. Lakha's

submission that the appeal was also against the assessment by the Commissioner, although ingenious, this submission is not only unsupported by the facts but even at variance with his own client's conduct and against the law. In his notification to the Commissioner dated 6th of March (appendix 'D') the appellant stated and I quote: "Please note that I intend to appeal to the Local committee against your decision to refuse my late objection." There is no mention in that notification of any appeal against the assessment. Likewise, in his Memorandum of appeal addressed to the Local Committee (appendix 'E') the appellant commences with: "I the appellant above named, being aggrieved by the decision of the Commissioner of Income Tax, the Respondent, to refuse to accept my letter of objection, do hereby appeal against this decision on the following grounds:- There then follow his grounds and the Memorandum concludes:- There then follow his grounds and the Memorandum concludes: "With the above grounds in mind, I pray you to authorize the Respondent to revise my assessment on the basis of details shown in my return." It is abundantly clear that all the appellant was asking the Local Committee to do was as stated in his last paragraph, to authorize the Commissioner to revise his assessment, again, not the slightest mention or even hint of an appeal to the Committee against the assessment." (4) "As I think, sufficiently demonstrated, as the appellant was appealing only against the Commissioner's refusal to accept his belated objection, it is therefore hardly likely that the

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Local Committee would have dealt with the assessment. Apart from that on the appeal as laid, the Local Committee had no authority to deal with the assessment as such, for section 109, which has been set out above, expressly lays down that all the Local Committee can do on such appeal

is, quoting the concluding words of the section; "and the local committee hearing such appeal may confirm the decision of the Commissioner or may direct that such notice shall be treated as a valid notice of objection." The Committee therefore on the appeal before it could not, even if it had been so minded, have dealt with, and ruled on, the assessment." (5) Appeal dismissed.

268. Twentche Overseas Trading (Export) Ltd. v. Shah Civ. Case 12-T-69; 27/7/71; Bramble J.

This is an application for an Order for the issue of a letter of Request for the taking of the evidence of seven witnesses in London. The suit is for damages rising out of a breach of contract signed in Tanzania, the extent of the damages claimed is dependent on the proof of arbitration awards made against the applicant in England, as a result of their failing to carry out certain agreements made between them and another party, the non-fulfillment of which were alleged to be due to the respondent breach. A notice was served on the respondent to admit the proceedings in the arbitration and copies of the relevant contracts but he is not willing to do so. Both parties agree that the examination of the witnesses are not and never where within the jurisdiction of this court the applicant has stated that it is inconvenient to have the witnesses brought to this country because of the high cost and the improbability of being able to obtain all of them at the same time.

Held: (1) "The respondent has objected to the application on the ground that the fact that the witnesses are out of the jurisdiction is not a special circumstance to warrant the grant of the application. In support of this point he quoted the case of Caspair Ltd. v. Henry Gandy (1962) E. A. L. R. 414. That case dealt with the grant of a commission to examine a plaintiff who was then out of the jurisdiction and it was held that only in exceptional circumstances will the court allow a plaintiff to be examined out of the jurisdiction. The whole basis on which a commission or a letter

of Request is issued is that the witness is out of the jurisdiction and his evidence is necessary for a just determination of the case. it is only where the applicant is a plaintiff that he must show exceptional circumstances. It was further contended that the respondent will be put to extra expenses by retaining counsel in London and that it may be difficult to get permission from Exchange Control. It has not been said that permission will not be granted by Exchange Control and any expense to which the respondent is put is recoverable by way of costs if he is successful in the suit. The respondent is in no worse position than the applicant. An oral request for security for costs in the suit was made. There was no summons supported by affidavit and the respondent will have to make his application in proper form.” (2) Application granted.

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269. Abdulkarim v. Juma Civ. App. 6-T-70; 17/7/71; Bramble J.

The appellant agreed to sell his shop plus goods in it to the respondent. The two rooms plus the shop and store were to be rented by the respondent from the owner of the premises. The respondent did not start any business because he did not get possession of the two rooms in which to sleep, but he got possession of the shop and store. He sued for damages for failure by appellant to put him in possession alleging loss of profit. The appellant counterclaimed for rent water charges and possession of the premises. In the lower court judgment was given for the respondent and appellant's counterclaim in as far as if concerned rent, electricity and water charges was dismissed. Appellant appealed.

Held: (1) There was no intention to give the respondent vacant possession of the two rooms (2) “The renting of the two rooms and shop can best be interpreted from the agreement as an expression of intention by the parties. After subsequent consultations and discussions the

appellant secured a lease of the premises with the landlord granting his consent to a sublet to the respondent. The rent was fixed at Shs. 200/- per month. The respondent said that he signed a lease which does not seem to have been put in evidence but was attached to the defence as annexure. "B" in that lease the whole of the premises was demised to him by the appellant for a term of one year at a rental of Shs. 200/- per month. The respondent never got possession of the two rooms. In Dharas & Sons v. Elys Ltd. 1963 Ed. p. 573 Udo Udoma, C. J. following the English authorities held that a person who lets premises impliedly undertakes to give possession them. In that case the plaintiffs agreed to let a shop and basement store to the defendants. By agreement the plaintiffs retained the basement store to the defendants. By agreement the plaintiffs retained the basement store up to a particular date and gave possession of the shop to the defendants. After the agreed date the plaintiffs refused to give up possession of the store. The plaintiffs sued for damages for breach of tenancy agreement; damages being expressed as rent for the unexpired period of the tenancy. The suit was dismissed on the grounds that by willfully refusing give vacant possession of the store after the agreed date the plaintiff had committed a breach of the tenancy agreement and the action to recover rent was not maintainable in law." (3) "The right to vacant possession to the respondent arose under the lease. The failure to give vacant possession was because the rooms were occupied by someone else. The trial magistrate impliedly rejected the appellant's evidence that the respondent had agreed to allow the person to remain and he was justified in so doing from all the circumstances of the case. If the appellant gave an undertaking for vacant possession and quiet enjoyment while a third person was in occupation it was at his own risk. The court following the decision quoted above held that the appellant was in breach of the tenancy agreement and the claim for rent was not maintainable. I see no reason to disagree. The charges for water and electricity were not proved and the claim failed." (4) Appeal dismissed.

270. Nyakanga v. Mehego (PC) Civ. App. 77-M-70; 28/7/71; El-Kindy Ag. J.

The appellant sued the respondent for unpaid bridewealth in respect of his daughter. The evidence was that the respondent and the appellant's daughter were living together, the girl having eloped to live with him. The primary court found for the appellant but the district court reversed holding that as the respondent did not wish to marry, he could not be forced to marry.

Held: (1) "With due respect to the appellate District Court, there was no question of anybody being forced to marry in this case. The issue was whether, on the facts, circumstances and the customary law, the respondent was married to the appellant's daughter. It may be that not much weight can be put on the contradictory states of mind of the respondent, but it cannot be ignored that he categorically considered the appellant's daughter as his "wife". This came out from his own mouth although later on he said that he did not wish to marry. The stand taken by respondent seems to be inexcusable. He wants to have the appellant's daughter in his house without paying for it. He cannot be expected to have his own way if he was interested in the appellant's daughter. The fact that she is still living with the respondent would indicate that he wanted to continue living with her." (2) "Besides this, the trial court specifically held that the respondent eloped or abducted the appellant's daughter and therefore by this process their customary law (Kuria) considered the respondent as having been validly married. The appellate court did not direct its mind to this custom. I find. There was nothing wrong when the trial court held that he was validly married and that the remaining issue was only that of payment of reasonable brideprice." (3) "The trial court held that 33 heads of cattle were reasonable amount as that was "the

standard” brideprice of the Kuria tribe, and ordered that the respondent should pay the balance of 23 heads of cattle.” (4) Appeal allowed.

271. Paulo v. Balukeki (PC) Civ. App. 184-M-70; 29/7/71; El-Kindy Ag. J.

As a result of a High Court decision which held that a disputed shamba belonged to one Edward Mutesa who was a minor, and not the appellant, the appellant sued the respondent for compensation alleging that he had developed the shamba after the respondent had allocated to him the shamba knowing it to belong to Edward Mutesa that it was reasonable that he should be paid compensation. The respondent’s case was that the appellant was a trespasser. The primary court found for the appellant but the district court reversed on the grounds that: (a) the evidence of two witnesses was inadmissible as per Rule 6 Local Customary Law (Declaration) (No. 4) Order, 1963 G. N. 436/1963 Third Schedule; and (b) the primary court judgment could not be supported in view of the High Court decision on the issue. Against this decision this appeal was brought.

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Held: (1) “In my opinion, the judgment of the district court is sound in law, although I am satisfied that the appellate court misconstrued Rule 6 relied on. That rule reads:- “6. Watu wanaorithi kitu cho chote kutoka wosia hawawezi kuhesabiwa kama mashahidi kushuhudia wosia ule – isipokuwa mke au wake wa mwenye kutoka wosia.” Although I do not entirely agree that the English translation is correct of the Swahili version, the translation of this provision reads as follows: - “6. Persons who are to inherit anything under the will may not be counted as witnesses to the will. This does not apply to the testator’s wife or wives.” The appellate court took this provision to mean that inheritors as P. W. 2 to P. W. 5 were could not give evidence in court. This in my opinion is mistaken as the provision

only relates to witnessing execution of a will and does not cover matters arising out of correct distribution of the will. In my view, they were competent witnesses in this case.” (2) “However, I would still say that heir evidence was inadmissible in the light of this court’s decision on the matter. As it can be seen from the clear wording of Mustafa, J. (as he was then) in the above quoted case, the court held that the respondent did in fact allocate this disputed land to Edward Mutesa and accepted the evidence that the appellant trespassed on this land and continued to remain in this land in spite of written warnings. Such being the factual finding of the trial court, it was not open to the appellant to lead evidence to show that the respondent allocated this land to him soon after their father’s death as the matter was *res judicata*. It cannot be taken up again. Therefore, the trial court ought not to have permitted the appellant to lead evidence on this matter to contradict what had already been finally decided by the High Court. The appellate court was therefore right in excluding such evidence. Once this was done, the inevitable conclusion was that the appellant could not succeed as (a) the land was not allocated to him by the respondent and (b) that he continued in occupation of the land when he ought to have known that he was a trespasser – cannot give him right to claim compensation and he cannot in law or in equity claim to be compensated for the improvements he carried out to this land. It may appear to him to be hard but he cannot legitimately blame the respondent for his own conduct.” (3) Appeal dismissed.

272. Petro v. Petro (PC) Civ. App. 212-M-70; 26/7/71; El-Kindy Ag. J.

The appellant is the step-brother of the respondent who was the elder and therefore the principal heir (MUSIKA) of their deceased father. The father had made two wills before he died. In the first will which he signed, he bequeathed his house (NYARUJU) to the appellant, but in the second will which was not signed, the NYARUJU was handed over to the MUSIKA. Immediately after the father’s death and after the reading of wills, the

appellant occupied the NYARUJU. The respondent then sued unsuccessfully in the primary court to recover the NYARUJU. On appeal he was successful. The first will could not be produced in court because it had been destroyed. The appellant led evidence of its contents. The respondent on the other hand alleged that the will had been destroyed by the

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testator himself after revoking it and replacing it by the second will. The issue was whether the first will had been revoked according to Haya Customary law.

Held: (1) “if a will is to be revoked its witnesses or the majority of them must be called and be informed of the revocation, but where this is not possible at least 10 witnesses have to be called to be present in order to make a valid revocation (paras.51 and 52 of Cory & Hartnoll; customary law of the Haya Tribe). Two of the defence witnesses (Sadik Igalula, non clan member and Luca Lwakilala) were not called to witness the revocation. And it is not clear whether Rwenyagila Rwemhinda, the clan head, Rutabano Rwenyagila Matunda Rwenyagila, Thoddo Rwenyagila and Deogratias Bilhamis were witnesses in the first will although they claim that they were present when the deceased caused the first will to be revoked. In the circumstances, therefore, the customary rule contained in paragraphs 51 and 52 of Cory & Hartnoll cannot be said to have been complied with in the light of the evidence on record. There was no indication why the witnesses to the first will were not called at the time of the alleged revocation of the first will if it was revoked at all.” (2) “In

addition to this there was a serious conflict of evidence as to which will was in fact read. If the first will was revoked as alleged this conflict should not have arisen at all. Taking into account all these matters, I am satisfied that the evidence did not establish that the first will was revoked. In the absence of such proof, the appellant cannot be prohibited from inheriting the NYARUJU.” (3) “As the appellant rightly pointed out, where a will is lost he is entitled under his customary law (see paragraph 53 of Cory & Hartnoll above unquoted) to lead evidence as to the contents of the will. In this case, the written will was not available as it was in the hands of the adverse party, and therefore the evidence he led was admissible in law as to the contents of the will.” (4) Appeal allowed.

273. Kabachwezi v. Abdallah and John (PC) Civ. App. 198-M-70; 20/7/71; Kisanga Ag. J.

The appellant sued both respondents to recover a piece of land and compensation in respect of trees cut down from the land. The first respondent admitted in evidence to have sold the property to the appellant and to the second respondent in turns.

Held: (1) The respondent Peter John admitted in evidence to have sold the property to the appellant and to the second respondent in turns. Paragraph 930 of Cory and Hartnoll on Customary Law of the Haya Tribe provides:- “A sale (of land) without witnesses is void, even should both parties agree that it has taken place.” The sale between the respondent Peter and the appellant which was recorded in Exhibit A-1 was not witnessed by anyone. On the other hand, the sale to the respondent Haruna was witnessed by two persons. The learned district magistrate, applying paragraph 930 quoted above, therefore, held that the sale to the appellant was void for

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Want of witnesses and that the sale to the respondent Haruna was valid because it was duly witnessed. He therefore awarded the land to Haruna and said that the appellant was at liberty to sue the respondent Peter for the money paid to him. I am unable to say that this decision was wrong and I would therefore uphold the decision of the district court and dismiss the appeal costs.

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274. Hassan v. R. Crim. App. 889-M-70; 28/4/71; Mnzavas Ag. J.

The appellant was convicted of robbery with violence c/s 286 of the Penal Code and sentenced to 3 years imprisonment and 32 strokes of corporal punishment. The evidence showed that on Hadija (a woman) was “married” according to Kuria custom to another woman, Gaudensia. In accordance with custom Hadija chose the appellant, a male, to perform the formers sexual duties. All three parties lived in the same house. The case for the prosecution was that the appellant made an unprovoked attack on the complainant with a club and a knife robbing him of his trousers shoes and Shs. 80/-. The appellant’s defence was that he found the complainant in an act of adultery with Gaudensia. The testimony of Gaudensia under cross examination by the appellant “tended to support the appellant’s story.”

Held: (1) “I have consulted a Kuria elder who says that a man chosen by a woman – husband as the only person to carnally satisfy the woman husband’ wife has, under Kuria customary law every right to be provoked if he finds another man having sexual intercourse with the wife. He indeed said that the chosen man can institute a civil case claiming compensation for adultery. This being the customary law of the Wakuria, the appellant must have been provoked when he saw the complainant committing adultery with Gaudensia. His assaulting the complainant was

therefore because of the provocative act of the complainant. His snatching of the complainant's trousers and shoes cannot in the circumstances of this case be said to be robbery with violence." (2) "Provocation no matter how strong cannot in law justify an assault although the nature of the provocative act can be a mitigating factor so far as sentences concerned The appellant should have been charged with assault causing actual bodily harm c/s 241 and not with robbery with violence. Section 181(2) of the criminal Procedure Code says; "Where a person is charged with an offence and facts are proved which reduce it to a minor offence, he may be convicted of the minor offence although he is not charged with it." Assault causing actual bodily harm c/s 241 of the Penal Code is certainly a minor offence compared to robbery with violence. c/s 286 of the Penal Code. The former carries a maximum penalty of 5 years imprisonment whereas the latter is a 14 years felony. The conviction for robbery is quashed and the sentence is accordingly set aside The appellant is convicted of assault causing bodily harm c/s 241 of the Penal Code and Sentenced to 6 months imprisonment."

275. Mazura v. R. Crim. App. 776-M-70; 11/5/71; El-Kindy, Ag. J.

The appellant was charged and convicted of stealing by servant c/ss 271 and 265 of the Penal Code. He was sentenced to 2 years imprisonment and 24 strokes corporal punishment and ordered to compensate his alleged employers Shs. 85/20, the subject matter of the charge. It was established that the appellant was employee of the Mwanza Town Council as a

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school teacher. At the same time he was acting a Regional and District Secretary of T. A. P. A. without any remuneration but was allowed, like other TAPA workers, to an allowance referred to as "posho" which he

could pay himself so long as TAPA had the money. On one occasion, the appellant paid himself as “posho” – after preparing the necessary documents – Shs. 85/20 which he received as Secretary of Tapa from the Manager of the Community Centre. The monies were the proceeds realised from a fund raising dance. The main issue then was whether or not the appellant could pay himself according to TAPA regulations which were not produced in court. As regard the sentence, the learned magistrate accepted that the amount involved was less than Shs. 100/- and that special circumstances existed in this case, but since appellant was not a first offender, he was precluded from the benefit of s. 5(2) of the Minimum Sentences act. Cap. 526

Held: (1) “It was not in dispute that appellant could have paid himself in accordance with TAPA regulation, and the appellant claimed that regulation 22 permitted him to do so, but because he could not produce the alleged regulation, the learned magistrate held this against him. As it was part of the prosecution case that the appellant was not entitled to the money, it was the prosecution’s duty to produce these alleged regulations in court to satisfy the trial court that the appellant could not pay himself. It was not for the appellant to prove this and, with due respect to the learned magistrate, he misdirected himself on the burden of proof in this respect.”

(2) “Section 5(5) of the Minimum Sentences Act Cap. 526 provide that a first offender is one who had [not] a previous conviction of (a) a scheduled offence or (b) any offence contained in chapters XXVI to XXXII inclusive Of the Penal Code. The appellant had one previous conviction for unlawful assembly c/s 75 of the Penal Code and one for abduction of a girl c/s 133 of the Penal Code. None of these convictions was a scheduled offence. The former fell under Chapter IX and latter under Chapter XV of the Penal Code. The two offences did not form part of the second limb of subsection 5 of section 5 of the Minimum Sentences Act In terms of the Minimum Sentences Act Cap. 526 he was a first offender and

therefore he was entitled to the benefit of s. 5 (2) of the Minimum Sentences Act.” (3) Appeal allowed.

276. R. v. Mwakahabala Crim. Rev. 61-D-71; 10/6/71; Mwakasendo, Ag. J.

The accused was charged with and convicted of reckless and negligent acts c/s 233 (c) of the Penal Code. The fact admitted was to the effect that the accused set fire to his own shamba in the neighborhood of Kwafungo Sisal Estate. Unfortunately the fire spread into the Sisal Estate causing damage estimated at Shs. 5,500/-. The issue was whether or not the facts disclosed the offence for which the accused was charged, the essence of which was endangering human life or creating the possibility of causing harm to a person.

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Held: (1) “It seems to me that on a proper construction of s. 233(c) of the Penal Code no person can be convicted of an offence thereunder unless his rash or negligent act or omission in dealing with the fire or any combustible matter which is in his possession or under his control endangers human life or is likely to cause harm to any other person. ‘Harm’ in this context is harm as is defined in s. 5 of the Penal Code, that is, ‘any bodily hurt, disease or disorder whether permanent or temporary’. In view of this unambiguous definition of ‘harm’ it is perfectly plain that s. 233 of the Penal code were never intended to apply to loss or injury to property.” (2) Conviction quashed, sentence and order of compensation set aside.

277. Basil v. R. Crim. App. 58-A-71; 18/6/71; Kwikima, Ag. J.

The appellant was charged with eight counts of forgery, uttering false documents, false accounting and stealing by public servant. Appellant was first brought to court on 2/7/70 but the trial did not commence until

15/10/70 and only after many adjournments for which no reasons were given except once when the prosecution said that the investigations were incomplete. When the trial did at last start, the prosecution sought leave to withdraw the case after calling no less than seven witnesses. The trial court did order a withdrawal under section 86 (a) of the Criminal Procedure Code and it is against this order that the appeal was lodged. It was argued on behalf of the appellant that since a court of law must act judicially such consent as was sought in this case ought to have been given with reasons. It was argued further that the court should not have allowed the withdrawal because the reason given was insufficient in law and in fact.

Held: (1) "The reason given by the prosecution for withdrawal may have been insufficient in law and in fact. The interests of justice may have not been served and the consent to withdraw may have been given in a manner prejudicial to the appellant, but there was nothing which the court could have done in the circumstances. The cure for any failure of justice lay with the prosecution itself and not the court, in view of the provisions of section 86 C.P.C. which states as follows: "In any trial before a subordinate court any public prosecutor may, with the consent of the court any public prosecutor may, with the consent of the court or on instructions of the D. P. P. at any time before judgment is pronounced, withdraw from the prosecution of any person" (2) The relevant section does neither call upon the court to give consent on being satisfied with the reason for the application nor does it call upon the prosecution to give any reason for the application at all. Although the discharge of the appellant would leave him with the possibility vest power in the court to remedy this apparent prejudice on the part of people like the appellant. (3) Appeal dismissed.

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278. Komanya v. R. Crim. App. 1-A-71; 18/6/71; Kwikima Ag. J.

The appellant was convicted of stealing by a person employed in the public service c/s 265 and 270 of the Penal Code the appellant was charged on one count of stealing Shs. 3,161/55 revenue collected by him, as Principal of Tango Farmer's Training Centre on various dates in April, May, June and July 1969. On being sent on a course to Dar es Salaam in August 1969 he handed over to his relief but there was no accounting between them. He subsequently issued a cheque for Shs. 3,093/55 dated 1/9/69. The appellant's defence was that as he was going to Dar es Salaam on duty not on transfer there was really no need for him to hand over, that there was no time limit within which he had to remit the money he had collected and that he had taken the money with him to Dar es Salaam for remittance.

Held: (1) "Advocate for the appellant relied heavily on the case of Aguthu v. R. [1962 E. A. 69 in support of his contention that there was a failure of justice and that the appellant was prejudiced in his defence on account being charged " of an aggregate of offences." In that case Mr. Justice Mac Duff held that (the charge) was not duplex because no prejudice or embarrassment was shown to have been occasioned on (sic) to the appellant. It should be emphasised that failure to split the charges into its component counts was not held to be fatal to the conviction." (2) "The learned magistrate never addressed himself to the proper test in cases involving circumstantial evidence. The test is that the circumstances adduced must be consistent with no other hypotheses except the guilt of the accused What circumstantial evidence there was did not stand inconsistent with the appellant's innocence. Nor was it "irresistible and incompatible with innocence as was stated in Charles Isaboke v. R. [1970] H. C. D. 197." (3) Conviction quashed.

279. R. v. Nyadundo Crim. Case 215-M-70; 10/2/71; Mnzavas Ag. J.

The accused was charged with murder. On 25/2/70 he found his wife (the deceased) committing adultery with one Dominico. He then gave her a

severe beating which resulted in her death. There was evidence that the accused knew before the 25/2/70 that the deceased had been having an amorous association with Dominico and that it is because of this prior knowledge that the accused on 25/2/70 suspected that the deceased was about to repeat her adulterous association with Dominico that she decided to follow the movements of the deceased and Dominico that morning.

Held: (1) "There can be no doubt that the accused was provoked by what he saw; but the question was whether the provocation was such as to reduce the charge of murder to that of manslaughter. [Referring to R. v. Sungura s/o Ngolilo (1946) 13 E. A. C. A. 110] The question of provocation depends upon the question as to whether the act was done in the heat of passion caused by sudden provocation (as defined in section 202 of the Penal Code) and before there was time for the passion to cool. The evidence in this case is that the accused, for a long time, knew that the deceased was

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Committing adultery with Dominico This being the position, his finding Dominico with the deceased on the material day cannot be said to be sudden provocation within the definition of section 202 of the Penal Code." (2) "The accused did not intend to kill his wife because (a) he could have used the panga he had with him but instead he used small sticks; (b) the doctor was of the opinion that only moderate force was used in beating the deceased; (c) the small sticks used are not weapons one would normally associate with an intention to kill or cause grievous harm (see R. v. KIBLA ARAP SEREM (1940) E. A. C. A. 73 and YOWERI DAMULIRA v. R. (1956) 23 E. A. C. A. 501) where it was said that "where death is caused by the use of a non-lethal weapon the inference of malice aforethought is much less readily drawn than where a lethal weapon is

used.” (3) Accused not guilty of murder but guilty of manslaughter; 9 years imprisonment. Editorial Note; But see [1971] H. C. D. 280

280. Nyadundo v. R. (E. A. C. A.) Crim. App. 51-D-71; 5/71 Lutta J. A.

The appellant was convicted of manslaughter and sentenced to 9 years imprisonment. The appellant was the husband of the deceased and had been aware for sometime of the deceased's adultery with one Dominico s/o Rubenge. On 25th February, 1970 the appellant found the deceased and Dominico in an act of adultery. He inflicted a severe beating on the deceased which caused her death the same day. The trial judge held that appellant's prior knowledge of the deceased's adultery disabled him from pleading provocation.

Held: (1) “We think that whether the defence of provocation is available to a husband or not is a matter of fact in a particular case. if the killing was done when the husband found his wife with her paramour in the act of adultery, the husband would not be precluded from setting up provocation as a defence, notwithstanding his prior knowledge of adultery between them.” (Yokoyadi Lakora v. R. (1960) E. A. 323 approved).

281. Desai v. R. Crim. App. 48-D-71; 19/3/71; Saidi J.

The appellant was charged with (1) Conveying property suspected to have been stolen or unlawfully obtained c/s 312 of the Penal Code and (2) Corruption c/s 3(2) of the Prevention of Corruption Ordinance. In answer to the charges the appellant said “I bought the 10 packets from the sop.” And “It is true I corruptly gave Shs. 40/- to A. 5059 Sgt. Samson as alleged.” This was entered as a plea of not guilty to the 1st count and guilty to the 2nd count. The prosecutor then withdrew the first count with leave of the court and the appellant is then recorded as saying “I still plead guilty to the second count.” Outlining the facts the prosecutor stated that the appellant had been arrested at about 1 o'clock in the morning driving his car from the Port Area and was found to have 10 pkts. Of Benson &

Hedges in the car. On the way to the Police Station he corruptly gave the Sgt. who arrested him Shs. 40/- in Tanzania Currency not to prosecute him. The appellant is

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recorded as saying "the facts are correct are correct." The appellant was sentenced to 2 years and 24 strokes under the Minimum Sentences Act.

Held: "It does not appear to me that the appellant could have been misled by the particulars of the charges when they were read over to him. He is an educated person working as a clerk in Dar es Salaam city. The particulars themselves are written in simple language. The facts were clearly stated as to the plea, he stated twice before the court that he pleaded guilty. I am satisfied that his conviction is proper." (2) "For the appellant to avail himself of the privileges provided by subsection (2) of section 5 of the Minimum Sentences Act, he must be a first offender, the amount of the bribe must be less than 100/- and he must show special circumstances. So far no special circumstances have been shown in his favour." (3) Sentence affirmed; Appeal dismissed.

282. Kingo v. R. Crim. Rev. 31-D-71; -/5/71; Mwakasendo, Ag. J.

The accused was charged with and convicted of reckless and negligent acts c/s 233 (c) of the Penal Code. He was discharged absolutely under s. 38 (1) of the same code. The case was sent down for hearing on revision so that the accused could be given an opportunity to state reasons why he should not be required to pay compensation to the persons who sustained loss as a result of the fire caused by him. The facts as established were to the effect that the accused was one of several tenants occupying rooms in house No. 44 Tunduru Street, Dar es Salaam. On the material day, as the accused was preparing lunch over a burning Kerosene Stove, he opened a tin containing petrol and in the course of transferring the petrol into a

bottle, the petrol caught fire which destroyed the entire building. Nobody was hurt by the fire but the accused's fellow tenants lost property worth Shs. 5, 745/-. The learned State Attorney argued that compensation should not be ordered relying on a decision by Bramble J. in Jacob v. R. (1970) H. C. D. 249. In this case cattle, which the appellant was grazing, strayed and damaged some maize plants. The learned judge held, inter alia, that damage to property was not harm within the meaning of s. 233 (c) of the Penal Code. The accused advances several reasons why the court should not make any compensation order. He stated that this unfortunate incident was a great shock to him and to his family; that he had a large family wholly dependent on him and that he had no other source of income apart from his salary.

Held: (1) "The present case is quite different. (Distinguishing Jacob v. R. (1970) H. C. D. 249). Here there is no doubt as to the accused's guilt nor in my view is there any doubt as to his conduct in this incident being likely to endanger life or to be likely to cause harm to any other person in terms of the operative paragraph of section 233 of the Penal Code. The fact that nobody was hurt in the process is completely

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irrelevant for this purpose, so long as the probability of endangering the life of other tenants was all the time present. My view is therefore that this court can require the accused, John R. Kingo, to compensate the persons who incurred loss as a result of the fire caused by him." (2) "I have seriously considered these representations(i. e. by the accused that compensation should not be ordered) but I am not satisfied in my own mind that these are reasons which would in themselves dissuade the court from making an order for compensation under section 176 of the Criminal Procedure Code if the court were so minded to do. The reasons required for this purpose must be reasons directly relating to the commission of the

offence by the accused. In other words, the reasons advances should go to mitigate the seriousness of the offence itself.” (3) Compensation to be paid to those who suffered considerable loss in consequence of the fire caused by him (i. e. the accused).

283. Exady and Obedi v. R. Crim. App. 93-A-71; 19/6/71; Kwikima Ag. J.

The appellants were convicted of breaking into a club and stealing therein cash Shs. 300/- and 8 cases of beer. They appealed challenging the identification of the beer bottles alleged to have been stolen, the application of the doctrine of recent possession and the search which was alleged to be irregular. The second appellant also argued that he was an employee of the 1st appellant in whose bar the bottles of beer were found and therefore he could not have been in possession of those bottles which were included in the stock of the shop.

Held: (1)”The Police Inspector who investigated this case told the court that he seized nine beer bottles from the first appellant’s bar. They were all stamped with the complainant club’s official mark “W. K. c. C.” on their labels an employee of the Tanzania Breweries gave evidence that the type of beer i.e. Tusker, Pilsner, Stout and Alsopps found at the first appellant’s bar are never given any mark except labels indicating that the bottle contains Tusker, Pilsner etc. with all this evidence I fail to see how the learned Resident Magistrate who heard this case could have been left in any doubt as to the identity of the nine bottles of beer.” (2) “It seems to me that there is only one condition for a search to be regular and it is this; that the police officer conducting the search must have a warrant duly and properly issued. Although it is in the interests of those searching to call independent witnesses, there is no legal provision calling for such procedure. Any talk about regular search is neutralized by the fact that evidence obtained during any police search legal or illegal is admissible provided it is relevant to the case”. (3) [Citing Hassan Mohamed v. R. (1958) 15 E. A. C. A. 121] “In the current case the 1st

appellant is a publican dealing in beer. The quantity found with the appellants was only nine bottles out of the 200 bottles stolen. Beer bottles are common articles

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Which easily and frequently change hands. In the seven days following the breaking the beer bottles could have been easily exchanged by even ten people. For these reasons it would appear that the appellants were mere receivers if at all.” (4) (As regards the second appellant) “Possession has been defined by two leading jurists as: “Physical detention coupled with the intention to hold the thing detained as one’s own (Maine).” “The continuing exercises of a claim to the exclusive use of a material object (Salmond)”. The most important element of possession is the animus possidendi, which is the intention to appropriate to oneself the exclusive use of the thing possessed. In this case, the animus possidendi was within the mind of the 1st appellant who would have exclusively appropriated the beer as part of the stock in his bar in the absence of proof that the 2nd appellant was responsible for the procurement of the stolen bottles, or their presence in the bar, it is unsafe to hold the second appellant culpable.” (5) Conviction of 2nd appellant quashed. (6) 1st appellant guilty of receiving and not breaking and stealing.

284. Tambwe v. R. Crim. App. 853-M-70; 7/6/71; El-Kindy Ag. J.

Appellant was charged with and convicted of obtaining money by false pretences c/s 302 of the Penal Code. The appellant falsely represented himself to be an employee of a Government department and thereby received Shs. 15/= per day for 5 days as allowances for having been a witness in a criminal case. But for the representation, he would have been entitled to Shs. 5/= per day. Appellant denied that he told the paying

authorities that he was an employee of a Government department but that he simply said that he was once employed by the Government.

Held: (1) "The appellant, who was once an employee of a Cooperative Division of a Government Department, ought to have realised that he was being paid at a rate of an employee of a Government department, and therefore if he was honest person he should have asked the Chief Clerk why he was being paid at that rate This left no doubt that the appellant deliberately and with intent to defraud obtained money by means of a false pretence." (2) "As for the sentence, the appellant said that the trial magistrate failed to consider the fact that he had many dependants and the hardship which befell his dependents as a result of the conviction and sentences [The] appellant should not have committed this offence if he had the interest of his dependants at heart. The appellant cannot reasonably blame the courts of law for the consequences which follow from his own criminal acts. He has himself to blame for the hardships to his dependants." (3) Sentence of 9 months imprisonment not excessive. (4) Appeal dismissed.

285. Ngowi v. R. (PC) Crim. App. 220-A-71; 22/6/71; Kwikima Ag. J.

The appellant was convicted of malicious damage to property by uprooting trees. There was no finding that the land

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from which the trees were uprooted was undisputable the complainant's.

Held: (1) [Referring to Saidi Juma v. R. [1968] H. C. D. 158] "There was considerable doubt as to who was entitled to occupy the disputed land. As such the appellant could not have been held to act without colour of right when he uprooted trees planted by the complainant on the disputed land. If the appellant held a belief that he had a claim to the land

he was entitled to remove any object planted there by the complainant.”
(2) Conviction quashed.

286. Michael v. R. Crim. App. 58-M-71; 12/6/71; El-Kindy Ag. J.

The appellant was charged with and convicted of uttering counterfeit coin c/s 360 of the Penal Code. The appellant purchased a number of articles in a shop and tendered a counterfeit 100/= note in payment.

Held: (1) “The only issue is whether the evidence in fact disclosed the offence of uttering counterfeit coin. The relevant section is 360 of the Penal code which reads: “360. Any person, who utters any counterfeit coin, knowing it to be counterfeit, is guilty of a misdemeanour.” (After quoting the definition of coin in Section 353 of the Penal Code). “In neither of these descriptions, is it stated of what substance the said “coin” should be made of. It assumes that the substance of coin is not a subject of dispute. However, a similar problem arose in the case of R. v. Nesto Kilabi (1969) H. C. D. No. 306 where Platt J., as he then was, held that counterfeit note is not included in counterfeit coin. I agree with the views of the learned judge in that case. It seems to me that it is not in accordance with reason and sense to take a currency note for a coin unless a statute specifically or by necessary implication includes such reference.” (2) “If the appellant had committed an offence at all, it is an offence c/s 6(1) of the Currency Notes Ordinance Cap. 175 which reads as follows: “6(1) If any person with intent to defraud, forges or alters any currency note or knowing any note purporting to be a currency note to be forged or altered, utters the same, he shall be liable to imprisonment for any period not exceeding ten years.” “The issue is whether this Court, on appeal, can substitute a conviction under section 6(1) of the Currency Notes Ordinance, Cap. 175. Section 181(2) of the Criminal Procedure Code, Cap. 20 provide that where a person is charged with an offence and facts are proved which educe it to a minor offence he may be convicted of a minor offence although he was not charged with it. However, in this case, the appellant

was charged with a minor offence (i. e. a misdemeanour whose maximum sentence, if not provided for, is two years as provided for in section 35 of Penal Code Cap. 16), but the facts proved show that the Offence committed carried the maximum term of imprisonment of ten

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Years, and therefore the offence proved was of a more serious nature than that of uttering counterfeit coins. It is, therefore, not open to this court to substitute the greater offence for the minor offence as it is generally offensive in principle to do so. In the result, the conviction on count I cannot be upheld.”

287. Mwendesha v. R. Crim. App. 144-M-71; 7/6/71; El-Kindy Ag. J.

The appellant was convicted of rape. There was evidence of the complainant that the appellant found her walking held her and dragged her towards bush where he overcame her resistance, laid her down and managed to insert his organ into hers. But her continuous noise managed to draw the attention of a witness (Yusuf) who approached the scene but appellant then run away. The appellant challenged his conviction on the ground that there was no medical evidence showing that there had been sexual intercourse through the use of force.

Held: (1) “As I have indicted, the medical evidence was not of much use, but this is not to say that therefore the complainant’s and Yusuf’s evidence should not be accepted bearing in mind that the complainant did not attend medical examination until the 14th of November, 1970. (The rape took place on 24th October 1970). Once the evidence of the complainant was accepted and this evidence is materially corroborated on by that of Yusuf, the conclusion of rape is inevitable in the circumstances of this case. If the appellant had not been the offender, he would not have

been seen running away from the scene of the incident.” (2) Appeal dismissed.

288. Nyakisia v. R. E. A. C. A. Crim. App. 35-D-71; -/5/71; Duffus P., Spry v. P. & Lutta J. A.

The appellant was convicted of murder and sentenced to death. The prosecution case depended on the evidence of two witnesses; that of Warioba Matutu, a brother of the accused who was an eye-witness to the whole incident. There were apparent inconsistencies in the evidence of the witnesses before the trial court and the statements they had previously made to the police particularly on the identity of the witnesses. The question then was whether the learned judge had correctly directed himself and the assessors on the effect of the inconsistency between the first prosecution witness (Warioba Matutu) and his statement to the police. There was also evidence which contradicted certain portions of the evidence by the main prosecution witnesses and also supported portions of the evidence of the appellant.

Held: (1) “Each case must be considered on its own particular circumstances. There are cases where the inconsistency is so minor that a clearly it will be of little effect and certainly does not necessarily mean that the witness is lying or that his testimony cannot be relied

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on. The judge and the assessors must take all the evidence and all the circumstances of the case into account in deciding whether to accept a witness’s evidence or any part of his testimony..... Clearly there were discrepancies butt he learned judge directed both the assessors and himself fully in this matter and..... were satisfied that the witness had been truthful in his evidence and had correctly identified the appellant as

the person who had struck the deceased the blow on the head which caused his death” (2) Appeal dismissed.

289. R. v. Mwebeya Crim. Rev. 30-M-71, 22/6/71; Ag. J.

The appellant was convicted of defilement of a girl under 12 years of age c/s (1) of the Penal Code. He was sentenced to 18 months imprisonment and the record was remitted to the High Court for confirmation of sentence. No evidence of the age of the complainant was adduced although in his judgment the Magistrate referred to “the chief witness P. W. 3 as a child of 8 years.” The complainant is recorded as replying “No” when asked if she knew the difference between telling the truth and telling a lie. The Magistrate further recorded that “The witness is not intelligent enough to speak the truth. She is not sworn.”

Held: (1) “Although the learned Magistrate did not say so expressly, it would seem that he did find that the complainant was aged 8 years. That finding was based on his observation after seeing the child who was before him in court and I think that this was sufficient notwithstanding that no witness testified as to the age of that child.” (2) “On reading (Section 127 (2) of the Evidence Act) it would seem that the evidence of a child of tender years can be received in the following circumstances only;- (a) If the child understands the nature of an oath, then its evidence should be received on oath or affirmation. (b) If the child does not understand the nature of an oath, then its evidence should be received not on oath or affirmation, provided that the child is possessed of sufficient intelligence to justify the reception of its evidence and it understands the duty of speaking the truth. I think that on a true construction of this subsection where a child does not satisfy either of the two conditions, and then its evidence should not be received at all. In the present case the complainant child (P. W. 3) is not shown to know the nature of an oath and the trial magistrate expressly stated that the child was not intelligent

enough to speak the truth. In these circumstances I am of the view that there could be no basis for receiving the evidence of such a child.”

290. R. v. Kadudu Crim. Rev. 55-M-71; 24/6/71; El-Kindy, Ag. J.

The accused was convicted on his own plea of guilty of abduction of a girl under the age of 16 years c/s 134 of the Penal Code and sentenced to a fine of Shs. 400/- or six months imprisonment in default. He was also ordered to

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pay Shs. 100/- to the parents of the girl as compensation. The only issue on revision was whether or not the alternative sentence of 6 months imprisonment and the compensation order was legal. In sentencing the accused the magistrate remarked that people liked the accused that interfered with the course of education of young girls’ deserved a severe punishment.

Held: (1) “I have no quarrel with that remark as obviously it is time that such practices ought to be eliminated if this nation’s female population is to gain useful knowledge in schools. The sentencing of a fine was quite reasonable although the accused could not pay it. However, the alternative sentence of 6 months imprisonment was illegal as it was contrary to the provisions of s. 29 of the Penal Code.” (2) “As for the order of compensation, I find there is no provision for compensation in the Criminal Procedure Code for compensation of this nature. S. 176 (1) of the Criminal Procedure Code, Cap. 20 stated that compensation is payable where the evidence disclosed that somebody has “suffered material loss or personal injury.” In this case, it cannot be said that the parents suffered

any material loss and it is doubtful whether it can be said that they suffered any personal injury.” (3) “Term of imprisonment is reduced to 4 months and the order for compensation is sent aside.”

291. R. v. Karenzo and Ndabusuye Crim. Rev. 51-M-71; 24/6/71; El-Kindy Ag. J.

The accuseds were charged with unlawful entry into Tanzania “c/s 15(1) and 26 of Immigration Subsidiary Cap. 534 of the Laws.” The particulars of the charge read as follows: “The person charged on the 18th day of February, 1971 at about 12.15 hrs. At Nyansha Village in the District of Kasulu, Kigoma Region, they did enter into Tanzania Republic from Burundi Republic and on their arrival into Tanzania Republic failed to present themselves to an Immigration Office.” They were convicted and fined Shs. 400/- or 5 months imprisonment each. They were unable to pay the fine. The case went on revision.

Held: (1) “ there is confusion in this case. two matters have been confused, that is to say the issue of unlawful entry contrary to section 10(1) (a) of the Immigration Act, 1963, Cap. 534 and the issue of failing to comply with the Immigration formalities as provided for in Rule 15(1) of the Immigration Regulations 1964” (2) [Relying on the particulars of the charge] “In my view, the charge left me in no reasonable doubt that the two accused were not charged for unlawful entry into Tanzania but for failing to comply with immigration formalities after entering Tanzania. In my view, the section of the law quoted in the charge sheet was accurately stated although the name of the offence was wrongly entered. This in my view did not occasion any failure of justice, as both appellants knew what they were facing as it can be seen clearly from their admissions in court. The

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Error was not of a serious nature.” (2) “I am satisfied that the imposition of a sentence of imprisonment of 5 months in default of payment of a fine of Shs. 400/= was illegal as the maximum imprisonment which would be imposed is only four (4) months “[referring to s. 29 of the Penal Code, Cap. 16]. “The learned magistrate did not appear to have taken into account the fact that the two accused came into this Republic to visit a sick relative, and the fact that their village and that of Tanzania were simply divided by historically accident And in any case, the fact that the accused were arrested on the same day of their entry is a factor which ought to be taken account, and in their favour.” (3) Sentence reduced so as to result in immediate release of accused.

292. John v. R. Crim. App. 299/300- A-71; Kwikima Ag. J.

The appellant and another accused were charged on two count of causing grievous harm c/s 225 of the Penal Code and assault causing actual bodily harm c/s 241 of the Penal Code. the medical report chartered the wounds as “harm” but the evidence showed that the wounds were inflicted with a panga and that one of the victims sustained four cut wounds on the head, one of them 2” long, ½” wide and ¾” deep.

Held: (1) “It was incumbent upon the trial magistrate to make a finding as to whether the injury received by the complainant was grievous harm or not. It is for the court and not the doctor, to determine whether the injury amounts to grievous harm or not as Abernethy J. held in Regina v. Ali Fakihi 2 T L R(R) 44. In that case the accused was convicted of doing grievous harm on the strength of the Medical report describing the injury of the complainant as grievous harm. On revision it was held that: “It is not for the Medical Officer to decide whether an injury is grievous harm or not it is the duty of the Court on the evidence before it to decide whether an injury amounts to grievous harm as defined in the Penal Code or not.” (2) Appeal allowed.

[Editor's note: It is not entirely clear from the judgment whether the two counts were in the alternative or not and on which of the two counts the appellant was convicted.)

293. R. v. Magara Crim. Sass 98-A-70; 13/7/71; Kwikima Ag. J.

The accused was charged with murder c/s 196 of the Penal Code. the accused in his extra judicial statement stated that while at the house of their host, he bought pombe known as "moshi". On the next day he bought some more and while they were drinking the accused seduced the deceased. The deceased agreed to his request and they left for a shamba to have sexual to this request and they left for a shamba to have sexual intercourse. In the course of having sexual intercourse, the accused held the

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deceased by the neck and after the act the deceased was not able to rise again. On realizing that she was dead, the accused dragged the deceased to a nearby bush, took away her vest, head scarf Shs. 8/50 which was in her wallet and tobacco wrapped in a piece of paper. Medical evidence did not establish with any precision whether or not the force applied on the deceased was great or not. The main issue was whether or not the accused had killed the deceased with malice aforethought. The learned State Attorney argued first, that the act of sexual intercourse was unlawful in the case and second, that the accused had concealed his crime and this was an indication of malice on his part.

Held: (1) "The accused furnished the only explanation as to how the deceased met her death. Having accepted his statement which cannot be said to be in anyway exculpatory, I cannot hold him to have intended the death of his lower especially when the prosecution fail to show motive or use of excessive force as they have failed to show in this case.' (2)

“..... It is not a criminal offence to sleep with a woman other than one’s wife. While conceding the learned State Attorney that adultery is a matrimonial offence and for this reason an unlawful act, I cannot go so far as to say that this would be enough reason for a court of law of infer malice aforethought in such circumstances. [Citing SHARMPAL SINGH v. R. (1962) E. A. 13]. (3) Accused found guilty of manslaughter.

294. Mchome & Anor. Crim. Apps. 135/6-A-71; 2/7/71; Bramble J.

The appellants were convicted of unlawful possession of Moshi c/s 30 of act No. 62 of 1966. The only evidence as to the nature of the alleged Moshi was to the effect that the complainant stated that “the tin contained moshi because of the smell and I am experienced in such cases”. Yet another witness testified that “the tin contained moshi because of the smell”. The crucial issue then was whether or not the prosecution witnesses had the necessary qualification or experience in the detection of moshi.

Held: (1) “There was no proof beyond a reasonable doubt that the liquid in this case was moshi.” (2) “I can do no better than refer to the judgment of Seaton, J. in R. v. Damiano Paulo (1970) H. C. d. p. 40 where it was held: This court has frequently pointed out the necessity of establishing the qualifications or experience of witnesses who testify regarding the nature of substance or liquids alleged to be prohibited in the absence of any indication the present case that the police officers were qualified or experienced, then mere description of the pombe as moshi because of its smell, is insufficient to establish the guilt of the appellant beyond reasonable doubt. The experienced, then mere description of the pombe as moshi because of its smell, insufficient to establish the guilt of the appellant beyond reasonable doubt. The experience of a witness must be a finding of fact by the court from evidence adduced. The bald statement of a witness that he is qualified or experienced is not sufficient.” (3) Appeal allowed.

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295. Director of Public Prosecutions v. Phillipou Crim. App. 118-M-71; 29/6/71; El-Kindy Ag. J.

The respondent was charged with assault causing actual bodily harm c/s 241 of the Penal Code. The charge was dismissed and the respondent acquitted under section 198 of the Criminal Procedure Code. The D. P. P. appealed against the order of the trial court. The record of proceedings before the Magistrate read as follows; Pros: Complainant was around here but has now disappeared. I wonder if the provision lay down in section 198 C. P. C. could apply. Order: It appears that complainant who is the important witness in this case is not interested in this case and that is why he has absented himself from Court. Therefore under section 198 C. P. C. the charge is dismissed and accused is acquitted.

Held: (After quoting the provisions of section 198 C. P. C.) (1) “..... one Karim, who was referred to in this case as the “complainant”, in a Sworn affidavit, said that he was neither Served with a Summons to give evidence on the date fixed for hearing nor was he in the vicinity of the Court as alleged by the public prosecutor. This evidence is not challenged. I accept it even if it was accepted as it seemed to have been accepted by the appellant that the witness-victim Karim, was the complainant, although I do not accept this interpretation, the order was misconceived in that, inter alia; the magistrate did not satisfy himself that Karim was served with a Summons or not or by any other reasonable means.” (2) “In my view the provisions of section 198 of the Criminal Procedure Code apply to complainants. For the sake of convention the victim of crime has often been referred to as the complainant in practice and this position was commented on in the case of R. v. Ranilal Pandit, Arusha Registry Cr. App. No. 71 of 1968 (unreported); but in fact the

complainant is the Republic which, as it were, complains to the Court of Law when it files charges or, where it is the case of private prosecution brought under section 87 of the Criminal Procedure Code Cap. 20, the person who complained and who is permitted to prosecute his case. therefore, strictly speaking, the complainant as represented by the Public Prosecutor was present and in attendance on the date fixed for hearing and the person who was alleged as absent was the alleged victim who was a mere witness in the case.” (3) Order of district Court set aside and a direction made that case be returned to the said Court for proceedings to continue according to Law.

296. Mapunda v. R. E. A. C. A. Crim. App. 40-D-71; 4/6/71; Duffus P.

The appellant was convicted of stealing a pair of elephant tusks, the property of the Government of Tanzania. On appeal to the High Court of Tanzania a conviction of stealing c/s 265 of the Penal Code was substituted for the

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conviction of stealing as a public Servant. He then appealed to the Court of Appeal for East Africa. The facts were that dead elephant was found, partly decomposed, by a villager on 15th June, 1969. The tusks were removed and kept by the villagers who made a report to the authorities the next day. The appellant heard of the discovery and on 17th June, 1969 obtained a game licence to hunt and kill an elephant. The same day he demanded and obtained the pair of tusks from the villagers. On the 19th or 20th June he took the tusks to the Revenue office at Singida to have them registered. The tusks were seized and he was charged.

Held: (1) “Section 47 of the Fauna Conservation Ordinance provides that any game animal or trophy of such an animal killed without a licence or any game animal found dead and the trophy of such an animal is

a government trophy and as such the property of the Government. A game animal, of course, includes an elephant and the definition of trophy includes any animal alive or dead, and also the tusks, inter alia, of such an animal. The elephant tusks in this case were therefore the property of the Government.” (2) “It is really immaterial whether or not the appellant had found the elephant with the tusks in the bush or whether he obtained these tusks from the villagers by a trick or otherwise. The theft charged is not a theft from the villagers; the undoubted fact is that the appellant did take these tusks and took them into his possession intending to keep them. The question of claim of right was raised and argued before the Chief Justice and in our view rightly rejected. The fact that the appellant rushed to get a game licence to kill an elephant and his very defence that he had shot this elephant after he got his licence clearly show that the appellant knew full well that he had no right to those elephant tusks that he had a guilty intention to steal when he seized them.” (3) “The difficulty that arises here is caused by his taking the tusks to the Revenue office for registration and to obtain his certificate of ownership, but this in our view really amounts to further evidence that he did intend permanently to deprive the owners, here the Government, of the tusks.” (4) “The offence of stealing is the deprivation of possession not of ownership – the theft is committed when he wrongly removes the goods with the necessary intent, that is, in this case, permanently to deprive the owners of it.” (5) Appeal dismissed.

297. Desai v. R. E. A. C. A. Crim. App. 55-71; 3/6/71; Duffus P. Spry v. P. and Lutta J. A.

The appellant was convicted by the Resident Magistrate Dar es Salaam, on his own plea of guilty, of corruption c/s 3(2) of the Prevention of Corruption Ordinance. In answer to the charge the appellant is recorded as saying “It is true I corruptly gave 40/- to A. 5059 Sgt. Samson as alleged.” The facts as alleged by the prosecution were then recited and

the appellant is recorded as having said "The facts are correct". The appellant was sentenced to two years imprisonment and twenty-four strokes, the

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Magistrate holding that the Minimum Sentences Act (Cap. 526) applied and that there were no special circumstances within the meaning of Section 5(2) (c) of that Act. The appellant appealed unsuccessfully to the High Court. He thereafter appealed to the Court of Appeal for East Africa thereafter appealed that the plea as entered was not unequivocal and that the minimum sentence should not have been imposed.

Held: [Per Spry v. P] "It was submitted in the High Court that the appellant speaks little English and that he answered to the charge in Kiswahili, a language with which the learned trial Magistrate was not conversant. We are of the opinion that whenever interpretation is required in any court proceedings the fact should be recorded and the name of the interpreter and the languages used should be shown." (2) "Mr. Lakha drew attention to use of the word "corruptly" which is a term of art and the words "as alleged" which are not commonly used in Colloquial speech. He submitted that in recording the plea, the magistrate must have expressed in his own words what he thought the appellant was intending to say. We think it is equally possible that the plea as recorded represents an affirmative answer to a question "Is it true.....?" (3) In Hando s/o Akunaay v. R. (1951) 18 E. A. C. A. 307 this Court said "As has been said before by this Court, before convicting on any such plea, it is highly desirable not only that every constituent of the charge should be explained to the accused, but that he should be explained to the accused, but that he should be required to admit or deny every such constituent." Mr. Lakha submitted that in the present case, one major Constituent as well as some of the minor ones, had not expressly been admitted: that was, the purpose

of the alleged bribe. We think there is some substance in both submissions, but we think the irregularities were curable and were in fact cured by the statement of facts accepted by the appellant and we are satisfied that no miscarriage of justice resulted.” (4) “On consideration (of Section 8(6) of the Appellate jurisdiction ordinance) we think that while it is not open to us to consider, on second appeal, whether a sentence is unduly severe or unduly lenient, it must be open to us to consider whether a sentence to be passed, has misdirected itself in law and, if we uphold such a submission and consider that the sentence passed resulted directly from the misdirection, to interfere with that Sentence, so as to substitute for it a sentence which the trial court would have imposed had it directed itself correctly. For example, if a trial Court, wrongly thinking that some offence was subject to the Minimum Sentences Act, passed a sentence which would have been Correct had that Act applied but which, though not illegal, was manifestly in appropriate when the Act did not apply, we think we have jurisdiction to correct the matter.” (5) “We respectfully agree with those decisions of the High Court in which it has been held that the triviality of the

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Amount involved may constitute ‘special circumstances’” (6) “As a general proposition we agree (that previous good character may constitute ‘special circumstances’) although we think something more must be shown than that the accused is a first offender, a qualifying factor under paragraph (a). Certainly, long and honorable service to the Community might be a relevant factor.” (7) “We think that in every case where an accused is unrepresented and where the Minimum Sentences Act applies and the qualifying requirements of paragraphs (a) and (b) of Section 5(2) are satisfied, the Court should explain subsections (2) (c) and (4) to the accused and ask him if he claims that any special circumstances exist.”

(8) Appeal against convictions dismissed but sentence of 2 years imprisonment and 24 strokes set aside and substituted by a sentence of nine (9) months imprisonment.

298. Shabani v. R. E. A. C. A. Crim. App. 21-D-71; 19/5/71; Duffus P, Saidi C. J. and Lutta J. A.

The appellant was convicted of murder and sentenced to death. At the trial the evidence was given by one Nuru Hamisi an accessory after the fact who had also been arrested for the murder.

Held: [Per Duffus P.] (1) "The learned trial judge was undoubtedly confused as to the evidence of Nuru Hamisi. He duly warned himself as to the danger of accepting his evidence, but he appeared to have been in some doubt as to whether he was an accomplice, thus he said – "I have already observed that Nuru would be an accomplice if his evidence was not corroborated both by his mother and by the statement which the accused made before the Justice of the Peace." This is clearly wrong. In this case the judge should first decide on what was Nuru's position; was he an accomplice? In this case he clearly was, he came up to the scene when the murder was actually being committed or had just been committed, and then helped the murderer to hide the body in the river. He was at least an accessory after the crime and accordingly an accomplice. (See judgment of this Court in *Kamau v. R.* (1965) E. A. 501 at 504 C. A.)." (2) "The judge's next step should be to decide whether he accepted Nuru's evidence, and then, and then only should he look for corroboration. (See *Uganda v. Shah* (1966) E. A. 30 C. A.)." (3) "In this evidence the appellant while admitting he did make the confession as recorded by the district magistrate, now states that he did so because district magistrate, now states that he did so because he was tortured by the police, and he retracts the statement and now denies the offence. The learned judge did not direct himself as to the weight to be placed on such a confession along

the lines set out in a number of cases. (See *Tuwamoi v. Uganda* (19670 E. A. 84 C.A.).”

299. Gabriel v. R. E. A. C. A. Crim. App. 4-D-71; 19/5/71; Duffus P. Saidi C. J. and Lutta J. A.

The appellant was convicted of the murder of his wife and sentenced to death. He found his wife getting out of the house of the man with whom she was having an affair and

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stabbed her to death. The trial judge found that there was no provocation or insanity because the accused had ‘waited for some time perhaps hours, for the deceased To come out, so that he may attack them,” and that he did not create any terrific scene such as would have displayed insanity. The grounds of appeal were that the judge had misdirected himself on the issues of provocation and insanity.

Held: (1) [referring to *Tadeo Oyee s/o Duru v. R.* [1954] E. A. 407 C. A. and *Nyige s/o Suratu v. R.* [1959] E. A. 974 C. A.]. “On the evidence we are satisfied that the defence of temporary insanity was not open to the appellant. We see nothing in this case which brings it within the application of the principles in the authorities cited to us by Mr. Lakha.” (2) “The question is whether the appellant’s act was that of a man deprived of his self-control by the sudden knowledge of the deceased’s adultery, so as to negative the intention to kill or to do grievous bodily harm. On the day in question the appellant went to district court and reported that the deceased had run away. He knew then that she had run away with Victor Mbwanda He left the district court at 2.00 p. m. to go to his home. He did not find the deceased there. Although there is no evidence as to what time he arrived at Victor Mbwanda’s house, it is not disputed that he

stabbed the deceased at 1.00 a. m. He admitted that he did not normally walk about with a knife. In our view there is an irresistible inference that the appellant went to Victor Mbwanda's house with an intention to kill or inflict grievous bodily harm to the deceased and the defence of provocation by sudden knowledge of the deceased's adultery is not open to him. (3) Appeal dismissed.

300. Haining and Three Others v. R. E. A. C. A. Crim. App. 5-D-71; 5/7/71; Lutta J. A.

The applicants had been convicted on their own pleas of guilt and sentenced to varying terms of imprisonment on 30th March 1971. They applied for leave to an appeal against sentence which was granted because the Republic had no objection. When the appeal came up for hearing it was struck out as incompetent as leave to appeal had not been granted by the Court of Appeal. The applicants then formally applied for leave to appeal against sentences and for leave to appeal out of time – arguing that the delay had been occasioned by the belief of the advocates who appeared at the trial that leave of the High Court was sufficient and that this should not prejudice the applicants' case. The Republic on the other hand referred to s. 17 of the Appellate Jurisdiction Ordinance 1961 (cap. 451) and submitted that the applicants should have applied for leave to appeal it, they should then apply for leave to appeal against sentence.

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Held: (1) "Section 8 of the Appellate Jurisdiction Ordinance 1961 deals with appeals in criminal cases. The power to grant leave to appeal against sentence is clearly conferred on the Court of Appeal alone under subsection 1(b) (iii) of this section. Section 17 does not confer on the High Court such power" (2) Under section 10 of the Appellate Jurisdiction Ordinance 1961, the Court of Appeal Rules are made

applicable in Tanzania and under rule 9 of the Eastern African Court of Appeal Rules 1954 the Court has power for “sufficient reason” to extend time for making any application. Under rule 29(2) leave to appeal in respect of a case where the sentence of death has not been passed must be made formally as provided under rule 19 and “shall be so made as nearly as practicable at the time of filing the notice of appeal.” An application under rule 19 is by motion and is first made to a single judge of this Court or to a judge of the High Court who, virtuti officii, is an ex officio member of the Court.” The High Court should not have granted leave without a formal application being sides thought it proper. (2) The error by the learned advocates is a sufficient reason for granting leave to file notice of appeal out of time. (3) Leave to file notice out of time and leave to appeal against sentence granted.

301. Chole v. R. Crim. App. 27-M-71; 29/6/71; El-Kindy Ag. J.

The appellant was charged with attempted defilement of a girl under twelve years of age c/s 132 (2) of the Penal Code but was convicted of indecent assault c/s 135 (1) of the Penal Code. the learned Magistrate admitted the evidence on oath of the victim a child of 7 years, but before he did so, he recorded that the girl indicated to the Court that she knew the nature of the oath without conducting a viva voce examination as required by section 127 (2) of the Evidence Act, 1967.

Held: (1) “It has often been held that before the trial court admits evidence of the child, the trial court has to conduct viva voce examination of the child witness and this examination has to appear clearly from the record of the court, in order to satisfy itself that (a) the witness is possessed of sufficient intelligence and understands the duty of speaking the truth and (b) such a witness understands the nature of an oath. If the trial court is satisfied that the child understands the nature of an oath then the trial court should admit such evidence on oath, but where the trial court is not satisfied that such a witness understands the nature of an

oath, then the trial court may receive such evidence if it is satisfied that he child is possessed of sufficient intelligence and understands the duty of telling the truth. In this case, the trial court simply recorded the conclusion which is not clear either. Recording that the witness says that she “knows the nature of an oath” does not tell us more than what the witness is alleged to have told the trial court. It does not tell

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us whether the trial court was satisfied that the witness knew the nature of an oath to justify the reception of her evidence on affirmation, as she did. With due respect to the learned magistrate, I am satisfied that trial court did not properly direct itself on the issue of admissibility of evidence of the victim. Therefore, as the evidence of this witness was not properly admitted, it ought not to have been taken into account in this case.” [Citing *Sakila v. Republic* [1967] E. A. 403]. (2) But in this case there was other evidence other than that of the victim which tends to support the conviction of indecent assault. (3) “The position seems to be that the law would hold that indecent assault would be held as having been proved, if the evidence established an assault on females, was done in indecent circumstances (see *Russell on Crime*, Vol. 1 12th Edn. At pp. 723 and 724 top.) In this case, the evidence of Ndaki showed that the appellant was found in the following circumstances. He had laid the girl (P. W. 1) on the ground with her face, or stomach, upwards. He was found unbuttoning the girl’s dress. That he had already unbuttoned his trousers. That he had lifted the girl’s legs upwards. These circumstances not only left no reasonable doubt in mind that the appellant intended to have sexual intercourse with the girl, but that his conduct was most indecent. In law, the holding of the girl’s legs in that manner and undressing her amounted to an assault and in the circumstances the assault was indecent. I would therefore, respectfully agree that the evidence of Nduturu and Ndaki left

no reasonable doubt as to the appellant's guilt. The exclusion of the evidence of the girl was not fatal to the prosecution's case. The conviction of indecent assault is accordingly upheld." (4) Appeal dismissed.

302. Mzebe & Anor. Crim. App. 476/M/70; 9/7/71; El – Kindy Ag. J.

The appellants were convicted of doing grievous harm c/s 225 of the Penal Code and sentenced to two years imprisonment and twenty four strokes of corporal punishment each. The appellants were both first offenders and the question were whether or not the sentences of imprisonment coupled with corporal punishment were justified under the circumstances.

Held: (1) "The sentence of two years imprisonment on first offender is rather severe, but in view of the fact that a sharp weapon was used in the attack and by Young men on an old man, I do not intend to interfere with it. The sentence of corporal punishment is not usual in such cases, but this is one of the Offences specified in the schedule, Part I, of the Corporal Punishment Ordinance, Cap. 17 where corporal punishment can be imposed. Wherever where a lengthy term of imprisonment is imposed, as it was in this case, the order for corporal punishment of equally severe nature would not be justified. The imposition of corporal punishment is sometimes intended

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to be a sharp lesson, and where it is imposed with this view in mind, then a lengthy term of imprisonment would not be correct." [Citing Eliakim s/o Nicholaus v. R. (1969) H. C. D. 231]. (2) Sentence of imprisonment confirmed but order of corporal punishment set aside.

303. Bakililei v. R. Crim. App. 872-M-70; 21/6/71; El-Kindy Ag. J.

The appellant was convicted of defilement of a girl under twelve years of age c/s 136 (1) of the Penal Code. The case for the prosecution was that the complainants aged 9 years together with her friend also aged 9 years were on the material day going to a nearby river to draw water. On their way back they met the appellant who grabbed the complainant to the bush where he savagely defiled the complainant. After the alleged sexual intercourse, the appellant fled leaving behind a basket which was later found in the complainant's house. The learned trial magistrate admitted the evidence of the complainant on oath after conducting a viva voce and being satisfied that they possessed sufficient intelligence and understood the nature of the oath. The complainant's friend gave a clear description of the clothes the appellant was wearing during that evening and the basket he carried. The main question was whether the learned trial magistrate had directed himself properly on the evidence and the law.

Held: (1) "..... Although he (the magistrate) accepted the evidence of the two girls, he still, as a matter of practice, needed corroboration. As it was held in the case of Oloo s/o Ghai v. R. (1960) E. A. p. 86 and followed in the case of Michael s/o Sulusi and Anor. v. R. Cr. App. 254 & 255 of 1970 (unreported) corroboration, as a matter of law, is not needed where a child gives evidence on oath, but as a matter of practice such corroboration is required unless the trial court properly warns itself of the danger of convicting a person on such evidence. In this case there was the sworn evidence of Microt and Estania. The two girls also described, inter alia, the basket the appellant carried, and this basket was subsequently found in possession of the appellant. The learned magistrate accepted the evidence of the two girls, and found corroboration of their evidence in the finding of the basket which fitted with the descriptions given by the prosecution witnesses. I cannot, therefore, say that the learned magistrate was not entitled to accept the evidence of the prosecution witnesses, as he did." (2) Appeal dismissed.

304. Bellington v. R. Crim. App. 146-A-71; 23/7/71; Kwikima Ag. J.

The appellant was charged with Burglary c/s 294(1) of the Penal Code. he was convicted of attempting to break into a building with intent to commit a felony. The only witness to identify the appellant was one Catherine. The magistrate accepted her evidence because “(1) She was quite

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familiar with the accused. In fact they are relatives; (2) she had a torch with her and she was able to identify the accused with the help of the light.”

Held: (1) “There is no watertight evidence of the appellant’s identity. Catherine simply shouted the appellant name. She did not describe him in court or to Alois the first neighbour to answer her alarm. A description of the appellant’s clothes at the time would have removed any doubt especially if it was repeated by Alois to whom Catherine should have first described how she recognised the appellant. There is a real danger of Catherine being honestly mistaken about the identity of the man who tried to break into her house.” (2) “There is no evidence of overt manifestation of such intention (to commit a felony). All the court did was to rely on Catherine’s guess that the intruder intended to steal from her house. For all Catherine knew the intruder may have intended to commit a misdemeanour.” (3) “The learned state attorney sought to move this Court to Substitute a conviction for malicious damage to property. (In Ernest S/o Joseph 1969 H. C. D. 147) it is held that malicious damage to property cannot be substituted for attempted breaking.” (4) Conviction quashed and sentence set aside.

305. Lyanga v. R. (PC) Crim. App. 185-A-71; 20/7/71; Brambe J.

The appellant was convicted in a primary court of Malicious damages to property contrary to section 326 (ii) of the Penal Code. The facts were that there was a tenancy agreement between the appellant and the complainant, after some disagreement with them the appellant took possession of the building which was the subject of the tenancy agreement, and put the complainant's things outside. These were reported to have been later destroyed but it was not said that the appellant destroyed them. On appeal the district magistrate properly held that the evidence did not support the charge of malicious damage but substituted a conviction for Criminal Trespass contrary to section 299 (a) of the Penal Code. the section reads: - any person who:- (a) unlawfully enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property is guilty of the misdemeanour termed "criminal trespass".

Held: (1) "An essential ingredient of the offence is the "intention to commit an offence or to intimidate insult or annoy." If a person exercises what he considers to be his right, although mistakenly so, he cannot be said to have the intention necessary to bring his act within the section. The remedy of the complainant lay in making a civil claim for damages and not in a criminal charge." (2) Appeal allowed; conviction quashed.

306. R. v. Ally Crim. Sass. 49-A-71; 22/7/71; Kwikima Ag. J.

The accused was charged with murder c/s 196 of the Penal code. The case for the prosecution depended heavily on the identification of the accused and on the dying declaration made by

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the deceased. It was not disputed that the deceased was shot by a poisoned arrow – at about 9.00 p. m. One prosecution witness, who was

characterized by the court as “not very reliable” alleged that when the deceased cried out that he had been shot by an arrow, he flashed his torch but admitted that did not see the direction from which this arrow came from. This witness could not even describe the accused as he saw him on that night.

Held: (1) “Nowhere in his evidence does Jumanne describe the accused as he saw him on that night. None of the witnesses who heard that the accused had been identified as the killer referred to a description of him by his identifiers. This is very unsatisfactory indeed. It was held in the case of Mohamed Allui v. R. (1942) 9 E. A. C. A. 72 “That in every case in which there is a question as to the identity of the accused, the fact of there having been given a description and the terms of that description are matters of the highest importance of which evidence ought always to be given, first of all of course by the person or persons who gave the description and purport to identify the accused, and then by the persons or persons to whom the description was given.” In that case (Mohamed Allui’s that is), the only evidence connecting the appellant to the offence was his identification by persons who alleged to have seen the appellant at the scene of the crime. Identification being the only issue in the present case, the rule just cited is applicable. Jumanne’s failure to say for example what clothes the appellant’s wore on that day is a very serious omission in the case for the prosecution.” (2) “The other evidence tending to connect the accused to this crime is the dying declaration of the deceased. As defence Counsel rightly pointed out, this evidence does not lend any weight to the prosecution case. Common sense and reason indicate that the deceased could not have seen his assailant in the dark. Even Jumanne admitted on cross-examination that the deceased could not have seen without a torch.” There is evidence that the deceased carried no torch at the time when he was shot with the poisoned arrow. For this reason it is hard to see how the deceased could have identified his assailant.”(3) “It is trite law that a dying declaration can only be taken with

caution and the comments in Field on Evidence, 7th edition. (Approved in Ramadhani Marandu v. R. (1934) 1 E. A. C. A. 109, R. v. Okulu Elku (1938) 5 E. A. C. A. 39, R. v. Munyonya Msuma (1939) 6 E. A. C. A. 128, Peter Akumu v. R. (1954) 21 E. A. C. A. 331 to name but a few authorities) are especially helpful:- “The caution with which this kind of testimony should be received has often been commented upon. The test of cross-examination may be wholly wanting; and ... the particulars of the violence may have occurred under circumstances of confusion and suspires calculated to prevent their being accurately observed The deceased may have stated his inferences from facts concerning which he may have omitted important particulars from not having his attention called to them”.Although it is not a rule that to support a prima facie case a dying declaration must be corroborated, it is generally unsafe to rely on it unless it is satisfactorily

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corroborated. A dying declaration made by deceased person in the absence of the accused as in this case cannot be subject to cross examination. It would be dangerous to place reliance on it. In this case the evidence of Jumanne cannot be held to be corroborative of the dying declaration because in itself it is worthless as has been shown earlier on.”
(4) The evidence did not justify a conviction. (5) Accused acquitted.

307. Kioko v. R. Crim. App. 73-A-71; 17/7/71; Bramble J.

The appellant was convicted of being in unlawful possession of Government Trophies c/ss 49 and 53 of the Fauna Conservation Ordinance, obtaining a certificate by false pretences c/s 309 Penal Code and uttering an exhausted document c/s 343 Penal Code. The appellant admitted possession of certain Certificates of Ownership in respect of animal skins and stated that he had legally bought the skins from one

David Kasivo Kiamba of Emali, Kenya. Appellant has possession of Kenya Export Permits stamped with a rubber stamp and showing David Kasivo Kiamba of P. O. Box Emali as a seller of the skins and the appellant's business "Zebra Craft and Carvings, Arusha", as the buyer. Evidence was tendered by Murithi, an Investigations Officer with the Game department in Nairobi, there is no trophy dealer registered in Kenya by the name of David Kasio Kiamba, and that in the course of his duty he had gone to Emali several times but had never met a dealer known by that name, and that the people he had contacted in the area did not know that man. Francis Sabuni, a C. I. D. officer in Arusha testified that on 17/6/70 he went to Emali Kenya and contacted the local headman and the Game Warden of the area; both of them told him that they did not know a person of that name. Henry Mulundi, the licensing officer at Nairobi in February 1969 to May 1970 testified that he never came across the name of David Kasivo Kiaqmba in the course of his duties. From this evidence, the trial magistrate found that David Kasivo Kiamba did not exist and convicted the appellant.

Held: (1) "It is clear that all the evidence as to the non-existence of the Man Kiamba was hearsay. The witness Murithi (PW.2) said that several people told him that they did not know Kiamba to be living at Emali and the headman and Game Warden told the investigating officer the same thing. I do not see why these persons were not called to speak of their own knowledge and permit the court to draw its own conclusions. In the 1970 treason trial of R. v. Gray Mattaka and Others Georges, C. J. observed that in Tanzania the law as to admission of hearsay evidence was somewhat different from the law in England. Indeed section 34 of the Evidence Act, 1967 specifies eight cases in which hearsay evidence written or oral are admissible to prove relevant facts but only "where the person who made them is dead or cannot be found, or had become incapable of giving evidence or whose attendance cannot be procured

without an amount of delay or expense which in the circumstances of the case appears to the court unreasonable. “

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The proper basis must be laid for the admission of such evidence. In the instant case no ground was laid for the admission of statements of persons, not called as witnesses, as to the non –existence of Kiamba and these statements were inadmissible and non-probative of that fact. (2) “The next point was whether David Kasivo Kiamba was a trophy dealer registered in Kenya. The evidence of the witness Marithi (P W. 2) was “From the records we have at Game Headquarters in Nairobi there is no trophy dealer known as David Kasivo Kiamba I had no connections with the man with the name David Kasivo Kiamba.” This was secondary evidence of a document. Section 67 of the Evidence Act sets out the circumstances under which secondary evidence of a written document can be given and the manner in which it should be done. There is no evidence to bring the statement as to the contents of the register in Kenya within the section and it was therefore inadmissible.” (3) “The appellant relied on Certificates of ownership to show that he was in lawful possession of the skins. These certificates were issued by the competent authority in Arusha on the production to him of Export permits. The respondent’s case was that these permits were false since the person in whose name they were did not exist and so no permit could have been issued to him, but, as indicated above, there was no evidence to warrant such a conclusion.” [Citing Section 144 of the Evidence Act.] “All that it is necessary for the defence to establish is that its story is more than likely to be true. Apart from raising suspicion on the export permits the prosecution did no show that the story of the appellant was false and there was enough to create reasonable doubt.” (4) “The Game Warden fro Nairobi, PW.6 explained how an export Permit Book and some Registers. When the export permit

is obtained. A licenced dealer was given an Export Permit Book and some Registers. When he exports trophies he would enter them in the Export Permit Book and the register; the Export Permit is signed by a clerk in the Licensing office and handed back to the dealer. When a trophy is exported out of Kenya there must be an entry in the Register. The buyer's name would be at the head of the permit and the seller would put his stamp or address on it. The relevant permits were filled up according to this procedure but the Game warden could not identify the signatures of officers of his department. He did not pretend to know the signatures of all the officers and even trainees were permitted to sign. His evidence did not show that the permits were false. It was proved that the stamp of the dealer which was shown on them was ordered by the appellant and that the stamp was the same as Kiamba was reported to have used previous to most of the transactions and had lost. On this point the prosecution relied on a letter from a Document Examiner who was not called to give evidence. It was sought to draw indifference that the stamp on the export permits were placed there by the appellant himself. I am not aware of any rule of evidence to make the letter admissible. The appellant admitted that he ordered the stamp at the request of Kiamba. He stated that Kiamba collected it and the prosecution did not refute this. On the statement of a witness that only the appellant and a Mr. Tariq were

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Present when the order was given, and impliedly no Kiamba, the learned trial magistrate came to the conclusion, that the stamp was made for the appellant and that he used them on the documents in question. The admissible evidence did not support this finding." (5) "The last conviction was for uttering an Exhausted Document contrary to section 343 of the Penal Code. The particulars alleged that on the 2nd February in Arusha District the appellant uttered as and for a subsisting and effectual

document Export Permit No. 138368, the operation of which had ceased by the closing down of his business as a licensed trophy dealer in Kenya on 14/3/69. The appellant presented the Export Permit to the competent authority in Arusha and obtained a Certificate of ownership. On the face of it the Permit was in the name of David Kasivo Kiamba and he exported the trophies to the appellant. The prosecution's case was that the book from which the permit came had been issued to one Francis Kioko in Nairobi. Again it was sought to prove this by secondary evidence of a document and no basis was laid for this. The appellant had a licence as a trophy dealer in question was dated 4th August, 1969. The Francis Kioko in the inadmissible evidence of P W. 6 was not identified as the appellant and the learned magistrate wrongly held in my view, that the Francis Kioko to whom the Export Permit Book was issued was the appellant. The Export Permit was in the name of a dealer by the name of David Kasivo Kiamba and nothing was proved to the contrary nor was it proved that Kiamba's licence as a dealer had expired." (6) Convictions were based on inadmissible evidence. (7) Convictions quashed; Appeal allowed.

308. R. v. Abdallah and Hassani Crim. Rev. 11-M-71; 16/7/71; Kisanga Ag. J.

The accused were convicted of conveying property suspected to be stolen c/s 312 of the Penal Code and sentenced to 10 strokes of corporal punishment each and ordered to be under police supervision for a period of 12 months.

Held: (1) "The particulars of the new charges read as follows:- "The persons charged on the 5.5.70 at about 0300 hours at Lumumba Street, within Bukoba township did jointly and together convey property viz., 4 beds (BANCO) valued at Shs. 240/- in such manner as would be reasonably suspected of having been stolen or unlawfully obtained." It is quite clear that the above particulars did not disclose an offence under section 312 of the Penal Code. There a person is charged under this section, the particulars must make a reference to section, and the

particulars must make a reference to section 24 of the Criminal Procedure Code. in the case of Kiondo Hamisi vs. R., 1963, E. A., page 209, the Court observed that a charge under section 312 should allege “that the accused was detained as the result of the exercise of the powers conferred by section 24 of the Criminal Procedure Code and that at the time when he was detained he was conveying or was in possession of (as the case may be) a specified thing which might reasonably be suspected of having been stolen or unlawfully obtained.” Thus, to the extent that the

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Particulars made no reference to section 24 of the Criminal Procedure Code as indicated above, the charge was defective.’ (2) “Even assuming that the charge was properly framed, the facts of the case do not seem to establish all the ingredients of the offence alleged. In the case of Ally Ramadhani vs. R., 1968, H. C. d. No. 430, it was held that one of the pre-requisites for a conviction under section 312 of the Penal Code is that the accused was detained in exercise of the powers under section 24 of the Criminal Procedure Code. In the instant case, P. W. 3, a special constable, merely said that he saw the accused persons carrying beds and that when he approached them one of them drew a knife and that on seeing this he blew a whistle where upon the accused persons ran away leaving the beds on the spot.” It must be shown that the police officer stopped, searched and detained the accused which was not established in this case. (3) “As mentioned earlier, the accused persons, after conviction were each sentenced to 10 strokes or corporal punishment and each ordered to be under police supervision for a period of 12 months. The

order for police supervision was clearly not proper. Under section 308 (b) the instant convictions is punishable with imprisonment for a term of three years or upwards, and (c) following the instant conviction, a sentence of imprisonment was passed on the accused. Both accused were shown to be first offenders. An offence under section 312 of the Penal Code is a misdemeanour and hence punishable with a maximum only of two years imprisonment and following the instant conviction, no prison term was imposed on the accused persons. None of the conditions set out above was therefore satisfied and consequently the police supervision order could not properly have been imposed. (4) Convictions quashed and sentences set aside.

309. R. v. Jafferji and Chomoko Crim. Rev. 14-D-71; 30/7/71; Biron J.

The accused were convicted on separate charges of offences against the Exchange Control Ordinance (Cap. 294 – Supp. 65). The first appellant was fined Shs. 100/- or six months imprisonment; the second appellant was convicted on four counts and fined Shs. 250/- on each count. The Republic applied for the sentences to be reviewed on the ground that they were “woefully inadequate and hardly a deterrent.” In each of the cases the accused had transmitted to his bank in London, in the one case to the National and Grindlays Bank and in the other to the Habib Bank (overseas) Ltd., sums of money apparently derived in the one case from Pakistan and in the other from Kenya. In reciting the facts the prosecutor in each case, after stating that the monies had not emanated from this country and threat the accused on becoming aware of the offence had transmitted the monies to this country thereby

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Occasioning no loss to this country, in at least one case, remarked that the offences were technical. When the cases came up for hearing before the High court the state Attorney stated that he was instructed not to proceed with the application for enhancement of the sentences.

Held: (1) "the very propriety of the convictions could be impugned. (After quoting paragraph 2(3) of Part II of the Fifth Schedule to the Exchange Control Ordinance)in both cases the prosecutions were brought on 12th November, 1970, that is, more than 12 months after the commission of the offense but within the prescribed period when the offences came to the knowledge of the Treasury. However the authorities would appear to have overlooked the Exchange Control (Delegation: The Bank of Tanzania) Order 1966 (Government Notice No. 119 of 1966) which reads: - "1. This order may be cited as the Exchange Control (Delegation: The Bank of Tanzania Order, 1966. 2." All the functions, powers and duties of the Treasury under the Exchange Control Ordinance other than the powers of the Treasury therein to make orders are hereby delegated to the Bank of Tanzania." 3. "The functions, powers and duties delegated by this order shall be exercised and performed by the Bank of Tanzania in accordance with such directions as may from time to time be given in writing by the Minister of Finance." The National Bank had the requisite evidence months before the prosecutions were initiated hence they were both time –barred. However, as this aspect has not been raised by either side, I do not consider it incumbent on the Court to deal with it ex Sui motu." (2) "It cannot be overstressed that the imposition of sentences is at the discretion of the convicting Court. No tribunal will interfere with a sentence imposed by a Court unless the Magistrate misdirected himself in principle or the sentence itself is so manifestly improper that it cannot in reason be sustained. In this instant case the magistrate – incidentally, a senior resident magistrate with considerable experience – cannot be faulted on his direction in sentencing the two accused in principle, nor can the sentences themselves be considered so manifestly inadequate as

to warrant interference. The court therefore does not propose to take any action in revision.”

310. Mbewa and Three Others v. R. Crim. Apps. 277/280-D-70; 30/7/70; El-Kindy Ag. J.

The appellants were charged and convicted of criminal trespass c/s 299(a) of the Penal Code and threatening violence c/s 89 (2) of the Penal Code. They were alleged to have entered the compound of the complainant a Community Development Officer and spoke adversely about Ujamaa Villages, threatening to kill people who would go to Ujamaa Villages and to kill the complainant himself. They were alleged to have carried knives, clubs and pangas with them. In the course of the trial, the public prosecutor said in respect of the one witness that he was telling lies and thereupon ceased to examine him and called another witness.

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Held: (1) [Referring to S. 164 Evidence acts of 1977) “The court of Appeal in the case of Madafi Bin Rediba v. R. of S E. A. C. A. considered section 15 of the Indian Evidence Act – the material section being word for word similar to our section has this to say, at p. 55:- “The proper procedure is to apply for leave to treat a witness as a hostile, prove and put in the former statement and then put to the witness the passages which are alleged to be inconsistent with any part of his evidence which is to liable to be contradicted.” In this case, it was necessary for the public prosecutor to apply to the trial court to treat these two witnesses as hostile. The word in of one section 164(1) states that the impeachment of one’s own witness, cannot be done without the consent of the trial court. In this case, although, the public prosecutor said that the two witnesses were “hostile” he did not ask for leave of court to cross-examine them as he should have done to establish his allegation. And before he did that, it would have been necessary to prove that the witnesses had made

statements in consistent with the evidence they were giving in court, and having done so, the prosecution may then put passages of their statements to them to show that heir evidence was inconsistent with what they have stated in their statements. It will be for the court of decide then, whether they were hostile or not. In this case, this was not done, and in the absence of this it cannot be said that two witnesses were in fact hostile. It may be worthwhile to take not of the commentary by Sukar on Evidence, 11th Edition at p. 1317, where in the learned author, after reviewing the previous decisions on the point, said; "Merely giving unfavorable testimony cannot also be enough to declare a witness hostile, for he might be telling the truth which goes against the party calling him. He is hostile if he tries to injure the parties' case by prevaricating or suppressing the truth." Applying this proposition, it will be seen therefore, that not every unfavorable evidence would amount to hostility. A witness will only be found to be hostile I he prevaricates or suppresses the truth in an attempt to injure the case for the side which called him. In this case it cannot be said that the two witnesses were trying to injure the prosecution case by prevarication or suppressing the truth, since it was not shown that they were so doing. In the circumstances, I agree that the exclusion of the evidence of Said and Chuma was wrong." (2) Referring to s. 299(a) of the Penal Code) for an offence to succeed under this section the prosecution must prove (1) that the entry was unlawful, (2) that the entry was done with intent to commit an offence or to intimidate, insult or annoy the person in occupation. The learned defence counsel had argued that the offence intended to be committed must be a felony and not misdemeanour. I would respectfully defer. The word offence would include a misdemeanour in the absence of specific meaning. In my view, it is not necessary that the offence intended to be committed should be a felony. If the appellants had intended to commit the offence of threatening with violence contrary to section 89(2) (b0 of the Penal Code which is a misdemeanour, that would have

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been sufficient for the purposes of the charges. It seems to me that the sentence would be enhanced if the offence is committed in places mentioned in the last part of the section and not because the offences were felonious as it was argued. And no doubt the entry has to be on private property, as it has clearly been held by this court in the case of Kombo s/o Haji @ Ngerengere v. R. H. C. D. No.225 of 1967. In this case, the complainant said that the appellants were in the premises of his house, but the learned counsel argued that this was too vague. I am satisfied that this was adequate to show that the appellants were in private premises of the complainant. I would therefore state that, had there been sufficient evidence, the charge of criminal trespass could have been sustained.” (3) “As for the charge brought under section 89(2) (b) the learned counsel said that the intended breach of peace envisaged by this action was that akin to fire arms, and that, if that was the case then the evidence in his case did not establish this offence, but established an offence under section 89(1) (a) of the Penal Code. And that the difference between the two sections lies in the nature of the breach of peace, and therefore, the four appellants had not committed any offence under section 9(2) (b) of the Penal Code. At most he said, they used abusive language, which is not an offence by itself. I would quote the two sections: “89. – (1) Any person who- (a) uses obscene, abusive or insulting language in such a manner as is likely to cause a breach of peace, or (b) browls or in any other manner creates a disturbance in such a manner as is likely to cause a breach of peace, is guilty of a misdemeanour and on conviction therefore is liable to imprisonment for six months. (2) Any person who – (a) with intent to intimidate or annoy any person threatens to burn, break or injure any premises, or (b) with intent to alarm any person discharges a fire arm or commits any other breach of peace, is guilty of a

misdemeanour and is liable to imprisonment for one year.” The appellants were charged under section 89 (2) (b) and in order to succeed, the prosecution has to prove that the charged person or persons had discharged fire arm or committed any other breach of peace, with intent to alarm any person. Here” any other breach of peace” has to be interpreted ejusdem generic with fire alarm. It is arguable whether holding pangas and sticks would be ejusdem generic with discharging of fire arm. The holding of pangas and sticks in themselves would not alarm anybody unless they are held in alarming manner but there would still be lacking herein the element of explosion and a sense of sudden threat of life; which can be inferred from the act of discharging a fire arm. I cannot therefore say that the acts alleged to have been committed by the appellants in this case would necessarily have failed to come under this provision of law, if there were available evidence that the actions were ajusdem generic with discharging of fire-arms.” (4) Appeals allowed, conviction quashed.

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311. Mwashinga & Anor. Crim. App. 863-D-70 and 97-D-71; 2/4/71; Biron J.

The two appellants were convicted of robbery c/ss 285 and 286 of the Penal Code. The complainant alleged that on 19/3/70 he entered a certain pombe club where the accused were drinking pombe. He ordered his pombe but before he had chance to drink it, the appellants ejected the complainant from the pombe club. Nobody responded to the complainants’ alarm and the seventh accused, he alleged, took Shs. 534/90 from his pouch. The complainant ran away. The following day Hepa took the complainant to the local ten cell leader who took the complainant to the local TANU Chairman, who happened to be one of the appellants. The complainant immediately identified him as one of the persons who robbed him. The other accused persons (who did not appeal) were not identified by the magistrate until they were pointed out to him by the seventh

accused. The second accused made an unaffirmed statement and the seventh gave evidence on oath but the rest opted to remain silent. In this judgment the magistrate stated, inter alia: "The fact that accused Nos. 1, 2, 3, 4, and 6 elected to remain silent in court when their time for their defence came, makes me believe that they really committed this offence of robbing the complainant of his local medicines." The question then was whether or not this was misdirection and if so it was fatal to the convictions.

Held: (1) "Apart from the fact that the second and seventh accused did make their defences, the misdirection in respect of the five accused is not necessary fatal to the convictions, provided such convictions are supported and justified by the evidence. As I have remarked recently in more than one judgment in dealing with the functions and duties of a first appellate tribunal, quoting from the case of Dinkderrai Ramkrishan Panday v. R. (1957) E. A. 336 at page 337, "that on first appeal an appellant is entitled to have the appellate court's own consideration and view of the evidence as a whole and its own decision thereon", and from the case of Selle and Another v. Association Motor Boat Company Limited and Others (1968) E. A. 123, "than an appeal from a judge sitting alone is by way of re-trial", and also from the English case of Scott v. Musial (1959) 2 Q. B. 429, "that an appeal from a judge sitting alone is by way of re-hearing"; there obviously being no difference between an appeal from a judge sitting alone and from a magistrate sitting alone, the directions or misdirection's of a magistrate are not particularly material, unless they are in respect of evidence dependant of the credibility of a witness which is determined by and from the observation of his demeanour." (2) "As noted, according to independent witnesses, the seventh accused was immediately identified by the complainant as one of those actually the leader of the gang, who robbed him. The magistrate's finding that the seventh accused participated in the robbery is fully supported by the

evidence and no court would be justified in interfering with it. (3) "With regard to the six other accused as noted, they were

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Not identified by the complainant until they were pointed out to him by the seventh accused, although there is evidence of a police constable that some medicines were found in their possession, these medicines were not specifically identified by the complainant as his. In the circumstances, I agree with learned State Attorney that that the convictions of the six other accused cannot be sustained." (4) Appeal allowed.

312. Rwenzola v. R. Crim. App. 148-D-71; 10/6/71; Mwakasendo Ag. J.

The appellant was convicted of stealing postal matter, to wit, one Post Office Pass Book, c/s 267 of the Penal Code. one Alfons Mwakowiri, a depositor in the Post Office Savings Bank surrendered his Pass Book No. 3690 to the Post Master for onward transmission to the P. O. Headquarters in Nairobi so that a new book bearing the same number could be returned in exchange. The new book was accordingly dispatched to the Post Master, Iringa who in turn handed it over to Mwakowiri. At about the same time the Post master received a report that another person giving the name of Mwakowori was inquiring about Pass Book No. 3690. The Postmaster asked Alfons Mwakowori to return his pass book in order that a trap could be set for the alleged impostor. Subsequently, the appellant called at Post Office, saw the Postmaster and signed the necessary documents whereupon the Postmaster handed over the Pass Book No. 3690. The appellant was arrested on leaving the Post Office and charged. The appellant's defence was that he and his son Alphons Rwezaula had Post Office Savings Bank accounts and both Pass Books had been sent to the Headquarters in Nairobi. They had not been returned

and he produced copies of letters he had written enquiring about the books. On a later inquiry at the Iringa Post Office he was told that the pass books had been received. He collected one of the books and was thereupon arrested.

Held: (1) "The learned Magistrate in a long judgment reviewed the facts and found as a fact that the Postmaster gave the Post Office Pass book to the appellant knowing full well he was not entitled to it in this definition of theft [in section 258 (1) of the Penal Code] a person can only be guilty of stealing a thing if, with the requisite intent, he takes the thing capable of being stolen without the consent of the owner whether general or special." (2) "In *R. v. Turvey* (1946) 2 All E. R. 60; 31 Cr. App. R. 154 [it was held that] where, pursuant to the master's instructions, the property was actually handed to the intending thief by the servant..... the property was not taken 'invito domino' and that the appellant had, accordingly, been wrongly convicted of larceny whatever the intention of the appellant may have been he could not be convicted of theft unless the prosecution satisfied the court that he took the pass book 'invito domino' i. e. without the consent of the owner. This in my view they failed to do." (3) Appeal allowed.

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313. Patrick v. R. Crim. App. 262-D-71; 10/6/71; Mwakasendo Ag. J.

The appellant was convicted of being in possession of property suspected to have been stolen or unlawfully obtained c/s 312 of the Penal Code. a police officer, from information received, obtained a search warrant and searched the house of one Chololoka. In the course of the search a radio was found. Chololoka said that the radio belonged to the appellant. On being questioned the appellant first said that he had bought the radio from one Edison Onyango. He later changed his story thereby arousing the police officer's suspicion that the radio was either stolen or unlawfully

obtained. He was charged before the District Court where the Magistrate not being satisfied with the appellant's explanation convicted him.

Held: (1) "Section 312 of the Penal Code is a highly technical section which applies only to cases where the possession of the suspected property is "ejusdam generic" with conveying." (2) "Commenting on the English case of R. v. Fisher 32 N. S. L. T. 23 their lordships [in Regina v. Msengi s/o Abdullah I. T. L. R. 107] observed that it was clear that section 312 of the Penal Code could not apply for example to property found in a building solely as a result of the execution of a search warrant or other similar process." (3) Conviction quashed.

Editor's note: This decision appears to be at variance with the decision in Ali Mohamed Hizam v. R. (1970) H. C. D. 200 which implicitly over-ruled Regina v. Msengi s/o Abdullah 1 T. L. R. 107.

314. Nanyalika v. R. Crim. App. 149, 150 & 152- D – 71; 23/6/71; Biron J.

The appellant was convicted on three charges of (a) burglary (b) entering a dwelling house with intent to steal and stealing wherefrom and (c) entering and stealing. The appellant made statements to a police officer leading to the discovery of several stolen articles.

Held: (1) "As the cases were all tried separately, they cannot be together as they are all founded on much the same facts and are all part of a series of offences of the same character. They could, and should therefore have all been tried together.... Section 136(1) of the Criminal Procedure Code." (2) "The confession to the police officer is naturally inadmissible as laid down in sections 27 and 28 of the Evidence Act 1967. However, the evidence that the appellant showed the police the spot where the complainant's stolen box was recovered, and also hi leading the police to the laundryman from whom the complainant's stolen shirt was recovered, is admissible and fully justified those convictions." (3) "..... The evidence as to the appellant leading the police to the house of the complainant whereby, the police first

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Discovered that it had been entered and the sandals stolen wherefrom is admissible against the appellant as provided for in section 31 of the Evidence Act 1967 [Pulukuri Kottaya and others v. Emperor. (1947) A. I. R. followed.]. (4) "In another [case] the appellant had denied them [previous convictions] and the court found them proved by the production by the prosecutor of the formal record of his previous convictions. In this respect it is pointed out for the benefit of the magistrate, that this does not constitute proper proof of previous convictions. The procedure for proving previous convictions is laid down in section 143 of the Criminal Procedure Codesubsection (2)." (5) Appeals dismissed.

315. R. v. Kassam Misc. Crim Cause 19-D-71; 12-8-71; Mwakasendo Ag. J.

The applicant was charged with stealing by servant c/s 265 and 271 of the Penal Code. The amount stated in the charge was Shs. 91, 638/10 the property of the State Trading Corporation of which the applicant was Chief store keeper. The Magistrate refused bail whereupon the applicant applied to the High Court.

Held: (1) "There can be little doubt that in all the three cases cited [Mohamed Alibhai v. R. ITLR 138; Abdallah Nassor v. R. ITLR 289; Bhagwanji Kakubhai v. R. ITLR 143] the offences on which each of the applicants had been held, though serious, were in no sense as serious as the offence for which the present applicant stands charged It is clear from an intelligent reading of the judgments that each decision rested on its own peculiar facts." (2) "The applicant was arrested only over a week ago and it could in my opinion be demanding the impossible to expect the police to have completed their investigations within a week There are some cases and I believe the instant may be one in which an intelligent guess can be made that the applicant having regard to

the nature of the case is likely to hamper the speedy conclusion of police investigations.” (3) [Citing R. v. Porter (1910) I. K. B. 369] “It is no less true here than it is in England that a person in the position of the applicant faced with such a serious charge of allegedly stealing Shs. 91,638/10 which may even grow larger as investigations progress will be greatly emptied to abscond and therefore evade justice. I do not believe that the fact that a person does not possess any valid travel papers or documents will be much of a hindrance or obstacle to a person who is determined to flee the country.” (4) “Economic sabotage or whatever you may like to call it and defalcation of large sums of money from parastatal organizations is as much a ‘murder’ of these institutions as the killing of another man intentionally, in so far as the unbridled milking of their funds would surely kill them as functioning and viable instruments of positive Economic reconstruction” (5) application refused.

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316. Sunderji v. R. Crim. App. 313-D-71; 30/7/71; Biron J.

The appellant was charged and convicted of corruption. After information that some tins of cooking oil were missing from army stock, the police investigated and seized some oil at the appellant’s premises. The appellant is then alleged to have offered Shs. 2000/= at the police station in order the further investigations should be stopped. The particulars of the charge stated the appellant had been detained. Appellant’s defence was that he offered the money for bail and not as a bribe. At the trial the prosecution applied for amendment of the charge so as to remove the statement that appellant had been detained. The magistrate allowed the amendment but found as a fact that the appellant had been detained. He also found that as there was no evidence that bail had been asked for, the Shs. 2000/- in issue could not have been for bail, on appeal it was argued on behalf of the appellant that the trial magistrate had erred in throwing

the onus on the appellant to establish his innocence instead of merely upholding the submission of no case to answer.

Held: (1) [Citing s. 209 Crim. Procedure Code, Maulidi Abdullah Chengo v. R. [1964] E. A. 122, and Mbithi Kisoi v. R. (1955) 22 E. A. C. A. 484). the necessary prerequisite to the application of s. 209 of the criminal Procedure Code is that the charge should be defective. The original charge was not defective and it is therefore questionable whether the magistrate had power to amend the charge. (2) "Before an accused can be called upon to make his defence the prosecution must establish at least a prima facie case "....." to set out a passage in the judgment of the court of Appeal for East Africa in Ramanlal Trambaklal Bhatt v. R. [1957] E. A. 332 at 335:- "It may not be easy to define what is meant by a 'prima facie case', but at least it must mean one on which a reasonable tribunal, properly directing its mind to the law and the evidence would convict if no explanation is offered by the defence." if the magistrate had applied this definition of a prima facie case he would have upheld the submission that there was no case to answer." (3) "The fact that because the appellant had not been asked for bail therefore he could not have given the money as bail is, with respect, a non sequitur In this case, as noted, the magistrate rejected the evidence of the prosecution witnesses that the appellant was not under arrest, but found as a fact that he was; therefore in such case the money offered by the appellant could well have been for bail " (4) Moreover investigations against the appellant proved that nothing was irregular and therefore there was no motive for offering a bribe. (5) Appeal allowed.

317. Bakari v. R. (PC) Crim. App. 191-A-71; 30/7/71; Kwikima Ag. J.

The appellant was convicted of forcible entry c/s 86 of the Penal code. The appellant agreed to having entered the land. His defence was that he had agreed

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to redeem his land from the complainant who had bought it in an auction sale. He had paid the complainant Shs. 98/- out of the agreed sum of Shs. 370/- which he took to be part payment for the redemption. The trial court found the appellant's belief to be legally unfounded.

Held: (1) "The issue here is whether the appellant held on honest belief that he had a claim of right to re-enter. Neither of the courts below touched this issue. The learned District Magistrate misdirected himself when he held that such belief went to a mistake in law and not in fact. At the time he re-entered the shamba mistook the fact that possession thereof was lawfully in the process of becoming his. From his conduct it appears that the appellant took it that he could re-enter after payment of an instalment of Shs. 80/- pursuant to their agreement with the complainant. At any rate his sincere belief that he could re-enter has been held to be a complete defence as a number of authorities show. I will go through a few of them to illustrate the point." [The learned judge then discussed Lauriani Kobobwe v. R. [1967] H. C. D. 147, Musa Kundage v. R. [1968] H. C. D. 398, and Charles Alias Makanyanga Makobe v. R. [1967] H. C. D. 271]. (2) One would hasten to point out that had any of the two courts below considered this issue, this appeal would probably not before the High court. The learned State attorney who appeared in this appeal supported the conviction because he felt that the appellant had disobeyed a court order. He did not specify what order the appellant had disobeyed. He probably had in mind the decree which ordered that the appellant's land be sold to meet the decree holder's judgment. With great respect, the appellant's action could not have been in violation of any Court Order, which did not prohibit him from entering his former shamba or taking fruits from there. All the appellant did was to act in pursuance of his agreement with the complainant. This agreement had no court sanction

and his action could in no way be said to amount to disobedience of a Court Order. (3) Appeal allowed; Conviction quashed.

318. R. v. Donald Crim. Rev. 27-A-71; 26/7/71; Kwikima Ag. J.

The accused was convicted of burglary and robbery. The conviction depended on the identification of one witness, the complainant who testified that when the accused was preparing to have sexual intercourse with her after breaking into her house at about 3.00 a. m., she was able to see and study his face and to recognize him as a man who had frequented her pombe shop. Accused set up an alibi as a defence but the trial court disbelieved him. In Revision.

Held: (1) The only issue before the trial court was whether Zainabu assailant was identified beyond reasonable doubt. There was no other witness besides Zainabu to identify the intruder. It is dangerous to convict on the evidence of a single identifying witness and a trial

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Court must warn itself (R. v. Chantigit 1970 H. C. D. 343). In the present case the learned trial magistrate did not warn himself of the danger of convicting upon Zainabu's evidence however creditable she may have appeared to be. A tougher test than credibility had to be applied before her evidence could be the basis for a conviction. In the case of Abdallah Wendo v. R. (1954) 21 E. A. C. A. 166 it was stated that; "Although subject to certain exceptions a fact may be proved by the testimony of a single witness, this does not lessen the need for testing with the greatest care the evidence of such witness respecting the identification especially when it is known that the conditions favouring identification are difficult. In such circumstances, other evidence, circumstantial or direct, pointing to guilt is needed. The learned trial magistrate did not point out any circumstances tending to correct the

appellant to the crime. The record itself is bereft of such circumstances and the learned trial magistrate would have been hard put to it had tried to took for them.” (2) [Referring to the disbelieving of accused’s evidence of alibi]. “This was misdirection. An alibi need not be proved by the accused (R. v. Rutema Nzungu 1967 H. C. D. 445, Morison shem CR 1968 H. C. D. 417, Leornard Aniseth v. R. 1963 E. A. 142). It is therefore wrong for a trial court to reject an alibi because it disbelieves the accused and his witnesses. From what little evidence of corroboration which the court had before it, the alibi was quite capable of raising a reasonable doubt I his mind of the court had it properly directed itself to the law. Here was and accused whose identification left a lot to be desired. What evidence was there to exclude the possibility of his being at Dodoma or anywhere else for that matter when the crime was being committed? These questions could not be resolved by believing or disbelieving any particular witness. The prosecution evidence had to meet the tests laid down in law and in this the failure of the prosecution was abysmal. There was insufficient evidence on which to convict the accused.” (3) Conviction quashed.

319. Juma v. R. Crim. App. 222-D-71; 11/8/71; Mwakasendo Ag. J.

The appellant was convicted of stealing goods in transit c/ss 269(c) and 265 of the Penal Code. On sentencing him, the magistrate simply remarked on the record that the allegations of eleven similar previous convictions against the appellant were “proved”, although the appellant had denied them. He was sentenced to four years imprisonment. He appealed against conviction and sentence.

Held: (1) “I will in the circumstances treat eh appellant as a first offender. Before going any further, I should like to draw the attention of the Magistrate and that of the Police to the provisions of section 143 of the Criminal Procedure Code which

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lays down the procedure to be followed in proving previous convictions. By virtue of section 143 the prosecutions are given the choice of three modes of proof. They may either prove: - (a) by an extract certified under the hand of the officer having the custody of the records of the court in which such conviction was had, to be a copy of the sentence or order; or (b) by a certificate signed by the officer in charge of the prison in which the punishment or any part thereof was inflicted; or (c) by production of the warrant of commitment under which the punishment was suffered. Whatever mode of proof the prosecution choose to adopt it will be necessary in each case to prove that the accused person in the dock is one and the same person as the person who is alleged to have been previously convicted. If this latter proof is not forthcoming the Court will have no alternative but to hold that the accused is a first offender. As misdirection's on this subject are far too common, Magistrates and prosecutors alike would be well advised to adhere strictly to the procedure laid down in the Criminal Procedure Code. (2) "Reverting to the question of sentence. One essential factor that a trial Court has to take into consideration in determining the appropriate sentence is the intrinsic gravity of the offence it is dealing with. In the instant case there can be no question of the offence being other than a serious one. Thefts of Railway property and in particular goods in transit has reached alarming proportions, threatening the very economic viability of this public institution and of the country as a whole. The Courts would be failing in their duty if they were to sit idly by and watch while these depredations went on. As Courts would be failing in their duty if they were to sit idly by and watch while these depredations went on. As Courts of Law, I believe we cannot assist in curbing these crimes by being too lenient and too moralistic in our approach to sentencing. The public interest requires that offences which strike at our economic well-being should be vigorously dealt with and for

these reasons I do not think that the appellant has been unduly punished. He has in fact got his just deserts.” (3) Appeal dismissed.

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320. Chono v. Gulaniwa (PC) Civ. App. 224-M-70; 19/7/71; El-Kindy J.

The respondent sued the appellant in the primary court to recover 8 goats, a bicycle and 5 tins of maize he had given the latter under and out of court settlement. The fact out of which the case arose are as follows; the appellant's paternal uncle (Baba Mkubwa⁰ was married to Wande who lived in the homestead with the appellant and her husband. In December 1968, Wande's husband went to Kahama for some business and she was left under the charge of the appellant who, at her request, permitted her to visit her parents. During this visit, he father (Ibele) found her in circumstances which suggested that she had committed adultery with the respondent. The respondent and Wande were taken tot eh cell leader of the respondent where they spent the rest of the night. On the following morning the elders gathered and the appellant was sent for. Wande confessed to committing adultery with the respondent who agreed to pay compensation to the appellant for the alleged matrimonial offence. The amount agreed upon was ten heads of cattle. Such being the case the appellant agreed not to sue the respondent in a court of law and the latter made some advance payments. These he sought to recover in the action. His claim was dismissed by the primary court magistrate who refused to follow the assessors whose view was that the properties were obtained illegally and therefore they should be returned to the respondent. On appeal to the District Court the respondent was successful, the District magistrate holding that a father could not “surprise his daughter to amount to adultery” contrary to Para 111 of G. N. 273/1963. The appellant appealed to the High Court.

Held: (1) "The assessors' view was mistaken here was nothing illegal about arbitration or reconciliation proceedings as the law did not prevent them. Such process of dispute settlement has always been known under customary law. This process has now been given legal form the by the amendment to the Magistrates Courts Act, 1963 Cap. 573 by way of amendment when a new section 15A was introduced into the main act by the Magistrates Courts (Amendment) Act, 1969, Act No. 18 of 1969. The trial magistrate was, therefore, right in declining to follow the unanimous opinion of the gentlemen assessors who apparently misdirected themselves on the legal position regarding arbitration This decision was delivered before the majority vote rule came into effect by the amendment of section 8 of the Magistrate's Courts act, Cap. 537 as amended by section 2 of the Magistrates Courts (Amendment) Act, 1969 above quoted." (2) "I would now dispose of the allegation that Wande's father, Ibele, could not "surprise" his own daughter in the act of adultery as Rule 111 of G. N. 279/63 did not permit this. This rule reads:-

"111. if the husband is absent any of his close male relatives has authority of surprising the wife, and if the husband has no male relative the man whom he has appointed

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A guardian of his wife before his journey has the authority. These have authority to claim authority. These have authority to claim damages on behalf of the absent."

The Swahili version of the Rule reads:-

"Kama mume hayupo nduguye wa kiume aliye karibu anaweza kumfumania yule mke, na kama mume hana ndugu wa kiume basi yule mtu aliyemchagua kumtunza mkewe kabla ya kuondoka ndiye

mwenye mamlaka. Hao wenye mamlaka wanayo haki ya kudai fidia badala ya mume ambaye hayupo.”

The issue then is whether the learned appellate magistrate was correct in holding as he did in respect of Ibele, who was the principal witness in this suit. Before I come to this consideration, it is noted that normally it is the husband who is to “surprise” his wife as it can be seen from Rule 110 of the same rules. It is only when he is not present that the persons described in Rule 111 would be entitled to act. There is no doubt that the appellant was a competent person to bring this suit, as he was then the guardian of Wande, and this was not a matter of dispute. But the learned appellate magistrate’s finding that Ibele could not surprise his daughter, as he was not one of the persons indicated in Rule 111, raises the question of whether the learned trial magistrate, properly and correctly, appreciated the meaning of “has authority of surprising the wife,..... or in its Swahili form “anaweza kumfumania yule mke,” The Rule is not without its difficulty as it is open to a number of interpretations as the language used is legally unknown. However, this is not a sufficient reason for not attempting a definition as that would amount to avoid the duty of the court. It seems to me that the phrase, above-quoted, has a technical meaning. It does not just mean seeing or finding the wife in the act of adultery with another man. In my view, it is part of its meaning that it refers to the right of action as well. In other words, the right of action for adultery lies with the persons named in Rules 110 and 11. Such persons could also have been the people who found the wife in the act of adultery or be in the position of the appellant. In this sense, therefore, Ibele who was not a guardian could not bring the charge of adultery against his daughter or the respondent. If the learned appellate magistrate meant this, then he was right in this decision as the right of action is clearly not that of Ibele. But Ibele was a witness to an incident and it cannot be said that he was not entitled to see his daughter in the act of adultery. Like any other person, he was a witness

and therefore he was entitled to bring it to the notice of the elders and the appellant as he did although it was a matter of shame that his daughter was doing what she was not supposed to do as a married woman, and subsequently to give evidence. In my view, his evidence cannot be excluded just for this reason and therefore it was properly before the court.” (3) Appeal allowed and the primary Court’s judgment restored.

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321. Nija v. Mary s/o Mathias (PC) Civ. App. 188-M-1970; 29/7/71; Jonathan J. The case involved an issue of paternity of a child born to the respondent while she lived in concubinage with the appellant prior to their marriage under customary law. There was evidence that conception took place before the appellant started living with the respondent but at a time when the respondent used to visit her at her father’s house. She claimed that she was impregnated by a man named James before she came to live with the appellant. The primary court disbelieved her evidence and found that he appellant was the father of the child. However, the district magistrate held, on appeal, that the lower court had misdirected itself on the law applicable in the situation and he allowed the appeal on the basis of the application of section 184 of the Local Customary Law (Declaration) Order which he contended should have been applied. The section states that “if a woman had more than one lover at the time of conception, the one whom she names may not deny paternity of the child.”

Held: (1) “I think the section has been misunderstood. It covers a situation where reputability for pregnancy is denied by the person cited, on the ground that, at the time of conception the woman had had sexual intercourse with other men. In the case under consideration, there was no one named. On the contrary, the appellant sought to be declared the father of the girl while the respondent claimed that the child was fathered by James. It could be regarded as a dispute between the appellant and

James as to paternity of the child. That being so, section 184 does not come into play.” (2) “Section 188 would have been relevant The section provides to the effect that a presumption is created that the child born in concubinage is fathered by the man living with the child’s mother at the time of delivery. In the present case, it was established that the girl was born while her mother was established that the girl was born while her mother was living with the appellant who must be presumed to be her father. This, of course, is a rebuttable presumption.” (3) Appeal allowed

322. Thanki and Ors. v. New Palace Hotel (1964) Ltd., Civ. App. 16 of 1971, E. A. C. A. 22/7/71. Spry, V. P.

The respondent company made an application to the Rent Tribunal to determine the standard rent of a building operated as a hotel under the name “New Palace Hotel.” The Tribunal proceeded to assess the standard rent and the appellants appealed against the decision. At the hearing of the appeal, the learned judge raised on his own motion the question whether the Tribunal had jurisdiction to entertain the application, and decided that the matter was outside the ambit of the Act as the transaction constituted “a lease of a business or running concern as a whole” and not the premises. The Court of Appeal found that the contract was expressed to be for a

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Fixed term; there were inter alia, an option of renewal, a definition of the premises, an agreement to pay rent, a covenant for quiet enjoyment and other provisions usual in leases.

Held: (1) “Prima facie the contract between the parties is an agreement for a lease. We can find nothing in the evidence to show that it was not what it appears to be. We accept that the contract between the parties may have included elements going beyond the landlord and tenant

relationship, but that cannot take the tenancy outside the provisions of the Act. Such matters may be for consideration by the Tribunal under section 4(2) of the Act or they may only be enforceable, if at all, by the courts; those are not matters that concern us on this appeal.” (2) “We think, with great respect, that the learned judge erred in thinking that if the relationship between the parties went beyond that of landlord and tenant, the Act did not apply. If the relationship of landlord and tenant existed, we think the Tribunal had jurisdiction, and we have no doubt that that relationship existed, whether it was part of a wider one, as alleged, or whether the transaction was basically a lease with certain additional elements.” (3) Appeal is allowed And the proceedings are remitted to the High Court to hear and determine the appeal from the Tribunal.

323. Daniel v. Kanyok (PC) Civ. App. 80-A-70; 21/7/71; Kwikima Ag. J.

The appellant was the complainant in a criminal case in which the respondent was convicted but acquitted on appeal to the District Court. The Appellant had complained in the Criminal case that the respondent had destroyed his trees which marked the boundary between their adjoining pieces of land (vihamba). The appeal was allowed because the trees were found to be growing on land the title to which was a disputable matter. The appellant then commenced this action, seeking to recover damages for the destroyed trees, the expenses which he incurred in the conduct of the criminal case and the loss of business suffered in the same process. Out of the total sum of Shs. 3,000/- claimed, the Primary Court allowed the appellant Shs. 1,455/- being damages for “disturbance” in the conduct of the criminal case. The respondent appealed to the District Court which allowed the appeal because the learned magistrate found that the disputed piece of land belonged to the respondent. On appeal to the High Court;

Held: (1) “The record shows that the learned primary court magistrate who tried this case embarked on a judgment even before he

had sought and obtained the opinion of the assessors. This was contrary to the express provision of section 8 A. Cap. 537. It is a rule that should the magistrate choose to differ with the assessors, he must record his reasons in his judgment for doing so. (Shuma v. Kitaa) 1970 H. C. D. 241. He could not possibly do this without first seeking and recording the assessors' opinion and then writing his judgment and explaining why he disagreed or agreed with the assessors

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as the case may be. That it is incumbent upon the magistrate to record each assessors' opinion was laid down in Ralang Mumanyi v. Mambura Mwita 1969 H. C. D. 9 The observation in that case together with the necessity to seek and record the opinions of assessors before writing a judgment are provided for under section 8 a of the Magistrates' Courts act. Cap. 537 which reads as follows :) "[E]very such assessor shall be required. Before judgment to give his opinion as to all questions relating to customary law in issue, in or relevant to, the proceedings and the magistrate shall record the same." In the present case all the learned trial magistrate did was to record in the middle of his judgment that:- "The assessors are of the view that following Criminal Case No. 170/68 the plaintiff Daniel is entitled to Shs. 1, 455/- only." This procedure was o bad that it was capable of occasioning failure of justice." (2) "The District Court went completely off-tangent in determining the respondent's appeal against the Primary Court's decision and order. In his judgment the appeal magistrate confined himself to the issue whether the land belonged to appellant or the respondent. He resolved that the land on which the disputed trees grew was the respondent's and allowed his appeal. This decision was bad because it was based on an issue which was not before the court. The issues before the court were whether the claim was maintainable, whether damages sought were specified or general and if

specified whether they had been prayed according to law and finally whether the primary court had the jurisdiction to hear and determine the suit or not.” (3) [T]he claim was frivolous abinitio. A suit founded on the disturbance resulting from a criminal case is always brought by way of a claim for damages for malicious prosecution. In this case it was the appellant who did the prosecution by complaining against the respondent. If anyone was entitled to damages for being maliciously complained against in a criminal case, it was the respondent who was even remanded and fined before being acquitted on appeal. The appellant had nothing to claim from the respondent because any expenses he may have incurred in summoning witnesses were rightly chargeable against the public purse. They could not for this reason be held to be the responsibility of the respondent. It is not surprising therefore that the primary court dismissed that part of the claim touching witnesses’ expenses in the criminal case.” (4) “The primary court is not competent to determine this suit which was one for the tort of malicious prosecution. The civil jurisdiction of Primary Court is confined to:-“ (i) where the law applicable is customary law or Islamic Law (ii) for the recovery of civil debts, rent or interest due to the Republic, the Government or any Municipal, town or district council (iii) For the recovery of any civil debt arising out of contract if the value of the subject matter does not exceed one thousand shillings (Section 14 Magistrates’ Courts Act cap. 537.” It was under this very provision that Mustafa, J. (as he then was) held in the case of Walimu Jilala v. John Mongo, 1968 E. C. D. 81 an cattle trespass, a common law tort, was not triable by a primary court. By simple analogy I would hold malicious prosecution, another common law tort to be outside the pale of the primary court.” (5) “The appellant referred vaguely to the business

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he lost during the conduct of the criminal case as Shs. 2,379/00 without adducing evidence as to how specifically he arrived at that figure, the claim for loss of business earnings ought to have been proved strictly. Merely to allege a figure without supporting it by evidence as the appellant did cannot suffice. The appellant did not establish his claim even if his suit was held to be good and within the jurisdiction of the Primary Court.” (6) Appeal dismissed.

324. Taraiya v. Yusufu Taraiya (PC) Civ. App. 141-A-67; 16/7/71; Kwikima Ag. J.

The respondent sued the appellant for a declaration that he was the rightful owner of a disputed kihamba which he claimed was his share of their father’s land inherited at the latter’s death. He asserted that the appellant had sold the portion he inherited. The primary court dismissed the claim relying primarily on traditional evidence viz: (a) the place in dispute was the spot where the disputants’ parents lived and according to Chagga law it is the last born in the case the appellant that gets his parents’ home-stead. (b) It is customary that whenever there is a division of inheritance a boundary is marked by painting “Masale” (hedge) and there was no boundary marked out. The district court allowed the respondent’s appeal relying on evidence of a witness the primary court had seen and disbelieved.

Held: (1) “I cannot respectfully see how the appeal court could rely on evidence of witnesses it did not have an opportunity to see. It is trite law that the trial court’s finding on the credibility of witnesses cannot be faulted unless there is good reason. In the case of Lucas the appeal Court gave no reason why it believed him after the trial court had found him to be an unreliable witness. His evidence was not found to be “straight and with all qualities of trust” by the trial court and the appeal court could not just decide to believe him when it had had no opportunity to see him give evidence and measure his demeanour in order to assess his credit [sic.]

..... It is the law that an appeal court should not interfere with the trial court's findings of fact unless the inferences made from the recorded evidence are so unreasonable that non interference would result in the miscarriage of justice. In this case the appeal court gave no reasons for relying on Lucas evidence, which evidence the trial court, had already found to be worthless." (2) Appeal allowed.

325. Omari v. Omari (PC) Civ. App. 58-A-71; 10/8/71; Bramble J.

The appellant sued his elder brother in a primary court for a shamba and was successful but the decision was reversed by the district court. The parties had the same father but different mothers. The father bought the shamba in dispute and it was cultivated by the appellant's mother for some length of time. At the deceased's death there was still a balance owed on the purchase price of the disputed shamba and the respondent

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paid it off. The appellant's claim was based on the fact that his mother was in possession of the shamba. There was no evidence that it was not an outright gift to her, nor as to the length of time she had been cultivating it. The respondent's case was that as the eldest son he was the heir to his entire father's property and the payment of his father's debt over the shamba was evidence of his assuming this responsibility. The district magistrate sitting with assessors held that being the eldest son the respondent was entitled to the shamba. He therefore reversed the decision of the Primary Court. The appellant appealed.

Held: (1) "I see no reason to disagree with the district magistrate".
(2) "As a result I will dismiss the appeal."

326. Lweikiza v. Ndyema (PC) Civ. App. 101-M-70; 4/8/71; Kisanga Ag. J.

The respondent Feliciana originally sued the appellant and her (Feliciana's) sister jointly to redeem a clan shamba which her sister had sold to the appellant without her knowledge and consent contrary to Haya laws and customs. It was established that when she became aware of the disposition she promptly brought the action. The primary court disallowed the claim, but on appeal the district court reversed the decision of the lower court and made an order for redemption upon the refunding of the purchase price and upon paying compensation for improvements done to the land by the appellant. Dissatisfied with the decision the appellant appealed to the High Court. In his memorandum of appeal, he alleged that the respondent was not entitled to redeem the shamba because that shamba had been attached by a court order and that a proclamation of sale was duly issued when the respondent did not pay the debt. This allegation of attachment was not proved.

Held: (1) "The learned District Magistrate held that on redeeming the shamba the respondent should refund to the appellant Shs. 105/- being the purchase price and should also pay Shs. 650/- being compensation for improvements done to the shamba by the appellant..... (2) "I am of the view that the appellant should not be allowed to recover compensation in respect of improvements which he carried out after becoming aware that the title to the land was in dispute. I think that where, as in this case, a person carries out improvements to the land after he becomes aware that proceedings have been instituted to dispute the title to the land, then he carries out such improvements at his own risk and he must be deemed to be prepared to take the consequences following from the dispute." (3) (obiter) "Had the sale been concluded by an agent of the court, after the period specified in the proclamation for sale had duly expired, then the position might be quite different." (4) "Appeal dismissed the order of the District court for compensation in respect of improvements is therefore set aside The

respondent is entitled to redoom the suit shamba on refunding the purchase price only.”

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327. Alphonse v. Pastory (PC) Civ. App. 73-M-71; 4/8/71; El-Kindy J.

The respondent's shamba, the subject of dispute, was sold to a non-clan member in order to pay for the outstanding local taxes, which her father had not paid. The shamba was bought by one Rutarage. The appellant's father, her uncle, redeemed the clan shamba upon payment of Shs. 72/- to Rutarage. At the material time, the respondent was a minor. She subsequently entered into an agreement with the appellant's father to the effect that she would take possession of the shamba when she returned the Shs. 72/- he paid to redeem the property. On his death, the appellant inherited his father's property and he claimed that he was entitled to inherit the disputed shamba because his later father bought it from Rutarage. The trial court, and the appellate court, held that there was no evidence that the appellant's father bought this shamba outright as claimed by the appellant, and that the evidence established that he was in possession of the shamba in his capacity as a redeemer and that ownership therefore remained with the respondent's father or his successor, subject to repayment of the Shs. 72/- paid to redeem it. The court then gave possession of the shamba to the respondent upon payment of Shs. 72/-. On appeal to the High Court the appellant argued that the decision was misconceived as the shamba became the lawful property of his father on redemption and possession of it since 1938.

Held: (1) “I cannot agree to this, as the evidence does not support his contention of outright ownership. His father was in possession of the shamba because he was the one who redeemed it and no more. It was for this reason that his father agreed during his life time That the respondent should be allowed to take possession of the shamba. This was

a clear recognition on his part that the shamba was the property of the respondent's father although he was in possession of it. This also explained why the boundary between the disputed shamba and the appellant's father's shambas remained undisturbed until recently when the shamba had completely passed into his ownership, the boundary would have been removed according to custom." (2) The appeal is dismissed.

328. Thereza v. Odiro (PC) Civ. App. 174-M-1970; 25/9/71. Jonathan Ag. J.

The appellant and respondent were full sister and brother. On the death of their father the respondent took possession of his various landed properties including a shamba with a permanent house thereon. He gradually disposed of the properties piecemeal without the appellant's consent and without giving her part of the proceeds. She successfully filed an action for possession of the piece that remained. On appeal, the decision of the primary court was reversed, the learned magistrate holding that according to Kizinza customs, "a woman cannot inherit land if there is a male heir."

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Held: (1) "The rules of inheritance as contained in G. N. 436 of 1963 are, by G. N. 130 of 1964, made applicable to the district Council of Geita. It is clear from rule 13 that women cannot inherit clan land if there are male heirs. However, it is further provided that, they can receive such land in usufruct; they cannot sell it. The decision of the primary court can only be viewed in this light." (2) "The respondent had disposed of most of the land. At the time the appellant filed the suit he had not only evicted her from the remaining part but he was also bent upon selling it away, thereby depriving the appellant of a place to fall back to. I share the unanimous feeling of the primary court, which was supported by a number of

witnesses who testified before it, that the respondent should not be allowed to dispose of the remaining portion to the detriment of his sister. The appellant should have the exclusive use of the land during her life time, and thereafter, it should pass to whoever is entitled to inherit it as part of the estate of their deceased father.” (3) “The primary court decided that the house should be sold and the proceeds divided to the parties. I agree it should be shared. It is, however, to be hoped that efforts will not be spared to get the parties reconciled and that some settlement will be reached regarding the house so as to avoid its sale or demolition to effect sale, if such efforts fail it is directed that the house should be sold and the proceeds divided equally between the parties.” (4) Appeal allowed.

329. Mathew v. Paul (PC) Civ. App. 71-M-71; 2/8/71; El-Kindy Ag. J.

The appellant Simeon Mathew borrowed Shs. 400/- from the respondent and secured the loan with a cow. The agreement provided that if the appellant did not repay the loan by June 5, 1969, the respondent would take the security which was then in the hands of one Mataboro. Before redemption was affected, the cow gave birth to a calf, the ownership of which is in dispute. The appellant's argued that the agreement was not one of pledging a cow but of mortgaging it. He further suggested that had it been a pledge the respondent would have taken possession of the cow. Neither the trial nor appellate court was satisfied with the distinction drawn. They both held that the transaction was a pledge and the offspring belonged to the respondent according to Haya customary law. The respondent appealed.

Held: (1) “It does not appear that Haya customary law knew of legal concepts of mortgages as it can be seen from reading of CORY & HARTNOLL, Haya Customary Law. The concept which is known is that of pledging property and for the purposes of this appeal, paragraphs 1196 to 1208 of CORY & HORTNOLL, are, in general, applicable and, in

particular, paragraph 1201 which states that all calves of the pledged cow are the property of the creditor. The cow which was secured in this suit produced a calf and as this was a customary agreement it was not unreasonable to hold that the appellant pledged his cow. I do not think the fact that the cow was left in the charge of the herdsman Mataboro did, in any way, affect the nature of the agreement.

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I am satisfied that the appellate court's judgment was sound on the facts and the law. (2) "This appeal has been lodged without sufficient cause for complaint and it is accordingly dismissed."

330. Axwesso v. Martin (PC) Civ. Rev. 3-A-71; 12/8/71; Bramble J.

The District Magistrate to whom an appeal was brought adjourned the action for judgment. Instead of delivering the judgment he made an order for a de novo trial because in his words "persistent thoughts have kept haunting me by reason of the inescapable fact that one of the parties to the disputed shamba was a magistrate." He then expressed fear that the proceedings were "tilted" somewhat in favour of the magistrate. At the hearing of the appeal none of these points were raised by any of the parties.

Held: (1) "The power to quash proceedings and order a de novo trial must be exercised judicially and this is done for example, where on facts disclosed in the proceeding the trial was a nullity or irregular. A magistrate cannot act on a mere feeling not supported by evidence and there has been nothing shown on the record to justify the order." (2) "Even [if] the parties consented, the District Court has no power in its appellate jurisdiction to transfer a matter from a primary court to a district court. Section 41 of the magistrates courts Act defines the powers of transfer and it reads: - "41 (1) where any proceeding has been instituted in a

primary court, it shall be lawful at any time before judgment for (a)
(b) the district court or a court of a resident magistrate within any part of the local jurisdiction of which the primary court is established, to order the transfer of the proceedings to itself or to some other magistrate's court in any case where:- (11) there is reasonable cause to believe there would be failure of justice were the proceedings to be heard in the primary court. Provided that nothing in this subsection shall authorize (a) the transfer by a magistrate's court of any proceeding which is required by law to be commenced in a primary court except to some other primary court." (3) "[J]udgment had been already given so there could be no question of a transfer. Further the matter involved customary law and could only be determined in a primary court." (4) "The district magistrate should deliver judgment on the merits of the appeal.

331. Loijurusi v. Ndiinga (PC) Civ. App. 1-A-71; 14/8/71. Kwikima, Ag. J.

The appellant was the respondent's brother in law. Before marrying the respondent's sister the appellant spent six years working for her father in accordance with spent six years working for her father in accordance with Masai custom. The wife was given to him in consideration of his service to he father. According to Masai custom the appellant was obligated to pay a female calf for the first year of service, a male calf on the next year and so on. Alternatively he could opt to marry

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his master's daughter by paying in addition four heads of cattle, four tins of honey and other incidental gifts, snuff, clothes etc. if he so wished.

It was established at the hearing that the appellant did not make such payments due to the untimely death of his father in law. He and his wife lived as husband and wife for six years after the death of her father.

He brother then took her and the children away in order to exact payment of bride price from her husband. Judgment was given in favour of the appellant on the advice of the assessors. On appeal this was reversed on the ground that the appellant had not paid the required bride price in accordance with the proven Masai custom.

Held: (1) "With great respect to the learned District Magistrate, the problem was dealt with in too summary manner to satisfy the cause of justice. In this case he was dealing with the welfare of the appellant, his wife and their offspring. The spouses had cohabited in harmony for six years. Providence had graced them with the offspring. So closely knit was the life and the future of their offspring that no one, not even the wife's brother, had business to interfere with the settled life together. It is against public policy to interfere with the family which is the fabric of the entire society and Courts of Law all over the world are much loathed to allow such interference. The Anglo Saxon Common Law, to which our Legal System is heavily indebted, accords particular regard to the sanctity of marriage. On that principle this court has held that even under customary aw, prolonged cohabitation raises a presumption of marriage unless there are circumstances indicating the contrary (Fatuma Amani vs. Rashidi Athumani, 1967 H. C. D. 173). There is another common law rule which stipulates that a subsisting marriage which has endured for sometime cannot be declared null or void simply because it was not properly celebrated. The payment of bride price is only one of the conditions of the celebration on a marriage. Non payment of bride price cannot be fatal to a long enduring marriage. And any arrears thereof ca be recovered by way of a civil suit and not by the withdraw of the bride. If there is any tribe with such custom, it is time our courts put a stop to such custom. Indeed the recent law of marriage has expressly laid down that non-payment of bride price cannot be fatal to the marriage. In this case there was no evidence of any Masai custom to support the respondent's highhandedness. His

action was clearly inequitable and contrary to public policy.” (2) Appeal allowed.

332. Regena v. Mohamed (PC) Civ. App. 107-D-71; Aug. 1971; Mwakasendo, Ag. J.

The appellant claimed damages from the respondent for destroying crops she planted on land she alleged was allocated to her by one Omari Athumani. Both the primary and district magistrate courts found that the land allocated to the appellant was not the disputed land and that the appellant had trespassed on the respondent's land. They, therefore, concluded that she was not entitled to

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compensation for the crops destroyed by the respondent.

Held: (1) “Now while in principle it is true that a person who trespasses on another man's land does so at his own risk. I do not think this rule can be used as a vehicle of oppression or of willfully injuring another person. Before an occupier can take advantage of the operation of the rule he must have demonstrated by word or action that he disapproved of the trespasser's intrusion into his land. There must be an open protest and disapproval of the trespasser's actions before the occupier of the land can deprive the trespasser of his entitlement to compensation for improvements carried out on the land. This was clearly the view held by the Central Court of Appeal in Mtumbo d/o Sekwande v. Maina-Hela d/o Semkini, Appeal No. 5 of 1955, where the Court said:- “A person who cultivates another person's land after having been refused permission by the latter to use the land does so at his own risk. If the lawful occupier subsequently discovers the action of the trespasser, such trespasser can have no claim to the crops which he has planted or other unexhausted improvements which he has effected on that land.” With

respect, the principle onunciated here is sound and, in my judgment, a correct view of the law. And applying this principle to the facts of the present case there can be little doubt that the appellant was entitled to some compensation for the crops she had planted on the land in dispute. On the evidence on record it is not in dispute that the respondent did not at any time protest against the appellant cultivating and planting on his land. Although he could have stopped her cultivating the piece of land in question he did not do anything about it until very late, when the appellant was about to harvest her crops. Would such a person who has clearly acquiesced in the trespass be justified in willfully destroying the trespasser's crops? I do not think he should be allowed to do so. If he does as the respondent did in the instant case, he shall in equity be made to compensate the injured party for the damage caused. Denying the appellant her rightful entitlement to compensation would in my view amount to countenancing the respondent's reprehensible and destructive acts. This court cannot and will not countenance any such conduct on the part of the respondent (2)Appeal dismissed.

333. Medadi v. Nawe (PC) Civ. App. 46-A-69; 18/8/71; Bramble J.

The respondent claimed a piece of land in the primary court. He asserted that the land was part of a shamba allocated to him by the appropriate land allocating body in 1959, but that he had not yet cultivated the disputed part. The appellant's case was that the area in dispute was allocated to him by the Assistant District Executive Officer in 1965 in the presence of elders. His evidence was corroborated by witnesses and judgment was given in his favour by the primary court magistrate who agreed with one of the assessors that because the land was allocated to the appellant by the proper authority he should remain in possession. This decision was reversed on appeal to the District Court on the ground of first allocation.

Held: (1) "The District Magistrate found that the land was first allocated to the respondent and nothing was shown why it should have been taken away from him. It could not be taken away from him without a reason. I am in full agreement with this view." (2) I find n merit in the appeal and dismiss it.

334. Edward and Ors. v. Shah Civ. Case 6-A-70; 20/8/71; Bramble J.

By a lease dated the 31st December, 1968, the defendant let to the plaintiffs certain premises for a term of three years at a monthly rental of Shs. 800/-. There was the usual lessor's covenant for quiet and peaceful enjoyment. The demised premises were part of a large building. The defendant later contracted to sell the whole building to Moshi and District Consumers Cooperative Society Limited and on the 23rd April, 1969, served upon the plaintiff notice to quit the premises on 31st May, 1969. Sometime after the receipt of the notice, the plaintiff vacated the premises. The plaintiff sued the defendant for damages claiming that by issuing the notice to quit and selling the premises he defendant had frustrated the performance of the contract. In support of this contention he cited Cort v. Ambergate Rly. Co. (1851) 17 Q. B. 127; and O' neil v. Armstrong (1895 2 Q. B. 418.

Held: (1) "The lease, which was put in evidence as Exhibit 1, fixed a term certain of three years provided the lessors fulfilled certain covenants. The notice to quit did not say that the plaintiff were in breach of any of the covenants. There was no provision in the lease for such notice. The position would be that the plaintiffs should have ignored the notice. Even though the notice was served there was no physical interference with the plaintiff's possession and the defendant still continued to perform his part of the bargain." (2) "In Cort v. Amergate Railway Company the plaintiff contracted with the defendant Company to supply them with

3,900 tons of railway chairs at a certain price to be delivered in certain quantities at specified dates. After a certain amount was delivered the Company directed the plaintiff to deliver no more, as they would not be wanted. The plaintiff succeeded in a action for breach of contract claiming that he was ready and willing to perform his part and the defendant was unwilling to accept his performance. Another case quoted was O'Neil v. Armstrong in which the plaintiff, a British subject, was engaged by the captain of a warship owned by the Japanese Government; the Japanese Government declared war with China and in the course of the voyage the plaintiff was informed that a performance of the contract would expose him to penalties under the Foreign Enlistment Act. He left the ship and successfully sued for the agreed wages on the ground that the defendant's principals had made the performance of the contract legally impossible. In the 21st Edition of Anson's Law of Contract page 415 it is stated that: - 'If during the performance of a contract one of the parties by word or act definitely

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Refuses to continue to perform his contract in some essential respect, the other party is forthwith exonerated from any further, performance of his promise and is at once entitled to bring his action.' At its highest the service of the notice was an expression of a desire to bring the contract to an end. The defendant still performed the contract in its essential terms in that the plaintiff remained in possession. I cannot hold that service of the notice gave a right of action to the plaintiffs." (3) "It was argued that the sale of the premises and the promise of vacant possession made it impossible for the defendant to fulfill the contract. There was no proof of any physical interference with the plaintiff's possession and it is trite law that the right and obligations of the defendant passed to his successor in

title. By the sale of the premises the Co-operative Society stepped into the defendant's shoes and all the rights of the plaintiff were protected. This was a contract in which the rights were attached to the land and moved with the land. There was no case of the defendant's making performance impossible." (4) Judgment entered for the defendant.

335. Hirji A. P. and Co. Panjwani, Civ. App. 25-D-71; 26/8/71; Law and Mustafa JJ. A., Spry V. P.

This is an appeal from the judgment of the High Court, reported at (1971) H. C. D. 177 on a procedural point. The appellant attacked the ruling of the trial court that a claim for damages was maintainable in respect of anticipated losses to the respondent. The respondent had bought a number of soap boxes bearing the trade mark "Simba" from the appellant. The trade mark turned out to be that of a third party and not that of the appellant vendor. The argument of the appellant was that the respondent had not suffered actual loss and therefore the claim was premature. He further submitted that the respondent had no cause of action as the agreement between them contained an indemnity clause to the effect that the "vendor undertakes to repay the purchaser any sums he might be called upon to pay on account of the use of the boxes." The respondent sought to tender evidence to prove that the trade mark on the boxes was owned by a third party and that he would be in danger of being sued were he to use them.

Held: (Law J. A.) (1) "I do not see how we can take notice of such matters without amendment of the plaint. Preliminary points of law are argued on the basis that the facts pleaded are correct, see the observations by Sir Charles Newbold in Mukisa Biscuit. Co. v. West End Distributors (1969) E. A. 696 at 701. There is nothing in the plaint to indicate that any third party is the owner of the trade mark "Simba or that the respondent will be at risk if he uses the boxes. If he does use the boxes, and becomes liable in damages to a third party thereby, he has his

remedy under clause 5 of the agreement and can join the appellant as a party to any suit against him or otherwise claim to be indemnified. If he decides

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not to use the boxes, there is nothing pleaded to justify a claim for damages against the appellant in respect of that no-user. The situation which may arise in this case is expressly dealt with by the contract between the parties, and a court will not readily imply any provisions into a contract beyond those stipulated by the parties." (2) Appeal allowed.

336. Kanji Patel v. Kabui Njoroge, Civ. App. 19 of 1971; E. A. C. A. 19/8/71; Spry V. P., Lutta and Mustafa JJ. A.

The plaintiff brought an action to recover the amount of three dishonored promissory notes. The defence was that the defendant had been induced by fraud to draw the notes. The fraud alleged in the defence was that at the time when the promissory notes were drawn the plaintiff represented to the defendant that a sum of Shs. 22, 635/- was due by the Defendant to a third party when in fact only a sum of Shs. 14,400/- was due. The trial Court on inconclusive evidence found for the defendant and dismissed the action.

Held: (Spry V. P.) (1) "The learned judge directed himself correctly that the burden of proof was on the respondent but, with respect, he seriously misdirected himself when he went on to say that in view of the allegations of fraud, the standard of proof was "slightly" higher than in ordinary civil cases. In fact, the standard is very much higher (see Henry H. Ilanga v. Manyema Manyoka [1961] E. A. 705; United Africa Press Ltd. v. Shah [1964 E. A. 336]). In my opinion, the standard of proof required where there is an allegation of deliberate, calculated fraud, is not very far

short of that required in criminal proceedings of a like nature.” (2) Appeal allowed.

337. Nyale v. Chezi and One Other, Civ. App. 8 of 1971, E. A. C. A. 18/8/1971; Spry, V. P., Duffs P. and Lutta, J. A.

The first respondent, a minor, sued through his father and next friend, sued the driver and the owner of a bus, registration number KAY 453, claiming damages for personal injuries. The appellants joined the owner of another bus, KAU 648, by a third party notice. The facts are that the respondent was a passenger in KAU 648. The bus stopped and the respondent descended and was struck by KAY 453. This bus had been traveling behind KAU 648. The judge found that the driver of both buses were negligent and he apportioned liability as between the appellants and third party in the ratio of 85 to 15. He awarded damages of £ 4,677 against the appellants jointly and severally, with the third party's liability for contribution £ 701. 10. 6. Against this decision the appellants appealed claiming that the third party should have been held solely liable or at least liable to a considerably greater extent and asked for the consequential revision of the award. The third party cross-appealed, claiming that the appellants should have been held solely liable. Both the appeal and the cross-appeal

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Contain allegations that the award of damages was grossly excessive. After reviewing the evidence, the Court of Appeal found that the driver of KAU 648 was not negligent. On the issue of quantum of damages:

Held: (Spry V. P.) (1) “The real question is whether the overall award of over £ 4, 000 is excessive. The plaintiff was a girl between 17 and 18 years of age at the time of the accident. She lived in fairly humble circumstances, helping to cultivate her father's shamba,

fetching wood and water, tending the cattle, cooking and performing other domestic work. She was engaged to be married, but following the accident the engagement was broken off. The dowry had been agreed at seven goats and twenty head of cattle. Of these, only the goats had been delivered and they have been returned. The surgeon testified that he plaintiff must have suffered severe pain and I do not think anyone could doubt that. Her matrimonial prospects re reduced, since she will be unable to perform many of the tasks expected of a wife in her sphere of society. I am not aware of any East African case sufficiently similar to afford any real assistance. In my view, the damages were so excessive as to justify interference. I should have thought a total award of Shs. 50,000 would have been ample recompense, so far as money can compensate for such an injury.” (2) “The other members of the court consider that interference would not be justified. It is only wit reluctance that we interfere with the quantum of awards made by trial judges, and in the circumstances I shall not dissent. I agree with the proposed order.” (3) Appeal dismissed.

338. Auto Garage Ltd Ords v. Motokov., Civ. App. 22-D-71; E. A. C. A. 9/9/71; Spry, V. P., Law and Mustafa, JJ. A.

The proceedings arose out of a contract between Motokov, a body incorporated in Czechoslovakia and the 1st. appellant, Auto Garage Ltd., a company incorporated in Tanzania, for the supply of motor vehicles. Motokov drew some 35 bills of exchange in Czechoslovakia on auto Garage Ltd., in favour of Statni banka ceskoslovenska a parastatal bank, or order. These were accepted by auto Garage Ltd. and endorsed by way of guarantee by the 2nd and 3rd. appellants. Statni banka indorsed them over to the National and Grindlays Bank Ltd., Dar es Salaam, for collection but they were dishonoured on presentation. Motokov filed a claim in the High Court for the amount of the bills, interest, charges and costs. The statement of defence contained, inter alia, an express averment that “the plaintiff is not entitled to bring the action as they are not the holders in due

course of the bills". Eventually after various interlocutory proceedings the plaintiff (respondent) applied for leave to amend the plaint in order to insert as an alternative in the pleading "a claim for the price of goods sold and delivered, with interest and expenses". The appellant raised two fundamental issues: (1) if the plaint disclosed no cause of action under Order VII, rule II,

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it could not be amended: (2) in the alternative, if there was power to amend, as the exercise of the power would allow a new cause of action after the expiration of the period of limitation, it ought not to be allowed. The trial Judge decided issue No. 1 in the affirmative but proceeding to allow the amendment.

Held: (Spry V. P.): (1) "Order VII rule II, so far as it is relevant to these proceedings, it reads as follows – 'II. The plaint shall be rejected in the following cases: - (a) where it does not disclose a cause of action...' The provision that a plaint "shall" be rejected appears to be mandatory and it was held to be so by this Court in Hasmani v. National Bank of India Ltd. (1937) 4 E. A. C. A. 55. This decision was expressly upheld in Price v. Kelsall [1957] E. A. 752 at page 763 and the same conclusion was reached, without reference to the earlier authorities, in Sullivan v. Alimohamed Osman [1959] E. A. 239 at page 243." (2) "The meaning of the words 'disclose a cause of action' were first considered in Corbellini v. Twentsche Overseas Trading Co. Ltd. (1933) 1 T. L. R. (R) 483, when in a very short judgment, Sir Joseph Sheridan, C. J., after referring to the failure of the plaintiff to plead a certain material fact, said – "in the absence of the essential pleading to which I have referred, there is no cause of action." This decision was referred to with approval in Hasmani's case. This was a suit on a dishonoured bill of exchange but the plaint filed to aver notice of dishonour." (3) "On the next question, whether

a plaintiff which does not disclose a cause of action can be amended, Sir Joseph Sheridan in Corbellini's case said – “there is no cause of action and nothing to amend.” This was quoted with approval by Wilson, J. in Hasmani's case, while Law, C. J. said that the terms of Order VII, rule II (a) – ‘do not give a Court any discretion to allow an amendment.’” His Lordship then went on to state that the cases cited above “is the main stream of authorities, but there are two apparently diverging side streams” these are central District Maize Millers Assc. V. Maciel & Co. Ltd. (1944) 6 U. L. R. 130 and Gupta v. Bhamra [1965] E. A. 439. He submitted that those decisions “were mistaken”. Lake Motors Ltd. v. Overseas Motor Transport (T) Ltd. [1959] E. A. 603 and Amin El critical Services v. Ashok Theatres Ltd. [1960] E. A. 298 are distinguishable. He concluded: “I respectfully agree, also with the judgment of Sir Joseph Sherdan in Corbellini's case. What he was saying was, in effect, that where a plaintiff fails to disclose a cause of action, it is not a plaintiff at all and you cannot amend a nullity. That must, in my view, be correct.” (4) “There is a long line of East African cases to the effect that discretionary powers should not be exercised so as to defeat limitation. This has arisen particularly in relation to the exercise of the inherent powers of the court (Mehta v. Shah [1965] E. A. 321; Adonia v. Mutekanga [1970] E. A. 429) but I think exactly the same principles apply whenever the court has a judicial discretion. As I understand the position, there is no absolute rule preventing the exercise of a discretionary power so as to defeat limitation, but his

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will be done only in exceptional circumstances.” (5) Appeal allowed, Law J. A., concurred. Mustafa J. A. would allow the amendment and dissented from the decision to allow the appeal.

339. EMCO Plastica International Ltd. v. Sydney Lawrence Freeberne, Civ. App. 5 of 1971, E. A. C. A.; 19/8/71; Lutta, Law and Mustafa JJ. A.

The respondent was appointed secretary of the appellant company at the first meeting of the company. At that meeting Mr. Dhanani was appointed Chairman of the Board of Directors. The latter performed the functions of Managing Director. He entered into a service contract with the respondent under which he was given a salary of £ 3,000 per annum, annual passages for himself and family and other generous terms and allowances. The contract was to last for a minimum period of 5 years with a proviso that either party may terminate it by giving 12 month's notice in writing. The respondent's contract was terminated prematurely without notice of termination as is required in the agreement. He sued for damages for breach of contract. It was argued on behalf of the appellant company that Mr. Dhanani did not have the authority to make an offer on behalf of the appellant company in terms of the contract and that the contract was so unusually generous as to require the approval of the Board of Directors. The learned judge held that Mr. Dhanani was the Managing director and therefore had power to enter into the contract on behalf of the company. He awarded the respondent damages.

Held: Lutta j. A.: (1) "It seems to me that the question to be determined here is whether Mr. Dhanani had actual or ostensible authority to enter into the contract with the respondent and on behalf of the appellant company." "In my view the learned judge's decision, on the facts of this case, was correct. Several acts of Mr. Dhanani suggest that the appellant company knew of Mr. Dhanani holding himself out as acting on the appellant company's behalf thus impliedly representing that he had authority to do so. He was appointed Chairman of the appellant company on 1st October, 1965; someone had to represent the appellant company in the conduct of its business, particularly at the initial period, and such person must surely have authority to bind the appellant company. Thus a third party dealing with the appellant company was entitled to assume that

there was authority on the part of that person to bind the company. The question as to whether or not the Articles of association or a resolution of the board empowered the Chairman or any other director to enter into a contract bind in the appellant company was not a matter into which the third party should have inquired as long as he acted on a representation that the Chairman or director has authority to bind the appellant company.”

(2) “The appellant company cannot repudiate the actions of the Chairman/director done within the scope of his ostensible authority.” (3) Appeal dismissed. Law and Mustafa JJ. A. concurring.

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340. Reid v. The National Bank of Commerce Civ. App. 28-D-71; E. A. C. A. 9/9/71; Law, Mustafa JJ. A. and Spry V. P.

The appellant, one of the directors of Imara Plywood Ltd. executed, along with others, a personal guarantee guaranteeing payment of the company’s debt from time to time up to a maximum of Shs. 460,000/-, to the National & Grindlays Bank. By virtue of the National Bank of Commerce (Establishment and Vesting of Assets and Liabilities) Act, 1967, all the assets and liabilities of the Grindlays Bank were vested in the National Bank of Commerce, the respondent. In 196 the company negotiated with the TDF Co. Ltd. (Finance Company) a loan of Shs. 900,000 which was paid to the credit of the company’s account with Grindlays Bank. On September 1, 1966, the appellant wrote to Grindlays Bank pointing out that as the company had arranged to obtain finance elsewhere and that as he was not in favour of the arrangement he had resigned his directorship. He concluded “I take it that the securities held by the Bank will be discharged and shall be obliged if you will confirm that the Guarantee given by me to the Bank has been released.” The Bank replied that they were unable to release the appellant from his personal guarantee

until the company repays its indebtedness to the Bank or until adequate alternative security is furnished. The latter concluded “we will advise you’re as soon as this has been done”. The security to which the appellant referred to in his letter was a mortgage over the company’s right of occupancy.

It was established that a second mortgage over the same property was given to the Finance Company as security for its loan to the company. Following nationalization the National Bank of Commerce as successor to Grindlays Bank waived its priority thus transforming its first mortgage into a second mortgage and giving the priority to the Finance Company which thereby assumed the status of a first mortgagee. The appellant was sued on the guarantee and judgment was given in favour of the respondent Bank.

Held: (1) “The Company’s overdraft facilities were limited to a maximum of Shs. 460,000. Grindlays Bank’s mortgage was expressed to secure a sum of Shs. 250,000. The guarantors’ liability under the guarantee was limited to Shs. 460,000..... The Finance Company paid Shs. 100,000 to the credit of the company, for which it is sought to make the appellant liable, arose “subsequent to 1st February, 1967”. In other words, on the 1st February, 1967 The company’s indebtedness to Grindlays Bank was nil. In my opinion, the appellant was at that moment entitled to be discharged from his liability under the guarantee, in terms of the letter [of the Bank]. (2) “It is unfortunate that the case of Harilal & Co. v. The Standard Bank Ltd. [1967]. E. A. 512, was not cited in the court below, and in particular the following passage from the judgment of Sir Charles Newbold, P. at page 520 – “I do not accept the submission that those words would entitle the bank to change the whole nature of the account which the guarantor guaranteed and nevertheless impose

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upon the guarantor a liability arising in circumstances different from those which were in the contemplation of the parties at the time the guarantee was given.” These words seem to me apposite to the instant appeal. When the appellant and his co-directors signed the guarantee, the nature of the transaction envisaged was that Grindlays Bank should have a mortgage over the company’s land and factory as a primary security, supported by the directors’ personal guarantees as a secondary security. By postponing its mortgage, without reference to the appellant, the whole nature of the transaction was changed. The guarantee, from being a secondary security, became the principal security for the company’s indebtedness. This was never in the appellant’s contemplation when he gave his personal guarantee, and I do not consider that in these completely altered circumstances he can be held to his guarantee.” (3) Appeal allowed *Spry V. P.* concurred with the first ground for allowing the appeal and he held that it is not strictly necessary to deal with the other main issue, that is, whether the appellant was discharged from his guarantee by the action of the respondent in agreeing to postpone its mortgage to that of the Finance Company. Mustafa J. A. dissented and would dismiss the appeal.

341. Abbi v. Matle (PC) Civ. App. 24-A-71; 1/9/71; Kwikima Ag. J.

The appellant, a Somali, sued the respondent for the recovery of a piece of land allocated to him by the Divisional Executive Officer (Gidamboru) in March, 1965. The respondent asserted title to the land through allocation by the VDC in October of the same year. He sought to impeach the prior allocation on the ground that the appellant is a Somali and land could not be allocated to a Somali under customary law. At the trial the D. E. O. gave evidence that his power of allocation sprung from an authority given by the Executive Officer of Mbulu District council. The authority was not produced though the reference number and date were specified. The trial

court found for the respondent on the ground that as there was no law regulating the allocation of land, the power was in the VDC not in the DEO. The decision was affirmed by the District court. In the High Court the appellant sought to tender the authority given to the D. E. O. by the Executive Officer, in evidence but the respondent objected to this on the ground that the document was additional evidence which was not produced in the primary or district courts.

Held: (1) "The admission of additional evidence has always exercised the minds of the courts as the authorities show. I propose to review a few of them in order to determine firstly whether this very important document is additional evidence and secondly whether it can now be taken into consideration at this stage. What has always been rejected is the practice of taking additional evidence on appeal from witnesses who were not called at the trial because if allowed, such practice would make litigation endless (*Bukende Fufula v. Mswanzi*. Fufula H. C. D. 1970). But even then authorities seem to suggest that

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under section 17(a) of the Magistrate's Courts Act. Cap. 537, witnesses may be heard on appeal "to clear up any point" provided the appeal magistrate records his reasons for taking such evidence (*Michael Kombere vs. Kone Paroli*, 1970 H. C. D. 115) The Fufula case (supra) seems to suggest further that this court could not interfere where additional evidence was taken without regarding any reasons for its admission if it is felt that reasons existed for such course of action to be taken even if they were not recorded. Indeed in *Dausen F. Swawe v. Oforo Semu Swai*, 1967 H. C. D. 429 additional evidence taken by the appeal magistrate brought out the fact that the clan to which parties belonged had sat subsequent to the trial and rejected appellant's claim

was accepted by this court, Platt J. (as he then) was holding: - "The Court expressed doubt as to whether he receiving of additional evidence by the District Court was merited. However the clan's decision seemed to have been correct, and the Court was entitled to accept the evidence in the circumstances." In the present case the Divisional Executive Officer Mr. Gidamboru told the trial court that he allocated the shamba, then a virgin piece of land, on 17/3/65 and subsequently informed the V. D. C. which was a committee made up of several members. Gidamboru was certain that the allocation was lawful because he was acting under the authority given to him through this document which allowed him unilaterally to allocate land. With respect to the respondent I do not think that this document is additional evidence as such since it has been in the picture all the time. It was identified and referred at the trial. Failure to produce it at the trial cannot make it additional evidence at this stage because the respondent has been aware of it all along. It is a pity that both courts below never found it fit to take the document into consideration. The appellant was not represented at any court and it cannot be held against him that he did not insist on its production at the trial or on the first appeal. I would therefore hold that document not to be additional evidence and take it into consideration." (2) "It is clear from the document before this court that Gidamboru was fully authorised to act the way he did. The trial court found no by-law in breach of which Gidamboru had acted. It was quite clear that the appellant claimed prior title to the disputed shamba and that the respondent was motivated by spite, envy and even racialism when he grabbed land allocated to and cleared by his neighbour. There was no requirement at the time of the allocation that the entire VDC should collectively allocate land. Gidamboru's failure to report to the VDC was not a violation of any existing by-law or instruction of the Executive officer. The instruction in force at the time reads: "With reference to this letter I would like to inform you that our by-law is approved, from now on land should not be dealt with by VDC but executive i. e. Assistant Divisional

Executive Officers and Executive Officer. Such lands which will be allocated by you should not be under leasehold (Letter No. MEC/I/16/153 of 27th May 1964).” This letter

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Expressly forbids allocation of land by the VDC. Following the trial Court’s own finding that land allocation was regulated by the directions of the Executive Officer, it would appear that it was the allocation by the VDC to the respondent which was unlawful or unauthorised. The express letter of instruction no. MDC/I/16/153 takes such authority from the VDC and confines it to officials like Gidamboru. For this reason alone the courts below ought to have found for the appellant.” (3) “This court has often deprecated the actions of the VDC’s in allocation (Lukas Masirori Kateti v. Oloo Sebege 1969 H. C. D. II) because such practice breeds discontent among the people whom the VDC is supposed to look after. It is particularly unfair to reallocate occupied land in the absence of the occupier. In this case the respondent was aware of the allocation to the appellant and his approach to the VDC behind the Appellant’s back must have been made in a very bad faith. He was seeking to exploit his neighbour who had spent his energy and resources to clear the land already allocated to him at the time the respondent chose to stir. This court is left in no doubt that the move the respondent took was taken because the appellant was a Somali and not a Mbulu or some other local tribesman. In rejecting he appellant’s claim the trial court was condoning and even encouraging racial considerations to influence above, it would be only just to allow this appeal and overrule the decision of both courts below.” (4) Appeal allowed and appellant is declared the lawful occupant of the disputed shamba.

342. Musa v. Hamisi (PC) Civ. App. 2-D-71; 7/9/71; Mnzavas J.

The respondent unsuccessfully sued the appellant in the primary court for compensation for adultery which he alleged that the appellant committed with his wife Mwavita. He appealed to the district court and was awarded Shs. 20/- as compensation. The respondent alleged in evidence that on December 16, 1969, he found a 10/- currency note with his wife who confessed that the money was given to her by the appellant in consideration of illicit intercourse which he had with her. One Abdullah gave evidence that the appellant gave him the 10/- for Mwavita which he subsequently gave to her. The primary court dismissed the claim on the ground that there was no direct evidence of the adultery. He, in support of his judgment, quoted sections 116 and 117 of Government Notice 279/1963. The learned District Magistrate reversed the decision on the grounds that there was enough circumstantial evidence.

Held: (1) "The confession by Mwavita is however, strictly speaking, only evidence against her and not against the appellant. To implicate the appellant with adultery, the wife's confession has to be corroborated by other independent evidence tending to show that her confession is true." (2) "There was, in my view, sufficient corroborative evidence in support of the wife's confession that the appellant had sexual intercourse with

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her. There is the Shs. 10/- note..... which note the wife said was given to her by the appellant for her services to him. There is the evidence of Omari Abdullah (P. W. 3) who told the court that he was given Shs. 10/- currency note by the appellant who asked him to take it to her and that he did give the money to her. What is more- I fail to see why Omari Abdullah, who, as the evidence shows, is an uncle of appellant, should have decided to tell lies against him if, the appellant did not, in fact, give him the money with instructions to send it to respondent's wife." (3) "The Primary

Court Magistrate said in his judgment that there was no direct evidence to show that the appellant had illicit sexual intercourse with respondent's wife. I agree there was no direct evidence to this effect – but in cases of adultery, it would be too much to expect direct evidence. If the courts had always to look for direct evidence before they found against an alleged adulterer, the result would be that no protection whatsoever would be given to marital rights. In almost all cases, adultery is inferred from the evidence tendered in courts which lead to a fair and reasonable inference that adultery has been committed. Cases are very few indeed where the parties are found in the act of adultery. The Primary Court magistrate's approach, in his judgment, is good but he unfortunately failed to refer to section 119 of Government Notice No. 279/1963, which deals with circumstantial evidence in cases of adultery and hence his erroneous conclusion." (4) The appeal is dismissed.

343. Roshan and Wahida v. Abukamal Civ. Cas. 11-A-70
; 9/9/71; Kwikima, Ag. J.

The 1st plaintiff sued the defendant for maintenance arrears of maintenance and accouchement fees in respect of the delivery of their daughter who was the 2nd plaintiff. The spouses were married in 1954 according to Islamic rules of the Sunni Hanafi sect. the plaintiff claimed that her husband deserted her by removing her from her matrimonial home and taking her back to her own people. The defendant established that he wrote out three talaks on a court from which he sent by registered post to the plaintiff. He claimed that the effect of the talaks was that he had divorced his wife in accordance with Islamic Law. The court framed the following issues for determination (1) was the 1st plaintiff deserted or divorced; (2) Is she entitled to maintenance or expenses; and (3) Can an offspring of the marriage sue the father for its upkeep?

Held: (1) "The plaintiff was divorced rather than deserted when the defendant returned her to her people and mailed the talak to her by

registered post” (2) “The Issue whether the divorcee was entitled to any maintenance subsequent to her divorce is so straight forward that it need not detain us here. The only time during which the divorcee was entitled to any maintenance subsequent to her divorce is so straight forward that it need not detain us here. The only time during which the divorcee was entitled to maintenance was when she observed idda if she did this at all. Be that as it may, the plaintiff has not been shown to have failed to observe idda. She would for this reason be entitled to arrears of maintenance during the three months following

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her divorce. This is all the maintenance she could claim on her own behalf if she was not suckling the child.” (3) “With respect to the plaintiff, I do not think that her daughter can be joined in suit to recover arrears of, or to secure maintenance from her own father. The Law of the state may allow her to sue as minor through her next friend but the action to recover damages from a father is not maintainable by a child. What the court can do is to make provision for a child’s maintenance if custody is granted to the mother. This is not being the case (sic) and I cannot see how a child could take his father to court to make him maintain it. I would therefore resolve this issue in favour of the defendant and hold that the second plaintiff has no capacity to sue.” (4) “The plaintiff alleges and the defendant has not denied, that the child is issue of the marriage. It therefore goes to reason that the defendant should pay fees for the delivery of the child. The plaintiff will further be entitled to arrears of maintenance at the rate of Shs. 50/- per month from the date of her divorce to the time of judgment. These arrears are the contributions which the defendant should have made for the upkeep of his former wife during the period of idda and when she was nursing the child who was born out of their marriage.”

344. Mawalla v. Mberelle Civ. App. 70-A-70; 9/9/71; Kwikima G, J.

On 7/6/64 the parties entered into an agreement to put up a building on the appellant's land for the purpose of running a business call Mwafrika Bar. The agreement provided for, inter alia, the sharing of profits of the business on a fifty basis. The respondent contributed Shs. 6500/- towards the construction of the building. In April 1966, the appellant wrote to rescind the agreement and he continued in possession of the building. The respondent successfully sued him after attempts at conciliation had failed. He claimed the return of the money he advanced towards the joint venture with interest. The appellant appealed against the judgment arguing that the action was time barred because it was not commenced within 3 years of the agreement.

Held: (1) "It is the law that "the limitation period commences on the day when the right of action first (accrues *Bura & Others v. Basimwa* (1970) H. C. D. 94. In this case the right of action did not accrue on the day of the agreement but on the day when the respondent received a letter from the appellant the contents of which were in breach of the agreement." (2) Appeal dismissed.

345. In the Matter of the estate of the Late Walji of Geita, 11-m-70; 26/8/71. El-Kindy, J.

The applicant, the wife of the deceased who was appointed administrator of his estate together with another, applied for the removal of her co-administrator and the appointment of another on the ground that her co administrator had left

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the country and his whereabouts were unknown. She asserted that as a consequence she could not administer the estate properly as she could not act without his signature. In particular, she referred to the impossibility of making payments towards the education of the children, as cheques had to be signed by the two of them. She further said that as a widow without any source of income, she wished to wind up the estate of her late husband so that she can leave for India where she intended to settle permanently.

Held: (1) "Subsection 2 of section 49 of the Probate and Administration Ordinance, Cap. 445 provides that where the court is satisfied that, for the purposes of due and proper administration of the estate and the interest of the persons beneficially entitled thereto, it may suspend or remove an executor or administrator, except the one specified therein, and provide for the succession of another person to the office of administrator or executor and vest, in such person any property belonging to the estate. Where an application is made under this provision, the rules (Rule 28(2) of the Probate Rules, 1963, G. Ns. 10, 107 and 369) provide that notice should be served on the person or persons to whom the grant was made. In this application, no notice was served or sought to be served on Mr. Bachu Walji. However, accepting as I do, that the whereabouts of Mr. Bach Walji is not known, it was not possible for him to be served with the requisite notice, and therefore I proceed to hear this application ex parte." (2) "It was held in number of English cases, quoted in Halsbury's Laws of England, third Edition. Vol. 16 at p. 274 footnotes, that the disappearance of an administrator could be sufficient cause for revoking and substituting a name of another. These authorities are not binding on this Court, but they deserve due consideration, in this application, as they are persuasive. In this case, I am satisfied that a sufficient cause has been disclosed by the applicant." (3) Application granted.

346. Ndagwase v. Maganya (PC) Civ. App. 109-M-71; 11/9/71; Kisanga J.

The appellant brought this action in his capacity as his wife's personal representative against the respondent for the recovery of a debt of Shs. 700/- which he alleges that his wife gave to the respondent following misunderstandings between them. The money he claimed was handed over to the respondent for safe custody on the understanding that after she obtained a divorce from the appellant she would take the money back. The case depended entirely on the evidence of his daughter, aged about 14 years, who claimed to have eye-witnessed the handing over of the money. Her evidence was accepted by the trial magistrate who held in favour of the appellant. The witness did not give evidence on affirmation but the trial judge allowed the evidence because he was satisfied that she was a person of tender years. The district magistrate held that the taking of the child's evidence was an irregularity. He further held that the court could not base its findings on the evidence without corroboration. He, therefore, allowed the appeal.

Held: (1) [T]he evidence of this witness was properly received in accordance with the provisions of paragraph 46(2) of the Magistrates' Courts (Civil Procedure in Primary Courts) Rules, G. H. No. 310 of 1964 published under the Magistrates' Courts Act (Cap. 537). That sub-paragraph provides, "The

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evidence of each witness shall be given on affirmation save in the case of a child of tender years, who in the opinion of the Court, does not understand the nature of the affirmation." Having regard to the provisions of this sub-paragraph, therefore, I think that the evidence of this child was properly received without affirmation." (2) "Rule 15 of G. N. No. 22 of 1964

– The Magistrates’ Courts (Rules of evidence in Primary Courts) Regulations published under the Magistrates’ Courts Act (Cap. 537) provides, “In both criminal and civil cases the evidence of young children must be supported by other evidence.” The learned district magistrate therefore properly directed himself in holding that the evidenceuncorroborated as it was, could not form the basis for awarding the claim. The learned district magistrate also took the view that not much weight may be attached to the evidence because the witness was the appellant’s daughter who could have been influenced in order to give false account in favour of her father. To my mind the possibility of the witness testifying falsely in favour of her father could not be ruled out completely especially considering that the witness is not only dependent on the appellant but is also a person of tender years.” (3) Appeal dismissed.

347. Ikongo v. Nyuha (PC) Civ. App. 12-D-71; Sept. 1971; Mwakasendo Ag. J. The respondent unsuccessfully instituted the suit in the primary court of Kariakoo claiming one house and other property belonging to the deceased, his material relative, on the ground that he was her rightful heir at her death. The appellant represented the children of the deceased’s paternal uncle. On appeal to the district magistrate court the judgment of the primary court was reversed in favour of the respondent. In the High Court the judge made the following findings (1) the deceased was a Nyamwezi by tribe; (2) “In 1957 she dictated a will to her tenant (on Bundala) appointing her paternal relative from Mwanza as her heir. The beneficiary was present during the dictation of the will. It was, after completion, read over to her and upon her agreeing that it was correct, she acknowledged it as her final testament by affixing her thumb-print on the document; so did the beneficiary after which Bandala signed as a witness.

Held: (1) “[The] will is governed by Nyamwezi Customary Law. The law on the subject which would apply to this matter would be the Nyamwezi Law as it existed in 1957. it follows then that the Local Customary Law (Declaration) (No. 4) Order 1963 and the Local Customary Law (Declaration) (No. 8) Order 1963 are wholly inapplicable in this case as the rules codified by these Declaratory Orders in 1963 were not part of the Nyamwezi Customary Law in 1957.” (2) “As to what was the Customary Law and practice of the Nyamwezi people in 1957 one naturally turns to Hans Cory, an accepted authority in this field. In 1955 Hans Cory compiled a book on the Customary Laws of the Wanyamwezi. The book is printed in Kiswahili by the Government Printer under the heading “SHERIA NA KAWAIDA ZA WANYAMWEZI”. At page 78 of this book, paragraph 609

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under the heading” (b) Kwa kuandika” (By writing), Cory states the law relating to Written Wills in the following words in Kiswahili:- “609. Jambo la kuandika wosia halijaonea bado wala hakuna sheria zinazoeleza utaratibu fasihi juu yake. Kwa vyo vyote wosia uliyoandikwa haukubaliwi kama umepita kinyume cha sheria za kawaida, hat ikiwa uliandikwa na kushuhudiwa katika baraza.” This statement rendered into English would read – “The institution of making a written will is not yet widespread and no rules for the correct procedure have been issued. In any case no written will be accepted as valid if contravenes the Customary Law. This condition even applies where a written will has been witnessed before a Court.” It follows from this statement of the Nyamwezi Customary Law that a written will could be made by a testator in any form provided always that the testator did not contravene any of the accepted customary rules relating to inheritance etc.” (3) “The rules relating to inheritance are

described in Chapter X of the “Sheria na Kawaida za Wanyamwezi”. The relevant paragraphs for our purpose are 532 and 543 (a). Paragraph 532 provides as follows:- “Urithi hufuata upande wa baba” (Inheritance is Patrilineal). And paragraph 543(a) provides as follows: - “Watoto wanawake wasioolewa na wake wasio na watoto; mrithi ni baba; kama hayupo – kaka na dada tumbo moja; kama hakuna – kaka na dada wa mama mbalimbai kama hakuna – baba mkumbwa au baba mdogo; kama hakuna – jamaa wa kuumeni.” The English translation of paragraph 543 (a) would be – “Unmarried girls and wives without children the heir is the father; failing him, full brothers and sisters; failing them, half –brothers and half – sisters; failing them a paternal uncle; failing him, the nearest paternal relating.” Applying the cited Nyamwezi Customary rules to the present case, it is abundantly clear that the deceased’s will is in full compliance with the Nyamwezi customary Law. By appointing her paternal uncle heir she was within her rights under Nyamwezi Customary Law and in any case under that Law the respondent in this case could never, under any circumstances, be declared her heir.” (4) “In my opinion therefore the will of the deceased is a valid one and in accordance with the Nyamwezi Customary Law, the testator’s tribal Law. That being so it is the duty of this Court to ensure that she wished as declared in the will are given effect and executed. If the Court were to appoint an heir other than the person appointed by her in the will or his descendants, it would plainly be tantamount to frustrating the testator’s declared intentions.” (5) Appeal allowed.

348. Manye v. Muhere (PC) Civ. App. M-141-70; 10/9/71; Kisanga Ag. J.

The appellant successfully claimed compensation in respect of damage done by the respondent to his coffee shamba. He was awarded Shs. 1,400. On appeal to the district court the award was reduced to Shs. 288. The appellant appealed against the reduction. It was accepted by both

courts below that the respondent's cattle entered the appellant's shamba and caused damage to some 28 coffee trees. An

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Agricultural officer who was called by the plaintiff testified in the primary court that he visited the shamba and assessed the damages at Shs. 1230/= i.e. 23 coffee trees could yield coffee worth Shs. 1230/= a year. The primary court disregarded this evidence. The district magistrate reduced the claim on the grounds that the Agricultural Officer gave no reasons for assessing the damage at Shs. 1230/= and that the primary court magistrate in awarding Shs. 1400/= did not visit the scene to inspect the extent of the damage. He himself visited the scene and questioned the appellant who said that he bought the seedlings in 1967 at -/20 each and that he paid Shs. 30/- to have the shamba spread with manure before planting it with the coffee seedlings. On the basis of this information the district magistrate assessed the damage at Shs. 4/- per coffee tree. In arriving at the conclusion he said that compensation is making good a loss and it should not be a fine.

Held: "[T]he Agricultural Officer assessed the damage at Shs. 1230/= this officer personally inspected the shamba and saw the damage. The primary court magistrate however did not visit the scene and therefore it is not apparent why the primary court preferred to award Shs. 1400/= instead of Shs. 1230/= as assessed by a person who actually saw the extent of the damage and who can be considered to have skilled knowledge in the matter. The award of Shs. 1230/= could not be regarded as a fine because according to [the agricultural officer] this represents the value of the crop which the appellant stood to lose during the year of the damage. On the other hand the district court magistrate appears to have based his assessment on the cost of purchasing the seedlings in 1967 and the cost of manuring the shamba before planting it with the seedlings

in 1967. such assessment however does not seem to take into account such factors as the cost of clearing and cultivating the shamba before planting it, the cost of maintaining the plants from 1967 to the date of the damage and the capacity of the trees to produce; in other words it does not take into account the market value of the plants at the time of the damage. To the extent of such omission therefore I think that the assessment by the district magistrate at Shs. 288/- is patently inadequate and that the assessment by [the agricultural officer] which seems to reflect the value of the trees at the time of damage should be preferred.” (2) The appeal is allowed to the extent that the appellant is to recover compensation from the respondent in the sum of Shs. 1230/=.

349. Cosmas v. Faustini (PC) Civ. App. 81-A-71; 4/10/71; Kwikima Ag. J.

The appellant claimed damages for defamatory words which the respondent is said to have uttered to him. In a previous criminal prosecution arising out of the same incident the high court had set aside the conviction of the respondent and acquitted him of the charge. In the present proceedings the primary court gave judgment for the appellant. The words “Cosmas si mtoto wa Merinyo ni mtoto wa Mlyahoro mamake alimleta nje” were found by

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the gentlemen assessors and the magistrate to be defamatory. The innuendo was said by the appellant to be that he was an illegitimate child and that his mother was a prostitute. The respondent was ordered to pay to the appellant a goat and a cow or Shs. 250/= by way of damages. The court applied Chagga customary law. That decision was reversed on appeal. The District magistrate holding the matter was res judicata in view of the respondent’s acquittal in the criminal case.

Held: (1) "The law for crime only concerns itself with libelous publications, not defamatory utterances the learned District magistrate misdirected him in law when he inadvertently likened the charge of abusive language to that of criminal libel. But even assuming that he had properly digested the contents of the appeal judgment in the criminal case, the appellant's argument would still hold strong. The appellant argues in one of his grounds that:- "The respondent was acquainted for the reason that the words uttered by him, and the words which are not disputed, could not have caused a breach of the peace as charged. He has never been sued by me in any other court for a claim similar to this. The suit was entirely fresh and therefore the question of res judicate (could) never arise " it must be respectfully pointed out that the position in law is as set out by the appellants the parties were before a civil court and a criminal case based on the same facts cannot bar a subsequent civil claim based on the very same facts. on this point the court is greatly indebted to the appellant counsel who cited a source laying down the position so clearly that this court can do no better than to cite the source;- "The finding of a criminal court is not conclusive in a civil court when the same matter is in issue in the civil court and the later is bound to decide the question for itself. (A. I. R. COMMENTARIES C. P. C. Vol. 1 6th Edition)." It need hardly be pointed out that the respondent's argument that the matter between him and the appellant was res judicata in view of his acquittal was wrongly upheld." (2) Appeal allowed

350. Joseph v. Reonata Civ. App. 75-A-71; 5/10/ 71; Kwikima Ag. J.

Respondent, a teenager, was engaged to one Balthazar according to the Chagga customary law. It was established that all the formalities for a valid engagement are performed. She later became friendly with the appellant who proposed marriage which she accepted. The evidence established that they had sexual relations on several occasions. The

Respondent then broke off the engagement and the respondent successfully sued him in the district court for breach of promise.

Held: (1) "The one issue on which this appeal must stand or fall is whether the suit was one under customary law and if so whether he District Court acted ultra vires at it had no jurisdiction to try the case. Once this issue is determined in the appellant's favour, there can be no useful purpose served in considering other issues which would then be irrelevant." (2) "It is not easy in our present

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Society to say what type of marriage parties are contemplating when they agree to marry. They may be envisaging Muslim marriage, a purely customary marriage, a purely customary marriage, a Christian marriage or even a purely civil marriage upon which society still frowns in spite of its increasing popularity. What ever the type of marriage the parties contemplated, except for a purely civil marriage, certain tribal customs are always observed. One of them is the payment of bridewealth to the girl's parents. Unless a couple meets under clearly extra tribal circumstances, it is impossible to say that they can contemplate a marriage, a court of law must bear all these factors in mind. Attention was brought earlier on in this judgment to the fact that the respondent's engagement to Balthazar went in accordance with Chagga customs. It cannot be said, and there is no evidence to suggest, that the respondent and the appellant wanted to operate outside their tribal customs. Otherwise the respondent would not have insisted to be taken to the appellant's parents. The parties must have contemplated a Christian marriage which recognizes tribal customary incidental to it. Such customs are like the payment of brideprice, pombe and such other formalities as would not offend Christian morale. There is no reason to suggest that the parties who are both chagga Christians would have chosen to observe considerations other than these. The fact

that the respondent had observed them in her engagement to Balthazar is clear indication of the fact that she understood the appellant to be following the pattern familiar among their people. I would therefore hold that the breach was one for a customary marriage and was itself justiciable under the principles of customary law.” (3) “All suits involving customary marriages and matters incidental thereto must commence in the Primary Court, according to section 57 of the Magistrate’s Courts Acts Cap. 537. the wording of that section was paraphrased by Seaton J. in Mwjage v. Kabalemeza 1968 H. C. D. 341:- “Under section 57 of the Magistrate’s Court Act, all civil proceedings in respect of the incidents of marriage must be taken in the primary court, unless the Republic or the President is a party or the High Court gives leave.....” in this case it cannot be denied that the suit is founded upon a matter incidental to marriages namely a breach of a promise to marry. Neither party was the Republic or the President nor there no direction from the High Court that the matter should commence elsewhere than in a Primary Court. The district Court therefore acted ultra vires in hearing the case. Consequently the trial was a nullity.” (4) “[Respondent’s counsel] argued that the objection as to the trial court’s jurisdiction should have been taken very early in the proceedings. In reply [appellant’s counsel] quoted a very persuasive source;- Commentaries on the Code of Civil Procedure (Indian) by Alyar, 6th Edition the relevant part of which reads:- “Where the Court has no inherent jurisdiction over the subject matter of a suit, its decree is a nullity even though the parties may have consented to the jurisdiction of the court An objection to the jurisdiction of the Court goes to the root of the proceedings and can be taken at any stage of the

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Proceedings even on appeal Even when objection is not taken, when there is a complete absence of jurisdiction acquiescence of the parties cannot give the Court jurisdiction in the matter (Notes at p. 95)” This is a commentary on the Indian Code of Civil Procedure which used to apply here before our own Code was introduced. The commentary is very pertinent to the issue before me and I adopt it approvingly.” (5) Appeal allowed.

351. Mahawa v. Mahawa (PC) Civ. App. 147-M-70; 7/9/71 Jonathan, Ag. J.

The appellant unsuccessfully, in the primary and district magistrate courts, objected to the seizure and attachment of his 27 head of cattle in satisfaction of a debt of a deceased relative and owed to the respondent. The argument of the latter was that the appellant’s cattle were seized because he had inherited the deceased’s properties and therefore his liability. It was established that the deceased has several children, some of them male, and the appellant had been successor to the wives.

Held: (1) “[T] he appellant’s relationship to [the deceased] was no closer than that of a maternal uncle, it seems unlikely that he would properly have inherited any property of the deceased. The Local Customary Law (Declaration) (No. 4) Order, 1963, applied to Musoma District where this matter originated. Sections 1 and 26 of the 2nd Schedule to the Order clearly precluded the appellant from inheriting the deceased’s property [when there are children] and I think it is for this reason that the district court found that the appellant’s role was that of administrator. The appellant may have been appointed to inherit the deceased’s wives, but that did not appoint him to succeed to his property as well. It seems clear that the primary court came, to the conclusion that the appellant inherited the deceased’s property, merely on account of his appointment, by the family council, merely on account of his appointment, by the family council, to inherit the deceased’s wives. In my view, that was a wrong conclusion.” (2) “Accepting the finding that he was

appointed administrator, I cannot see why his own property should be resorted to in paying up debts owed by the deceased's estate. Sections 12 and 13 of the schedule cited above make it clear that the debts of a deceased person should be realised from his estate, and that if the estate cannot meet them, the heirs should bear such amount as the estate cannot meet. I am aware of no authority that a person appointed to administer or distribute property of a deceased person to his heirs should, *impso facto*, personally be called upon to meet outstanding debts of the deceased, in any event." (3) Appeal allowed.

352. John v. Kisimbula (PC) Civ. App. 9-D-71; 7/10/71; Mnzavas J.

The appellant sued the respondent in the primary court claiming 12 head of cattle and one sheep compensation as blood-money. The action arose out of the following incidents. Some years back the respondent wrongfully

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Killed the appellant's father and was charge and convicted of manslaughter, and sentenced to 7 years imprisonment. He served his sentence and was released from prison. The appellant in the present action pleaded that under Rangi customary law the respondent had to pay him 12 head of cattle and one sheep as compensation. He was successful in the primary court but on appeal, the district court gave judgment against him.

Held: "There is no dispute that under Rangi customary law a killer had to pay the above-mentioned amount of cattle and a sheep to the family of the deceased as blood-money. This has indeed been the customary law of many tribes in Tanzania. To come to such a decision of flexible approach was always exercised and principles of justice within accepted normative framework of a particular customary law were

followed; and all the time the objective was to restore lost harmony and equilibrium between the two families.” (2) “This was, I tend to agree with the appellant, good law in at least certain types of manslaughter, but, like all customary laws, it had to give way to statutory laws. The respondent was convicted of manslaughter. But, like all customary laws, it had to give way to statutory laws. The respondent was convicted of manslaughter under section 195 of the Penal Code and suffered 7 years imprisonment. It would, in these circumstances, be unjust to order him to pay compensation to the family of the deceased – such an order would be tantamount to punishing the respondent twice for the same offence.” (3) Appeal dismissed.

353. Athanase v. Mutatina (PC) Civ. App. 154-M-70; 8/9/71; Jonathan Ag. J.

The testator emigrated from one Division of Bukoba to another. At his new domicile he made friends with the respondent's father (Kashaije) who rendered him much help in his ageing days. In appreciation of the friendship testator left his shamba to Kashaije in his will. The shamba was not clan shamba. In the will testator stated that he was disinheriting his heir because he neglected him subsequently testator was looked after by the respondent. He made a second will leaving the shamba to the respondent. This will was thumb printed in the presence of 5 witnesses who signed the document. Later the appellant, the presumptive heir, appeared and ousted the respondent from the house of testator with whom he was staying. Testator subsequently made a third will. In this last will he gave the shamba to the appellant. This will have his thumb print and was witnessed by several witnesses. Judgment was given for the appellant in the primary court on the ground that the second will was not witnessed by relatives in order to effectively disinherit the heir. The district court reversed this decision because the last will was not witnessed by the witnesses who had witnessed the second will and was therefore invalid.

The court held that although the second will was not signed by relatives it was, nevertheless, valid because the shamba was not clan land.

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Held: (1) "Most unfortunately [the second will] was not properly executed. Section 19 of the 3rd Schedule to the Customary Law (Declaration) (No. 4) Order which is, by G. N. 605/63, made applicable to the District Council of Bukoba, makes it imperative that a written will should be witnessed by at least two relatives if the testator is illiterate, as in the present case. Here, as regards the 2nd will, none of the witnesses was a relative of the deceased. It is however, pointed out by both the courts below, that the disputed land was not clan property and by a necessary inference, that indisposing of it by will it was not necessary to get the will witnessed by kinsmen of the deceased. With respect, I would disagree. The section referred to above makes no distinction as to whether or not the property in question is held by the testator through inheritance or by virtue of his being a member of the clan, and to interpolate such a distinction is, in my view, contrary to the intention of the Order." (2) "Unhappily for the respondent, the failure to get relatives of the deceased to sign the will seriously questions its validity. It purports to disinherit the deceased's heir presumptive, namely the appellant. If it was so desired, then it was important that the witnesses should be satisfied there were good reasons for passing over those who were entitled to inherit. As Cory & Hartnoll observe in section 37 of their well known work entitled "Customary Law of the Haya Tribe", signatures in a written will constitute legal proof that "the reasons for the change are valid." Quite understandably then, in their case the signatures ought to have included those of at least two relatives of the deceased, in order to signify that, in disinheriting the appellant the deceased had at least a semblance of

sanction by his own clan. I would hold, therefore, that the will made in favour of the respondent was void.” (3) Appeal allowed.

354. Nlakawa and Another v. Naishu (PC) Civ. App. 109-A-68; 7/10/71; Kwikima Ag. J.

The appellants jointly owned a herd of cattle, so did the respondent. The herds used to be tended in turns. When it was the appellants' turn to tend the cattle, the respondent's cow was stolen by thieves who broke the pen in the process. The respondent then sued the appellant in the primary court to recover the lost cow. The action was unsuccessful but successful on appeal had failed to prove that the respondent's cow was in fact stolen.

Held: (1) “This was a serious misdirection in law. The onus of proving is always on those who make allegations.” (2) According to Chagga custom as set out by the learned appeal magistrate himself the appellants would be liable to make good the stolen cow if it was shown that they were negligent of that they did not take precautions to prevent the theft or even that the appellants connived with the thieves. This had to be proved by the respondent. It was not for the appellants to prove that they were not to blame for the disappearance of the respondent's cow”.

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(3) “All the witnesses whom the respondent called told the trial court that the cow was stolen. They even saw the opening in the boma. The spoor of the animal could clearly be seen, leading from this opening. The trial court saw these witnesses giving evidence and chose to believe them. The district Magistrate who allowed the appeal by the respondent did not say whether he disbelieved them or not. Instead he ignored their

evidence simply because they were not called by the appellants. This was clearly another serious misdirection. His decision was bad at law and totally in defiance of the evidence on record. (4) Appeal allowed.

355. Kidianye v. Kalana (PC) Civ. App. 110-A-68; 6/10/71; Kwikima Ag. J.

Respondent brought a suit against the appellant to recover his wife with whom the appellant was living in adulterous concubinage and the children. The trial magistrate held that according to Masai custom all the children, whether born by the appellant or not, should return with their mother to her lawful husband the respondent. He also made an order for the respondent to compensate the adulterer. The district magistrate set aside the order for compensation.

Held: (1) "The learned District Magistrate who determined the respondent's appeal rightly held the trial court to be in error. The assessors who assisted him to hear the appeal advised him that the original decision was not in accordance with Masai custom." (2) "Even if such was not the case, the respondent's appeal would still hold good on the principle that it is against public policy and good on the principle that it is against public policy and good morals to order a cuckold to compensate his adulterer. This principle would nullify any Masai custom supposing it was there." (3) Appeal dismissed.

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CRIMINAL CASES

356. R. v. Lameck Mauwa Inspection Note (Crim. Case 158/1970 Kilosa District Court) Biron J.

The accused was charged in the District Court of Kilosa on two counts under the Witchcraft Ordinance, the second one being that he threatened to use of resort to the use of witchcraft upon or against the person of

Chamila Masingiza with intent to cause the latter's death. The Magistrate held a Preliminary Inquiry and committed the accused for trial by the High Court. By letter dated 21st June, 1971, the Director of Public Prosecution entered a nolle prosequi and directed that the case be tried by the District Court. The District Court Magistrate instead of complying with the direction forwarded the proceedings to the High Court pointing out that the case was not triable by the District Court and giving as his authority the case of R. v. Kalimba bin Koula 1 T. L. R. (R) 57.

Held: "The Magistrate Did not go direct to the source of authority, and that is the First Schedule to the Criminal Procedure Code at Part B wherefrom he would have noted that the case he cited which was decided in 1938, was no longer good law as the relevant paragraph was amended in 1960 by altering the word "seven" in the relevant paragraph so that it now reads. "If punishable with imprisonment for three years or upwards but less than ten", and the maximum penalty for the offence, even where there is an intent to injure is seven years. The case is therefore triable by the District Court."

357. R. v. Elinaja & Anor. Crim. App. 905-A-70; 30/7/71; Kwikima Ag. J.

The respondents Elinaja and Eliakunda were charged with defilement of a girl under the age of 12 years c/s 136(1) of the Penal Code. the prosecution alleged that the respondents defiled the complainant, a minor, when she was on her way home. One Tanansi testified that both respondents were very well known to him, that on the material day he heard a girl crying near his house but did not go to rescue her, later Eliakund turned up at his house with his clothes muddy and that he had seen him near the alleged scene of the crime soon after the cries of the complainant were heard. As far as Elinaja was concerned, it was alleged that the complainant named him to he grandmother connecting him with the alleged crime. During the trial, the learned magistrate examined the complainant on the voir dire and found her to be appreciative of the

obligation to tell the truth under oath without being satisfied first that she was intelligent enough to give evidence. In his judgment the trial magistrate acquitted the respondents for lack of corroboration but the Republic contended that on the facts this was an erroneous conclusion.

Held: (1) “As a child of tender years, the complainant could have had evidence taken only after the court was satisfied firstly that she was intelligent enough to give evidence and secondly that she appreciated the need to tell

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the truth after taking the oath in accordance with the provisions of section 153 (3) C. P. C. and authorities like Jackson Oniyiwa v. R. 1969 H. C. D. 27, Kibangeny Arap Kalil v. R. 1959 E. A. 92, Kibonge Ramadhani v. R. 1969 H. C. D. 28 to cite but a few authorities. The learned magistrate who examined the complainant on the voir dire found the complainant to be appreciative of the obligation to tell the truth under oath. Although it should have been ascertained first whether the complainant was intelligent enough to give evidence, there can be no danger of a child intelligent enough to appreciate an oath being as unintelligent as to be incapable of giving evidence in a court of law. The trial court cannot thus be held in error when it received the complainant’s evidence in the way it did.” (2) “The evidence against Elinaja, however, is that of the complainant only. She named him to the grandmother. There is no independent evidence to connect Elinaja to the offence. With respect to the learned state attorney, such evidence cannot constitute corroboration the definition of which was lucidly given by George’s c. J. in R. v. Jairo Maipopo 1968 H. C. D. 300: “Corroboration, it must be stressed, is independent evidence connecting the accused person with the offence.” If such test is applied, the magistrate could not have come to any other conclusion except to acquit Elinaja. Although a magistrate may convict without corroboration where he

is so impressed by the complainant's evidence and after warning himself of the danger of convicting without independent testimony, the learned trial magistrate did not find the complainant to be such an impressive witness. The evidence of the complainant, a minor, therefore required corroboration before conviction could be founded upon it. Elinaja's conviction could not therefore be supported on the corroborated evidence of the complainant simply because she named him to willaeli It was urged for the republic that Tanasi's evidence was corroborative of the complaint against Eliakunda. Yet when he gave evidence, Tanasi did not identify the girl whose cries he heard. This court is being asked to infer that that girl was the complainant. Tanasi did not say whether the complainant or her grandmother was his neighbour. Only P W 3 Grace Elia said that the complainant was her neighbour. Grace gave the residential address as Mwika Msai. Tanansi gave him as Mamba Lekura. These two may be names of one and the same place but the court must be told so. It cannot be expected to tell of its own knowledge. So badly presented was Tanasi's evidence that it cannot be said to connect Eliakunda with the offence, in view of the gaps which I have just pointed out." (3) Appeal dismissed

358. Juma v. R. Crim. App. 164-A-71; 30/7/71; Kwikima Ag. J.

The appellant was charged with burglary and stealing. When the case came for hearing the Magistrate noted "Accused appears to be a person of unsound mind. He should be given time to get better." The matter was adjourned and the appellant was remanded in custody. At the adjourned hearing the Magistrate noted in the record: "Accused is interviewed and appears to be of sound mind no". The appellant then pleaded guilty to both charges and was convicted and sentenced.

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Held: (1) "The learned trial magistrate ought to have followed the procedure laid down the Elieza case (R. v .Elieza Sangwa (1968) H. C. D. 187) as well as in the case of R. v. Matenyamu Nzangula (1968) H. C.D. 420". (2) "When he appeared at first the appellant denied the charge. After observing him to be mentally unsound and failing to order him to be medically examined, the appellant was remanded in custody. Later he was pronounced fit to defend himself and he pleaded guilty. There is every likelihood that the accused may have done so in madness." (3) "I would have ordered that this matter go back to the Moshi District Court to be proceeded with in accordance with Section 164 (3) (6) and (8) of the C. P. C. On reflection I find that the appellant, who has been in jail for eleven months now, would be highly prejudiced. Accordingly I order that he be released forthwith."

359. Abdallah & Others v. R. Crim. App. 254; 256-259-A-71; 30/7/71Kwikima Ag. J.

The appellants were convicted on their own pleas of guilty of transporting Agricultural Products without a permit from the National Agricultural Products Board c/s 3 and 8 of the National Agricultural Board (Transport Control Act) 1964. Orders were made forfeiting all the produce. It was against these orders that the appellants appealed.

Held: (1) "[T]he learned Magistrate who ordered the forfeiture did not specify the authority for doing so. This was clearly wrong following the case of Ngulia Mwakanyemba v. R. (1968) H. C. D. 314 wherein it was directed that "Every forfeiture order should specify the authority under which it is made." (2) "In the same case it was urged that the forfeiture order "should contain sufficient reasons to show that the Magistrate applied his mind judicially to the question whether or not the order should be made." The learned magistrate must be taken to task for failing to record any reason for making the forfeiture." (3) "With the forfeiture the

cumulative effect (of the fines of Shs. 250/=) is so devastating as to leave one almost speechless.” (4) Forfeiture orders were set aside.

360. Seuri v. R. Crim. App. 72-D-71; 21/7/71; Spry V. P.; Law Mustafa JJ. A.

The appellant was convicted of murder. The case against him was to the effect that on 7/6/69, he had confessed to his neighbor, one Joseph Mafole, that he had killed his father with a panga. A post-mortem examination revealed various cut wounds on the deceased's body consistent with having been caused by a panga. On inspecting the appellant's house, a panga, a shirt and a pair of shorts, all blood-detained were found. The blood group of both the appellant and the deceased was A Rht and the blood on the panga, shirt and shorts was of group 'A'. In his summing up to the assessors, the learned Acting Judge did not tell the assessors, the learned Acting Judge did not tell the assessors about the burden of proof being on the prosecution to prove the guilt of an accused person

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beyond reasonable doubt. in the judgment there was also this extract: -
“On the contrary the case of R. v. Ibuto s/o Ndolo (1935) 11 E. A. C. A. 80 is so authoritative of the proposition that “where the accused is proved to have killed the deceased the presumption of murder arising under Section 190 remains unless it is rebutted by the facts of the case.” This was a Court of Appeal for Eastern Africa case originating from Uganda. It is binding authority on this court.” On behalf of the appellant it was argued that since the appellant had repudiated the confession, he should not have been convicted in the absence of corroboration, and that none of the exhibits had been identified as belonging to the appellant. The witness called to identify the three articles merely said that he identified the panga and shirt

but he did not say that he identified them as being the property of the appellant.

Held: (Spry V. P.) (1) "Section 190 referred to above has long since been repealed. It read- "Any person who causes the death of another is presumed to have willfully murdered him unless the circumstances are such as to raise a contrary presumption. The burden of proving circumstances of excuse, justification or extenuation is upon the person who is shown to have caused the death of another." No such presumption as is referred to above now exists in the law of any of the East African States. As an authority, Ibuto's case (supra) is now of historical interest only and has no value as a precedent. No presumption arises today against person who kills another; once he pleads not guilty it is for the prosecution to prove affirmatively, beyond all reasonable doubt, that the person charged has committed a criminal offence." (2) "Whilst it is true that the evidence of identification was not satisfactory, we do not consider this submission to be well-founded. The witness called to identify the three articles, who was the appellant's uncle, merely said, in his evidence in chief, that he identified the panga and the shirt. He did not say that he identified them as being the property of the appellant, or if he did, this has not been recorded. In cross-examination however he said – "The accused had only one panga in his house. The handle was eaten by white ants, to the left That was my special mark of identification." The cell-leader, who accompanied the police when they searched the appellant's house, described the blood-stained panga which was found there as follows- "One side of the handle was eaten by white ants." Although the evidence on this point was not as clear as it should have been, we think it indicates that the blood-stained panga was the appellant's property, and both counsel and the court appeal to have understood the evidence in this way. The discovery of this panga, in the appellant's house, on the same day as his father was killed by blows from a panga, provides in our view the corroboration which is desirable before a repudiated confession made

extra-judicially otherwise than to a magistrate or justice of the peace should be acted upon.” [Citing Lalasia v. Regem 3 E A L R 106, approved in Yohannis s/o Udinge and Another v. Reginam [22 E A C A 514]. (3)

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“After careful consideration of all the matters urged before us, we are convinced that had the assessors received, and the trial judge given himself, proper directions as to the burden of proof, the appellant must inevitably have been convicted, in view of the strength of the case against him; and we are satisfied that notwithstanding the non-directions, misdirection’s and irregularities which marred the trial of this case, no failure of justice has in facts been occasioned.” (4) Appeal dismissed.

361. R. v. Milambo Crim. Rev. 33-M-71; Jonathan Ag. J.

The accused was charged before a District Court with robbery with violence c/s 286 of the Penal code but convicted of indecent assault c/s 135 (i) of the Penal Code.

Held: (1) “Applying that decision [Ali Mohamed Hassani Mpanda v. R. (1963) E. A. L. R. 294] to the present case it is clear that indecent assault is not a cognate offence to robbery as the latter is lacking in the element of indecency which is vital aspect of the offence of indecent assault. It is also clear, I think that the substituted conviction was prejudicial to the accused as the charge of robbery did not give him notice of all the particulars on which the offence of indecent assault was going to rest.” (2) “It seems also that there could not have been substituted a conviction either under section 240 and 241 because common assault and causing bodily harm are not to my mind cognate offences to robbery.” (3) The conviction was quashed.

362. Omari v. R. Crim. App. 127-A-71; 9/7/71; Kwikima Ag. J.

The appellant was convicted of attempted rape c/s 132 of the Penal Code. The evidence was to the effect that he grabbed the complainant, threw her down, tore her under pants and laid on her. The complainant stated however, that he did not unbutton his trousers in preparation of penetrating her private parts. The issue then was whether or not the appellant's acts amounted to attempted rape.

Held: (1) "[The] Resident Magistrate who tried this case overlooked the only issue, which was whether the appellant's act amounted to an attempt to rape the complainant. From the proven facts it is quite clear that appellant's act did not constitute an attempt to rape the complainant. The case of R. v. Haruna Ibrahim 1967 H. C. D. 76 is an authority on this issue. The brief report of that case reads:- "Accused was convicted of attempted rape (c/s 132). The evidence was that he had dragged the complainant to a ditch, placed his hand over the mouth and pulled down her underclothes while lying on her when he was observed by a passerby and fled. There was no evidence that at the time he fled, (he was) undressed. The acts of the accused did not constitute attempted rape, since he had not yet undressed. Rather, the acts constituted mere preparation for that crime.

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The acts however did constitute the crime of indecent assault (s. 135 (1) P. C.) A conviction for indecent assault was substituted under section 185 of Criminal Procedure Code)." In the present case the appellant did not undress." (2) Following the Haruna Ibrahim case (supra)

the appellant's conviction is hereby quashed and in substitution therefore he is convicted of indecently assaulting the complainant.

363. Marks v. R. (PC) Crim. App. 50-D-71; 9/9/71; Mwakasendo Ag. J.

The appellant was convicted by the Primary Court for housebreaking and stealing a radio and was sentenced to imprisonment for 2 years and 6 months respectively, to run concurrently, and to the statutory 24 strokes. He appealed to the district court and his appeal was allowed to the extent that the offence of receiving c/s 311 (1) Penal Code was substituted. That court enhanced the sentence to imprisonment for 4 years with the statutory 24 strokes of corporal punishment. The case was transmitted to the high court for confirmation of sentence and the Judge who heard it set aside the sentence and restored that of the primary court. However before the revision the appellant had lodged an appeal to the High court against both conviction and sentence. This appeal which was lodged within the prescribed time was inadvertently over-looked and was not drawn to the attention of the Judge before the determination of the revisional proceedings.

Held: (1)"Be that as it may, the question I have to decide is whether or not this Court is competent to determine the appeal filed by the appellant after the case had been determined on Revision. Although at first my view was that this court could entertain the appeal on further reflection and consideration of the matter, I have definitely formed the opinion that I have no power to entertain this appeal. There are I think quite reasonable grounds for holding this view. First, there is the question of jurisdiction. As no doubt it will be clear that the jurisdiction of the Judges of the High Court of Tanzania is concurrent, there can legally be no question of one High Court Judge reviewing on appeal a matter which has already been determined by another judge on Revision. The party aggrieved in such case has only one option, to appeal to the court of Appeal for East Africa. A proper construction of Subsection (6) (b) of

section 8 of the Appellate Jurisdiction Ordinance, Cap. 451, particularly if this section is considered together with Head (c) of Part III of the Magistrates Courts act, 1963, would in my view appear to confirm this opinion.” (2) Appeal dismissed.

364. Kato v. R. Crim. App. 33-D-71; 3/6/71; Duffus P., Spry V. P. and Lutta J. A.

The appellant was charged with the offence of forgery c/ss 333 and 337 of the Penal Code; uttering a false document c/s 342 of the Penal Code; and attempted theft by a public servant c/ss 265, 270 and 381 of the Penal

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Code. the facts as established were to the effect that the appellant prepared and signed the original of payment voucher alleging that 13 police constables had gone on safari and claimed Shs. 1,530/= as night allowance. This was not true; the constables had neither gone on safari nor claimed the money. The copiers of the voucher were stamped with the name “G. H. Mwamlima” and the original were signed by the appellant with his own name “for the Regional Police Commander”. Mr. Mwamlima had not authorized the preparation of the voucher. The particulars of the first count were as follows:- “The person charged on the 6th day of January, 1970, in the township and District of Kigoma, Kigoma region, with intent to defraud forged payment voucher of Shs. 1,530/= purporting to have been signed by Superintendent of Police G. H. Mwalima whereas in fact the said voucher was not signed by the said G. H. Mwamlima”, and the particulars of the second count were:- “The person charged on the same date, time and place, knowingly and fraudulently uttered a forged payment voucher for Shs. 1,530/= to the Internal Revenue Officer, Kigoma, purporting to be the voucher signed by Superintendent of Police, G. H. Mwamlima”. At the trial court, the appellant had pleaded guilty and the main issue on appeal

was whether or not the facts admitted by the appellant did correspond to those in the particular quoted above.

Held: (1) “The procedure relating to the calling upon the accused person to plead is governed by section 203 of the Criminal Procedure code – Cap. 20. In our view, if it can be clearly shown that an accused person has admitted all the ingredients which constitute the offence charged, it is then proper to enter a plea of guilty. The words “it is true” when used by an accused person may not amount to a plea of guilty, for example, in a case where there may be a defence of self-defence or provocation. As was said by this Court in the case of Rex v. Yonsani Egalu & Others - 9 E. A. C. A. 65, at p. 67 – “In any case in which a conviction is likely to proceed on a plea of guilty (in other words, when an admission by the accused is to be allowed to take the place of the otherwise necessary strict proof of the charge beyond reasonable doubt by the prosecution) it is most desirable not only that every constituent of the charge should be explained to the accused but that he should be required to admit or deny every constituent and that what he says should be recorded in a form which will satisfy an appeal court that he fully understood the charge and pleaded guilty to every element of it unequivocally.” In the present case, we think with respect, that the learned trial magistrate should have explained to the appellant in clear language every ingredient of the charges and required him to admit or deny the same and recorded the exact words the appellant used in his admissions or denials, as the case may be, in a form indicating that the appellant fully understood the charges he unequivocally pleaded thereto. In this case the appellant admitted facts which do not support the offences charged. It is our view that the appellant

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did not plead to the offences charged in the first and second counts.” (2) “As regards the third count, the question is whether the acts done by the appellant, assuming there was an intention to steal, were sufficiently proximate to the intended offence. In R. v. Laitwood 4 Cr. App. R. 248, it was said “..... there was here an act done to commit an offence which formed part of a series which would have constituted the offence if not interrupted.....” that was adopted as the appropriate test in a decision of the Supreme Court of Kenya in Mwandikwa v. R. (1959) E. A. 18 which was followed in a decision of the High Court of Tanganyika in Mussa s/o Saidi v. R. (1962) E. a. 454. In this case the acts done by the appellant preparatory to stealing, that is to say the preparation of the voucher and the requisition and its presentation to the Internal Revenue Officer resulted in a cheque being sent to the district Police commander’s office where the appellant worked. It was seen by Mr. Mwamlima who took it into his possession. Had the appellant taken the cheque, the offence of stealing would have been completed, as he would have had opportunity to dispose of it or deal with it in any manner convenient to him. As it was, even if the appellant had never personally received the proceeds of the cheque, they would, unless the fraud had been detected, have gone to the constables named and the Government would have been deprived of that amount. We think that the appellant’s acts were sufficiently established to justify a finding that an attempt to steal the Shs. 1, 530/= had begun.” (3) Appeal allowed in respect of counts one and two but dismissed in respect of count three.

365. Jama s/o Daule v. R. Crim. App. 366-D-71; 25/8/71; Mwakasendo Ag. J. The appellant was convicted on seven counts of false accounting c/s 317 (c) of the Penal Code. The main ground of appeal was that the Magistrate erred in law in holding that the appellant was a clerk or servant to Messrs. Tanganyika Bus Co. Ltd. as alleged in the charge.

Held: (1) "The crux of the case is Whether or not the appellant was a clerk or servant of the Tanganyika Bus Co. it is clear from the evidence on record that the appellant was the Tanganyika Bus company's agent for the Singida area. His duty was to canvass for business on behalf of the Bus co. and depending on the volume of business canvassed he was paid a commission at seven per centum. If he canvassed no business he got no commission and that was that. The working relationship between the Bus Company and the appellant was governed by an Agency Agreement. The learned resident Magistrate appears not to have considered the Agency agreement at all." (2) ("After quoting Archbold's Criminal Pleadings and Practice 15th Edition p. 691 ' a commission agent who is not under order to go here and there, and who is not bound to devote and portion of his time to the service of his principal, but who may get or abstain from getting business for his principal as he chooses, is not a clerk or servant or a person employed for the purpose or in the capacity of clerk or servant") With the benefit of this quotation it should have been easy for the learned Resident Magistrate to find, as I believe he should have done, that the appellant was neither a clerk or servant or person employed for

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the purpose or in the capacity of a clerk or servant." (3) "I accordingly find that the appellant is not a person or one of a class of persons falling within the ambit of Section 317 (c) of the Penal Code." (4) Appeal allowed.

366. Mwarami Saidi v. R. Crim. App. 233-D-71; 13/8/71; Biron J.

The appellant a Police constable was convicted of criminal trespass. The appellant went to the complainant's house in the early hours of the morning, announced himself by name and forced an entry through the

window. He bit the complainant on her chin and ran away. Shortly afterwards at about 2.30 a. m. he was seen by a police sergeant throwing stones at his own house. From the evidence it appears that the appellant was drunk.

Held: (1) "The appellant was charged and convicted under subsection (a) of section 299 of the Penal Code. As will be noted it is a necessary ingredient of the offence that the entry on the property must be with intent to intimidate, insult or annoy. The Magistrate has not in his judgment considered the question of intent, which is as essential an ingredient of the offence as is the factum. Had he paused to consider the question of intent, I very much doubt whether he would have convicted the applicant of the offence, for as is abundantly clear from the evidence of the prosecution and of the defence, the appellant must have been and obviously was at the material time, very drunk. It is extremely doubtful whether he was even capable of forming any intent. And even if he was, there is no reason to suppose that he entered the complainant's room with the intention of either intimidating, insulting or annoying her." (2) Conviction quashed.

367. R. v. Said and Amir Crim. Sass. 76-Tanga-71; Kwikima Ag. J.

The two accused father and son were charged with murder c/s 196 of the Penal Code. The deceased was ambushed while walking to his village from the market and stabbed by the assailants. A witness Ali Bakari purported to have identified the accused as the assailants:

Held: (1) "In his evidence Ali states that the assailants confronted the deceased and killed him. In this he is contradicted by the doctor who in his opinion stated that the deceased must have been surprised by his assailants who attacked him from behind. Otherwise he would have struggled and the injuries on his neck would not have been so neat. If the doctor's evidence should be accepted, and it stands to reason that it should, how could Ali have seen the faces of the assailants when it was

dark, when the path was overgrown with grass and when instead of running tot eh aid of the deceased Ali ran away crying in fear?" (2) "In the present case I am unable to say that the evidence for the prosecution meets the test as laid down in Abdallah bin Wendo and Anor v. R. 20 E. A. C. A. 166. I have found no evidence circumstantial or direct, to corroborate the purported identification of the accused by Ali Bakari. For this reason and in view

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Of the uncertainty of the circumstances under which the identification was made, I am unable to find the accused guilty of the offence with which they stand charged."

368. Hamisi v. R. Crim. App. 159-D-71; 20/8/71; Onyiuke J.

The appellant was convicted of stealing 100 bags of cashew nuts, valued at Shs. 7,759/60, property of the Mtwara Regional Cooperative Union. The prosecution alleged that on the 21/1/70, the Secretary of Mahuta Cooperative Society dispatched 100 bags of cashew nuts to the National Agriculture Products Board. They were properly labeled with the society's zonal mark on Produce Delivery Note 134989. The Board received the produce on 22/1/70 but rejected the produce since it was inadequately dried. Under these circumstances the proper procedure was to send the produce to the Cooperative Union Loco for further drying and after drying to return the produce to the Board's godown. There was evidence that the produce was in fact treated at the Loco and dispatched to the Board's godown on 11/2/70 on Delivery Order Note 45604 in motor vehicle TDY 930. The driver of this vehicle was PW3 and he was accompanied by the turnboy PW. 4. These two witnesses and the appellant were employees of the Wakulima Transport Company. PW. 3 and PW. 4 reported on duty on

11/2/70 and were instructed by the appellant to proceed in vehicle TDY 930 belonging to the Company to the Union's Loco and transport the cashew nuts to the Board's godown. On their way to the godown, they were stopped by the first accused – who was acquitted in the trial court – and ordered to proceed to the offices of the Wakulima Transport Company where the appellant worked. There the appellant boarded the vehicle and instructed them to proceed to Mikindani where they unloaded the cashew nuts at Mikindani Cooperative Society godown which was opened by the Chairman of the Society accompanied by the appellant. Both PW. 3 and PW. 4 testified that they did not know that the cashew nuts were bringing unlawfully taken to Mikindani. In his judgment, the learned magistrate treated PW. 3 and PW. 4 as accomplices but held that he could convict the appellant without corroboration of their evidence [citing Canisio s/o Walwa v. R. [1956] 23 E. A. C. A. 433]. During the trial, the appellant requested that the chairman and Secretary of Mikindani Cooperative Society should be called to testify but the prosecution opposed the application because they had been charged with the offence of receiving. In his ruling the learned magistrate ruled as follows: - "I do not think that it would be in the interest of justice that such persons sought by 2nd accused (the appellant) should be called as defence witnesses particularly as they are also standing a charge. I therefore reject them."

Held: (1) "With respect, I think the learned magistrate erred in law in refusing to allow the appellant's witnesses to testify for the reasons given. The question here was not as to the materiality or relevance of the evidence to be given by proposed witnesses. It is my view that an accused person has a right to call any person as a witness whose evidence is relevant or material to his defence. The fact that the proposed witness was standing a charge on some offence does not disqualify him from being a competent witness.

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Section 127 of the Evidence Act States that all persons shall be competent to testify unless the Court is satisfied that they are disabled by reason of want of understanding, whether from tender age or old age of disease or similar causes. The Court has no discretion to refuse a competent witness to testify provided he is available and his evidence is relevant. The belief that the witness may be biased or is a participis crimmis or as of bad character is not a valid ground for refusing him to testify. Section 206 of Criminal Procedure Code which is applicable to subordinate courts requires the Court to ask an accused person against whom a prima facie case has been made out person against whom a prima facie case has been made out whether he has any witness to call and imposes a duty on the Court to hear such witness. If the witnesses are not immediately available section 206(2) requires the Court to adjourn the trial and issue process to compel their evidence was due to the fault of the accused or that their evidence was not likely to be material, in other words, that the application for adjournment was not made in good faith. The record however shows that the learned magistrate later relented on the insistence of the appellant to have this witness called and adjourned the trial to enable the Chairman of the Mikindani Co-operative Society testify for the appellant.” (2) “The learned magistrate then proceeded to treat PW. 3 and PW. 4 as accomplices apparently on the ground that they participated in the crime. In a way PW. 3 and PW. 4 participated in the crime in that PW. 3 drove the vehicle to Mikinadni Co-operative Society godown and PW. 4 and PW. 4 helped in unloading the cashew nuts, but were this enough to make them accomplices? They facilitated the commission of the crime but the point is that they did not know that a crime was being committed and were merely carrying out instructions of their superior officer. They were neither knowingly assisting nor encouraging the commission of a crime. They were, on the evidence, innocent agents with no guilty knowledge. They were passive instruments

in the hands on the appellant and it would be odd to treat them as accomplices.” (3) Appeal dismissed.

369. R. v. Shauyinga Crim. Sass. 195-Iringa-70; 10/5/71; Makame J.

The accused was charged with the murder of his wife. The evidence against the accused was purely circumstantial and was to effect that the accused raised an alarm on 30/8/69 and the witnesses who responded to the alarm found the accused about 60 paces from his house with the deceased lying on a bed. They also found two spears stuck to the ground. The accused told them that he had killed his wife when he was mentally disturbed. There was also evidence from the prosecution witnesses that the accused had been mentally unwell and had lived in the forest. This was corroborated by a medical report from a specialist psychiatrist who was of the opinion that the accused was suffering from chronic Brain Syndrome and that at the time of the alleged killing the accused had a psychotic episode and was of unsound mind. Both gentlemen assessors were of the opinion that the accused was guilty of murder as charged.

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Held: (1) “While it is for an accused person to establish the defence of insanity it is enough if he raises a reasonable doubt only, that at the material time it is more likely that not that he was insane; that is, it will do; and the accused has to be pronounced insane if on the evidence the greater probability is that he was insane than that he was sane. In the present case there are the following factors which I am constrained to take into account: While admittedly Eliot Adam said that in the past the accused had not been insane there is other undiscredited Prosecution evidence to the effect that the accused had been mentally unwell and had lived in the forest. There is also the accused’s behaviour after the stabbing which is as open to an interpretation compatible with lucidity as with

insanity. It is true the accused seemed to have carried the body to the shamba from the house, but the question is where was he carrying it to any why should he raise the alarm if what he intended to do was to dispose of the body secretly? The tender details the accused saw to are to my mind suggestive of remorse, consonant with the reaction of a man who comes round as it were, after something had irresistibly snapped in his head, and he had done something the significance of which he did not quite appreciate then. I am satisfied that at the material time is possible the accused was insane, though not necessarily mad in the popular sense. I am fortified in this view by the opinion of Dr. Pendaeli the specialist psychiatrist at the Isanga Institution. In his report the doctor said the accused was found to be suffering from chronic syphilis in its late stages, which affliction and most probably affected his brain. He found the accused tense, anxious, at times mildly depressed and occasionally he experienced auditory hallucination. The doctor was of the opinion that the accused is suffering from Chronic Brain Syndrome and that at the time of the alleged killing the accused had psychotic episode and was of unsound mind Because of the foregoing while I respectfully agree with the gentleman assessors both of whom found that the accused did kill his wife, with genuine respect I am unable to hold, as they did, that when the accused killed the deceased he had malice aforethought. Consequently I find that the accused did commit the act, but by reason of his insanity he is not guilty of the offence with which he is charged.” (2) “I order that the record of the case be reported for order of the Honourable the Second Vice President, the Minister for Justice, and that meanwhile the accused be kept in custody as a criminal lunatic at the Isanga Institution, Dodoma.”

370 Habib v. R. Crim. App. 364-D-71; -/8/71; Onyiuke J.

The appellant, an Assistant accountant in Tanganyika Tefry Plastics company Ltd., was charged with 12 counts of stealing by servant c/ss 271 and 265 of the Penal Code, 12 counts of fraudulent false accounting c/ss

317(c) and 265 of the Penal Code and one count of stealing by agent c/ss 273 and 265 of the Penal Code. The evidence against the appellant binged on the testimony of one Sachoo, a Cash Sales Clerk with the Company, and the case arose out of the appellant's handling of the monies received from Sachoo. The proper procedure was for Sachoo to

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Collect money from customers on cash sales and hand it over to the appellant whose duty was to bank the money. Sachoo kept a Cash Summary Book in which he entered all receipts from cash sales in duplicate for the day and on the following day the appellant would check the entries, collect the monies and sign for them. The appellant would then pay the monies into the Company's account with the Bank. As a result of a surprise check by the Company's chief Accountant, discrepancies were found between receipts by the appellant as shown in the Cash Summary Book and payments as per Bank Pay-in-slips kept by his and these shortages related to cash had not cheques which were duly paid by appellant into the Bank. In his unsown statement, the appellant claimed that although he signed the Cash Summary Book, Sachoo continued to keep the money thereafter until he was ready to pay it into the Bank. Sachoo admitted the point on cross-examination but added that he did not keep the money after the appellant had signed for it. In his judgment, the trial magistrate held, inter alia, that: - "PE. 1's (Sachoo's_ evidence is a simple one and to my mind untainted. He used to prepare the C. S. S. and hand over the money to the accused who used to sign for it As far as the court is concerned the time of handing over the money is not of any particular importance. What is important is the fact that a signature was obtained for the receipt of the money. If the accused was foolish enough to hand back to PW. 1 the money he had receipted for he has himself to blame." Counsel for the appellant contended that the trial

magistrate had misconstrued the defence, the consequence of which was that the trial magistrate made a wrong finding of fact as to whether or not the appellant signed and immediately collected the money. Counsel added that the trial magistrate having failed to appreciate the defence, did not subject the prosecution witness to close scrutiny.

Held: (1) "The learned magistrate set out the evidence of the prosecution witnesses in his judgment but, with respect, he failed to evaluate or analyse it in the light of the defence. He dealt with the submissions made by defence counsel but he did not adequately consider whether the case had been affirmatively proved by the prosecution. It is established law that a conviction should not be based on the weakness of the defence but on the strength of an affirmative prosecution case. Pyaralal Bassan v. R. (1960) E. A. 854. A consideration of defence counsel's submissions may involve a consideration, to some extent of the evidence but it does not relieve a trial Court of the duty to make definite findings of facts on the issues raised at the trial. The main issue raised by the defence was whether PW. 1 kept the money after the appellant signed for it and it was an issue that called for a finding of fact by the learned trial magistrate. I have to state that the learned magistrate misdirected himself as to the defence and in his dealing with the defence submissions. The nature of the defence has been already considered in this judgment. PW. 1 was the most material witness for the prosecution. The defence was alleging that he retained the money after the appellant had signed for it and therefore had the opportunity to misappropriate the money and to shelter under the fact that the appellant had already signed for it. The learned magistrate stated that it might well be that he had the opportunity to do so but that there was

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no evidence that he stole the money. This, with respect, was a wrong approach to the matter. The appellant has not got to prove that PW. 1 stole the money. All he had to do was to raise a reasonable doubt that he (the appellant) did not steal the money. He tried to create this doubt by pointing out that PW. 1 had the opportunity to steal, arising out of the fact that he retained the money after obtaining the appellant's signature. This called for critical evaluation of the PW. 1's evidence and a consideration of other available evidence before accepting or rejecting it. I am satisfied that on a proper direction the learned magistrate might easily have held that PW. 1 had no such opportunity as alleged but the point was that the learned magistrate did not seem to direct his mind to the question." (2) "The learned magistrate failed to properly distinguish between civil and criminal liability when he stated that the appellant had himself to blame if he was foolish enough to hand the money over to PW. 1 after he had signed for it. Negligence or foolishness may found a civil action but it is not a sufficient basis for criminal liability for the offence of stealing. The prosecution has to prove fraudulent asportation or fraudulent conversion by an accused to succeed in a charge of stealing. One does not prove stealing within the meaning of s. 258 of the Penal Code by showing that an accused person was foolish or negligent. Finally I have to state that although the learned magistrate correctly stated the principle of the burden of proof beyond reasonable doubt he did not adequately apply it to the case before him." (3) Appeal allowed and retrial ordered.

371. R. Hakmaly Nathoo Crim. Rev. 72-D-71; 27/8/71; Saidi, C. J.

The accused was charged with corrupt transactions c/s 392) Prevention of Corruption Act, 1971. He was convicted on his own plea of guilty and sentenced to a fine of Shs. 3,000/- or 6 months' imprisonment in default. It was also ordered that the sum of Shs. 4,000/= he had offered as a bribe to the Manager of the Foreign Exchange Department be forfeited to the Republic. The D. P. P. argued that the trial magistrate in passing sentence

misdirected himself in holding that the section under which the accused was charged has ceased to be a scheduled offence under the Minimum Sentences Act, 1963. His reasoning was that although the latter act was not amended to take cognizance of the 1971 Prevention of Corruption Act, the trial magistrate should have properly construed the provisions of Section 10 of the Interpretation and General Clauses Ordinance and should have held that the offence fell within the Minimum Sentences act. Secondly the 1964 Act was a substantive, and not an amending Act. Secondly the 1963 act was a substantive, and not an amending act. For the accused it was submitted that the offence of corrupt transaction under the 1971 Act was no longer a scheduled offence attracting a minimum sentence of a fine besides imprisonment it conflicts with the Minimum Sentences Act. The Legislature must, therefore have by implication amended the 1963 Act. In support of this argument the accuseds

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Counsel relied on the Australian decision in Bennett v. The Minister of Public Works, Vo., VII C. L. R. 1908-9

Held: [After quoting the provisions of Section 10 (1) of the Interpretation and General Clauses Ordinance] (1) "From the wording of this section it would appear that references in the schedule to the Minimum Sentences Act to the repealed Prevention of Corruption Ordinance must be read as references to the corresponding sections in the new Prevention of Corruption Act of 1971. Although the Australian case involved the interpretation of a section exactly similar to Section 10(1) of our Interpretation and General Clauses Ordinance, yet the issue for determination here. There were involved in that case 3 separate Acts all dealing with the same subject, namely, the rate of interest payable on the compensation due to an individual whose land was acquired." (2) "The other issue advanced on behalf of the Republic was that the Minimum

Sentences Act. Is not an amending but a substantive Act by itself. That being so it was contended that the Minimum Sentences Act in order to understand what it was meant for. As far as I am aware this Act has its background in the public complaints raised against lenient sentences passed by courts in our country while certain crimes were increasing at an alarming rate. Its purpose was to restrict discretion of courts by fixing minimum sentences in the offences scheduled thereunder. Corporal punishment was also included in addition to the sentence of imprisonment in respect of these offences.” (3) [After referring to the objects and reasons of the 1963 Act as provided in the Bill and to the proposals of the Minister of Home Affairs in the National Assembly on 24th April, 1963]. “It seems to me that the contention that the Minimum Sentences Act had amended the Prevention of Corruption Ordinance. 400, and then the Prevention of Corruption Act 1971 had in like manner amended the Minimum Sentences Act is not a correct one. Had that been so the Minimum Sentences Act would have become functus officio as soon as it was passed and could not be amended by a subsequent Act.” (4) “In the result I am clearly of the view that the offences of corrupt transaction contrary to Section 3 (2) of the Prevention of Corruption Act 1971 falls under the Minimum Sentences act.” (5) Fine imposed on the accused set aside; Minimum Sentence of 2 years imprisonment with 24 strokes of corporal punishment imposed. Fine paid by the accused to be refunded but order for forfeiture of Shs. 4000/= bribe to remain undisturbed.

372. Joseph v. R. Crim. App. 340-D-71; 13/8/71; Biron J.

The appellant was convicted of stealing by agent and he was sentenced to three years imprisonment. As far as the conviction was concerned the appellate court held that there was no merit at all and so one of the issues involved on appeal concerned the sentence imposed by the trial magistrate. In sentencing the appellant, the trial magistrate said:- “Offences of this nature are

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ripe in Sumbawanga District. Accused has decided to live a criminal life, he steals any valuable thing at sight He has little claim to leniency when one considers his shocking long list of previous convictions. He deserves a long period in jail to make him rest of his hard (sic) job of stealing and also to relieve the public of his menaces. The severe sentences he has been frequently experiencing in those previous convictions have proved a total failure” Apparently the severest sentence the appellant had had before was twelve months imprisonment. During the trial the magistrate summarily convicted the appellant for contempt of court without framing the charge, calling upon the appellant to show because why he should not be convicted on that charge and affording him a fair opportunity to reply – purporting to act under Section 114(2) of the Penal Code and sentenced appellant to six months imprisonment.

Held: (1) “Leaving aside the last conviction which as noted, was on the very same day as this instant one, the heaviest penalty the appellant had to –dated was imprisonment for twelve months. The magistrate’s remark that “the severe sentences he has been frequently experiencing in those previous convictions have proved a total failure” is therefore less that true and the severest sentences, that of three years imposed on the same day, as it was by the same court it was probably by the same magistrate, apart from the fact that it cannot in the circumstances be treated as a previous conviction as it was subsequent to this instant offence if, as would appear to be the case, it was imposed by the same magistrate, it may well have been as equally well merited as the sentence in this instant case, which, as already remarked, is excessive.” (2) “As will be noted the magistrate specifically stated that he was acting on the powers vested in him under section 114(2) of the Penal Code. The

magistrate is directed to read the subsection where under he purported to act and wherefrom he will. 400/- or imprisonment for one month in default. Not only had he no power to impose imprisonment for six months, but he had not even any power under that subsection to impose any sentence of peremptory imprisonment Ex facie the wording of subsection (2) would appear to empower a court to take cognizance of a contempt committed in front of it and sentence the offender. Even so, it does not appear that a conviction will lie under that subsection, and in any event, the magistrate's sentence was ultra vires, as the maximum sentence which can be imposed under the subsection is a fine of four hundred shillings or imprisonment for one month in default. The Court of Appeal for East Africa in Joseph Odhengo s/o Ogongo v. R. XXI E. A. C. A. 1954, 302, construed the corresponding subsection of the then section 116 of the Kenya Penal Code (1948), now section 122 of the revised penal Code of 1962, which incidentally has only amended the subsection by increasing the fine to Shs. 1,400/- or imprisonment for a month in default. Subsection (2) of the then section 116 of the Penal Code is substantially the same word for word as our own subsection (2) of section 114 of the Penal Code. In the case cited the Court held, quoting from the headnote; '(1) when a Court 'takes

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Cognizance' of an offence under the provision of section 116(2), Penal Code, the Court should frame and record the substance of the charge, call upon the person accused to show cause why he should not be convicted upon that charge and give him a fair opportunity to reply. (2) In every such case the record should show that this procedure has been followed and should contain an adequate note of the accused person's reply, if any, and the court's decision.' although the decision of the Court was on the Kenya Penal code, as the corresponding provision in our Code is the

same, the Court's ruling is binding on our courts. Therefore, despite as remarked, the ex facie purport of the section, it is incumbent on a court, even when acting under subsection (2), to frame a charge and call upon the accused to show cause why he should not be convicted upon the charge so framed and give him a fair opportunity to reply." (3) Proceedings for contempt of court nullified; sentence reduced to 12 months imprisonment.

373. R. Juma Iddi Crim. Rev. 57-D-71; 13/8/71; Biron J.

The accused was charged with causing grievous harm contrary to s. 225 of the Penal Code and convicted on his own plea. He was sentenced to imprisonment for 12 months and ordered to pay to the complainant Shs. 150/= as compensation. The accused and the complainant had been drinking at a pombe club though not together for the complainant was sitting alone. When the complainant went outside to relieve himself he was attacked by 2 men, one of them the accused, with sticks, and the accused in addition cut him with a razor blade in the ear, cutting off a small piece. In his plea the accused said he assaulted the complainant because the latter had annoyed him. He further pleaded that he was influenced by a "shaitani". In sentencing him, the Magistrate took cognizance of the fact that assaults were prevalent in the area, especially in pombe shops and the complainant had lost a piece of his ear. Notice to show because why the sentence should not be enhanced was issued by the High Court, but the accused failed to make any submission.

Held: (1) "The proper sentence to impose in any particular case is at the discretion of the convicting court. A reviewing tribunal will not lightly interfere with the sentence imposed by such court, unless the court misdirected itself in principle or the sentence itself is manifestly improper that it cannot be sustained." (2) "Though in this case the sentence may err on the lenient side despite the fact that the accused appeared in court as

a first offender, the sentence is not so manifestly inadequate as to be unsustainable.” (3) Sentence and order of compensation not to be interfered with

374. Simon v. R. Crim. App. 892-M-71; 10/8/71; Makame, Ag. J.

The appellant was convicted of stealing postal matter contrary to section 267 of the Penal Code and sentenced to 12 month's imprisonment but was not ordered to refund

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Shs. 90/=, the value of the things stolen. The charge alleged that the item stolen belonged to the East African Posts and Telecommunications. The magistrate held that it did not belong to the postal administration and then he purported to act under s. 346 of the Criminal Procedure Code in order to cure the particulars of the charge which alleged that the parcel belonged to the East African Post and Telecommunications Administration.

Held: (1) “This was incorrect, because a trial court has no power to cure anything under Section 346 of the C. P. C. Those powers are vested in an appellate court.” (2) “The Magistrate should have acted under Section 209 (1) of the Criminal Procedure Code which provides inter alia – ‘209 (1) Where, at any stage of a trial, it appears to the court that the charge is defective, either in substance or form, the court may make such order for the alteration of the charge either by way of amendment of the charge or by the substitution or addition of a new charge as the court thinks necessary to meet the circumstances of the case unless, having regard to the merits of the case, the required amendments cannot be made without injustice, and all amendments made under the provisions of this subsection shall be made upon such terms as to the court shall seem just’” (3) ‘However, I am satisfied that the learned Magistrate’s

failure to act under Section 209 of the C. P. C. did not occasion a failure of justice. Acting under Section 346 of the C. P. C., I cure the oversight. All along the appellant was aware of what the allegation against him was.” (4) “The sentence of 1 year, if anything, on the lenient side stands.” (5) Appeal dismissed. Compensation order for Shs. 90/= made.

Note: The learned Judge added: “The learned trial Magistrate is advised to record the names of witnesses in full rather than give merely their first names and, in the broad spirit of our day, it is probably preferable to show a witness’s nationality rather than his tribe.

375. Cosmas Madubu and Another v. R. Crim. App. 339 and 34-M-71; 2/8/71; El-Kindy, J.

The appellants were jointly charged with and convicted of robbery c/s 285 and 286 of the Penal Code and sentenced to 31/2 and 3 years, and 24 stroke each respectively subject to confirmation by the High Court. They were also ordered to pay Shs. 600/= as compensation to the victim. The complainant who arrived at Mwanza on his way to Geita at 6p.m. met the two appellants who accommodated him in their house. At 1 a. m. he was awakened by a blow on hi buttocks, when he got up he was hit with a hoe and he fell down and broke his leg. He feigned death whereupon they dragged him to a nearby bush. When he came to he sought aid from a nearby house. The two appellants were identified by the complainant later that morning. A trail of blood led to the kitchen of appellants. The appellants put up alibis as their defences. The resident magistrate held that the appellants’ explanation as to their whereabouts failed to raise a reasonable doubt in his mind. He was satisfied of their guilty.

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Held: (1) "Both appellants claimed that the learned Magistrate in accepting the complainant's story without corroboration..... Corroboration was not necessary at all. The trial Court was entitled to act on the evidence of the complainant alone on the issue of identity as he was satisfied that not only was the complainant credible witness but the circumstances were such that he could not have mistaken the identity of the assailants." (2) "It is correct that there was no expert evidence that the trail of blood was that of a human being, but in the circumstances of this case, this is not necessary and proof of such fact can be given through circumstantial facts. I am satisfied that the finding of blood stains and a hoe's stick outside the kitchen house of the appellants tended to give weight to the complainant's story." (3) Appeal dismissed.

376. Bitashika v. R. Crim. App. 647-M-70; 22/7/71; El-Kindy, J.

The appellant was charged with and convicted of stealing c/s 265 of the Penal Code, Cap. 16. The prosecution alleged that the complainant was at Kigoma Railway Station on 11/6/ 70 on route to Tabora. He deposited his basket and bag in his compartment and left. On his return to his compartment, he found that his bag was missing. He discontinued his safari and reported the matter to the Railway Police at Kigoma. On the same day at about 7.30 p. m., while the complainant was still at the Railway Station, the appellant passed him holding a bag similar to his. The complainant then pursued the appellant for sometime and eventually requested the appellant to hand over the bag to him but the appellant refused, asking the complainant to name the contents of the bag. The bag was eventually opened in the presence of one Chenge and a pair of trousers and a towel which the complainant identified as his were found. On his part, the appellant claimed that he had the items from a pedlar at his house and that he did not know that it was stolen property. On this evidence, the trial magistrate held that the items in question belonged to the complainant. He held further that:- "The accused's (appellant's)

defence is that he bought the goods from the traveler and did not know that they were stolen goods. For this reason I find that the accused (appellant) was in possession of stolen property a few hours of its theft and he has given a reasonable explanation as to how he came by the same. In this connection the accused (appellant) stated that he bought the goods from a traveler and no one was present when he bought them. I am unable to accept such a story. I find the accused (appellant) has not given a reasonable explanation.” The main issue on appeal then was whether or not the trial magistrate would have convicted the appellant had he properly directed himself on the issue involved.

Held: (1) “In my view, at least, three issues were involved and the learned magistrate ought to have directed his mind clearly. There was the question of innocent possession which, if accepted, would have been a good defence to theft and to receiving stolen property. The

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Second issue was whether, on the facts and circumstances, the appellant was a thief as charged and similarly on the third issue whether the appellant was a guilty receiver. At the start of the argument (above underlining) it would suggest that the learned magistrate was satisfied that the appellant gave an explanation which could probably be true and therefore he was inclined to acquitting him. But when he turned to rejecting part of the appellant’s explanation, it becomes unclear as to what he meant by the words “he has given a reasonable explanation as to how he came by the same”. The matter is not further clarified by this use of the last phrases “the accused (appellant) has not given a reasonable explanation”. As it was said by the Court of Appeal in the case of Rex v. Verbi (1942) 9 E. A. C. A. p. 42, in order to justify quashing a conviction misdirection as to evidence must be of such a nature and the circumstances of the case must be such that it is reasonably probable that

the trial court would not have convicted had there been no misdirection. The case of Rex v. Correa (1938) 5 E. A. C. A., p. 128 is also relevant. It is clear that the existence of misdirection does not necessarily lead to a quashing of a conviction, as that would depend on the nature of the evidence on record and the circumstances of the case. The test appears to be whether the appellate court on the particular case could still say that the learned magistrate could still come to the same conclusion had he not misdirected himself. The Court of Appeal thought that, in Correa's case that even a serious misdirection would not necessarily lead to quashing a conviction. In this case, apart from this misdirection I have underlined, the learned trial magistrate also misdirected himself when he said that the appellant was required to give a reasonable explanation. The law does not require him to do anything of this sort in the course of his defence. He is simply required to give an explanation which could probably be reasonably true. Therefore, taking into account these misdirection's on the evidence together with the facts of this case and the surrounding circumstances – the appellant's conduct from the time he was seen in possession of the handbag to the time he was seen in possession of the handbag to the time when the handbag was opened in the presence of Chenge is consistent with the conduct of a person who was on guard – it cannot be said that the learned magistrate could have come to the same conclusion." (2) Appeal allowed.

377. Adam v. R. PC) Crim. App. 667-M-70; El-Kindy, J.

Appellant was convicted of cattle theft contrary to Sections 268 and 265 of the Penal Code and sentenced to 3 years' imprisonment but was not ordered to suffer the statutory corporal punishment because he was 46 years old. However he was ordered to pay Shs. 25/= as compensation to the complainant for the alleged stolen goat. The facts were that on 23rd May, 1970 at 5.30 p. m. the appellant was found behind his house in his shamba cutting up the carcass of the stolen goat assisted by two

juveniles, one 13 years old and the other 12 years, both of whom gave evidence against the appellant. The issue on appeal was whether the evidence of these young children was properly admitted. The learned Judge referred to the Primary Court Criminal

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Procedure code, 3rd schedules the magistrates' courts Act, Cap. 537 and to the Magistrates' Courts (Rules of 1964 and in particular to Rule 15 of the latter which reads: "(1) In both criminal and civil cases the evidence of young persons must be supported by other evidence" and to Rule 30 (2) of the former which reads: "The evidence of the complainant, the accused person and all other witnesses shall be given on affirmation save in the case of a child of tender years who, in the opinion of the court, does not understand the nature of the affirmation."

Held: (1) "When these two rules are read together, it is inferable that the evidence of young children and/or, child of tender years cannot be admitted until the court is satisfied as to the capacity of such witnesses to give evidence. So that in effect although there is no specific provision, the primary courts have, by some form of assessment, to decide whether (a) such evidence should be received and (b) if so, whether affirmed or unaffirmed. In my view, therefore, the evidence of such witnesses as Moris and Zakari cannot be admitted without the trial court satisfying itself that such witnesses were capable witnesses. The evidence of these two juveniles was improperly admitted and therefore ought not to be taken against the appellant." (2) "The next issue is whether, in excluding the evidence of the two juveniles, there was still adequate evidence against the appellant. The learned state Attorney submitted that there was adequate evidence." [After reviewing the evidence for the prosecution and the defence], "On the evidence, I cannot say that the lower courts erred in accepting the prosecution's evidence. The conclusion was reasonable. I

find nothing on record which would justify the setting aside of this finding.”

(3) Appeal dismissed.

378. Mora v. R Crim. App. 286 –D – 71; 3/7/71; Onyiuke, J.

The appellant was charged with theft, obtaining by false pretences and house breaking. He was acquitted on four accounts but was convicted on the court of theft and sentenced to 2 years imprisonment. In his sworn testimony the appellant claimed the stolen articles as his and asked the court to call the Police Officer who searched his house to tender the receipts and other documents which he alleged were removed by the Police Officer from his house. He also asked for one Mtumwa to be called to give evidence because, he alleged, it was he who had made the furniture for him. The magistrate rejected the application on the ground that the addresses of the witnesses given by the appellant were vague. On not support the conviction in view of the Magistrate’s refusal to call the two witnesses whose evidence was material to the defence.

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Held: (1) “[T]he reasons given by the learned magistrate were not in the circumstances sufficient to refuse the application and [he] should have given the appellant an opportunity to call his witnesses [who] were very material to the defence and their evidence could affect the verdict Under s. 206(2) of the Criminal Procedure Code it was the duty of the court to help the appellant by adjourning the trial and issuing process to compel the attendance of such witnesses.” (2) “The reason that the addresses were vague was unconvincing. The appellant could have been asked to act as a pointer in regard to witness Mtumwa [and the Police Officer could have been traced]. It was wrong for the learned magistrate to proceed to judgment without listening to such important defence

witnesses.” (3) Appeal allowed. Case remitted to court below to enable appellant call his witnesses if available.

379. Gasper Melkior v. R. (P. C.) Crim. App. 216-A-71; 11/8/71; Bramble, J.

Appeal was against conviction and sentence on two charges of breaking into a bar with intent to commit a felony there in i. e. to steal contrary Section 294 (1) and stealing contrary to Section 205 of the Penal Code. The complainant alleged that he lost money, and other property including a mattress and pombe between 14 and 15 June, 1970. On 29th September, 1970 a mattress was found at the home of the appellant and was identified by the complainant by a spot of blood and two stamps at the corners. This was the only evidence tendered by the prosecution to implicate the appellant who testified that the mattress was one he bought in 1966 and called a witness in support. The appellant tried to explain the spot on the mattress by saying that his wife from whom he was separated gave birth to a child on it and so spoiled it. The wife denied this whereupon the trial magistrate concluded that the appellant did not prove ownership and consequently he stole it.

Held: (1) “All that the appellant had to do was to raise reasonable doubt. The only real identifying mark was the spot of blood since all mattresses of the same make will have stamps on them.” (2) “The only ground on which the appellant could be convicted of the offences was on the basis of the doctrine of recent possession. Basically it is that if a person is found in possession of goods recently stolen he can be presumed to be the thief or the receiver. What is recent possession depends on the nature of the goods. A mattress can easily pass from hand to hand and I am prepared to concede that in this case a period of 3¹/₂ months is good enough to invoke the doctrine. Since, however, the appellant gave a story of having bought the mattress and this could reasonably be true he satisfied the burden cast on him. The trial magistrate did not direct himself on the law and I cannot say that he must

necessarily have come to the same conclusion had he done so.” (3)
Appeal allowed.

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380. Alimasi & Anor. v. R. Crim. App. 501/2/-D-70; 23/8/71; Biron J.

The two appellants were convicted together with a third man who has not appealed, of stealing corrugated iron sheets belonging to the Forest division of the Ministry of Agriculture, Food and Cooperatives. During the trial, as the learned judge remarked, the ‘magistrate misdirected himself in law on nearly every conceivable aspect’. In addition, the trial magistrate relied on a statement made by the second appellant to a Police Officer incriminating the other two accused. The second appellant denied having made the statement and claimed that the police Officer had written the statement which he was asked to sign. The main issues before the court were first, what approach should an appellate court take i. e. whether or not the appellants were entitled to have the appellate court’s own consideration and views of the evidence as a whole and its own decision thereon; second, whether or not the alleged statement by the second accused to the Police Officer incriminating the other accused was admissible in evidence.

Held: (1) “I propose to examine the evidence by way of rehearing and disregard the misdirection of am not particularly concerned as to whether, if the magistrate had directed himself properly on the law, he would necessarily have come to the conclusion he did, as I consider that irrelevant if the function of this court on appeal is, as laid down by the authorities, that of a rehearing. It should perhaps be added that if the misdirection are based on, or concerned with, the credibility of the witnesses, then obviously this Court cannot substitute itself for the trial court, which had the advantage of seeing and hearing the witnesses, an advantage denied an appellate tribunal.” [Citing Gregory Odico Roser v.

R., Crim. App. 495 of 1970p Coghlan v. Cumberland, (1898) 1 Ch. 704; Scott v. Musial (1959) 2 Q. B. D. 429]. (2) “In his judgment the magistrate relied on a statement made by the third accused incriminating the other two accuseds to a Police Officer, a Detective constable Phillimon, who gave evidence, but nowhere in his evidence does this witness state or even suggest that he took any statement at all from the third accused. And in his evidence when it was put to him, the third accused denied having made any statement to a Police Officer, and alleged that a Police Officer had his self written out a statement which he asked him to sign, and he denied its contents. It was therefore inadmissible against the third accused, as it was not properly produced, particularly as the third accused denied having made it. And it was doubly inadmissible against the other accused as expressly laid down in section 33 of the Evidence act, which reads; - “33. – (1) When more persons than one are being tried jointly for the same offence and a confession made by one of such persons affecting himself and some other of such persons is proved, the Court shall not take into consideration such confession as against such other person

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but may take it into consideration only against the person who makes such confession. (2) In this section offence includes the abetment of or attempt to commit, the offence.”

N. B. After reviewing the evidence, the judge dismissed the appeal.

381. Huglin s/o Malianus v. R. Crim. App. 31-D-71; 27/8/71; Biron J.

Appellant was convicted of burglary and stealing c/ss 294 (1) and 265 of the Penal code and sentenced to 2 years imprisonment and 1 year respectively, the sentences to run concurrently. It was also ordered that he receive 24 strokes, corporal punishment under the Minimum Sentences

act, 1963. The house of the complainant was broken into on 4 November, 1970 when the owner went out for a stroll with his mistress. On their return, they discovered the breaking in and the loss of a large number of articles including a camera and a thermos flask. The matter was reported to the Police. On 17 November, a Police Officer accompanied by the complainant's mistress and another local resident found a camera and a thermos flask in the house of the appellant, after he had denied all knowledge of these stolen articles. A TANU card and photographs belonging to the complainant were also found in a gourd full of ashes. Other properties were found with the help of the appellant himself. The appellant defence was that he had been framed by the prosecution witnesses.

Held: (1) "There is no merit in this appeal for The conviction is overwhelmingly supported and justified by the evidence, and the sentence imposed is the minimum sentence. The appeal would appear to have been admitted to hearing only on account of the apparent absence of a search warrant, which would render the search of the appellant's house illegal." (2) "Even if there was no search warrant, and the search was illegal, that would not affect the issue in the slightest or render inadmissible the production of the property found in the appellant's house as laid down in Kuruma bin Kanin v. The Queen (1955) A. C. 197 (P. C) where it is sufficient to quote from the headnote. 'The test to be applied, both in civil and in criminal cases, in considering whether evidence is admissible is whether it is relevant. If it is, it is admissible and the court is not concerned with how it was obtained.'" (3) Appeal dismissed in its entirety.

382. R. v. Mbilinyi Crim. Rev. 68-D-71; Saidi C. J.

The accused was convicted for driving an uninsured motor vehicle c/s 4(1) of the Motor Vehicle Insurance Ordinance, Cap. 169. The District Magistrate refused to make an order of disqualification against him

because he found that the accused was driver of the owners of the car and believed that the motor vehicle was insured at the material time.

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Held: (1) "That [the accused] believed that the motor vehicle was insured at the material time it seems to me that the learned Resident Magistrate properly exercised his discretion in not disqualifying him." His lordship relied on R. v. Mtumwa s/o Ahmed, 1 T. L. R. 99 agreeing with Mahon J's analysis of the judgment of Singleton J. in Blows v. Chapman [1947] 2 All E. R. 576. (2) Confirmation of the decision that an order for disqualification will not be made.

383. R. v. Joseph Sebastian Crim. App. 37-M-71; 20/8/71; El-Kindy, J.

The accused was convicted of housebreaking and three counts of stealing c/s 294(1) of the Penal Code, and sentenced on the first count to 2 years' imprisonment and 24 strokes of corporal punishment. On the other three counts he was sentenced to 1 year imprisonment on each count to run concurrently. There was no order for compensation because the alleged stolen articles were recovered except a pair of shoes for which the trial court did not find it necessary to make such an order. The facts, which were not in dispute, were: the accused called at the house of the complainant at about 8.30 a. m. then left together leaving a number of articles of clothes on the line, later they separated. When the complainant returned at 12 noon, the clothes together with a transistor radio, etc. were missing. Later the accused was found with a radio which was identified as the property of the servant of the complainant's neighbour. He was also found wearing a shirt and a pair of socks belonging to the neighbour and the complainant respectively. The rest of the missing items were recovered at the house of Zakaria (P. W. 6) who was living with accused's sister. The defence was that accused bought the articles from Kaiza the

complainant's servant for Shs. 250/= and so the accused had no reason to suspect that Kaiza was selling stolen property.

Held: (1) "I am satisfied that the learned trial magistrate was justified in holding that as she did The accused had made no reference, not even a side hint, to the effect that he bought the same from Kaiza I am satisfied that the explanation put forward by the accused was an afterthought." (2) "The accused was found in recent possession stolen property, and in the circumstances, the trial magistrate was justified in holding that the accused was guilty of housebreaking and theft." (3) "I am satisfied that Kaiz's evidence left no reasonable doubt that the door of the house was closed when he left with the accused. Therefore, ingress into the main house where the radio and other items were kept, could not be effected without pushing the door open, and this in law amounts to breaking. I see no reason to disturb the finding of the learned Magistrate." (3) Appeal dismissed.

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384. Akech v. R. Crim. App. 169-M-71; 12/8/71; Kisanga, Ag. J.

The appellant was charged and convicted of arson c/s 319 (a) of the Penal Code. At the appellant's trial his wife was called as a witness for the prosecution. Before she gave her evidence the trial magistrate asked the appellant whether he had any objection to his wife giving evidence against him and the appellant said he had none. The wife then gave her testimony.

Held: "This was not in accordance with the provisions of Section 130(2) of the Evidence Act. That sub-section requires the Court to address not the appellant but his wife and to inform her that she was under no obligation to testify against her husband but that she may give evidence against him if she chooses to do so."

385. Sangu Saba & Anor v. R. (K) Crim. App. 26 – E. A. C. A. – 71; 14-9-71; Law J.

The appellants were convicted by a Resident Magistrate's Court, Kenya, of robbery with violence, the first appellant who was found to be 16 years of age was sentenced to 3 years detention in a Borstal Institution and the second appellant who was found to be 18 years of age, was sentenced to fourteen years imprisonment with hard labour and 10 strokes of corporal punishment. The appellants appealed to the High Court. The first appellant intimated that he did not wish to be presented at the hearing of his appeal and was accordingly absent, while the second appellant was represented by an advocate who successfully applied to call additional evidence. The witnesses gave evidence but, owing to his absence, the first appellant had no opportunity of cross-examining them. In his judgment the learned judge stated that the additional witnesses had been called "on behalf of the appellants."

Held: (1) "In Grey Likungu Mattaka & 5 Ors. v. R. (Cr. App. No. 32 of 1971; as yet unreported) this court laid down that where an accused wishes to cross-examine his co-accused, he should be permitted to do so as of right, and that the scope of such cross-examination should not be restricted. The same principles apply, in our view, to witnesses called on behalf of a co-accused. We see no difference in this respect in the case of witnesses called at the trial, or as additional witnesses on appeal. In either case an accused person who did not call these witnesses as his own witness has the right to cross-examine them. The first appellant in this case was not given the opportunity to do so. The question arises – what are the consequences of such an omission. The appeal must be allowed if there is a possibility that the omission resulted in a failure of justice. In the instant case we are satisfied that no such possibility exists. It is unlikely in the extreme that the first appellant would have had any relevant questions to put to the additional witnesses, whose evidence did not implicate him in

any way.” (2) “A medical certificate was produced, presumably by the prosecution, to prove the age of the second appellant. This contains a

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reference which indicates that an E-ray photograph was taken, and the report itself reads – “Age 18 years. Head of radius united to shaft.” It is so well known as to be within the judicial knowledge of the Court that, even with the aid of X-rays, age cannot be assessed exactly. The medical officer was not called to give evidence and we do not know what would have been his answer had he been asked if he could exclude the possibility of the second appellant being under 18 years. This element of doubt is not excluded by reference to Taylor’s Principles and Practice of Medical Jurisprudence (12th Edition). In Vol. 1 at page 141 the author states that by 16-17 years of age, the head of the radius should be joined to the shaft, but on the following page he says that in tropical climates ossification takes place earlier than in temperate zones. In India and Ceylon it is apparently about two years earlier. No information is given regarding Africa. We think that had the learned magistrate appreciated that on the evidence before him, there was a real doubt whether the second appellant was above or below the age of 18 years at the date of the offence, he would have given the benefit of that doubt to the second appellant, and accordingly that the finding of age must be regarded as a misdirection.”

386. Mbeluke v. R. Crim. App. 61 of 1971. E. A. C. A. 20-7-71; Spry V. P.

The appellant was convicted of murder and sentenced to death. Before the commencement of his trial he had been remanded by the High Court at the request of the State Attorney for medical observation at the Isanga Institution under Section 168A of the Criminal Procedure Code. at his trial nothing was said of his mental condition until the end of the case for the

defence, when at the request of the defence attorney, the psychiatrist's report was put in. it stated, inter alia, that the appellant had no clear recollection of the events at the time of the alleged crime and concluded "I am of the opinion that the accused has suffered from Catatonic Excitement. This is a Schizophrenic Reaction in which the patient became acutely disturbed with destructive and aggressive behaviour I am also of the opinion that it is most likely that he committed the alleged crime while in this state of unsound mind."

Held: (1) "At the beginning of his summing up the judge said to the assessors "It is your duty and yours alone to find the facts" but it is obviously that this was a slip of the tongue. Although the judge may derive great assistance from the opinions of the assessors, decisions of fact as well as law are entirely his." (2) "Mr. Jadeja submitted that the judge had virtually excluded [from the assessors] the question whether the appellant had known what he was doing In seeking the opinions of the assessors he put a specific question "did he know that that he was doing in seeking the opinions of the assessors he put a specific question "did he know that what he was doing in seeking the opinions of the assessors he put a specific question "did he know that what he was doing was wrong?" But did not put the other question, whether the appellant knew what he was doing We think there is some merit in this criticism. (3) "The judge appears to have put three specific questions to the assessors, instead

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of seeking their opinions generally. This is a subject with which we dealt in the case of Victory Kalinga v. R. Cr. App. No. 17 of 1971 (unreported)." (4) "Mr. King (for the Republic) submitted that the report of the psychiatrist was not admissible in evidence and that if it were excluded there was no evidence on which a finding of insanity could be based. (He submitted)

that Section 168A applies were “it appears to the Court during the trial” and that this restricted the scope of the section to those cases where in the course of the proceedings, the judge, from what has taken place before him, suspects insanity. He argued that here the issue did not arise in the course of the trial and was not raised by the judge but by the State Attorney. We have no doubt that the matter arose “during the trial” because the appellant had been arraigned and had pleaded to the charge. We think also that the words “it appears to the court” apply equally whether the question is drawn to the attention of the court or is raised by the court of its own motion. We think therefore that the psychiatrist’s report was properly admitted.” (5) “If the issue (insanity) has substantially been raised by the defence we think the burden of proof must rest on the defence in the ordinary way. If the issue has been raised by the court itself, possibly against the wishes of the accused person, there can obviously be no burden of proof on the defence. In any case however, we think the standard of proof must be the same, that is, the balance of probabilities.” (6) “The evidence at the trial gives the impression of a senseless attack on one of a group of children playing together. The statements at the preliminary inquiry present a completely different picture of a man who must have been completely berserk, who caused a general, local panic and who inflicted grave injuries on three men, apart from killing the small girl, the subject of the charge. The only constant factor is that there was no grievance, no quarrel, and no provocation that caused the appellant’s behaviour. We have not the slightest doubt, on the evidence at the trial; including the psychiatrist’s report, read with the earlier statements, that the appellant was insane, legally as well as medically, at the time of the killing. We think that both the state attorney and the advocate for defence were at fault in not ensuring that the relevant facts were brought out at the trial and in those circumstances we think, with respect that this is one of those exceptional cases where the judge would have been justified in taking a rather greater part in the proceedings.” (7)

"The appeal is allowed, the conviction is quashed and the sentence of death set aside and there is substituted a special finding that the appellant did the act charged but by reason of his insanity is not guilty of the offence. The appellant is to be kept in custody as a criminal lunatic, pending the order of the Minster."

387. Harji Abemada v. R. Crim. App. 177-M-71; 13/8/71; El-Kindy, J.

The appellant was convicted of causing death by reckless driving c/s 44A (1) (a) of the Traffic Ordinance Cap. 168 as amended by section 15 of the Traffic Ordinance (Amendment) act 1964. He was sentenced to 16 months imprisonment and disqualified from holding a driving licence for 24 months. The appellant was the driver of a bus which collided with another vehicle and then struck a wall and overturned. The body of the deceased.

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Was found pinned under the bus. An examination of the bus by P. W. 2 showed that at the time of the accident the front offside spring bushes were worn out, the handbrake was not functioning and the front propeller shaft universal bolts were loose. There was no reliable evidence of the state of the footbrake before the accident. Three prosecution witnesses gave evidence that at the time of the accident the bus was being driven at "a high speed". The identity of the deceased was never established.

Held: (1) "I am satisfied that (failure to identify the deceased) in not a fatal omission as there was no doubt that it was the body of a human being." (2)"The learned magistrate held that in driving as he did the appellant was reckless. In coming to this conclusion he held that the appellant drove at a high speed there is no doubt that the learned resident magistrate relied on the evidence of P. w. 3 and P. W. 4 who alleged that the appellant drove at a "high speed", but none of them could estimate the speed of the bus. P. W. 2 said that the overturning was due

to driving at a high speed. As it was held in Mwinjuma v. R. 1971 H. C. D. 61 opinion evidence as given by the prosecution witness cannot be relied upon to establish that the appellant's speed was "high" before or during the incident. The cases of W. Milburn v. R. 2T. L. R. (R) p. 27 and G. M. Daya v. R. (1964) E. A. 529 are relevant on the issue of opinion evidence as to speed." (3) "The gazette vehicle inspector could not tell whether the brakes were functioning or not before the incident. In the absence of reliable evidence on the state of the brakes before the incident, it cannot be said that the appellant's explanation (that the accident was due to the failure of his brakes) was not reasonably probable." (4) The appeal was allowed.

388. Bakari Manyike v. R. Crim App. 348-M-71; 20/8/71; El – Kindy, J.

The applicant was convicted of misconduct occasioning loss to the property of his employer c/s 284A of the Penal Code as amended by Act No. 1 of 1970. The applicant appealed and this was an application for bail pending the determination of his appeal. The applicant was involved in an accident while driving a Government Land Rover. The applicant was not the driver assigned to the land Rover and there was evidence that before starting on his journey he had bought two bottles of beer. The advocate for the applicant argued that there were overwhelming chances that the appeal would succeed since (1) the alleged regulations prohibiting persons such as the applicant from driving Government vehicles were not produced in court and therefore it was not proved that the applicant was guilty of contravening the section; and (2) there was a likelihood that the sentence of 12 months imprisonment would be reduced.

Held: (1) "It is well established that when there was overwhelming chance of the appeal succeeding, bail would be granted (see Hassanali Maiji v. R. 1968 H. C. D. No. 174 and Attilico Mosca v. R. Msc. Cr. C. 12 1968). In this case the regulations were not produced in court in evidence,

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as it should have been but there was the evidence of the Area Secretary on the matter. Whether in fact the evidence of the Area Secretary alone, without the production of the regulations would be enough to sustain or obtain a conviction is a matter of serious argument. In my view, the matter is so balanced that it is difficult to say from a mere reading of the judgment of the learned resident magistrate that the chances of success are overwhelming.” (2) “The second point taken appears to be a novel one, and I express no opinion on the matter, especially when it is a matter of argument whether the sentence of 12 months on the facts and circumstances of this case was so excessive that an appellate court would be inclined to reduce it if the conviction is upheld.” (3) The application was dismissed.

389. Robi v. R. Crim. App. 792-M-70; 20/8/71; El –Kindy, J.

The appellant was convicted by a Primary Court of cattle theft c/ss 268 and 265 of the Penal Code and sentenced to 3 years imprisonment and 24 strokes of corporal punishment. His appeal to the District Court was dismissed. The only evidence against the appellant was that of an 8 years old child, Mwita Magaigwa.

Held: (1) “Magaigwa’s evidence was not properly admitted as required by Rule 30(2) of the Primary Courts Criminal Procedure Code, Third Schedule to the Magistrate’s Courts Act, and 1963 Cap. 537 It is necessary that the trial court examines the child witness before admitting his evidence. In this case the record is silent.” (2) “Even if such evidence is properly admitted, it cannot be acted upon unless there was supporting evidence as required by Rule 15 (1) of the Magistrates Courts (Rules of Evidence in Primary Courts) Regulations 1964 (G. N. 22 of 1964). In this case apart from the evidence of Magangwa there was no supporting evidence” (3) the appeal was allowed.

390. John s/o George & Anor. v. R. Crim. App. 827-D-70; September, 1971; Onyiuke, J.

The appellants were convicted on a charge of robbery with violence c/s 285 and 286 of the Penal Code. The facts were that a dwelling house-cum-shop was burgled on the material night. A hue and cry was raised and a report received that two of the gang were to be found in a neighboring village. A game scout armed with a rifle and a party of villagers set out to look for the burglars. They came upon the two appellants, one armed with a shot gun, a pistol and a torch; the other was armed with a pistol. The game scout halted them and was interrogating them when the 1st appellant grabbed him and both appellants overpowered him, took away his rifle and escaped. They were later arrested in another village. On arrest they led the arresting party to the spot where they had hidden the rifle which was recovered. The appellants defence was that they were innocent and were mistakenly arrested.

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Held: (1) "The issues before the learned Magistrate were whether it was the appellants who robbed PW. 1 (of his rifle) as alleged and whether they had been sufficiently identified." (2) (After quoting section 171(1) of the Criminal Procedure Code) "The judgment neither contained the point or points for determination nor the reasons for the decision. Where there is conflicting evidence or where the evidence tendered by the prosecution is denied by the defence and the defence gives a different version, it is the duty of the trial court to assess and evaluate the evidence and give some indications why it accepted one piece of evidence in preference to another. It is my view that the learned magistrate's judgment did not comply with s. 171(1) of the Criminal Procedure code." (3) "I have now to consider the effect of this non-compliance. Section 346 of the Criminal

Procedure Code provides that no omission or irregularity in the judgment is fatal unless it occasions a failure of justice There were no discrepancies in the prosecution case to weaken it or to raise doubts as to the appellants' guilt. Further the defence in this case has been destroyed by the discovery, on the disclosures of the appellants, of the rifle from the place where they hid it. The failure to give reasons in the judgment is not in the circumstances of the case invalidates the decision as it did not lead to a failure of justice. I dismiss the appeal against conviction."

391. Patel v. R. Misc. Crim. Causes No. 24-D-71; 20/9/71; Biron, J.

Applicant was charged on six counts of offences against the Exchange Control Ordinance. He applied for bail on the day when he appeared in court in answer to the charge. Bail was refused on the ground that the accused might not be available to stand his trial. The magistrate also took into account the seriousness of the offence and his chances of leaving the country for he had correspondents in Europe, Canada and India. The accused then applied to the High Court for bail, not as an appeal against the Magistrate's order, but as a separate and distinct application.

Held: (1) [A] man whilst awaiting trial is as of right entitled to bail, as there is a presumption of innocence until the contrary is proved. In this instant case I accept that the accused is a man of good character. Good standing, even of substance." (2) "I would say that the court should be guided by four main principles [on the granting of bail pending trial]. The first and foremost is that the court should ask itself whether the accused would be available at the trial. Another principle which the court should consider is whether the accused is likely to commit further offence if he is allowed out on bail in which case his character is certainly not irrelevant. A further principle is whether the accused is likely to interfere with the investigation by influencing witnesses or otherwise, and [Finally] the gravity of the accusation and the severity of the punishment if conviction results,

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as to whether that in itself would prompt an accused to jump his bail.” (3) “The first and foremost principle [in this case] is the availability of the accused when he is due to come up for trial And that is really the sole consideration. There is no likelihood [that the accused would commit another offence whilst on bail]. The only question is, will he or will he not be available to stand trial?” [After reviewing the evidence contained in the accuseds affidavits and a cross-affidavit the learned Judge ruled:] “However much it goes against the grain, I find myself in the position that I cannot resist Mr. Tampi’s submission that the Republic’s apprehension that the accused may not be present to stand his trial is well grounded, so that in such case the court, I am sorry to say, is constrained to uphold such submission.” (4) Bail refused.

392. Salimu v. R. Crim. App. 282-D-71; 1/9/71; Mwakasendo Ag. J.

The appellant and two others were convicted of causing grievous harm c/s 225 of the Penal Code. he was sentenced to pay a fine of Shs. 200/- and in addition ordered to pay Shs. 50/= as compensation to the complainant. The facts surrounding the assault were that the complainant collided with the accuseds’ cattle. This resulted in the untimely distraction of one. Being incensed with anger they assaulted the complainant causing him to suffer grievous harm. On the appeal against sentence and order for compensation.

Held: (1) “The appellant’s complaints against sentence have no substance. He had no right whatsoever to resort to the jungle law of “instant justice”. Courts would be failing in their duty if they were not to discourage the brutality involved in this kind of practice by imposing deterrent sentences.” (2) “However, there remains the question. The

learned magistrate ordered the accused to compensate the complainant in the total sum of Shs. 150/=. In so doing the magistrate seems not to have considered the issue of damages which the accused persons could claim from the complainant for the destruction of their head of cattle. As facts stand it is most likely that a claim for damages for the head of cattle would completely offset any award of compensation under section 176 of the Criminal Procedure Code. The better course would have been to leave all parties to pursue their civil remedies as they deemed fit.” (3) Appeal against sentence dismissed, order for compensation set aside.

393. Jadav v. R. Crim. App. 8-M-71; 16/9/71; El-Kindy J.

The appellant was the guest of the complainant from whom he borrowed various sums of money totaling Shs. 1570/=. He told his creditor that he would repay the money by cheque and issued a post-dated cheque in his favour for

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the amount. When presented on the due date it was returned with the remarks “No account”. The appellant around the same time borrowed Shs. 1500/= from another and issued a cheque for that amount. The cheque was presented at the wrong bank and was therefore returned unpaid. The appellant had a bank account but insufficient funds to satisfy the debt. The court found that if both cheques had been presented to the bank on the dates they were due to be paid, payment would not have been effected because of insufficient fund. The appellant contended that he was expecting Shs. 25000/= to be paid into his bank account by his brother before the due dates. The court found him guilty on 2 counts of obtaining money by false pretences c/ss 301 and 302 of the Penal Code and sentenced him to a term of imprisonment for 2 years. He appealed.

Held: (1) “To succeed in a charge based on S. 302 of the Penal Code, the prosecution must prove, beyond reasonable doubt that (a) the person charged has obtained or caused another to deliver to another something capable of being stolen by (b) means of false pretence, and (c) with intent to defraud. In the absence of proof of any of these ingredients conviction cannot be obtained or, if obtained, cannot be sustained for obtaining by false pretences.” (2) “The representation of a matter of fact is held to be false if the representor knew that it was false or he did not believe in its truth, and this representation has to relate to past or present fact. It could not relate to the future for the simple reason that what is in future is unknown and could not therefore be said to be false. In this case, with respect, both post-dated cheques relate to the future and therefore if was not within the meaning of Section 301 of the Penal Code. The appellant at no time told Balsara and Barai that he had money when he drew the cheque. What he told them was that money would be available on the dates mentioned on the cheques.” (3) [Dealing with the Republic’s submission that a conviction for cheating c/ss 304 of the Penal Code could be substituted on the present facts]; “Cheating is obtaining or causing another person to deliver to the other something capable to being stolen by means of a device or a fraudulent trick. It cannot be said in this case that the appellant used a fraudulent trick bearing in mind what he said about his money not coming from Uganda, and the post-dating of the cheques.” (Citing Machoea Binmasapi v. R. 1 T. L. R. (R)\ p. 305). (4) Appeal allowed.

394. Omari Manamba v. R. Crim. App. No. 3-M-71; 16/9/71; El-Kindy; J. Appellant was convicted of stealing by a person employed in the public service c/s 270 and 265 of the Penal Code. He was sentenced to 2 years’ imprisonment. As he was over 45 years he did not qualify for the statutory corporal punishment, but he was ordered to pay Shs. 122/= as compensation to the E. A. P. & T. Corporation. The appellant was

employed as a linesman by the Corporation at Tabora. In 1962, on his transfer to Kahama, he was

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issued with 5 empty mail bags for use in the course of his employment. But when he returned to Tabora he failed to return the bags. He retained them for his own use. A police constable searched the appellant's house and found that the 5 empty mail bags had been sewn into a mattress. Appellant pleaded guilty to the charge. The main grounds of appeal were as to the amount of the compensation and as to sentence.

Held: (1) "It seems to me that, for purpose of the Minimum Sentences act, 1963, Cap. 526, there must be strict proof of age and value of property and in the absence of such proof the benefit should be given to the appellant (see Abdallah Ali v. R. 1969 H. C. D. No. 298 and Haslett v. R. [1967] E. A. 802). In this case the learned magistrate erred in holding that the value of the stolen bags were above Shs. 100/=. He had no evidence for this finding. In so doing, he fettered his discretion to act under S. 5 (2) of the Minimum Sentences Act, 1963, Cap. 526". (2) 'The appellant had worked for his employer for 30 years with a clean record, and he had a clean record for all that time. He was 48 years old. He had seven children who were attending school. He had a "very old" mother who depended on him. He also asked for mercy The appellant had shown special circumstances: [Citing Juma s/o Saidi v. R. (1967) H. C. D. No. 359; R. v. Angasile s/o Mwaikuga (1968) H. C. D. 325 Paulo s/o Vincent v. R. (1968) H. C. D. 476 Shabani Mbunda (1969) H. C. D. 75; Hassan s/o Shemlungu (1969) H. C. D. 45] "and, therefore the learned magistrate could have exercised his unfettered discretion under section 5(2) of the Minimum Sentences Act, 1963, Cap. 526. (3) "This Act came into force on 17th of June, 1963. And the alleged offence was committed in 1962 – the exact date was not given. This clearly shows that the offence

was committed before the Act (Cap. 526) came into force. The issue, therefore, was whether this Act applied retrospectively to offences committed before the coming into force of this Act. It is a well established rule of statutory interpretation that a statute would not be made to act retrospectively unless specifically or by necessary inference it is found that it applies retrospectively where it affected existing right or obligation unless it affected matter of procedure only." His lordship then continues: "Section 4(1) – (1) Any person who, after the date of coming into operation of this Act, is convicted of a scheduled offence whether committed before or after such date of coming into operation shall be sentenced to imprisonment....." the underlined words leave me in no reasonable doubt that this Act was intended to act retrospectively by necessary implication from the wording of the statute itself. Therefore, the trial court was right in convicting him and passing a sentence under Act." (4) The appellant qualified for treatment under Section 5(2) of the Minimum Sentence Act and taking into account the period he had been in prison serving sentence he should be released. Order for compensation set aside.

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395. Liti v. R. Crim. App. 121-D-71; 17/9/71; Onyuke J.

The appellant and another were charged with practicing Dentistry without a licence c/s 36(1) (c) of the Medical Practitioners and Dentists Ordinance, Cap. 409. The facts of the case were, in 1970 and '71 there were rumours in Singida about a disease called Lawalawa and that this epidemic will befall all the people who did not remove their teeth. The accuseds and many others who were not dentists involved themselves in removing teeth of young children the accuseds had removed the teeth of 19 children, 1 of whom died. The accuseds pleaded to the facts of the charge as follows: "All facts of the case are true". The trial magistrate then made the following

entry, "The trial magistrate then made the following entry, "The accused have pleaded guilty and are convicted on their own plea of guilty as charged." They were convicted to terms of 3 years imprisonment subject to confirmation by the High Court. The appellant appealed against conviction and sentence.

Held: (1) "The appellant's plea was unequivocal and she admitted facts which amounted to guilt of the offence charged. Her appeal against conviction is therefore incompetent in view of s. 313(1) of the criminal Procedure Code." (2) "The learned magistrate wrote at length on his reasons for imposing a stiff sentence on the appellant. His style and the tenor of his observations might have prompted the criticism by the appellant that he was talking politics. I think, however that he was entitled to take certain factors in to consideration in assessing sentence. What he was saying in effect was that this particular type of offence was prevalent in Singida Region and that the illegal practice had brought untold harm to the nation and was an unscrupulous exploitation of the superstitious belief of the people which should be discouraged. I would not say that these are matters extraneous to a proper assessment of sentence. I will uphold the sentence and confirm it. "(3) Appeal dismissed.

396. R. v. Basilh, Application for bail pending appeal: 29/9/71; Onyiuke, J.

The appellant was convicted of the offence of corrupt transaction c/s 3(2) of the Prevention of Corruption act, 1971. he had offered and gave 20/= to an employee of the Income Tax Department as an inducement for the latter to issue him a tax clearance certificate without his investigating that he had paid all income tax due. The appellant was apprehended in a police trap handing over the money to the officer. The magistrate accepted the evidence of the employee, convicted the appellant of the offence and sentenced him to 12 months imprisonment. The appellant sought bail pending the appeal under section 321(1) (a) of the criminal Procedure Code. His counsel contended that the magistrate admitted and acted on

hearsay evidence, that certain witnesses were not called with the result that the prosecution's case was seriously weakened. He also claimed that the magistrate wrongly admitted a confessional statement made by the appellant.

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Held: (1) "The purpose of these submissions was to show that the appeal that had merit and was likely to succeed. I am not persuaded that the appellant had made out a case for bail. It is now well established principle that bail pending appeal should not be granted except in a case where there are over-whelming chances of success. The learned counsel's submissions will require the consideration of the evidence in depth and this is not the function of a court considering the question of bail. The court is not hearing the appeal at this stage. There was nothing on the face of the judgment which would indicate that the learned magistrate was manifestly wrong in his conclusion or that he grossly misdirected himself. Whether the appellant's statement amounted to a confession as contended for would have to be argued and the effect of its wrongful admission would then have to be gone into in the light of the evidence which is not now before me." (2) Application for bail refused.

397. Sanga v. R. Crim. App. 328-D-71; 10/9/71; Biron, J.

The appellant was convicted on two counts under the Hotel Accommodation (Imposition of Levy) Regulations made under the hotel Accommodation (imposition of Levy) Act, 1962, of failure to pay the levy collected or which ought to have been collected from guests staying at his hotel, and of failure to submit returns which are required to accompany the payment of the levy. He was fined Shs. 10/= or distress in default on each count. The relevant sections of the regulations read: "4. the owner shall, subject to the provisions or regulation 6, within seven days of the last day

of every month pay to the Internal Revenue Officer the whole of the amount of the levy collected by him during that month.” “5 Every payment of levy shall be accompanied by a return in the prescribed form duly signed by the owner.” It was established that the appellant was neither the owner nor the manager of the hotel which belonged to his relatives. He was a school teacher and helped in the management of the hotel.

Held: (1) “Even if he took some part in the management that would still not make him the manager. The Regulations which create penal offences must be strictly construed, and to bring within the definition of “owner” anybody who assists in the management, not being the manager himself but working under the manager, extends far too comprehensively the definition of “owner””. (2) (Obiter): “I cannot refrain from remarking that I fail to see how, even if the appellant were the owner or manager and had been properly convicted of an offence under Regulation 4, he could be convicted of an offence under regulation 5 as above set out, for the offence lies in the payment of the levy not being accompanied by a return in the prescribed form. If no levy is in fact paid, it is difficult if not impossible to envisage how an offence can be committed by the failure to accompany a non-existent payment by a return. It may seem a little odd that where payment is made and is not accompanied by a return an offence is committed, but no such offence is committed if there is no payment, but it is really not quite as odd as it seems at first blush, for the lesser offence of not annexing a return to the payment is obviously merged in the greater offence of not remitting any payment at all.” (3) Appeal allowed.

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398. R. v. Melanyi Crim. Sass 59-A-71; 9/9/71; Kwikima Ag. J.

The accused was charged with murder. He made a confession to killing the deceased at the time of arrest, which he later withdrew.

Held: (1) "The accused admitted killing the deceased. When the trial came he retracted his admission. It is trite law, and authorities abound on this point, that an admission or confession which has been retracted cannot support a conviction unless it is corroborated by other evidence. The East African Court of Appeal in *Tuwamoi v. Uganda* 1967 E. A. 84 referred to an extract from *R. v. Keisheimeiza* 7 E. A. C.A. wherein Woodrofter and Ameer Ali 9th Edition p. 277 were quoted as saying: - "It is unsafe for a court to rely on and act on a confession which has been retracted, unless after consideration of the whole evidence in the case the court is in a position to come to the unhesitating conclusion that the confession is true, that is to say, usually unless the confession is corroborated in material particulars by creditable independent evidence or unless the character of the confession and the circumstances under which it was taken indicate its truth." Their Lordships went through a long list of precedents on this point. They then clarified the position (in the *Tuwamoi* case) as follows: - "We would summarise the position thus – a trial court should accept any confession which has been retracted With caution and must before founding a conviction on such confession be fully satisfied that in the circumstances of the case that the confession is true Usually a court will only act on the confession if corroborated in some material particular by independent evidence accepted by the court. But corroboration is not necessary in law and the court may act on a confession alone if it is fully satisfied after considering all the material points and surrounding circumstances that the confession cannot but be true." If I understand them, their Lordships are merely paraphrasing the rule that it is unsafe to convict on a retracted confession if there is no independent evidence in support of the confession." (2) "But for his admission, the accused would not have been charged in the first place. Now that he has retracted the admission it would be most unsafe to

convict him when there is no evidence to corroborate his retracted admission. The circumstances of the case do not sufficiently warrant the conviction of the accused.” (3) Accused acquitted.

399. Magazi v. R. Crim. App. 713-M-70; 9/8/71; Jonathan Ag. J.

The appellant was a revenue collector employed by a District Council. One of his duties was to receive local rate from taxpayers in the area and to remit the money collected to the Council. For this purpose he was issued with receipt books, all for 1969 local rate. Each receipt had a space for inserting the receipt numbers on which local rate for the previous two years had been paid. On a number of occasions the appellant collected sums from taxpayers for both 1968 and 1969. He issued receipts inserting a receipt number in respect of 1969. He also inserted on

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the receipts, a receipt number for 1968 which was intended to give the impression to the authorities that the tax for 1968 had been collected and handed in some time before and receipts had been issued. The receipt numbers for 1968 were false in that the receipts corresponding to those numbers had been issued to persons other than the complainants. He pocketed the money for 1968 tax. He was found guilty on 7 counts of forgery c/ss 333 and 337 of the Penal Code & 7 counts of stealing by servant c/ss 271 and 265 and sentenced to concurrent terms of imprisonment of 6 months 2 years respectively together with the mandatory 24 strokes.

Held: “Republic submitted that the evidence did not support the charges of forgery. I respectfully agree; the entry of false receipt Nos. did not by itself make the receipts false within the definitions in sections 333-336 of the Penal code. He might more appropriately have been charged with fraudulent false accounting. This is not a minor offence to forgery and

I cannot, therefore, agree with the Republic's further submission that section 181 of the criminal Procedure Code could have been applied so as to find the appellant not guilty of forgery but guilty of fraudulent false accounting. Accordingly the convictions on the counts of forgery are quashed and the sentences thereon set aside. Those on the counts of stealing are upheld."

400. Lulu v. R. Crim. App. 353-D-71; 13/9/71; Mwakasendo Ag. J.

The appellant was convicted by the District court of Mpwapwa of two offences, that is to say, (a) Failing to keep a record of game hunted contrary to sections 23(1) (b) & (3) and 53(1) (a) (ii) of the Fauna Conservation Ordinance Cap. 302 of the Laws; and (b) Transfer of Fire Arm without permit contrary to sections 15 and 31(2) of the Arm and Ammunition Ordinance, Cap. 223 of the Laws; and was sentenced respectively to pay fines of Shs. 400/= and Shs. 500/=. The District Court further ordered his fire arm to be forfeited to the Government of the United Republic of Tanzania.

Held: (1) "Taking the first count in the Charge Sheet, I have no doubt that the appellant was properly convicted of the offence. His plea to the charge was without question an unequivocal one. Therefore the only other matter that I need consider is the severity of sentence. Bearing in mind the facts narrated by the prosecution in support of the charge in the first Count I do not think the offence so disclosed is to any extent a serious one and it does appear from the record that the District Magistrate was of the same view. There was therefore no justification for the District Court to impose a sentence which is, in the circumstances of the case, manifestly excessive. This the Magistrate did without bothering to find out whether or not the appellant, a first offender, had the necessary funds to meet the fine imposed. On consideration of the facts in this case I am not satisfied that the fine imposed correctly reflects the intrinsic gravity of the offence charged and it is accordingly reduced to Shs. 150/=

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(2) "With regard to the second count, the learned lady State Attorney referred to the High Court Case of Joakim Michael v. Republic (1963) E. A. 235. In that case Joakim Michael was charged with transferring to another his shot gun and ammunition without a permit, contrary to section 15 of the Arms and Ammunition Ordinance. When the charge was read over and explained to the accused he said: "It s true. I handed that man my shot gun and sixteen rounds of ammunition. I had no police permit." The Magistrate held that the accused's answer amounted to an unequivocal plea of guilty and convicted the accused. In revisions, Weston, J. held that "(1) The association of the word "transfer" in section 15 of the Arms and Ammunition Ordinance, with the words "sell" and "buy" and the use of the expression "either by way of gift or for any consideration", clearly shows that the intention is to restrict "transfer" to any disposition analogous to sale or gift, that is to say, to any disposition as a result of which the property in the arms or ammunition passes. (ii) Nothing that the accused said, nor his concurrence with the facts stated to the Court by the prosecuting officer amounted to an unequivocal admission of any transaction by which the property in the shot gun and ammunition passed to the person to whom the same were handed." The learned Judge accordingly declared the trial a nullity. In the instant case when the charge was read over and explained to Lulus/o Mang'ati, he said "I plead guilty". The record is completely silent as to the actual words used by the accused. Nor does one get any inkling as to the nature of the transaction involved from reading the statement of facts by the prosecuting officer. The accused has however clarified the matter in his memorandum of appeal where he stated that he had merely asked the person who was with the rifle to carry it for him into the forest where he was going to hunt wild animals. Accepting the accused's word with regard

to the transaction involved and I have no reason to disbelieve him in the absence of any other evidence to the contrary, it is clear that the transaction in this case cannot, in law, be described as a “transfer” in the strict legal sense of the word. Even assuming that the accused had lent the gun of his friend that would not bring his conduct within the ambit of section 15 of the ordinance. In my judgment, the facts as disclosed can never ground a conviction for an offence under section 15 of the Arms and Ammunition Ordinance and applying the principles enunciated in the Joakim’s case, I quash the conviction, set aside the sentence and order of forfeiture.” (3) “The result of this case does perhaps demonstrate quite plainly the inadequacy of the Arms and Ammunition Ordinance in restricting the “lending” of fire arms to unauthorized persons. Section 15 of the Ordinance would not, as already pointed out in this judgment, apply to this type of transaction. And yet this kind of transaction is alarmingly on the increase. The position is such that urgent review of the Law with regard to the ‘lending’ and “transferring” of fire arms is called for.” (4) Appeal allowed in part, that is to say the fine imposed on the first count is reduced and the conviction, sentence and order of forfeiture under the second count are quashed and set aside.

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CIVIL CASES

401. Hazel Mayers & Dennis Mayers v. Akira Rancha Ltd. Civil App. E. A. C. A. 18 of 1971; 15/10/71; Duffus P., Law Ag. V. P. and Mustafa J. A.
- The appellants applied, by way of originating notice of motion, for the rectification of the register of members of the respondent company. They alleged that their names had been properly entered on the register of members as the holders of one share each in the respondent company, and that subsequently their names had been deleted from the said register without their knowledge or consent. The order they sought was one for re-

instating their names as holders of one share each. The respondent company, in reply, filed a notice of preliminary objection asking for the motion to be struck out. The notice of preliminary objection referred to Civil Case No. 1353 of 1969, pending in the High Court. The facts of that case which were adverted to were that the appellants had obtained their shares from one C. H. Mayers who prior to the execution of the transfers to them had agreed to sell his shares to A. C. L. I. Company Ltd., a co-plaintiff in Civil Case 11353 of 1969. In other words, the implication was, that C. H. Mayers had no title in the shares to transfer to the appellants. The trial judge held that he was unable to regard the question of the re-instatement of the appellants' names as entirely distinct from the right of C. H. Mayers to his share, which was the subject of the other case which was pending. He therefore ordered an adjournment of the motion "until the hearing of civil Case 1351 of 1969".

Held: (Mustafa J. A.): (1) "I do not think that the learned judge was justified in staying the hearing of the motion to rectify until the decision in High Court Civil Case No. 1353 of 1969. The issues in that case bear little direct relevance to the matter of rectification of the register of members. It is true that the learned judge had exercised his discretion in making the order for adjournment and I would not lightly interfere with such an exercise of discretion. I am, however of the view that the learned judge had seriously misdirected himself in doing so. He should have confined himself to the application for rectification before him which concerned a narrow and distinct issue, instead of taking into account matters in another case which did not arise directly out of the application to rectify. The learned judge should have proceeded to hear the application on its merits instead of adjourning it. I think the learned judge had exercised his discretion wrongly: see Mbogo and another v. Shah [1968] E. A. 93". (2) "The learned judge had ruled that "there may well be circumstances where the removal of a name entered in error is justifiable." He relied on the case of Derham and Allen Limited (1946) Ch. 31 at 36 for that proposition.

Apart from the fact that I do not think that the decision in the Derham case supports such a proposition, it is somewhat difficult to understand how the learned judge could have said so as there was no evidence of any kind before him that the name was removed because it was first entered in the register in error.” (3) “Mr. Khanna [for the appellants] submitted

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That should he be successful in his appeal, this Court should order the respondent company to rectify the register of members by re-instating the names of the appellants as holders of the one share each. He submitted that there was a hearing of the motion on merits. I am not prepared to go that far. As I have pointed out earlier, in answer to the motion to rectify, the respondent company merely filed a notice of preliminary objection, without answering or traversing the allegations contained in the said notice of motion. I appreciate that facts alleged in an affidavit and not reversed are normally accepted as admitted. However I believe that the respondent company was in effect taking a preliminary objection on a point of law and was not at that stage concerned with facts as such. I also appreciate that the learned judge has stated that “the facts very briefly are as follows” and went on to enumerate them in terms of the allegations in the notice of motion to rectify. However reading the record as a whole I am satisfied that the respondent company had not entered on the stage of challenging the allegations as it was only taking a preliminary legal objection to the notice of motion. I do not think there was in fact any hearing on the merits, and the respondent company should be given an opportunity, should it wish to do so, to traverse or admit the facts alleged.” (4) Appeal allowed, order for adjournment set aside, matter remitted to the High Court for hearing.

The appellant successfully sued the respondent in the primary court for a piece of land. The respondent appealed to the district court where judgment was given in his favour. The appellant claimed that the land in dispute belonged to his deceased's mother who had inherited it from her father. He further told the court that this late mother gratuitously gave it to the respondent's father and allowed him to use it but that she at no time surrendered ownership of the land to him. It was established that after the death of the respondent's father, the respondent continued to cultivate the land.

Held: (1) "There was evidence (which evidence was accepted by the appellant) that the respondent has been in an uninterrupted occupation of the land for over 30 years. There was also undisputed evidence that the respondent's father who died over 30 years ago also used to occupy the same land without any interference from anyone". (2) "Broadly speaking, customary law does not recognize limitation to claim to land although common sense and natural justice requires that there should be some limitation in the institution of land suits. There can be no specific limitation period when dealing with land claims based on customary law as much would depend on the facts of each given case." (3) "Looking at the totality of the evidence, there can be no doubt that the land in dispute belonged to appellant's mother and the appellant is, according to Rangi customary law, the right person to inherit the said land. But due to his dilatoriness in claiming the land from the respondent he has, in so doing, given some prescriptive right to the respondent over the land. But

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notwithstanding the fact that the respondent has acquired a good claim to the land by prescription it would, in the light of the evidence in favour of the appellant, and the further fact that the parties are related, be

inequitable to allow him to win the whole land. There being no permanent crops on the land the only equitable remedy is to divide the land equally between the appellant and the respondent.”

Editor’s note: - The Magistrates Courts (Limitation of Proceedings under Customary Law) Rules, 1964 apply to claims to recover land held under customary law. These Rules are saved by the Law of Limitation Act, 10/1971 – See S. 50].

403. Kafula v. Manyinye Civil App. M-12-71; 30/9/71; Jonathan Ag. J.

The appellant is the father of a school girl who conceived for the respondent, her teacher. The district court found for the appellant and proceeded to award him compensation and to make a maintenance order. The appellant sought to enhance the maintenance order made of Shs. 60/= per month, it being alleged that the respondent is in receipt of a monthly salary in excess of a figure he gave.

Held: (1) “It has occurred to me that the appellant could not properly have bought the proceedings. The suit, it seems, was brought under the affiliation Ordinance which makes provisions for the maintenance of illegitimate children. Section 3 of the Ordinance provides, inter alia, that “any unmarried woman who may be with child or who maybe delivered of a child may make an application for the man cited as the child’s father to be summoned”. If upon hearing the application, the court is satisfied the man named is the child’s putative father, it may then order him to pay a specified sum as maintenance. There are no provisions in the legislation enabling anybody else to file a suit for maintenance.” (2) “There is, however, a real possibility that the appellant’s daughter was a minor at the time of his filing the suit. I would be prepared to assume that was so. In that case, having regard to the terms of Order XXXI of the Civil Procedure Code, he should have filed the claim, upon application, as her guardian or next friend, but the suit had to be in her name. That seems to have been neither the manner nor the understanding in which the

proceedings were conducted. The suit was filed and prosecuted in his own name and the compensation and maintenance orders appear to have been made personally in his favour it is appreciated that his daughter was in his care and that the offspring born to her became an added responsibility to him. He filed the proceedings, no doubt, to obtain a measure of relief from the additional commitment posed by the situation. In a word, he would appear to have had every justification for suing the respondent.” (3) “Most unfortunately, however, the law would not permit him to seek relief in the manner adopted. It did not entitle him to bring proceedings in his own name. That he did so, I am afraid, go to the root of the matter and the proceedings were a nullity”. (4) Orders made were set aside.

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404. Ally v. Nassor (PC) Civ. App. 108-M-70; 12/10/71; Jonathan Ag. J.

The appellant instituted criminal proceedings against the respondent in the primary court on account of an alleged assault on the former by the latter. The magistrate dismissed the charge for want of evidence. Following the decision the respondent instituted in the same court civil proceedings against the appellant for malicious prosecution, demanding damages of Shs. 3000/= the court awarded him damages of Shs. 2000/=. From that decision there was an appeal to the district court on grounds which included, among other things, lack of jurisdiction having regard to the Magistrates’ Courts Act, and misdirection as to the burden of proof. The appeal was, however, dismissed.

Held: (1) “As regards jurisdiction, proceedings in primary courts are governed by the Magistrates’ Courts Act. Section 14(1) (a) of the Act confers civil jurisdiction to primary courts. For convenience, I would quote the above cited part of the section: - Section 14. (1) A primary court shall have and exercise jurisdiction – (a) in all proceedings of a civil nature – (i)

where the law applicable is customary law or Islamic law; Provided that no primary court shall have jurisdiction in any proceedings – (A) affecting the title to or any interest in land registered under the Land Registration Ordinance; or (B) in which Islamic law is applicable by virtue of the provisions of the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance; or (ii) for the recovery of civil debts, rent or interest due to the Republic, the Government or any municipal, town or district council, under any judgment, written law (unless jurisdiction therein is expressly conferred on a court or courts other than a primary court), right of occupancy, lease, sub-lease or contract, if the value of the subject matter of the suit does not exceed two thousand shillings, and any proceedings by way of counter claim and set off therein of the same nature and not exceeding such value.” (2) “These provisions are not free altogether from difficulties of interpretation. It is, however, clear that a claim in tort, as the one under consideration, does not come under any of the items specified in the provisions. With respect, the learned district magistrate’s view is correct that these provisions are irrelevant to the proceedings under which the damages were sought.” (3) “There remain to consider the provisions under (i) Counsel for the appellant has submitted that the original proceedings were founded upon a specialized branch of the law of tort in which primary courts have jurisdiction. However, it would appear from the provisions that save as excepted therein, all civil wrongs including those contractual and in tort is justice able by primary courts provided there are, in each case, rules of customary or Islamic law governing such wrongs.” (4) “The question was then posed both before the district court and before me: How is it to be determined if such rules obtain? As observed by the district magistrate, the question is one of considerable difficulty. Rule 3(3) of the rules made under s. 15 of the Act make it clear that the customary law rules do not have to be proved. However, that is one thing; it is completely another if there are rules governing a particular subject. One of the

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authorities cited to the district court is a decision of this Court in Ezekiel s/o Luka versus Kijana Mlinda which is reported in the High Court Digest 404/68. The district court appears to have refused to follow that decision. I have had the advantage of reading the full judgment with [the reasoning in that case I respectfully agree]." (5) "Section 32 (3) of the Act would entitle this Court in its appellate jurisdiction to peruse the proceedings in the courts below for any statement that is believable as to the existence of customary rules on the subject which this Court might apply. It is also open to this Court to apply any customary law rules that are discernible from any credible source as are considered best suited to all the circumstances of the case. I have been hard placed to glean from the proceedings in the courts below any indication that such rules were in existence. I am not satisfied that the award of damages is, in itself, such indication. Nor am I aware of the existence of any rules of customary law relating to damages for malicious prosecution. It seems to me, therefore, that, in trying the case the primary court assumed jurisdiction it might not have had. This alone would dispose of this appeal." (6) "[Counsel] also referred the district magistrate to the case of Abdul Javier Meghji v. Alibhai Mitha which was decided by this Court and reported as H. C. D. 235/67. There it was held, inter alia, that in order to succeed in a claim for damages for malicious prosecution, it is essential to establish malice. The district magistrate disregarded this decision, holding that it was irrelevant to the facts of the case before him then. With respect, it was not. I do not find it necessary to go into the facts of that case for it is clear from the decision of this Court in that case that malice must be established, whatever the facts of the case may be. I think that is settled and certainly good law." (7) Appeal allowed.

405. Marwa v. Marwa (PC) Civ. App. 169-M-70; 12/10/71; Jonathan J.

The appellant was ordered to refund to the respondent bride wealth comprising 46 head of cattle following the successful divorce proceedings taken by the respondent against the appellant's sister. The High Court found that although the marriage was dissolved on the petition of the respondent the court had made no finding of guilt in the divorce proceedings but in the present action both lower courts assumed that as the respondent had obtained the divorce his wife was therefore the guilty party. The court observed that there was no evidence to support the finding that the appellant was the guilty party.

Held: (1) "It seems to me that if the trial court had properly considered the evidence it would have found it impossible to say which was the guilty party, or if they were both at fault, as may very well have been the case, to apportion guilt. I would, therefore, determine this appeal on the basis that no guilt was established as against either the respondent or his wife." (2) "By G. N. 604/63, the Law of Persons (G. N. 279/63) was made applicable to the North Mara District Council. Section 52 of the first schedule to G. N. 279/63 provided that, where grounds of divorce are not established, if there are children of the marriage, no dowry is refundable. In the present case

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as I have observed, it is not clear as to which of the parties was responsible or mainly responsible for the break-down of the marriage, while it is clear there are two children of the union. On the face of it, therefore, no cattle are refundable. However, having regard to section 38, the court still had discretion whether or not to refuse entirely return of the dowry paid. The marriage had lasted 4 or 5 years only and it would appear that she stands a chance of getting married again if that has not happened. In the circumstances of the case, I would consider it fair and

just to order return of a small part of the bridewealth. Accordingly, I order that only 10 head of cattle should be returned.” (3) Appeal allowed.

406. Mbaruka v. Chimonyogoro (PC) 16-D-71; Oct. 1971; Mwakasendo Ag. J.

The appellant appeals against the decision of the Dodoma District Court disallowing his claim for the payment of eleven head of cattle and nine goats by the respondent, former father in-law, as refund of brideprice on the dissolution of the marriage between the appellant and respondent's daughter. The married couples were married for over 22 years and had 2 children. Friction in the marriage life began when the appellant took a second wife. The respondent's daughter then decided to live apart from him and subsequently successfully sued him for maintenance. As a consequence of his default in payment she sued hi for divorce and was granted it. The appellant hen claimed a refund of the brideprice he paid and the respondent immediately gave him 12 head of cattle and 18 goats. The action is for the outstanding balance. He was successful in the primary court but lost in the district court because of the number of years the marriage subsisted, the number of children of the marriage and the number of cattle already paid.

Held: (1) “With respect, the District Magistrate has pinpointed what in my view is the pith and substance of the question at issue. I think it cannot now be argued that the duration of the marriage and the number of children of a marriage are important factors that must be taken into consideration when deciding the issue of return of bride price – vide Nyamu vs. Mahere (1971), H. C. D. 173 and my comments in (PC) Civil Appeal No. 1 of 1971, Musalege s/o Mwakyose vs. Nazareth Mwangalika. In the present case the appellant's marriage to the respondent's daughter lasted for at least twenty two years and there were issue of the marriage two of whom are still alive. It is therefore surprising that the appellant seemingly oblivious to all that has happened during the last twenty-two years of marriage, has lodged this unreasonable claim for refund of bride

price. I cannot see how anybody in his proper frame of mind could consider supporting such a preposterous claim. For my own part, I do not see how in conscience I could possibly allow him to get a single head of cattle more than he has already got.” (2) “While it is true that there are no hard and fast rules for the guidance of courts in deciding the question of return of bride price, there can be no doubt that one of the determining factors

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Is the duration that the marriage, whether a happy one or not, has subsisted. Where a marriage has lasted for a very long time the chances are that the return of bride price will be ordered in inverse proportion to the number of years that the marriage has lasted. The longer the marriage subsists the dimmer will be the prospects for the claimant, whether he is the innocent party or not, succeeding in getting a refund of the bride price that he had paid at the inception of the marriage. The reasons why this should be so are obvious. The original parties to the transaction may have died, or, even if they have not died, their fortunes may have adversely changed in the intervening period, so much so that it may be unconscionable to order any refund of bride price. If these propositions are not acceptable, as they are bound to be by the tremulous and conservative part of our people, I cannot see what would stop a grand old man of eighty claiming the return of bride price paid fifty years before when he married his divorced sixty six year old wife. I have deliberately chosen this extreme case to demonstrate the absurdity to which an untrammelled application to customary rules can lead.” (3) “Speaking for myself, I believe that customary rules are like the rainless wild horse which only the expert horseman can mount and control but left to the uninitiated it can do deadly harm. I believe too that it is the duty of the courts at this momentous period of our history to assist the growth and promotion of equitable

customary rules. We would be failing totally in this respect if we were to abide without reflection or commonsense, by the unchanging and changeless traditions of the past as if they were priceless medieval relics.”

(4) “I have little doubt in my own mind that there could be no justification whatsoever for ordering the respondent to refund to the appellant the remainder of the brideprice. The appellant should in fact count himself lucky that he got the refund of as many as twelve head of cattle, to which, with respect, I do not think he was entitled. But it is now too late not to heed the old adage – “where ignorance is bliss it is foolish to be wise”.” (5) Appeal dismissed.

407. In the matter of an Application for permission to marry, Shabir Abdulmalk Mohamed Virji to Dilara Nuraly Manji, Misc. Causes 9-M-71; 6/11/71; El-Kindy J.

This is an application to the High Court under section 13(2) of the Law of Marriage Act, 1971 for leave for S, a sixteen year old boy to marry D, an eighteen year old girl. The application was supported by affidavits of the intended spouses and their respective fathers, and supported by medical evidence.

Held: (1) “In terms of section 76 of the Law of Marriage Act, 1971, this Court has concurrent original jurisdiction, in matrimonial proceedings, with the courts of resident, district and primary magistrates. And, according to section 21(1) of the Law of Marriage Act, 1971, this application is a matrimonial proceeding as it comes under Part II of the Act. It would appear, therefore, that an applicant can choose the forum of his application.” (2) “The procedure to be followed is provided for in the law of Marriage (Matrimonial Proceedings) Rules, 1971, G. N. No. 136 of 1971 which were published on the 11th of June, 1971. Rules 8 to 11 provide for a procedure of chamber summons. In this case, the applicants adopted this procedure.” (3) “Section 12(1) of the Law of Marriage Act, 1971,

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fixed the minimum marrying age for males at the apparent age of 18 years and that for females at the apparent age of 15 years. It would appeal, therefore, that the prospective husband, in this application is unqualified to marry, but the prospective wife is so qualified. It was necessary, therefore, for an application of this nature to be made whence he would be required to satisfy this Court that (1) each party had attained the age of 14 years and (2) there are "special circumstances which make the proposed marriage desirable". From the affidavits; it is clear that both parties are well over the age of 14 years." (4) "Both parties depose that they deeply love each other, and that in the course of their intimate relationship, they had sexual intercourse with each other, and that, as a result of this, the prospective wife conceived a child, and became pregnant On this evidence, I am satisfied that the prospective wife is in fact pregnant." (5) "I agree that it was undesirable for the child to be born out of wedlock, when the parties are willing to marry, and injurious to the parties and their parents. The father of the prospective wife has consented to the marriage. I find as a fact that the existence of pregnancy constitutes special circumstances which make the proposed marriage desirable." (6) Leave granted.

408. Jama v. Harman's Provision Stores Civ. App. 1-Dodoma-71; 13/8/71; Mnzavas J.

The respondent filed a suit against the appellant claiming a total of Shs. 748.58. On 13/2/68 summons for orders were issued against the appellant requiring him to file his written statement of defence within 21 days. The appellant was served with the summons on 14/3/68 and signed his name acknowledging receipt of the summons. On 28/3/68 the respondent's advocate applied to the court for judgment as the appellant failed to file a

written statement of defence within the time specified in the summons. On 29/3/68 the District Court entered ex-parte judgment in favour of the respondent because the appellant had failed to notify the court of his intention to defend the suit and that 21 days had elapsed since the service of the summons. On 13/10/70 the appellant was served with a notice to show because why executions should not issue. He, on receipt of the notice, immediately wrote to the court asking to be allowed to show cause sometime in April 1971 as he was on a trip to Mecca on pilgrimage. He subsequently, in March 1971, filed a chamber application asking the court to set aside the ex-parte decree as he was not aware of the suit against him; alleging that he had at no time been served with summons in connection with the respondent's claim. His chamber application was dismissed and he appealed against the order.

Held: (1) "There can be no doubt that the chamber application to the effect that the appellant had not been served with summons when the ex-parte judgment was entered against him is incompetent the appellant did on 14/3/68 sign his name on the original of the summons for orders acknowledging receipt of the summons. He was therefore full aware of the suit against him." (2) "The appellant was served with the summons for orders on 14/3/68. The learned magistrate.

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on application by the respondent's counsel, entered ex-parte judgment on 29/3/68 – saying that the appellant (original defendant) had failed to notify the court of his intention to defend the suit; and adding that 21 days had elapsed since the service of the summons to the appellant – original defendant. With great respect I agree with the learned senior resident magistrate that the appellant had not notified the court of his intention to defend the suit at the time the ex-parte judgment was entered against hi; but, with even greater respect I would say that the learned

senior resident magistrate's ex-parte judgment was pre-mature. Or viii R. 1 (2) says – "Where a summons to file a defence has been issued and the defendant wishes to defend the suit he shall, within twenty one days of the date of the service of the summons upon him or such longer period as the court may direct in the summons, present to the court a written statement of his defence." Rule 14(i) of the same Order says – "Where any party has been required to present a written statement under sub-rule (1) of rule 1 or a reply under rule 11 of this order and fails to present the same within the time fixed by the court, the court may pronounce judgment against him or make such order in relation to the suit or counterclaim, as the case may be, as it thinks fit". In this case summons for orders was served on the appellant on 14/3/68 requiring him to file his defence within 21 days of receipt of the summons. This would mean that the appellant (original defendant) had up to 4/4/68, at the latest, to file his defence." (3) Appeal allowed.

409. In the Matter of Patrick Ernest Hofmann, an Infant, Misc. Civ. Cause, 39-D-71; 25/9/71; 25/9/71; Biron, J.

The suit which concerned the custody of a child was between the parents, both of whom are nationals of the Federal Republic of Germany. The parties were married in Bombay in 1965. The father, Dr. Hofmann, who is a Doctor of science, was at the time on an assignment in India. Both parties had been married before and their marriages were dissolved. The mother, who belongs to the Parsee community, had previously been married to an Indian and that marriage lasted for 9 years. There were two children of that marriage. The father had no children by his previous marriage. The child whose custody was the subject matter of the proceedings was born in India on the 10th June 1965. The family returned to Germany some time in December of that year. The marriage was dissolved by the High Court at Munich some time in 1968 because of the incompatibility of the parties. After the dissolution of the marriage both

parties filed proceedings in the Amtsgericht of Düsseldorf for the custody of the child and that court granted the custody to the respondent father. The mother appealed from this order to the Landgericht at Düsseldorf, and in an interim order she was granted interim custody pending the determination of her appeal from the order of the Amtsgericht. The father was allowed access to the child, and some time in August 1970 took him to Switzerland and failed to return him at the end of the prescribed period. The mother filed proceedings in the High Court and the father was ordered to surrender him to her. The father was however allowed to take him in 1971 on the understanding

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that he would return him in 11 days time. This he failed to do having left Germany for Tanzania, but he wrote to the mother to the effect that the child did not under any circumstances want to return to Düsseldorf. Immediately on the receipt of the letter, the mother filed proceedings in the Landgericht at Düsseldorf, and that court made an order to the effect that the father was to return the child to the mother immediately and in the event of his failure to do so he was to pay a penalty of 1,000 Deutsch Mark. On ascertaining the address of the father and the child the mother came out to Tanzania and started these proceedings for his custody. During the pendency of the proceedings for his custody. During the pendency of the proceedings, the appeal by the mother from the order of the Amtsgericht of Düsseldorf awarding custody of the child to the father was determined in her favour by the Landgericht at Düsseldorf. The court reversed the order of the Amtsgericht and awarded the custody of the child to the mother.

Held: (1) "The first question for this Court to determine is whether it has jurisdiction to entertain the proceedings, and this question presents very little difficulty. Its jurisdiction has not been questioned and although I

know of no direct authority to the point, the fact that here is no precedent to the point is not to my mind, of any greater substance, let alone fatal.” (The learned judge then referred to a dictum of Denning, M. R. in re P. (G. E.) (An infant) [1964] 3 All E. R. 977, also a custody case, to support his view). (2) “However in holding that this Court has jurisdiction that does not even imply that I do not consider that the German courts have jurisdiction as well, even now, when all the parties are out of Germany. After all, the parties are German nationals, they are domiciled in Germany, they were divorced by a German court, and custody proceedings are actually ancillary to divorce proceedings and usually follow them. Furthermore, the German courts are at present seized of this custody case, so the jurisdiction I am exercising is concurrent with that of the German courts.” (3) “The next question that poses itself is the law to be applied, the lex fori or the lex domicilii of the parties. That again presents little, in fact no difficulty at all. Although for centuries the father of a child born in wedlock was regarded as the guardian of such child by nature and nurture – I think that was the old archaic expression – that principle has long since been discharged, at very latest in England, whence stems most of our law here, by the Guardianship of Infants Act, 1925, which laid down that the first and paramount consideration in custody proceedings was the welfare of the child. This was always been the practice of the courts here, and such practice has received statutory authority only very recently in the Law of Marriage act, 1971, which came into force on the 1st of May of this year, where it is laid down at section 125 (2) that; - “In deciding in whose custody an infant should be placed the paramount consideration shall be the welfare of the infant.” That is the law here. I observe from all the judgments of the various courts in Germany that that is the principle upon which the German courts worked, that the welfare of the child is the first and foremost consideration. There is

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therefore no conflict of law on the question of custody.” (4) “The next question that poses itself is the attitude to be adopted by this Court. This case comes within the category of what are known as kidnapping cases, and, as very rightly submitted by Mr. Talati for the applicant mother, in such cases the English courts have evolved a practice of returning a child to its country of origin from where it has been kidnapped. A very typical case to the point is that of In re H. (Infants) [1966] 1 W. L. R. 381.” [The judge referred to the facts of that case by quoting the headnote. He then quoted a couple of relevant passages from pages 388 and 393 and continued:] “[The] principle, returning a child or children which have been kidnapped, to use the expression employed by the court, to the country from where they came, has very recently been reaffirmed in the case of In Re C. (s). (An Infant) (Law Report June 25 1971: chancery Division) reported in the London “Times” on June the 26th, 1971, three months ago However, although such a course has its attractions, at least in so far as this Court is concerned, I feel, in view of the advanced stage of these proceedings, that it would not be right of this Court to abdicate its responsibilities altogether and send the child back without at least attempting to decide the issue on the merits of what material is available before it, though it must be said at once that this material is rather limited.” (5) “As already noted, the Amtsgericht of Dusseldorf awarded the father the custody of the child. From what I can gather from the various proceedings in the courts, the Amtsgericht was greatly influenced by a report by a Welfare Officer of the Youth Welfare Office of the Municipal Welfare Office of Dusseldorf, a Frau Kotzmann. That report was rather adverse to the mother. It stated that the accommodation provided by the mother was not suitable for the child, the flat was too small, the child was not being well looked after, it was not even clean, nor apparently was the flat. However, this report was considered by the Landgericht at Dusseldorf

and the court stated that the report had been nullified and rendered completely nugatory by a certificate from the Principal of the Kindergarten [refuting the allegations in the report]..... the Landgericht heard further evidence – there are copies of such evidence in translation – from neighbours of Mrs. Hofmann which are all in her favour, that the child was well looked after. There was also the evidence of a Gerda Dunker, a Social Worker of the Protestant Church, who had apparently previously made a report, and in this evidence before the Landgericht she stated that the child was being well looked after and he was doing well at school.” (6) “Now obviously in custody proceedings the character of the parents is extremely relevant the courts held that the dissolution of the marriage was due to faults on both sides, and that it does not regard as necessarily implying that either parent was at fault, at least towards the child. In fact, from my own observations, I would unhesitatingly say that I myself have been very much impressed by the affection and regard both parents have evidenced towards the child each time they have appeared in front of me. So there is no question of the child suffering from lack of affection from either parent.” (7) “[I] fully agree with Mr. Mawalla’s submission that as we have no legislation for reciprocal enforcement of judgments between this country and the Federal Republic of Germany, this Court is not bound

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to follow the decision of the Landgericht of Germany, but as Mr. Mawalla would himself concede, it is certainly of persuasive authority and I lean rather heavily on its observations and decision. It is not irrelevant to note that the court, the Landgericht, sat as a Bench of three Judges, one of them a woman. Whether this was just coincidental or is the practice of German courts to have both sexes represented on the Bench in custody cases, I must with respect, commend it.” (8) “In the proceeding before the

German courts one of the arguments advanced by the father against custody being awarded to the mother was that the child would not be brought up as a proper German national. This submission was made some time ago, possibly before the father had accepted employment in this country. The present circumstance of his having accepted such employment, and, as he had just informed the court, it is anticipated that he will be here for at least five years, weakens, to but it at very lowest, the force of his submission made before the German courts that the child would not be brought up as a proper German national, if he is to be away from Germany for five years. In fact one could go further and say that the present circumstances make such submission ring rather hollow and very much militate against it. Now Mr. Mawalla has further argued that it is in the child's interest that custody be given to the father, as the father is in so much better a financial position to look after the child and educate him than is the mother. The father's salary at the moment has been given at Shs. 12,500/- per month, plus fringe benefits. As opposed to that the mother's salary is 400 Deutsch Mark, which I think corresponds to Shs. 800/-, per month. She also has 300 Deutsch Mark, which is Shs. 600/-, as alimony from her previous marriage. In support of his argument Mr. Mawalla has cited the judgment of my late brother Hamlyn in Bi Ruth Pemba v. Daudi Mfalingundi, reported in 1970 High Court Digest, page 98, as No. 105." [The learned judge then referred to the relevant passages of that judgment but expressed preference for the statements of the Landgericht at Dusseldorf to the effect that it does not tell against her, the mother, to have the custody of the child even if the father is financially better off because he is obliged to pay for the maintenance of the child, regardless of the fact that the custody is given to the mother, and further he is not prevented in financial matters to do for the child what he should if he had the custody of the child. The judge continued]: "So that conservation obviously has little force in determining the question as to whom the custody should be granted. In fact, if the father is so well off, as

this Court has now been informed, the German courts may well feel inclined to increase the maintenance to be paid by the father should the case come again before the German courts. It is certainly a relevant matter, as custody cases – and I think in one of the cases referred to, or I have perused, it was expressly stated – are always open to review in the light of the changing circumstances of the parents.” (9) “I think I have said enough to make it sufficiently clear that, although I have not abdicated the Court’s responsibilities, and have tried to decided the issue as much as possible on its merits, the material in from of me is very limited and cannot compare with that before or in possession of the German courts, which are in a much better position to

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decide this issue than I am. Further – and this may well be, if I may say so, the ratio decidendi of my determination – but before I come to that I must digress for one moment and deal with the submission of Mr. Mawalla that this Court could not make an order which would mean the child leaving the jurisdiction of this Court. I think from all the authorities it is abundantly clear that this Court has such jurisdiction. What greatly influences me is the law to be applied. I have already referred to section 125 of the Law of Marriage Act 1971. in that very same section it is stated at subsection (3):- “There shall be a rebuttable presumption that it is for the good of an infant below the age of seven years to be with his or her mother, but in deciding whether the presumption applies to the facts of any particular case the court shall have regard to the undesirability of disturbing the life of an infant by changes of custody.” Now that is the presumption. Patrick was born on the 10th of June 1965. He is therefore under seven years of age. Therefore there is a presumption, though rebuttable, that the custody should be given to the mother. Nothing that has been adduced or submitted before me in any way rebuts such

presumption. On the contrary, all the proceedings in the German courts, which, as I have already said, I do not regard as binding on me, but which, as indicated, have great persuasive effect, are in favour of that presumption being upheld. And it is also pertinent to quote another passage from the case I have cited reported in the London "Times" of June 26th, 1971;- "Additionally it was in the interest of the child that his future and upbringing should be decided in accordance with the motions of the country which was his home." In the result I allow the application and grant the mother custody of the child with immediate effect."

410. Mazumbe v. Wekwe (PC) Civ. App. 186-M-70; 2/10/71; Jonathan Ag. J.

The appellant instituted proceedings in the primary court for the return of dowry paid by his deceased a brother when he married the respondent's daughter. The facts as found by the primary court were as follows:- The appellant's deceased brother married the respondent's daughter in 1956 and paid a dowry of 16 head of cattle and 10 goats. They lived together for only about 5 months; then she deserted him. There was no divorce proceedings filed by the deceased, apparently because his wife could not be found so that at the time of his death the marriage, though broken down, was still subsisting on the basis of the wife being the guilty party. The primary court unanimously gave judgment for the appellant, ordering the respondent to refund him 7 cows, 6 heifers, 2 oxen, one bull and 10 goats, the respondent successfully appealed to the district court. The district magistrate applied Para 62 of the First Schedule to the Local Customary Law (Declaration) Order, 1963 which was, by G. N. 604/63, made applicable to North Mara District, where the suit originated. The Para provides, inter alia, that, if a widow chooses to return to her parents, the dowry is not returnable. The Court had regard to paragraph 101(c) of the same schedule which provides that, "a wife is considered married until she receives a divorce certificate." It held that as the respondent's daughter had not received a divorce certificate, so she was still

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the deceased's wife at the time of his death, and she could choose, as she did, to return to her parents, in which case the dowry was not returnable.

Held: "(1) [R]ules had been declared respecting the matter as in the Local Customary Law (Declaration) Order which had to be followed. They could not have been displaced by opinions of the assessors as to the rules applicable to the matter. I am satisfied, therefore, that the district court was right in invoking the provisions of the order." (2) "The district magistrate did also question, rightly in my view, the locus standi of the appellant in filing the suit. The deceased left 5 children who, according to the written rules of inheritance, were entitled to inherit his property, including, I suppose, choses in action. However, the appellant did state in evidence that before he died, the deceased left an oral will that on finding the respondent's daughter; the appellant could claim return of the dowry. If that was so, he should have called the witnesses to the will as is required by paragraph 11 of the Third schedule to the Local customary Law (Declaration) (No. 4) Order. 1963." (3) Appeal dismissed.

411. Makori v. Marwa (PC) Civ. App. 136-M-70; 12/10/71; El Kindy, J.

The respondent was married to the daughter of the appellant who disappeared shortly after the marriage but reappeared after an interval of 8 years and divorced him. The respondent then claimed the return of his bridewealth which he asserted were 44 heads of cattle. Judgment was entered in his favour for 30 heads of cattle as the court found that he had already received 14 heads. This order was made in spite of the fact that the marriage certificate stated that only 12 heads of cattle were paid, the trial magistrate accepting the evidence of the respondent and his witnesses that 44 heads were actually paid but 12 were recorded because at the time there were legal restrictions limiting the maximum

bride-wealth claimable to 12 heads. The court was also influenced by the proof of the statement that among the Wasimbiti, the parties' tribe, "nobody would ever be able to marry for that small amount of cattle". The district court dismissed the appellant's appeal.

Held: (1) "I think there is merit in this appealthere was documentary evidence and oral evidence on the issue of the number of heads of cattle paid by the respondent. The oral evidence was led to contradict the contents of the documentary evidence. This is not permissible under the relevant rules. Rule 14(1) of the Magistrates' Courts (Rules of Evidence in Primary Court) Regulations, 1964, G. N. 22 of 1964, states clearly that where an agreement is in writing no oral evidence may be given to contradict or vary the terms. The exceptions to the rules are not relevant to the case in hand. Therefore, the evidence of the respondent and that of his two witnesses, to the extent it sought to contradict the contents of marriage certificate which was a written agreement, was wrongly admitted." (2) "If the restriction was made by a bye-law of the District Council as it seemed to have been accepted, it was unlawful for the respondent to enter into an agreement with others to contravene

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a provision of law. Such agreements are unenforceable in law as it is not only an unlawful agreement but it is against public policy to uphold such a contravention. The respondent therefore, after soiling his hands in the unlawful act, cannot go to the court to ask a court of law to hold in his favour and to enforce an illegal oral agreement. It may be that the relevant law made it practically impossible for him to marry because no Msimbiti could allow his daughter to be married for less than the customary bride-wealth of 44 heads of cattle. This could be a severe hardship, but this

would not be adequate reason for committing breach of the law.’ (3)
Appeal allowed.

412. Kisiri v. Mahende (PC) Civ. App. 58-M-70; 12/10/71; El-Kindy J.

The respondent married the daughter of the appellant in 1965. There was a daughter of the marriage. In 1967, because of incessant quarrels, the appellant’s daughter left the house of the respondent taking with her their daughter who was then 2 years old. The respondent then successfully sued for divorce. In an action against him, the appellant was ordered to refund 45 heads of cattle, bridewealth, which were paid to him by the respondent. As the latter did not know the whereabouts of his child he also sued the appellant for her restitution or the payment of 10 heads of cattle in lieu thereof. He was awarded the customary 10 heads of cattle. Both orders were upheld in the District magistrate court.

Held: (1) “The evidence showed that the appellant’s daughter left the house of the respondent, but the evidence is not clear as to who was guilty or partly guilty for the break up of the marriage. The issue then was inconclusive and in the circumstances it is only fair that the blame for the break up of the marriage should be apportioned evenly. Although the respondent was entitled to a divorce for desertion under paragraph 134 of the Customary Law Declaration (Law of Persons) G. N. 279/63, the assessment of returnable bridewealth is a matter of discretion of the court and the degree of guilt is one of the determinant factor (see paragraph 54 of G. N. 279/63). It appears that the trial court and the appellate court did not direct their minds on this point and it cannot, therefore, be said that they exercised their discretion judicially.” (2) “In addition to that, there was a child of marriage and the respondent had been living with the appellant’s daughter for not less than two years. It cannot be just for the respondent to have lived with the appellant’s daughter for that period and to beget a child with her, and then recover the full brideprice upon divorce. It is to avoid this kind of injustice that paragraphs 53, 54 and 55 of the Customary Law

Declaration (Law of Persons) G. N. 279/63 were enacted. It is also for a similar reason that this Court finds that the fact that there was a child of marriage is reason enough for not granting full restitution of bridewealth. In my view, I find that the order for a refund of all the bridewealth is unjustified. In the circumstances, the respondent should only get 22 heads of cattle. If the appellant had already paid back the 45 heads of cattle, the respondent should return

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23 of them to the appellant.” (3) “The second part of the appeal is difficult and has caused me great anxiety. The learned counsel argued that the custom was not only against natural justice but also repugnant. I am not ready to hold in that manner as what is involved is a delicate piece of customary law which is not necessarily bad. It is common knowledge that homicide was dealt with by payment of compensation to the parents of the victim. A similar thing seems to be involved in this case, as it is only payable where the party is unable to return the child. In this case the respondent sued for his daughter, but because the appellant appeared not to have known where his daughter and granddaughter were, he sued for 10 heads of cattle in the alternative. The gentlemen assessors had no doubt that the respondent was, in the circumstances, entitled to the 10 heads of cattle and the trial court awarded it. I cannot say that their decision was wrong on the facts as they were before them. As I have said the respondent now knows where his ex-wife and daughter are and I see no reason why he should not sue her instead of suing a person who not only did not have the custody of the child but did not even know where the child and its mother were”. (4) “In the circumstances I do not have to consider whether upon payment of the customary law compensation the father would lose all his paternal rights over the child. Mr. Matemba felt strongly about this and was of the view that the respondent, as a natural

father, should not be deprived of his rights over the daughter. I express no opinion on this. The assessors themselves expressed no opinion on this. I find, therefore, although the customary law of Simbiti allowed such payment of compensation, for the reasons stated, this claim cannot be upheld now. The respondent can sue his ex-wife or whoever had custody of his dear daughter, and the primary court would determine this issue in the best interest and welfare of the child."

413. Nyakioze v. Sofia (PC) Civ. App. 89-D-71; 10/9/71; Onyiuke J.

The appellant and respondent were married under the Islamic Law and lived together as husband and wife for seven years. They were later divorced. The dispute concerned the ownership of a house and a cupboard which the respondent alleged the appellant gave her as a gift during the marriage. The respondent instituted proceedings in the primary court of Magomeni district claiming the possession of the house and cupboard. The plot of land on which the house was built was held in the name of the respondent under a Right of Occupancy granted under the Land Ordinance, from year to year. When the plot was first acquired, there was a small hut on it which the appellant demolished and erected the house the subject matter of this case. The respondent after the erection of this house continued to pay the site rent. The Primary Court found as a fact that the appellant intended that the house and cupboard should belong to the respondent and the Court gave judgment for the respondent and ordered the appellant to surrender the house and the cupboard to her. In the District Court, Dar es Salaam, it was held that the Primary Court lacked jurisdiction to deal with the house claimed as its value was above the pecuniary jurisdiction of the primary court. The magistrate up-held the judgment of

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the primary court in regard to the recovery of the cupboard, but then went on to dismiss the appeal.

Held: (1) "I have first to consider whether the learned magistrate was right in law to hold that the primary court lacked pecuniary jurisdiction to deal with the house claim. The question is to what extent the civil jurisdiction of a primary court is restricted to amount or value of the subject matter. Section 14(1) of the Magistrates' Act which confers jurisdiction on primary courts provides as follows:- (1) A primary court shall have and exercise jurisdiction – (a) in all proceedings of a civil nature (i) where the law applicable is customary law or Islamic Law: Provided that no primary court shall have jurisdiction in any proceedings – (A) affecting the title to or any interest in land registered under the Land Registration Ordinance: or (B) in which Islamic law is applicable by virtue of the provisions of the Marriage, Divorce and Succession (non Christian Asiatics) Ordinance; (ii) for the recovery of civil debts, rent or interest due to the Republic, the Government or any municipal, town or district council, under any judgment, written law (unless jurisdiction therein is expressly conferred on a court or courts other than a primary court), right of occupancy, lease, sub-lease or contract, if the value of the subject matter of the suit does not exceed two thousand shillings, and any proceedings by way of counterclaim and set off therein of the same nature and not exceeding such value[His lordship referred to Section 15(1) of the Magistrate' Courts Act and then to Clause (3) (1) of the said Fourth Schedule which provides inter alia "A primary court in proceedings of civil nature, may (a) award any amount claimed." He continued:] "It if my view that except in cases falling under section (14) (1) (a) (ii) and (iii) of the Magistrates' Courts act the civil jurisdiction of the primary courts is not limited to amount or value of the subject matter or to put it in another way the pecuniary jurisdiction of primary courts is unlimited. If, for example a

case falls under section 14(1) (a) (i) of the Magistrates' Courts act, that is to say proceedings of a civil nature where the law applicable is customary law or Islamic law, the civil jurisdiction of a primary court is not restricted either to amount or value of the subject matter. The fact that in this case the value of the house was assessed at Shs. 7,000/= does not oust the jurisdiction of the primary court provided it has the competence in other respects to try the case." (2) "Mr. Raithatha, learned counsel for the appellant [contended] that 14(1) (a) and s. 57 of the Magistrates' Courts Act, was to confer exclusive jurisdiction on primary courts in respect of interests in land held under customary law but to deprive them of jurisdiction in respect of matters relating to title or interest in land obtained under the Land Ordinance, Cap. 113 or registered under the Land Registration Ordinance Cap. 334. Section 57 of the Magistrates' Courts Act reads as follows:- "(1) Subject to the provisions of any law for the time being in force, where jurisdiction in respect of the same proceedings is conferred on different courts, each court shall have a concurrent jurisdiction therein: Provided that no civil proceedings in respect of marriage, guardianship or

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Inheritance under customary law, or the incidents thereof and no civil proceedings in respect of immovable property, other than proceedings relating to land held for a Government Lease or a right of occupancy granted under the Land Ordinance or proceedings under sections 22 or 223 of the Land Ordinance, shall be commenced in any court other than a primary court unless the Republic or the President is a party thereto or unless the High Court gives leave for such proceedings to be commenced in some other court." (Underlining supplied). Section 57 of the Magistrates' Courts act appears to prescribe the Primary Court as the proper Court in which certain proceedings are to be initially instituted in cases where

different courts have concurrent jurisdiction Mr. Raithatha's argument involves a consideration of the effect to be given to the Proviso (A) to section 14(1) (a) of the Magistrates' Courts Act It is my view that the Proviso ousts the jurisdiction of a primary court in a case where but for the proviso it would have had jurisdiction under section 14(1) (a) (i). the Primary Court has jurisdiction to entertain all proceedings of a civil nature where the law applicable is Customary or Islamic law. But for the Proviso under consideration a primary court would have had jurisdiction to entertain proceedings involving title to or interest in any land as long as the law applicable to the dispute is customary law or Islamic law. Take the present case as an example, the plaintiff/respondent is contending that the house was a gift to her from her husband during the marriage that was contracted under the Islamic Law and is now claiming that under that law and possibly under customary law also she is entitled to keep the property. The primary court surely has jurisdiction to try the case and it would not have been relevant whether the land on which the house was built was held under customary law or was held under a grant obtained under the Land Ordinance or was registered under the Land Registration Ordinance. What confers jurisdiction on the Primary Court is the fact that the law applicable to the dispute is customary law or Islamic law. The effect of the Proviso is to oust the jurisdiction of primary court, which it would otherwise have had, where the land involved in the proceedings has been registered under the Land involved in the proceedings has been registered under the Land Registration Ordinance cap. 334.....There can be no justification in principle for extending the Proviso to cover all grants made under the Land Ordinance Cap. 113 unless it is assured that the Land Ordinance and the Land Registration Ordinance Cap. 334 necessarily cover the same grounds which in my view is not the case." (3) "S. 2 of the Land Ordinance defines a right of occupancy as a title to the use and occupation of land and included a title of a Native or Native community lawfully using or

occupying land in accordance with Native Law and customs. It appears therefore that a certificate of occupancy can be issued to a person whose title to the use and occupation of land is in accordance with Native Law and Customary. If the right of occupancy held under customary law is for a term of over 5 years, the certificate of occupancy in respect thereof must be registered under section 27 of the Land Registration Ordinance (Cap. 334). Conversely if the right of occupancy is from year to year the certificate thereof is not registerable under the Land Registration Ordinance whether it is held under customary law or obtained under s. 6 of the Land Ordinance. There is no reason why a primary court should not entertain proceedings

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relating to such rights of occupancy whether or not they are obtained under the Land Ordinance provided that the law applicable to the dispute thereto is either customary or Islamic law. There is good reason for removing titles or interests registered under the Land Registration Ordinance from the purview of customary courts. S. 4(2) of that ordinance requires a LAND REGISTER to be maintained for the registration of the title to land in Tanganyika and the recording of dispositions, transmissions and incumbrances of and over registered land. The Ordinance specified how and by what courts any dispute in regard to matters covered by it (the ordinance) shall be dealt with.” (4) “[I] am of the view, and I accordingly hold, that since this claim relates to a house erected on land held under a grant of a right of occupancy from year to year the primary court has jurisdiction to deal with it. The claim involves a consideration of the rights, of plaintiff/respondent to a house given to her by her husband to whom she was married under Islamic Law and the law applicable to this case is customary law and/or Islamic Law.” (5) “Mr. Raithatha further argued that the primary court had no jurisdiction to entertain this case since it was a

claim for recovery of possession and therefore comes within the purview of S. 11(A) of the Rents Restriction Act (Cap. 479). He cited the case of Bahadur Mandani v. H. H. Agakhan Dar es Salaam Civil Appeal NO. 29 of 1968 (Mustafa J.) for the proposition that a claim for the recovery of possession from a trespasser comes within the Rents Restriction Act. The substance of the claim in this case is the ownership of the house in dispute. It does not deal solely with possession. The question for determination in this case is whether the house belongs to the appellant or to the respondent. That was the issue which the primary court decided in the respondent's favour and to give effect to its decision ordered the appellant to surrender the house to the respondent." (6) "I uphold the judgment of the Primary Court which declared the respondent the owner thereof and ordered the appellant to surrender them to her. I will however remit the question relating to the refund of the expenses incurred by the appellant to the District Court for determination. The District Court will consider as far as possible the expenses reasonably incurred by the appellant in erecting the new house. It is common ground that the value of the hut was Shs. 400/=. Having determined the amount that is due to the appellant the district Court would then consider the question of repayment by appellant by installments having regard to all the circumstances of the case." (7) Appeal relating to the ownership and possession of the House and Cupboard dismissed. Case remitted to the District Court to determine the expenses reasonably incurred by the appellant in constructing the house, the amount for which the respondent should be credited as representing her contribution respondent should be credited as representing her contribution to building the house and the terms of repayment of the balance due to the appellant.

414. Daudi Myoya v. Lukas John (PC) Civ. App. 6-A-71; 30/10/71; Mwikima Ag. J.

The defendant sold 18 acres of land to the plaintiff for Shs. 3,000/= which the latter paid in the presence of two elders at the primary court. The court found that the plaintiff did not occupy the land immediately or if he sought to do so, he met thereon a third party who had paid the defendant Shs. 16,577/= for the land. It was also established that prior to the sale of the same plot of land to the plaintiff the defendant had sold it to a number of other buyers The plaintiff successfully claimed possession of the land in the Primary Court. The decision was reversed in the District Court.

Held: (1) "It is quite evident that the land was occupied by someone else at the time when the appellant bought it. In other words the respondent was defrauding him. The person occupying at the time of the sale cannot now be disturbed in order to accommodate the appellant." (2) "Furthermore there is the widely recognized practice of having all land sales in Arusha authorised by the Arusha Meru District Council. So that the occupying party who entered the land first and also received the blessings of the Arusha Meru District Council appears to be in an unimpregnable position vis a vis the appellant in which case there can be neither justice nor reason in ordering the lawful occupier to set aside a piece of his land to the appellant." (3) "The only thing to do to assist the appellant who has been the victim of a wicked if naïve fraud is to order that the respondent refund the Shs. 3,000/= cunningly and fraudulently received from the appellant. In that connection therefore the respondent is hereby ordered to refund Shs. 3,000/= to the appellant with full costs of this case in all the three courts. This will help to restore the parties to their original position before the fraud was perpetrated."

415. Endoshi v. Lema (P. C.) Civ. App. 107-A-71; 30/10/71; Kwikima Ag. J.

Appellant successfully sued respondent in primary court for damages in trespass caused by respondent's sheep which destroyed crops on appellant's shamba. Damages awarded for 2 bags of peas which trial court found were destroyed. The district magistrate reduced the quantum of damages on the ground that seven sheep could not destroy pigeon peas worth Shs. 200/=.

Held: (1) "With great respect to the learned magistrate, the respondent did not base his appeal on that ground at all. And even if he had done so, the question was so broad and scientific that it would have been essential to call additional evidence from agricultural experts to testify how much each sheep can eat in a given time. So that when the learned magistrate ventured to find fault with the finding of the trial court, he was embarking upon speculation of the most dangerous type. It cannot be said either, that an appeal should be allowed on speculative considerations." (2) "As this court has very often repeated the best court to assess and fix damages is the trial court. Unless the quantum fixed can be shown to be so plainly unreasonable, an appeal court cannot and should be ill advised to take it upon itself to interfere. The amount of damages

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Is a fact best ascertainable by the trial court which is better equipped with facts and all the circumstances of the case. In this case the learned appeal magistrate reassessed the evidence in order to reverse the decision of the trial court. He did not point at any error on the part of the original court. He simply substituted its findings of facts with his own, thereby deflecting the course justice. How unwarranted interference should not therefore be allowed to stand and it is hereby set aside." (3) "The original decision restored and confirmed.

[Editors' note:- See Case No. 420 infra].

416. Pop Vriend (Tanganyika) Ltd. v. Saburi Estates Ltd., Civ. Case 8-A-71; 30/10/71; Kwikima Ag. J.

The plaintiff's plaint alleged that he was claiming Shs. 27,511/40 from the defendant arising as follows: "goods sold and delivered and cash advancement at agreed terms of repayment". A preliminary point was raised by the defendant that the plaint disclosed no cause of action as there was no averment therein that the goods were actually delivered and the money physically passed to the defendant.

Held: (1) "A case was cited in support of this argument. Unfortunately that case was based on an action for trespass on goods. It has not been of much help for that reason. At the same time, a case based on contract – Maula Dad + Rose v. Hen Singh 1969 H. C. D. 201 was cited to support the contention but I have studied it and found it to have the opposite effect. The point which that case decided was that "once the request is pleaded and the performance thereof alleged... Then the cause of action has been disclosed." That, in my opinion is the point Shs. 2, 7511/40, the price of goods sold and delivered and money advanced be claimed except if performance was actually done? The plaint cannot be said to be lacking the material fact that the goods were actually and the money actually advanced. I am for this reason unable to hold that the plaint does not disclose any cause of action. I will hold for the plaintiff and say that from the wording of the plaint, performance has been pleaded." (3) Preliminary objection overruled.

417. Festo v. Mwakabana Civ. App. 35-D-70; 20/10/71; Mwakasendo Ag. J.

The appellant unsuccessfully sued the respondent for malicious prosecution in the Mbeya District Court. The circumstance out of which these proceedings arose are as follows: there was a long standing dispute between the respondent and an appellant over the ownership of a piece of

land. The appellant harvested maize growing on the land and the latter preferred a criminal complaint against the former. In the complaint he alleged that the appellant had stolen his maize from his shamba. This shamba was the disputed area of land between the parties which was established as being the respondents. As a result of the complainant the Police arrested the appellant and charged him with the theft of the maize valued at Shs. 655/=. He was found

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guilt and was sentenced to a fine of Shs. 400/= or months' imprisonment in default. He however appealed to the High Court and his conviction was quashed on the ground that the trial magistrate had misdirected himself in not considering the defence of claim of right put forward by him.

Held: (1) "[I]t cannot be disputed that so far as plaintiff was concerned he criminal proceedings had been requisite condition for bringing an action for malicious prosecution." (2) "It is now, I think settled law that in an action for malicious prosecution the plaintiff to succeed must establish first, that the defendant acted without reasonable and probable cause, secondly that the defendant acted maliciously and thirdly, that he has suffered some damage recognized by law. What is reasonable and probable cause is not an easy thing to define but I think it is now accepted that the definition prided by Hawkins J. in Hicks v. Faulkner (1978) 8 Q B D 167, 171, is the best guide we have in determining actions of this type." "[The definition of] Hawkins J. has been repeatedly adopted and approved by the Court of Appeal and the House of Lords in England – vide(Lebo v. D. Buckman Ltd. and another (1952) 2 All ER 1057, Tmpest v. Snowden (1952) IKB 130, Herniman v. Smith (1938) A. C. 305 and Glinski v. Mc IVER (1962) A. C. 726." (3) "While I appreciate that decisions of English Courts re not binding upon this court I can find no good reason to reject a principle which is sound and in accord with reason and common sense

simple because it happens to be derived from foreign sources. In my opinion, there is no good reason for not accepting the sound formula adopted by Hawkins J. and I will accordingly adopt this formula as a guide in the determination of this case.” (4) “Now, it is for the plaintiff to prove his case to the satisfaction of the court, that the defendant in prosecution him had no reasonable and probable cause for instituting the proceedings, and he can only do so on the production of evidence which when examined would show the want of reasonable and probable cause by the prosecutor/defendant.” [His Lordship then examined the facts which led to the respondent prosecuting the appellant and held that there was ample evidence leading to the conclusion that the appellant had harvested maize growing on the respondent’s shamba. He continued:] “There then were the facts which were in possession of the defendant when he preferred a criminal complaint against the plaintiff and subsequently proceeded with his prosecution. It is upon this state of the evidence that we have to decide whether the defendant had a reasonable and probable cause for the prosecution of the plaintiff. In the circumstances in which the defendant found himself; and on the facts ascertained by him, I have no doubt in my own mind that the facts available to the defendant would induce a conviction founded on quite reasonable grounds of the existence of a state of circumstances which would reasonably lead any ordinarily prudent and cautious man placed in defendant’s position to the conclusion that the plaintiff was probably guilty of the crime imputed. It may perhaps be argued that the defendant should have asked for an explanation from the plaintiff. Undoubtedly his in some case is a good thing to do but there can be no general rule on the matter.” Citing Lord Atkin in Herniman v. Smith (1938) A. C. 305 at page 319); (5) Appeal dismissed.

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418. Bakari v. Mdulu Civ. Rev. 6-D-70; 23/9/71; Biron J.

The parties to the suit were husband and wife. Following their divorce the wife claimed a share of the matrimonial property which included a house and a Philips radio. The action was commenced in the Resident Magistrate court. The Resident Magistrate on consideration of the facts that the parties were Muslim and Islamic Law was applicable to the case made an order under section 42 of the Magistrates' Courts Act, 1963, to the effect that the High Court should order the transfer of the suit to the Primary Court. The proceedings were therefore remitted to the High Court.

Held: (1) "The order of the magistrate was made on the 23rd of July 1970, when, as the law then stood, I with respect would agree with the magistrate that that was the proper course for him to take. Since then, however, on the 1st of May of this year the Marriage Act, 1971, came into force. The act at section 114 lays down specific provisions for the division of the matrimonial assets consequent on a divorce. Although at subparagraph (a) of subsection (2) of the section quoted it is provided that the court should have regard to the custom of the community to which they parties belong, to my mind the court of the Resident magistrate has jurisdiction of the matrimonial assets, which are really ancillary to the divorce in respect of which the court itself would also now have jurisdiction." (2) "in all the circumstances I am not persuaded that it would be either in the interests of the parties or of justice to order the Court of the Resident Magistrate should hear and determine the suit in accordance with the provisions of section 114 of the Marriage act, 1971."

419. Afra Stores and others v. Sauti, Misc. Civ. App. 10-D-71; 10/9/71; Saidi, C. J.

The respondent acting as attorney for the original tenant of a number of buildings belonging to Karimjee Properties Ltd., filed an application before the Rent Tribunal seeking the standard rent in respect of premises including a hotel, the Splendid Hotel. The appellants who were the respondents in the application took over the management of the hotel from

Ascot Ltd. who at that date was paying Shs. 1,500/= per month as rent, but the appellants obligation was to pay rent of 3,000/= per month. The respondent asked the Tribunal to determine and/or approve the current rent of Shs. 3,000/= as the standard rent. The Tribunal assessed it at Shs. 2500/=. The appellants appealed against the assessment.

Held: (1) "The Rent Restriction (Amendment) Act 1966 brought all business premises under control. The prescribed date for ascertaining the standard rent of recently controlled business premises was fixed at January 1st 1965. Section 4 (1) (a) of the Rent Restriction Act, as amended, provides that: - "The expression 'standard rent' in relation to any premises means – (a) a rent determined by a tribunal to be the rent at which the premises were let at the prescribed date".

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the prescribed date in this respect is January 1st 1965, as the evidence shows the rent for Splendid Hotel was Shs. 1,500/= in November 1964 and was the same for three years before. The evidence seems to establish that the hotel was not let on January 1st 1965 as the rent then payable on that date would be the standard rent. Learned counsel on both sides had asked the Tribunal to accept the rent paid by Ascot Ltd. the last tenant as the standard rent. Had Ascot Ltd. continued in occupation they would have paid Shs. 1,500/= as rent on January 1st 1965. I think the submission of the learned counsel for the appellant on the question of standard rent is sound in the circumstance." (2) Appeal allowed.

420. Bicoli v. Matemba (PC) Civ. App. 71-A-71; 25/10/71; Kwikima Ag. J.

The respondent successfully sued the appellant for Shs. 130/= being the value of crops destroyed by the latter's goats when they trespassed on the respondent's shamba. The appellant's appeal to the district court was

dismissed. His main ground of appeal in the High Court was that the court of first instance, the Babati Primary Court of Hanang District, had no jurisdiction to hear the matter because it involved a tortious claim for trespass by domestic animals. He also raised the issue that the parties were of different tribes and neither the primary nor district court specified the customary law under which the suit was maintainable.

Held: (1) "This is by no means the first time when this court has been called upon to decide on the question whether the Primary Court being a court of original jurisdiction in Customary [sic] and Laws is vested with the power to hear and determine suits for damages arising out of trespass by animals. It was held in Ruzebe Sweya v. Jacobo Kitale [1968] H. C. D. 407 that cattle trespass is a "type of tortious liability" and that such tort falls within the purview of customary Law. The learned judge who decided so relied on the case of Alli Kindoli v. Tuzihiriwa Pendasamani No. 220 Vol. IX Digest of appeals from Local Courts (1962) page 7. He also cited another unreported case by Mustafa J. (as he then was). On the other hand Platt J. held in Aloice Matanda v. Samanya Ngapanyi [1968] H. C. D. 456 that cattle trespass was a tort under the general law of Tanzania and that the Primary Court has no jurisdiction to hear suits brought under that head. He relied upon Section 9(3) and (4) of the Judicature and Application of Laws Ordinance to reach this conclusion. Unfortunately the report in the High Court Digest is so brief that one cannot follow the former judge's reasoning with any studiousness in order to reach a stand on this very uncertain question." (2) "The famous Customary Law Declaration embodies the law of the Family and Succession only. Any claim brought under customary law must therefore be proved if it does not fall within the category of Family law or Succession. In the current case the parties who are respectively Gorowa and Chagga have not shown any custom which is equally applicable to them on the question of cattle trespass. As such the Chagga respondent/original plaintiff has not obtained judgment under any proven custom equally applicable to his Gorowa adversary." (3) "The

respondent cannot be said to have sued in the right court or even to have proved the custom under which he sued and obtained judgment.” (4) Appeal allowed.

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421. Sada v. Saada (PC) Civ. App. 43-D-71; Oct. 1971; Mwakasendo Ag. J.

The appellant and respondent were living in concubinage for a number of years. In 1966 the respondent bought a piece of land in the Mburahati area, Dar es Salaam, intending someday to build a house on it. In 1968 the appellant began building a house on the land. The material and labour was provided by him but the respondent contributed a share of the expenses for the doors and windows of the house. The respondent contended that the appellant built the house for her in consideration of her love and affection for him. Whilst he in turn claimed ownership of the house on the ground of his contribution in building it. The Magomeni Primary Court which heard the action found for the appellant. This decision was reversed on appeal in the District Court which held that the appellant built the house for the respondent in consideration of love and affection.

Held: (1) “Speaking for myself, I find it hard to discern any rationale behind the decision of the lower Courts, more so now at it must be apparently clear from a proper assessment of the facts and from the intention of the parties as can be properly inferred therefrom that the house was intended for the parties joint occupation or benefit. In my opinion the facts as I apprehend them clearly show that the parties built the house for their joint benefit. I would therefore decline to uphold any decision which aims at depriving one or the other party from enjoying the benefit of their joint labours.” (2) “The respondent in the course of this appeal told the Court that she would be quite prepared to allow the appellant to pull down his house and remove his materials from he plot, if

he so wished. All she cared, so it seemed to me, was to be left free to deal with her land as she pleased. Appellant on his part was not adverse to this suggestion which I must confess I found very attractive at first. But on further reflection, I have come to the conclusion that adopting this solution would only bring untold hardship and suffering to more innocent people, the tenants of the house, who have nothing to do with the present dispute between the parties. I have accordingly devised a way out of the problem which I believe will obviate any future trouble between the parties. I believe too that this is the only way the peace and tranquility of the tenants of the house can be ensured. For this state of tranquility to be established in the house it is necessary that the title and ownership of the property must be in one and only one person. I would therefore grant the ownership of the house to the respondent subject to her refunding to the appellant the sum of Shs. 1,500/= which is would consider sufficient to compensate him for the loss in materials and labour expended in creating the house.”

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422. Basira v. Kiharate and Anor. Civ. App. 1-M-71; 8/3/71 Mnzavas.

On 10/2/70, the first respondent filed a suit against S. claiming Shs. 765/=. On 16/2/70, summons for orders were sent to S. notifying him to file his written statement of defence within 21 days of the service of the summons upon him. On 16/6/70 the case came up for mention and it was found that S had failed to file his written statement of defence and respondent successfully prayed the court for ex-parte judgment. On 10/7/70 he applied for execution of the decree by attachment and sale of S's shamba. After the necessary preliminaries notice to settle terms of sale was issued on 22/8/70 and on 3/9/70, "proclamation of sale Order was issued. S's shamba was eventually sold on 26/10/70. the appellant had objected to the sale of the shamba before the court broker effected the sale on the ground that the shamba was clan shamba, and on 26/10/70 when the

court broker was in the process of selling the shamba he approached him and offered to pay all the decretal amount plus costs and court-broker's fees but the court-broker refused to postpone the sale of the shamba the objector filed an objection in the district court claiming that the shamba sold belonged to the clan and prayed the court to set aside the sale. His application was dismissed on the ground that a clan shamba which has been sold by a lawful court order, as here, in satisfaction of a decree, cannot be redeemed merely because it is a clan shamba.

Held: (1) "What the objector prayed for and is continuing to pray for is to have the sale of the shamba set aside on the ground that the shamba is owned by a clan and not by the judgment debtor alone. Much as I would have liked to agree with the magistrate's ruling I am of the opinion that this application has some merit. OR. 21 R. 87 of our Civil Procedure Code is to the effect that when, as in this case, an immovable property has been sold, a third party "holding an interest therein by virtue of a title acquired before such sale, may apply to have the sale set aside on his depositing in court;- '(a) for payment to the purchaser, a sum equal to five percent of the purchase money; and (b) for payment to the decree-holder, the amount specified in the proclamation of sale as that for the recovery of which the sale was ordered, less any amount which may, since the date of such proclamation of sale, have been received by the decree-holder.'" (2) "In the present case the objector in compliance with his application to have the sale set aside deposited to the court a total of Shs. 2,935/= vide G. R. R. No. 863938 of 24/11/70. This amount was to cover the purchase price as well as court and court-broker's fees." (3) Appeal allowed and sale set aside.

423. Dawibuda v. Niou (PC) Civ. App. 147-D-70; 3/12/71; Biron J.

Some time in 1963 the plaintiff was in need of Shs. 130/= in order to bring proceedings against someone. He borrowed this amount from the defendant promising to repay the loan in kind with a calf, He later tendered a calf to the defendant who,

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however, refused to accept it as it was blind, and the plaintiff promised to deliver another calf instead. He delayed delivery of the calf but obtained a cow from a friend which he deposited with the defendant as security. About 4 years later, during which period the cow had calved twice, plaintiff appeared and claimed the three animals. He was prepared to refund the Shs. 130/= he had borrowed from him. He was successful in the primary court but the district magistrate reversed the decision on grounds of limitation.

Held: (1) "On the facts it would appear that in justice the plaintiff had delayed too long, to entitle him to succeed, the excuse he gave that he had been ill, is not really very impressive. With regard to the law, there can be no doubt as to the correctness of the district court magistrate's ruling, as it is expressly laid down in the Magistrate's Courts (Limitation of Proceedings under Customary Law) Rules 1964, that the period of limitation for a transaction of this nature, which whether it comes under item No2 of the Schedule to the Rules, which reads: "Proceedings for money lent or money due for property sold and delivered", or what is possibly more likely under item No. 5, which reads: "Proceedings for damages for breach of contract or to enforce a contract, either than contracts of or relating to marriage, separation or divorce – (a) if the contract is in writing, (b) if the contract is not in writing", is three years. The plaintiff's claim was therefore time-barred and should not have been upheld by the primary court." (2) Appeal dismissed.

424. Kasigwa v. Kalala (PC) Civ. App. 72-M-71; 17/11/71; El Kindy;

The respondent borrowed Shs. 1,000/= from the appellant pledging his shamba as security. The document evidencing the agreement provided that the money was payable on the 30th July, 1970. The money was not

paid on that date, each side blaming the other for non-payment. The appellant alleged that as the respondent did not repay his loan he was entitled to the shamba under the terms of the agreement. The primary court ordered that the respondent should hand over possession of the shamba to the appellant, but the appellate court held that the order for possession was unconscionable and inequitable because the appellant would gain more than his correct share. It ordered instead, that the respondent should make payment of the loan to the appellant.

Held: (1) "In my view, the agreement is a pledge agreement. It is not an agreement for sale of a shamba. And therefore, the meaning and purpose of pledge agreement should not be extended beyond its correct boundary. It is easy for a moneyed person to exploit an unfortunate person by strict construction of the document. The learned appellate magistrate was right in referring to the decisions of this court which preferred that such shamba should be sold to realise the claimed amount rather than be handed over to such claimant. The basis of it is that to allow a loaner to take possession is to unjustly enrich him, and therefore inequitable in law. A person should only have his fair share. It would not be taking a fair share if such a person is permitted to take possession of property worth more than his share simply because an agreement, written or oral, stated that it would be open for a loaner to take

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possession of a shamba in event of default, in this case, after reading the document, as it was written in Swahili, a language I know, I find that nowhere does it state that the money must be paid by the 30th of July 1970. It simply says that "he will pay" which would not justify a "mandatory" form of interpretation. Therefore, the date of payment was not a fundamental term of contract in this case. Therefore, it was unreasonable for he

appellant to demand shamba as strictly as he did as if the agreement permitted him.” (2) Appeal dismissed.

425. John Hiza v. Shekefu (PC) Civ. App. 117-D-70; 27/11/71; Biron, J.

The dispute was over a piece of land lying between the shambas owned by the appellant and respondent. The appellant claimed that his father assisted by him had cultivated the disputed piece of land from virgin bush. Upon his father’s death in 1966 he continued cultivating the land but was absent some time in 1968, working in an ujamaa village, when the respondent encroached on the land and started cultivating it. The respondent’s claim was based on allocation. In the face of conflicting evidence the primary court unanimously found for the appellant on the basis of traditional evidence i. e. the omission of the respondent to appear at the mourning ceremonies and declare title to the land, it being in the possession of the appellant’s father at the time of the latter’s death, was an indication that he had no claim to the land. On appeal to the district court the assessors were prepared to dismiss the case but the district magistrate disregarding their views found for the respondent. One issue raised on appeal was the power of the magistrate to disregard the wishes of the assessors in giving this decision.

Held: (1) “Although in primary court cases the decision is determined by the majority, that in effect the assessors if they are unanimous can overrule the magistrate, in a district court, as provided for by the Magistrate’s Courts (Amendment Act 1969, the magistrate is not bound by the opinions of his assessors, as laid down in section 8A(2), which reads: ”(2) In determining any proceedings in which a district court or a court of a resident magistrate sits with assessors, the magistrate shall not be bound to conform with the opinions of the assessors, but in any case in which he does not so conform the magistrate shall record his reasons therefore in writing.” The magistrate has not however recorded his reasons for disagreeing with his own assessors.”

426. Abraham v. Owden (PC) 52-D-71; Dec. 1971; Mwakasendo Ag. J.

The appellant had in an earlier action sued the respondent for damages for adultery with his daughter. That suit was summarily dismissed by the court on the ground, that the appellant did not establish a cause of action, as there was no customary claim for adultery or fornication. Subsequently, the appellant brought the present suit against the same party but this time he grounded his claim partly on enticement and partly on loss of this daughter's virginity. The primary court gave judgment in his favour but this decision was reversed in the District Court.

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Held: (1) "It is of course a trite principle of law that there is no entitlement to damages without loss or injury – there can be no monetary compensation without injury or loss being shown. No cause of action would therefore lie where a party claiming damages cannot show that the action or conduct of the defendant has directly or indirectly occasioned injury or loss to him. There is in fact nothing in the present case to show that the plaintiff had suffered any loss or injury as a result of his daughter's loss of virginity. He could not therefore be entitled to any payment of damages." (2) "There is also another reason why I think the plaintiff's claim was utterly incompetent. The claim brought by him is alleged to be governed by customary law but there is, to my knowledge, no rule of customary law which entitles a parent of a girl to sue in damages, the person who happens to fornicate with her, be she a virgin or not. The only rule of customary law which could possibly apply to this case, if it were relevant, is Rule 89 of the Local Customary Law (Declaration) Order, 1963, which was declared as the Customary Law of the Rungwe District in the matters stated therein, by the Local Customary Law (Declaration) (No. 3) Order, 1964. Unfortunately however, the facts of the present case do

not fall within the ambit of the rule.” (3) [The learned judge read Rule 89 of the Rules, and continues:] from a proper reading of the above provision it seems to me that for an action of enticement (which in Kiswahili is “kumshawishi msichana aliye chini ya miaka 21 aliye chini ya ulezi wa baba yake ahame kwao na kukaa na mwanaume anayedaiwa, kinyumba)to succeed the plaintiff has to establish to the satisfaction of the Court the following: (a) That the defendant enticed the girl who is his daughter. (b) That his daughter is or was under the age of 21 years and (c) that the daughter was prior to the enticement living with him and under his custody. Only when the plaintiff has succeeded to establish all these conditions can he hope to succeed in an action for enticement under customary law. Now, all that the present appellant alleged in his claim was that his daughter had fornicated with the respondent resulting in her loss of virginity.” (4) Appeal dismissed.

427. Nkomanya v. Seni (PC) Civ. App. 24-M-71; 17/11/71; El-Kindy,

The respondent sued the appellant for refund of bridewealth (21 heads of cattle) following the dissolution of the marriage between himself and the appellant’s daughter. The primary court ordered the appellant to refund 10 heads of cattle only but this was increased to 18 on appeal to the district magistrate’s court. The facts of the case were as follows: the respondent’s wife was a 15 year old girl who at the time of the marriage had not yet developed breasts and experienced the first menstruation. He contended that she was therefore unfit to be married and this was sufficient ground for divorcing her. The trial court rejected this last contention and held him to be the guilty party.

Held: (1) “The trial court properly directed itself on the issues involved, and held that as the respondent divorced without giving reason; he was the guilty party (see Rule 60

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of G. N. 279/63) and thus misapplied provisions of Rule 52 of G. N. 279 of 1963. The relevant provision is Rule 52 of G. N. 279 of 1963. It is clear, therefore, that the trial court had discretion in the assessment of the bridewealth to be returned.” (2) “In this case, there was no child of marriage. The bride was a juvenile. If what is on record is correct, she was immature for the duties of a wife, and the respondent must be taken to have known this as there was no evidence that at the time of the celebration of marriage he had not seen his bride. The appellate court thought that the amount was “too small” and increased it. Apart from the fact that it was a matter of discretion of the trial court which the appellate court should interfere with rarely, the assessment was based on the unanimous views of the gentlemen assessors and the trial magistrate, and in my view the appellate court should have had a better reason than the one it had for substituting its own opinion on the matter.” (3) Order of primary court restored.

428 John v. Claver, Civ. App. 22-M-70; 7/12/71; Jonathan Ag. J.

Appellant brought divorce proceeding against her husband on the grounds of cruelty and desertion. The district court dismissed the petition. The parties were married in 1960 according to Christian rites. It was established that after about 5 years of the marriage the husband took to beating his wife and had on occasions threatened to kill her. She finally left the matrimonial home in 1966 with her 3 children on the request of her husband. The trial magistrate expressed the view that the instances of the husband beating his wife which were proved were isolated acts which did not amount to legal cruelty. His decision was also influenced by the fact that the acts of beating took place after the wife had returned to her father’s house. Counsel for the appellant attacked this holding as wrong in law.

Held: (1) "In [counsel's] view a single act of cruelty can amount to a matrimonial offence entitling a spouse to divorce. I think that is a correct view provided, however that the act proved, and the onus is a heavy one, is "grave and weighty" and is injurious to the health of the petitioning spouse. In the present case, there were quite a few incidents which the learned magistrate appears to have accepted as proved. He considered, however, that they were isolated. That may have been so. But I think the justice of the case required that such charges as were proved and accepted should be taken together in considering if they were grave and weighty and entitled the appellant to the divorce she sought. It made no difference, in my view, that the acts or most of them were committed while they were living apart. As was held in Gollins vs. Gollins, an English case and affirmed by the East African Court of Appeal in its decision in Nunzio Collarossai vs. Michelina Collarossi as reported in 1965, E. A. L. R. at page 129, where cruelty is a ground of divorce, it must be proved beyond reasonable doubt firstly, that the act complained of is of "a grave and weighty nature" and secondly, that the health of the petitioner has thereby been impaired or there is a reasonable apprehension of injury to her health." (2) "The incidents would seem to indicate quite clearly that the respondent was a man given to violence and I am of the view that, had the trial court properly

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Directed itself it ought to have found that the acts complained of which it seems to have found proved, were grave and weighty such as the appellant could not be expected to put up with. I would also hold that although it was not stated in the evidence the acts must have impaired her health. (3) "On the ground of desertion also the petition ought to have been granted. It was undisputed that he asked her to leave the matrimonial home which she did. That was desertion. He claimed,

however, that he had subsequently made efforts aimed at reconciliation. The trial magistrate found that was so. The onus lay on him to show he had genuinely made such efforts thereby determining the desertion. The court's finding was based on the respondent's claim that he had made such efforts but it was significant that he did not call any evidence in support of such claim. The appellant admitted that a priest had intervened but the respondent would not promise to desist from his habit of heavy drinking which invariably led to violence. If that was true, and there was reason to think it was, desertion could not be said to have been terminated." (4) Appeal allowed.

429. Commr-Gen. of Income Tax v. Joshi Misc. Civ. App. 16-D-71; 8/11/71; Biron J.

The appeal was brought by the Commissioner-General of Income Tax from the decision of the Local Committee allowing an appeal by the respondent tax payer from the assessment of his income tax for the year of income 1968. The issue was whether the respondent was entitled to children allowances in respect of his brother and three sisters who were residing with their parents in India and were receiving full-time education there. The respondent established that because of the old age of their parents and their inability to provide for the education and maintenance of his sisters and brothers, full responsibility of care and maintenance of them fell upon him. He led evidence to the effect that according to the custom of his community the custody of and responsibility for the maintenance of his brother and sisters devolved on him because of the incapacity of their parents.

Held: (1) "The relevant provision providing for child allowance in the assessment of income tax is section 52 of the East African Income Tax (Management) Act, 1958, the relevant parts of which read:- '52. (1) An individual who proves that in any year of income he maintained:- (a) any child of his who was under the age of 19 years on the 31st December in

such year of income and who was either in his custody or in any other custody by virtue of an order of a competent court; or (b) any other child who was under such age who was in his custody by virtue of any custom of the community to which he belongs; or (c) any child of a class mentioned in paragraphs (a) or (b) of this subsection and was not under the age of 19 years on such date and who was:- (i) receiving full-time education; or (ii) serving full-time under articles or indentures with a view to qualifying in a trade or profession; or (iii) totally incapacitated either mentally or physically during the whole of such year of income

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From maintaining himself and was resident in the Territories or in a recognised institution abroad, shall, subject to section 49, in respect of each such child not exceeding four in number, where the individual is resident in Kenya or Tanzania, or six in number where the individual is resident in Uganda, be entitled to a personal allowance, in this act referred to as the child allowance:’ (2) “The whole crux of this case is the interpretation and construction of the word ‘custody’ which appears in the section. This word ‘custody’ was introduced in the Management Act of 1965, and, so I am informed by Mr. Kaunda (it should be noted that the taxpayer appeared in person), this is the first time that the section has come up for interpretation and construction. There is therefore no precedent, and although the word ‘custody’ is also used in the corresponding English Income Tax Act, I am not aware of any case wherein the word has been defined, and for reasons which are self evident there is hardly likely to be an English case which would correspond to this instant one. The Court therefore has to decide the issue, which, as noted, is the construction of the word ‘custody’ in the section, on the application of first principles.” (3) “The first and foremost cardinal principle of construction of words whether in statutes or legal

documents is that the words and expressions used should be given their plain and ordinary meaning. The word 'custody' covers such a wide range of meanings that it would be idle to set out the definition of 'custody' in any dictionary, particularly as this case is concerned with the meaning of the word in relation to children. At first blush 'custody' when used in relation to children would appear to be equated to guardianship. However, there is a distinction between the two, as remarked on in "Words and Phrases Legally Defined", Second Edition, at page 392, the relevant passage reading:- "Australia – "Custody" is not necessarily co-extensive with" guardianship". Both words appear in the Guardianship of Infants Act and may have different significations It may be "guardianship" and "custody", when used in contrast, is several aspects of the same relationship. The former can very well be employed in a special context to denote duties concerning the child ab extra; that is, a warding off; the defence, protection and guarding of the child, or his property, from danger, harm or loss that may occur from without. Commonly, guardianship is used in a wider sense (Neale v. Coloughan [1944] S. A. S. R. 119, at pp. 129 – 130). Custody essentially concerns control and the preservation and care of the child's person, physically, mentally and morally; responsibility for a child in regard to his needs, food clothing instruction, and the like.' Wedd v. Wedd [1948] S. A. S. R. 104, per Mayo J., at pp. 106, 107." It is also not irrelevant to remark that, particularly as of late, a distinction has been made between 'custody' and 'care and control', because one parent may be granted custody of a child of the marriage whilst the other is granted the care and control." (4) "It cannot be gainsaid that where a word has many meanings which vary according to the context in which it is used it would be elementary to say that the word must be construed in the particular context in which it is

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used. As already noted, we have limited the meaning or definition of the word 'custody' to when used in connection with children. The section which we are interpreting has gone much further and qualified the word 'custody' by stating at paragraph (b);_ "any other child who was under such age who was in his custody by virtue of any custom of the community to which he belongs.' Although in this case we are concerned with paragraph (c), as expressly stated in that paragraph it is interconnected with paragraph (b), and the same definition of paragraph (b) will apply to children over the age of nineteen years if they are receiving fulltime education". (5) "Although I fully agree with Mr. Kaunda that the taxpayer cannot be said to have physical custody of the children in respect of whom he is claiming allowances on his assessment, they are all, according to the custom of the community to which they belong, in the custody of the taxpayer. He is therefore entitled to the child allowances in respect of them as I think sufficiently demonstrated, there is certainly no authority, nor is there any reason apparent, why this Court should disagree with the decision of the Local Committee from which this appeal has been brought." (6) Appeal dismissed.

430. Mohamedi & Others v. The Manager, Kunduchi Sisal Estate, Misc. Civ. App. -25-71; 22/11/71; Onyiuke J.

Fifty-six persons who were employed by the Kunduchi Sisal Estates sued their employer claiming Shs. 81, 741/- as compensation because of the termination of their services without notice. The sum comprised severance allowance, leave and travel allowances and a month's wages in lieu of notice. The Court held that the basis of the claim was summary dismissal and that by section 28 of the Security of Employment Act, Cap. 574, the jurisdiction of the court was ousted. The district magistrate relied on Kitundu Sisal Estate v. Shinga (1970) E. a. 557 in arriving at his decision.

For the appellant it was argued on appeal that that case was distinguishable from the present one because the latter case concerned claims not on summary dismissal but upon the exhaustion of the work which the appellants had been employed to perform. It was also submitted that the termination of contract services without due notice does not necessarily amount to summary dismissal.

Held: (1) "S. 19 of the Security of Employment Act, Cap. 574 restrict the right of an employer to dismiss an employee summarily. It provides that subject to the provisions of s. 3 but notwithstanding the provisions of any other law no employer: (a) shall summarily dismiss any employee or (b) shall, by way of punishment, make any deduction from the wages due from him to any employee, save for the breaches of the Disciplinary Code, in the cases and subject to the conditions, prescribed in this part and the second Schedule to this Act." S. 20 of the Act gives the right to an employer to dismiss an employee summarily for breaches of the Disciplinary Code in the cases in which such penalty is allowed under the Code. S. 21 prescribe the procedure to be followed before that right can be exercised. The contention for the appellants was that unless an employer complied with this procedure and for a

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breach which justifies summary dismissal under the Code any purported dismissal cannot amount to summary dismissal and therefore s. 19 which ousts the jurisdiction of the court cannot apply. The short answer to this contention is that where an employer does not comply with the Act his action becomes wrongful but is still summary dismissal for which but for s. 19 of the Act the employee can bring an action for damages. Compliance with the provisions of the Act is a complete defence to an action for wrongful summary dismissal but that is not the point. S. 19 preclude an employee from bringing any proceedings with regard to summary

dismissal so that the question whether the employer has a defense or not can badly arise. Compliance with the provisions of the Act does not constitute summary dismissal. It rather provides a justification for summary dismissal.” (2) “[It was further contended] that the absence of notice of termination of employment does not necessarily amount to summary dismissal. The substance of his argument was that under s. 32 of the Employment Ordinance as amended by The Employment Ordinance (Amendment) Act 1962 a contract of service which cannot be terminated without notice may yet be terminated without notice by payment of all wages and benefits to which an employee is entitled. S. 32 of the said act provides as follows:- “Either party to an oral contract of service may terminate the same – (a) in the case of a contract which may be terminated without notice, by payment to the other party of a sum equal to all wages and other benefits that would have been due to the employee if he had continued to work until the end of the contract period or in the case of contracts to which section 34 refers until the completion of the contract; (b) in any other case, by payment to the other party of a sum equal to all wages and other benefits that would have been due to the employee at the termination of the employment had notice to terminate the same been given on the date of payment.” It is common ground that the contract of service in this case was an oral contract of service as defined in s. 2 of the Employment Ordinance as amended by Act 62 of 1964.” (3) “When an employee is dismissed summarily without justification he has a cause of action against the employer, that is to say he can bring an action for summary dismissal against the employer. Usually it takes the form of action for damages. These damages may be general or special depending on whether the employee is claiming a specified amount such as severance allowance or unused leave pay (special) or is asking the court to assess his loss such as the claim for reasonable notice (general). These claims have to be founded on a cause of action Assuming without deciding the point that s. 32(b) provides an alternative remedy the

fact still remains that the cause of action is basically one for summary dismissal. S. 30 of the Employment Ordinance (Amendment) Act 1962 provides that an oral contract of service from month to month (and it is common ground that that was the nature of the contract in this case) can be terminated – (i) by notice; or (ii) by payment in lieu of notice; or (iii) summarily for lawful cause. In the present case the contract was neither terminated by notice nor by payment in lieu of notice. It could only then have terminated summarily. The appellants were really contending that the summary termination was without lawful cause and was why they were claiming a month's wages in lieu of notice. It is obvious therefore that

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Their cause of action was for summary dismissal without lawful cause. Unfortunately for them s. 28 of the security of Employment Act says that proceedings relating to such cause of action cannot be entertained by the law courts. they must reconcile themselves to the legal position that where a contract of service is terminated, that is to say, where they are made to stop work either expressly or by implication, without notice or without payment in lieu of notice where notice is required it can only mean summary dismissal. On principle this is the position and on authority the Court of appeal for Eastern Africa has said so in the Kunduchi Sisal Estates case and it is binding on me.” (4) Appeal dismissed.

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CRIMINAL CASES

431. R. v. Francis Kioko E. A. C. A. Crim. App. 120-D-1971; 14/12/71;
Duffus P., Lutta and Mustafa J. J. A.
(Judgment of the Court)

The respondent Francis Kioko was charged in the Resident Magistrates Court with 21 counts of unlawful possession of Government trophies c/s 49 and 53 of Cap. 302, on count of obtaining by false pretenses c/s 309 of the Penal Code, one count of uttering an exhausted document c/s 343 of the Penal Code, one count of uttering a false document c/s 342 of the Penal Code and one count of failing to make returns by trophy dealer c/s 39 (1) of Cap. 302. He was convicted on 11 counts of unlawful possession of Government trophies and the counts of obtaining by false pretenses, of uttering an exhausted document and of uttering a false document. He was acquitted on all other counts. He appealed to the High Court in Arusha which quashed his convictions and set aside the sentences. It did so primarily on the ground that the magistrate had relied on inadmissible hearsay evidence. On the counts of unlawful possession of government trophies, the judge held that it was on the prosecution to prove that the accused acquired possession of the skins and trophies unlawfully (relying on s. 114 of the Evidence Act). "All that it is necessary for the defence to establish is that its story is more likely to be true." [See (1971) H. C. D. 307]. The Republic appealed to the court of appeal for East for Africa

Held: (1) "the learned judge held that the trial magistrate's conviction of Francis [respondent] on the 11 counts of unlawful possession was based on inadmissible evidence and quashed the conviction thereon. We have already referred to section 49 of cap. 302 sub-section 2 of which reads; "in any proceedings against any person for an offence under this section the onus of proving lawful possession or dealing shall be upon such person". In our view the learned judge was wrong to apply section 144 of the Evidence Act when there is specific provision in a statute putting the burden of proof on an accused, see Ali Ahmed Saleh Angara v. R. (1959) E. A. 654 at 658. Francis had to prove his innocence on a balance of probabilities, not merely "to establish that its story is more likely to be true". Mr. King for the Republic has referred to Sec. 3(2) of the Evidence act which reads: - A fact is said to be proved when:- "(a) in

criminal matters except where otherwise provided by Statute or other law, the Court believes it to exist beyond reasonable doubt”; and suggested that Francis, in view of this rather unusual provision would have to prove his innocence beyond reasonable doubt. There is overwhelming authority for saying that where the onus is cast on an accused, as here, the test to be applied is on a balance of probabilities. We do not know whether Sec. 3(2) of the Evidence Act has made any change to this well-established and long standing principle; in any case we did not have full arguments on it. We will not pursue this matter but will only say that we will need clear legislative enactment to depart from such a well-established and time honoured principle. We will, for the purpose of this appeal,

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continue to apply the test of a balance of probabilities in so far as Francis is concerned”. (2) “We now come to the evidence given by PW 2 Silas about David Kiamba not being a registered trophy dealer in Kenya. PW 2 Silas in his duties as an investigation officer checked through the records at the Game Headquarters in Nairobi and failed to find the name David Kiamba registered as a trophy dealer in Kenya. The learned judge held that the evidence of PW 2 Silas was secondary evidence and thus inadmissible. He presumably was of the view that the original records should have been produced. The provisions of Sec. 67 (1) (a) (ii) and (g) of the Evidence act read:- “(1) Secondary evidence may be given of the existence, condition or contents of a document in the following cases: (a) when the original is shown or appears to be in the possession or power of (ii) a person out of the reach of, or not subject to, the process of the Court; (g) When the originals consist of numerous accounts or other documents which cannot conveniently be examined in Court, and the fact to be proved in the general result of the whole collection.” Section 67 (5) reads:-

"In the case mentioned in paragraph (g) of sub-section (1) evidence may be given as to the general result of the accounts or documents by any person who has examined them and who is skilled in the examination of such accounts or documents." There was evidence that the records were kept at the Game Headquarter in Nairobi, Kenya. The Court in Tanzania would not have jurisdiction to serve process on the person in charge of such records to produce them in Tanzania. There was also evidence that there were over 300 registered trophy dealers in Kenya and that hundreds of export permits were issued. The original documents and records would have been many and voluminous and could not have been conveniently examined in Court. PW. 2 Silas was the person who examined them and was skilled in such examination. The fact to be proved was the result of such examination. In such an event secondary evidence would be admissible, see J. B. M. D' Sa v. R. (1957) E. A. 627, at 629. It is true the Republic should have, prior to adducing this secondary evidence, laid the formal foundation for it. But this omission was not necessarily fatal the trial magistrate must have the provisions of Sec. 67 in mind when he admitted this evidence. In any event counsel for Francis had not objected to this secondary evidence going in. We agree that in a criminal case there can be no acquiescence consent on the part of an accused person. But in considering whether to apply the provisions of Sec. 346 of the Criminal Procedure Code, the absence of any objection by the defence is a relevant factor." (3) "In any event, in his case, we think that the learned judge should have applied the provisions of Sec. 346 of the Criminal Procedure Code as there was no failure of justice. He should have held that there was admissible was thus a good deal of evidence to show that Francis could not have received the export permits from David as he had alleged, and that the export permits, on the basis of which Francis could not have received the export permits from David as he had alleged, and that the export permits, on the basis of which Francis obtained the certificates of ownership, could not have been genuine. In on a balance of

probabilities, to prove otherwise. This he had failed to do. In our view the conviction of Francis on the 11

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counts of unlawful possession by the trial magistrate in the circumstances were justified.” (5) “In so far as the offences under the Fauna Conservation Ordinance Cap. 302 were concerned; the onus was on Francis to prove, on a balance of probabilities, that he had lawful possession. In respect of the offence under the Penal Code, it was for the prosecution to prove its case beyond reasonable doubt.” (6) “The trial magistrate also referred to the evidence of PW. 6 Henry who testified that from his examination of the records in his office at Nairobi he found that Export Permit Book Np. 138351 to 138400 was issued to Francis Kioko on 15.3.67. The trial magistrate accepted this evidence as true. The learned judge held that this evidence of PW. 6 Henry was secondary evidence and inadmissible. We are of the opinion that this evidence of PW. 6 Henry was admissible under Sec. 67 (1) (a) (ii) and (g) of the Evidence Act for the same reasons as we have given in connection with the evidence of PW. 2 Silas about Francis not being registered as a trophy dealer in Kenya.” (7) “There was therefore evidence that Export permit No. 138368 was issued to Francis Kioko. There was also evidence that this Export Permit was in the Physical possession of Francis who produced it before the Arusha Game Division Office and obtained a certificate of ownership” There was sufficient evidence to convict Francis on count 22 (obtaining a certificate b false pretences), without recourse to any finding under the Fauna Conservation Ordinance.

[Editor's note: This case reversed the judgment in Kioko v. R. reported in this Digest as [1971] H. C. D. 307, on all counts except uttering a false document c/s 342 of the Penal Code].

432. R. v. Shaibu Magude; Crim. Rev. 140-D-1971; Biron J.; 10/11/1971.

The accused was an Assistant Field Officer employed by the ministry of Agriculture Food and Cooperatives. He was employed at the Magalikwa Ujamaa Village in Iringa. Under his control were two tractor drivers; also employed by the Ministry, whose job it was to plough land for the village. The accused was charged on two counts. The first was that he forged the signatures of the two tractor drivers on payment vouchers, purporting to show that they had received their wages. In fact the accused kept their wages himself. The second count was that he stole the money which came into his possession by virtue of his employment. The district magistrate convicted the accused. For simple theft.

Held: (1) "The accused was a public servant in that he was employed by the Ministry of Agriculture, Food and Co-operatives as an assistant field officer, and, further, the money which he was given to hand to the two men came into his possession by virtue of his employment. He should therefore have been convicted of stealing by public servant as charged." (2) "Perhaps for the sake of the record, although it can be argued that it is a fruitless exercise and possibly an idle speculation, the magistrate came to the conclusion he did because he considered that the accused received the moneys on behalf of the two men whom he was to pay. However, whatever was in his mind which he has not disclosed, it was, as I think sufficiently demonstrated, not in accordance with law." (3) Guilty of theft by public servant

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433. Stephen s/o Simbila v. R. Crim. App. 174-M-71; 12/11/71; El-Kindy J.

The appellant was charged with and convicted of stealing by a person employed in the public service c/ss. 270 and 265 of the Penal Code, Cap. 16. He did not enter a plea in court to the charge but was sentenced to

imprisonment and ordered to suffer corporal punishment. He appealed against conviction and sentence.

Held: (1) "Like many other cases, this case too was tried without plea being taken. It is well established law to date that if no plea is taken before the trial commences, such trial would be null and void. The import of the full bench decision of this Court in the case of Akberali Walimohamed Damji v. Reginum 2 T. L. R. p. 137 is that before trial commences, the presiding magistrate must take the plea of the accused even if his plea had been taken on the previous days by the same or different magistrates. This may sound too technical and unrealistic where an accused's plea was taken before the date of his trial, but that is the law as it is now." (2) "It may well be that this is one of the rules which ought to be considered again by the full bench of the High Court having regard to the recent amendment of the rules of interpretation of the Penal Code, Cap. 16 and the Criminal Procedure Code, Cap. 20 as per the administration of Justice (Miscellaneous amendments) Act, 1971, Act No. 26 of 1971 as enacted on the 29th of October, 1971. Be that as it may, the trial was null and void." (3) Conviction quashed, sentence set aside and retrial ordered.

434. R. v. Wilson, Crim. Sess 201-D-70; 27/10/71; Jonathan Ag. J.

The accused and the complainant lived together in concubinage for the whole or greater part of 1969. They agreed that eventually they would marry under Islamic rites but never did because of constant quarrels. The complainant eventually left him and returned to her parents but he however visited her from time to time. He was denied entry to her house one night at 9 p. m. At about 4 a. m. the following morning he gained access to her room through a window made of reeds which he cut away. He shot her with an arrow and she sustained a wound one inch deep and ¼ inch wide in the upper part of the chest. He was charged of an act

intended to cause grievous harm c/s 222 (2) of the Penal Code and of burglary c/s 294(1)

Held: (1) "It remains To consider if in doing the act the accused intended to cause grievous harm in terms of section 222(2) of the Penal Code. Both the assessors say he so intended. I respectfully agree. Having regard to the time when he forced his way in, the nature of the weapon used and the part of the body struck albeit it may have been in the dark, I find it impossible to say that his intention was other than to cause grievous harm to her. That he should have fired a second arrow, the only other he had, would seem to me to confirm there was such intention." (2) "So far as concerns the count of burglary, I agree completely with the assessors that he broke into the house. Judges by the subsequent events inside the

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House for which we have found guilty of act intended to cause grievous harm, his act of breaking in cannot but have been intended to commit a felony. Accordingly, for this offence also he is guilty. (3) Accused convicted and sentenced.

435. Kanalamo v. R. Crim. App. No.525-D-71; Mwakasando Ag. J.

The appellant was charged with using abusive language c/s 89(1) (a) of the Penal Code. He was convicted by the District Magistrate. The appellant was a primary court magistrate in Mbeya. The complainant was employed as a court clerk at the same court. H had traveled to Mbozi in order to remit revenue collected at the court, to the District court. He returned the same day in the evening & went to the court-house to return books he had taken with him. The court-house was locked and he was told that the appellant had the keys and was drinking in a pombe shop nearby. He went to the pombe shop and found the appellant drinking in

the company of other persons. He asked for the keys to the court – house. The appellant refused to hand them over and when the complainant repeated his request, the appellant said ‘Huko Mbozi, ulikotoka ulikwenda kufirwa na D. M.’ i.e. ‘You went to Mbozi, from where you are now returning, to be sodomised by the District Magistrate.’

Held: (1) “On the evidence on record I do not think there can be doubt that the language used by the appellant, which is unquestionably most insulting, was likely to cause a breach of the peace. I am aware as this Court has held in R. v. John (1967) H. C. D. 61 and Mdeha v. R. (1970) H. C. D. 310 that mere annoyance or is pleasure among the recipient of the insults is not enough to ground a prosecution for this offence. In the instant case it is abundantly clear that the words used by appellant Where such as to incite and did incite the complainant to physical violence.” (2) Appeal summarily dismissed.

436. The Republic v. Justin Mwezi, Misc. Crim. Cas. 29-D-71; 15/11/71, Onyuke, J.

The D. P. P. made an application under s. 335 (b) (ii) of the Crim. P. C. for extension of time within which to give notice of appeal. The accused respondent was charged with robbery c/s 285 of the Penal Code. Judgment was given on the 2nd June 1971 acquitting him of the offence. By letter dated 10th June 1971 the Police Prosecutor applied for a copy of the judgment. This was forwarded to him on the 23rd July 1971. The matter was not however brought to the attention of the DPP until the 21st September 1971. The present application was filed by the DPP on the 16th October, 1971. Section 335 of the Criminal Procedure Code gives the DPP 30 days within which to give notice of extension to appeal against an acquittal order. “The learned State attorney stated that it was very difficult for cases in every District Court to be brought to the attention of the DPP in time to enable him give the requisite notice within the prescribed time. I am not persuaded by this contention. It appears to me that it is to enable

the DPP to take appropriate action that 30 days was allowed him under section 335 of the Criminal Procedure Code as against only 10 days that is allowed to an ordinary citizen under section 314 (a) of the Criminal Procedure Code to give notice of appeal against conviction or

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sentence. I do not therefore consider this ground as sufficient by itself to constitute good cause.” (2) “An accused person who has been acquitted in a criminal charge should not be left in indefinite suspense or uncertainty as to his fate. He is entitled to regard the matter as closed at the expiration 30 days after his acquittal if no notice of appeal was given within that period.” (3) Application dismissed.

437. Elias s/o Mashamba v. R. Crim. App. No. 747-M-70; 16/9/71; El-Kindy, J. The appellant was charged with obtaining money by false pretences c/s 302 of the Penal Code. Three witnesses gave evidence in support of the charge. They gave evidence that the accused told them that if they gave him money, he would take it to a police officer he knew and obtain the release of their relative who had been detained, apparently as a habitual criminal. They gave him various payments amounting to Shs. 2, 050/=. Nothing was written down relating to the transaction. The detainee was not released and the three persons informed the police. Two of them made clear statements that they knew the money was a bribe and what they were doing illegal. It was argued for the appellant that the witnesses were accomplices and as such their evidence required corroboration, and on the facts and the evidence the offence disclosed was not obtaining by false pretences but corruption to which the three witnesses were principals.

Held: (1) “It seems to me that the learned magistrate was duty bound to consider whether the three main witnesses were either

accomplices or victims or persons with their own interests to serve. The trial court did nothing of this sort. It was not enough, in the circumstances of this case, to say that these people were reliable witnesses. It was necessary to decide what sort of legal category these people could be placed in. In coming to this decision, he had to consider the evidence. Particeps Criminis, as it was held in the case of Daview v. Director of Public Prosecutions (1954) 1 All E. R. p. 507 at p. 513, have been held to be accomplices. With respect I accept that distinction. I think it was the duty of the trial court to consider whether PW. 1, 2 and 3 fell into this category. With the evidence of P. w. 2 and P. W. 3, it is clear that they were actively participating in a crime. They were consciously and deliberately handing over money with intent that it should be used as bribe to a police officer who was believed to have the powers of releasing their relative Malyatabu. Even if the appellant had originally suggested and continued to encourage them in their design, this did not make them any less particeps criminals. I would respectfully uphold the learned defence counsel's submission that that the three main witnesses were accomplices to all intents and purposes." (2) "The learned State Attorney was right in arguing that a conviction is still valid in law under provisions of section 142 of the Evidence Act, 1967, but before the court could do so it must warn itself of the danger of convicting on uncorroborated evidence of an accomplice (see Canisio s/o Walwa v. R. (1956) 23 E. A. C. A. p. 453 at 458). In this case, there was no such warning by the learned magistrate. In the circumstances, the trial court had evidence of accomplices and as it can be seen there was no material corroboration to their evidence and therefore it was unsafe to act on such evidence as he did." (3) Conviction quashed and sentence set aside.

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438. Atimani & Anor. v. R. Crim. App. 419/13-D-70; 9/9/71; Biron J.

The two appellants were convicted of robbery with violence and assault. Their appeals were summarily rejected but the sentences were enhanced. The question was whether the appellate court has power to enhance a sentence on a summary rejection of an appeal according to sections 317 and 318 of the Criminal Procedure Code.

Held: (1) "Giving the words of the sections their plain and ordinary meaning, which is the cardinal canon of construction, it is abundantly clear that when an appeal comes before a judge for admission to hearing or otherwise, there are one of two courses open to him. He can either admit the appeal to hearing, when it will be duly dealt with and determined in open court, or he can reject it summarily, that is, literally throwing it out in limine, in other words, not admitting it to consideration. In such cases, as the appeal has not been admitted to consideration, there is nothing that the judge can do either in respect of the conviction or the sentence, but his powers are limited to rejecting it summarily." (2) Order enhancing sentences vacated sentences imposed by convicting court undisturbed.

439. Salatiel v. R. Crim. App. 336-M-71; 12/11/71; El-Kindy, J.

The appellant, Salatiel s/o Stephen, was charged with and convicted of failing to take precautions necessary to prevent arms and ammunition from falling into the hands of unauthorized persons contrary to section 29(1) and 31(1) (2) of the Arms and ammunition Ordinance, Cap. 223 and of giving false information to a person employed in public service contrary to section 122(b) of the Penal Code, Cap. 16. On the former count, he was sentenced to imprisonment for 9 months, and on the latter, to imprisonment for three months. Both terms of imprisonment were ordered to run concurrently. The court also ordered that the gun be forfeited to the Government. He appealed against convictions, sentences and order. The facts out of which the case arose are as follows: - The appellant, who owned a rifle, went hunting and met the complainant's son who was also hunting. He later went to the house of the complainant. The evidence then

conflicted: the appellant claimed that he went there for a rest, while the complainant stated that he found the appellant reducing his wife. However, the complainant seized the gun of the appellant which was some six paces away from the latter and took it to the police station later during the day; the appellant went to the station and reported that his gun was stolen by the complainant.

Held: (1) "In respect of the second count, the complainant took the gun without the consent of the appellant, and therefore, in the absence of any explanation from the complainant as to why he was taking his gun, the appellant was entitled to believe that the complainant was stealing his gun. If the complainant had told him why he was taking his gun, he would certainly have been aware that it was being taken as an exhibit for the alleged

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charge of adultery and therefore, his belief would be unreasonable but his was not done. Therefore, it cannot reasonably be said that when the appellant reported, as alleged by the police officer (P. W. 2), he knew that what he was reporting was false. It has often been held by this court that it is an essential ingredient of the offence that the charged person should be proved to have known that what he was reporting was false (see R. v. Muller 1970 H. C. D. 276)." (2) "The facts on the first count are in a borderline. It was alleged that the gun was only 6 paces from the appellant when the complainant picked it up and went away with it. The learned State Attorney argued that as it is not stated how near the gun should have been placed, it is difficult to say that in keeping it as he did the appellant failed to take the necessary precautions to prevent it from falling into the hands of the complainant, who was an unauthorised person. It was clear that the appellant was in the house of the complainant for a short time, whether for rest as he claimed or for adultery as alleged by the

complainant. It appears that the appellant was on bed. If so, it would be manifestly unreasonable to expect him to keep this gun in bed with him. The gun was in a house, and he was present, half-asleep as he alleged. The arms and Ammunition (Safe Custody) Regulations, G, N. 75 of 1954, do not appear to cover the situation like this one. Although the appellant was awake and seeing when the complainant took away his gun, it was not the act he expected from the complainant so as to keep him on his guard. In the circumstances, the facts as elicited did not prove beyond reasonable doubt that what he did amounted to a failure to take precautions as required by section 29(1) of the Arms and ammunition Ordinance, Cap. 223." (3) Conviction quashed.

440. Mansukh N. M. Norjaria v. R. E. A. C. A. Crim. App. 64/71; 15/10/71; Mustafa J. A.

The appellant was convicted of handling stolen goods c/s 322(2) of the Kenya Penal Code. The Nakuru Industries Ltd. hired a lorry belonging to Bahati Transporters to transport 76 bales of blankets and 27 boxes of suiting material to customers in Kisumum and Kisii. The driver one Mugo drove it out of the factor gets and went to one Shah and offered to sell him the goods. Shah brought the appellant who agreed to purchase half the goods for Shs. 24,000/-. Eventually the appellants paid Shs. 18,400/= and on his instructions a quantity of the goods was off-loaded at three different places. The advocate for the appellant argued that the prosecution had to prove that he appellant did not receive the goods in the course of stealing and that if the appellant received the goods during acts which were in the course of stealing, he could not be convicted of handling, but only of theft.

Held: (1) "We do not accept the view that the phrase "otherwise than in the course of stealing" imports a new element or ingredient in the offence of handling by way of receiving. It has long been the law that a thief of stolen goods cannot be convicted as receiver the driver Mugo was clearly a bailee of the goods. When Mugo offered to sell the

goods to the appellant, Mugo had determined in his own mind to sell the goods for his own benefit contrary to the terms of the bailment Mugo had then already converted the goods to his

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own use and since he had acted dishonestly he had committed the offence of stealing. [*Rogers v. Arnott* (1960) 2 Q. B. 244 cited with approval]. In this case we are satisfied that the theft was at any rate complete when the driver Mugo offered to sell some of the goods in the lorry to Shah and the appellant.: (2) "Since we have found that the stealing was complete when Mugo made the offer, all subsequent activities in relation to the goods by the appellant could only relate to the offence of handling by receiving and not to any activities related to stealing or 'in the course of stealing'." (3) "Mr. Kapila has submitted that there were at least three distinct and separate offences of receiving and a single count of receiving was bad in law After the offer was made by Mugo and accepted by the appellant the evidence adduced showed that the appellant directed Mugo's lorry to his own store to off load the goods. It appeared that there was insufficient space for the lorry to get into the compound. As a result the goods were off-loaded at three different places in three different lots. The High Court on first appeal had held that 'all these acts of receiving formed part of the same transaction and were properly charged in one count.' We agree with that conclusion." (4) "[W]e thinks that the trial magistrate had directed himself correctly on the onus of proof. It is true that the trial magistrate had used the words "Where a prima facie case has been made out, an accused person remains silent at his peril". However there is not the slightest indication that the trial magistrate inferred from such silence the appellant's guilt." (5) "An accomplice has to a larger or lesser degree participated in the crime, and his evidence is suspect. If his evidence is disbelieved, that is the end of

the matter. Indeed if the evidence of an independent witness is disbelieved, that would be the end of the matter too. However, if the evidence of an accomplice is believed then further stages set in. a court would then normally look for corroboration of the accomplice evidence. Such corroboration would have to be found in other independent evidence on a material particular linking the accused with the offence. The court would then decide whether the accomplice evidence supported by corroboration is sufficient to sustain a conviction. That of course would depend on the background and circumstances in each case. Or there may be no corroborative evidence available. In such an event the court will have to decide whether to reject the accomplice evidence or whether it is one of those exceptional cases where the accomplice evidence is so cogent and reliable that the court would after warning itself, be prepared to base a conviction on it.”

441. Rashidi Sijaremba v. R. Crim. App. 450-D-71; 22/10/71; Onyiuke J.

The accused was charged with _____ violence cases. 286 and 265 of the Penal Code. The complainant had retired with his girl friend to a room in a hotel where she lived and worked. At about 1. 00 a. m. there was a knock on the door. The girl told the person to go away because she was with her boyfriend. The person was the appellant. He told her

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to open the door or he would break it down. She opened the door. The appellant had a panga in his hand. He asked the complainant what he was doing there and the latter replied that he was with his girl friend. The appellant, brandishing the panga, told the complainant to take off all his clothes or he would stab him with the panga. The complainant stripped and handed over the clothes, which were worth over Shs. 200/-, to the

appellant. The appellant then told a worker in the hotel to go with him to the police station and carry the clothes. There he told the police that he had taken the complainant's clothes because he had found him with his girl friend, and also that if anybody came to report the theft of his clothes, they should not believe it because it was he who had taken. He later turned up at the police station and saw the appellant there. The appellant told him to call at his house the next day if he wanted his clothes. The appellant took the clothes away, but when the complainant called next morning, the appellant was not there, and he never returned the complainant's property. Some of the clothes were found later with other persons who were prosecuted. The appellant was charged for robbery. The district magistrate acquitted him for robbery. The district magistrate acquitted him for robbery on the ground that he had a relationship with the girl in issue. He, however, convicted him for stealing.

Held: (1) "The only evidence of any special relationship was the appellant's alleged statement to the police that Amina was his girlfriend. This relationship cannot prevent what would otherwise have been a robbery. It cannot be a defence to the charge. It can neither justify the use of violence or the threat of violence to P. W. 1 nor does it entitle the appellant to seize P. W. 1's properties. The appellant's friendship with Amina cannot be said to give him any colour of right to do what he did." (2) "The appellant told P. W. 1 to surrender his clothes or be stabbed with a panga. It was therefore beyond dispute that the appellant threatened P. W. 1. This would amount to robbery provided the other elements of the offence are established." (3) "The learned State Attorney indicated that the learned Magistrate's conclusions could be supported on other grounds. He submitted that there was no robbery in this case because when the appellant threatened violence to P. W. 1 and obtained the items as a result of that threat he did not intend to steal and that when he later changed his mind and fraudulently converted them he was not then using or threatening any violence. I agree that as a legal proposition the violence or

threat of it must be in terms of section 285 of the Penal Code immediately before or immediately after the time of stealing and must be designed to obtain the thing stolen or to prevent or overcome any resistance to its being stolen or retained but the question is whether the facts of this case support the learned State Attorney's contention. The appellant's motive must not be confused with his intentions. Apparently he wanted to punish P. W. 1 for being with his girlfriend. He intended, however,

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to deprive P. W. 1 of his clothes and other items. Section 258(2) deals with the requisite intent which will make the taking or conversion of a thing stealing. It provides in so far as it is relevant to this case as follows:-
Section 258(2): A person who takes or converts anything capable of being stolen is deemed to do so fraudulently if he does so with any of the following intents, that is to say – (a) An intent permanently to deprive the general or special owner of the thing of it; (b) an intent to use the thing as a pledge or security; (c) An intent to part with it on a condition as to its return which the person taking or converting it may be unable to perform. The taking of these items, their subsequent disappearance and the appellant's denials at the trial showed that he intended to deprive P. W. 1 permanently of these items.” (4) “It is contended, however, the appellant's conduct in going to the police and in publicly admitting that he removed these items and in inviting P. W. 1 to call at his house the next morning to collect them showed that he did not intend to deprive P. W. 1 permanently of those things. It appears to me that the appellant was justifying his conduct towards P. W. 1 rather than evincing an intention not to deprive him permanently of these things. He was asserting a claim of right to those things on the ground that P. W. 1 was meddling with his girlfriend, a claim which is so unreasonable that it cannot seriously be entertained. His failure to keep his appointment with P. W. 1 the very next morning and his

subsequent denial that he did not even know him showed he never really meant to return those things to him.” (5) “I am driven to the conclusion that on the facts of this case the appellant stole from P. W. 1 and immediately before the time of stealing threatened serious personal violence to P. W. 1 to facilitate the stealing and that he obtained those things as a result of this threat.” (6) Conviction for robbery substituted.

442. R. v. Temaeli Nalompa _ Crim. Rev. 78-D-71; 21/9/71; Mwakasendo Ag. J.

The accused was convicted on two counts of (a) practicing medicine without a licence c/s 36 (1) (b) of Cap. 409 and (b) being in unlawful possession of Government stores c/s 312A (1) of the Penal Code. he was sentenced to a fine of 200/- Shs. Or 4 months imprisonment in default.

Held: (1) “The Sub-section under which the accused was charged deals with the forfeiture of drugs and to with the practice of medicine without a licence. However it is clear that this irregularity occasioned no miscarriage of justice. The particulars were so explicit as to leave the accused in no doubt as to the kind of offence he was required to answer.” (2) “It is improper for a magistrate to impose one omnibus sentence where an accused person is convicted of two or more offences. There must be a separate seek for each distinct offence proved. (3) “The complainants had complained to the Police that the accused had given them penicillin injections and The medical certificates show clearly that each suffered what can be described as actual bodily harm the contravention of

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Section 36 is punishable by a fine not exceeding Shs. 10,000/- or a term of 5 years imprisonment or both such fine and imprisonment.” (4) “The magistrate in his judgment has most appropriately observed that these

offences are rife in the district and therefore in his view deterrent sentences were called for.” (5) “On the first count I sentence accused to 12 months imprisonment, on the second count I sentenced him to 12 months imprisonment, both sentences to run concurrently.”

443. R. v. Lugalo & Others Crim. Sass 79-Dododm-71; 24/8/71; Mnzavas J.

The three accused were jointly charged with murder c/s 196 of the Penal Code. The deceased, his wife, the three accused and others had been drinking in a pombe bar from 2 p. m. on the material date until sunset. The deceased his wife and a friend left the pombe shop together and were soon followed by the three accused. There was evidence of a quarrel and an exchange of abuse between the deceased took one path the deceased, his friend and the first accused another and the other two accused a third. There was also some evidence of a fight between the deceased and the second accused egged on by the other two accused. The deceased did not arrive home that night and he next morning his wife left home to enquire about his whereabouts and found him dead at the side of a path. The cause of death was a wound in his neck 1” deep by ½” wide. During police investigations blood-stained clothes of all three accused were recovered. They explained that they had slaughtered a goat a few days before. The Government Chemist’s report was that the blood-stains on the clothing of the first two accused were human blood of the same group as the deceased (AB). The blood groups of these accuseds were Group B rhesus positive and Group O rhesus positive respectively. The blood on the clothing of the third accused was not human. The third accused was acquitted and the other two were convicted although the assessors had opined that they were all not guilty.

Held: (1) “For an accused to be found guilty on purely circumstantial evidence the exculpatory facts must be such as to be incompatible with the innocence of the accused and incapable of any other reasonable explanation than that of the accused’s guilt.” (2) “This

evidence [of the blood-stains on the two accuseds' clothing being of the same blood group as the deceased] added to the evidence that the two accuseds were involved in a fight with the deceased only hours before he was found dead and the bogus explanation as to how their clothes got blood stains clearly show that the two accused had good reason to tell lies. The totality of the inculpatory facts are in my view incapable of any other reasonable explanation than that [the first two accuseds] re implicated with the death of the deceased". (3) "The only evidence [of malice aforethought] is to the effect that the two accused and the deceased were under the influence of alcohol when they started quarrelling The doctor was not available for cross-examination and it is therefore impossible to say with any amount of certainty the amount of force used in inflicting

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the fatal wound. From the above it is clear that there is a lot of doubt regarding malice aforethought The Republic has failed to prove malice aforethought [R. v. Joseph Byrashengo & anor. (1946) 13 E. A. C. A. 187 followed]. (4) The accuseds were found not guilty of murder but guilty of manslaughter

444. Modestus s/o Edward v. R. Crim. App. 370-D-71; 22/9/71; Biron J.

The appellant was convicted of arson c/s 319 of the Penal Code and was committed to the High Court for sentence. The appellant aged 18 years was engaged to the complainant's daughter and had been paying bride-price by instalments. He had already paid Shs. 200/- over a period of here years. There remained a balance of Shs. 60/= and five head of cattle and the complainant refused to allow his daughter to live with the appellant until all the payments had been completed.

Held: (1) "By rule 29 of the Law of Persons, G. N. 279/1963: "The marriage takes place after the first installment. It is not customary to fix the amount and dates of the installments payable after the marriage". (2) "The appellant, if the complainant persisted in his attitude would have to wait at least another five years before the marriage. Even the Patriarch Jacob, who had to put in seven years labour for Laban in order to obtain his daughter Rachel in marriage, was allowed to take and marry her at the commencement of his seven-year stint." (3) "The accused's youth has already been noted. He appeared in Court as a first offender I impose a sentence of imprisonment for five years but in view of the peculiar and strong mitigating circumstances, as empowered by section 294 of the C. P. C. I order that the sentence be suspended for a period of three years conditional on the appellant committing no crime involving violence."

445. R. v. Murinda & Ors. Crim. Rev. 27-M-71; 23/9/71; El-Kindy J.

The first respondent was charged with representing himself as having power of witchcraft and the other respondents were charged with employing or soliciting the use of witchcraft. A considerable length of time elapsed since the date when the accuseds were formally charged. The various resident magistrates before whom it was mentioned became impatient as the prosecution could not proceed to prosecute. Eventually the court gave a final date for hearing but the prosecutions were not ready. As a result the magistrate dismissed the charge and acquitted the respondents for non-prosecution. He purported to act under section 198 of the Criminal Procedure Code, Cap. 20. About a year after the proceedings were instituted again. The order of the court is sought to be impeached.

Held: "There is no doubt that the order was illegal as section 198 of the Criminal Procedure Code, Cap. 20 refer to a situation where the complainant failed to appear. In this case, the complainant was the Republic as represented by the prosecutor (Inspector Kakolaki), and

therefore the complainant was not absent. A case cannot be dismissed for want of prosecution under section 198 of the Criminal Procedure Code,

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Cap. 20 (see also the case of the Director of Public Prosecutions v. Omari s/o Makuka, Law Report Supplement No. 1 to the Government Gazette of 2nd January, 1970, p. 23). As a result, the dismissal order is accordingly set aside and the case referred back to the original court as prayed.”

446. Bujukano v. R. Crim. App. 114-M-71; 15/10/71; 15/10/71; Makame J.

The appellant was revenue collector. In the course of his duty he collected Shs. 2,842/= but remitted only Shs. 2,496/=. When asked to plead he said “It is true I lost this money”, during the recital of the facts there was no allegation by the prosecution that the appellant had stolen the missing money. He was convicted of stealing by public agent. The main issues on appeal were whether or not the appellant had pleaded guilty to the charge and whether he could be convicted of occasioning loss to the Government c/s 284A of the Penal Code.

Held: (1) “In my view The appellant did not admit every constituent of the charge and the record does not show that he pleaded guilty to every element of it unequivocally. (R. vs. Yonsani Egaul & 3 Others 1942, 9 E. A. C. A. 65).” (2) “It is not possible to substitute for the purported conviction one of occasioning loss to the Government contrary to section 284A of the Penal Code. This is for two reasons. One is that occasioning loss to the Government is not, per se, a criminal offence. To be a criminal offence it is necessary that the loss should be a result of “any willful act or omission, or by his negligence or misconduct, or by reason of his failure to take reasonable care or to discharge his duty in a reasonable manner”, proof of which is wanting in the present case. The second reason is that the Director of Public Prosecutions’ consent was not

obtained as required under subsection 4 of section 284A.” (3) Appeal allowed.

447. Nyamwaya v. Kisumu County Council Crim. App. 160-N-68; 14/9/71; Spry V-P; Law and Lutta JJ. A.

The appellant was charged with two counts of trespass on private land c/s 3(1) of the Trespass Act (Cap. 294). On a first appeal, the High Court quashed the conviction on the first count. The facts as established were to the effect that the County Council of Kisumu was the registered owner of a piece of land known as Ahero Market. The Council leased Plot No. 72 at Ahero market to the appellant under a lease dated 14/6/67. The Council discovered later that that plot had been leased to another lessee in 1952. on 13/6/67, Mr. Sanga, a clerk with the Council visited Ahero market and saw some sand had been placed on plot No. 87. Mr. Sanga informed the appellant that he was building on a wrong plot and should stop immediately until the position is clarified by the Commissioner of Lands. A couple of letters was written by Mr. Sanga to the appellant to this effect but the appellant did not stop construction. In his defence the appellant stated that the Council's Health inspector pointed out the land in question as plot No. 72

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and it was the duty of the Health Inspector to point out plots to lessees. It was also established in evidence that Mr. Sanga was not a surveyor and there was also the question of the identity of the Plot – whether it was plot No. 72 or No. 87.

Held: (1) “There is in this case an unsatisfactory feature relating to the identity of the plot the appellant is alleged to have entered onto and carried out building operations. Mr. Sanga conceded that it was the duty of Mr. Ombuso, the Health Inspector, to point out plots to the lessees. Mr.

Ombuso made enquiries from Mr. Joel Ngolo, the complainant's senior market clerk but the later did not know where Plot No. 72 was. It appears that these plots had not been demarcated on the ground. Mr. Ombuso maintained emphatically at the trial that the plot he pegged out was Plot No. 72 and he said that Messrs Ongondo and Sons had built on Plot No. 73. It appears from the record that the Commissioner of Lands did not reply to Mr. Sanga's letter in which he had sought clarification of the position of the two plots. Mr. Sanga is apparently not a surveyor and he did not say what reason he had to believe that the building erected by the appellant was on Plot No. 87. There is nothing on the record to show that it was proved beyond a reasonable doubt that the building was not on the land to which the appellant's lease related. Thus the identity of these two plots was not established with that degree of certainty required in a criminal case. Section 3(2) of the Trespass Act places on an accused person the burden of proving that he had reasonable excuse or the consent of the occupier for being on private land but before that question rises it is for the prosecution to prove as fact that the accused was on private land. We think that on the evidence in this case there was a real doubt as to whether the plot pegged out for the appellant was part of Plot No. 87." (2) Appeal allowed.

448. R. v. Chacha Crim. Rev. 43-M-71; 13/10/71; Jonathan Ag. J.

The accused with two others were charged with stealing c/s 265 of the Penal Code. One of the original accuseds was acquitted on appeal. The conviction of the accused was based on the testimony of the co-accused who was acquitted on appeal.

Held: (1) "There was every necessity for the trial court to warn itself of the danger of convicting Marwa on his co-accused's account. The court should have appreciated that the prosecution relied virtually solely on the word of Chacha whose account as to the fate of the money was, at best, doubtful. The court made a specific finding that Marwa did not run as

Chach had alleged. That should have been a further reason for not acting on Chacha's allegation unless it was substantially corroborated. The fact that Marwa said that Chacha had called him to Shinyanga, was not in my view, such corroboration." (2) Conviction quashed.

449. Chelula v. R. Crim. App. 264-A-71; Kwikima Ag. J.

The appellant was convicted of store-breaking and stealing. He was seen leaving the store through an aperture through which

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he entered. The issue on appeal was whether or not entry through a permanent aperture constituted "breaking".

Held: (1) "The point about entry through the chimney which seems to have misled the learned trial magistrate is well-covered by this authority. [Petro Samson v. R. [1970] H. C. D. 35]. I would only point out that our Penal Code (Cap. 16) is fair in defining "breaking" the way it does because members of the public have a duty to themselves to build secure houses without leaving gaping apertures through which criminals may gain entry to render harm to their property or even life and limb. I would for this reason let the laws remain as it is, without seeking to imitate the Indian Penal Code quoted by Mr. Justice Seaton. In my view, I am enforced by the opinion of the late Mr. Justice Humlyn in Ramadhani Bakari v. R. H. C. D. 90, 1970:- "The authorities appear to regard an aperture need-lessly left open as it were an implicit invitation to enter or at least as a situation not proclaiming a state of inviolability of the premises concernedAs was said in Rex v. Springgs and Nancock 174 E. R.122, if a man chooses to leave an opening in the wall or roof of his house instead of a fastened window, he must take the consequences. The entry through such an opening is not a breaking." (2) Appeal allowed and

conviction for store –breaking quashed, conviction for simple theft substituted.

450. Masiaga v. R. Crim. App. Crim. App. 883-M-70; Kisanga Ag. J.

The appellant was convicted of robbery c/s 286 of the Penal Code instead of section 285 which creates the offence. There was ample evidence that the appellant used violence in stealing a khanga worth about Shs.12/+ from the complainant. Appellant was first offender and value of the property less than Shs. 100/- and the question was whether this constituted special circumstances under Section 5(2) (c) of the Minimum Sentences Act.

Held: (1) “In the case of R. v. Shabani Mwalyambwile [1969] H. C. D. 256 this Court took the views that there could hardly be special circumstances where the offence charged is robbery with violence. There is nothing to suggest why that principle should not apply to the present case where the circumstances could be considered to be aggravated in that the robbery with violence was committed on a lady, a weaker sex. I therefore of the view that although the value of the property stolen was not substantial, this may not, considering the character of the offence, constitute special circumstances for the purpose of exercising of clemency.” (2) “The charge was brought under section 286. This was improper because that section merely provided punishment for robbery. The charge ought to have been laid under section 285 which creates the offence of robbery. I am satisfied, however, that this defect was not fatal because the particulars clearly set out the offence of robbery and the appellant can have been under no misapprehension about it. In the circumstances, the appellant was not prejudiced and consequently there was no failure of justice.”

451. R. v. Matei Crim. Sass. Cas. 83-Dodoma-71; Mnzavas J.;

One night, the accused's cattle were stolen. He collected some friends and they went in pursuit, following the hoof marks. The search was resumed next day. At midday, they stopped and drank pombe, and then continued the search. As they approached a bush, they heard voices. They assumed that the people behind the bush were the cattle thieves, and decided to creep up on them from three different directions. There was a conflict of evidence as to whether the accused then speared the deceased without more ado, or whether he did so after the deceased had advanced on him brandishing a billhook. The accused was charged with murder c/s 196 of the Penal Code. The defences raised were accident and drunkenness.

Held: (1) "As to the defence that the accused attacked the deceased because he had an honest and reasonable belief that he was the cattle – thief, I tend to agree with the learned state attorney's submission that for an honest and reasonable, but mistaken, belief to be a defence in a criminal charge under section 11 of the Penal Code the mistaken belief must be a mistake of fact and not a mistake of law. Section 11 of our penal code appears to apply the common law rules as to mistake in law summarized in Russel on Crime (11th Edition) at page 79 – Here the learned author says: - "Mistake can be admitted as a defence provided – (i) that the state of things believed would, if true, have justified the act done; (ii) that the mistake must be reasonable; (iii) that the mistake relates to fact and not law". In this case it would appear if the whole of the prosecution case is believed, that the accused believed that he was legally entitled to attack a thief when he inflicted the fatal blow on the deceased whom he believed to be the person who stole his cattle. This was clearly a mistake of law and therefore covered by the provisions of section 11 of the Penal Code which only embraces mistakes of fact."(2) "If the court is to

accept the evidence that the accused attacked and killed the deceased for no reason at all then the court will have to find the accused guilty of no lesser charge than that of Murder. If on the other hand the court is to believe that evidence of Matei when cross-examined, that the accused struck the fatal wound as he was about to be attacked by the deceased with such a lethal weapon as a bill-hook then the killing cannot be murder. If the deceased, in a bellicose manner, advanced towards the accused with his bill-hook in a striking position the accused was entitled in law to retaliate to ward off the imminent attack.” (3) “I cannot, without doing injustice to the accused find him guilty of the serious offence of Murder – Denning, L. J. (as he then was) had this to say in *Bater vs. Bater* (1950) 2 All E. R. 458 at page 459 – “In criminal cases the charge must be proved beyond reasonable doubt, but there may be degrees of proof within that standard. Many great judges have said that, in proportion as the crime is enormous, so ought the proof to be clear.” This exposition of the law as to the standard of proof in criminal cases was approved in *Hornal vs. Neuberger Products* (1956) 3 All E. R. 970 and in *Henry H. Ilanga vs. M. Manyoka* (1961) E.A. 705 criminal offences in our law. It is

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Therefore necessary that for the court to find him guilty of the offence of murder the evidence must be much more clear than evidence required in support of say, a charge of causing grievous bodily harm or for that matter a charge of manslaughter.” Other case referred to were *Yusito Onguti s/o Oyoo v. R.* [1957] E. A. 134, *Julius Masakhu* (1956) E. A. C. A. 496. (4) Accused found not guilty of murder, but guilty of manslaughter c/s 195 of Penal Code.

452. *Bulyi v. R.* Crim. App. 319-A-71; sl/10/71; Kwikima Ag. J.

Appellant was convicted of robbery. From the transcript of the lower court, it was not recorded whether or not the appellant was told of his right to call witnesses as required by Section 206(1) of the Criminal Procedure Code.

Held: (1) "The right for one of defend oneself goes to the root of justice and faire trial. The right to be heard means and included the right to be told that one may be heard if one so desires, that one may confront and controvert those alleging against him and most important, that one would be informed that one may summon evidence and witnesses one one's behalf. That is the reason d'être for Section 206(1) of the Criminal Procedure Code and other similar provisions strewn across the spectrum of the law. And since it is impossible to tell from the recorded whether the appellant was given information and opportunity to call witnesses in pursuance of Section 206 (1) of the Criminal Procedure Code it cannot be said either that he received a trial which would be seen to be affair, or that his trial proceeded according to the letter and spirit of the law. The omission to record whether such information and opportunity was given to the appellant cannot be cured under section 346 of the Criminal Procedure Code since it goes to the root question whether the omission has occasioned failure of justice." [Citing Musa Kiumbe v. R. (1967) H. C. D. 202. (2) "It is hereby ordered that the trial magistrate and others suggested in the course of this ruling be made to certify by way of affidavit that the trial was conducted made to certify by way of affidavit that the trial was conducted made to certify by way of affidavit that the trial was conducted in accordance with Section 206(1) of the Criminal Procedure Code."

453. R. v. Mkhandi s/o Kisoli Crim. Sass. 151-Singida 70; 30/9/71; Mnzavas J. The accused was charged with the murder of his father. There was evidence that deceased and accused had frequently quarreled over land and cattle and a few days before accused had threatened to kill the deceased. The only other evidence implicating the accused was a

statement by the deceased just before his death naming the accused as his assailant.

Held: (1) "From the evidence there can be no doubt that there was darkness in the room when the deceased was attacked. There was darkness in the room when the deceased was attacked. In R. v. Ramadhani Hirandu (1934) E. A. C. A. p. 39, where similar conditions were present it was held that 'particular caution must be exercised when an attack takes place in darkness when identification of the assailant is usually more difficult than in daylight'. (2) "In R. v. Rutema Nzungu (1967) H. C. D. case No. 445 a case which is on all fours with this one Mustaf J. (as he then was) had this to say – "It is a rule of practice that

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There must be corroboration of a dying declaration It seems unlikely that either the deceased or the other witnesses had adequate opportunity to recognize the accused and there is no adequate corroboration." (3) The accused was acquitted.

454. Ali s/o Omari v. R. Crim. App. 38-Dodoma-71; 2/10/71; Mnzavas J.

The appellant was convicted on his own plea of "guilty" of (1) practicing medicine without being a licensed medical practitioner and (2) Unlawful possession of Government stores c/s 36(1) (b) of Cap. 409 and section 312 (2) of the Penal Code, respectively. He was fined 400/= or 6 months imprisonment in default on the first count, and 600/= or 6 months imprisonment on the second count. He appealed against sentences.

Held: (1) "Once [the learned Magistrate] had made up his mind that sentences of fines were more appropriate than imprisonment in this case, then it was incumbent on his part to investigate the financial standing of the accused before imposing the fine." (Moshua s/o Mduma v. R. 1968 H. C. D. 227 cited). (2) "In this case the record is silent as to what were the

financial means of the appellant – but the very fact that he failed to raise the fines totaling 1,000/= indicates that the fines imposed were totally against his means to meet them.” (3) “The sentence of 400/= fine or 6 months imprisonment on count one offends against the provisions of section 29(IV) of the Penal Code, Cap. 16. Under that section a fine not exceeding 400/= is at the maximum, punishable with 4 months imprisonment only.” (4) The fines were reduced to 100/= or 1 month on the first count and 200/= or 2 months on the second count.

455. Morjaria v. R. Crim. App. 64-N-71; 15/10/71; Duffus, P. Lutta & Mustafa JJ. A.

The appellant was convicted of handling stolen goods c/s 322(2) of the Kenya Penal Code. it was established that the Nakuru industries Ltd. hired a lorry to transport 76 bales of blankets and 27 boxes of suiting materials. The lorry was duly loaded and the driver, one Mugo drove it out of the factory gates to a laundry called “Fellows”. There the driver met Kiare to whom he suggested that he wanted to sell the goods in the lorry. Then both of them went to one Shah and offered him the goods for sale. Shah brought the appellant who agreed to buy part of the goods. The appellant then directed Mugo to drive the lorry to appellants’ store in Nakuru but since there was not enough space, the goods were off loaded at three different places as directed by the appellant. Throughout this time appellant was accompanied by Shah and his son, Dilip in his pick-up. Before the driver Mugo drove off with the balance of the goods. The appellant paid him Shs. 8,400/= in cash-part of the money obtained by Cashing a cheque with Shah. For the appellant it was contended that the phrase “otherwise than in the course of stealing” was an element in the offence of handling and as such it had to be proved that the appellant did not receive the goods in the course of stealing. Secondly it was argued that there were at least a single count of stealing was bad in law and lastly

it was argued that there was misdirection on accomplice's evidence and on the issue of corroboration.

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Held: (Mustafa J. A.): (1) "In respect of the offence of handling stolen goods contrary to section 322 of the Penal Code the person who receives such stolen goods must do so after the said goods have been stolen (in terms of subsection 3(a) of section 322) by another party and the person himself must not be connected with the stealing or assists in stealing such goods he cannot be guilty of handling; he can only be guilty of theft. The role a person plays in the way he obtains the goods is of paramount importance. Has he obtained the goods in the course of stealing them, or has he obtained them from somebody or some place, after the goods have already been stolen? For a person to be convicted of handling by way of receiving the prosecution must establish that he has not obtained possession of or received the goods as a result of his role and conduct as a thief, but as a dishonest receiver or possessor of such stolen goods. That, in our view, is what the phrase "otherwise than in the course of stealing" essentially means. Applying that test to the facts as found by the trial magistrate in this case, can it be said that the appellant could have received the goods "in the course of stealing", that is, did the appellant at any stage steal or assist in stealing such goods? We do not think so. The driver Mugo was entrusted with the goods to be transported to Ksumu and was clearly a bailee of the goods. When Mugo offered to sell the goods to the appellant, Mugo had determined in his own mind to sell the goods for his own benefit contrary to the terms of the bailment. Mugo was then standing in the owner's shoes in relation to the goods and exercising an owner's right. Mugo had then already converted the goods to his own use and since he had acted dishonestly he had committed the offence of stealing, see section 268(1) of the Penal Code. In this case Mugo sold the

goods, but it would not have mattered even if no sale had taken place. The offence of stealing was complete.” (2) “Mr. Kapila has submitted that there were at least three separate and distinct offences of receiving and a single count of receiving was bad in law. We see no merit in this submission. After the offer was made by Mugo and accepted by the appellant the evidence adduced showed that the appellant directed Mugo’s lorry to his own store to off load the goods. It appeared that there was insufficient space for the lorry to get into the compound. As a result the goods were off loaded at three different places in three different lots. The High Court on first appeal had held “all these acts of receiving formed part of the same transaction and were properly charged in one count”. We agree with that conclusion. The off loading of the goods at three different points in three different lot was merely the mechanics employed in taking the goods off the lorry for convenience of storing and to avoid detection and was part of the same transaction and formed one offence. There was no duplicity in the charge and no prejudice or embarrassment could have been caused to the appellant.” (3) “The trial magistrate clearly accepted the evidence of Dilip and believed fully what he said. Dilip’s complicity in the matter was mild and passive, and his testimony would not require the same amount of corroboration as that of a person who was actually concerned in the offence itself, see R. v. Wanjera (1944) 11 E. A. C. A. 93 at 95. Is there any corroboration of Dilip’s evidence? We are satisfied there is, there is the evidence of Ramniklal Shah from whom the appellant obtained Shs. 2,900/= at

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1. 30 in the morning, a most unusual hour for such a transaction. Dilip has said that the appellant had brought back Shs. 2, 900/= from Ramniklal Shah and that this sum formed part of the sum of Shs. 8,400/= that the appellant gave to the driver Mugo. There is again the letter Ex. P. 5 which

the appellant addressed to Dilip's father Shah and which Dilip received. That letter referred to an alleged loan of Shs. 17,000/= given by the appellant to Shah. The trial magistrate found that the signature of evidence do not offer strong corroboration, but are, in our view, sufficient to corroborate Dilip's testimony because Dilip's complicity was so slight." (4) Appeal dismissed.

456. Kiyunga v. R. (PC) Crim. App. 80-M-71; 5/10/71; Kisanga Ag. J.

The appellant was convicted of receiving stolen property c/s 311 (1) of the Penal Code and sentenced to 2 years imprisonment and 24 strokes of corporal punishment. The appellant sold a case of Coca Cola to the complainant. After buying the coca cola she kept the case of empties together with other cases in the store-room. The storeroom was broken into and a number of cases stolen. They were found in the possession of the appellant who said that he had bought them from one Jafari, a 13 year old boy. He admitted that he had long been buying bottles secretly from Jafari; that he was suspicious of Jafari's ability to get empty bottles and that he had bought the coca cola bottles from Jafari at 9 o'clock at night. The appellant was a first offender and the value of the goods found in his possession was 70/=.

Held: (1) "To my mind all the circumstances are consistent. With the view that the appellant knew, or at least had reason to believe, that the bottles in question were stolen from the complainant." (2) "In the case Shah Ali v. R. (1968) H. C. D. 474, it was held that where the offender neither knew nor had reason to believe that the goods were taken in the commission of a scheduled offence, this constituted special circumstances. There was no evidence to show that the appellant knew or had reason to believe that the bottles were taken in the commission of this offence This, coupled with the fact that the appellant was a first offender and the amount involved did not exceed 100/= would entitle the appellant to a reduction of the minimum sentence." (3) Sentence set aside

and at term of imprisonment such as will result in the immediate release of the appellant from prison, substituted.

457. R. v. Ombe Crim Rev. 142-D-74; 26/11/71; Biron J.

The accuses charged with entering a dwelling house with intent to steal and with stealing the from. It was established that the accused entered a house which was partly open and stole property worth Shs. 337/= the magistrate convicted him of burglary and stealing and sentenced him to ten strokes corporal punishment under the Minimum Sentences Act.

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Held: (1) “The magistrate wrongly convicted the accused of burglary and stealing to the evidence the door of the house had been left half open, there was therefore no breaking. And even if there had been a breaking, the offence would not be burglary, as the incident took place during daytime. However, as indicated the accused was not charged with burglary and the evidence does not establish burglary nor even housebreaking, but entering a dwelling house with intent to steal and with stealing, as he was originally charged, neither of which offence is a scheduled one. The sentence of ten strokes corporal punishment was therefore ultra vires.”

458. R. v. Richard Hiyari Crim. Sass. 222-Iringa-70; 10/12/70;

The accused was charged with the murder of his sister. In an extra-judicial statement he admitted killing the deceased with a pestle but stated he did not know what caused him to kill her. At his trial he gave evidence on oath and stated that on the material date he had been drinking pombe for about 5 hours before the incident which resulted in the death of this sister and that on his way home he had fallen on a number of occasions.

Held: (1) “intoxication takes various forms. It may lead to total incapacity amounting to temporary insanity [sec.14(1) (b) Penal Code] or it may create a condition which induces extraordinary violence and in this connection it may become relevant in determining whether a person in such a condition is capable of forming a specific intention which may be a necessary ingredient of an offence. I have Found that the accused was not insane, temporary or otherwise, at the time he did the act.” (2) “In considering whether the accused intended to kill or cause grievous bodily harm to his own sister one may be tempted to look for a motive (R. v. Mango’ondi s/o Masele Crim. Sessions Case 219 of 1969 cited). The accused was most friendly with his deceased sister. There was no previous quarrel between them. I find that by reasons of his heavy drinking [the accused] acted while still under the influence of this intoxication and did not form the intention to kill or cause grievous bodily harm to the deceased. I find him guilty of manslaughter and convict him accordingly.”

459. Evelin d/o Kitale v. R. Crim. App. 303-A-71; 8/10/71; Kwikima Ag. J.

The appellant was charged with subjecting tenants to annoyance c/s 32 of the Rent Restriction Act 1962 as amended by Act No. 57/66. the section reads: “Any landlord or his agent or servant who willfully subjects a tenant to any annoyance with the intention of compelling the tenant to vacate the premises or to pay, directly or indirectly, a higher rent for the premises shall be guilty of an offence” The appellant was convicted but in his judgment the magistrate found that one of the prosecution witnesses told “a downright lie” and that there was “a high possibility” that other prosecution witness had also

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Held: (1) “After the finding that the prosecution witnesses were laying, the logical conclusion to such a finding was the rejection of the

prosecution case.” (2) “The particulars [alleging that the landlord had caused the tenants “annoyance/inconvenience”] do not disclose the offence under section 32. The law concerns itself with annoying and not inconveniencing tenants. The learned trial magistrate did not make any finding on the question whether the act of cutting off electricity and water was annoying in law.” (3) “There is another question which the trial court did not decide: the question whether the appellant annoyed her tenants in order that they may vacate her premises or that they should pay her higher rents. There is no evidence to suggest that her intention was other than that which she herself gave: namely, in order that the complainants should pay her the rents which the Tribunal prescribed for them” (4) Appeal allowed and conviction quashed.

460. Shariff Abas Hassan v. R. Crim. App. 83-M-71; 28/9/71; Jonathan Ag. J.

The appellant was convicted on his own plea of guilty to being in possession of uncustomed goods c/s 147(d) (iii) and 155-A of the East African Customs Management Act 1952. The appellant’s plea is recorded as follows: “It is true I was found with the articles enumerated in the charge. I knew that no duties had been paid for them. They are my personal effects and I was not aware that such goods had to pay (sic) duties”.

Held: (1) [After quoting section 147(d) (iii) of the East African Customs Management Act 1952] “It would seem that the appellant could have been guilty only if he knew, or ought reasonably to have known that the goods were uncustomary. Having regard to the definition [of “uncustomed goods”] it seems also that there must be present the necessary knowledge that the goods were dutiable before a conviction can be properly recorded. The appellant was clear that the goods were his personal effects and he did not know that they were liable to duties”. (2) Conviction quashed and the case remitted to the district court for a free plea to be taken.

461. R. v. Nicholous Mkosa & Juma Elias Crim. Rev. 82-D-71; -/9/71; Saidi C. J.

The accused were jointly charged with burglary c/s 294 of the Penal Code on the first count. The first accused was also charged with rape and the second accused with attempted rape. They were found guilty on all counts and both accused were put on 6 months probation on the first count. The first accused was awarded 10 strokes of corporal punishment on the count of rape and the second accused was awarded a stroke of corporal punishment on the count of attempted rape.

Held: (1) "The order for probation is unsound for two reasons: in the first place a probation order cannot be for a period of less than 12 months (section 4(1) of Cap. 247);

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In the second place a probation order could not be made upon a conviction for burglary even if the accused properly satisfied the conditions in section 5 (2) of the Minimum Sentences Act." (2) "The sentences of strokes in counts 2 and 3 for rape and attempted rape are also not proper sentences in view of the seriousness of the offences themselves." (3) Sentence of 2 years imprisonment and 24 strokes substituted on the first count and 2 years imprisonment on the 2nd and 3rd counts.

462. Rashid Hamisi v. R. Crim. App. 306-D-71; 11/8/71; Mwakasendo Ag. J.

The Appellant was convicted of breaking into a building and committing a felony their c/s 296(1) of the Penal Code. He was sentenced to 2 years imprisonment and 24 strokes of corporal punishment. The appellant was recorded as saying in mitigation that he was a schoolboy of Mahiwa

College, Mtwara. The value of the property stolen was less than 100/- and the appellant was a first offender aged 17 years.

Held: (1) "In my judgment the fact that one is a school boy pursuing a full time course of instruction at recognized institution may be a special circumstance which relates to the person who committed [the offence] and I so hold the appellant's case falls equarely within the ambit of section 5(2) of the Minimum Sentences act 1963". (2) Sentence imposed by the trial court quashed, and a sentence of 10 strokes of corporal punishment substituted therefore.

463. Iddi Migila & Mussa Mnae v. R. Crim. App. 329 & 285-D-71; -/10/71; Mwakasendo Ag. J.

The appellants were jointly charged with stealing by a person employed in the public service c/ss 265 and 270 of the Penal Code. Both appellants were employed at Ngerengere Farm, Morogoro, and a wholly owned subsidiary of the National Agricultural Corporation. Admitted in evidence at the trial, was an alleged oral confession by the first appellant and a confession by the second appellant implicating the first appellant.

Held: (1) "I would find it hard to accept these accounts [of the prosecution witnesses] as amounting to a confession The witnesses are so hazy and their accounts of the matter so fuzzed up that it is impossible to know what exactly took place I think it would be dangerous to put any reliance on this alleged confession and for these reasons I would hold that his alleged confession should have been completely disregarded by the Magistrate." (2) "Any confession made by 2nd appellant implicating 1st appellant can only be taken into consideration against the maker of it, i. e. 2nd appellant. I am thus satisfied that the learned magistrate erred in finding that the 1st appellant was also implicated." (3) "There is no evidence to indicate that this known parastatal organization the (The National Agriculture Corporation) is a scheduled organization under the Minimum Sentences Act 1963 none of

the public institutions commonly known as parastatals is a scheduled organisation in terms of the Minimum Sentence act 1963.” [Editor’s note: the Evidence

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Act 1967 has since been amended by Act No. 26 of 1971 to permit confessions by accused persons to be taken into consideration against co-accused].

464. D. P. P. v. Joseph Ngonyani Crim. App. 199-D-71; 22/9/71; Onyiuke J.
- The respondent was charged with theft by public servant c/s 270 and 265 of the Penal Code. At the close of the case for the prosecution the Magistrate held that” and called upon the respondent to make his defence. The respondent elected to say nothing. He was acquitted. It was against his acquittal that the d. P. P. appealed. The case for the prosecution was that an Assistant Principal Secretary (P. W. 1) in the Ministry of Commerce and Industries had given Shs. 1, 600/- to the respondent to put in the safe kept in the office of the commissioner for commerce and Industries. The respondent was Personal Secretary to the Commissioner and was the only person who had the key to the safe. No other person was present when the money was handed over and no receipt was obtained. The next morning P. W. 1 called at the respondent’s office to recover the money but the respondent did not turn up for work and was absent from duty for the next three days. The respondent was found dead drunk by the Police in a house in Kisutu.

Held: (1) “The case for the prosecution depended to a large extent on the credibility of P. w. 1 based as it was on his oral testimony and his demeanour it is only where it is clear that the trial court acted on a wrong principle or misdirected itself in arriving at its conclusions that an appellate court can properly interfere. The reasons given by a trial court in

arriving at its conclusions may indicate such misdirection.” (2) [Dealing with the magistrate’s finding that it was incredible that P. W. 1 would hand such a large sum of money to an officer on a low salary without obtaining a receipt]: “The magistrate failed to direct his mind that the respondent was personal secretary to the Commissioner and had custody of the key to the safe and other confidential matters. The magistrate ignored the uncontradicted evidence of P. W. 1 that he had on at least 15 previous occasions handed over money to whoever was the personal secretary without obtaining a receipt.” (3) [Dealing with the Magistrate’s finding that P. W. 1’s evidence had not been corroborated] “P. W. 1’s evidence did not require corroboration either as a matter of law or as a matter of practice.” (4) “Some of the facts for which the learned magistrate required further proof were not disputed.” (5) “In view of the foregoing and as nothing turned on the demeanour of P. W. 1 in the witness box I am of the view that the learned magistrate misdirected himself in his reasons for rejecting the evidence of P. W. 1.” (6) Appeal allowed and an order for retrial made.

465. R. v. Daniel Paulo: Crim. Rev. 105-D-71; 9/10/71; Ag. J.

The accused was convicted on his own plea of guilty on two counts Ag. J.

The accused was convicted on his own plea of guilty on two counts of (a) Corrupt transaction with agent c/s3(2) of the Prevention of Corruption Act 1971 and (b) Conveying property suspected of being or unlawfully obtained c/s 312 of the Penal Code.

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On the first count he was sentenced to 10 strokes of corporal punishment and on the second count he was conditionally discharged for a period of 12 months under the provisions of section 38 (1) of the Penal Code. the

accused had told the trial magistrate that he had two children who were sick at home and that he had no relatives in Dar es Salaam.

Held: (1) "I fail to understand how the fact that the accused has children or that he has no relatives here could be considered a special circumstance which relate to the accused and the commission of the offence. In my opinion the accused has failed to advance any special circumstances so as to bring his case within the provisions of section 5 (2) of the Minimum Sentences Act I am precluded from imposing a sentence less than the minimum sentence under the Act." (2) "[I]t is surprising how the courts still continue invoking the provisions of section 38(1) of the Penal Code for the benefit of people charges with stealing the property of the Harbour Authority. So long as this is invariably what the accused persons expect to get from the Courts, they will be encouraged to continue stealing." (3) Sentence of 2 years imprisonment and 24 strokes were imposed on the first count and one year imprisonment on the second count, to run concurrently.

466. Sabino s/o Ngole v. R. Crim. App. 215-D-71; 11-8-71; Mwakasendo Ag. J. The appellant was convicted on two counts of (a) Selling intoxicating liquor at unauthorized hour's c/ss 12 and 91 of the Intoxicating Liquors Act 1968 and (b) allowing people to consume intoxicating liquor on the premises of off-licence store c/ss 11 and 91 of the same Act. The appellant's off-licence store was visited by the police after the authorized hours when they found three persons drinking beer. During the trial one of the prosecution witnesses gave evidence which was at variance with a statement she had given to the police and the prosecution obtained leave to treat her as a hostile witness. In his judgment the Magistrate considered he restatement to the police as part of the prosecution' a case worthy of belief. The defence was that the persons drinking on the premises were the owner's relatives.

Held: (1) "The statement of offence in both counts does not appear to disclose any offence known to law. However on examination of the charge sheet I am fully satisfied that the particulars of offence sent out in both counts were expressed in such explicitly terms as to leave the appellant in no doubt as to what offence he had to answer. I am thus of the view that no failure of justice was occasioned by the errors in the charge sheet." (2) "The law, as is apprehended, makes it an offence for any licensee to allow any person after authorized hours, whether a member of the family or not, to consume intoxicating liquor in the room in which the beer is sold. While sub-section (2) of section 14 permits members of the family and servants to remain on the premises of a retailer's on-licence store during normal authorized hours of business, there is no corresponding permission in respect of the members of the family

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and servants of an off-licence store owner." (3) "The second ground of appeal is that since the police officers did not witness a sale in the strict sense of the word no offence was committed..... Section 92 makes it unnecessary for the prosecution to prove that any money actually passed. It is sufficient that in the opinion of the Court the evidence adduced shows that a transaction in the nature of a sale actually took place. Further, under sub-section (2) of sec. 92 once the prosecution have established evidence that some person or persons other than the occupier or a servant employed on the premises, consumed or were intending to consume intoxicating liquor on the licensee's premises, that would be prima facie evident that the liquor was sold by the licensee to the person." (4) "It is a trite principle of law that where a witness gives evidence of facts quite contradictory to a statement he/she is alleged to have made to the police and an application made to treat the witness as hostile has been granted

by the Court, the evidence of such witness including the statement made to the police is completely valueless and not worthy to be taken into consideration in the case I am however satisfied that having regard to the rest of the evidence accepted by the Magistrate, the Magistrate would have reached the same conclusion even if he had not misdirected himself with regard to the effect of [the hostile witness's] evidence. Accordingly the misdirection has occasioned no miscarriage of justice" (5) Appeal dismissed.

467. Issac Simbakavu v. R. Crim. App. 170-D-71; 20/10/71; Onyiuke J.

The appellant was convicted on two counts of (a) evasion of person tax c/s 37 (1) (a), (b) and (c) of the Personal tax Act and (b) making a false statement with intent to evade Personal tax c/s 37(1) (b) of the Personal Tax Act. The appellant, who did not understand English and could hardly read Swahili asked someone to complete his personal tax form, which was in English,. He stated his net profit from his bar for the year 1969 to be 500/-. The chief witness for the prosecution admitted that the form was urgently required and he did not give the appellant sufficient time to complete the form. He also admitted that he did not know whether the appellant made a gross profit on beer purchased from Tanzania Breweries of Shs. 18, 859/10. The appellant was ordered to pay Shs. 1,800/- personal tax.

Held: (1) [Under the provisions of section 6(2) of the Personal Tax Act] the appellant was entitled to 14 days to fill in the formUnder pressure from P. w. 1 the appellant did what he could without supplying all the details required by the Act. The prosecution now seeks to prove the figure wrong by proving the appellant's gross income without taking into consideration the allowable deductions. This cannot amount to proof that the figure given by the appellant was false and it was for the prosecution to prove it under section 6(5) of the act a collector after a return of form T. F. N. 172 can require a person to attend before him and to

produce all books, documents or other papers whatsoever relating to his income, with

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a view to determining the extent of his liability for tax. Without giving the appellant the statutory period to which he was entitled and without taking any trouble to check on the correctness of the figures submitted by the appellant, the collector charged the appellant to court.” (2) “The question is whether the magistrate had power to make the order [for payment of Shs. 1,800/=]. Section 176 of the Criminal Procedure Code deals with award of compensation against an accused person. This section, in my view may be appropriate where the tax has been properly assessed and is in the nature of a liquidated amount due from an accused person There is no evidence that an assessment has been made under section 6 or that the assessment has been served on the appellant under section 7”. (3) Appeal allowed.

468. Godfrey Peter Jaillos v. R. Crim. App. 143-D-71; 1/10/71; Mwakasendo Ag. J.

The appellant was convicted on two separate indictments of stealing by public servant. The amounts involved were 10/= and 22/85 respectively. There were no special circumstances. He was sentence to 2 years imprisonment and 24 strokes of corporal punishment in each case and the Court ordered that the sentences should be consecutive.

Held: “The offences in the two cases were committed about the same time and they are of the same or similar character, and should have properly been tried under one indictment. The fact that the police chose to do otherwise should to be allowed to prejudice the appellant. In any case I am satisfied that a sentence of 4 year imprisonment, which it would be if the two terms are made to run consecutively, would be manifestly

excessive for the theft of Shs. 32/85. I would accordingly quash and set aside the order of corporal punishment made in respect of [the second] case and direct that the sentences in both cases are to run concurrently.”

469. Luka & Ors. Crim. App. 248-D-71; 13/10/71; Onyiuke J.

The three appellants were charged with two counts of burglary and stealing c/ss 294 and 265 of the Penal Code. The first appellant was convicted on both counts but the second and third appellants were convicted of receiving stolen property c/s 311 of the Penal Code. The facts as accepted by the trial magistrate were to the effect that the complainant’s house was burgled on the night of 6th October, 1968 and various articles including a Philips transistor radio were stolen. The radio was found two years later in the possession of the first appellant who when questioned by the police denied any knowledge of it. The first appellant however passed on the radio to the third appellant who in turn passed it to the second appellant. In convicting the first appellant, the trial magistrate applied the doctrine of recent possession.

Held: (1) “A period of two years is certainly too long in the circumstances to apply the doctrine of recent possession. A transistor radio is an article of common

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use and it will be quite wrong to apply the doctrine to such a case after so long a time. The radio could easily have passed many hands during that period. It would be unreasonable therefore to presume that the 1st appellant was the burglar from the solitary fact of possession two years after the event I have now to consider whether he could be convicted of receiving stolen property under section 311 of the Penal Code. Since the doctrine of recent possession does not apply to this case for reasons already given, no presumption of guilty knowledge can arise

from the fact of possession. There must be some proof or evidence, apart from the fact of possession, of guilty knowledge. I think the fact that the first appellant denied knowledge of the radio and actively sought to conceal it from the police showed guilty knowledge and will accordingly alter the finding to one of retaining stolen property knowing it to be stolen or feloniously obtained c/s 311 of the Penal Code. It has been held in Republic vs. Mohamed Naweka 1964 E. A. 353 that where the property received was stolen in the commission of burglary, the offence under section 311 of the Penal Code becomes a scheduled offence irrespective of whether the receiver knew it to have been obtained as a result of burglary or not.” (2) “I now turn to the 2nd and 3rd appellants. All that the 2nd appellant did was to keep the radio at the request of the 3rd appellant. There was no evidence that he received or retired the radio with any guilty knowledge his involvement in the transaction was minimal; according to him he received the radio from the 3rd appellant for safe custody to avoid it being damaged by his children. There was also no evidence that the 3rd appellant had guilty knowledge. His participation was no greater and not less innocent than that of P. W. 3 who carried the radio to him from the 1st appellant for safe custody.” (3) 1st appellant sentenced for substituted offence.

470. R. v. Abedi Crim. Cas 88-Newla-71; 1/11/71; Mwakasendo Ag. J.

The accused was charged with stealing by agent c/ss 265 and 273 (c) of the Penal Code. The magistrate purported to stay the proceeding under section 134 of the Criminal Procedure Code and ordered a reconciliation of the parties.

Held: “the main point at issue in this case is whether the magistrate had power to resort to resort to section 134 and record reconciliation thereunder. On a proper construction the wording of the section, it would seem to that the Magistrate had no power to this case to resort to the reconciliation procedure under section 134. The offence of stealing by

agent c/s 273(c) and 265 of the Penal Code being a felony is expressly excluded from the application of section 134 of the Criminal Procedure Code. The magistrate is referred to the case of Republic v. Said Ibarahim (1960) E. A. 1058 at p. 1060 and 1061 where this Court said: "Certain offences would nearly be excluded by the wording of the section. All felonies are expressly excluded. And from the express inclusion of common assault, it would seem that other kinds of assault constituting only misdemeanours, as for instance assault causing actual bodily harm, are excluded by implication. Again, crimes such as treason and riot, neither of which are 'felonies' would clearly be excluded, since they are manifestly not of a personal or private nature in any sense of those words."

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471. R. v. Mlatende Crim. Sass No. 233-D-1970; 16/6/71; Onyiuke J.

The accused was divorced from his wife in 1969 after living with her for 8 years. He moved to a nearby house where he lived as a tenant on the night in question the accused, after securing the front and back doors of his former wife's house, set fire to it. The wife awoke and after vainly trying the doors, broke out through a wall of the hut. She later rescued a child who was in the hut, and another person in the hut also escaped. The accused was charged with arson c/s 319 (a) and attempted murder c/s 24 of the Penal Code.

Held: (1) "Turning to the charge of attempted murder I directed the assessors that nothing suffices as mental ingredient of the offence except the specific intent to kill. Intent to cause grievous harm is not enough. The intent to burn a house in which persons live or the actual firing of a house with persons therein does not necessarily evidence the requisite intent to kill. There must be something in the circumstances either an act of commissions or omission which clearly manifests intent to kill. I am

satisfied that such act exists in this case. The positive steps taken to prevent escape by the inmates of the house established beyond reasonable doubt that the accused intended the inmates of the house to burn to death.” (2) “As the facts disclosed two offences constituted by two acts, namely, setting the house on fire (Arson) and securing the front and rear doors of the house from outside and firing the house (attempted murder) the accused can be convicted and punished for both offences and the counts should not be regarded as alternative. In *Myano s/o Ilene v. R.* (1951) 18 E. A. C. 317).” (3) Found guilty on both counts as charged.

472. Mamuya v. R. Crim. App. 230-D-1971, 8/11/1971; Onyiuke J

The accused pleaded guilty to a charge containing 14 counts, a number of them being forgery c/s 337 of the Penal Code, the others being stealing by public servant c/s 270 & 265. He was sentenced to 12 months on the forgery counts, and 4 years on the stealing counts. He appealed against sentence. He was the postmaster at Kondoa Post Office and on various dates in December 1969 he forged withdrawal forms with which he withdrew money on post office pass books belonging to some depositors. One question raised was whether the stealing was a scheduled offence under the Minimum Sentences Act.

Held: (1) “The appellant was employed by the Post and Telecommunications Department which is an organ of the Community he was therefore employed in the public service as defined by section 5 of the Penal Code. The question however was whether he stole this money by virtue of his employment. The appellant obtained this money came to him by virtue of his employment? I think it did. He was in charge of the post office withdrawal forms by virtue of his employment. The money which he belonged to the Posts and Telecommunications Department and was in the

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appellant's possession or under his control by virtue of his position as the postmaster in charge of Kondoa Post Office. Although he purported to withdraw the money on pass books belonging to private depositors the money belonged to the Posts and Telecommunications Department and not to the private depositors. The forgery was a means by which the appellant stole the money which was in his possession or under his control by virtue of his employment. Alternatively the appellant who was employed in the public service stole money which belonged to his employers. This is enough to make it a scheduled offence. (See Paragraph I of the Schedule to the Minimum Sentence Act).” (2) “The next point was whether the sentence was so manifestly excessive as to warrant interference. the question is whether there were such circumstances of aggravation as to justify imposing more than the minimum sentence. The learned magistrate in passing sentence held that this kind of conduct would discourage people to deposit their money with the banks and thus defeat the efforts of the banking instructions to encourage savings. I agree that this was an aggravating circumstance but the learned magistrate did not consider the mitigating circumstances in the case. The appellant was first offender and stood to lose the benefit of his 19 years in the public service. The amount involved was not too large and the appellant pleaded guilty to the charge. The forgeries took place within a short period of one month. The appellant was ordered to refund the amount stolen. I agree with the learned State Attorney that in view of these mitigating circumstances the sentence was excessive.” (3) Sentence reduced to thirty months imprisonment.

473. R. v. Marwa Crim. Sass. Case 21-Musoma-71; 24/9/71; El-Kindy J.

The victim was found lying on the floor of a house with a number of wounds, including a swollen wound on the back of his head. He made a

statement naming the accused as his attacker. Later, at a dispensary, he repeated the statement. He subsequently died. The evidence showed that his death was due to compression of the brain caused by a blood clot that had formed on the inside of the skull beneath the bruise on the outside. The wound have been caused by a heavy object and inflicted with great force.

Held: (1) “[A] dying declaration is evidence which is admissible against an accused person, but such evidence falls into that class of evidence which needs to be corroborated before such evidence can be acted on.” But were circumstances exist showing that the deceased could not have been mistaken in his identification of the accused, a conviction can result even though such was the only evidence against an accused person. However, it is only on rare occasion that such evidence would be acted on without corroboration that such evidence would be acted on without corroboration [See R. v. Eigu s/o Odel and Anor. (1943) 10 E. A. C. A. p. 90, R. v. Muyovya bin Msumu (1936) 6 E. A. C. A. p. 128 and Pius Jasunga s/o Akumu v. R. (1954) 21 E. A. C. A. p. 331]. Such corroboration can either be circumstantial [R. v. Said s/o Abdalla (1945) 12 E. A. C. A. p. 67] or through the conduct of the accused id a declaration is made in the presence of accused [Mbingu v. Uganda (1965)E. A. p. 71] or by direct evidence.” (3) “Nevertheless, the weight to be given to such evidence could depend on various circumstances such as the circumstances in which the statement was made, the effect of the wound on the maker, ad the state of the memory and the intellectual power of the maker.”

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(4) “In my view, it is possible that the deceased spoke but due to his weak condition he was probably not heard by everybody. However, in the light of the same evidence, I am unable to say that his memory and intellect

had not been severely affected by the wound and the bleeding into the brain. As both medical officers testified, such an affection of the brain was not beyond the bounds of possibility. I would therefore place no weight at all on the alleged declaration as I am not satisfied that he was sound mentally when he made it. It would have been a different matter if there was other evidence corroborating this weak statement.” (5) [M]mere repetition of the same statement is not evidence of its truth, but only an indication of consistency o the maker’s belief. [See R. v. Muyonya Bin Msuma (1939) 6 E. A. C. A. p. 128]. (6) “I do not think that it made any difference when the deceased repeated the alleged statement as this would not necessarily indicate that he was sound in mind when he made it. In the normal circumstances, his condition would be expected to grow worse and it would not be unreasonable to infer this since he died slightly over four hour thereafter.” (7) Accused acquitted.

474. (Editor’s note: The names of the parties are omitted from the Order). Crim. Revision 43-A-71; 11/10/71; Kwikima Ag. J.

The accused aged 20, was convicted of stealing by Agent c/s 273 of the Penal Code. He was sentenced to suffer 8 strokes “of the cane”. His father was ordered to make good the loss of the bicycle stolen.

Held: (1) “The only statutes under which corporal punishment can be ordered are Cap. 13 (Children and Young Persons Ordinance), Cap. 17 (The Corporal Punishment Ordinance) and Cap. 526 (The Minimum Sentence Act). In this case the accused was over 16 years of age so cap. 13 did not apply to him. The offence of stealing by agent is not scheduled either under Cap. 17 or Cap. 526. The sentence was therefore illegal.” (2) “The order for compensation is equally unlawful in so far as it is made against a person other than the accused. Such a step is made against a person other than the accused. Such a step could only be taken lawfully if the accused was juvenile.”

475. D. P. P. v. Mohamedi s/o Lada., Crim. App. 135-D-71; 17/11/71; Onyiuke, J.

The respondent was charged on the 1st count with fraudulent false accounting c/s 317 (c) and on Counts (2) and (3) with stealing by public servant c/ss 270 and 265 of the Penal Code. The respondent pleaded guilty to Count (1) and not guilty to counts (2) and (3). He was convicted on his own plea in Count (1) and was sentenced to 6 months' imprisonment. The trial preceded in respect of counts (2) and (3). At the close of the case for the prosecution the learned Magistrate ruled that the respondent had no case to answer on those counts on the ground that he was not a person employed in the public service since the evidence showed that he was a secretary of a co-operative society and that a person so employed is not in the public service as defined by section 5 of the Penal Code. He held that a prima facie case has not been made out for an offence under section 270 of the Penal Code. He stated however

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That the facts would support a charge for an offence under section 271 but that since the respondent had not been charged under that section he had no power to convict him of that offence. He cited Joseph Selemani v. R. (1968) H. C. D., 484, to support his view of the law. In the final result the learned Magistrate discharged and acquitted the respondent on counts (2) and (3).

Held: (1) "Section 206(c) of the Criminal Procedure Code provides that when a court is considering whether a case has been made out against an accused at the close of the evidence in support of the charge it should consider not only the offence with which an accused person was charged but other offences for which under Sections 181 to 189 of the Criminal Procedure Code the accused was liable to be convicted although he is not specifically charged with one of these offences. In this case the

respondent was charged with stealing under Section 270 of the Penal Code. To succeed under this section one must establish stealing defined in Section 265 in the first instance. A person charged with stealing contrary to section 270 of the Penal Code could be convicted of a simple stealing under section 181 of the Criminal Procedure Code although he was not charged with it.” (2) “The learned Magistrate should have ruled that the respondent had a case to answer for simple stealing contrary to section 206(c) of the Criminal Procedure Code for his defence.” (4) Appeal allowed and case remitted to District Court for it to take respondent’s defence and proceed to judgment.

476. R. v. Fares s/o Dadi and 4 Others. Crim. Rev. 57-M-71; 27/10/71; Kisanga Ag. J.

Four persons were convicted on their own plea, and one acquitted, on a charge of being in possession of uncustomed goods c/ss 147 (d) (ii) and 155A(c) of the East African Customs Management act 1952 as amended by the East African High Commission Act No. 3 of 1958. The present revision was not concerned with the convictions, which were held justified, but with the propriety of an order made by the trial magistrate as to the motor vehicle used to transport the uncustomed goods. On the day he sentenced the four convicted persons, he made an order under section 158 (2) of the Act requiring the motor vehicle in question to handed over to the customs officer for safe custody. He adjourned the court and later heard the plea of not guilty entered by the fifth accused. At the end of this hearing he made a second order, restoring the vehicle to the true owner, Hamadi Sudi. It was argued by the Republic that having made the first order; the magistrate became “functus officio” and could not revise the order by making the second order.

Held: (1) “Section 158(2) under which the trial magistrate handed over the motor vehicle to the customs officer provides, “Any vessel,

vehicle, goods, animal, or other thing, seized under the provisions of this section and any aircraft, vessels,

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or other thing, which may be seized and detained under the provisions of this Act, shall be taken to a [Government warehouse or to such other place of security as the proper officer may consider appropriate". it would seem that the provisions of this subsection merely concern the question where to keep the goods, etc.,. After the have been seized but before any proceedings have been commenced, that is to say, it applies at any time during which the officer concerned is making up his mind whether or not to bring a prosecution in respect of the goods. For, under the following subsection 3, the Commissioner has power, subject to certain conditions, to release any goods etc. which have been seized under the Act. Thus the legislature cannot have intended that the court acting under subsection 2 may order that the gods etc. be kept at the Government warehouse and that at the same time the Commissioner acting under the following subsection 3 may dispose of such goods, because such provisions would cause a serious conflict. The correct section under which that order could have been made would be section 159 (3) (a) which provides, (3) Where an thing liable to for-feiture under this Act has been seized, then – (a) if any person is being prosecuted for the offence by reason of which such thing was seized, such thing shall be detained until the determination of such prosecution and dealt with in accordance with the provisions of section 160:" (2) "The motor vehicle was liable to forfeiture under section 156(1) of the Act because it was used in conveying the goods which were themselves liable to forfeiture and sine the accused persons were now being prosecuted for the offence connected with this transaction, the Court could properly order detention of the motor vehicle in question pending determination of the matter. I am also satisfied that such an order did not

make the court "functus officio". The terms of the order were that the vehicle "be handed over to the Customs Officer for safe custody", and it would seem clear to me that this was merely an order for custody pending a further order for final disposal of the motor vehicle." (3) "Section 160(1) provides that, "Where any person is prosecuted for any offence against this Act and any thing is liable to forfeiture by reason of the commission of such offence, then the conviction of such person of such offence shall, without further order, have the effect as condemnation of such thing." The accused persons were prosecuted for being in possession of uncustomed goods and the motor vehicle was liable to forfeiture because it was used in conveying the goods, so that in terms of this subsection the conviction of the accused persons automatically operated as a condemnation of the motor vehicle." (4) "Again section 162 (1) provides, "Where any thing has been seized under the provisions of this Act as being liable to forfeiture, then the condemnation of such things shall in no way be affected by the fact that any owner of such thing was in no way concerned with the act which rendered such this liable to forfeiture." According to this subsection it is clear that such condemnation cannot be prevented from taking effect by the fact that the owner of the vehicle was not in any way concerned with the transaction which rendered the motor vehicle liable to

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forfeiture, and consequently it would appear that having regard to the provisions of section 160(1) cited above the trial court would not be entitled to issue notice to the owner to show cause because the condemnation of the vehicle was automatic upon conviction of the accused persons." (5) "It should be noted that the power to restore the motor vehicle to the owner is vested in the High Commission. Section 163 of the Act provides that, 'Where any thing has been seized under the provisions of this act, then the High Commission may, whether or not such

thing has been condemned, direct that such thing shall be released and restored to the person from whom it was seized or to the owner thereof, upon such conditions as it may think fit.” This means that after the court has adjudicated upon the matter and vested the motor vehicle in the Republic, then it would be competent for the owner to approach the Customs authorities and to plead with them and that the High Commission may direct that the motor vehicle be released and restored to such owner upon such conditions as it may think fit.” (6) Order of the trial court restoring the motor vehicle to the true owner was set aside the record remitted back to the trial court with the direction to cause the motor vehicle in question, if still lawful belongs to the said Hamadi Sudi, be forfeited to the Government under section 162 (20) (a) of the Act.

477. R. v. Msadaka Crim. Rev. 72-M-70; 20/10/71; Makame J.

The accused was found guilty of a number of traffic offences including driving without an insurance policy. When given an opportunity to advance special reasons for not being disqualified for holding or obtaining a driving licence, the accused said: “I pray that the court should not disqualify one for holding a driving licence because I wholly depend on driving the bus. I have no other means to earn my living”. On this plea the magistrate refrained from ordering a disqualification.

Held: (1) “There are a string of authorities, among them Iskandor v. Republic 1968 H. C. D. 153, to the effect that “special reasons” are reasons special to the circumstances of the case and not special to the accused. The accused in the present case has advanced no such special reasons: the disqualification is automatic. In his quest for money the accused displayed an insolent disregard for the welfare of others. The possibility of an accident in the present case was a real one because two of the tyres were badly worn out. The accused was disqualified for holding or obtaining a driving licence in 1968 for similarly driving a vehicle without

insurance cover. I order his disqualification for holding or obtaining a driving licence for a period of 15 months effective from today.”

478. R. v. Mgena. Crim. Rev. 80-M-71; 5/11/71; El-Kindy J.

The accused was charged and convicted by the District Court of attempted rape c/s 132 of the Penal Code, Cap. 16. The complainant was a married woman and in an advanced stage of pregnancy. The accused had chased the complainant and pulled off her kitenge cloth as she ran, leaving her naked. She fell down and the accused began to remove his trousers. There was no evidence that he had produced his male organ.

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Held: “I agree with the learned magistrate that, by going through this process, the accused exhibited intent to have sexual intercourse against the wish of the victim. But, with more respect, I do not think that the accused had reached the stage of putting into effect his intent. He had just prepared himself, and he was at that stage when his efforts were frustrated although it is not clear, from the evidence, how he was frustrated. With respect, therefore, I am satisfied that the charge was not proved.” (2) “However, the facts left no reasonable doubt that what he did amounted to indecent assault contrary to section 135(1) of the Penal Code, Cap. 16. He may not have made an oral indecent suggestion, but his conduct left no reasonable doubt that he made an indecent suggestion of sexual intercourse. And the assault consisted in taking away her cloth leaving her in naked stage.” (3) Conviction for attempted rape contrary to section 132 of the Penal Code, Cap. 16, quashed and the sentence set aside. Conviction for indecent assault c/s 135 (1) of the Penal Code substituted.

479. Lugimbana v. R. Crim. App. 356-M-71; 29/10/71; Kisanga Ag. J.

The appellant was convicted of causing grievous harm. P. W. 4 allegedly made a statement to the police which was inconsistent with his testimony during the trial. During the trial, the prosecution asked leave to treat P. W. 4 as hostile according to section 164(1) (c) of the Evidence Act and this was granted, but after the defense had finished cross-examining P. W. 4. P. W. 4's earlier statement was not produced in court but the magistrate acted on it in convicting the appellant. Apart from this statement, the evidence against the appellant was so thin and unsatisfactory that no conviction could be based on it.

Held: (1) "In the case of Kiboga Mahenga vs. R. 1968 H. C. D. n. 200, a similar situation arose and Mustafa, J., as he then was, held that the alleged previous statement should have been produced. The reason for this rule seems apparent. It would enable the court to discredit or not to discredit the witness by comparing the witness's testimony in court with his previous statement which is before it. When the previous statement is not produced then such comparison becomes impracticable. The court cannot even use extracts taken from the previous statement and recorded in the proceedings during cross-examination of such witness unless the previous statement itself is put in to form part of the evidence. Failure to put the previous statement in evidence therefore was an irregularity. Again, the application for leave to treat the witness as hostile was made after the defence had finished cross-examination him and at a time when he was only available for re-examination by the prosecution. That would seem to be wrong, and I think that an application to treat a witness as hostile ought to be made during the examination-in-chief when the party is adducing evidence from the witness in an attempt to establish the main issue or issues in its case." (2) "It also appears that the trial magistrate was not entitled to accepted act on the evidence of P. W. 4 as he did. In the case of Mabati bin Ruadiba vs. R. 1938, E. A. C. A. 52, the Court of Appeal held that where a party seeks to impeach the credit of a witness by proof of a previous inconsistent statement and the party succeeds to show

that there are serious and substantial inconsistencies which are unexplained,

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the effect of such exercise is to render the witness unworthy of belief and not to make what he said in his former statement available as evidence at the trial. In other words, this means that the previous statement must be discounted. Thus in my opinion where a witness has been successfully discredited the net effect of such a course is that both his testimony at the trial and his previous statement should be discounted and neither may be made use of as evidence. In the instant case P. W. 4 admitted that all what he had said at the police station were lies. He gave no reason why he told lies to the police. Therefore there was clear indication that the witness was capable of telling lies and hence capable of being disbelieved. If his statement to the police was available it might well show that the witness did in fact tell lies to the police and that the lies he told were serious and substantial. In these circumstances, the rule in Ruadiba's case cited above would apply and the witness should be made unworthy of belief so that his testimony in court should be disbelieved. Since the trial magistrate did not satisfy himself whether the witness had in fact told lies or not and if so to what extent, I think that he was not intitled to accept the witness's statement in court against the appellant because the witness could well be unworthy of credit." (3) Appeal allowed.

480. R. v. Tangu Crim. Rev. 173-D-71; 26/10/71; Mwakasendo Ag. J.

In sentencing the accused- a juvenile – the trial magistrate ordered that he be given 12 strokes of the cane in public as corporal punishment. The Magistrate purported to act under section 6 of Cap. 17. No reason was advanced as to why corporal punishment should be inflicted in public.

Held: "On perusal of the record I have been unable to find any explanation or reason for the Magistrate's decision to have the infliction or corporal punishment in public. Section 6 of Cap. 17 quoted by him do not authorize him to order the canning of the juvenile to take place in public. Even section 8(5) of the same Ordinance which might, in a special case, 'where the court considers it desirable', permit a Magistrate to make an order for corporal punishment to be carried out in public, does not in the present case appear to be applicable. Sub-section (5) of section 8 of the Corporal Punishment Ordinance, Cap. 17 provides: "No sentence of corporal punishment shall be inflicted publicly: provided that where the Court considers it desirable, this provision shall not apply to the punishment of juveniles." From a proper construction of this provision, it would seem to me that no order for the infliction of corporal punishment in public can be maintainable unless the court in clear terms, gives, reason why it thinks it desirable that corporal punishment should be carried out in public. This was not done in this case and therefore the order directing that the punishment be carried out in public was irregular and shall accordingly be revised."

481. Salum Ibrahim v. R. Crim. App. 79-D-71; 8/11/71; Onyiuke J.

The appellant and complainant were married for about 8 years but were later divorced. It was agreed that the household goods all of which had been bought by the appellant should be divided between them. Sometime afterwards the appellant visited the complainant who, he

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learned had been having an affair with another man, and demanded all his property from her. He assaulted the complainant and removed a number of articles from the house. He was charged and convicted of robbery with violence c/s 285 and 286 of the Penal Code.

Held: (1) "It doubtful whether the assault on the complainant was used to facilitate the stealing. It looks like an assault simpliciter and an expression of the appellant's resentment at the complainant's conduct." (2) "[The appellant's] defence was a claim of right to those things which he removed A claim of right may be unfounded in law, but if it was honestly held and was not manifestly unreasonable, it can be a good defence to a charge of stealing. The appellant might have thought he was entitled to demand his things back from the complainant in the circumstances." (3) Appeal allowed.

482. R. v. Ally Mohamed: Crim. Rev. 196-D-71; 13/11/71; Mwakasendo Ag. J.
The accused was charged on two counts of (a) driving a motor vehicle with defective handbrake and (b) driving a motor vehicle with defective foot brake c/ss 43 (a) and 70 of the Traffic Ordinance.

Held: "The attention of the magistrate is drawn to the provisions of sections 43(a) and 70 of the Traffic Ordinance which create only one offence of "driving a motor vehicle with defective braking system." That is what the accused in this case should have been charged with. It does not matter at all whether the defect relates to either the hand brake or foot brake or both."